SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM (SNAP) SOURCE BOOK

New York State Office of Temporary and Disability Assistance

Employment and Income Support Programs

For SNAP Policy questions please contact the SNAP Bureau at SNAPBureau@otda.ny.gov

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SNAP SOURCEBOOK
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SECTION 1: Forward/Notice

FORWARD

The Supplemental Nutrition Assistance Program (SNAP) Source Book (SB) provides assistance to local district staff by introducing the information necessary for the proper determination of eligibility for SNAP and by serving as an instructional guide for workers.

This manual is the product of many individuals' work. It is the hope of all those involved in preparing the SNAP SB that you, the reader, will find it useful.

NOTICE

The SNAP SB is intended simply to express Department policies and regulations which have been formulated in Book 18, The Official Compilation, Rules and Regulations of the State of New York. The final authority on Department Regulations is Book 18.

NOTE: In the event there is a conflict between the Regulations in Book 18 and the Material in the SNAP SB, users should contact either their SNAP District Liaison or the Employment and Income Support Programs (EISP) SNAP Bureau staff at SNAPBureau@otda.ny.gov.

SECTION 2: Supplemental Nutrition Assistance Program (SNAP)

A. General Introduction

POLICY

The SNAP Source Book (SB) will provide districts with guidelines to determine eligibility and benefit levels for households and to operate local programs. These include application and notice requirements, and budgeting and resource procedures basic to a determination of financial eligibility for SNAP benefits.

At the end of every subject, references will cite the relevant State Regulations; policy guidance documents or other relevant links. To facilitate further access to information, the reader will find a master Table of Contents in the front of the book.

Information in the SNAP SB will be revised and updated as needed in order to maintain the continued validity of the Source Book. Notification of the most recent updates will be found in Section 1 in the Notices area.

Administrative Directives, Regulations, General Information System (GIS) and Automated Budgeting and Eligibility Logic (ABEL) Transmittals will provide necessary notification of changes affecting State and district staff. Wherever a conflict arises between the SNAP SB and Regulations, Social Services Law, Administrative Directives, GIS or an ABEL Transmittal, local district staff should contact the Employment and Income Support Programs (EISP) SNAP Bureau.

B. Overview of the Supplemental Nutrition Assistance Program (SNAP)

PURPOSE

The purpose of the federally funded Supplemental Nutritional Assistance Program (SNAP), is to reduce hunger and food insecurity by supplementing the food purchasing of eligible low income individuals.

LEGAL BASIS

The authority to operate the SNAP is based on both Federal and State Laws and Regulations.

1. Federal Law

Under the Food Stamp Act of 1977, the Food Security and Rural Investment Act of 2002, and the Food, Conservation and Energy Act of 2008, the United States Department of Agriculture (USDA) administers the SNAP. Within USDA, the Food and Nutrition Service (FNS) has program responsibilities.

2. Federal Regulations

7 CFR Sections 172 through 282 govern the Federal SNAP.

3. State Law

Under Sections 95 and 29 of the Social Services Law, the New York State Office of Temporary and Disability Assistance (NYS OTDA) administers the SNAP.

a. Under Section 95, NYS OTDA can:

(1) Develop the required State plans to utilize the Federal Food Stamp Act of 1977, as amended,

(2) Accept a designation which makes SNAP benefits available to eligible persons,

(3) Delegate or assign appropriate functions to other State departments and agencies with the approval of the Governor,

b. Under Section 29, NYS OTDA, with the approval of the Governor, can accept a designation from, and act as the agent of the duly authorized Federal Agency in the administration of relief and related activities affecting the welfare of individuals and communities, and the disbursement or expenditure of Federal funds and commodities.

4. State Regulations

Part 387 governs the State SNAP.

C. ACRONYM/TERMINOLOGY LISTING

-A-

AABD	Aid to Aged, Blind and Disabled
ABAWD	Able Bodied Adult Without Dependents
ABE	Adult Basic Education
ABEL	Automated Budgeting and Eligibility Logic
ACCESS VR	ACCESS-VR (Adult Career and Continuing Education Services-Vocational Rehabilitation, formerly known as VESID)
ACE	Active Corps of Executives
ACHIEVE	Another Change Initiative for Education, Vocation or Employment
ACTUAL	Actual Shelter Cost
A/D	Aged/Disabled
ADA	American's with Disabilities Act
ADM	Administrative Directive (NYS issued directive)
AE	Agency Error
AFA	Anticipated Future Action
AFIS	Automated Finger Imaging System
AIDS	Acquired Immune Deficiency Syndrome
ALE	Adult Literacy Education
AP	Absent Parent
APP-REG	Application Registration
APP-TAD	Application Turn Around Document (DSS-3636)
A/R	Applicant/Recipient
ASAW	Additional Special Agricultural Worker
AVE	Adolescent Vocational Exploration Program

-B-

BASIC	Basic or Personal Allowance
BCIS	Bureau of Citizen and Immigration Services (Formerly INS)
BDD	Bureau of Disability Determinations (NYC)
BEDS	Back End Detection System
BENDEX	Beneficiary Data Exchange
BICS	Benefit Issuance and Control System
BOCES	Boards of Cooperative Educational Services
BRIA	Bureau of Refugee and Immigration Affairs

-C-

CA	Number in Case
CAA	Community Action Agency
CAMS	Cash Management Subsystem
CAP	Child Assistance Program
CASE	Case Type
CASE NO	Case Number
CBIC	Common Benefit Identification Card
CBO	Community Based Organization
CBVH	Commission for the Blind and Visually Handicapped
CCBG	Child Care Block Grant
CFR	Code of Federal Regulations
CHEP	Cuban/Haitian Entrant Program
CIN	Client Identification Number
CNS	Client Notices System
COB	Close of Business

COLA	Cost of Living Adjustment
CSEU	Child Support Enforcement Unit
CSMS	Child Support Management System
C/THP	Child/Teen Health Plan

-D-

D/A	Drug/Alcohol
DAAA	Division of Alcoholism and Alcohol Abuse
DANKS	Danks Essential Person Case
DAR	Dormant Account Review
DCA	Disqualification Consent Agreement
DDD	Division of Disability Determinations
DEF	Deficit
DOH	Department of Health
DMV	Department of Motor Vehicles
DPA	Deferred Payment Agreement
D-SNAP	Disaster SNAP
DVL	Domestic Violence Liaison

-E-

EAA	Emergency Assistance for Adults
EAF	Emergency Assistance to Families
EAPP	Employment Alternatives Partnership Program
EBICS	Electronic Benefits Issuance Control System
EBT	Electronic Benefit Transfer
EDC	Estimated Date of Confinement (date of delivery of newborn)
EHP	Enriched Housing Program

EITC	Earned Income Tax Credit
EID	Earned Income Disregard
EP	Essential Person
ERT	Employment Readiness Training
ES	Employment Search
ESAP	Elderly Simplified Application Project
ESL	English-as-a-Second Language
ESNA	Emergency Safety Net Assistance
EW	Eligibility Worker

-F-

FA	Family Assistance
FAP	Food Assistance Program
FDC	Family Day Care
FEDS	Front End Detection System
FEPS	Family Eviction Preventive Supplement
FFR	Face-to-Face Recertification
FFY	Federal Fiscal Year
FICA	Federal Insurance Contributions Act (Social Security) Indicator
FNP	Federal Non-Participation
FNS	Food and Nutrition Service (USDA)
FP	Federal Participation

-G-

GA	General Assistance
GAGD	Grants of Assistance for Guide Dogs

GED	General Educational Development
GFDC	Group Family Day Care
GIS	General Information System
GIT	Gross Income Test

-H-

HAP	Housing Assistance Payment
HEA	Home Energy Allowance
HEAP	Home Energy Assistance Program
HEFPA	Home Energy Fair Practices Act
HH	Household
HHS	U.S. Department of Health and Human Services
HIV	Human Immunodeficiency Virus
HMO	Health Maintenance Organization
HRA	NYC Human Resources Administration
HSP	Housing Supplement Program
HUD	Housing and Urban Development

-I-

IAR	Interim Assistance Reimbursement
IDA	Individual Development Account
IHE	Inadvertent Household Error (unintentional client error)
INF	Informational Letter
INS	Immigration and Naturalization Service
IPV	Intentional Program Violation
IRCA	Immigration Reform and Control Act of 1986
IRS	Internal Revenue Service

IV-D	Title IV-D Amendment to the Social Security Act (CSE)

-L-

LCM	Local Commissioners Memorandum
LEP	Limited English Proficiency
LRR	Legally Responsible Relative
LPR	Lawful Permanent Resident (Alien Status)
LTR	Lawful Temporary Resident

-M-

MA	Medical Assistance
MARG	Medical Assistance Reference Guide
MOE	Maintenance of Effort
MRB/A	Mass Rebudgeting/Reauthorization

-N-

NCIC	National Crime Information Center
NCP	Non-Custodial Parent
NCSTA	National and Community Services and Trust Act of 1993
NIT	Net Income Test
NPA	Non-Public Assistance
NPC	Non-Parent Caregiver
NTA/SNAP	Non Temporary Assistance/SNAP
NYC	New York City
NYCRR	New York Codes of Rules and Regulations
NYS	New York State
NYSCAP	New York State Combined Application Project

NYSNIP	New York State Nutrition Improvement Project

-O-

OASAS	Office of Alcohol and Substance Abuse
OASDI	Old-Age, Survivors and Disability Insurance (Social Security)
OBRA	Omnibus Budget Reconciliation Act
OCFS	Office of Children and Family Services
OHIP	Office of Health Insurance Programs
OJT	On the Job Training
OMH	Office of Mental Health
OOE	Order of Exclusion
OPWDD	Office for People with Developmental Disabilities
OTDA	Office of Temporary and Disability Assistance

-P-

PA	Public Assistance (also known as Temporary Assistance)
PARIS	Public Assistance Reporting Information System
PHA	Public Housing Authority
PIN	Personal Identification Number
PIO	Public Information Office
PNA	Personal Needs Allowance
PROWRA	Personal Responsibility Work Opportunity Reconciliation Act
PRUCOL	Permanently Residing in the United States Under Color of Law
PSC	Public Service Commission
PWA	Public Works Administration

-R-

RAP	Refugee Assistance Program
RAW	Replenishment Agricultural Worker
RFI	Resource File Integration
RIN	Recipient Identification Number (NYC)
RSDI	Retirement Survivors Disability Insurance

-S-

SAVE	Systematic Alien Verification for Entitlements
SAW	Special Agricultural Worker
SCU	Support Collection Unit
SDNH	State Directory of New Hires from NYS Tax and Finance
SDX	State Data Exchange
SED	State Education Department
SEMI-TA	Semi-Monthly Cash Grant Amounts
SFY	State Fiscal Year
SHEA	Supplemental Home Energy Allowance
SHELT	Shelter
SLIAG	State Legalization Impact Assistance Grants
SNA	Safety Net Assistance
SNAP	Supplemental Nutrition Assistance Program
SSA	Social Security Administration
SSDB	Social Security Disability Benefits
SSI	Supplemental Security Income
SSD	Social Services District
SSL	Social Services Law

SSN	Social Security Number
SSPNA	State Supplemental Personal Needs Allowance
SSP	State Supplement Program
SWE	Social Welfare Examiner
SUA	Standard Utility Allowance
SUR	Surplus

-T-

TA	Temporary Assistance
TANF	Temporary Assistance for Needy Families
TASB	Temporary Assistance Source Book
TEAP	Training and Employment Assistance Program
TPHI	Third Party Health Insurance
TPR	Third Party Resource
TRO	Temporary Restraining Order

-U-

UIB	Unemployment Insurance Benefits
USCIS	United States Citizenship and Immigration Services
USDA	United States Department of Agriculture

-V-

VA	Veterans' Administration
VISTA	Volunteers In Service To America

-W-

WEP	Work Experience Program
WIC	Women, Infants and Children

WIOA	Workforce Innovation and Opportunity Act
WMS	Welfare Management System
WRA	Welfare Reform Act (NYS/1997)
WRM	Worker's Reference Manual
WRS	Wage Reporting System from NYS Tax and Finance
WRTS	Welfare Reporting & Tracking System

SECTION 3: Responsibility of the Local Social Services District

A. General Introduction

1. Policy

In order to assist needy families and individuals to obtain SNAP benefits, each Local Social Services District (LDSS), referred to as “district”, must fulfill its responsibilities to administer SNAP in accordance with applicable releases of OTDA, including but not limited to the SNAP Source Book. In addition to the responsibilities listed in this Section, districts must perform other appropriate functions in accordance with state and federal requirements.

2. OPERATING GUIDELINES

Districts must operate SNAP in accordance with the policies and procedures provided to them by OTDA. Accordingly, districts must submit to OTDA, for approval, all requests for waiver from established policy and all locally developed policy manuals, procedural guides or forms which are intended to be the equivalent of documents which have been provided by OTDA. Such requests must be submitted in accordance with Department Regulation 300.6.

Reference: 387.2 Responsibilities of Local Department

B. Personnel

The district must undertake the certification of applicant households in accordance with the personnel standards used by OTDA in the certification of applicants for benefits under the federally aided TA programs.

1. Personnel Requirements

a) Merit Personnel - Certification personnel must meet the current New York State Merit System standards. Only merit employees can conduct the application interview. Additionally, access to permanent CBIC and temporary vault cards, and other issuance documents must be denied to all persons except authorized employees of OTDA, districts, and the federal agency involved in the administration of the program.

NOTE: Volunteers must not conduct the application interview or certify SNAP applicants. Volunteers may engage in activities such as outreach, prescreening, assisting applicants to complete the application, and securing needed verification. A volunteer may officially represent households whose members are unable to go to the certification office.

NOTE: Individuals, organizations, and facilities involved in a strike or lockout cannot be used in the certification process except to verify the applicant's information.

b) Staffing Standards **-** To meet the timeliness standards set forth in this manual, districts must employ sufficient staff to certify accurately and issue benefits to eligible households and to process fair hearing requests within the appropriate timeliness standards.

c) Bilingual Requirements **–** Districts, including those with a seasonal influx of single-language minority households, must provide sufficient bilingual program information and certification materials, and staff or interpreters to meet the needs of single-language minority, Limited English Proficient households. Federal and state laws and regulations specify Districts LEP access requirements.

For further information on providing language services, see 06-ADM-05 Providing Access to Temporary Assistance Programs for Persons with Disabilities and/or Limited English Proficiency (LEP) Revised.

2. Training

With the assistance of the OTDA training coordinator, the districts must develop a continuing comprehensive training program for all personnel engaged in certification, program informational activities, or prescreening activities. The districts must designate training coordinators to:

a) Implement State training materials and techniques

b) Supplement State training programs with sessions designed for districts, and community partners, if appropriate

c) Conduct and/or supervise training sessions

d) Assure that appropriate personnel receive training and, that "completion" data be supplied to OTDA, as required.

The following "Training Table" provides guidelines to be followed in the training of staff.

SESSIONS COVERING	PERSONS TO BE TRAINED	TIME STANDARDS
Eligibility criteria, Certification procedures, household rights and responsibilities, Civil Rights, other duties related to household certification	Eligibility Workers, new employees responsible for certifying. Note, all staff who work on SNAP cases must complete annual Civil Rights Training via TrainingSpace.org or as offered by OTDA.	Prior to initial assumption of duties. Periodically, based on policy changes, program deficiencies, USDA audits, district management self assessments, or individual performance deficiencies or individual performance. Note, all staff who work on SNAP cases must complete annual Civil Rights Training via TrainingSpace.org or as offered by OTDA.
Policy/procedures changed based on court action or revisions to legislation and regulations	All affected personnel, individuals specified by the court, law or directives	Within 30 days or as specified
Formal certification training conducted statewide, citywide, or regionally	Certification personnel, the public (up to 5% of total attendance or 5 persons, whichever is smaller, must be allowed)	As Needed
Program information pre-screening techniques	Volunteers, other pre-screeners, Community Based Organizations	As Needed
Program regulations and hearing procedures	Hearing Officers, performance reporting system reviewers	Prior to initial assumption of duties. Periodically, as needed based on policy changes, program deficiencies, USDA audits, district management self assessments or individual performance

Reference: 387.2 Responsibilities of Districts

06-ADM-05 Providing Access to Temporary Assistance Programs for Persons with Disabilities and / or Limited English Proficiency (LEP) Revised

www.LEP.gov

C. Certification Responsibilities

Each district must:

1. Certify eligible families and individuals. Approve and issue benefits or deny applications for TA/ SNAP and Non-TA/SNAP applicants within 30 days of when an identifiable application is filed, or within seven calendar days of the application filing date if it is an identifiable application eligible for expedited processing. An identifiable application is one which contains a legible name and address (if applicable) of the applicant or authorized representative; and a signature. For certification of households which are TA/SNAP see SNAP SB Section 4

2. Ensure that SNAP benefits provided to any eligible household must not be considered as income or resources for any purpose under the Social Security Act of 1935 as amended, or under any other federal or State laws including, but not limited, to laws relating to taxation, and TA programs.

3. Not terminate or reduce a TA grant or deny application for TA or care or otherwise adversely affect a family's or an individual's eligibility for TA or care, on the grounds that the recipient or applicant is receiving or is eligible to receive SNAP benefits or fails to apply for or to utilize SNAP benefits.

4. During an emergency or disaster declared by USDA, certify households in accordance with Disaster SNAP (D-SNAP) regulations, policies and procedures of OTDA and USDA/FNS.

5. Undertake the timely and accurate issuance of benefits to certified households. Households comprised of elderly or disabled members, or those who would face an undue hardship in reaching a district office to complete a face-to-face interview and households which do not reside in a permanent dwelling or at a fixed mailing address, will be given assistance in obtaining their benefits. Districts must offer to conduct interviews and other contacts electronically, or by telephone when appropriate.

6. Screen all applications to determine if such application qualifies for expedited SNAP processing, and complete the Supplemental Nutrition Assistance Program Expedited Processing Screening sheet (LDSS-3938) as a record of the agency disposition.

Reference:

387.2 Responsibilities of Local Department
387.5 General Application Process
15-INF-05: Revised LDSS-3938 and LDSS-3938 NYC: "Supplemental Nutrition Assistance Program (SNAP) Application Expedited Processing Summary Sheet"

D. Information

Each district must:

1. Inform all SNAP applicants and recipients of their program rights and responsibilities including the use of printed materials in languages other than English where required. Client informational books LDSS-4148A What You Should Know About Your Rights and Responsibilities, LDSS-4148B What You Should Know About Social Services Programs, LDSS-4148C What You Should Know If You Have An Emergency fulfill this requirement, and the LDSS-4826A How To Complete The SNAP Application/Recertification and Applicant/Recipient Rights and Responsibilities, which accompanies the LDSS-4826 SNAP Application/Recertification, also fulfills this requirement. Particular emphasis on reviewing the SNAP Civil Rights Non-Discrimination Statement (NDS), available in the LDSS-4148 A What You Should Know About Your Rights and Responsibilities and LDSS-4826 SNAP Application/Recertification, is required during the application and recertification interview. Worker case notes must be updated to indicate that program rights and responsibilities were reviewed, particularly the NDS, including how to file a civil rights complaint.

2. Have both the LDSS-2921 Application for Certain Benefits and Services and the simplified SNAP application, LDSS-4826 SNAP Application/Recertification readily available for potentially eligible households and provide an application to anyone requesting one according to SNAPSB Section 4.

3. Provide each applicant for TA, (excluding EAA) MA, or family/children's services with information explaining the SNAP and provide them the opportunity to apply. Client informational books fulfill this requirement. Provide each NTA/SNAP applicant (excluding SSI recipients) with information explaining the program and opportunity to apply. The LDSS-4826A How to Complete the SNAP Application/Recertification and Applicant/Recipient Rights and Responsibilities fulfills this requirement.

4. Accept any application as complete which lists, at minimum, the applicant's or authorized representative's name, address (if they have one) and signature.

5. Explain to the applicant/recipient at application and each recertification the consequences of any household member who is subject to work requirements quitting his or her job without good cause. The LDSS-4148B What You Should Know About Social Services Programs or LDSS-4826A How To Complete The SNAP Application/Recertification and Applicant/Recipient Rights and Responsibilities fulfills this requirement.

6. Ensure that eligibility or extent of participation in the program will be without discrimination, in accordance with the current FNS Non-Discrimination

Statement, because of race, color, national origin, sex, religious creed, disability, age, political beliefs, or reprisal or retaliation for prior civil rights activity; and maintain a Civil Rights compliant file. All district staff should be aware of the process for a client to file a SNAP Civil Rights Complaint, and of the steps to be followed when a Civil Rights complaint has been received. See **15-LCM-09** Supplemental Nutrition Assistance Program (SNAP) Revised Civil/Human Rights Complaint Procedures

7. Prominently display in all Districts:

   a. LDSS-4995 SNAP Right to File Poster
   b. LDSS-8036 Supplemental Nutrition Assistance Program (SNAP) Benefits Complaint Procedure
   c. LDSS-4996 Will You Receive Supplemental Nutrition Assistance Program (SNAP) After Cash Assistance Ends" poster (English)
   d. LDSS-4996-SP Will You Receive -Supplemental Nutrition Assistance Program (SNAP) After Cash Assistance Ends" poster (Spanish)
   e. Language Identification Tool
   f. And Justice for All (AD-475B)

8. Identify households which are eligible for or receiving expedited service; according to SNAPSB Section 4.

   NOTE: USDA regulations and policies, State plans of operations, manuals and procedures which affect the public are maintained by OTDA for public examination on regular workdays during normal working hours.

9. Provide SNAP applicants and recipients with general information on verification requirements at application and recertification - Client informational books LDSS-4148A. For specific types of verification required see SNAPSB Section 5.

10. Provide a local telephone number and either a toll-free number or a number at which collect calls will be accepted from households outside the local calling area. The number must be provided in writing at certification and recertification.

11. Provide client information books LDSS-4148A What You Should Know About Your Rights and Responsibilities, LDSS-4148B What You Should Know About Social Services Programs, and LDSS-4148C What You Should Know If You Have An Emergency in the manner described below.at the time the application (LDSS-2921) is distributed. When the SNAP only application (LDSS-4826) is used LDSS-4826A satisfies this requirement but the client information books must be made available upon request from the client.

12. Disclosure of Information to Law Enforcement Officials

Districts must furnish the address, social security number and, if available, photograph of applicants/recipients to law enforcement officials who present a request for this information providing that they have verified that:

a) There is an outstanding felony warrant for the individual by a federal, State, or local law enforcement agency, and the underlying cause for the warrant is or committing or attempting to commit a crime that is a felony under the law of the place from which the individual is fleeing;
b) The individual is aware of, or should reasonably have been able to expect that, the felony warrant has already or would have been issued;
c) The individual has taken some action to avoid being arrested or jailed; and
d) The Federal, State, or local law enforcement agency is actively seeking the individual and informs the agency:
    1. that it intends to enforce an outstanding felony warrant or to arrest an individual for a probation or parole violation within 20 days of submitting a request for information about the individual to the State agency;
    2. when a federal, State, or local law enforcement agency presents a felony arrest warrant while acting in his or her official capacity that conforms to one of the following National Crime Information Center Uniform Offense Classification Codes, to the agency to obtain information on the location of and other information about the individual named in the warrant:

        - Escape (4901);
        - Flight to Avoid (prosecution, confinement, etc.) (4902); or
        - Flight-Escape (4999).

    3. A federal, State, or local law enforcement agency states that it intends to enforce an outstanding felony warrant or to arrest an individual for a probation or parole violation within 30 days of the date of a request from a State agency about a specific outstanding felony warrant or probation or parole violation.

For applicants for and recipients of SNAP there must be more than a warrant issued on the basis of probable cause or reasonable suspicion to believe that someone is violating a condition of probation or parole: The court held in March 2010, Clark,et.al v. Astrue, that such warrants are not equivalent to a determination that one is in fact violating a condition of probation or parole. Such warrants merely constitute evidence that one is violating one's probation or parole, but do not establish that such warrants meet the necessary evidentiary standard of establishing that the alleged violation actually exists. Therefore, districts must not deny or discontinue TA or SNAP benefits on the basis of a warrant issued on the basis of an alleged probation or parole violation because practically all such warrants do not constitute a determination of violation but, instead, are mere allegations of violation.

Reference:

387.2 Responsibilities of Local Department

387.5 General Application Process

385.13 Voluntary termination of employment and voluntary reduction of earning capacity (voluntary quit)

10 INF-20 Obsolete LDSS- 4148D New Information About Temporary Assistance and Food Stamps

20-LCM-03 SNAP Revised Civil/Human Rights Complaint Procedures

LDSS-5065 SNAP Civil/Human Rights Violation Complaint Form

10-LCM-17-T Use and Protection of Confidential Information

06-ADM-05 Revised Providing Access to Temporary Assistance Programs for Persons with Disabilities and/or Limited English Proficiency (LEP)

04-LCM-08 Food Stamp Program Access Policy

19-ADM-12 United States Department of Agriculture (USDA) SNAP Civil Rights Requirements

13 INF-05 Mandatory Supplemental Nutrition Assistance Program (SNAP) Right to File Poster- LDSS-4995

GIS 10 TA/DC026 Clark v. Astrue: Temporary Assistance (TA) and Food Stamps (FS) Policy for Probation and Parole Violators

07-INF-03 Recovery/Recoupment Due to Fleeing Felon and Probation/Parole Violator Status

GIS 08 TA/WMS008 New Policy and Closing Codes for Fleeing Felons and Probation and Parole Violators

E. Records

POLICY

Each district must:

1. Maintain certification records on applicants and/or recipients of SNAP benefits including:

    a. Applications for certification or recertification, in addition to withdrawn applications
    b. Worksheets used in the computation of income for eligibility and the basis of issuance
    c. Documentation, including the method of verification used by the eligibility worker to make decisions in the case
    d. Copies of forms sent to the issuance unit to authorize or change participation or to serve as the basis of issuance
    e. Copies of notices sent to the household and any subsequent responses to those notices
    f. Copies of actions related to the fair hearing process
    g. The electronic equivalents of the above documents

2. Restrict the use or disclosure of information obtained from applicant households to:
    a. Persons directly connected with the administration and enforcement of:
        1) The SNAP Act or regulations;
        2) Other federal assistance programs; or
        3) Federally assisted State programs which provide assistance on a means tested basis to low-income individuals.
        4) The establishment, monitoring and collection of over-issuance claims

        NOTE: Items 2 and 3 refer to programs such as FA, Medicaid, SSI, SNA, EAF and EAA.

    b. Employees of the Comptroller General's Office of the United States for audit examination authorized by any other provision of law; and
    c. Local, State or federal law enforcement officials, upon their written request, for the purpose of investigating an alleged violation of the SNAP Act or regulations. The written request must include the identity of the individual requesting the information, and his authority to do so, the violation being investigated and the identity of the person on whom the information is requested.

3. Keep all records, documentation and other information including paper originals, copies of originals, electronically imaged documents or an electronic record such as information retained in WMS, CAMS, clearance reports, other electronic storage system, and so forth. Information must be readily retrievable for district, federal, State, client, or fair hearing review, and kept according to the USDA time limits and State requirements.

Keep closed case documentation according to the USDA time limits outlined below:

IPV Disqualification Records: Indefinite. These records must be retained for the life of the individual or until USDA notifies the State that the record is no longer needed.

Work Requirement Violation Records: Indefinite. Permanent work rule disqualifications must be retained for the life of the individual or until s/he reaches age 60, whichever occurs first.

Claims Records: 3 years after the claim is either satisfied or closed administratively.

Issuance Records: 3 years from the date the federal debt is paid for cases with claims.

In addition, follow these State requirements:

General Program Records: 6 years from the date of closing.

Certification Records: 6 years from the end of the date of certification or, if under investigation, until the investigation is resolved or the penalty imposed.

DSS-3214 "Status of Claims Against Households": 6 years

CAMS Reports: 6 years

**It is important to note that Civil Rights Complaints must be kept in a confidential manner, separate from the program file. The storage requirements for Civil Rights Complaint related documents, as well as the retention rules, are described at 15-LCM-09 SNAP Revised Civil/Human Rights Complaint Procedures. Please contact OTDA Equal Opportunity and Diversity at (518) 473-8555 with any questions.

4. Submit statistics, reports and other information (including the work registration program) as may be required by OTDA within the timeframes established by OTDA.

   NOTE: The District must keep records and submit reports and other information as required by the Department. (SNAPSB Section 18: SNAP Record Retention/Documentation).

   NOTE: Establish an organizational structure which divides the responsibility for eligibility determination and SNAP benefit issuance among the certification, data management and issuance monitoring units to assure that the unauthorized creation or modification of case records is not possible.

5. Make the contents of the case file available for inspection during normal business hours when there is a written request to review material and information

contained in the file from a responsible member of a household or their designated representative, (regarding administrative actions that impact their own circumstances), the household authorized representative, or a person acting in the household's behalf. However, the State agency may withhold confidential information, such as the names of individuals who have disclosed information about the household without the household's knowledge, or the nature or status of pending criminal prosecutions.

6. Protect the integrity of the client's PIN by NOT maintaining a copy of the client's PIN in the case record or elsewhere.

Reference: 387.2 Responsibilities of Local Department

98-INF-03 Food Stamp Program: Record Retention

92-LCM-122 Electronic Benefit Issuance and Control System (EBICS) PIN Security Requirements

04 ADM-01 Establishing and Collecting Food Stamp Overissuance Claims

15-LCM-01 Records Access

F. Electronic Benefit Transfer (EBT), Common Benefit Identification Card (CBIC)

Electronic Benefit Transfer (EBT) is mandated by USDA to deliver SNAP benefits electronically through the commercial financial infrastructure.

Any unauthorized issuance, use or alteration of a Common Benefit Identification Card (CBIC) and the State-approved district notice of change form is a federal crime.

Each district must:

1. Take all precautions necessary to avoid unauthorized use of the CBIC or notice of change forms and must safeguard these documents from theft, embezzlement, loss, damage or destruction by keeping them under lock and key.

2. Notify OTDA immediately if counterfeit or stolen cards and/or notice of change forms are discovered or if a theft occurs. When a recipient, who accesses SNAP benefits by the use of a CBIC, reports the loss or theft of that CBIC, the district must initiate procedures to prevent unauthorized access to the recipient's SNAP benefits by disabling/statusing the card in CBIC. This action will disable the card on the EBT system preventing the use of the CBIC for SNAP purchases, cash withdrawals, and for Medicaid purposes.

   Note: The physical card does not need to have been stolen for the CBIC to be considered stolen. Stolen access to a CBIC can occur without the household ever losing physical possession of the card if the account information was stolen through electronic, scam-related means such as EBT card skimming, cloning, third party misrepresentation, or other similar fraudulent method like phishing. A CBIC compromised in this way is considered stolen and must be deactivated upon report of theft.

3. Institute procedures for ensuring that CBICs returned undeliverable by the USPS be handled in a secure manner, and that the disposition of these cards be documented. (EBT Manual, Section 2-6)

4. Issue Vault Cards when there is a need for a valid card in a timeframe that precludes mailing. Note: Mailing of vault cards is allowed when it is unlikely that the CBIC and PIN can be mailed/delivered to the applicant within the expedited service seven-day timeframe. Districts must have secure storage areas for plastic vault card stock and must have terminal security procedures and protocols for card and benefit issuance in place. Precautions to be exercised by the district include designating specific personnel for accessing the plastic vault card stock and notice of change forms; maintaining an inventory control record of the card number and date of all vault cards withdrawn from or placed in inventory; maintaining the signature of the person receiving said vault card as a record of receipt; and continuing to retain the inventory record for audit purposes. A physical inventory of all blank vault cards must be made at least once a week. When the vault card is mailed, the district worker and supervisor must sign the inventory control form. Depending on the volume of vault cards issued, the inventory control forms should be filed on a daily or weekly basis. (EBT Manual Section 4).

NOTE: In Districts that are responsible for a bulk supply of these cards, it is recommended that the responsibility for maintaining the inventory be restricted to one individual.

OTDA recommends that documents related to the CBIC be retained for six years and that documents related to card issuance be stored where the person responsible for card inventory can access the information, rather than only with the case files.

A client who forgets or needs to establish or change his/her PIN can do so by following the procedures found in SNAPSB Section 15.

References:

387.4 Security control, processing of food stamp identification cards

387.5 General application process

23-ADM-07 - Replacement Procedure for SNAP and/or TA Benefits Stolen via Skimming, Cloning, Phishing, or Other Fraudulent Methods

Electronic Benefits Transfer (EBT) Fiscal Manual

00-ADM-08 Electronic Benefit Transfer (EBT)

92-LCM-122 Electronic Benefit Issuance and Control System (EBICS) PIN Security Requirements;

04-LCM-02 Procedures regarding the security of Common Benefit Identification Cards (CBICS) returned undeliverable by the United States Postal Service (USPS).

G. Disaster/Emergency Preparedness

1. Purpose

   Under the federal Disaster Supplemental Nutrition Assistance Program (D-SNAP) in New York State the Robert T. Stafford Disaster Relief and Emergency Assistance Act provides the Secretary of Agriculture with the authority to operate a D-SNAP when areas affected by a disaster have received a Presidential Major Disaster Declaration (for Individual Assistance).

   D-SNAP is intended to provide temporary food assistance for households affected by a widespread disaster. For further information: 2024-2025 New York State Disaster SNAP Program

   OTDA intranet at NYS Disaster Preparedness/Response | OTDA Intranet

   Districts can also utilize the D-SNAP checklist available in the toolkit on the FNS website at the following link:

   http://www.fns.usda.gov/disasters/response/D-SNAP_Handbook/guide.htm.

2. District Responsibility

   Districts should become familiar with D-SNAP requirements and the OTDA D-SNAP plan so they will be prepared to respond in the case of a disaster. Steps that districts should take to prepare would include: train appropriate local staff to assist in implementing a D-SNAP, establish a disaster response coordinator or contact person for State inquiries, develop and maintain a plan for alternate staffing, re-deployment of staff and requesting OTDA assistance. Counties should also consider developing a plan for continuity of regular program operations in event of a D-SNAP operation as well as a plan that considers the needs for the homebound, the elderly and individuals with disabilities who may not have access to D-SNAP sites, to have an opportunity to apply for D-SNAP benefits.

   If possible, counties should have sites identified and agreements in place for the use of sites with the facilities necessary and adequate to the operation of a D-SNAP. Counties can collaborate with the local public transportation service authority and community partners to provide transport to and from application sites for remote populations, the elderly, and persons with disabilities.

During the response phase of the emergency, it is essential that districts: :

- Provide information and any required reports to OTDA,
- Provide information on how and where to apply for assistance to applicants and recipients
- Assure that there are a sufficient number of application sites and that these sites are safe and meet health standards;
- Process D-SNAP applications, and in conjunction with the issuance agent, institute safeguards to prevent fraud and abuse
- Coordinate disaster relief efforts with other county, State, and federal agencies, and with other private and community-based organizations (CBO)s.

3. **Impact Of The Emergency**

After the emergency is over, and recovery activities are being conducted, it is necessary to determine the impact of the emergency to the fullest extent possible. This assessment will include not only the cost of benefit assistance, but administrative costs, including costs for staff overtime and any damages to district offices and equipment. USDA often requires the state to conduct significant post disaster audit activities after a D-SNAP has been concluded.

Reference:
387.2(x) Responsibilities of Local Department
387.16(n) Special provisions for household circumstances
274.6(a)(2) Replacement issuances and cards to households

SECTION 4: Application Processing

A. Definitions

Applicant - An applicant is a person who has expressed in writing on the State-prescribed form, (including State approved electronic forms and electronic applications), directly or by a representative to a district official a desire to receive assistance and/or care or to have their eligibility considered.

Application - An application is a State-prescribed form, (including State approved electronic forms and electronic applications) which a person signs and submits to a district official, to have eligibility to receive assistance benefits determined. Such action shall be considered an application even if the applicant subsequently withdraws the application or proves, upon investigation, to be ineligible.

Authorized Representative - An individual who is:

1. Designated in writing by the head of household, spouse or other responsible adult household member to represent the household in applying for, obtaining and/or using the SNAP benefits to purchase food for the household, or reporting changes on a case. An authorized representative can be designated by the household on the or by using the LDSS-4826 Supplemental Nutrition Assistance Program (SNAP) application , LDSS-4942 Supplemental Nutrition Assistance Program (SNAP) Authorized Representative Request Form or by any other written designation.

2. An employee designated by a publicly operated community mental health center or a private, non-profit drug addiction or alcoholic treatment and rehabilitation facility, group living arrangement and/or shelter for battered women and children who will represent households who reside at such centers in applying for and obtaining SNAP benefits, or reporting changes on a case; or

3. The only household adult available to be the authorized representative for the household children, even though classified as a non-household member.

Destitute Household - Households whose only income for the month of application:

1. Was received prior to application and was from a source which has been terminated, or

2. Is from a new source and no more than $25 gross income from the new source will be received within ten calendar days of the application date.

For procedures on determining destitute households see SNAP SB Section 5.

SSA - Social Security Administration

Supplemental Security Income (SSI) - Monthly cash payments under the authority of Title XVI of the Social Security Act, as amended, to the aged, blind and disabled, or Federally and State administered mandatory supplemental payments.

Reference:

387.1(i) Definitions

B. Right to Apply

1. Right to Make an Application

Any person has the right to file an application for SNAP benefits, either directly or through an authorized representative. Applications can be submitted in person, through the mail, by facsimile (fax), or by state approved electronic application by completing a State-prescribed application form or electronic form and filing it with the district on the day the application is requested or at a later date at the discretion of the household. Each household has the right to file an application form at any time during the district's regular business hours.

The district is required to advise each applicant household that it does not need an interview before filing an application and may file an incomplete application form so long as the form contains the applicant's name and address (if they have one) and is signed by a responsible member of the household or the household's authorized representative (this includes the electronically signed applications. ID and a password serves as the electronic signature). Providing the households with the LDSS-4826A "How to Complete the SNAP Application/ Recertification and Applicant/Recipient Rights and Responsibilities", and/or the Client Informational books LDSS-4148A What You Should Know About Your Rights and Responsibilities, LDSS-4148B What You Should Know About Social Services Programs and LDSS-4148C What You Should Know If You Have An Emergency, fulfills these requirements. Households that apply electronically are provided this information through the myBenefits application. SNAP applications submitted electronically via myBenefits or Access NYC shall be treated as having been signed by the head of household.

NOTE: If a household requests an application, the district must mail an application form on the same day, if possible, but no later than the next business day unless the household prefers to come to the appropriate district office to file an application or chooses to file an electronic application.

The household must be provided the address and telephone number of the appropriate district office for filing an application. However, a household may file an application at any district office in a jurisdiction where applications for Public Assistance and/or SNAP are accepted. This is considered a courtesy application. If an application is not submitted to the appropriate office, the receiving office must forward the application to the appropriate office by the next day, if the household has completed enough information so that it meets filing requirements. It can be faxed, e-mailed or postal mailed to the correct district. If an in-person application is presented to the wrong jurisdictional office, the applicant may opt to take their application to the correct office but is not required to do so. Courtesy applications should not be date stamped, screened for expedited, or interviewed by the forwarding office.

2. **Separate Determinations**

A household whose Temporary Assistance (TA) application is denied must not be required to file a new SNAP application but must have their SNAP eligibility determined or continued based on the original application filed for TA and SNAP purposes.

3. **Right To Reapply**

A household may voluntarily withdraw or request to withdraw its application for SNAP at any time prior to the determination of eligibility without any consequences to its right to reapply at any time subsequent to the withdrawal.

4. **Access for Non-Citizens**

a. A household's right to apply and be interviewed for SNAP benefits must not be denied, limited or discouraged because of the national origin or citizenship status of a person or persons who reside in that household.

b. Title VI of the Civil Rights Act of 1964, and its implementing regulation, prohibit entities receiving federal funds, such as states or counties, from discriminating against any person on the basis of that person's race, color or national origin.

c. Title VI covers both intentional acts and facially neutral policies and actions that have an adverse impact based on race color or national origin.

d. Households with members born in another country who may not be citizens must be permitted to provide documentation of citizenship or non-citizen status. Receptionists and screeners must be directed not to prevent or discourage such households from filing applications.

e. Eligibility workers must be sufficiently trained regarding what documentation must be provided by non-citizens, how to advise the non-citizen about containing such documentation, and how to make a correct assessment of non-citizen documentation.

f. In addition to following procedures that ensure foreign-born applicants the right to prove citizenship or eligible non-citizen status, workers must ensure that the eligibility of household members who are citizens is determined even if there are ineligible non-citizens in the household. This situation occurs frequently when an ineligible non-citizen parent has a child who is a citizen.

References:

387.5(a) General Application Process

387.6 Application Form

04-LCM-08 Food Stamp Program Access Policy

10 INF-14 Electronic Applications and Signatures

C. Authorized Representative

Representatives (as defined in the start of this section) may be authorized to act on behalf of a household in the application/recertification process, in obtaining SNAP benefits, and in using SNAP benefits or for all reasons listed.

1. Application process

The following conditions apply when the application/recertification is made by the authorized representative (as defined in this Section).

a. When the head of household or spouse cannot apply/recertify, another household member may apply/recertify, or an adult non-household member may be chosen as the authorized representative for certification purposes only, providing that:

(1) The authorized representative has been chosen in writing by the head of household, the spouse, or another responsible household member; and

(2) The authorized representative is an adult who is familiar with the relevant household circumstances.

(3) The written declaration of the authorized representative can be done on the LDSS-4826 Supplemental Nutrition Assistance Program (SNAP) application, LDSS-4942 Supplemental Nutrition Assistance Program (SNAP) Authorized Representative Request Form, or in any other written format. Once the declaration is made in writing, then it is valid until the case closes or the authorized representative changes. The SNAP household does not need to reverify the authorized representative at recertification unless this person has changed.

(4) The LDSS 4942 is a form that allows the SNAP household to designate by checking certain tasks for the authorized representative to complete. The tasks include the application, the recertification, using the EBT card and all of the above.

b. The authorized representative may complete the interview. However, it is important that the head of household or the spouse prepare or review the application whenever possible.

c. The district must inform the household that it will be held liable if the authorized representative provides erroneous information which results in an over-issuance.

d. After an authorized representative has been chosen, the application form can be signed by either the head of household or the authorized representative. SNAP applications submitted electronically via MyBenefits or Access NYC shall be treated as having been signed by the head of household.

2. Obtaining SNAP benefits

a. An individual may be chosen by the household as the authorized representative to obtain SNAP benefits upon acceptance of an application, or

anytime while having an active SNAP case and the benefits are authorized and available.

b. The authorized representative can be the same person chosen to apply/recertify for the household. It can also be someone else. All authorized representatives must be designated in writing on the application or on the LDSS 4942 or in any other form of written designation. A change in an authorized representative is also required in writing.

c. SNAP personnel should encourage the household to name an authorized representative if a situation were to arise when the household member cannot obtain their SNAP benefits due to unforeseen circumstances, so the authorized representative can act on behalf of the household.

d. With the household's full knowledge and consent, the authorized representative, or a person other than the client, may use the client's CBIC card to purchase food for the household. This would require the client to provide their CBIC PIN number to the card user, which is not a recommended practice for security purposes. Authorized Representatives may possess a separate CBIC card in the name of the authorized representative, with a separate designated PIN to that CBIC to purchase food for the household.

e. An authorized representative must be a person and not an institution.

3. Drug Addict/Alcoholic Treatment Centers

Residents of drug addiction/alcoholic treatment centers (as defined in SNAPSB Section 5) who choose to participate must use an authorized representative to apply for certification.

The non-profit organization or institution that administers the treatment and rehabilitation program must choose an employee to be the authorized representative. They must apply for each resident separately and spend the SNAP benefits for food prepared by and/or served to the resident.

4. Group Living Arrangements

a. Residents of a group living arrangement (as defined in SNAPSB Section 5) shall either apply and be certified through use of an authorized representative employed and designated by the group living arrangement or apply and be certified on their own behalf or through an authorized representative of their own choice.

b. The group living arrangement shall determine if any resident may apply for SNAP benefits on their own behalf. The determination should be based on the resident's physical and mental ability to handle their own affairs. The group living arrangement is encouraged to consult with any other agencies of the State providing other services to individual residents prior to a determination.

c. If the resident applies with an authorized representative, the group living arrangement may either receive and spend the SNAP benefit for food prepared by and/or served to the eligible resident or allow the eligible resident to use all or any portion of the SNAP benefit on their own behalf.

d. If the residents are certified on their own behalf, the SNAP benefit may either be returned to the facility to be used to purchase food for meals served either communally or individually to eligible residents; used by eligible residents to purchase and prepare food for their own consumption; and/or to purchase meals prepared and served by the group living arrangement.

e. If an authorized representative is suspended, residents applying on their own behalf, shall be able to participate if otherwise eligible.

5. Shelters for Victims of Domestic Violence

Residents of shelters for Victims of Domestic Violence normally would apply and be certified on their own behalf or through an authorized representative of their own choice. Shelter residents are free to name a shelter staff member or volunteer as an authorized representative for application and certification purposes. This procedure may be necessary in cases where shelter residents would be endangered if they left the shelter and they are unable to appoint another authorized representative of their choice.

6. Restrictions

a. The authorized representative may not be a district employee involved in the SNAP certification and/or issuance process or a retailer authorized to accept SNAP. For exceptions, the district Commissioner must determine that no one else is available to serve and give specific written approval.

An individual disqualified for SNAP fraud cannot act as the authorized representative during the disqualification period unless the individual is the only household adult.

The eligibility worker shall determine whether the disqualified individual is needed to apply on behalf of the household, to obtain SNAP, and to use the SNAP benefits to purchase food for the household.

EXAMPLE: The household may have designated an authorized representative to obtain its SNAP each month but not be able to find anyone to purchase food regularly with them. If the eligibility worker is also unable to find anyone to serve as an authorized representative to purchase food regularly with SNAP benefits, the disqualified individual shall be allowed to do so.

b. Homeless meal providers which are authorized to accept food coupons may not be authorized representatives for homeless recipients.

In order to prevent abuse of the program, a district may set a limit on the number of households an authorized representative may represent within a specific time period for purposes of applying for SNAP benefits and reporting changes in household circumstances. Prior to limiting the number of households an authorized representative may represent; the district must request and obtain approval from OTDA. 387.5(k)(5)

7. Documentation and Control

a. The district must ensure that the authorized representatives are properly chosen. No limits can be placed on the number of households an authorized representative may represent.

b. The case file must contain the written designation when an authorized representative has been chosen.

An authorized representative can be designated by the household on the LDSS-4826 Supplemental Nutrition Assistance Program (SNAP) application , LDSS-4942 SNAP Authorized Representative Request Form, or by any other written designation. The representative's name, address and phone number should be included on whichever form is chosen for the designation. Both the authorized representative and the head of household or other responsible adult member of the household must sign and date the designation.

This is true in all cases with an authorized representative, including group living facilities and drug or alcohol treatment facilities. If the applicant/recipient is physically and/or mentally unable to provide the written statement, this fact must be documented in the case record.

The designation of crew chiefs as authorized representatives for large numbers of migrant households is discouraged.

In the event an employer, such as those that employ migrant or seasonal farm workers, is designated as an authorized representative or when a single authorized representative has access to a large number of CBICs, PINs, or SNAP, the district shall assure that:

1. The household has freely requested the assistance of the authorized representative;
2. The household's circumstances are correctly represented; and
3. The authorized representative is properly using the SNAP.

8. Disqualification of Authorized Representative

An authorized representative may be disqualified from participating as an authorized representative for up to one year.

a. A district may impose the disqualification if there is evidence that an individual has:

1. Misrepresented the household's circumstances,

2. Knowingly provided false information pertaining to the certified household's circumstances, or
3. Made improper use of SNAP benefits.

b. A written notice to the affected household(s) and the authorized representative must be sent 30 days prior to the date of disqualification. The notice must include the following:

1. The proposed action and the reason for it.
2. The household's right to request a fair hearing.
3. Telephone number and contact person for additional information.

NOTE: Individuals who act as authorized representatives for residents of drug and alcohol treatment centers or residents of group living arrangements may not be disqualified under the above provisions.

9. Authorized Representative: myWorkspace

Information regarding the authorized representative can be found in the Contact Information screen in myWorkspace.

References:

387.5 General Application Process

16_INF-17 Revised LDSS-4942: "Supplemental Nutrition Assistance Program (SNAP) Authorized Representative Request Form (Rev. 10/16)

D. Date of Application

The date of application filing shall be the date the signed form, containing at least the applicant's name, address (if applicable), and signature, is received through the mail, fax, electronically or in person by the district.

On the LDSS-4826 Supplemental Nutrition Assistance Program (SNAP) application, name, address (if applicable) and signature on page two preserves the filing date and the district may conduct the interview and send a LDSS-2642 Documentation Form. However, **no benefits may be issued, including expedited**, until the household signs page 24 (certification page) on the LDSS-2921 New York State Application for Certain Benefits and Services and page 08 on the LDSS-4826.

The filing date for faxed and electronic applications that are submitted after the district's business hours is the following business day.

The filing date for Courtesy applications (received as a courtesy by the incorrect jurisdictional district, then forwarded to the correct jurisdictional district), are date stamped and have a filing date of the date received by the correct jurisdictional district.

An address may consist of a mailing address in addition to a residential address provided a reasonable explanation is presented by the applicant to explain the use of such mailing address.

An interview with the applicant/authorized representative is not required prior to the filing of an application. [387.5(c)]

All districts shall:

1. Act promptly on all applications and provide SNAP benefits retroactive to the day of application to those households that have completed the application process and have been determined eligible. [387.5(b)]

2. Approve and issue benefits or deny applications for TA/SNAP and NTA/SNAP applicants within 30 days from the first calendar day following the filing date of an identifiable application. An identifiable application is one which contains a legible name and address of the applicant or authorized representative. For Example: A household files a SNAP application on April 1st. Unless the SNAP application is approved sooner under expedited service, the district has 30 days following the April 1st filing date, or until May 1st, to process the SNAP application. In this example, the first day of the count is April 2nd.

For all other submission methods, the district must document the date the application was filed by recording on the application form the date it was received by the appropriate district office. OTDA will continue to monitor the timeliness of application processing, and the issuance of initial benefits via the Management Evaluation (ME) process and the following reports:

1. WINR-1240, Application/Registry Processing;
2. WINR-4111, Application Register;
3. WINR-4113, Application Register-Summary of Application Activity;
4. Application Processing Timeliness Report (in Cognos);
5. myWorkspace Inbox log.

References:

387.2(o) Responsibilities of Local Department
387.5 General Application Process

E. Applicant Interview

1. Required Eligibility Interview

An interview is required with the applicant or authorized representative in all SNAP cases, to establish eligibility for SNAP benefits. A completed application form and verification of certain information is also required to complete the eligibility determination process.

Eligibility interviews for NTA/SNAP and TA/SNAP applicants must be scheduled on a timely basis to ensure a determination of eligibility and benefit issuance within 7 days for expedited processing and 30 days for normal filing of an application.

Federal SNAP rules prohibit “first come, first served” interviews. Districts must schedule interviews on a specific day and time or range of time for each applicant not interviewed on the same day they apply.

The individual interviewed may be the head of household, spouse, any responsible adult member of the household or an authorized representative. The applicant may also bring any person they choose to the interview.

All applicant households, including those submitting applications by mail, fax or electronically must complete an interview prior to initial certification and at least once every 12 months thereafter.

2. Waiver of The Face-To-Face Interview

As part of the State Plan, New York State (NYS) has been granted permission by the United States Department of Agriculture (USDA), Food and Nutrition Service (FNS) to conduct telephone interviews in lieu of face-to-face interviews for SNAP, without documenting hardship at initial application or recertification. Households maintain the right to a face-to-face interview upon request. All applicant households must be advised that the face-to-face interview can be waived for hardship. If not interviewed on day one, the local district must schedule and conduct the interview by telephone. In certain circumstances, make a home visit, which must be scheduled in advance.

3. SNAP And Public Assistance Applicants

One combined eligibility interview for TA and SNAP applicants should be conducted at the same time whenever possible. However, as a result of differences in TA and SNAP application processing procedures, the district may have to conduct a SNAP interview first to determine SNAP eligibility and expedited service qualification prior to determining eligibility for TA.

Safety Net Assistance (SNA) Household - SNAP eligibility still must be determined, and benefits issued by the 30th day after the SNA application date. The application date for SNA is the date the signed completed application is received on the State prescribed form. A name, address (if applicable), and signature is all that is required for the SNAP application to be filed.

Joint processing procedures for TA/SNAP households must be followed in that the SNA household may not be required to file a separate application or have a separate interview for SNAP. These applications must be processed as TA/SNAP households. They may not be processed as NTA/SNAP cases.

Notices - A notice of action taken regarding the request for SNAP benefits must be issued by the 30th day after the date of application for SNA/SNAP. Notice LDSS 3152 Action Taken on Your SNAP Benefits Case or the equivalent system generated client notice must be used in situations where eligibility for SNA has not been established.

If SNA eligibility has been determined, LDSS 4013A Action Taken on Your Application & LDSS4013B Action Taken on Your Application or the equivalent system generated client notice must be used. This notice, containing information regarding SNA payments, may be sent by the 30th day.

Procedures for households which fail to provide documentation for SNAP eligibility by the 30th day, as specified in this section, have not changed.

4. Non-Public Assistance Applicants

Eligibility interviews for NTA applicants must be scheduled on a timely basis to assure a determination of eligibility and benefit issuance within 5 days for expedited processing and 30 days for normal filing of an application. (387.5)

5. Missed Interview

The district must send a household that misses their scheduled application interview or recertification interview the LDSS-4753, “SNAP Request For Contact/Missed Interview” notice or the system generated CNS equivalent informing them that it is the household’s responsibility to reschedule their interview. If the household contacts the district within the 30-day processing timeframe from the application date, the district must reschedule the interview with a scheduled appointment day and time or range of time.

NOTE: The district must still allow 30 days from the date the application was filed to deny the application even though the household has failed to appear for the interview and has had no other contact with the district. Districts must develop procedures to ensure that no SNAP application is denied prior to the 30th day from the application date for failure to appear for an eligibility interview. If the household is denied for a missed interview, then the household must file a new

application if it wishes to participate in the program. The original application can be re-registered as a new application as long as the household re-applies for SNAP within 60 days of the original application date. Case notes must be clearly documented.

6. Responsibility of a District at Application Interview

Households must be advised of their rights and responsibilities during the interview, including:

a. Applicant Rights, Includes interview rights, expedited benefits, notice of eligibility or denial, interpreter services. Reporting any changes in household circumstances promptly that occur during the eligibility determination, Nondiscrimination Rights and complaint process;

b. The information provided will be kept confidential and used only for processing SNAP applications and administering the SNAP case if eligible;

c. The right to look at their case record;

d. The right to be interviewed as promptly as possible. If an interpreter is needed, the agency will provide one at no cost;

e. A written notice will be mailed within 30 days advising if the application is approved, denied, or if a decision is pending. If the household is eligible for expedited SNAP processing, notification will be sent within 7 days;

f. If the application is approved, the written notice will advise of the amount of SNAP benefits that will be authorized, and when household changes need to be reported. If the application is denied or if a decision is still pending, the notice will advise the reason why it is denied or still pending;

g. If the household disagrees with, or does not understand the determination on the application, an agency conference or a fair hearing can be requested;

h. Proof of certain things must be provided like identity and household income, to be eligible for SNAP. If the proof cannot be obtained, the agency can help.

i. The information and proof provided by the applicant/recipient must be truthful and accurate. If it is intentionally false, incomplete or inaccurate, they could be disqualified from SNAP and possibly subject to criminal prosecution. If more benefits than entitled to are issued, those benefits may have to be repaid;

j. SNAP benefits can only be used to purchase eligible food items for the SNAP household. The benefits cannot be exchanged for things like cash, drugs, alcohol, tobacco products or firearms, or the recipient could be disqualified from SNAP and possibly subject to criminal prosecution;

k. The application and the instruction to complete the application, contains information on non-discrimination rights. The information is also posted in the agency waiting area and listed on the “And Justice for All” poster. During the process of applying and receiving SNAP, discrimination against the

applicant/recipient, is unlawful. It is important to know of the right to participate in SNAP, free of discrimination;

l. There is a right to file a complaint if anyone feels their civil rights have been violated, by contacting the USDA, or OTDA. All contact information and instructions on how to file a complaint are provided in the application packet and in Client Information Book 1

m. Complying with other appropriate SNAP requirements. (387.7).

SNAP Work Requirements must be reviewed verbally, for all members of the SNAP household that are age 16 through 60 at the time of the interview:

a. Unless exempt from SNAP work requirement, an applicant/recipient of SNAP is required to provide information of the individual's employment status and availability for work, participate in work activities assigned by the district, accept a job or referral for a potential job opening, and not voluntarily quit a job or reduce hours of paid work without good cause. (TA and SNAP Employment Manual 385.13);

b. Inform the household that individuals who refuse or fail to comply with SNAP work requirements may be ineligible for a period of time.

c. Claims from work requirements, identification of the individual and documentation to support the exemption must be obtained.

d. Conference and Fair Hearings

e. Employment requirements and rights and responsibilities,

f. Fraud

g. Reporting any changes in household circumstances promptly that occur during the eligibility determination,

h. Providing required documentation, and

i. Complying with other appropriate SNAP requirements.

j. The opportunity to apply to register to vote upon initial application and at recertification.

7. Current Eligibility Documents:

a. LDSS-2921 Application For Certain Benefits And Services
Used by TA, MA, SNAP,

b. LDSS-4826 SNAP Application/Recertification

c. LDSS-4826A How to Complete the SNAP Application/Recertification and Applicant/Recipient Rights and Responsibilities

d. LDSS-5156 Application/Recertification for SNAP Benefits

e. myBenefits Electronic SNAP Application

f. LDSS-3174 Recertification Form For Certain Benefits And Services

g. LDSS-3938 SNAP Application Expedited Processing Summary Sheet

h. LDSS-2642 Documentation Requirements

i. LDSS-4826B Interview Verification Guide for the LDSS-4826: SNAP Application/Recertification (Optional)

j. LDSS-3570A Abel Input Sheet (Optional)
Used by TA, SNAP

k. LDSS-3666 TA/SNAP Documentation/Verification Desk Guide (Optional)
Used by TA, SNAP

l. LDSS-3668 Shelter Verification (Optional)
Used by TA, MA, SNAP

m. myBenefits Electronic SNAP/Application/Recertification

8. WMS INSTRUCTIONS

Except for electronic applications, an Application Turnaround Document (APP-TAD) LDSS-3636 will automatically be generated for each non-services application at the time of Application Registry reflecting data input from the client completed Application. Additionally, data entered at Application Registry will automatically be "carried over" to the full data entry screens. The myBenefits electronic SNAP Application does not generate the LDSS-3636 and the FDE is immediately available in myWorkspace.

The APP-TAD is used for Application Maintenance transactions as well as full data entry for non- services case processing. Application Withdrawals and Application Denials are to be performed via the Common Application.

The APP-TAD is unique in that only fields generated from application information are shaded and it is printed in blue to distinguish it from the authorization document.

References:

387.5 General Application Process

387.7 Interviews

20-ADM-14 New SNAP-Only Application Form

15-INF-05 Revised LDSS-3938 and LDSS-3938 NYC: "Supplemental Nutrition Assistance Program (SNAP) Application Expedited Processing Summary Sheet"

05-ADM-13 Revised LDSS-3938: “Food Stamp Application Expedited Processing Summary Sheet”

16-INF-13 Revised LDSS-4826: "SNAP Application/Recertification" and LDSS-4826A "How to Complete Application/Recertification and Applicant/Recipient Rights and Responsibilities for SNAP"

01 ADM-8 Changes in Food Stamp Application and Recertification Procedures

95 ADM-1 National Voter Registration Act

01 INF-10 Clarification of Food Stamp Denials When an Eligibility Interview Is Missed

06 INF-15 Revisions to the LDSS-3174 Recertification Form for Certain Benefits and Services and Pub-1313 How to Complete the LDSS-3174

05 INF-09 New Statewide "Application for Certain Benefits and Services", LDSS - 2921 Statewide) New Statewide "How to Complete" publication, PUB - 1301 Statewide (Rev. 1/05).

03 INF-13 Revision to LDSS-4753: "SNAP- Request for Contact/Missed Interview"

11 INF 07 District Policy Options

F. Required Use of State-Prescribed Application Form(s)

1. All districts shall:

Use the State-prescribed application form(s) in processing eligibility for SNAP benefits, including the myBenefits or Access NY electronic application.

NOTE: These forms are the LDSS-2921 Application For Certain Benefits And Services and Service), the LDSS-4826 Supplemental Nutrition Assistance Program (SNAP) application, or the LDSS-5166 Application/Recertification for Supplemental Nutrition Assistance Program (SNAP) Benefits

2. Availability of the Application Form

Application forms must be readily available to all interested persons, including potentially eligible households and those groups and organizations involved in outreach efforts. The forms shall be given or mailed the same day an individual requests information about the SNAP either in person or by telephone. The myBenefits application is available online at myBenefits.ny.gov or at a district participating Community Based Organization (CBO). A listing of participating CBOs by district is available online at the OTDA website or the myBenefits website.

SNAP applications can also be ordered on Form OTDA-876: "Request for Forms or Publications" and should be sent to:

Office of Temporary and Disability Assistance
BMS Document Services and Operational Support
P.O. Box 1990
Albany, New York 12201

E-mail: forms.orders@otda.ny.gov
District online forms ordering system: http://formorders.otda.ny.gov
Fax: (518) 402-0084

Questions concerning ordering forms should be directed to BMS Document Services at: (518) 474-9522.

3. Instructions

Copies of instructions for completion of the application form(s) must accompany each distributed form. The LDSS-4826A SNAP Application/Recertification And Applicant/Recipient Rights And Responsibilities is available at the districts, online and through myBenefits.

4. Assistance in Completing the Application

Worker or volunteer assistance must be available to those applicants who need/request help in completing and filing the form(s) including applicants applying with the online myBenefits applications at the district office.

5. Withdrawal of the Application

A household may request to withdraw their application for SNAP benefits at any time prior to the determination of eligibility without any consequences to its right to reapply at any time subsequent to the withdrawal.

The LDSS-4826 Supplemental Nutrition Assistance Program (SNAP) application with the LDSS-4826A SNAP Application/Recertification And Applicant/Recipient Rights And Responsibilities or the Client informational books LDSS-4148A What You Should Know About Your Rights And Responsibilities, LDSS-4148B What You Should Know About Social Services Program and LDSS- 4148C What You Should Know If You Have An Emergency must be provided in the manner described in SNAPSB Section 3.

References:

387.6 Application Form

03 ADM-3 New Food Stamp-Only Application Form

09 INF-06 Revisions to the LDSS-4148B - What You Should Know About Social Services Programs – Book 2

10 INF-01 Revisions to the LDSS-4148C “What You Should Know If You Have an Emergency, Questions and Answers Book- 3

07 INF-06 Revisions to the LDSS-4148A - What You Should Know About Your Rights and Responsibilities (When Applying for or Receiving Social Services)

05 INF-09 Statewide "Common Application", LDSS - 2921 Application for Certain Benefits and Services "How to Complete" publication, PUB - 1301 Statewide

06 INF-15 Revisions to the LDSS-3174 Recertification Form for Certain Benefits and Services and Pub-1313 How to Complete the LDSS-3174

05 INF-14 Revision of the LDSS-4826: "SNAP Application/Recertification" and LDSS 4826A: "How to Complete the Food Stamp Benefits Application/Recertification and Applicant/Recipient Rights and Responsibilities"

G. Required Application Information

1. Application Filing

The form(s), including any approved electronic application, must be completed with the name and address (If Known) of the applicant and signed by either the applicant or authorized representative for application filing purposes only; and

a. Each SNAP household must be provided with general information on verification requirements at application and recertification. The LDSS-4826A SNAP Application/Recertification And Applicant/Recipient Rights And Responsibilities and the Client Informational books LDSS- 4148A What You Should Know About Your Rights And Responsibilities, LDSS-4148B What You Should Know About Social Services Program and LDSS-4148C What You Should Know If You Have An Emergency fulfill this requirement. For specific types of verification requirements see SNAPSB Section 5.

b. The district must provide each household, at the time of application, with a written statement explaining what action the household must take to cooperate with the district in obtaining verification of appropriate information and otherwise completing the application process. Use of the LDSS-2642 Documentation Requirements is mandated. This form version is available through the myBenefits electronic application.

c. Districts must provide a local telephone number and either a toll-free number or a number at which collect calls will be accepted from households outside the local calling area. The number must be provided in writing at certification and recertification.

NOTE: The district can determine eligibility only when the household or its authorized representative completes the application form, is interviewed, and assists the district in the verification of certain required information. If the household refuses to cooperate in completing the entire process, the district must deny the application at the time of refusal as specified in SNAPSB Section 5.

References:

387.5(d) General Application Process
387.6(a) Application Form

09 INF-06 Revisions to the LDSS-4148B - What You Should Know About Social Services Programs – Book 2

10 INF-01 Revisions to the LDSS-4148C “What You Should Know If You Have An Emergency, Questions and Answers Book- 3”

GIS 12 TA/DC013 Release of Updated LDSS-2642: “Documentation Requirements” Form

07 INF-06 Revisions to the LDSS-4148A - What You Should Know About Your Rights and Responsibilities (When Applying For or Receiving Social Services)

H. Delays In Processing

1. Determination

a. Cause of The Delay - When it appears that the district cannot determine a household's eligibility and provide the opportunity to participate within 30 days of the filing date the district must determine the cause of the delay. A delay shall be considered the household's fault if:

1. The household has failed to complete the application process; and

2. The district has taken all required action to assist the household.

b. District Responsibility - Before a delay can be considered the household's fault, the district must have:

1. Offered, or attempted to offer, to households that failed to complete the application, assistance in its completion.

2. Informed the household of the need to register for work when any member so required has not done so and given the household at least 10 days from the date of notification to register these members.

3. Provided the household assistance as required when verification is incomplete and allowed the household sufficient time to provide the missing verification.

NOTE: Sufficient time is at least 10 days from the date the district initially requested the particular verification that was missing.

4. USDA has approved a SNAP case processing waiver. Districts may opt to process cases under existing procedures or under waiver procedures provided all cases within a district are being processed under the same method.

The waiver is of federal regulations which prohibit denying a SNAP application before the 30th day after the application filing date when the household has failed to provide all required verification. Under this waiver, districts may deny an application for failure to provide required verification after a period of 10 days from the date a household is requested in writing to provide missing verification. USDA has approved this waiver with the following conditions:

(a) Households must be assisted in obtaining verification in accordance with SNAPSB Section 5.

(b) Households must be informed of the 10-day requirement for providing verification in writing at the time of application and must be notified at the interview of the date by which any missing verification must be provided.

(c) If a household provides missing verification within the initial 30-day period, the district must open the case and provide benefits from the date of application.

(d) If the household does not provide the missing verification until the second 30 days after application, the case must be opened and provided benefits prorated from the day in which the household furnishes the missing verification.

5. When a household has filed an application but fails to appear for an interview, the district must:

(a) Send the household a Notice of Missed Interview (NOMI) using either CNS or manual form LDSS-4753 SNAP Request For Contact/Missed Interview.

(b) This notice informs the household it has missed the scheduled interview, it is their responsibility to contact the district to arrange for another interview, and that failure to be interviewed will result in their application for SNAP benefits being denied.

(c) The district is not required to make any further attempts to contact the household, but if the household contacts the district within the 30-day processing timeframe from the application date, the district must reschedule the interview.

(d) The district must wait until 30 days following the application filing date to deny the application for failure to be interviewed, even though the household has failed to appear for the interview and has had no other contact with the district. Districts must develop procedures to ensure that no SNAP application is denied prior to the 30th day from the application date for failure to appear for an eligibility interview.

(e) If the household does not contact the district to reschedule the interview and the application is therefore denied, the delay is the fault of the household. The household must file a new application if it wishes to participate in the SNAP.

c. Delays Caused by the District - Delays that are the fault of the district include, but are not limited to, those cases where the district failed to take the action described under District Responsibility.

Reference:

01 ADM-8 Changes in Food Stamp Application and Recertification Procedures

387.14(a) Determination of Food Stamp Eligibility

03 INF-10 Food Stamp Program Questions and Answers: Application Processing, Six-Month Reporting, Transitional Benefits and Standard Utility Allowances

03 INF-13 Revision to LDSS-4753: "SNAP Request for Contact/Missed Interview"

I. Action On Delays Caused By The Household

1. Delays Up To 60 Days

If by the 30th day the district cannot take any further action on the application due to the fault of the household, the district must send the household a notice of denial on the 30th day. The household shall lose its entitlement to benefits for the month of application. Further contact by the household should be processed in the following manner:

a. After the 30-day processing timeframe expires, if the household is denied for failure to be interviewed, the household must reapply if it wishes to participate in SNAP. If following the denial (notice sent), the household contacts the district to reapply, the original application can be re-registered as a new application. If the household is determined to be eligible, benefits will be issued back to the date of the re-registered application (considered a new application). Case notes must be clearly documented. Districts may include in the notice, a request that the household report all changes in circumstances since it filed its application.

b. If the household was at fault for the delay in the first 30-day period due to failure to take a required action (other than being interviewed as discussed above) but takes the required action and is found to be eligible during the second 30-day period, the district must provide benefits from the day the household provided the necessary verification.

NOTE: No further action by the district is required after the notice of denial is sent if the household fails to take the required action within 60 days of the application filing date.

2. Delays Beyond 60 Days

When the household is at fault for not completing the application process by the end of the second 30-day period, the district shall deny the application. If the household wishes to participate after 60 days from the original application date, a new application must be completed. Case notes must be clearly documented. The household is not entitled to any lost benefits, even if the delay in the initial 30 days was the fault of the district.

References:

387.14(a) Determination of Food Stamp Eligibility

J. Action on Delays Caused by The District

1. Delays Up To 60 Days

Whenever a delay in the initial 30-day period is the fault of the district, immediate corrective action must be taken.

a. The district cannot deny the application if it caused the delay. Instead, the household must be notified by the 30th day after the application filing date that the application is being held pending, and if the household needs to take any further action to complete the application process. This can be accomplished using CNS code Z94, SNAP Pending Application over 30 days due to the fault of the agency.

b. If the household is found to be eligible during the second 30-day period, the household is entitled to benefits retroactive to the date of application.

2. Delays Beyond 60 Days

a. When the district is at fault for not completing the application process by the end of the second 30-day period and the case file is otherwise complete, the district must continue to process the original application until an eligibility determination is reached. If the household is determined eligible and the district was at fault for the delay in the initial 30 days, the household must receive benefits retroactive to the day of application.

b. When the district is at fault for not completing the application process by the end of the second 30-day period, even though the case file is not complete enough to reach an eligibility determination, the district must continue to process the original application. When the district was also at fault for the delay in the initial 30 days, the household must receive benefits retroactive to the day of application.

c. The district may use the original application in the months following the 60-day period.

Reference:

387.14(a) Determination of Food Stamp Eligibility

273.2(h)(3)

14 INF-16 Notice of Pending SNAP Application

K. Application for Expedited Processing Service

1. Application Process

The application process includes filing a signed application form, including any State approved electronic applications, being interviewed, and have certain information verified and processed in a manner appropriate to the household's needs. (387.8)

2. SNAP Expedited Processing Summary Sheet (LDSS-3938) Screening

ALL SNAP and Temporary Assistance(TA) applications, including applications must be screened on the initial day of application to determine if they qualify for expedited processing.

Districts are mandated to use the LDSS-3938 SNAP Application Expedited Processing Summary Sheet to screen all SNAP applications for expedited processing. This form is designed to assist district staff in making accurate and consistent assessments of applicants' qualification for expedited processing of their application for SNAP benefits. The completed LDSS-3938 must be maintained in every SNAP applicant's case record.

Applications must be screened the same day they are filed, whether received in person, by mail, electronically, or fax. Applications submitted electronically through myBenefits, are automatically screened for expedited processing on the LDSS-3938, being pre-populated from the information provided by the applicant in the on-line application, **however workers must review it for accuracy based on the interview**. This will ensure that all TA and SNAP applicant households have been assessed for expedited service in accordance with SNAP Program requirements.

The completion of the LDSS-3938 SNAP Application Expedited Processing Summary Sheet is self-explanatory. The form's design guides the worker through each part until it is determined that a household is either "Qualified" or "Not Qualified" or "Not enough information is provided" for expedited processing of the benefit application. In cases involving migrant/seasonal farm worker households, it should be noted that a qualification for expedited processing of the benefits application can be determined in Part Two, it is not necessary to complete Part Three. Part Three is needed only if the household fails to meet the eligibility criteria in Part Two. However, Part Four and Five must be completed for **ALL** households screened for expedited processing.

3. Expedited Interview

For applicants qualified for expedited service as defined in SNAPSB Section 5 , the district shall conduct the interview and complete the application process within the expedited service time standards, as described in #6 below "Expedited Processing Criteria". (387.7)

For **ALL** SNAP applications that screen eligible for SNAP expedited processing, the district has the option to attempt to contact the household by telephone for the expedited interview on the initial filing date. If unable to contact the applicant on the initial filing date, an interview scheduling letter must be mailed to the applicant with a specific date and time or range of time, to ensure a determination of eligibility and expedited benefit issuance within the required 7-day period. A voicemail may be left that contains the same information. Document the case record that a voicemail was left. If clients prefer an in-office interview, they must request one.

4. Joint Processed Cases

SNAP applications submitted by an SSI household at a Social Security Office shall be screened for expedited services in accordance with this section.

5. Ineligible Households

Households not qualified for expedited service, shall have their applications processed according to normal standards as specified in this section.

NOTE: There is no limit to the number of times a household can receive expedited processing of their SNAP applications, as long as prior to each expedited certification the household either:

- completes verification that was postponed at the previous expedited certification and is still relevant, or
- was certified under normal processing (no pended verification) since the last expedited certification, or
- submits all verification relevant to the current application so that no verification needs to be pended

6. Expedited Processing Criteria

In order to qualify for expedited processing, a SNAP household must meet one of the criteria listed below:

- The household must have a total gross income of less than $150 and liquid resources not exceeding $100 in the month of application;
- The household must consist of destitute migrant and/or seasonal farmworkers whose liquid resources do not exceed $100; or
- The household must have in the month of application, combined gross monthly income and liquid resources that are less than the household's monthly shelter costs. (Shelter costs include rent or mortgage plus the Standard Utility Allowance (SUA) applicable for the household. Districts should use the appropriate level of standard utility allowance in accordance with the household's shelter living situation. Most shelter living situations other than Congregate Care facilities, Shelters for the Homeless or Victims of Domestic Violence, and Subsidized Housing with heat included usually qualify for the highest or Heating/Cooling SUA.) Further clarification of these criteria can be found in the SNAP Source Book (SNAPSB) Section Five. Households who meet one of these criteria are eligible for expedited processing, even if they live in Group Homes where meals are provided.

7. Expedited Processing Time Standards

When the screening process identifies a household as qualified for expedited processing of its SNAP application, districts must determine the household's eligibility for SNAP benefits and make such benefits available to the household no later than **seven** calendar days following the day the application was filed. The first day of the seven-day count is the first calendar day after the application was filed. In situations where the application is not signed on the last page for accuracy attestation and must be mailed to the household for signature, the mailing time to and from the applicant, as well as the time the application is in the applicant's possession pending signature, is not included in the seven-day count.

8. Subsequent Discovery

When the initial screening determined that the household did not qualify for expedited processing, but the district subsequently determines that the household is qualified for expedited processing, the district must provide expedited processing to the household within seven days from the date the district determines that the household is qualified for expedited processing. Subsequent determinations for expedited processing eligibility should be clearly documented in the case record. Best practice would be to include this in the "Note" section of the LDSS-3938.

When a household qualifies for expedited processing but cannot be issued benefits until verification is completed (because they previously received benefits through expedited processing, failed to submit the pended verification, and have not been certified for SNAP benefits under normal processing since that time), the district must provide expedited processing to the household within the time standards set forth above, except that the expedited processing time standard must be calculated from the date the household completes the currently required verification.

9. Certification Periods and Initial Payment Issuance Periods for Expedited Service Cases

Households which qualify for expedited service and are determined eligible for SNAP benefits, shall be assigned certification periods in accordance with this Section. Whenever practical, even when verification is postponed, districts should assign normal certification periods of at least four months as there are significant advantages gained in subsequent notice requirements. No adverse notice, and no recertification call-in, are required if such a household is certified for at least four months and subsequently fails to submit the pended verification.

Regardless of the length of the certification period assigned, issuance (or payment) of SNAP benefits are limited to the initial expedited payment period of the month of application, or the month of application and the subsequent month if the household applies after the 15th of the month.

If verification is postponed, the local district may:

- assign a normal certification period of four months or longer to those households whose circumstances (as specified in Section Fourteen of the SNAP Sourcebook) would otherwise warrant a longer certification period, or
- assign a three-month certification period, or
- certify these households for one or two months - the month of application (the month of application and the subsequent month for those households applying after the 15th of the month.

Four months or longer - The local district shall notify the household in writing as defined in SNAPSB Section 7, that no further benefits will be issued until the postponed verification is completed. No Adverse Action Notice is required if the household does not complete the verification or completes it and it results in a lower benefit. The household must have received written notice that the receipt of benefits beyond the month of application (or the month of application and the subsequent month if applying after the 15th of the month) is contingent on it providing the verification which was initially postponed; and, that the verified information will be acted on without further notice. State prescribed language in CNS notices and on the LDSS-3152 & LDSS-4013B meets this requirement.

Three Months - The local district shall notify the household in writing as defined in SNAPSB Section 7, that no further benefits will be issued until the postponed verification is completed. When certified for three months, the household must be sent a recertification notice in the second month of the certification period. The household must recertify and complete the verification requirements that were postponed. The household must have received written notice that the receipt of benefits beyond the month of application (or the month of application and the subsequent month if applying after the 15th of the month) is contingent on it providing the verification which was initially postponed; and, that the verified information will be acted on without further notice. State prescribed language in CNS notices and on the LDSS-3152 & LDSS-4013B meets this requirement.

One or Two Months The local district shall notify the household in writing as defined in SNAPSB Section 7, that no further benefits will be issued until the postponed verification is completed. When certified for one or two months, the household must be issued a recertification notice at certification with the Action Taken Notice. The household must recertify and complete the verification requirements that were postponed. The household must have received written notice that the receipt of benefits beyond the month of application (or the month of application and the subsequent month if applying after the 15th of the month) is contingent on it providing the verification which was initially postponed; and, that the verified information will be acted on without further notice. State prescribed language in CNS notices and on the LDSS-3152 & LDSS-4013B meets this requirement.

References:

387.7 Interviews

387.8 Application Process

15 INF-05 Revised LDSS-3938 and LDSS-3938 NYC: "Supplemental Nutrition Assistance Program (SNAP) Application Expedited Processing Summary Sheet"

99 ADM-6 Review of Food Stamp Expedited Processing Procedures and Statewide Use of the "Expedited Food Stamp Screening Sheet" (LDSS-3938)

05 ADM-13 Revised LDSS-3938 Food Stamp Expedited Summary Sheet

05 INF-18 Food Stamp Program Questions and Answers: Expedited FS Application Processing, IPVs,- NYSNIP, TOP/CAMS

94 LCM-124 Food Stamps: Screening for Expedited Benefits

L. Mixed Households & 'Pure' SSI Households

1. Mixed Households

If the household applying for SNAP benefits contains members not included in the unit applying for TA, the district must choose one of the following processing options:

a. The district can use the application and process the household through the TA system. Under this option, information pertaining to the NTA person's income, resources, and other eligibility factors must be obtained and considered for SNAP certification.

b. The district can use a separate SNAP application and process the entire household through the NTA/ SNAP system.

The decision on how to process a mixed household cannot be made on a case-by-case basis. The district must select one of the above listed options and uniformly process all mixed households in that manner.

2. "Pure" SSI Households

Certain "pure" SSI households have the option of applying for SNAP benefits either at the SSA office where they conduct their SSI business or by applying directly through their district office, by mail, fax, in-person or electronically through myBenefits.

a. If they choose to apply at their SSA office, they shall be processed in accordance with "SSI/SNAP Joint Application Processing (Joint Processing)" procedures found in this section.

M. SSI/SNAP Joint Application Processing (Joint Processing Procedures)

1. General

a. " Pure" SSI Households Eligible For Joint Processing Through SSA - Certain households which consist entirely of SSI applicants/recipients (i.e., "pure" SSI households) have the option of applying for SNAP benefits either at the Social Security Administration (SSA) office where they conduct their SSI business or through t their district office, by mail, fax, in-person or electronically through myBenefits.

b. Application through the District - Households which choose to apply through the district shall have their applications processed in the same manner as all other households which apply through the district.

c. Application at The SSA Office - However, households which choose to apply at their SSA office will have their applications processed in accordance with the Joint Processing procedures.

2. Eligibility

In order to be eligible for joint processing, households must:

a. Be a "pure" SSI household (consist entirely of SSI applicants/recipients);
b. Not have applied for SNAP benefits within the preceding 30 days; and
c. Not have applications pending within the preceding 60 days.

3. Households Ineligible for Joint Processing

The SSA shall refer households not eligible for Joint Processing to the correct district office. The district shall process these households as they would any other household applying for SNAP benefits (i.e., an application from such households will be considered filed and processing time standards shall begin the date the signed application is received at the correct district office).

4. Certification

The following provisions and procedures shall apply for the initial certification of SSI households eligible for Joint Processing.

a. Households have the option of where To apply for SNAP benefits - Whenever a member of a pure SSI household transacts SSI business at an SSA district office, the SSA shall inform the household of:

(1) Its right to apply for SNAP at the SSA office without going to the district office; and

(2) Its right to apply at a district office if it chooses to do so.

b. Households Which Choose to Apply at SSA - The SSA will accept and complete SNAP applications received at their offices, from "pure" SSI households.

(1) SSA uses the LDSS-4826 Supplemental Nutrition Assistance Program (SNAP) application.
(2) SSA interviews the applicant and makes copies of any pertinent documentation available.

(3) In instances where SSA is unable to obtain all required verification at the time of application, they will use the LDSS-2642 Documentation Requirements to let the applicant know what still needs to be provided to the district office.

(4) SSA provides the applicant with a:

(a) Self-addressed envelope to the district office which serves the applicant's address; and

(b) LDSS-4826A SNAP Application/Recertification and Applicant/Recipient Rights and Responsibilities for SNAP, and/or the LDSS- 4148A What You Should Know About Your Rights And Responsibilities, LDSS-4148B What You Should Know About Social Services Program and LDSS-4148C What You Should Know If You Have An Emergency fulfill this requirement. .

(5) Within one working day, SSA forwards to the district office in the county in which the applicant resides:

(a) The completed application;

(b) A copy of LDSS-2642 Documentation Requirements;

(c) A completed SSA-4233 "Social Security Administration Transmittal for SNAP Applications" which will provide the required mandatory verification as outlined in SNAPSB Section 5 for the district to make an eligibility determination.

c. District Procedures

(1) The district screens all SNAP applications received for expedited application processing service on day of application.

(2) The district registers the application and determines eligibility and issues benefits in accordance with this section. A "SNAP Change Report Form" (LDSS- 3151) and the appropriate notice is also sent.

(3) The district maintains in the case record all documents received from SSA, including the SSA-4233 "Social Security Administration Transmittal for SNAP Applications".

(4) The district provides identification cards for all new applicants when the application is approved, ensuring that a member of the household has a Benefit ID Card and a PIN, and providing instructions on how and where to access the SNAP benefit.

d. District Contact with Jointly Processed Households - Households eligible for Joint Processing which elect to be interviewed by and submit an application with SSA shall not be subjected to a second SNAP interview by district staff. The district shall not contact the household to obtain information in addition to the information provided by the SSA unless:

(1) The application is improperly completed;

(2) Mandatory verification (SNAPSB Section 5) is missing and it has been 10 days since missing verification was requested by SSA: or

(3) The district determines that certain information on the application is questionable.

NOTE: In no event shall the applicant be required to appear at the district office, or shall the further contact constitute a second SNAP interview.

e. Households Which Choose to Apply At The District - When households eligible for Joint Processing choose to apply for SNAP Benefits through the district office (rather than SSA), they shall be certified in the same manner as all other households which apply at the district. In such cases, all mandatory verification, including that pertaining to SSI program benefits, shall be provided by the household, by SDX or BENDEX, or obtained by the district rather than being provided by the SSA.

f. Telephone Certification - If SSA conducts an SSI application or redetermination interview on the telephone with a member of a "pure" SSI household, a SNAP application shall also be completed during the conversation (if requested by the applicant). In these cases, the SNAP application shall be mailed to the claimant for signature and for return to either the SSA or the correct district office. The telephone interview shall serve as the required SNAP interview and the household will not be contacted further except as allowed in paragraph c above.

g. Providing Households With Program Information - The SSA will provide all households processed through their offices with an informational sheet (prepared by New York State Office of Temporary and Disability Assistance) which shall provide the address and phone number of the household's correct district office; the remaining actions to be taken in the application process; notification procedures; a listing of the household's rights and responsibilities; and information on how to obtain and use SNAP benefits.

h. Normal Processing Time Standard

(1) Applications shall be considered filed for normal processing purposes when the signed application is received by SSA. The district shall make

an eligibility determination and issue SNAP benefits to eligible SSI households within 30 days following the date the application was received by the SSA.

(2) The date of application filing for a resident of a public institution who applies jointly for Supplemental Security Income and SNAP as part of the federal Social Security Administration's Pre-release Program for the Institutionalized is the date the applicant is released from the institution. The district must approve and issue SNAP benefits or deny applications for SNAP within 30 days from the date of release of the applicant from the institution.

i. Dual Participation Detection - Districts shall develop and implement a method to determine if members of SSI households whose applications are forwarded by the SSA are already participating in the SNAP.

j. Certification Period - Districts shall certify Jointly Processed households for up to 24 months in accordance with the standards established in SNAPSB Section 15.

5. Prescreening for Application Processing Services

a. SSA Actions - The SSA shall prescreen all applications for expedited services on the day the application is received at the SSA office and shall mark "Expedited Processing" on the first page of any applications which appear to be qualified for such processing.

(1) The SSA will inform households which appear to be qualified for expedited services that benefits may be received a few days sooner if they choose to apply directly at the district office.

(2) Households which choose this option may take the application to the district office for screening, an interview, and processing of the application.

b. District Actions - The district shall prescreen all applications received from SSA for expedited service on the day the application is received at the correct district office. For information on the LDSS-3938 "SNAP Application Expedited Processing Summary Sheet" in this section. All SSI households qualified for expedited service shall be certified in accordance with the expedited processing standards established in SNAPSB Section 15, except that the time standard shall begin on the date the application is received at the correct district office.

NOTE: SNAP applications sent to an incorrect district office shall be forwarded to the correct district office on the same day they are received, in accordance with this section.

6. Verification of Information

a. SSA Responsibilities

(1) The SSA will verify income, resources (except savings accounts under $500) and alien status and will record this information on transmittal form SSA-4233. The transmittal form, along with the completed application, will be forwarded to the appropriate district office within one working day of the date of application.

(2) In instances where the SSA is unable to obtain all required verification at the time of application, SSA will provide the household with the required LDSS-2642 Documentation Requirements, notifying the household of what verification is needed for an eligibility determination.

b. District Responsibilities

(1) Although SSA will attempt to gather all required verification as outlined SNAPSB Section 5, districts are primarily responsible for the verification of information required for SNAP certification.

The district shall not contact the household for verification of the information provided by SSA unless:

(a) The application is improperly completed;

(b) Mandatory verification (SNAPSB Section 5) is missing, and it has been 10 days since the missing verification was requested by SSA. In this circumstance the district shall contact the household by mail to:

1) Notify them that required information is still outstanding; and
2) inform them of the consequences for not providing the verification; and
3) Offer assistance in obtaining verification.

If after 30 days the household fails to provide required verification (without a good cause), the district shall send a notice of denial in accordance with SNAPSB Section 8. If the missing verification is provided in the 30-day period following the notice of denial, the household shall not be required to file a new application.

c. Use Of SDX/BENDEX Or SOLQ For Verification - The district has the option of verifying SSI benefit payments, or other information, through the State Data Exchange (SDX), the Beneficiary Data Exchange (BENDEX), or SOLQ and/or through documentation provided by the household. The following guidelines shall apply to the use of SDX and BENDEX or SOLQ for verification of information:

(1) Information verified through SDX or BENDEX or SOLQ shall not be reverified unless it is questionable; and

(2) Households shall be given the opportunity to provide verification of information which is either unavailable through SDX/BENDEX or SOLQ or is contradictory to the SDX/BENDEX or SOLQ.

7. Recertification

a. Notice of Expiration - districts shall issue revised notices of expiration to recipients including information that any household consisting only of SSI applicants or recipients is entitled to apply for SNAP benefit recertification at an SSA office.

b. Recertification Through The District - districts shall recertify "pure" SSI households in accordance with existing mail-out procedures. With the waiver of face-to-face interviews in New York State, all Interview requirements remain consistent for all SNAP households, to be scheduled for telephone interviews unless a face-to-face interview is requested and may also be scheduled as a home visit. For households in which all members are in receipt of SSI and for Group Home residents, it is recognized there is a potential administrative burden in connection with this requirement. For these households, "interview" should be interpreted in broad terms. For instance, the telephone interview does not need to be in depth but rather only has to be extensive enough to allow the district to feel it has obtained sufficient information to determine the household's circumstances.

As an example, one monthly phone interview with an authorized representative from a Congregate Care facility could suffice for all the SSI residents due for recertification that month.

c. Recertification Through SSA

(1) SSA shall accept LDSS-4826 Supplemental Nutrition Assistance Program (SNAP) application forms for SNAP recertification from all "pure" SSI households in accordance with procedures set forth in this Section.

(2) SSA shall forward the completed application, transmittal form and any available verification to the designated district office.

d. Households Determined Ineligible For SSI - If a Jointly Processed household is determined ineligible for SSI prior to a scheduled SNAP recertification and the district believes the SNAP eligibility or benefit level may be affected, the household shall be sent a request for contact using either CNS or a manual LDSS-4753 SNAP Request For Contact/Missed Interview.

NOTE: For cases in which the SSI determination results in denial, but the district believes that the household's SNAP eligibility or benefit level will be unaffected, the certification period can continue until normal expiration.

8. Changes in Circumstance

Under Joint Processing, changes in household circumstances shall be treated in the following manner:

a. Households shall report changes and districts shall act upon reported changes in accordance with Section 6.
b. The district shall process adjustments to SSI cases resulting from mass changes, in accordance with Section 6.
c. Within ten days of learning of the determination of a household's application for SSI, the district will take any action required in accordance with Section 6.

NOTE: Districts should monitor the results of the SSI determination through the SDX and BENDEX to the extent practical.

9. Waiver of Work Registration Requirements

Household members who are applying for SSI and SNAP under Joint Processing shall have the requirement for work registration waived until:

a. They are determined eligible for SSI and thereby become exempt from work registration; or
b. They are determined ineligible for SSI and a subsequent determination of their work registration status is made through recertification or other means.

Reference:

01 ADM-8 Changes in Food Stamp Application and Recertification Procedures

03 INF-10 Food Stamp Program Questions and Answers: Application Processing, Six-Month Reporting, Transitional Benefits and Standard Utility Allowances

387.2 Responsibilities of Local Department

387.5 General Application Process

91 INF-38 Food Stamps: SSI/Food Stamp Joint Processing Procedures

03 INF-13 Revision to LDSS-4753: "Food Stamp- Request for Contact/Missed Interview"

05 INF-18 Food Stamp Program Questions and Answers: Expedited FS Application Processing, IPVs, NYSNIP, TOP/CAMS

06 INF-09 Revisions for the LDSS-3151: Food Stamp Change Report Form

15 INF-05 Revised LDSS-3938 and LDSS-3938 NYC: "Supplemental Nutrition Assistance Program (SNAP) Application Expedited Processing Summary Sheet"

94 LCM-124 Food Stamps: Screening for Expedited Benefits

Section 5: Initial Eligibility Determination

A. Household Concept

1. General Household Definition

Household Composition - Household composition is based primarily on food units. A food unit consists of individuals customarily purchasing food and preparing meals together for home consumption.

Districts shall generally accept a household's statement as to which individuals residing with the household are members, unless for some reason the household composition is questionable.

A household is composed of any of the following individuals or groups of individuals:

a. An individual living alone
b. An individual living with others but customarily purchasing food and preparing meals for home consumption separate and apart from others or,
c. A group of individuals who live together and customarily purchase food and prepare meals together for home consumption.

NOTE: Customarily purchasing and preparing means for the majority of meals in a calendar month. Majority is defined as purchasing and preparing 50% or more of three meals daily in a calendar month.

NOTE: An individual away from the household for military assignment is not counted as a member of the SNAP household. Household members that are enlisted in the National Guard serving one weekend per month shall have a separate eligibility determination.

NOTE: A person cannot participate as a member of more than one household at a time unless the person is a member of a reconstituted household and/or resident of a shelter for battered women and children and was a member of a household containing the person who has abused him or her.

2. Joint Custody

a. Determining Household Composition: Household composition must be decided on a case-by-case basis in joint custody situations. The

fundamental applicable rule is that no individual can receive SNAP benefits as a member of more than one household in any month.

Some factors as parental control, primary residence, the court order, if any, and similar considerations must be evaluated. However, the duration of time, per se, which a child spends with one parent in joint situations is not necessarily the primary determining factor in whether the child is a member of that parent's household or not.

b. Changes In Circumstances - So long as a child visits or resides part of the time with a parent, the child may be included in the parent's SNAP household provided that the child is not a member of another participating SNAP household. The child would remain a member of the parent's SNAP household unless:

- The child is removed on a long-term basis, such as for a summer vacation of several months' duration; or
- It becomes appropriate to add the child to a different SNAP household. (See subparagraph "d" below, about district responsibility in joint custody situations.) Once in receipt of SNAP benefits as a member of one household, the child must be deleted from that household before being added to a different SNAP household.
- (See also Households with Special Circumstances as affected by Simplified Reporting in Section 6 of the SNAPSB)

c. Documentation - All decisions and client conversations (attestations) regarding household composition or other information relevant in joint custody situations should be thoroughly and accurately documented in the case record for Quality Control purposes.

d. District Responsibility - If both parents in a joint custody situation wish to receive benefits for the same child, the issue must be resolved between the parents. District responsibility only requires insuring against duplicate participation by any individual. In addition, it is always preferable to include a joint custody child in a SNAP household than to decide if the results in the child being ineligible for SNAP benefits at all.

3. Terminated Parental Rights

When a parent's rights have been legally terminated and the parent moves into a household that includes their child[ren] who are being cared for by and under the parental control of someone else, the parent may be

considered a separate SNAP household if they declare they purchase and prepare meals separately.

Example 1: Grandma with legal custody (or otherwise exercising parental control) over her minor grandchildren when the children's mother, whose parental rights have been legally terminated, returns to the household. The question is what SNAP household composition is mandated. Must they all be one household? Grandma, because she is exercising parental control over these minor children, must be in the same SNAP household as the children. Mom, because her parental rights have been legally terminated, is not required to be part of the same SNAP household as her children.

Example 2: An emancipated minor (***not*** under parental control*) returning to a household that does not include the minor's biological parent or parents, or a child under the age of 22 returning to the household of a parent whose parental rights were terminated. In either case, the child may be a separate SNAP household if he/she declare that they purchase and prepare meals separately.

* A child must be considered to be under parental control if he or she is financially or otherwise dependent on a member of the household.

4. Danks Co-op Person(s) and Essential Person(s)

a. Determining Household Composition - The presence of a TA Danks Co-op Person(s) or an Essential Person(s) does not alter the method for determining SNAP household composition. That is, SNAP household composition continues to be primarily determined based on which members residing together purchase and prepare their food together.

   The TA Danks Co-op Person(s) or TA Essential Person(s) may, therefore, be determined as member(s) of the SNAPS household that includes other individuals with whom he or she resides, or they may be determined to be their own separate SNAP household.

b. Separate Household - If the TA Danks Co-op Person(s) or TA Essential Person is a separate SNAP household they must be processed the same as any other separate SNAP household and be required to file a separate SNAP application and receive all required SNAP notices.

If the Essential Person(s) is a separate SNAP household but is not a separate TA case, a separate NTA/SNAP case must be opened on WMS in order to separately issue SNAP benefits. However, if the Essential Person has a separate TA case opened on WMS for purposes of separately being issued their TA benefits, their SNAP benefits may be issued as part of that TA/SNAP case.

c. Member of TA Household - If the Essential Person(s) is determined a member of the SNAP household that includes other TA members, he/she will be issued their SNAP benefits included with the other TA members, as part of the main TA household's TA/SNAP case.

References:

387.1 Definitions

03 INF 10

7 CFR 273.1(a)(2) Household Concept

7 CFR 273.1(c)(1) Household Concept

7 CFR 273.3 (a) Residency

7 CFR 273.2 (f) (1) (x) Office Operations and Application Processing

LDSS-4314 Supplemental Nutrition Assistance Program (SNAP) Benefits Household Composition Desk Guide.

FNS 6/12/2006 Letter- Separate Household Status for Disabled Persons

03 ADM-07 Temporary Assistance: New Shelter Allowances and Related Changes

24-ADM-11 - New Temporary Assistance Recertification Periods and Corresponding Verification Requirements for Household Composition and Residence

LDSS-3666 TA/FS DOCUMENTATION/VERIFICATION DESK GUIDE

ABEL Transmittal # 03-5, Information #3: Changes to Cooperative Budgeting of Shelter Allowances

B. Special Household Definition

1. Ineligible For Non-Household/Separate Household Status

The following individuals living with others or groups of individuals living together must be considered as customarily purchasing food and preparing meals together, even if they do not do so:

a. A spouse of a member of the household, including same sex spouses.

b. Children or stepchildren under 22 years of age, living with parents and their biological or adoptive child(ren) or stepchild(ren), regardless of whether they have children or a spouse, or regardless of whether the child is legally emancipated;

NOTE: Please refer to GIS 12 TA/DC019 for policy regarding participation of 18-21 year old in NYSNIP/NYSCAP and residing with their parents. In certain situations these 18-21 year old can have a separate NYSNIP/NYSCAP case from their parents even though they are residing with their parents.

c. Children under 18 years of age other than foster/KinGAP children under the parental control of an adult household member who is not the children's parent or stepparent.

NOTE: The Kinship Guardianship Assistance Program (KinGAP) was signed into Law with Chapter 58 of the laws of 2010 and went into effect April 1, 2011. KinGAP, which is administered by OCFS, is a new program in New York State designed to provide monthly payments and other benefits to qualified relative guardians of foster children who have been discharged from foster care. Further information on KinGAP can be found in 11-OCFS-ADM-03: Kinship Guardianship Assistance Program (KinGAP).

KinGAP payments should be treated the same as foster care payments for SNAP purposes. This gives families the choice of including the child as a member of the household, and counting the KinGAP payment as unearned income, or excluding the child and the KinGAP payment. The decision to include or exclude a child from a household’s SNAP case should depend on if the household would benefit financially by including or excluding the child.

NOTE: The determination as to whether a minor child under 18 is under the parental control of a household member must be made on a case-by-case basis.

Parental control is generally determined based on the minor's capability of providing for 50% or more of his or her own financial support. This support may be from sources such as wages from employment or receipt of his/her own TA grant.

In the circumstance of an unrelated minor child residing with an adult, the child may not always be determined to be under the adult's parental control. For example, a 17-year-old mother residing with an adult may be receiving TA in her own name, may be employed or may be residing with her spouse.

In such situations, a strong case can be made she is not under the adult's parental control.

On the other hand, a 13-year-old with a child, who has no income, would have difficulty establishing that she or he is not under parental control. The reason for the decision to allow or disallow separate household status must be thoroughly documented in the case record.

2. Eligible for Separate Household Status

An otherwise eligible individual who is 60 years of age or older living with others (and the spouse of such individual) who is unable to purchase and prepare meals because he/she suffers from a disability considered permanent under the Social Security Act or suffers from a non-disease-related, severe, permanent disability may be a separate household.

However, the income of others with whom the individual resides (excluding the income of the individual and spouse) cannot exceed 165 percent of the poverty level. For further budget information, see ABEL Manual, Section G - SNAP - Separate Household Status.

NOTE: Residents of Drug Addiction or Alcohol Treatment and Rehabilitation Facilities and Group Living Facilities (as defined in this section) who apply through an authorized representative are not subject to the provisions of this Special Household Definition Section. Household composition for such residents shall be determined according to this section.

References:

387.1 Definitions

97 ADM-4 Clarifications of Various Food Stamp Welfare Reform Provisions

95 ADM-15 Food Stamp Program Implications of the Mickey Leland Childhood Hunger Relief Act

91 INF-3 1990 Income Maintenance Regional Meetings Questions and Answers

96 LCM-83 Food Stamp Impact of New Federal Welfare Law

11 ADM-05 Temporary Assistance Budgeting: Treatment of Kinship Guardianship Assistance Program (KinGAP) Payments

GIS 12 TA/DC019 Participation of 18-21 Year Olds in NYSNIP

FNS Letter 7/15/2015 Same-Sex Marriage and SNAP Mandatory Household Status

C. Non-Households Members

Eligible For Non-Household/Separate Household Status - The following individuals, if otherwise eligible, may participate in SNAP as separate households:

1. **Roomer**

   Individuals who pay a household for lodging but not food may participate as a separate household. Before an individual is budgeted as a roomer, consideration should first be given to treating the individual as a non-household member who shares in incurring household expenses – i.e., as a shared living arrangement.

2. **Live -In Attendant**

   Individuals who live with a household to provide medical, housekeeping, childcare, or other similar personal services may participate as a separate household.

References:

387.2 Responsibilities of Local Government

273.1 Household Concept

LDSS-4314 Supplemental Nutrition Assistance Program (SNAP) Benefits Household Composition Desk Guide.

D. Ineligible Individuals

Ineligible Individuals - The following individuals or groups of individuals are not eligible to participate:

1. **Ineligible Student**

   A student who is subject to but does not meet the eligibility requirements stated in this section.

2. **Ineligible Alien**

   An individual who does not meet the citizenship or eligible alien status set forth in this section.

3. Fraud/Intentional Program Violation

   An individual disqualified for fraud/IPV according to SNAPSB Section 7.

4. **SSN Disqualified**

   An individual disqualified for refusal to apply for or provide an SSN as set forth in this section.

5. **SNAP Work Requirement Sanction**

   An individual who was sanctioned for failure to comply with a SNAP work requirement contained in Section 385.12 of 18 NYCRR.

   NOTE: Please see section 13 and 17 for information on budgeting the income and resources of ineligible individuals.

6. **Ineligible ABAWD**

   An individual Ineligible to receive SNAP benefits for failure to meet ABAWD work requirements. Any household member that has used their three months of non-ABAWD compliance in a 36-month period is ineligible for SNAP benefits per 18 NYCRR 385.3.

7. **Residents of institutional living arrangements (except for the following and as defined in this section):**

   a. Residents of federally subsidized housing for the elderly, built under section 202 of the Housing Act of 1959 (P.L. 86-372) or section 236 of the National Housing Act (P.L. 73- 479);

b. Individuals residing in public or approved nonprofit private drug or alcoholic treatment centers and children who live with their parent or parents in such drug or alcoholic treatment centers;

c. Disabled persons who reside in approved group living facilities as defined in this section;

d. Women or women with their children who are residing in temporary shelters for battered woman and children;

e. Homeless individuals or families residing in temporary public or private non-profit shelters for homeless persons.

NOTE: Children living with their incarcerated mothers are ineligible for SNAP since they are considered boarders.

8. Residents of a commercial boarding house

A boarding house is an establishment which is licensed or viewed by the community as a commercial enterprise, offering meals and lodging for compensation with the intention of making a profit. The number of boarders residing in the boarding house shall not be used to determine if it is a commercial enterprise.

Individuals living with others and paying reasonable compensation to the others for meals and lodging (boarders) except as specified in this section. Reasonable compensation is defined in the next section describing boarders.

References:

387.1 Definitions

95 ADM-4 Public Assistance and Medical Assistance Benefits For Infants Residing With Their Incarcerated Mothers

12 INF-03 Temporary Assistance (TA) and Medicaid (MA) Benefits For Infants Residing With Their Incarcerated Mothers

LDSS-4314 Supplemental Nutrition Assistance Program (SNAP) Benefits Household Composition Desk Guide.

E. Boarders

Definition - A boarder is an individual who resides with others and pays reasonable compensation for lodging and meals.

1. Ineligible To Participate

Boarders are ineligible to participate independent of the household providing the board. However, the household providing the boarder services may request that the boarder participate as a member of their household.

2. Boarder Status

Boarder status shall not be extended to:

a. Those individuals or groups of individuals described in this section including children or siblings residing with elderly or disabled parents or siblings.

b. Boarder status cannot be extended to those living in an institutionalized setting, nor should boarders be considered to be residents of an institution.

c. Individuals paying less than a reasonable monthly payment for meals. These persons will be counted as members of the household which provides the lodging and meals.

3. Determining Reasonable Compensation

A reasonable monthly amount for meals shall be either of the following:

a. Boarders whose board arrangement is for more than two meals a day shall pay an amount which equals or exceeds the Thrifty Food Plan for the appropriate size of the boarder household: or

b. Boarders whose board arrangement is for two meals or less per day shall pay an amount which equals or exceeds two-thirds of the Thrifty Food Plan for the appropriate size of the boarder household.

NOTE: Only the amount paid for meals shall be used provided that the amount paid for meals is distinguishable from the amount paid for lodging.

4. Household Eligibility

The households with whom a boarder resides (including the household of the proprietor of a boarding house) may participate in the program if otherwise eligible.

References:

387.1 Definitions

387.16 Special Provisions for Household Circumstances

273.1 Household Concept Elderly/Disabled Members

F. Elderly/Disabled Members

1. Elderly/Disabled Members

a. An elderly member is one who is 60 years of age or older.

b. A disabled member is one who is:

(1) Receiving Supplemental Security Income (SSI) benefits under Title XVI of the Social Security Act or disability or blindness payments under Titles I, II, X, XI, V, or XVI of the Social Security Act,

(2) A veteran with a service-connected or non-service connected disability rated or paid as total (100%) by the Veteran's Administration (VA) or is considered by the VA to be in need of regular aid and attendance or permanently housebound,

(3) A surviving spouse of a veteran and considered by the VA to be in need of regular aid and attendance or permanently housebound,

(4) A surviving child of a veteran and considered by the VA to be permanently incapable of self-support,

(5) A surviving spouse or child of a veteran and entitled to compensation for a service-connected death or pension benefit for a non-service connected death based on a VA determination and has a disability considered permanent under the Social Security Act. "Entitled" in this definition refers to those veterans' surviving spouses and children who are receiving the benefits stated above or have been approved for such payment. For disabilities that are considered permanent see SNAPSB Section 19.

(6) Receiving Federal- or State-administered supplemental benefits under section 1616(a) of the Social Security Act provided that the eligibility to receive the benefits is based upon the disability or blindness criteria used under title XVI of the Social Security Act.

(7) Receiving Federal- or State-administered supplemental benefits under section 212(a) of Public Law 93-66,

(8) Receiving a Federal, State or Local government disability retirement pension because of a disability considered permanent under Section 221(i) of the Social Security Act. This includes individuals receiving payments under the Federal Employment Compensation Act (FECA). Individuals receiving FECA payments are considered permanently disabled under section 221(i) of the Social Security Act if the payments are made to a person in lieu of

Civil Service Retirement (CSR) benefits. Example: NYS Disability Retirement benefits.

Persons receiving FECA payments pending a determination of eligibility for CSR may not be considered disabled under this provision. Only those who can document that they have elected to receive FECA payments in lieu of CSR benefits satisfy the requirements of this provision.

NOTE: Employees injured on the job who receive temporary FECA payments while they recover are not considered permanently disabled under this provision.

(9) Receiving an annuity under:

(a) Section 2(a)(1)(v) of the Railroad Retirement Act of 1974 and is determined to be disabled based upon the criteria used under Title XVI of the Social Security Act; or

(b) Section 2(a)(1)(iv) of the Railroad Retirement Act of 1974 and is determined to qualify for Medicare by the Railroad Retirement Board; or

(10) Receiving authorization of Medical Assistance (MA) based upon disability or blindness. In New York State, such medical assistance recipients are those who have been certified by Medical Assistance as blind, disabled or "SSI-related", pursuant to Title XVI.

The following is a link to what disabilities are classified as permanent under the Social Security Act:

http://www.socialsecurity.gov/disability/professionals/bluebook/AdultListings.htm

(11) A recipient of interim assistance benefits pending the receipt of Supplemental Security Income (SSI), provided that the eligibility to receive these benefits is based upon disability criteria which are at least as stringent as those used under Title XVI of the Social Security Act (SSA). For purposes of this part of the SNAP definition of disabled, interim assistance means any TA given to individuals applying for SSI.

In New York State, interim assistance is issued to eligible individuals pending receipt of SSI. However, there is no requirement that a determination of disability be done as a condition of receiving the interim assistance. Since these

individuals can be referred to SSI without a thorough disability determination or have applied on their own without a district review of their disability, they do not meet the definition of disabled while receiving interim assistance payments.

However, in certain circumstances a determination of disability using criteria as strict as required by the SSA is done for interim assistance recipients before the SSI determination is completed. In such situations, the person is considered disabled while receiving interim assistance. It is anticipated that one group this provision may apply to would be individuals in receipt of the emergency shelter allowance for persons with AIDS or HIV-related illness.

NOTE: The definition of elderly or disabled applies when determining eligibility for uncapped excess shelter and medical deductions and the exemption from gross income test.

When households/individuals receiving SNAP while pending SSI are determined eligible for SSI, they must be re-budgeted as a household with an elderly/disabled member retroactive to the date of eligibility for SSI, or SNAP application date, whichever is later (see this section and SNAPSB Section 12. Benefits will be restored according to SNAPSB Section 11.

2. WMS/MyWorkspace Instruction

Individuals described in paragraph 10 above are identified by WMS Individual Categorical Code "11- Blind" or "12- Disabled" on Screen 3 of the WMS Medical Assistance Case Record. An 'X' should be entered in the Aged-Disabled Indicator on the SNAPABEL Budget if the Individual Categorical Code is 12 or 13. An “A” should be entered in the Aged-Disabled Indicator in WMS/MyWorkspace if all SNAP household members are aged/disabled (Upstate districts only).

References:

387.1 Definitions

273.2 (f) (1) (viii) Office Operations and Application Processing

94 ADM-15 Food Stamps: Expansion of Definition of Food Stamp Eligibles Who Reside in Certain Group Living Arrangements

91 ADM-15 Food Stamps: Definition of Disabled

99 LCM-1 Food Stamp Program: Clarification of Definition of Disability

P.L. 93-66 SUPPLEMENTAL SECURITY INCOME BENEFITS FOR ESSENTIAL PERSONS

SSA 221(i) DISABILITY DETERMINATIONS

SSA Title XVI SUPPLEMENTAL SECURITY INCOME FOR THE AGED, BLIND, AND DISABLED

G. Household Types

1. Temporary Assistance (TA) Household

A household in which all members are applying for or receiving Family Assistance (FA) or Safety Net Assistance (SNA).

2. Mixed Household

A household in which all members apply for SNAP benefits as a single unit and some of the members also apply for TA or are current TA recipients.

Example: A five-person household applies for SNAP benefits. Three members of the SNAP household receive a TA grant. One member of the SNAP household who receives SSI and one member of the SNAP household who is a legally assigned foster child are not included in the TA grant. This household is a mixed household for SNAP purposes.

3. Non-Temporary Assistance (NTA) Household

A household in which no one is a TA applicant or recipient.

4. "Pure" SSI Household

A household in which all members are SSI applicants or recipients.

References:

273.23 (d) Simplified Application and Standardized Benefit Projects

H. Head of Household

1. Definition

Head of Household is the member of the applicant household designated by the household to represent them in matters pertaining to its eligibility for and receipt of SNAP benefits.

The head of household classification is not one required under SNAP Regulations and must not be used to impose special requirements on the household, such as requiring that the head of household, rather than another responsible member of the household, receive benefits in his/her name or apply and be interviewed for benefits.

2. Designation

i. By Applicant - At time of application, the applicant should designate a household member in whose name benefits will be issued. The applicant may also designate a head of household whenever there is a change in household composition.

ii. By District - If the applicant is unable to designate a member of the applicant household, or if there is no adult member, the eligibility worker shall designate the member in whose name benefits will be issued.

References:

387.1 Definitions
273.1 (d) Household Concept

I. Non-Financial Eligibility Standards

1. Categorical Eligibility

1. Categorically Eligible Households - Categorically Eligible households are not subject to the Gross Income Test, the Net Income Test, or the SNAP resource test.

   Categorically eligible households are presumed, without further investigation or verification, to meet the resource limits as a result of all members of the household being eligible for Family Assistance, non-emergency Safety Net Assistance and/or SSI. All other requirements of SNAP eligibility apply to categorically eligible households. The following households are considered categorically eligible for SNAP benefits.

   1) All NTA/SNAP households that have income at or below 130% of the Federal Poverty Level (FPL) and have received a TANF-MOE funded service except (a):

      a. SNAP households containing an individual who has been disqualified for an Intentional Program Violation (IPV);

   2) Households that have earned income, and a total gross income (both earned and unearned) at or below 150% of the federal poverty limit; and,

   3) households that have out-of-pocket dependent care expenses and a gross income at or below 200% of the federal poverty limit;

   4) households that have either an elderly or disabled member (or members) and a gross income at or below 200% of the federal poverty limit;

      Note: SNAP households containing a member who is age 60 or older, or disabled may be eligible with income above 200% of the Federal Poverty Level, but cannot be considered categorically eligible. If income is above 200% of the Federal Poverty Level, the household must pass the Net Income Test and the Resource Test.

   5) Households in which all members receive or are authorized to receive TA and/or SSI benefits shall be eligible for SNAP because of their status as TA and/or SSI recipients.

6) Recipients who meet the categorical eligibility criteria because they are authorized to receive TA or SSI benefits shall include:

   i. Individuals determined eligible for TA and/or SSI benefits who have not yet received payments from these programs;

   ii. Individuals whose TA or SSI benefits are suspended or being recouped;

   NOTE: If an SSI recipient has his/her SSI benefits suspended, the SSI income would continue to be budgeted for SNAP only if the suspension is due to a recovery of past SSI benefits fraudulently received. (See SNAPSB Section 13)

   However, a household in which a member is suspended from SSI for non-compliance with Drug Addiction and/or Alcoholism treatment requirements is not categorically eligible to participate in the SNAP. The household cannot be considered categorically eligible as SSI recipients until that individual's suspension ends and the individual starts receiving SSI benefits.

   Because these individuals will not receive any retroactive SSI benefits for the period of suspension, they would not be "authorized to receive" SSI benefits as required for categorical eligibility. In order to regain SNAP certification, the household would have to be determined eligible under normal requirements. The SNAP eligibility determination would be calculated without including an SSI benefit as income for the suspended individual until the suspension period ends and benefits are resumed.

7) Individuals determined eligible to receive zero TA or SSI benefits;

   Example: TA or SSI recipients whose benefits are being recouped, or TA recipients whose benefits are less than $10 and therefore not payable.

8) Individuals initially denied SSI. If a person is denied SSI, then wins an appeal later, the SNAP categorical eligibility would be effective from the effective date of his/her SSI application (or of a SNAP application which is filed later than the SSI application) as established by the appeal.

2. Determining Household Composition

All SNAP household composition provisions as defined in this section must be properly applied when establishing whether a group of people is categorically eligible.

a. Compliance With Other Eligibility Requirements - Categorically eligible households must comply with all SNAP eligibility requirements.

b. Application Processing - If a SNAP household has either jointly or separately filed an application for TA (FA and Federally Funded SNA) and/or SSI benefits, and NTA/SNAP benefits the application for SNAP must be processed according to the following standards:

c. The determination must be made within 30 days of the SNAP application filing date.

d. The SNAP eligibility determination shall not be delayed beyond the 30th day from the date the SNAP application was filed, awaiting the determination of eligibility for TA and/or SSI benefits.

e. When households/individuals receiving SNAP while pending SSI are determined eligible for SSI, they must be re-budgeted as a categorically eligible elderly/disabled household retroactive to the date of eligibility for SSI or SNAP application date, whichever is later. See SNAPSB Section 11.

f. In re-budgeting the SNAP case for the months covered by the retro SSI payment the monthly SSI amount cannot be budgeted as income because when the benefits were issued, the SSI had not yet been received.

g. In no event, however, can SNAP benefits be provided due to categorical eligibility prior to the date of an original SNAP application filed.

3. Verification

a. Households that are categorically eligible due to household members being in receipt of either TA or SSI benefits will have the following factors accepted for SNAP eligibility without further verification:

(a) Resources
(b) Social security numbers of the household members
(c) Residency, and
(d) Sponsored alien information

b. All other eligibility and benefit determination factors must be verified. Questionable circumstances must also be verified.

4. Eligibility and Benefit Determination

a. Pure TA/SSI households are exempt from the SNAP resource, gross income and net income limits, but the standard benefit amount calculation must be followed as for all other SNAP households. One and two person households that are categorically eligible are always entitled to at least the minimum SNAP benefit for a household of 1 or 2 persons. Categorically eligible households with three or more members will be entitled to benefits of at least $2if the Thrifty Food Plan, reduced by 30% of their net income, is at least $1. Pure TA/SSI households with three or more members will be automatically entitled to a benefit determination, but not necessarily entitled to receive SNAP benefits because of the way benefit levels are calculated.

b. A household categorically eligible for zero benefits must be denied or closed rather than suspended. In such cases, the household is categorically eligible for zero benefits.

5. Households Which Lose Categorical Eligibility

Households which lose SNAP categorical SNAP eligibility must be reassessed for continued SNAP eligibility.

Categorically Ineligible Households - The following households are not categorically eligible:

a. Households containing a member who has been disqualified from the SNAP due to an intentional program violation or other sanction.

b. Households containing an aged and/or disabled member with gross income is above 200% of the Federal Poverty Level

6. WMS/MyWorkspace Instructions

1. Categorical Indicator - The CE entry needs to be changed only when SNAP household circumstances change.

   1) Categorically Eligible

      (a) If all persons in the SNAP household are receiving TA or SSI, the household is categorically eligible for SNAP and must be coded "Y." If a "Y" is entered in the CE field, ABEL will not apply the 130% Gross Income Test nor the 100% Net Income Test.

(b) NTA-SNAP households that are categorically eligible for SNAP must be coded “N”. If an “N” is entered in the CE field only the 130% Gross Income Test is applied.

(c) NTA-SNAP households with earned income that are categorically eligible for SNAP benefits must be coded “N”. If an “N” is entered in the CE field only the 150% Gross Income Test is applied.

(d) NTA-SNAP households with a sanctioned or disqualified individual must be coded “S” and pass the 130% Gross Income Test, 100% Net Income Test and the Resource Test.

(e) SNAP households with an aged/disabled member(s) must be coded “N” and pass the 200% Gross Income Test. If the household fails the 200% Gross Income Test, then the household is not categorically eligible and is subject to the 100% Net Income Test and Resource Test. The CE indicator will automatically change to “A”.

(f) SNAP households that incur dependent care expenses and pass the 200% Gross Income Test will have a CE code of “N”, unless the household members are all receiving TA and/or SSI, then the CE indicator will be “Y”.

2) Categorically Ineligible - TA households containing a sanctioned TA member who is also SNAP sanctioned are not categorically eligible and must be coded “S”.

3) Categorical Eligibility For Surplus TA Budgets Or TA Budgets With A Sanctioned Individual - ABEL requires the worker to re-evaluate SNAP categorical eligibility for TA/SNAP cases in which:

(a) A person has been sanctioned from the TA case or;

(b) There is a TA budget surplus.

ABEL does not require the worker to re-evaluate SNAP categorical eligibility for any other TA/SNAP cases.

References:

387.14 Determination of Food Stamp Eligibility

273.2 Office Operations and Application Processing

273.10 (e) (2) (ii) (C) Determining Household Eligibility and Benefit Levels

09 ADM-06 Expansion of Categorical Eligibility for Food Stamps for Households with Out-of pocket Dependent Care Expenses

07 ADM-09 Categorical Eligibility for Food Stamps

01 ADM-2 Expansion of Food Stamp Categorical Eligibility

10 INF-07 LDSS-4943 (11/09): “Food Stamp Benefits Categorical Eligibility Desk-Aid”

08 INF-03 Categorical Eligibility for Food Stamps Q & As

95 INF-35 Food Stamps: SSI or SSDI When Disability is Based on Drug Addiction or Alcoholism

12 INF-12 Pub-4916 (Rev 12/11): Helping Hands for People in Need Brochure no longer required

J. Residency

An applicant must live within the geographic area served by the district in which they file an application for SNAP benefits. To determine residency, the district must:

- Determine whether or not the applicant physically resides in the district.
- Not impose a time limited residency requirement.
- Not interpret residency to mean the intent to permanently reside in the State or district. However, persons in the district solely for vacation purposes must not be considered residents.

1. Homeless Individual Or Family

An individual or family shall be considered homeless when the individual or family lacks a fixed and regular nighttime residence or has a primary nighttime residence that is:

a. A supervised shelter, such as a hotel or motel or congregate shelter, which is designed to provide temporary accommodations; or

b. An institution that provides temporary residence for individuals who need to be institutionalized; or

c. A place not designed for, or ordinarily used as, a regular sleeping accommodation for human beings (a hallway, a bus station, a lobby or similar places).

d. A temporary accommodation in the residence of another individual or family (couch surfing).

For homeless households, in addition to the above, the districts **must**:

a. Not require an otherwise eligible household to reside in a permanent dwelling or have a fixed mailing address as a condition of eligibility. Residence can be a car, bus, etc.

b. Not deny participation in the program to a homeless household when residency cannot be verified.

c. Provide assistance in obtaining their benefits to households who do not reside in a permanent dwelling or have a fixed mailing address. An issuance system must be developed that assures that all certified households have access to their benefits.

NOTE: A household cannot receive benefits in more than one district in any month unless an individual is a resident of a shelter for victims of domestic violence and was a member of a household containing the person who had abused him or her. Residents of shelters for victims of domestic violence shall be handled in accordance with SNAPSB Section 5.

NOTE: Residents of programs for victims of domestic violence who receive TA from a district other than the district of residence also must have their SNAP case processed by the district determined to be fiscally responsible for TA provided the where from district is able to issue benefits within required timeframes.

2. Responsibilities Of Former District Of Residence

a. The former district is required to inform the recipient of the need to apply for SNAP benefits in the new district if such recipient wishes to have his or her SNAP benefits continued after the effective closing date of the SNAP case from the former district.

b. The former district must respond to any oral or written inquiries from the new district about the status of the SNAP case, the effective closing date of the SNAP case in the former district, or about whether SNAP benefits have been issued or received by the households.

c. The former district must provide copies of documentation from the recipient's case record as requested either orally or in writing by the new district. The former district must comply with such requests as soon as possible, but in no event later than 10 days after receiving the request from the new district.

d. When a recipient of TA and SNAP moves on their own to another district and continues to be eligible, the "from" district continues to provide TA and SNAP benefits during the month of the move and the month following the month of the move. Households are encouraged to apply and establish eligibility in the new "move to" district of residence during the two-month transitional period to avoid interruption of benefits.

   Temporary Assistance households which are continued on TA by the "move from" district, as required under district of fiscal responsibility for reasons of the Medical Facility, Placement or Temporary Absence rules, as specified in 97 INF-6 District of Fiscal Responsibility, will not

be required under this policy to be continued on SNAP by the "move from" district.

e. NTA/SNAP only households that move from one district to another must be provided adequate notice of closing. As a best practice, the “move from” should provide benefits for the month of the move and the month following the month of the move to prevent a lapse in benefits to the household while the household applies for benefits in the “move to”.

f. If the household is residing in a domestic violence shelter and the alleged abuse occurred in the where from district, the where from district is responsible to issue SNAP benefits the duration of the stay in the shelter provided the household was receiving TA in the where from district or applying for TA at the time of the alleged abuse.

3. Responsibilities Of The New District Of Residence

a. At the time an individual contacts the new district and indicates that he/she wishes to apply for SNAP benefits in that district, the new district must provide the individual with an application and must schedule a face-to-face or telephone interview as explained in SNAPSB Section 4. The new district must not refuse to give out, accept or process the application on the grounds that the recipient is, or should be, receiving SNAP benefits from the former district.

b. If the recipient is unable to produce a closing notice from the former district or claims that he/she is not actually receiving appropriate SNAP benefits from the former district, it is the responsibility of the new district to contact the former district to ascertain the current status of the recipient. NOTE: Expedited application processing service should not be delayed if the district has failed to obtain verification of the case closing.

If the recipient is, or claims to be, unable to provide necessary documentation which is likely to be in the possession of the former district (e.g., birth certificates, etc.), it is the responsibility of the new district to obtain documentation needed to establish the recipient's continued eligibility from the case records maintained by the former district. Documentation which is specifically relevant to the recipient's residence in the new district, such as rent costs, current household composition and income, if changed, must be obtained from the recipient or through regular documentation/verification procedures

c. When the recipient applies for SNAP benefits in the new district before benefits from the former district cease, the new district must accept and process the SNAP application within normal SNAP processing requirements and time frames. However, every attempt must be made to process the application quickly and to assure that SNAP benefits to an otherwise eligible recipient are not delayed or interrupted solely because of that recipient's move into a new district. If the new district determines that the recipient is eligible before SNAP benefits from the former district have ceased, the new district must open the case effective with the date that benefits from the former district are scheduled to end.

d. The initial SNAP benefits are not prorated if an application is made in a new district on or before the first day of the month following the expiration of benefits in the former county of origin. However, if application is made in the new district after the first day of the month following the expiration of SNAP benefits in the county of origin, the SNAP benefits for the first month in the new district must be prorated from the date of the application filed in the new district.

   SNAP eligibility may not be established until all documentation is received. However, an initial month's benefit shall not be prorated due to a delay in receiving documentation which is not the fault of the applicant.

e. If the resident of a domestic violence shelter was receiving TA in another district or was applying for TA in another district at the time of the alleged abuse, and the resident qualifies for expedited processing, the expedited timeframes must still be met. If the where from district is unable to process the case within the required expedited timeframes for any reason, the where found district will provide a CBIC if necessary and issue the expedited benefits within the required expedited timeframe. The where from district will make the future ongoing payments. The two districts do not have to reconcile the benefits as they are federal funds.

References:

387.1 Definitions

387.9(a) Investigation and Eligibility

273.3 Residency

273.2 (f) (1) (vi) Office Operations and Application Processing

01 ADM-1 Continuation of Food Stamps on TA Case During Move

97 ADM-4 Clarifications of Various Food Stamp Welfare Reform Provisions

97 INF-6 District of Fiscal Responsibility

06 ADM-7 Revised District of Fiscal Responsibility for Homeless Placements Out of District

00 INF-19 District of Fiscal Responsibility (DFR) Procedures

06 INF-34 Domestic Violence Residential Programs – Payment Issues and District of Fiscal Responsibility (DFR)

K. Citizenship and Non-Citizen (alien) Status

1. Household members meeting citizenship or non-citizen (alien) status requirements.

No person is eligible to participate in the Program unless that person is:

a. A U.S. citizen;
b. A U.S. non-citizen national
c. An individual who is:
   i) An American Indian born in Canada who possesses at least 50 per centum of blood of the American Indian race to whom the provisions of section 289 of the Immigration and Nationality Act (INA) (8 U.S.C. 1359) apply; or
   ii) A member of an Indian tribe as defined in section 4(e) of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 450b(e)) which is recognized as eligible for the special programs and services provided by the U.S. to Indians because of their status as Indians;
d. An individual who is:
   i) Lawfully residing in the U.S. and was a member of a Hmong or Highland Laotian tribe at the time that the tribe rendered assistance to U.S. personnel by taking part in a military or rescue operation during the Vietnam era beginning August 5, 1964, and ending May 7, 1975;
   ii) The spouse, or surviving spouse of such Hmong or Highland Laotian who is deceased, or
   iii) An unmarried dependent child of such Hmong or Highland Laotian who is under the age of 18 or if a full-time student under the age of 22; an unmarried child under the age of 18 or if a full time student under the age of 22 of such a deceased Hmong or Highland Laotian provided the child was dependent upon him or her at the time of his or her death; or an unmarried disabled child age 18 or older if the child was disabled and dependent on the person prior to the child's 18th birthday. For purposes of this section, child means the legally adopted or biological child of the person described in the paragraph above of this section, or
e. An individual who is:

i) A non-citizen who has been subjected to a severe form of trafficking in persons and who is certified by the Department of Health and Human Services, to the same extent as a non-citizen who is admitted to the United States as a refugee under Section 207 of the INA; or

ii) A non-citizen who has been subjected to a severe form of trafficking in persons and who is under the age of 18, to the same extent as a non-citizen who is admitted to the United States as a refugee under Section 207 of the INA;

iii) The spouse, child, parent or unmarried minor sibling of a victim of a severe form of trafficking in persons under 21 years of age, and who has received a derivative T visa, to the same extent as a non-citizen who is admitted to the United States as a refugee under Section 207 of the INA; or

iv) The spouse or child of a victim of a severe form of trafficking in persons 21 years of age or older, and who has received a derivative T visa, to the same extent as a non-citizen who is admitted to the United States as a refugee under Section 207 of the INA; or

f. An individual who is both a qualified non-citizen as defined in this section and an eligible non-citizen as defined in this section.

1) A qualified non-citizen is:

a) A non-citizen who is lawfully admitted for permanent residence under the INA;
b) A non-citizen who is granted asylum under section 208 of the INA;
c) A refugee who is admitted to the United States under section 207 of the INA;
d) A non-citizen who is paroled into the U.S. under section 212(d)(5) of the INA for a period of at least 1 year;
e) A non-citizen whose deportation is being withheld under section 243(h) of the INA as in effect prior to April 1, 1997, or whose removal is withheld under section 241(b)(3) of the INA;
f) A non-citizen who is granted conditional entry pursuant to section 203(a)(7) of the INA as in effect prior to April 1, 1980;
g) A non-citizen who has been battered or subjected to extreme cruelty in the U.S. by a spouse or a parent or by a member of the spouse or parent's family residing in the same household as

the non-citizen at the time of the abuse, a non-citizen whose child has been battered or subjected to battery or cruelty, or a non-citizen child whose parent has been battered;[2] or

h) A non-citizen who is a Cuban or Haitian entrant, as defined in section 501(e) of the Refugee Education Assistance Act of 1980.

2) A qualified non-citizen, as defined in this section, is eligible to receive SNAP benefits and is not subject to the requirement to be in qualified status for 5 years as set forth in this section, if such individual meets at least one of the criteria of this section:

a) A non-citizen age 18 or older lawfully admitted for permanent residence under the INA who has 40 qualifying quarters as determined under Title II of the SSA, including qualifying quarters of work not covered by Title II of the SSA, based on the sum of: quarters the non-citizen worked; quarters credited from the work of a parent of the non-citizen before the non-citizen became 18 (including quarters worked before the non-citizen was born or adopted); and quarters credited from the work of a spouse of the non-citizen during their marriage if they are still married or the spouse is deceased.

(1) A spouse may not get credit for quarters of a spouse when the couple divorces prior to a determination of SNAP eligibility. However, if the State agency determines eligibility of an non-citizen based on the quarters of coverage of the spouse, and then the couple divorces, the non-citizen eligibility continues until the next recertification. At that time, the State agency must determine the non-citizen’s eligibility without crediting the non-citizen with the former spouse's quarters of coverage.

(2) After December 31, 1996, a quarter in which the non-citizen received any Federal means-tested public benefit, as defined by the agency providing the benefit, or received SNAP benefits is not creditable toward the 40-quarter total. Likewise, a parent's or spouse's quarter is not creditable if the parent or spouse received any Federal means-tested public benefit or received SNAP benefits in that quarter. The State agency must evaluate quarters of coverage and receipt of Federal means-tested public benefits on a calendar year basis. The State agency must first determine

the number of quarters creditable in a calendar year, then identify those quarters in which the non-citizen (or the parent(s) or spouse of the non-citizen) received Federal means-tested public benefits and then remove those quarters from the number of quarters of coverage earned or credited to the non-citizen in that calendar year. However, if the non-citizen earns the 40th quarter of coverage prior to applying for SNAP benefits or any other Federal means-tested public benefit in that same quarter, the State agency must allow that quarter toward the 40 qualifying quarters total;

b) A non-citizen admitted as a refugee under section 207 of the INA;
c) A non-citizen granted asylum under section 208 of the INA;
d) A non-citizen whose deportation is withheld under section 243(h) of the INA as in effect prior to April 1, 1997, or whose removal is withheld under section 241(b)(3) or the INA;
e) A non-citizen granted status as a Cuban or Haitian entrant (as defined in section 501(e) of the Refugee Education Assistance Act of 1980);
f) An Amerasian admitted pursuant to section 584 of Public Law 100-202, as amended by Public Law 100-461;
g) A non-citizen with one of the following military connections:
   (1) A veteran who was honorably discharged for reasons other than non-citizen status, who fulfills the minimum active-duty service requirements of 38 U.S.C. 5303A(d), including an individual who died in active military, naval or air service. The definition of veteran includes an individual who served before July 1, 1946, in the organized military forces of the Government of the Commonwealth of the Philippines while such forces were in the service of the Armed Forces of the U.S. or in the Philippine Scouts, as described in 38 U.S.C. 107;

   (2) An individual on active duty in the Armed Forces of the U.S. (other than for training); or

   (3) The spouse and unmarried dependent children of a person described in this section, including the spouse of a deceased veteran, provided the marriage fulfilled the requirements of 38 U.S.C. 1304, and the spouse has not remarried. An

unmarried dependent child for purposes of this paragraph is: a child who is under the age of 18 or, if a full-time student, under the age of 22; such unmarried dependent child of a deceased veteran provided such child was dependent upon the veteran at the time of the veteran's death; or an unmarried disabled child age 18 or older if the child was disabled and dependent on the veteran prior to the child's 18th birthday. For purposes of this paragraph child means the legally adopted or biological child of the person described in this section.

h) An individual who is receiving benefits or assistance for blindness or disability. The disability assistance or benefits must be predicated on a disability determination using criteria at least as stringent as the criteria used under title XVI of the Social Security Act. This includes qualified immigrants who receive Supplemental Security Income (SSI) or Social Security Disability (SDSD), or Medicaid if a disability determination has been made (WMS Individual Categorical Code 11 or 12.)

i) An individual who on August 22, 1996, was lawfully residing in the U.S., and was born on or before August 22, 1931; or

j) (An individual who is under 18 years of age.

3) **The following qualified non-citizens,** as defined in this section, **must be in a qualified status for 5 years before being eligible to receive SNAP benefits**. The 5 years in qualified status may be either consecutive or nonconsecutive. Temporary absences of less than 6 months from the United States with no intention of abandoning U.S. residency do not terminate or interrupt the individual's period of U.S. residency. If the resident is absent for more than 6 months, the agency shall presume that U.S. residency was interrupted unless the non-citizen presents evidence of his or her intent to resume U.S. residency. In determining whether an non-citizen with an interrupted period of U.S. residency has resided in the United States for 5 years, the agency shall consider all months of residency in the United States, including any months of residency before the interruption:

a) A non-citizen **age 18 or older lawfully admitted for permanent residence** under the INA.

b) A non-citizen who is **paroled** into the U.S. under section 212(d)(5) of the INA **for a period of at least 1 year;**

c) A non-citizen who has been **battered or subjected to extreme cruelty in the U.S**. by a spouse or a parent or by a member of the spouse or parent's family residing in the same household as the alien at the time of the abuse, an alien whose child has been battered or subjected to battery or cruelty, or an alien child whose parent has been battered;

d) A non-citizen who is **granted conditional entry** pursuant to section 203(a)(7) of the INA as in effect prior to April 1, 1980.

4) Each category of eligible alien status stands alone for purposes of determining eligibility. Subsequent adjustment to a more limited status does not override eligibility based on an earlier less rigorous status. Likewise, if eligibility expires under one eligible status, the State agency must determine if eligibility exists under another status.

5) For purposes of determining eligible non-citizen status in accordance with this section “lawfully residing in the U.S.” means that the non-citizen is lawfully present as defined at 8 CFR 103.12(a).

2. Eligible non-citizens [State Regulation 387.9(a)(2)]

To be eligible to participate in the SNAP program, a person must be a citizen of the United States, a noncitizen national of the United States, or be a qualified eligible non-citizens. Only qualified non-citizens are eligible for federally funded benefits.

A **qualified non-citizen** is an individual who meets the specific definition of qualified alien (non-citizen) found at 7 CFR 273.4(a)(6)(i), which includes lawful permanent residents, asylees, refugees, parolees, individuals granted withholding of deportation or removal, conditional entrants, Cuban or Haitian entrants, battered non-citizens, and non-citizen victims of a severe form of trafficking. See also PRWORA, 8 U.S.C. § 1641. The term qualified non-citizen is not itself an immigration status but includes a collection of immigration statuses. It is a term used for Federal public benefits purposes.

Because of their immigration status, the federal government grants certain qualified non-citizens special access to all federal benefit programs including

SNAP. OTDA identified these non-citizens as "**specially qualified non-citizens".**

Specially qualified non-citizens are not subject to the five year ban on federal benefits. **Specially qualified non-citizens are as follows:**

a. Is in a qualified status and in receipt of certain disability benefits as outlined 7 USC 2012(r)

b. A non-citizen admitted to the United States as a refugee under section 207 of the Immigration and Nationality Act

c. A non-citizen granted asylum under section 208 of the Immigration and Nationality Act

d. A non-citizen whose deportation was withheld under section 243(h) of the Immigration and Nationality Act as in effect prior to April, 1997 or whose removal was withheld under section 241(b)(3) of the Immigration and Nationality Act

e. An Amerasian immigrant admitted into the United States as described in Section 402(a)(2)(A)(i)(V) of PRWORA

f. A Cuban Haitian entrant (as defined in Section 501(e) of the Refugee Education Assistance Act of 1980) paroled into the United States

g. The non-citizen is an Iraqi or Afghan national granted special immigration status under section 101(a)(27) of the Immigration Nationality Act

   Note: see the LDSS-4579 Non-Citizen Eligibility Desk Aid for more information regarding Afghan evacuees and humanitarian parolees.

h. The non-citizen is a victim of severe form of trafficking in persons as defined by the Trafficking Victims Protection Act of 2000. There are two kinds of qualified victims:

   1. Adults, who are certified by the Office of Refugee Resettlement (ORR) in the Department of Health and Human Services; and

   2. Children under 18 years of age, who do not have to be certified but who are issued a letter by ORR stating that the child is eligible for benefits as a victim of a severe form of trafficking in persons.

Samples of the ORR adult certification letter and ORR child eligibility letter are found in 03 ADM-1. These letters are for benefit eligibility purposes only. Certification and eligibility letters issued before November 6, 2001 had 8-month expiration dates. ORR recertified these victims with a recertification letter or new eligibility letter; these letters have a lower case "r" beside the HHS tracking number. Recertification letters do not have expiration dates.

i. Military personnel who are legal permanent residents (also spouses and unmarried dependent children) who are on active full-time duty in a branch of the United States armed forces or Coast Guard are eligible from the date qualified status was granted

j. U.S. veterans who are legal permanent residents (also spouses and unmarried dependent children) who fulfilled the 2-year minimum active duty requirement and received an "Honorable" discharge are eligible from the date qualified status was granted

k. Hmong or Highland Laotian tribe members who are members of a tribe who rendered assistance to the U.S. personal by taking part in a military or rescue operation during the Vietnam era between August 5, 1964 and May 7, 1975, and who are legally residing in the U.S. The individual must be born prior to 05/08/75 and state they are a member of a Hmong or Highland Laotian tribe who rendered assistance to the U.S during the Vietnam era. Such tribe members, their spouses, their un-remarried surviving spouses and/or their unmarried children are eligible from the date qualified status was granted.

l. Is age 18 or older lawfully and lawfully admitted to the United States for permanent residence under the immigration and Nationality Act; and has earned 40 qualifying quarters of coverage as defined under Title II of the Social Security Act or can be credited with such qualifying quarters.

3. Ineligible Non-Citizen (State Regulation 387.1)

An ineligible non-citizen is one who is not a citizen of the United States and does not meet the eligible non-citizen criteria.

A non-citizen who is a qualified non-citizen, as set forth below, is not eligible to participate in the SNAP unless otherwise provided for below.

a. A qualified non-citizen is:

1. A non-citizen who **is lawfully admitted for permanent residence** under the INA;
2. A non-citizen who is **granted asylum** under section 208 of the INA;
3. A refugee who is admitted to the United States under section 207 of the INA;
4. A non-citizen who is **paroled into the U.S**. under section 212(d)(5) of the INA **for a period of at least 1 year;**
5. A non-citizen whose **deportation is being withheld** under section 243(h) of the INA as in effect prior to April 1, 1997, or whose **removal is withheld** under section 241(b)(3) of the INA;
6. A non-citizen who is granted **conditional entry** pursuant to section 203(a)(7) of the INA as in effect prior to April 1, 1980;
7. A non-citizen who has been **battered or subjected to extreme cruelty in the U.S.** by a spouse or a parent or by a member of the spouse or parent's family residing in the same household as the non-citizen at the time of the abuse, a non-citizen **whose child** has been battered or subjected to battery or cruelty, or a non-citizen **child whose parent has been battered**; or
8. A non-citizen who is a **Cuban or Haitian entrant**, as defined in section 501(e) of the Refugee Education Assistance Act of 1980.

b. A **qualified non-citizen,** as defined in this section, is eligible to receive SNAP benefits and is **not** subject to the requirement to be in qualified status for 5 years, **if such individual meets at least one of the criteria listed below:**

1. A non-citizen **age 18 or older** lawfully admitted for permanent residence under the INA who has **40 qualifying quarters** (see additional information in Section 3 below) as determined under Title II of the SSA, including qualifying quarters of work not covered by Title II of the SSA, based on the sum of: quarters the non-citizen worked; quarters credited from the work of a parent of the non-citizen before the non-citizen became 18 (including quarters worked before the non-citizen was born or adopted); and quarters credited from the work of a spouse of the non-citizen during their marriage if they are still married or the spouse is deceased.

   (a) A spouse may not get credit for quarters of a spouse when the couple divorces prior to a determination of SNAP eligibility. However, if the State agency determines eligibility of a non-citizen

based on the quarters of coverage of the spouse, and then the couple divorces, the non-citizen's eligibility continues until the next recertification. At that time, the State agency must determine the non-citizen's eligibility without crediting the non-citizen with the former spouse's quarters of coverage.

(b) After December 31, 1996, a quarter in which the non-citizen received any Federal means-tested public benefit, as defined by the agency providing the benefit, or received SNAP benefits is not creditable toward the 40-quarter total. Likewise, a parent's or spouse's quarter is not creditable if the parent or spouse received any Federal means-tested public benefit or received SNAP benefits in that quarter. The State agency must evaluate quarters of coverage and receipt of Federal means-tested public benefits on a calendar year basis. The State agency must first determine the number of quarters creditable in a calendar year, then identify those quarters in which the non-citizen (or the parent(s) or spouse of the non-citizen) received Federal means-tested public benefits and then remove those quarters from the number of quarters of coverage earned or credited to the non-citizen in that calendar year. However, if the non-citizen earns the 40th quarter of coverage prior to applying for SNAP benefits or any other Federal means-tested public benefit in that same quarter, the State agency must allow that quarter toward the 40 qualifying quarters total;

2. A non-citizen admitted as a **refugee** under section 207 of the INA;
3. A non-citizen **granted asylum** under section 208 of the INA;
4. A non-citizen whose **deportation is withheld** under section 243(h) of the INA as in effect prior to April 1, 1997, or whose removal is withheld under section 241(b)(3) or the INA;
5. A non-citizen granted status as a **Cuban or Haitian entrant** (as defined in section 501(e) of the Refugee Education Assistance Act of 1980);
6. An Amerasian admitted pursuant to section 584 of Public Law 100-202, as amended by Public Law 100-461;
7. A non-citizen with one of the following **military connections**:

   i. **A veteran who was honorably discharged** for reasons other than non-citizen status, who fulfills the minimum active-duty service requirements of 38 U.S.C. 5303A(d), including an individual who died in active military, naval or air service. The definition of veteran includes an individual who served before July 1, 1946, in the organized military forces of the Government of the Commonwealth of the Philippines while such forces were in the service of the Armed

Forces of the U.S. or in the Philippine Scouts, as described in 38 U.S.C. 107;

ii. **An individual on active duty** in the Armed Forces of the U.S. (other than for training); or

iii. **The spouse and unmarried dependent children** of a person described in CFR 273.4 paragraphs (a)(6)(ii)(G)(1) or (a)(6)(ii)(G)(2) of this section, **including the spouse of a deceased veteran**, provided the marriage fulfilled the requirements of 38 U.S.C. 1304, **and the spouse has not remarried**. An unmarried dependent child for purposes of this CFR 273.4 paragraph (a)(6)(ii)(G)(3) is: a child who is under the age of 18 or, if a full-time student, under the age of 22; such unmarried dependent child of a deceased veteran provided such child was dependent upon the veteran at the time of the veteran's death; or an unmarried disabled child age 18 or older if the child was disabled and dependent on the veteran prior to the child's 18th birthday. For purposes of this CFR 273.4 paragraph (a)(6)(ii)(G)(3), child means the legally adopted or biological child of the person described in CFR 273.4 paragraph (a)(6)(ii)(G)(1) or (a)(6)(ii)(G)(2) of this section.

NOTE: A person who is discharged or released from a period of active duty before completing the shorter of (A) 24 months of continuous active duty, or (B) the full period for which such person was called or ordered to active duty, is not eligible by reason of such period of active duty for any benefit under Federal Law (other than this title or any other law administered by the Secretary), and no dependent or survivor of such person shall be eligible for any such benefit by reason of such period of active duty of such person.

Active duty in the Armed Forces of the United States means being on full-time duty in the United States Army, Navy, Air Force, Marine Corps, or Coast Guard.

Duty for training is temporary full-time duty in the Armed Forces performed by members of the Reserves, Army National Guard, or Air National Guard for training purposes. Active duty for training does not establish eligible non-citizen status.

NOTE: This provision applies to both non-citizens and citizens who are veterans or on active duty in the Armed Forces of the United States and to their alien spouses and non-citizens unmarried dependent children.

A spouse is someone currently married under the laws of this State or whose marriage is recognized by this State as a legal

marriage. This includes spouses who are residing apart regardless of whether a separation agreement is in effect.

An unmarried dependent child of a veteran or active-duty member of the Armed Forces is a child who is:

- The child (biological or adopted) or the stepchild of a veteran or active-duty member of the Armed Forces; and
- Not married; and
- Dependent on the veteran or active-duty member (can be claimed as a deduction on his or her federal income tax return).

NOTE: The eligibility of an unmarried dependent child is not affected by the marital status of the parents.

The DD-214 Certificate of Release or Discharge from Active Duty is the form provided to veterans by the Defense Department which documents the type of military discharge a veteran has been granted.

Examples: If the spouse of a veteran is a non-citizen, but the veteran is a citizen, the spouse would meet the non-citizen eligibility criteria for SNAP. If a non-citizen veteran is divorced from his or her spouse, the veteran's unmarried dependent child would meet the non-citizen eligibility criteria for SNAP, regardless of which parent the child lives with.

8. An individual who is receiving benefits or assistance for **blindness or disability** (as specified in § 271.2 of this chapter).
9. An individual who on August 22, 1996, was lawfully residing in the U.S., and was born on or before August 22, 1931; or
10. A non-citizen who has been **granted conditional entry** pursuant to section 203(a)(7) of the Immigration and Naturalization Act as in effect prior to April 1, 1980.
11. An individual who is **under 18 years of age**.

c. The following qualified non-citizens **must be in qualified status for 5 years** before being eligible to receive SNAP benefits. The 5 years in qualified status may be either consecutive or nonconsecutive. Temporary absences of less than 6 months from the United States with no intention of abandoning U.S. residency do not terminate or interrupt the individual's period of U.S. residency. If the absence is longer than 6 months, it shall be presumed that U.S. residency was

interrupted unless the non-citizen presents evidence of his or her intent to resume U.S. residency.

1. A non-citizen age **18 or older** lawfully admitted for permanent residence under the Immigration and Naturalization Act; or

2. A non-citizen who is **paroled into the U.S.** under section 212(d)(5) of the Immigration and Naturalization Act **for a period of a least 1 year**;

3. A non-citizen who has been **battered or subjected to extreme cruelty in the U.S**. by a spouse or a parent or by a member of the spouse or parent's family residing in the same household as the non-citizen at the time of the abuse, a non-citizen whose child has been battered or subjected to battery or cruelty, or an non-citizen child whose parent has been battered;

d. Systems Support

To aid in tracking non-citizen eligibility WMS edits have been changed to allow entries in the following fields for Case Types 31 (NPA-SNAP), 32 (SNAP-MIX) and 60 (HEAP):

Citizenship Code, Alien Number, Date of Entry into United States, Nationality Code and Resettlement Agency Code.

2. Non-Citizens Lawfully Admitted for Permanent Residence with Qualifying Quarters of Coverage

a. Definition and Basic Policy

A permanent resident non-citizen is eligible to participate in the SNAP as a Specially Qualified Non-Citizen if:
Is a lawful permanent resident (LPR) under the Immigration and Nationality Act. Such non-citizens are considered permanent residents and possess what is commonly called a "green card" (I-551); and

Has earned 40 qualifying quarters of coverage as defined under Title II of the Social Security Act or can be credited with such qualifying quarters.

b. Qualifying Quarters

In determining the number of qualifying quarters of coverage set forth in (2) above, a non-citizen is credited with the following:

i. All qualifying quarters of coverage worked by the non-citizen;

ii. All qualifying quarters of coverage worked by a parent of such non-citizen before the non-citizen reached age 18; and

All qualifying quarters worked by the spouse of such non-citizen during his/her marriage and the non-citizen remains married to such spouse or such spouse is deceased.

Thus, a non-citizen may earn a qualifying quarter by either working or by being credited with a qualifying quarter worked by another. The same quarter can be credited to the person who worked as well as other family members eligible to be credited with such quarter.

c. Who Can Be Credited With Work Quarters From Family Members

A non-citizen can be credited with qualifying quarters earned by other family members. The following guidelines must be used to determine which family members can contribute qualifying quarters to the non-citizen.

(1) A non-citizen who is married can be credited with work quarters worked, and any quarters worked by a spouse during the marriage. This applies so long as the non-citizen remains married to or separated from the spouse, or, if the spouse is deceased, was married to the spouse at the time of the spouse's death.

The non-citizen loses all of their spouse's work quarters when divorced. The loss of the spouse's quarters must be used to determine SNAP eligibility when eligibility is re-determined during the certification period.

(2) A non-citizen under age 18 can be credited with work quarters worked by both parents (including quarters earned prior to the child's birth), whether the parent is a non-citizen or not, and any of the non-citizen’s own quarters worked.

(3) A non-citizen over age 18 can be credited with work quarters worked by both parents (including quarters earned prior to the child's birth) before that non-citizen reached age 18, whether the parent is a non-citizen or not, and any of the non-citizen's own quarters worked.

d. Examples Of Crediting Quarters

(1) If a non-citizen has earned 20 qualifying quarters, and his spouse has earned 20 qualifying quarters over the same time span, that non-citizen can be credited with 40 qualifying quarters in as few as 5 years. If the spouse is also a non-citizen, the spouse can also be credited with 40 qualifying quarters.

If an LPR non-citizen is divorced from her husband, she cannot be credited with any of the qualifying quarters her former husband may have earned while they were married or since the divorce. If she qualified for SNAP benefits by being credited with qualifying quarters from her former spouse, she must have her

eligibility based on non-citizen status re-determined at the first recertification subsequent to the divorce.

If the LPR is separated, she would be credited with all of the quarters her spouse earned during the marriage and since the separation.

e. Qualifying Quarters and Federal Means-Tested Public Benefit

PRWORA established a special limitation on quarters worked after December 31, 1996. Quarters worked after December 31, 1996, do not count as qualifying quarters if the non-citizen receives any Federal means-tested public benefits during that quarter.

(1) Federal means-tested programs include only those programs which:
   (a) Include federal dollars, and

   (b) Establish eligibility for program benefits based on income or income and resources.

(2) This definition limits this prohibition to aliens who received assistance from one of the following programs during the quarter in question:
   (a) Federally participating public assistance (formerly ADC and EAF and now TANF and EAF),

   (b) Federal SNAP benefits,

   (c) Federally participating medical assistance, and

   (d) SSI benefits.

(3) Specifically excluded from the definition of Federal means-tested public benefits are:

   Medicaid for certain emergency care, short-term non-cash emergency disaster relief, school lunch assistance, WIC assistance, public health services for treatment of communicable diseases and immunizations, foster care and adoption assistance under IV-B and E of the Social Security Act if the foster/adoptive parent is a potentially eligible non-citizen, certain programs providing assistance to students for educational purposes, Head Start benefits, JTPA benefits, and assistance which the United States Attorney General will designate.

After December 31, 1996, a quarter in which the non-citizen received any Federal means-tested public benefit, as defined by the agency providing the benefit, or actually received SNAP benefits is not creditable toward the 40-quarter total.

Likewise, a parent's or spouse's quarter is not creditable if the parent or spouse

received any Federal means-tested public benefit or actually received SNAP benefits in that quarter.

The State agency must evaluate quarters of coverage and receipt of Federal means-tested public benefits on a calendar year basis. The State agency must first determine the number of quarters creditable in a calendar year, then identify those quarters in which the non-citizen (or the parent(s) or spouse of the non-citizen) received Federal means-tested public benefits and then remove those quarters from the number of quarters of coverage earned or credited to the non-citizen in that calendar year. However, if the non-citizen earns the 40th quarter of coverage prior to applying for SNAP benefits or any other Federal means-tested public benefit in that same quarter, the State agency must allow that quarter toward the 40 qualifying quarters total.

f. Income of Non-Citizens Ineligible for SNAP Due to Non-Citizen Status

Current policy describes when the income of a non-citizen who is ineligible to participate in SNAP due to non-citizen status is budgeted to determine the household's SNAP benefits.

See this section of the SNAPSB for instructions for determining household composition and Section 13 for instructions for budgeting the income of ineligible non-citizens. See SNAPSB Section 11 for instructions for budgeting deductions for households with ineligible non-citizens.

(1) If the non-citizen is an ineligible member of the SNAP household, that person's income must be prorated and a prorated share excluded as meeting the non-citizen's needs and the balance budgeted as available to the SNAP household. This applies to all non-citizens who are **mandated household members** (children age 18 to 22 with income and not in school and residing with their parents, parents of minor children and spouses) and non-citizens who purchase and prepare food in common with the rest of the household.

(2) If the non-citizen is not a mandated household member of the SNAP household, none of that non-citizen's income is budgeted.

(3) The PRWORA made it possible for a SNAP household member who is a non-citizen to be eligible for TA but ineligible for SNAP. In such situations, a pro-rata share of the household's TA income is excluded from SNAP income. The balance of the household's TA income is budgeted for SNAP purposes.

(4) In such situations, the household's SNAP benefits are calculated as follows:

   a. Divide the countable TA income evenly among the household members including the ineligible non-citizen.

   b. Subtract the ineligible non-citizen’s share from the total TA income and use the remainder as the TA income input on the SNAP budget.

c. Reduce the number of SNAP household members by the number of ineligible(s) living with the household.

Example 1: Suppose a single mother who is a permanent resident has 2 children, both of whom are U.S. citizens. She applies for TA and SNAP for herself and her children. She entered the U S as a permanent resident in March of 2011 and cannot be credited with 40 qualifying quarters. The mother and children are eligible for TA and receive a TA grant of $450 a month. However, only the children are eligible for SNAP benefits.

To determine SNAP entitlement, the household's TA grant is prorated. One-third ($150) is excluded as meeting the mother's needs and two-thirds ($300) is budgeted in determining the SNAP benefits for the 2 SNAP eligible children.

Example 2: Suppose the mother's boyfriend, who is also an ineligible non-citizen, moves in with the family. He is not the father of either child. He states that he does not purchase and prepare in common with the mother and her children and the district determines he is not part of the mother's SNAP household.

The boyfriend's income is not considered in determining the children's SNAP entitlement.

Example 3: Suppose the boyfriend in example #2 is the father of one of the children or states that he purchases and prepares food in common with the mother and the children. His income is then prorated, and a prorated share is budgeted as available to the children.

If his countable income is $400 a month, the district would divide his income by 4, the number of individuals in the household. His prorated share is $100, the mother's share is $100. The balance, $200, is budgeted as available to the children.

g. Systems Support For Budgeting TA Only Cases

On Upstate ABEL, workers must remember, after using Function Key 8 from a TA budget, to:

(1) Reduce the number in the SNAP household by 1 (or however many ineligible non-citizens there are in the household) and

(2) Reduce the countable TA grant brought over to the SNAP Input screen by ABEL, by the non-citizen's pro-rata share of the countable TA grant.

h. Systems Implications

CNS language has been modified to reflect the alien provisions of PRWORA for the following SNAP individual reason codes:

(1) F92, Ineligible Non-Citizen, and

(2) F85 and F86, Failure to Verify Non-Citizen Status

i. Documentation

At the time of application or recertification for SNAP all individuals are required to certify in writing, under the penalty of perjury, that they are a United States Citizen, Native American, U.S. non-citizen National of the United States or a non-citizen with a satisfactory immigration status.

Non-Citizen applicants must provide a USCIS document as evidence of a satisfactory immigration status for benefit eligibility. The amendments made by Section 121 of the Immigration Reform and Control Act (IRCA) of 1996 require a further step to verify the validity of the immigration document presented by the applicant. The Systematic Alien Verification for Entitlements (SAVE) provides a re-verification of the non-citizen's documented immigration status against the United States Citizenship and Immigration Service's (USCIS) Verification Information System (VIS) files to confirm the accuracy of the non-citizen documented immigration status established during application processing. SAVE is not intended to verify the applicant's statement regarding his/her immigration status in lieu of documentation, nor does it shift the responsibility for establishing satisfactory immigration status from the applicant to the district.

NOTE: For information regarding expired or lost immigration documents see 03 INF-19 Expired or Lost Immigration Documents

j. Declaration of Citizenship/Immigration Status

1. One adult representative of a SNAP household must, as a condition of eligibility, attest to the citizenship/non-citizen status for all SNAP applicant/recipients.
   a. For applicants this declaration is found on page five, section ten of the LDSS-2921 - Application for Certain Benefits and Services .
   b. For recipients this declaration is found on page five, section nine of the LDSS-3174 - Recertification Form for Certain Benefits and Services.
   c. For NTA-SNAP applicants and recipients this declaration is found on page seven, section nine of the LDSS-4826 – Supplemental Nutrition Assistance Program (SNAP) Application/Recertification
2. Exemptions - The following are the only situations which do not require completion of a declaration.

a. An applicant/recipient (A/R) of MA or SNAP whose eligibility is established as a result of a separate determination process, and a completed declaration is already on file at the district;

b. An SSI A/R who has applied for SNAP at a Social Security Administration (SSA) Office using the national application for SNAP [form FNS-385 (7-87)] since this application already includes the necessary declaration.

3. Failure or Refusal to Sign - Since the declaration of citizenship/immigrant status is accomplished when the last page of the application is signed; failure to sign is synonymous with failure to sign an application for SNAP. The only exception to this is if the applicant had signed page one of the application establishing a filing date and then does not sign the last page of the application. In such cases the application is denied for failure to cooperate.

   For TA/SNAP and mixed cases, individuals sanctioned from TA for failure to sign the declaration must be included in the SNAP household if otherwise eligible, if the general declaration on the last page of the application has been signed by any adult household member, or by an authorized representative.

For examples of documentation which a non-citizen may present see the following resources:

- LDSS-4579 Non-Citizen Eligibility Desk Aid
- http://www.uscis.gov/i-9-central/acceptable-documents/list-documents

k. Lack of Documentation

Application For Verification - If the USCIS form I-94 does not contain the proper documentation and the non-citizen has no other verification of non-citizen classification in his or her possession, the district shall advise the non-citizen to submit form G-641, Application for Verification of Information from Immigration and Naturalization Service Records, to USCIS. Districts shall accept this form when presented by the alien and properly annotated at the bottom by an USCIS representative as evidence of lawful admission for permanent residence or parole for humanitarian reasons.

Contacting USCIS- The non-citizen shall also be advised that:

1. Classification under Section 207, 208, 212(d)(5), or 243(h) of the Immigration and Nationality Act shall result in eligible status;

2. He/she may be eligible if acceptable verification is obtained; and

3. He/she may contact USCIS, as previously stated, or otherwise obtain the necessary verifications, or if the non-citizen wishes and signs a written

consent that the district will contact USCIS to obtain clarification of the non-citizen's status.

4. If he/she does not wish to contact USCIS, the household may withdraw its application or participate without that member.

   Obtaining Other Acceptable Verification - If an non-citizen is unable to provide any USCIS document (not even an INS form I-94), then the district has no responsibility to offer to contact INS on the non-citizen's behalf.

   The district's responsibility exists only when the non-citizen has an INS document that does not clearly indicate eligible or ineligible status. In any event, the districts shall not contact INS to obtain information about the non-citizen's correct status without the non-citizen's written consent.

   If the proper USCIS documentation is not available, the non-citizen may state the reason and submit other conclusive verification. The district shall accept other forms of documentation or corroboration from USCIS that the non-citizen is classified pursuant to Section 101(a)(15), 101(a)(20), 207, 208, 212(d)(5), 243, or 249 of the INA, or other conclusive evidence such as a court order stating that deportation has been withheld pursuant to Section 243(h) of the INA.

   Note: see the LDSS-4579 Non-Citizen Eligibility Desk Aid for a description of the types of documentation that may be presented for confirmation of status.

I. Status While Awaiting Verification

A non-citizen is ineligible until acceptable documentation is provided **unless**:

1. The State agency has submitted a copy of a document provided by the household to USCIS for verification. **Pending such verification, the State agency cannot delay, deny, reduce or terminate the individual's eligibility for benefits on the basis of the individual's immigration status**; or

2. The applicant or the State agency has submitted a request to SSA for information regarding the number of quarters of work that can be credited to the individual, SSA has responded that the individual has fewer than 40 quarters, and the individual provides documentation from SSA that SSA is conducting an investigation to determine if more quarters can be credited. **If SSA indicates that the number of qualifying quarters that can be credited is under investigation, the State agency must certify the individual pending the results of the investigation for up to 6 months from the date of the original determination of insufficient quarters**; or

3. The applicant or the local district has submitted a request to a Federal agency for verification of information which bears on the individual's eligible non-citizen status. **The local district must certify the individual pending the results of the investigation for up to 6 months from the date of the original request for verification.**

The local district must provide alien applicants with a reasonable opportunity to submit acceptable documentation of their eligible non-citizen status as of the 30th day following the date of application. A reasonable opportunity must be at least 10 days from the date of the local districts request for an acceptable document. When the local district fails to provide a non-citizen applicant with a reasonable opportunity as of the 30th day following the date of application, the local district must provide the household with benefits no later than 30 days following the date of application, provided the household is otherwise eligible.

m. Other Ineligible Non-Citizens

Unless listed above, non-citizens are ineligible to participate in the program as a member of any household.

Among those ineligible to participate are non-citizens who are:

- Visitors;
- Tourists;
- Diplomats; and
- Students on a temporary visa with no intention of abandoning their residence in a foreign country.

n. Illegal Non-Citizens

The Welfare Reform Act of 1997 established that each district must report to OTDA the name and address and other identifying information known to it with respect to any non-citizen known to be unlawfully in the United States.

OTDA has identified two specific conditions which definitively establish that a non-citizen is unlawfully present. Accordingly, the report of "Aliens Unlawfully in the United States: Attachment IX to 97 ADM-23 - Public Assistance (Family Assistance/Safety Net Assistance) Changes Resulting From The Welfare Reform Act of 1997, should only include non-citizens who meet either of the following two conditions:

1. Non-Citizens with a final INS Order of Deportation outstanding. An outstanding order of deportation is final when it is not subject to appeal, either because:

   a. The relevant statutory appeal period (10 days) has expired,

   b. There are no lawful grounds upon which an appeal may be based, or,

   c. The available administrative and/or judicial appeals have been exhausted and the order is not subject to review under the limited standards for reopening or reconsideration.

2. Non-Citizens for which the SAVE response to an electronic or a manually submitted INS G-845, (Document Verification Request) indicates that the person has submitted false immigration documents to the district.

   When either of the above situations is applicable to an applicant or recipient of temporary assistance (FA or SNA), you should submit the name(s) and address(es) of the individual(s), along with identification of the documentation establishing their being unlawfully present in the U.S., including copies of the documentation, when possible, to:

   NYS Office of Temporary and Disability Assistance
   Division of Temporary Assistance - 9th Floor
   40 North Pearl Street, Albany, N Y 12243

   This information should be provided on a copy of the revised reporting form, "Aliens Unlawfully in the United States" Attachment IX to 97 ADM-23. You should submit the form within 10 days from the end of any month in which you identify "reportable" non-citizens.
   NOTE: There are no reporting requirements for MA or SNAP. When an applicant is checked as being only for MA and/or SNAP, you should not include them on the report.

3. Districts should refer any non-citizen requesting TA benefits who fails to furnish evidence that he or she is lawfully residing in the United States to the INS office, or the nearest consulate of the country of the applicant or recipient. Referral means informing the non-citizen of the location of the nearest INS office or the nearest consulate and advising the non-citizen that proper documentation should be secured. The proper documentation is required if you are to proceed with the processing of their TA application to determine what, if any, benefits the non-citizen would be eligible to receive.

References:

387.9(a) Investigation and Eligibility

273.4 Citizenship and Alien Status

38 USC 5303 A (d) Minimum Active Duty Service Requirement

03 ADM-1 Eligibility of Alien Victims of Severe Forms of Trafficking in Persons

02 ADM-7 Food Stamp Program Reauthorization Changes

97 ADM-25 - Food Stamp Eligibility of Non-Citizens

97 ADM-23, Attachment IX Public Assistance (Family Assistance/Safety Net Assistance) Changes Resulting from The Welfare Reform Act of 1997

92 ADM-10 - Requirement for Declaration of Citizenship/Immigration Status - Change in Food Stamp Requirement

03 INF-19 - Expired or Lost Immigration Documents

99 INF-17 - Reporting of Aliens Known to be Unlawfully in the United States

99 INF-11 - Potential Eligibility for Food Stamps: Hmong and Other Highland Laotian Tribe Members

91 INF-48 - Policy Clarification Regarding Aged, Blind or Disabled Aliens Under the Immigration and Nationality Act (INA)

90 INF-15 - Revisions to "Notice of Acceptance/Denial of Request for Assistance to Meet an Immediate Need or Special Allowance" (DSS-4002)

GIS 03 TA/DC012 Alien/Citizenship Indicator “D” Alien Victims of Severe Forms of Trafficking in Persons

96 LCM-86 - Federal Welfare Reform: Food Stamp Eligibility of Aliens

03 INF-14 Food Stamp Program Eligibility for Aliens

04 ADM-4 Refugee Cash and Medical Assistance Programs (RCA & RMA)

05 ADM-1 Refugee Cash and Medical Assistance Programs (RCA & RMA)

07 INF-15 LDSS-4579: “Alien Eligibility Desk Aid” (Revised 10/07)

04 ADM-8 Expansion of Eligibility of Alien Victims of Severe Forms of Trafficking in Persons

99 ADM-2 Alien Sponsorship - Deeming of Sponsor's Income and Resources

06 INF-14 Battered Aliens Eligibility for Benefits

07 INF-6 Revisions to the LDSS-4148A - What You Should Know About Your Rights and Responsibilities (When Applying For or Receiving Social Services)

13 ADM-7 Systematic Alien Verification for Entitlements (SAVE) Program: Replacement of Manual Form G-845(Document Verification Request) with Verification Information System Web-3 Access

L. Students

1. Definitions

a. Student - A student is any individual who is enrolled at least half-time in an institution of higher education (including on-line courses and correspondence schools), excluding high school and on the job training programs.

b. Institution Of Higher Education - Any institution which normally requires a high school diploma or equivalency certificate for enrollment including, but not limited to, colleges, universities, and vocational or technical schools at the post high school level. (The Institution of Higher Education determines whether or not a high school diploma or equivalency certificate is necessary for enrollment.)

2. Student Eligibility Exemption Criteria

In order to participate in the SNAP a student must meet one of the following exemption criteria:

a. Are under age 18 or age 50 or older

b. Have a physical or mental disability

c. Work an average of at least 20 hours a week in paid employment
The district should determine the weekly average using the hours worked during the 4 weeks prior to the date of application or re-application (recertification).

Example:

- Prior week 1 – 16 hours worked
- Prior Week 2 – 21 hours worked
- Prior Week 3 – 25 hours worked
- Prior Week 4 – 24 hours worked

86 total hours worked in past 4 week/4 = 21.5 average hours per week.

If the number of hours worked during the prior 4 week period does not provide an accurate indication of the number of hours to be worked weekly, district may use a longer period than just the past 4 weeks, such as the past 8 weeks, to gain a more accurate indication of the weekly hours being worked.

If the hours that will be worked during the new certification period will be different from the hours worked during the prior 4 weeks, then the anticipated number of hours to be worked should be used to determine the average hours worked. If the exact amount of the anticipated hours to be worked is

not known, that portion that can be determined with reasonable certainty should be used.

d. Be **self-employed** for at least an average of at least 20 hours per week, **and** receive weekly earnings at least equal to the hourly **Federal minimum wage** multiplied by 20 hours

SCENARIO 1:
James Smart is a full-time student applying for food stamp benefits. He is employed by a local supermarket for an average of 12 hours per week stocking shelves. Because these are paid employed hours, these hours count toward his total weekly average.

He also works on average, 10 hours per week building websites for customers. He has been making, on average, $50 per week on his website work. This averages out to $5/hour. This is below the current federal minimum wage of $7.25/hour. Therefore, these hours do not count toward James's weekly employment hours.

James has an average of 12 hours of eligible paid employment per week, and therefore **does not** meet this criteria for student eligibility.

SCENARIO 2:
James Smart is a full-time student applying for food stamp benefits. He is employed by a local supermarket for an average of 12 hours per week stocking shelves. Because these are paid employed hours, these hours count toward his total weekly average.

James also earns an average of $100/week for 10 hours of self-employed work building websites, which equals an average hourly wage of $10, which is above the federal minimum wage of $7.25. Therefore these hours would count toward James's weekly employment hours.

James has an average of 22 hours of eligible paid employment per week (12 hours at the supermarket and 10 hours building websites), and therefore, he meets the criteria for student eligibility.

e. Participate in a State or federally financed work study program during the regular school year as follows;

(1) The work study must be approved at the time of application for SNAP or at the time that the individual becomes a student as defined by SNAP rules, and
(2) The work study must be approved for the school term; and
(3) The student must actually anticipate working during that time.

f. Participate in an on-the-job training program

g. Care for a child under the age of 6

h. Care for a child age 6 to 11 and lack the necessary child care enabling you to attend school and work 20 hours or participate in a work study

i. Are a single parent enrolled full-time in college and taking care of a child under 12

j. Receive Temporary Assistance for Needy Families

k. Be enrolled as a result of participation in the Job Opportunities and Basic Skills program under Title IV of the Social Security Act or its successor program

l. Are assigned to, placed in, or self-placed in a college or other institution of higher education through:
   (1) A SNAP Employment and Training (SNAPE&T) program
   (2) Certain other E&T programs for low-income households, which are operated by a state or local government and have an equivalent component to SNAP E&T
   (3) A program under Workforce Innovation and Opportunity Act (WIOA)
   (4) A Trade Adjustment Assistance Program under Section 236 of the Trade Act of 1974

m. Attend a SUNY or CUNY comprehensive college, technology college, or community college and are enrolled in a qualified career and technical education program.

n. Attend any of the 10 Educational Opportunity Centers (EOC) in New York State and are enrolled in a career and technical education program, remedial course, basic adult education, literacy, or English as a second language

The qualifying exemption begins in the month that the school term begins or the month that the work study is approved, whichever is later. The qualifying exemption continues until the end of the school term or until the district becomes aware that the student has refused an assignment.

The exemption does not continue between terms when there is a break of a full month or longer unless the student is participating in work study during the break. In order to be eligible for SNAP during a school break, an individual who is defined as a student by SNAP rules and is otherwise eligible must meet one of the other exemptions outlined in this section.

NOTE: An applicant or recipient age 18 through 49, physically and mentally fit, enrolled at least half-time in an institution of higher education and in receipt of UIB is considered to be an eligible student for SNAP purposes, if the Department of Labor (DOL) has approved their program. If approved, the student will have a received a TCC 316.1 document and can request copies of this document by calling DOL, Special Programs Unit at 518-402-0189.

NOTE: A student who participates in a meal plan providing less than the majority of the student's monthly meals is not considered a resident

of an institution. If the student also meets the eligible student criteria and is otherwise eligible, the student is allowed to receive SNAP benefits.

In situations where the number of meals to be consumed by the student is unclear due to the optional nature of the meal plan, the applicant must state the number of meals that are anticipated to be consumed on and off the meal plan. If the majority of meals stated are off the plan for the month, the student may be considered for participation on SNAP. In these cases, the student /SNAP recipient should be reminded of the obligation to report changes to the district, particularly with regard to changes in the number of meals to be consumed on the plan.

3. Ineligible Student

a. For treatment of income of an ineligible student see SNAPSB Section 13.
b. For treatment of resources of an ineligible student see SNAPSB Section 17.

4. School Enrollment

The enrollment status of a student shall begin on the first day of the school term of the institution of higher education. Such enrollment shall be deemed to continue through normal periods of class attendance, vacation, and recess, unless the student graduates, is suspended or expelled, drops out or does not intend to register for the next school term (excluding summer school).

References:

387.16 Special Provisions for Household Circumstances

273.5 Students

09 ADM-08 Participation in Food Stamp Program by Students in Institutions of Higher Education

95 INF-22 Students on Meal Programs and Eligibility of Students in Campus Housing

12 INF-14 Supplemental Nutrition Assistance Program Policy – Student Eligibility (Replaces 11-INF-06)

20-ADM-13 - Supplemental Nutrition Assistance Program Eligibility for Students Enrolled in a Program of Career and Technical Education or Qualified Educational Opportunity Center Program

22TA/DC073 - Reminder: Treatment of Meal Plans at Institutions of Higher Education

M. Employment Registration

For implications regarding initial eligibility see the SNAP Employment Policy manual.

Reference:

387.9 Investigation and Eligibility

SNAP Employment Policy Manual

N. Social Security Numbers

1. Requirement For Participation

a. All households applying for or participating in the SNAP shall provide the Social Security Number (SSN) of each household member or apply for one before certification.

Disqualification of the individual from participation in the SNAP is a consequence of a refusal to apply for or to provide the SSN. Applying for or providing the SSN to the district immediately brings the disqualified individual into compliance with this requirement.

NOTE: If individuals have more than one number, all numbers shall be required.

b. SNAP household members who refuse to provide or apply for an SSN because of a valid religious belief are not to be disqualified from SNAP participation. They are to be included as SNAP household members if otherwise eligible. Documentation must clearly be recorded in the case file if household members indicate they refuse to provide or apply for a SSN because of a valid religious belief. This documentation may include obtaining written or verbal confirmation from the religious organization the individual is a member of that providing of an SSN by its members is in conflict with its religious doctrine.

   a. TA regulations do not allow a waiver from the requirement to provide or apply for an SSN based on religious beliefs. Such TA households, if otherwise SNAP eligible, would be processed for SNAP as a mixed household including the non-TA SSN religious objector as a SNAP household member.

   b. Social Security Number Code "4-SSN Not Applied For" is to be entered on the WMS case record for household members that refuse to provide or apply for an SSN because of religious belief.

2. Obtaining SSN's For SNAP Household Members

a. For those individuals who provide SSNs prior to certification, recertification or at any office contact, the district shall record the number and verify it in accordance with this section.

b. Those individuals who do not have an SSN, are unsure if they have one, or are unable to find it should be referred to a Social Security Administration (SSA) Field Office (FO). The district shall inform the household where to apply and what information will be needed. The district shall require proof of application.

   a. Effective August 1, 2014, SSA FOs no longer provide print outs of SSN. If an applicant or recipient needs to provide documentation that they have applied for a new replacement, or corrected SSN they can apply through

the SSA account portal at www.socialsecurity.gov/myaccount, the national toll-free number 1(800)772-1213 or at a SSA FO.

b. If the individual applies at a Field Office, the SSA representative will provide the applicant/recipient with a SSA-5028 “Receipt for Application for a Social Security Number”. This receipt is documentation that the individual has complied with applying for a new, replacement, or corrected SSN.

c. If an individual wishes to apply at the SSA office,

d. Any person who is foreign born and applying for either a new Social Security card or a replacement must be referred to SSA for enumeration.

NOTE: Districts should not take an SS-5 from, or refer to SSA, an undocumented immigrant who will be denied benefits or whose benefits will be terminated.

e. Any person who is 18 years of age or older and applying for an original SSN must be referred to SSA for enumeration. Parents/caretakers must apply at the local SSA field office for an original SSN for children under 18.

f. Enumeration At Birth Program
Many hospitals are participating in this program whereby the hospital files an SS-5 (Application for an SSN) for the newborn. A revised federal form SSA-2853, "Information About When You Will Receive Your Baby's Social Security Card", when signed and dated by a hospital official, is acceptable verification that the household has applied for an SSN for the newborn, if the district has other information that connects the child named to a member of the household, e.g., the name of the mother which may be obtained from the hospital, birth document, a birth certificate, or other reliable information.

NOTE: WMS report - WINR-5129 - Newborns With No Social Security Number on WMS - has been developed to serve as a reminder to workers to pursue a Social Security Number for each newborn listed. The report will list any individual born in the previous month with no Social Security Number on WMS. The report will include a district page plus a Unit/Worker page.

In order to properly utilize this report, as well as assure the most complete and accurate data, workers must be prompt in adding newborns to the SNAP household and entering them on WMS.

This report along with the WINR-5126-Individuals With Incorrect or no Social Security Number on WMS - will ensure that SSN's have been obtained and verified for all SNAP household members.

3. Failure To Comply

If the district determines that a household member(s) has refused to provide or apply for an SSN, then the individual without the SSN shall be ineligible to participate in the SNAP. The disqualification applies to the individual(s) for whom the SSN is not provided and not to the entire household.

The disqualified household member(s) may become eligible upon providing the district with an SSN or proof of application for an SSN. The income and resources of an individual disqualified from the household for failure to comply with this requirement shall be handled as set forth in SNAPSB Section 13 and Section 17.

4. Use Of SSNs

The district is authorized to use SSNs in the administration of the SNAP. Social Security numbers shall be used to:

a. Verify information regarding SNAP applicants and participants who receive SSI benefits. The State Data Exchange (SDX) shall be used to the greatest extent possible.
b. Prevent duplicate participation.
c. Facilitate mass changes in Federal benefits.
d. Determine the accuracy and/or reliability of information given by households.

References:

387.9(a) Investigation and Eligibility

273.2 (f) (1) (v) Office operations and application processing

273.6 Social Security Numbers

90 ADM-23 Changes in Social Security Number Policy

99 INF-7 Amended State Version of Federal Form SS-5 "Application For A Social Security Card"

GIS Message (14 TA/DC027) Changes to the Services Provided by Social Security Offices

O. Validation of Social Security Number

1. WMS SSN Validation Process

a. The WMS SSN Validation process is used to validate SSNs through SSA. All SSNs entered on WMS/MyWorkspace with a SSN Code 1 (SSN present) will be sent by OTDA to SSA to match Social Security number information on a regular basis.

b. If an applicant or a household member does not have a Social Security number and has applied for one, the SSN Code 2 (SSN Applied For) is entered into WMS/MyWorkspace. When the individual provides their SSN, the worker must change the SSN Code 2 to SSN Code 1 to start the validation process.

c. When the SSN match results are received from SSA, the SSN Code field on WMS will be automatically updated. Additionally, to assist districts in ensuring that SSNs are present and accurate in WMS, system-generated management reports are available through the Benefit Issuance Control System (BICS).

d. If the individuals SSN passes the validation process, the SSN Code of 1 will be automatically updated to a SSN Code of 8 (SSA Validated SSN). If the individual's SSN fails the validation process, the SSN Code of 1 will be automatically updated to a SSN Code indicating the SSN failed the validation process and the worker must investigate why the validation failed. If the worker finds that information was incorrectly entered into WMS/MyWorkspace, they should correct the information. Otherwise, the applicant must contact their local SSA office to apply for a correct SSN.

2. Actions To Be Taken As A Result Of Matches

The results of matches between OTDA and SSA will be transmitted by OTDA to districts in two ways:

a. SSN Is Validated - If the SSN is validated via the match, WMS/MyWorkspace will automatically be updated and a new "Code 8 - SSA SSN Validation" will appear in the SSN field. No further action is needed on these cases.

b. SSN Fails Validation - If the SSN fails validation:

(1) "Code 9 - SSN Failed SSA Validation" will appear on the SSN field on WMS on appropriate inquiry screens and MyWorkspace summary and individual tabs.

(2) OTDA will transmit a new report, WINR 9311, "The Social Security Number Validation Report" to districts which will contain a list of cases that failed validation and the reasons for the discrepancies.

(3) Separate reports will be sent to each program area, TA, MA, SNAP and Services. It should be noted that only cases highest in the WMS case type hierarchy will be reported on the exception report when there is a multi-case involvement. The hierarchy is: TA, MA, SNAP and Services. For example, a TA/MA/SNAP case will be reported on the TA report, while an MA /SNAP case will be reported on the MA report. This will require coordination at the local level between program areas.

3. Resolving Error Messages

a. Upon receipt of the WINR 9311, districts must examine the report and take appropriate action on each of the cases. The following error messages will be generated for SSN's which fail validation. These messages are stated specifically on the report in the "message" column.

- SSN is not on SSA file
- Name matches, date of birth (DOB) matches, sex code does not match
- Name matches, sex code matches, DOB does not match
- Name matches, DOB and sex codes do not match
- Name does not match, DOB and sex codes not checked

b. The district shall be responsible for resolving any discrepancy by checking the information received from the applicant/recipient with the information on the WMS data base. This may require contacting the individual for additional information. After correcting the discrepancy, the worker must change the SSN Validation code field in the WMS data base to Code 1 (SSN present) which will allow the SSN to be validated at the next update.

c. This review must be completed no later than the next client contact. (Next client contact includes mail-in recertifications.) Districts should annotate the case record when there is a change made to the name, sex or DOB and the case is recorded as code 1. This will remind the worker what the original match data was in the event that the second validation match is returned with another discrepancy. This procedure will avoid re-entering "bad" demographic data.

4. Resolving Discrepancies

When resolving discrepancies, the following actions must also be taken in the situations outlined below:

a. Incorrect SSN - If the information on file at SSA is incorrect, a new SS-5 (Application for Social Security Number) must be completed as this is

SSA's procedure for correcting information on their files. Additionally, if the error message indicates that the SSN is not on file at the SSA, a new SS-5 must be completed. A number that has been assigned by the enumeration process (Code 7) does not have to be validated again.

b. Name Does Not Match - If the message/error indicates that the name does not match and further investigation indicates that the name on file with SSA is not the same name known by social services, the worker must inform the applicant/recipient that he/she must use the same name for both programs. The individual has the right to decide which name he/she wants to be known by. If he/she chooses to change his/her name with SSA, a new SS-5 must be completed indicating the new name.

c. Multiple SSN's - Occasionally, an individual will submit more than one SSN and indicate that they all belong to him/her. Such individuals should be referred to the local SSA office. SSA will cross-reference the multiple numbers and advise the applicant which SSN should be used. However, SSA cannot cancel a number that has been assigned.

5. Refusal To Cooperate In Completion Of An SS-5 To Resolve An SSN Validation Discrepancy

a. Refusal of a SNAP household to cooperate in completion of an SS-5 to resolve an SSN validation discrepancy shall result in the SNAP case being terminated.

If one member of the household refuses to cooperate in the validation process, the district must determine if there is another household member who is able and is willing to cooperate in resolving the discrepancy before terminating the household. Such households subject to termination are to be issued a timely notice of adverse action informing them that their SNAP benefits are being terminated for refusing to cooperate in furnishing correct information to enable the district to verify a household member's SSN.

b. A household that has been terminated for failing to cooperate in resolving an SSN validation discrepancy may reapply for SNAP benefits but will not be eligible until they cooperate in resolving the SSN discrepancy.

6. WMS Implications

All active individuals on the WMS system with SSN Code "1 - SSN Present" will be selected for validation with SSA's automated validation/verification system. Two WMS SSN codes have been developed for this process. Code "8 - SSN SSA Validation" and Code "9 - SSN Failed SSA Validation". Both of these codes will be system-generated on WMS by the SSN Validation process.

a. Code 8 - SSN SSA Validation - When the SSN entered on WMS/MyWorkspace matches SSA's record, and when the name, sex and date of birth similarly correspond to SSA's record, Code "8 - SSN SSA Validation" will be system-generated on the WMS/MyWorkspace case record, overlaying the current SSN code. Code 8 - SSN SSA Validation can be entered by the worker when it

appears on the WMS Clearance Report and is used in conjunction with a CIN number at subsequent case openings and re-openings.

WMS Code 8 (SSN SSA Validation) satisfies the federal QC requirement for social security number validation. Code 8 in the SSN-CD field on screen 2 is sufficient documentation for QC purposes. Although no error will be cited when a number is coded 8, whenever available the districts should keep a copy of the social security card in the permanent documentation file. At case openings and recertification eligibility workers should check to make sure the names and SSN's of applicants/recipients match those on WMS. This will ensure the accuracy of any automated matches.

b. Code 9 - SSN Failed SSA Validation - When either the SSN fails to match SSA's record, or the name, sex or date of birth associated with the SSN fails to correspond to SSA's record, Code "9 -SSN Failed SSA Validation" will be system-generated on the WMS/MyWorkspace case record, overlaying the current SSN code.

NOTE: WMS/MyWorkspace prohibits a change to an SSN for an individual currently having an SSN Code of "8 - SSN Validation" and will require a change from an SSN Code of "9 - SSN Failed SSA Validation" to Code "1 - SSN Present" whenever a demographic change is made to name, sex, date of birth, or SSN.

7. WINR 9311 "The Social Security Number Validation Report"

This report is produced after each match with SSA and contains three parts:

a. Part I - SSA Rejections - This part lists all the individuals whose SSN or demographics mismatch the SSA files.
b. Part II - WMS Rejections - This part lists any individuals who were unavailable for update on WMS, e.g. SSN was changed while the original SSN was being sent for SSA validation.
c. Part III - WMS Updates for SSN Validation - This part contains the total number of SSNs validated.

Reference:

90 ADM-23 Changes in Social Security Number Policy

99 INF-7 Amended State Version of Federal Form SS-5 "Application For A Social Security Card"

15TA/DC035 Validation of Social Security Numbers

14 INF 05 Resource File Integration (RFI) Policy and Procedures

P. Transfer of Resources

Households which have transferred resources knowingly for the purpose of qualifying or attempting to qualify for SNAP benefits shall be disqualified from participation in the program.

See SNAPSB Section 17 for specific provisions on the transfer of resources.

Reference:

387.9(a) Investigation and Eligibility

273.8 (h) Resource Eligibility Standards

Q. Household Cooperation

1. Household Cooperation

A household applying for SNAP benefits must cooperate in the eligibility determination process. The eligibility determination process requires that the application form be completed and signed, the household or its authorized representative be interviewed, and certain information on the application be verified. To designate an authorized representative, the applicant must do so in writing. This can be done using the application or recertification application form or the LDSS – 4942 Supplemental Nutrition Assistance Program (SNAP)Authorized Representative Request Form, although any written designation is sufficient.

a. If a household refuses to cooperate in completing the eligibility determination process, the application must be denied at the time of refusal. A household has refused to cooperate when the household is able to cooperate, but clearly demonstrates that it will not take actions that are required to complete the application process. The failure of a household to appear at a scheduled interview does not constitute a refusal to cooperate unless the household has clearly refused to be interviewed. ***If there is any question as to whether the household has merely failed to cooperate, as opposed to refused to cooperate, the household's application must not be denied.***

b. A household's eligibility must be terminated if it refuses to cooperate with any subsequent review of its eligibility, including reviews generated by reported changes in circumstances and applications for recertification.

c. A household whose eligibility has been denied or terminated for refusal to cooperate may reapply for SNAP benefits. Such household must not be determined eligible until it cooperates in completing the eligibility determination process.

(1) A household receiving SNAP benefits or reapplying for SNAP benefits must cooperate with any quality control review of its current or previous SNAP eligibility. A household refusing to cooperate in a quality control review must be determined ineligible to receive SNAP benefits. Quality control reviews are conducted by NYS OTDA Audit and Quality Improvement staff.

d. A SNAP household cannot be denied for failure to cooperate with a FEDs interview.

e. A household whose eligibility has been terminated for refusal to cooperate with a quality control review may reapply for SNAP. Such household must not be determined eligible until it cooperates in the quality control review.

f. A household cannot be denied SNAP for its refusal to cooperate in a quality control review if:

(1) The household was terminated for refusing to cooperate with a quality control review during the completed quality control review period; and

(2) The household reapplied for SNAP more than 125 days after the end of the annual review period, if it was terminated for refusal to cooperate with a State quality control review, or
(3) The household reapplies more than nine months after the end of the annual review period, if it was terminated for refusal to cooperate with a federal quality control review; and

(4) The household provides verification of its eligibility for SNAP in accordance with this section.

g. TA QC Reviews - Because a QC review of the TA case does not include a review of the same household's SNAP case, State regulation 387.9(a)(7)(ii) will not support the closing of the SNAP case when the federal sample TA case is closed for failure to comply with QC.

h. Automated Finger Imaging System (AFIS) Supplemental Nutrition Assistance Program:
As of November 1, 2012, districts are prohibited from finger imaging any member of a household applying for or receiving SNAP benefits for any purpose related to SNAP. Effective November 1, 2012, all SNAP Automated Finger Imaging System (AFIS) Plans of Operation submitted by any and all districts are hereby null and void.

NOTE: Temporary Assistance:

Districts must continue to follow current TA policy regarding finger imaging. Members of households who are jointly applying for or jointly receiving TA benefits and SNAP benefits must continue to be finger imaged for TA purposes.

However, if a person or case is being denied benefits for TA due to a failure or refusal to be finger imaged, a separate determination for SNAP eligibility must be done. Further, if an active TA case is being closed due to the failure or refusal of a TA case member to be finger imaged, a separate determination of SNAP eligibility must be done, including an assessment of eligibility for Transitional Benefits Alternative (TBA) SNAP benefits. If an individual is being removed from a TA case due to a failure or refusal to be finger imaged, a separate determination of SNAP eligibility must be done for the SNAP household.

References:

387.9 Investigation and Eligibility

273.2 (d) Office operations and application processing

12-ADM-08 Elimination of Finger Imaging Requirements for Purposes of the Supplemental Nutrition Assistance Program (SNAP)

92 ADM-41 Quality Control Reviews: Penalty for Non-Cooperation

04 LCM-11 AFIS Plan / Exemptions for FS Finger Imaging

05 ADM-08 Front End Detection System (FEDS) Policy

R. Income

Income for household SNAP calculations shall mean all income, earned and unearned, from whatever source, as provided for and explained in SNAP SB Section 13.

Reference:

387.10(b) Income Standards

S. Resources

Non-categorically eligible household's available resources at the time the household is interviewed shall be used to determine the household's eligibility.

See SNAP SB Section 17 for complete resource provisions.

Reference:

387.14(d) Initial Eligibility

09 ADM-06 Expansion of Categorical Eligibility for Food Stamps for Households with Out-of-pocket Dependent Care Expenses

07 ADM-09 Categorical Eligibility for Food Stamps

12 INF-12 Pub-4916 (Rev 12/11): Helping Hands for People in Need Brochure no longer required

T. Institutions

1. Eligibility Of Residents

Definition - Residents of institutions are those individuals who are provided the majority of their meals (over 50% of three meals daily) as part of the institution's normal service.

Residents of institutions cannot participate in the SNAP.

a. Exceptions

1. Residents Of Housing For The Elderly - This is housing built under:
   (a) Section 202, Housing Act of 1959 (provides housing for persons 62 years or older or handicapped persons),

   (b) Section 236, National Housing Act (provides housing for lower-income families including, but not limited to, the elderly and handicapped).

   NOTE: Any facility built after April 1, 1987 will not be authorized by Housing and Urban Development to provide mandatory meals. Therefore, these facilities will not be classified as institutions and residents will be eligible as regular SNAP applicants.

   Only elderly people in these facilities (where 50% of meals are provided) are eligible to participate in SNAP. However, residents may not be required to use their SNAP benefits to pay for their meals but may elect to do so or may be required to use cash.

2. Residents Of Drug Addiction Or Alcoholic Treatment And Rehabilitation Facility - Drug addiction or alcoholic treatment and rehabilitation facility is a facility operated by a private, non-profit organization or is a publicly operated community mental health center. Any drug addiction or alcoholic treatment facility must either be authorized as a retailer by the United States Department of Agriculture (USDA) or be eligible to receive funds under Part B of Title XIX of the Public Health Service Act (42 U.S.C. 300x et seq.) even if it does not actually receive such funding. Private, non-profit facilities must also be certified by the New York State Office of Alcohol and Substance Abuse Services (OASAS).

   Centers located on Indian reservations must be certified through the Federal Indian Health Services if they are not certified by NYS Division of Substance Abuse or NYS Division of Alcoholism and Alcohol Abuse. Only residents of facilities operating under Title XIX Part B of the Public Health Services Act are eligible to participate in the SNAP.

   Program participation for these residents is voluntary for each individual.

NOTE: Residents of Halfway Houses certified by the Office of Alcohol and Substance Abuse Services who receive TA payments at the Level II rate are eligible to participate in SNAP.

3. Residents Of A Group Living Arrangement - A group living arrangement means a public or private non-profit residential facility that:
   (a) Serves no more than sixteen residents; and

   (b) Is certified by the appropriate district or agencies of the State.

   To be eligible for SNAP benefits, residents of group living arrangements (except Residential Treatment Centers (RTC's) must be disabled as defined in this section.

   Prior to certifying any Group Living Arrangement residents for SNAP benefits, the district shall verify that the treatment center is authorized by FNS as a retailer or is certified by the appropriate State agencies. The district shall determine that the Center is a non-profit organization.

4. Residents Of Shelters For Victims Of Domestic Violence - These shelters are defined as public or private nonprofit residential facilities that serve victims of domestic violence. If such facilities serve other individuals, a portion of the facilities must be set aside on a long-term basis to serve only victims of domestic violence.

NOTE: Such persons temporarily residing in shelters for victims of domestic violence shall be considered individual household units for the purposes of applying for and participating in the program.

NOTE: Residents of residential programs for victims of domestic violence that receive TA have their SNAP case processed by the district that is determined to be fiscally responsible for TA.

5. Individuals who are residents of supervised/supportive apartments certified or operated by New York State Office of Mental Health or Office for People With Developmental Disabilities.

6. Residents Of Shelters For Homeless Persons - A homeless household is one in which all members are homeless as defined in this section.

NOTE: A shelter for the homeless is a public or private facility which provides temporary living accommodations for homeless persons.

7. Residents Receiving Treatment And/or Care
   (a) Persons who reside in a SNAP eligible facility as defined in paragraph 1 above, for the purpose of receiving treatment and/or care may receive SNAP benefits if otherwise eligible (e.g., meet financial and resource requirements).

   Example: a parent and child are residing in a SNAP eligible Residential Treatment Center for Alcoholics which provides three meals a day. The parent is receiving treatment, the child is not. Both the parent and child can receive SNAP benefits.

2. Determining Household Composition

a. Applying Through Authorized Representative

(1) Residents that are enrolled in a treatment plan in a SNAP-eligible Residential Treatment Center for Drug Addicts or Alcoholics (RTC) as defined in paragraph 1. a(2) above, must apply through an authorized representative. Such residents must be certified as one-person SNAP households except when children who are not receiving treatment live with their parent(s) in a drug or alcoholic treatment center. See SNAPSB Section 4 and this section.

(2) Residents enrolled in a treatment plan in other SNAP eligible facilities who choose to apply for SNAP benefits through the use of the facility's authorized representative must also be certified as one-person SNAP households.

NOTE: The household composition rule in paragraphs (1) and (2) above apply even if the resident resides at the same facility with a parent, child, spouse or sibling who is also eligible for SNAP benefits and receiving treatment. For example, a parent and minor child both under treatment at the same RTC or other SNAP eligible facility receive SNAP benefits as separate SNAP households regardless of the age of the minor child. See SNAPSB Section 4 and this section.

b. Not Applying Through Authorized Representative - Residents in a SNAP eligible facility (as defined in paragraph 1 above) other than a drug/alcohol facility (RTC) who do not apply for SNAP benefits through the facility's authorized representative must have their SNAP household's composition determined in consideration of the special household definition rules that appear in this section.

For example a husband and wife enrolled in a treatment plan in a SNAP eligible facility (other than drug/alcohol facility) apply on their own for SNAP benefits. They are two one-person households for SNAP purposes. See SNAPSB Section 4 and this section.

3. Temporary Absence

If an individual(s) temporarily moves out of a SNAP individual household to receive care in a certified SNAP eligible facility and is anticipated to be absent from the SNAP household for a majority of the month following the move, the individual must be deleted from the SNAP household in accordance with procedures required for acting upon reported changes appearing in SNAPSB Section 6.

a. Any income a SNAP household directly receives for shelter and fuel costs, either directly or in the form of restricted payment, for an individual who is temporarily absent from the household must be counted as SNAP income to the household.

b. However, any payments made directly to the facility where the temporarily absent individual resides are not counted as SNAP income to the SNAP household.

NOTE: For further information on the budgeting procedure for residents of SNAP eligible facilities see SNAPSB Section 11.

4. Processing Standards

a. Normal

(1) When normal application processing standards apply, the district must complete the verification and documentation requirements in accordance with this section.

(2) It must process changes in household circumstances and recertification according to the standards applicable to all other participants found in SNAPSB Section 6.

(3) Treatment center residents must be afforded the same rights to adverse action notices, to fair hearing, and to restoration of lost benefits accorded to all other participants.

b. Expedited - When expedited application processing is indicated, the initial application must be processed on an expedited basis (within 7 calendar days) in accordance with SNAPSB Section 4.

5. Certification Requirements

The district shall certify these residents using the same provisions that apply to all other households.

References:

387.1 Definitions

387.16 Special Provisions for Household Circumstances

273.11 Action on Households with Special Circumstances

94 ADM-15 Food Stamps: Expansion of Definition of Food Stamp Eligibles Who Reside in Certain Group Living Arrangements

94 ADM-11 Domestic Violence: Eligibility and Payment for Residential Services for Victims

90 ADM-18 ADC and Food Stamps for Individuals in Congregate Care Facilities

GIS 08TA/DC022 Group Home and Congregate Care Budgeting (UPSTATE ONLY)

U. District Responsibility

1. Treatment Centers And/or Residents

a. Districts must verify that the treatment Center is certified by the appropriate State agency. In most cases this will be the New York State Office of Alcohol and Substance Abuse Services (OASAS).

b. Resident addicts and alcoholics shall have their eligibility determined as a one-person household. See SNAPSB Section 4 and this section.

c. The district shall promptly notify OTDA when it has reason to believe that an organization or institution is missing SNAP benefits in its possession.

The district shall take no action prior to FNS action against the organization or institution, but shall establish a claim for over-issuance of SNAP benefits held on behalf of resident clients.

d. Districts must conduct periodic random on-site visits to the center to verify the accuracy of the resident list of program participants. Also, it must ensure that district records are consistent and up-to-date.

2. Residents Of Group Living Arrangements

a. If these residents apply through the use of the facility's authorized representative, their eligibility shall be determined as one-person households. See SNAPSB Section 4 and this section.

b. If the residents apply on their own behalf, the household size shall be in accordance with the definition in SNAPSB Section 4 and this section.

c. Prior to certifying any residents for SNAP, the district shall verify that the group living arrangement is authorized by FNS as a retailer or is certified by the appropriate district or agencies of the State (as defined in this section including that district's (or agencies') determination that the center is a non-profit organization.

(1) Verification that a facility is certified may be accomplished as follows:

(a) Obtain a copy of an operating certificate,

(b) Verify that the facility is listed in the Congregate Care Directory (available through Centraport), or

(c) For Level I placements, it is necessary to verify both that the facility is certified and that the client is placed in the certified part of the facility. This can be done by obtaining a copy of the OMH form BPR-572 or using the SDX (see SNAPSB Section 4). Note however that only SSI clients residing in Level I certified facilities receive SSI benefits at the Level I amount. Therefore, verifying that an individual at the facility address is receiving SSI benefits at the Level I amount provides

verification that the facility is certified as well as that the individual is a resident of the facility. Another method must be used to verify resident status for an individual receiving RSDI only (not SSI).

(d) Verification of resident status at state operated community residences (OMH/OPWDD) may be established by attestation of such status by the facility or by the resource agency.

(e) Although there is a need to verify that each facility is certified, it is not necessary to obtain verification from each applicant residing at the facility.

3. Shelters For Victims Of Domestic Violence

a. Districts shall determine that the shelters for victims of domestic violence meet the definition given in this section. It must also document the basis of this determination. Shelters having FNS authorization to redeem at wholesalers shall be considered as meeting the definition, and the district is not required to make any further determination.

NOTE: It is strongly recommended that districts maintain a list of shelters meeting the definition in order to facilitate the processing of residents' applications.

b. Shelter residents who apply as separate households shall be certified:

(1) Solely on the basis of their income and resources and the expenses for which they are responsible;

(2) Without regard to the income, resources, and expenses of their former household.

(3) For benefits from the date of the new application. See SNAPSB Section 4 and this section.

c. Jointly held resources shall be considered inaccessible in accordance with SNAPSB Section 17.

d. Room payments made by the resident to the shelter shall be considered as shelter expenses.

e. Any shelter residents eligible for expedited service shall be handled in accordance with
SNAPSB Section 15.

f. Residents of residential programs for victims of domestic violence that receive TA have their SNAP case processed by the district that is determined to be fiscally responsible for TA.

g. If residents of the shelter were previously members of a household which was in receipt of SNAP benefits, the district must take prompt action to ensure

that the former household's composition is adjusted. The district must take prompt action to ensure that the former household's eligibility or allotment reflects the change in the household's composition. Such action must include acting on the reported change in accordance with Source Book Section 6 as appropriate, by issuing a notice of adverse action in accordance with Source Book Section 8.

h. If the district has sufficient information, it should redetermine the former household's eligibility and benefit entitlement. If the former household is ineligible or eligible for a lesser amount, an LDSS-3620 Notice of Intent to Change Supplemental Nutrition Assistance Program (SNAP) Benefits (Timely And Adequate) should be sent in accordance with SNAPSB Section 8.

Reference:

94 ADM-11 Domestic Violence: Eligibility and Payment for Residential Services for Victims

GIS-04 TA/DC 028 Implementation of Standardized Food Stamp Benefits for Group Home Residents

V. Institutional Responsibility

1. Responsibilities Of Drug Addict Or Alcoholic Treatment Centers

All Residential Treatment/Rehabilitation Centers which participate in the Program must enter into a formal written agreement with districts assuring that the Center:

a. Will cooperate so that districts can meet their mandated responsibilities.

b. Shall provide the district with a monthly, certified list of currently participating residents.

c. Shall provide a resident, upon leaving the Center, with his ID card and any unused benefits.

   (1) If the household leaves the Center prior to the 16th day of the month, the Center shall provide the household with one-half of its monthly benefit allotment.

   (2) After the household leaves the Treatment Center, the Center cannot act as the household's authorized representative. The household must be given a change report form and advised by the authorized representative to return the form within 10 days to the district.

d. Must notify the district of changes in the household's income and other circumstances in accordance with required reporting rules, including the date a participant leaves the treatment center.

   (1) The Treatment Center must return any SNAP benefits received for households which no longer reside in the Centers.

   (2) It must also return to the district any benefits not provided to departing residents at the end of each month.

   (3) These returned benefits shall include those not provided to departing residents because they left either prior to the 16th and the Center was unable to provide the individual with the benefits, or they left on or after the 16th of the month.

e. Is responsible for any misrepresentation or fraud which it knowingly commits during the certification of center residents. As an authorized representative, the Center must know household circumstances. It must carefully review those circumstances with residents before applying on their behalf. The center will be strictly liable for all lost or misused SNAP benefits held on behalf of resident's households, and for all over-issuances which occur while the households are treatment center residents.

f. May be penalized or disqualified if there is an administrative or judicial determination that SNAP benefits were misappropriated or used for purchases that did not contribute to a certified household's meals. No penalties and/or disqualifications can be imposed on a treatment center without prior approval from USDA.

If a treatment center is disqualified as a retailer by FNS or no longer certified by responsible agencies of the State, its residents are no longer eligible to participate. The residents are not entitled to a notice of adverse action but shall receive a written notice explaining the termination and when it will become effective.

2. Residents Of Group Living Arrangements

a. Each group living arrangement shall provide the district with a list of currently participating residents. This list shall include a statement signed by a responsible center official attesting to the validity of the list. The district shall require the list on a periodic basis.

b. If the group living arrangement is acting as an authorized representative, the group living arrangement shall notify the district of changes in the household's income or other household circumstances and when the individual leaves the group living arrangement.

NOTE: If the resident has made application on his/her own behalf, the household is responsible for reporting changes to the district.

c. If a group of residents has been certified as one household and has returned the benefits to the facility to use, the departing residents shall be given pro-rata share of one-half of the household's monthly benefit allotment if leaving prior to the 16th day of the month.

d. Once the resident leaves, the group living arrangement no longer acts as his/her authorized representative. The group living arrangement shall, if possible, provide the household with a change report form to report to the district the individual's new address and other circumstances after leaving the group living arrangement and shall advise the household to return the form to the appropriate office of the district within 30 days.

e. If a resident or a group of residents applies on their own behalf and if they retain use of their own benefits, these individuals are entitled to keep the benefits when they leave.

f. The same provisions applicable to Drug and Alcoholic Treatment Centers also apply to group living arrangements when acting as an authorized representative. These provisions, however, are not applicable if a resident has applied on his/her own behalf. The resident applying on his/her own behalf shall be responsible for overissuances as would any other household.

g. The group living arrangement shall return any household's benefits to the district if they are received after the household has left the group living arrangement, or if the coupons were not provided to the departing residents at the end of each month. These returned benefits shall include those not provided to departing residents because they left on or after the 16th of the

month or they left prior to the 16th and the facility was unable to provide them with the benefits.

h. When the household leaves the facility, the group living arrangement, either acting as an authorized representative or retaining use of the benefits on behalf of the residents (regardless of the method of application), shall provide residents with their ID cards. Also, the departing household shall receive its full allotment if no benefits have been spent on behalf of that individual household. These procedures are applicable any time during the month.

   However, if the benefits have already been issued and any portion spent on behalf of the individual and the household leaves the group living arrangement prior to the 16th day of the month, the facility shall provide the household with its ID card and one-half of its monthly benefit allotment.

   If the household leaves after the 16th of the month and the benefits have already been issued and used, the household does not receive any benefits.

i. The group living arrangement may purchase and prepare food to be consumed by eligible residents on a group basis if residents normally obtain their meals at a central location as part of the group living arrangement services or if meals are prepared at a central location for delivery to the individual residents.

   If residents purchase and/or prepare food for home consumption, as opposed to communal dining, the group living arrangement shall ensure that each resident's SNAP benefits are used for meals intended for that resident. If the resident retains use of his/her own benefit allotment, he/she may either use the benefit to purchase meals prepared for them by the facility or to purchase food to prepare meals for their own consumption.

3. Shelters For Victims Of Domestic Violence

a. Many shelter residents have recently left a household containing the person who had abused them. Their former household may be certified for participation in the SNAP and its certification may be based on a household size that includes the women and children who had just left. Shelter residents who are included in such certified households may nevertheless apply for and (if otherwise eligible) participate in the SNAP as separate households if such certified household which includes them is the household containing the person who subjected them to abuse.

   Shelter residents who are included in such certified households may receive an additional allotment as a separate household only once a month.

b. Residents of shelters for victims of domestic violence may use their benefits to purchase meals prepared especially for them at a shelter which is authorized by FNS to redeem at wholesalers, or which redeems at retailers as the authorized representative of participating households.

W. Verification

1. Verification

Verification is the securing of information which establishes the accuracy of information stated by the applicant on the application.

2. Mandatory Verification

Districts must verify the following information prior to certifying households initially applying:

a. Gross Non-Exempt Income - Gross non-exempt income must be verified for all households prior to certification. However, where all attempts to verify the income have been unsuccessful because the person or organization providing the income has failed to cooperate and all other sources of verification are unavailable, the eligibility worker must determine an amount to be used for certification purposes based on the best available information.

NOTE: LDSS-3707 "Employment Verification" may be mailed directly to an employer at the time of application, recertification, or when circumstances demand such verification. Simplified reporting rules do not require households to report any changes, unless a change in gross income exceeds 130% of the Federal Poverty Level (FPL) for the family size. Therefore, for simplified reporters, districts are not required to verify moderate changes in income, unless the income change brings the household over the gross income limit.

b. Recurring Loans - If the household receives payments on a regular or recurrent basis from the same source and claims the payments are loans, the district must require if questionable? that the provider of the loan sign an affidavit which states that repayments are being made or that payments will be made in accordance with an established repayment schedule.

c. Resources – For non-categorically eligible households only, liquid and non-liquid resources identified by the household on the application which fall within the allowable resource limit.

d. Alien Status - Based on the application, the district must determine if members identified as aliens are eligible aliens (as specified in this section) by requiring that the household present verification for each alien member.

e. Heating/Air Conditioning, Utility, And Telephone Expenses

(1) Use Of Standard Allowance(s) - For those households entitled to claim a standard heating/air conditioning, utility, and/or telephone allowance as specified in SNAP SB Section 12, the district shall verify that the household actually incurs an expense although there is no need for the district to verify the amount of the expense, unless the household wishes to claim expenses in excess of the State agency's utility standard. The

district need not verify all expenses. Only those expenses necessary to determine entitlement to the appropriate standard(s) need to be verified. This verification is permitted on a one-time basis unless the household has moved or changed its utilities or unless questionable.

(2) Unoccupied Homes - If the household wishes to claim expenses for an unoccupied home because of employment or training away from home, illness or abandonment caused by a natural disaster, or casualty loss, actual expenses must be verified as a standard allowance cannot be applied.

However, the district is not required to assist the household in obtaining verification of expenses for unoccupied homes if verification would have to be obtained from a source outside of the district.

f. Medical Expenses - For those households with members who are eligible to claim a deduction for medical expenses (see SNAPSB Section 12) the amount of any allowable medical expenses (including the amount of reimbursements) shall be verified prior to allowing the deduction. As with other information, which is verified at initial certification, the case record shall be documented as to the amount and the source of the medical expense.

Verification of other factors, such as the nature of the services provided or the eligibility of the person incurring the cost, shall be required only if questionable.

g. Social Security Number

(1) A SSN can be verified through:
(a) BENDEX, SDX printouts, or SOLQ

(b) Completion of an SS-5 or,

(c) Observation of Social Security cards or other official documents containing the SSN.

(2) Households that have had their SSNs verified for FA or other similar programs shall be considered as having complied for SNAP purposes. A verified SSN shall be re-verified if the identity of the individual or the SSN becomes questionable.

(3) Certification of an otherwise eligible household cannot be delayed solely to verify any member's SSN even if the 30-day processing period has not expired. A household will be certified as soon as all other necessary information has been verified other than an SSN.

(4) If verification of an already reported SSN is not completed at the time of or prior to the household's next recertification, individuals who refuse to complete an application for an SSN (SS-5) or otherwise verify an SSN at recertification shall be excluded in accordance with this section.

(5) Documentation must clearly be recorded in the case file if household members indicate they refuse to provide or apply for an SSN because of a valid religious belief. This documentation may include obtaining written or verbal confirmation from the religious organization the individual is a member that providing of an SSN by its members is in conflict with its religious doctrine.

h. Residency - The residency requirements specified in this section shall be verified except in unusual cases (such as some migrant farm worker households, some homeless households or, households newly arrived in a project area) where verification of residency cannot be reasonably accomplished. When verification is not accomplished, the district must document efforts to obtain verification in the case file.

(1) Method Of Verifying Residency - Verification of residency should be accomplished to the extent possible in conjunction with the verification of other information such as, but not limited to, rent and mortgage payments, utility expenses and identity. If verification cannot be accomplished in conjunction with the verification of other information, then the district shall use a collateral contact or other readily available documentary evidence.

(2) Specific Documents Not Required - Documents used to verify other factors of eligibility should normally suffice to verify residency as well. Any documents or collateral contacts, which reasonably establish the applicant's residency, must be accepted and no requirement for a specific type of verification may be imposed. No durational residency shall be established.

i. Identity - The identity of the person making application shall be verified.

(1) Application By Authorized Representative - Where an authorized representative applies on behalf of a household, the identity of both the authorized representative and the head of household shall be verified.

(2) Acceptable Documentation - Identity may be verified through readily available documentary evidence or if this is unavailable, through a collateral contact. Examples of acceptable documentary evidence which the applicant may provide include, but are not limited to:

a. A driver's license;

b. A work or school ID;

c. An ID for health benefits or for another assistance or social services program;

d. Wage stubs; or

e. A birth certificate.

Any documents which reasonably establish the applicant's identity must be accepted, and no requirement for a specific type of document, such as a birth certificate, may be imposed.

j. Districts shall verify all factors of eligibility for households who have been terminated for refusal to cooperate with a State quality control reviewer and reapply after 125 days from the end of the annual review period. Districts shall verify all factors of eligibility for households who have been terminated for refusal to cooperate with a Federal quality control reviewer and reapply after nine months from the end of the annual review period.

k. Legal obligation and actual child support payments- The district shall obtain verification of the household's legal obligation to pay child support, the amount of the obligation, and the monthly amount of child support the household actually pays. Documents verifying a household's obligation to pay child support are not verification of the actual payment of child support.

l. Additional verification for able-bodied adults without dependents subject to the time limit—

(1) Hours worked. For individuals subject to the SNAP time limit of §273.24 who are satisfying the work requirement by working, by combining work and participation in a work program, or by participating in a work or workfare program that is not operated or supervised by the State agency, the individuals' work hours shall be verified.

(2) The district must also verify the number of countable months an individual has used in another State if there is an indication that the individual participated in that State.

m. Continuing Shelter Charges - The district shall verify those shelter charges specified in SNAPSB Section 12 other than utilities, if allowing the expense could potentially result in a deduction.

This verification is permitted on a one-time basis unless the household has moved, reported shelter costs that would potentially affect the level of deduction (in which case only those changed individual costs would be verified) or unless questionable as defined in this section.
NOTE: LDSS-3668 Shelter Verification Guide may be used to verify shelter charges.

n. Dependent Care Costs - For those households claiming dependent care costs as specified in SNAP SB Section 12, the district shall verify that the household incurs the costs and the actual amount of the costs, if allowing the expense could potentially result in a deduction.

This verification is permitted on a one-time basis unless the provider has changed, the amount has changed and the change would potentially affect the level of the deduction or unless questionable.

o. Household Composition - Districts shall verify household composition.

(1) Acceptable Documentation - Verification shall be accomplished through a collateral contact such as a landlord or readily available documentary evidence, such as school records, draft cards, marriage records, or any documents which can be used to establish identity as listed in this Section.
NOTE: The LDSS-3668 Shelter Verification Guide may be used to verify household composition.

(2) Specific Document Not Required - Any documents which reasonably establish household composition must be accepted and no requirement for a specific type of document, such as a birth certificate, may be imposed.
NOTE: Factors involving household composition such as boarder status or whether or not a particular group of individuals customarily purchases and prepares meals together shall not be verified unless questionable in accordance with this section.

p. Date Of Birth - Districts shall verify the date of birth in situations where age is a factor in eligibility or benefit level determination. For example, the under 18 and 60 and over years of age population. The age of these individuals can affect eligibility or benefit amount because of such considerations as shelter costs and medical deductions, separate household status, student eligibility and work registration requirements. Date of birth may be verified through readily available documentary evidence such as birth certificate, church or hospital record of birth, school record, insurance policy or any other record which shows the date of birth.

(1) Applying For Verification - Verification of date of birth (if questionable) should be handled in the same manner as verification of SSN as set forth in this section. If the individual has provided the date of birth, verification of this date or application for a birth certificate or other documentation must be completed by the household's next recertification. This is also true when a currently certified household reports the addition of new members to the household.

q. Deductible Expenses

(1) Delayed Verification - If obtaining verification of a deductible expense may delay the household's certification, the district shall advise the household that its eligibility and benefit level may be determined without providing a deduction for the claimed but unverified expense.

(a) This provision also applies to the allowance of medical expenses.

(b) Shelter cost would be computed without including the unverified components.

If the expense cannot be verified within 30 days of the date of application, the district shall determine the household's eligibility and benefit level without providing a deduction of the unverified expense.

(2) Receipt Of Verification - If the household subsequently provides the missing verification, the district shall redetermine the household's benefits and provide increased benefits, if any, in accordance with the timeliness standards in SNAP SB Section 6 on reported changes.

The household shall be entitled to the restoration of benefits retroactive to the month of application, as a result of the disallowance of the expense, only if the reason that the expense could not be verified within the 30-day processing standard was because the district failed to allow the household sufficient time, as defined in SNAP SB Section 6, to verify the expense.

NOTE: If the household would be ineligible unless the expense is allowed, the household's application shall be handled as provided in SNAP SB Section 4.

r. Helpful Hints:

(1) All pertinent information providing the basis for establishing an eligibility factor must be recorded including the source, the relevant dates and the specific data as well as the basis for the conclusion reached so that an audit trail is established.

(2) Adequate verification of several eligibility factors may be obtained from one document. For example, birth certificates listing parentage can be used to verify the eligibility factors of age, citizenship and relationship.

(3) When documentary evidence is cited, a copy of the certifying document need not be retained in the case record if the source, date and relevant content are recorded.

(4) Where discrepancies exist within the accumulated evidence, it is recommended that the worker record the basis for the determination in the case record.

(5) The primary burden of responsibility for verification of eligibility factors is upon the applicant/recipient. However, if the individual is unable to provide or obtain such verification, the worker must assist him/her in securing required verification.

(6) In unusual instances in which documentation is not obtainable, such as in situations of immediate need for TA and/or SNAP benefits, the determination must be made based upon the cumulative evidence available.

(7) For SNAP eligibility determinations, there are no designated primary or secondary verification elements. In establishing eligibility the applicant/recipient must provide sufficient documentary evidence to enable the eligibility worker to determine program eligibility.

(8) SNAP eligibility may not be denied for failure to meet the verification/documentation requirements of another program.

(9) Expedited processing for SNAP benefits allows for postponement of certain verification requirements (see SNAP expedited processing directions in SNAPSB Section 4).

References:

387.1 Definitions

387.8 Application Process

90 ADM-23 Changes in Social Security Number Policy

12 INF-06 Food Stamp Program Clarification of Required documentation/Verification

X. Questionable Information

1. Definition

Questionable information is information on the application which is inconsistent with statements made by the applicant, inconsistent with other information on the application or previous application. The district shall determine if information is questionable based on the household's individual circumstances.

NOTE: Determination of questionable information shall not be based on race, religion, ethnic background or national origin. Districts shall not target groups such as migrant farm workers or American Indians for more intensive verification under this provision. The rationale for determining information questionable should be entered in the case file.

2. Items To Be Verified When Questionable

Questionable items may include but are not limited to:

a. Household Composition - Districts shall verify factors affecting the composition of a household, if questionable.

b. The individuals purchasing and preparing meals together or separately - However, due to the difficulty in verifying whether or not a group of individuals customarily purchases and prepares meals together, the district shall generally accept the household's statement regarding food preparation and purchasing.

(1) Elderly/Disabled Individuals - Elderly, disabled individuals described in this section who wish to be a separate household even though they purchase and prepare meals together shall be responsible for obtaining the cooperation of the individuals with whom they reside in providing necessary information requested by the district.

i. Income - However, the income of the others with whom the elderly, disabled individual resides (excluding the income of the individual and spouses) does not have to be verified unless the information given is determined questionable by the district as defined in this Section.

ii. Medical - If requested by the district, they shall provide a physician's statement that they cannot purchase and prepare their own meals. For any household member claiming a permanent disability (see SNAP SB Section 19) that is questionable (not apparent) to the district, according to the definition of disabled in SNAP SB Section 5, the household shall provide, at the district's request, a statement from a physician or licensed or certified psychologist to assist the district in making a disability determination.

c. Citizenship - When a household's statement that one or more of its members are U.S. citizens is questionable, the household must provide acceptable verification. Acceptable forms of verification include but are not limited to:
   (1) Birth certificates
   (2) Religious records
   (3) Voter registration cards
   (4) Certificates of citizenship or naturalization provided by United States Citizenship and Immigration Services (USCIS) (INS form I-179 or I-199)
   (5) U.S. passports
   (6) Collateral Contact - If one of the above forms of verification is not available and the household can provide a reasonable explanation why, the district shall accept a signed statement from someone who is a U.S. citizen declaring, under penalty of perjury, that the member in question is a U.S. citizen.
      i. The statement form must contain a warning of the penalties for helping someone commit fraud, i.e., if you intentionally give false information to help this person get SNAP Benefits, you may be fined, imprisoned, or both.

NOTE: Status Pending Verification - The member whose citizenship is in question shall be ineligible to participate until proof of U.S. citizenship is obtained. Until proof of U.S. citizenship is obtained, the member whose citizenship is in question will have his or her income, and resources treated as specified in the SNAP SB Sections 13 and 17.

NOTE: Districts cannot rely on a surname, accent, foreign appearance or lack of English speaking, reading or writing ability as grounds to question a claim of citizenship.

References:

387.8 Application Process

01 ADM-8 Changes in Food Stamp Application and Recertification Procedures

Y. Types of Verification

1. Documentary Evidence

a. Definition - Documentary evidence consists of a written confirmation of a household's circumstances.

b. Examples - Examples of documentary evidence include but are not limited to:

(1) Wage stubs

(2) Rent receipts

(3) Utility bills

(4) Birth certificates

c. Acceptable - Acceptable verification shall not be limited to any single type of document and may be obtained through the household or other source.

NOTE: Districts must use LDSS-2642 Documentation Requirements or approved equivalent to inform applicants/recipients of the specific eligibility factors which need to be verified, to provide a list of documents which are acceptable verification of these factors, and to indicate on the form the date by which any outstanding documents must be received.

Client informational books LDSS-4148A New York State What You Should Know About Your Rights and Responsibilities (When Applying For or Receiving Benefits) and LDSS-4148B What You Should Know About Social Services Programs or LDSS-4148C New York State What You Should Know If You Have an Emergency, or the LDSS-4826A How to Complete the Supplemental Nutrition Assistance Program (SNAP) Application/Recertification to fulfill the mandate that applicants/recipients be provided general information on verification requirements.

d. Use Of - Written documentary evidence is to be used as the primary source of verification of all items except residency. Residency may be verified either through readily available documentary evidence or through a collateral contact.

e. Insufficient - Whenever documentary evidence cannot be obtained or is insufficient to make a firm determination of eligibility or benefit level, the Eligibility Worker may require collateral contacts or home visits.

f. Responsibility For Obtaining Verification.

(1) Household - The household has primary responsibility for providing documentary evidence to support statements on the application and to resolve any questionable information. The district shall assist the household in obtaining necessary verification in situations where the

household is having difficulty obtaining the verification provided the household has demonstrated a willingness to cooperate with the district in completing the application process. Households may supply documentary evidence in person, through the mail or through an authorized representative.

(2) District - The district shall accept any reasonable documentary evidence provided by the household. The district's primary concern should be that the evidence adequately supports the application information.

If it would be difficult or impossible for the household to obtain the documentary evidence in a timely manner or the household has presented insufficient documentation, the district shall either help the household in obtaining the documentary evidence or shall use a collateral contact or home visit. The district shall not require the household to present verification in person at the SNAP office.

2. Collateral Contacts

a. Definition - A collateral contact is an oral confirmation of a household's circumstances by a person outside of the household and it may be made by telephone or in person.

b. Acceptable Contacts - An acceptable contact can be anyone able to provide an accurate third party verification of the household's statements.

Example: Employers, community action groups, migrant service agencies and neighbors of the household.

NOTE: Systems of records to which the district has routine access are not considered collateral contacts and therefore need not be designated by the household. Examples are the State Online Query System (SOLQ), Unemployment Insurance Benefit (UIB), the Beneficiary Data Exchange (BENDEX) and the State Data Exchange (SDX) and records of another agency where a routine access agreement exists (such as records from the State's unemployment compensation system).

c. Responsibility For Obtaining Verification

(1) Household - The district, generally, shall rely on the household to provide the name of any collateral contact. The household may request assistance in designating a collateral contact.

NOTE: The district is not required to use a collateral contact designated by the household if the contact cannot be expected to provide accurate third party verification.

(2) District - When the household fails to designate a collateral contact or the contact designated by the household is unacceptable, the district shall either:

(a) Designate another collateral contact;

(b) Ask the household to designate another collateral contact;

(c) Provide an alternative form of verification; or

(d) Substitute a home visit.

If the district designates a collateral contact, the district shall not make the contact without providing prior written or oral notice to the household. At the time of the notice, the district shall inform the household that it has the following options:

(a) Consent to the contact;

(b) Provide acceptable verification in another form; or

(c) Withdraw its application.

If the household refuses to choose one of these options, its application shall be denied for failure to verify information. The district is responsible for obtaining verification from acceptable collateral contacts.

NOTE: SNAP benefits cannot be denied or terminated because a person outside of the household fails to cooperate with a verification request. Household members who are ineligible or disqualified are not considered as individuals outside of the household under this provision.

(3) Home Visits - Home visits may be used as verification only when documentary evidence is insufficient to make a firm determination of eligibility or benefit level or when documentary evidence cannot be obtained. The home visit must be scheduled in advance with the household.

(4) State Data Exchange (SDX), Beneficiary Data Exchange (BENDEX) And State Online Query System (SOLQ), Public Assistance Reporting Information System (PARIS), Unemployment Insurance Benefits (UIB), Verified Employment Data (VED) and Prison are all computer matched OTDA has determined to be verified upon receipt information for SNAP purposes

a. The district may verify the receipt of benefits in another state/duplicate assistance through PARIS
b. The district may verify recipients who are incarcerated in State, county, or city jails through Prison match.
c. The district may verify recipients who are in receipt of Unemployment Insurance Benefits through (UIB).
d. The district may verify employment status through VED. VED is verified through either TALX/The Work Number or NDNH Manual Employment Verification.
e. The district may verify SSI benefits through the SDX or SOLQ; Social Security benefit information through the BENDEX or SOLQ; or through verification provided by the household.

f. The district may use SDX, SOLQ , PARIS, Prison, UIB VED and BENDEX data to verify other SNAP eligibility criteria. The district may access this data without release statements from households. The household shall be given an opportunity to verify the information from another source if the SDX, SOLQ, PARIS, Prison, UIB VED or BENDEX information is contradictory to the information provided by the household or is unavailable.

g. Matches obtained through Wage Reporting System (WRS) and the State Directory of New Hires (SDNH) require further verification and the district before any SNAP action can be taken.

NOTE: Determination of the household's eligibility and benefit level shall not be delayed past the application processing time standards set forth in SNAP SB Section 4 if SDX, SOLQ, PARIS, Prison, UIB VED or BENDEX data is unavailable.

3. Computer Matching Of IRS Unearned Income Data

IRS matching is done on TANF funded cases (case type 11 or 12) only. This matching may reveal household resources in excess of the SNAP limit. However, as long as a household remains categorically eligible for SNAP benefits, the "excess" resources do not render the household ineligible for SNAP benefits.

4. Case File Documentation

The district case file must be documented to support eligibility, ineligibility and benefit level determinations. The documentation shall be in sufficient detail to enable a reviewer to judge the reasonableness and accuracy of the determination.

a. Questionable Information - Where verification was required to resolve questionable information, the district shall document why the information was considered questionable or, at a minimum, indicate where in the case file the inconsistency exists and what documentation was used to resolve the questionable information.

b. Alternate Sources - The district shall substantiate the reason why an alternate source of verification, such as a collateral contact or home visit, was needed. This is not necessary in cases where a collateral contact is used to verify residency or household size.

c. Collateral Contacts - The district shall also document the reason a collateral contact was rejected and an alternate requested.

EXAMPLE: Mr. Arnold works part-time at a service station. He is paid in cash and does not receive a statement of wages and hours. He gives the name of his co-worker, Mr. Murray, as a collateral contact to verify his wages and hours. The EW

rejects the contact as someone not sufficiently knowledgeable and obtains the name of Mr. Arnold's employer, Mr. Dennis, the manager of the station, as the collateral contact.

References:

387.8 Application Process

06 ADM-02 Temporary Assistance: Income Eligibility Verification System (IEVS) 1099 Processing

93 ADM-20 DSS-2642-Documentation Requirements

01 ADM-08 Changes in Food Stamp Application and Recertification Procedures

Z. Expedited Benefits

The district must use the following verification procedures for households qualified for expedited service.

1. Identity

In all cases, the applicant's identity (i.e., the identity of the person making the application) shall be verified through a collateral contact or readily available documentary evidence.

NOTE: All possible sources of direct or collateral documentation must be explored, such as a telephone contact with shelters or community agencies, or a statement from a third party, or a notarized statement from the applicant.

The LDSS-2642 Documentation Requirements form to send for evidence the household applied for a birth certificate and/or a birth certificate, signed by the applicant, can be used as verification of identity if no other verification is available.

Note: Federal regulations state that any documents which reasonably establish the applicant's identity must be accepted.

However, if no verification of identity is possible, then SNAP benefits cannot be issued.

2. Residency, Income, Resources, Other Factors

All reasonable efforts shall be made to verify within the expedited processing standards, the household's residency, income statement (including a statement that the household has no income), liquid resources and all other factors required as specified in this section through collateral contacts or readily available documentary evidence.

However, benefits shall not be delayed beyond the delivery standards prescribed in SNAP SB Section 15 solely because these eligibility factors have not been verified.

3. Additional Verification

Districts also may verify factors other than identity, residency and income provided that verification can be accomplished within expedited processing standards.

Districts should attempt to obtain as much additional verification as possible during the interview, but should not delay the certification of households qualified for expedited service for the full timeframes specified in SNAP SB Section 15

when the district has determined it is unlikely that other verification can be obtained within these timeframes.

4. Social Security Number

Households qualified for expedited service shall be asked to furnish a SSN for each person or apply for one for each person before the second full month of participation.

Those households unable to provide the required SSN's or who do not have one prior to their next issuance shall be treated in accordance with this section.

5. Discrepant Information When Pended Verification Is Provided

There is no IHE or IPV overpayment due to issuance of SNAP benefits under expedited processing with verification pended. This includes situations where the verification subsequently submitted substantiates a lower benefit level than was issued in the initial expedited payment period, even if it appears the household should have known verification would differ from the information they initially provided. There is a presumption of good faith on the part of the district and the client in determining the level of benefits to be issued during the expedited payment period.

However, the district must act accurately on the information available. If the district makes an error and does not act accurately on the information available at the time of determining the benefit under expedited processing, it would still be considered an district error with associated claim for overpayment. Part of the rationale for not establishing claims on benefits issued under expedited processing rules is that OTDA wants to avoid compliance issues that might arise if districts were held accountable for errors related to the accuracy of the information provided by the household. Districts might well be hesitant to fully comply with the expedited requirements as quickly as possible, thinking it best to instead attempt verification of the information.

NOTE: In the case of a provable IPV where the household did not give income at initial application or knowingly misrepresented their income expedited benefits can be recouped. Only in instances where there is concrete evidence that the expedited benefits were NOT issued in accordance with the expedited processing requirements can recoupment be considered.

Reference:

387.8 Application Process

273.2 Office operations and application processing

05 ADM-13 Revised LDSS-3938: “Food Stamp Application Expedited Processing Summary Sheet”

AA. Verification For Residents Of Group Living Arrangements

For applications filed by resource agents as authorized representatives, all program verification requirements apply. However, presentation of the actual documents by the resource agent to the eligibility worker or district is not mandated if:

1. The resource agent attests in writing that all required documentation is in his/her possession and that the contents are as stated. This documentation is to be itemized.

2. The resource agent further identifies the file in which such documentation is contained and the location of this file.
   NOTE: Questionable information always requires verification.

BB. Strikers

1. Definition

A striker is anyone involved in a strike or concerted stoppage of work by employees, including stoppage by reason of the expiration of a collective bargaining agreement, and any concerted slowdown or other concerted interruption of operations by employees. Employees who are prevented from working by a strike but are not participating in a strike are considered non-strikers.

2. Non-Strikers

Non-strikers who are eligible for SNAP benefits include, but are not limited to, the following:

a. Employees whose work place is closed by an employer in order to resist demands of employees, such as a lockout; or

b. Employees who are unable to work as a result of striking employees, such as truck drivers unable to deliver newspapers because striking newspaper pressmen prevent newspapers from being printed; or

c. Employees who are not part of the bargaining unit on strike but who do not want to cross a picket line due to fear of personal injury or death; or

d. Employees who went on strike but who are exempt from work registration, the day prior to the strike, other than those who are exempt solely on the grounds that they are employed; or

e. Employees whose jobs are no longer available because permanent replacements have been hired by the company. However, the employees will be considered strikers until such time as their jobs are no longer available.

3. Participation Eligibility

Households with striking members shall be ineligible to participate in the Program unless the household was eligible for benefits the day prior to the strike and is otherwise eligible at the time of application. However, such a household shall not receive an increased allotment as the result of a decrease in the income of the striking member(s) of the household.

Pre-strike eligibility shall be determined by considering the day prior to the strike as the day of application and assuming the strike did not occur.

4. Eligibility Determination And Income Calculation

Eligibility at time of application shall be determined by comparing the striking member's income the day prior to the strike (as calculated according to paragraph 2 above) to the striker's current income and adding the higher of the two to the current income of non-striking members during the month of

application. Eligibility and benefit level shall then be calculated for the month of application as for any other household.

References:

387.1 Definitions

387.16 Special Provisions for Household Circumstances

273.11 Action on Households with Special Circumstances

CC. Reporting Changes Between Application and Certification

An applying household shall report all changes from the time of application related to its SNAP eligibility and benefits at the certification interview. At application or recertification, when changes occur between the Date of Interview and the date the Notice of Eligibility is issued, the household will have until 10 days following the end of the calendar month the Notice of Eligibility was issued, to report any changes.

Reference:

07 ADM-05 Food Stamp Change Reporting for Ten-Day Reporters

14 INF-16 Notice of Pending SNAP Application

DD. Identification Cards and Pins

1. Identification Cards

The district must ensure that a member of the household has a Common Benefit Identification Card (CBIC). If no one in the household has a CBIC, the district must issue a CBIC to the designated SNAP cardholder at the time of certification. The member of the household must sign the CBIC prior to use.

2. Replacement

CBICs must be replaced when the card is:

a. Lost or stolen.

b. Physically damaged, including magnetic stripe not working/able to be read by an ATM or POS device, card is cracked/broken, information is worn off or missing from the card, card is illegible, etc.).

c. Designated cardholder requests a photo card.

Replacement CBICs are automatically generated and mailed when a change in demographic data is initiated through WMS (Name, Sex or Date of Birth). This new mailed permanent card issued due to demographic changes will NOT deactivate/void/delete the previous permanent card immediately. The CBIC system will assign a 90-day expiration/void date to the previous card to permit sufficient time for the new mailed card to arrive. Once the new mailed replacement card is used for any transactions, for example PIN selection, balance inquiry, ATM/POS transactions both approved or denied, etc., the previous permanent card will be deactivated/voided/deleted and can no longer be used.

3. Personal Identification Numbers (PINS)

The district must ensure that the designated SNAP cardholder has a PIN. If the designated SNAP cardholder does not have a PIN, they must select one. As a rule, for replacement cards, PINS are transferred from the previous card to any new card issued including to temporary vault cards. However, new recipients not previously known to WMS, or who have never had a CBIC card, and have a SSN on record in WMS, must select a PIN for their newly issued permanent card as PIN mailers are not automatically sent to these cardholders.

a. Pin Selection - Recipients may select or change a PIN using any of the following methods:

(1) Visit the district with card in hand and use the PIN selection device supplied by the district.

(2) For cardholders with a SSN in WMS, they may call the EBT Customer Service Helpline at 1-888-328-6399 and choose the PIN change option.

(3) Go online at ebtEDGE.com to access the EBT Cardholder Account website to change a PIN. Note: cardholder cannot establish/select their first PIN (new recipient never known to WMS and getting their first card) but can only change their PIN. The online PIN process requires the cardholder to enter the previous PIN assigned to the CBIC along with their Zip Code.

(4) Call his/her caseworker to request a mailed PIN. In this process a new PIN will be assigned to the card.

b. Compromised or Forgotten PINS

(1) If the recipient cannot remember their PIN, they can choose a new PIN, or request the district to send them a mailed PIN.

(2) If the recipient's card or PIN has been compromised due to identity theft, the recipient should take the following steps:

(a) Contact the EBT Customer Service immediately to report the card stolen and have the card deactivated. Only by first contacting the EBT Helpline to deactivate their card can the recipient be protected from further potential benefit theft/loss. This process will permit the recipient the option to request a mailed permanent replacement card. If the card being reported as lost, stolen or damaged is a temporary vault card, a replacement request cannot be generated by the EBT Vendor and the recipient must contact/go to the district to get a replacement temporary vault card.

(b) Contact their district worker to request EBT ARU PIN restriction. This is a procedure the district can use to make it impossible to change the PIN over the phone via the EBT Customer Service helpline or through the EBT Cardholder Account internet website.

(c) If the recipient did not request a permanent replacement card when reporting their permanent card as lost, stolen or damaged to the EBT helpline, the recipient should contact the district and request that the district issue a new EBT card. It is recommended that the recipient also select a new PIN for this new card.

Reference:

Electronic Benefit Transfer (EBT) Resources
ebtEdge Cardholder Portal and Mobile Application Manual
LDSS-5004 - How to Use Your Benefit Card to Get Supplemental Nutrition Assistance (SNAP) and/or Cash Benefits
LDSS-5066 – EBT Cardholder Online Account User Guide

EE. Front End Detection System

Chapter 41 of the Laws of 1992 mandated that each district establish a Front End Detection System (FEDS) for TA.

Districts are authorized to establish an investigative process under the Front End Detection System (FEDS) for their Temporary Assistance (TA) caseload as a means of ensuring that only eligible households receive cash assistance. However, the district has the option of using FEDS to verify information on SNAP applications and must consider information derived from FEDS investigations of other benefit programs. Some important items to remember when using FEDS on SNAP cases include:

a. FEDS referral/investigation does not exempt the district from processing the SNAP case in a timely manner including Expedited Processing and the 30-day time limit for ordinary eligibility determination. Failure to do so constitutes a Program Access Error.

b. Purely SNAP households are not required to meet eligibility requirements for other than the SNAP. For instance, a SNAP household may not be required to submit to a home visit.

c. A FEDS referral is not a substitute for a comprehensive interview or ordinary documentation/verification efforts. Prior to an investigative referral, clients must be afforded the right to explain any information that would, absent that investigation, occasion a FEDS investigation.

d. The Eligibility Worker (EW) and related supervisory staff are ultimately responsible for deciding to send a case for FEDS investigation and/or for determining whether any information resulting from a FEDS investigation impacts the household's SNAP eligibility.

Districts are limited to the populations and areas of investigation outlined in their state-approved FEDS Plan.
Failure to attend a FEDS interview is not, in itself, a valid reason to deny SNAP benefits.

Reference:

05 ADM-08 Front End Detection System (FEDS) Policy

SECTION 6: Continuing Eligibility

A. Recertification

1. Recertification Process

The recertification process includes the expiration notice (notice of expiration NOE), recertification application, interview, verification, and timely eligibility determination.

The District must:

a. Send to each household, including TA/SNAP households, a recertification application for SNAP, a written expiration notice as described in SNAPSB Section 8.

   Note: Households certified for one month or certified in the second month of a two-month certification period must receive a written expiration notice at certification.

b. Complete the application process and approve or deny timely recertification applications (subsequently referred to in this section as recertifications) before the end of the household's current certification period. SNAP applications submitted electronically via MyBenefits or Access NYC shall be treated as having been signed by the head of household.

c. Provide eligible households with an opportunity to participate by the household's regular issuance cycle in the month following receipt of a timely recertification. Do not continue household benefits beyond the end of the certification period unless the household is recertified.

d. Provide each TA/SNAP households with general information on verification requirements at application and recertification. Client informational books LDSS-4148A, LDSS-4148B and LDSS-4148C fulfill this requirement. For specific types of verification required see SNAPSB Section 5. Provide each NTA/SNAP household using LDSS-4826 SNAP Benefits Application/Recertification with client information book LDSS-4826A.

e. Provide a local telephone number and either a toll-free number or a number at which collect calls will be accepted from households outside the local calling area. The number must be provided in writing at certification and recertification.

f. These interviews must be scheduled on a specific day and time so the household has at least 10 days after the interview to provide verification before their certification period expires.

g. SNAP Households, including those in receipt of TA, that submit a recertification application but miss their scheduled recertification interview, must be provided a notice of missed interview (NOMI). The household cannot be denied before the end of the certification period for missing a scheduled interview.

h. All NTA/SNAP households are to have telephone recertification interviews unless a face-to-face recertification interview is requested by the household.

i. Advise any household with one or more non-exempt adult SNAP recipient(s) (no aged/disabled and with no earned income at previous required contact point) of the availability of employment and training services within the district and or region.

j. Provide a consolidation notice and an oral explanation of SNAP Employment and Training requirements and ABAWD work requirements to households that contain a non-exempt adult.

2. Timely Recertification

A household that submits its application for recertification by the 15th day of the last month of the expiring certification period is considered to have applied timely.

a. Households do not have to submit a recertification application or receive an interview before the last month of its current certification period.

b. If a household receives an expiration notice at the time of certification, it has 15 days from the date the notice is received to file a timely recertification. The DSS must have procedures that ensure timely processing when issuing a one or two-month certification period in order to avoid a lapse in benefits.

c. All households which submit a SNAP recertification application by the 15th of the last month of their current certification period must be considered to have made timely application for recertification regardless of the interview date.

d. Jointly processed TA/SNAP cases need not receive a separate SNAP recert notice if they are recertified for SNAP at the same time as their TA redetermination.

3. District Action on Timely Applications for Recertification

Benefits must not be interrupted if the household has reapplied in a timely fashion and been determined eligible.

The District must act on timely recertifications within the following time standards. The standards must be met even if the household has to receive an opportunity to participate outside of the regular issuance system.

a. If a household receives the expiration notice at the time of certification and recertifies in a timely fashion, it must be notified of its eligibility or ineligibility, and if eligible, receive an opportunity to participate no later than 30 days after the household's last issuance date. It is important to note this when issuing a one or two-month certification period. The DSS must have procedures that ensure timely processing when issuing a one or two-month certification period to avoid a lapse in benefits.

b. A household that files a timely recertification application must be notified of the district's decision by the end of the current certification period.

c. A household that files an application within 30 days after the end of their certification period must have their application treated as a recertification application, and if eligible, benefits are to be prorated from the date of re-application.

d. A household that files an application within 30 days after the end of their certification period must have their application screened for Expedited SNAP processing, identity would not need to be re-verified as the household is known to the district.

e. Uninterrupted benefits must be provided to eligible households if the household appeared for a recertification interview during the last 15 days of the current certification period providing the recertification was filed prior to the 15th.

f. A household must receive an immediate opportunity to participate if:

(1) The household reapplies in a timely fashion.

(2) The household is eligible.

(3) A District error delays the eligibility determination; and

(4) The household does not receive SNAP benefits in the regular issuance for the following month because of the determination delay.

If necessary, the District must provide an opportunity to participate outside the regular issuance cycle.

Filing Date if Found Eligible	Accrual Date
If client files *by the 15th*	Benefits continue into new recertification period uninterrupted, regardless of when the interview occurs
If client files *after the 15th and prior to the expiration* of the certification period *and* is found eligible within 30 days	The benefit may not be available on the usual issuance date the first month of the new certification period because all the paperwork is not complete, but they will be issued for the entire month. Benefits for the new certification month may not be pro-rated.
If the client files within 30 days after the end of the certification period and is found eligible	Benefits begin when all requirements are met and pro-rated from date of re-application (exceptions for migrant and seasonal farm workers.)

4. Verification

If verification is missing after a recertification interview, the recipient must be allowed ten days from the date of a written request for documentation to provide the missing documentation.

a. Any eligible household not determined eligible in sufficient time to allow uninterrupted benefits due to this 10-day time period for submission of additional verification will receive a full month's benefit within five working days after supplying the missing verification.

b. If missing verification is submitted within 60 days of a timely recertification application, the District must process the case without requiring a new recertification application.

c. Benefits must be prorated if a household (other than seasonal/migrant farm worker) provides verification more than 30 days from the date of application for recertification.

5. District Failure to Act

It is an administrative error if the District fails to meet the specified time standards when it provides an opportunity to participate to eligible households who filed timely recertifications. These households have a right to receive lost benefits if the households cannot participate in the month following the expiration of the certification period.

6. Household Fails to Comply

If a household submits a recertification application but fails to be available for a scheduled interview, fails to file the recertification application prior to the required time period, or fails to provide missing verification by the end of the 10-day time period required in paragraph 4 above, the District must deny the recertification application.

a. A recertification application submitted more than 30 days after the end of the certification period must be treated as an initial application and processed according to the timeliness standards specified in SNAPSB Section 4. Households filing applications within 30 days after the end of their certification period must have their application treated as an application for recertification (and if eligible, benefits are to be prorated from the date of re-application.)
b. If the household submits an application for recertification after the 15th of the month but prior to the expiration of its current certification period and is found eligible for the first month following the end of the certification period, then that month's benefits must not be prorated unless necessary verification is submitted *after* the 30th day after late app submitted, according to the example below.

EXAMPLE: A household's certification period is due to end on August 31st. A household submits their recertification application on August 15th and is requested in writing by the district to submit verification of a changed circumstance on that date. The household does not submit verification until September 17th. If eligible, the district would accept the application and provide benefits from September 17th, the date the documentation was submitted. Conversely, had the household submitted the documentation by September 14th, the household would be eligible for benefits from September 1st, as they had submitted the documentation within thirty days from the original application date for recertification.

7. Verification At Recertification

The District must verify information that has changed or is incomplete, inaccurate, inconsistent, or outdated. This includes information received during the certification period that was not required to be acted on by the State at the time of discovery/receipt. The District cannot limit verifications to specific types of documents or proofs but should accept any verification that satisfies a verification requirement. Once the District receives a household's verifications, the District should process the verifications as quickly as possible to ensure timely recertification.

The information the District considers at recertification should be accurate and reflect a household's income and deductions for the month of application based upon the most recent information available at the time of recertification.

While verification for the month of application is generally preferable, the District may use verification so long as it is no more than 60 days old relative to the first month of the new certification period and the household agrees that it is representative of their circumstances.

The District shall use the initial certification period procedure to verify changes reported since the last recertification.

At recertification the District shall verify the following:

a. All sources of income must be verified.

b. Medical and utility expenses must be verified if the amount has changed.

c. Newly obtained Social Security numbers (SSN) and/or SSNs that have not been verified previously.

   NOTE: Individuals who refuse to verify their SSN shall be excluded from the SNAP Program.

d. The date of birth of new household members or dates of birth that have not been verified previously.

e. When there is a change in the Child Support obligation or the amount

f. ABAWD work hours or hours of participation in work activities, if ABAWD requirements are not waived by the District

g. Changes in items other than income, medical expenses or actual utility expenses shall be subject to the same verification procedures as at initial certification. Some examples are:

   (1) Dependent care cost, if not questionable, may be reverified if the care provider changed or the amount has changed.

   (2) Shelter costs, other than utilities, may, if not questionable, be reverified only if the household has moved, or has reported a change in the amount of shelter cost components and the change could potentially affect the level of deduction. If the household reports a change in the cost of particular shelter components, only those components that have changed may be reverified.

   (3) A household's eligibility to claim the standard utility allowance may be reverified, if not questionable, only if the household has moved or changed utilities.

   NOTE: Unchanged information shall not be verified at recertification unless the information does not accurately reflect the household's income and deductions for the month of application.is inaccurate, inconsistent or outdated.

   NOTE: For households reporting a loss of income, the eligibility worker should make all efforts to verify the loss of income, including following up via telephone, using available data sources to verify the household's statement regarding the change in income or use of a collateral contact. If all options are exhausted, the eligibility worker should use the best

available information to make the eligibility decision and adjust benefits accordingly. Additionally, if all necessary steps have been taken to verify the income and the last resort is to rely on self-attestation, detailed case notes should be entered into the household's case file showing that all necessary steps had been taken to try and verify the income prior to relying on self-attestation. This should include documentation showing that collateral contact was made, available data sources were used, and a copy of the household's self-attestation.

NOTE: The rationale for verifying information, other than that which is required at recertification, must be documented in the case file.

h. General Requirements - The Client Information Book(s) must be provided at Recertification to all TA and SNAP Recipients at least once per year, except for households granted a 24-month certification period or NYSCAP and ESAP households with 36-month certification periods. In addition, when recertifications are more frequent than yearly, the books must be provided at each recertification.

As long as districts are using the 05/08 (or later) version of the LDSS-4826 and LDSS-4826Aor the 9/20 (or later) version of the LDSS-5166, they are not required to provide the Client Information Books (LDSS-4148A, LDSS-4148B and LDSS-4148C) to households that are applying or recertifying for SNAP Benefits. This is because information from the Client Information Books that must be provided to SNAP applicant households has been consolidated and included in the LDSS-4826A and LDSS-5166.

Districts must continue to provide the LDSS-4826A: "How to Complete the Food Stamp Benefits Application/Recertification and Applicant/Recipient Rights and Responsibilities for the Food Stamp Program" to all households applying and recertifying for SNAP benefits, unless they are using the LDSS-5166 to apply, and must continue to provide the Client Information Books (LDSS-4148A, LDSS-4148B and LDSS-4148C) upon request.

References:

387.17 Certification/authorization

273.14 Recertification

90 ADM-41 New Client Informational Books: DSS-4148A - "What You Should Know About Your Rights and Responsibilities (When Applying for or Receiving Social Services)" and DSS-4148B - "What You Should Know About Social Services Programs"

12 INF-06 Food Stamp Program Clarification of Required Documentation/Verification

96 LCM-83 Food Stamp Impact of New Federal Welfare Law

B. Changes During the Certification Period

1. Reporting Changes

a. All SNAP households are subject to Simplified Reporting requirements (six-month reporting) rules except:

(1) Households with no income

(2) Households certified for less than four months

(3) Group home residents in receipt of SSI or District

(4) Households in which all adult members are aged/disabled with no earned income (except NYSCAP cases)

(5) Migrant or seasonal farmers

(6) Undomiciled homeless household's (only shelter type 23)

Note: SNAP households that also receive Temporary Assistance (TA) continue to be required to report changes for TA within 10 days of the change.

Note: Households in receipt of Transitional Benefit Allowance (TBA) are not required to report changes during the five-month TBA period, other than if they are subject to ABAWD (able-bodied adult without dependents) requirements and their employment or other work activities falls below 80 hours per month even during the TBA period. If a TBA household wants to report a change that would increase SNAP benefits, they must recertify and TBA ends early. If a household fails to come in for this early recertification appointment, the SNAP benefits remain unchanged at the TBA amount until the end of the five-month TBA period. Do not close the case during the TBA period for this reason.

2. Changes Which Must Be Reported

1. The only change that households subject to Simplified Reporting requirements (six month reporting) are required to report is if their total household income exceeds 130% of the poverty level for their household size as set at the time of their last certification and when the hours of work for an Able Bodied Adult Without Dependents (ABAWD) who is in your SNAP household go below 80 hours a month within 10 days after the end of the month of change.

   For simplified reporting (six month) households, if reported during the certification period, only the following changes reported can be reflected in the SNAP benefit calculations:

(1) Total household monthly Income exceeds 130% of the poverty level. This report must be documented in writing. If reported by phone, worker must send a written request to client to confirm information.
(2) The information is considered verified upon receipt.
(3) The information is reported at recertification.
(4) The information is reported on a simplified periodic mailer.
(5) The household requests to have case closed.
(6) Changes resulting in a Temporary Assistance budget change.
(7) The household voluntarily reports and verifies information.

2. Households with earned income that are assigned seven-month or longer certification periods, are only required to report increases in their gross monthly income resulting in the household exceeding 130% of the monthly poverty income guideline for their household size during the certification period. Any other kind of income received besides earnings must be included in the household's total gross income such as, but not limited to:

   (1) Child support received
   (2) Unemployment Insurance
   (3) Temporary Assistance payments
   (4) Workers Compensation
   (5) Social Security Benefits
   (6) Supplemental Security Income
   (7) Private disability payments.

   For all NTA-SNAP HH's that are certified for 7 full months or more and have earned and/or unearned income (Except HH's in which all adult members are aged/disabled with no earned income):

   (1) These cases are sent a periodic mailer (LDSS-4310) which must be returned by the 10th day of the sixth month of their cert period, even if they have no changes to report.
   (2) Changes reported in the mailers must be processed even if it causes a decrease – unless the decrease is a "Simplified Deduction" (non-move shelter, medical, or childcare expenses).
   (3) If client does not return a completed mailer, they must be sent timely notice to close SNAP case.
   (4) Use "Quarterly Contact Data Mailer Sent" screens (WMS Menu selection 24) to identify households sent a mailer and post completed mailers in WMS.

   TA WAIVERS (Limited Local Districts): TA-SNAP households subject to simplified reporting, will receive a local TA six-month eligibility questionnaire (mail-in TA recert with SNAP penalty language under a TA waiver) and completion of the TA six-month mail-in recert is also a SNAP requirement for these households.

3. Change Reporter (ten day reporting) households must report the following changes within ten days following the month of change AND simplified

reporting households must report these changes on either the Periodic Report or Recertification:

(1) New address

(2) New rent or mortgage costs, if they move

(3) Changes in total household earned income when it increases or decreases by more than $100 since the last time the household SNAP budget was calculated.

(4) Increase in resources above the resource limit for those HH's not categorically eligible. For those HHs not Categorically Eligible, the resource test is applied. (See LDSS-4943: SNAP Benefits Cat. El. Desk-Aid).

(5) Changes in any source of income

(6) Change in household composition

(7) Changes in the amount of child support client is legally obligated to pay outside their home.

(8) Changes in total household unearned income when it increases or decreases by more than $100/month, if received from a public source (SS benefits, UIB, etc.).

(9) If client has an additional or change in licensed vehicles for those households not Categorically Eligible.

(10) If anyone in the SNAP household is an Able Bodied Adult Without Dependents ("ABAWD") the household must report if the ABAWD's work hours go below 80 hours a month within 10 days after the end of that month.

4. All Adult Aged/Disabled households with a 24 month certification period are sent a WMS-generated "Periodic Report Form" and cover letter in the 11th month of their certification period, which they must only return in the 12th month if they have one of the above reportable changes.

5. ESAP households are considered Simplified Reporters but MUST also report the following changes within 10 days after the end of the month in which the change happened:

(1) Changes in who lives with them

(2) if anyone in the household begins receiving earned income

(3) if any household member receives substantial lottery/gambling winnings above current thresholds won as a cash prize, in a single game, before taxes or other withholdings.

ESAP households will receive a contact letter 18 months into their certification period. They are NOT required to return this contact letter, but may do so voluntarily, and must document any changes prior to having their SNAP benefits increased**.**

6. At recertification, when changes occur between the Date of Interview and the date the Notice of Eligibility is issued, the household will have until ten days following the end of the calendar month the Notice of Eligibility was issued to report any changes.

7. NYSCAP households will receive an interim contact letter halfway through their certification that they must complete and return.

   Other than the interim contact letter, NYSCAP households are not required to report changes during the certification period. They can report any change that might cause an increase in their SNAP benefit. If reported and verified, worker needs to determine the effect on the SNAP case and adjust it accordingly.

NOTE: Sponsored aliens must report changes regarding sponsor's income, resources or sponsorship status.

3. No Action on Changes

For cases with earned income, Districts must not act on changes that would result in a decrease in the SNAP benefits unless:

1. The household has voluntarily requested that its case be closed in writing or in the presence of an eligible worker; or

2. The District has information about the household's circumstances considered verified upon receipt; or

3. There has been a change in the household's TA grant.

4. Requirements To Close Cases

The District must close a Simplified Reporter (six-month reporting) case with adequate notice (see SNAPSB Section 8 for definition/details of an adequate notice) when the household:

1. Reports in writing, or reports in person to an eligibility worker, an income that exceeds 130% (if the household receives SNAP benefits and is eligible for a dependent care deduction, or has an aged/disabled member, the household gross monthly income may not exceed 200% of Federal Poverty level for their household size. For households with earned income, the gross monthly

income may not exceed 150% of Federal Poverty level for their household size) of the monthly income guidelines for their household size or the household requests, in writing or in person, that the case be closed; or

2. Is on a certification period greater than seven-months and fails to complete and/or return the LDSS-4310 Periodic Report form by the 10th day of the 6th month of certification and they fail to verify income at the end of the 6th month; or

3. No longer resides in the state, or all household members are dead

5. TA/SNAP Cases

1. TA reporting rules already require reporting any income changes as they occur. This means that the current TA reporting rules for reporting changes within ten days will continue for TA cases.

2. However, should a TA/SNAP household fail to report a change as required by TA rules, and delays reporting that change until the next recertification, that change would not be considered an overpayment of SNAP benefits.

3. Consequently, income changes or all other changes (excluding ABAWD requirements) experienced during the certification period that result in the household remaining under 130% poverty level are not subject to SNAP quality control errors.

4. The case circumstances as verified by the District at the most recent certification interview are sufficient for continuing recurring benefits.

5. However, the household may voluntarily report changes that occur during the certification period. The household may report changes to meet TA reporting requirements. In those instances, the TA worker would act on the reported change to adjust the TA grant.

6. The TA/SNAP worker must consider these changes that are reported and take appropriate action to adjust benefits if the change is verified upon receipt and it results in a decrease or an increase in SNAP benefits.

7. If any TA case is discontinued for failure to comply with TA reporting rules, the SNAP portion of the case must be continued for the original length of the certification period, or longer if qualified for TBA (unless they become ineligible for other reasons).

8. SNAP certification periods may not be shortened for failure to comply with TA reporting requirements.

6. Date Change Is Reported

A household change is considered reported on the date the District receives the report delivered in person or by telephone. If the household's report is mailed, it is considered reported on the date the form is received. A report which is received by a District worker other than the IM/SNAP worker is still considered received on that date.

Note: Mail that is returned by the Postal Service as undeliverable with no forwarding address cannot be considered verified upon receipt, since the impact on the household is unknown. Thus, under simplified reporting, the district would not send an RFC or act on the returned mail but would follow up with the household at the next household contact or recertification.

7. SNAP Change Report Form (LDSS-3151)

1. The District must provide all households with a Change Report Form and pay the postage necessary to return the report form. The form is to be:
   (1) Provided at the time of certification to newly certified households
   (2) Provided at recertification
   (3) Replaced whenever a household reports a change

NOTE: The District may, at their option, provide households with a Change Report Form more often.

2. At a minimum, the following information must be sent to the household on the Change Report Form:
   a. A space for the household to report whether the change shall continue beyond the report month.
   b. The civil and criminal penalties for violations of the Food Stamp Act, written in understandable terms in prominent and bold face lettering.
   c. A reminder of the household's right to claim actual utility costs if the actual costs exceed the standard.

8. Periodic Report Form (LDSS-4310)

All SNAP households subject to simplified change reporting rules that have certification periods of more than seven months and have earned and/or unearned income shall receive the Periodic Report form (LDSS-4310).

The form is sent to households at the end of the fifth month of certification with the requirement to return by the 10th day of the sixth month of certification, even if they have no changes to report.

Changes reported in the mailers must be processed if it causes a decrease in the SNAP benefit- unless the decrease is to a "Simplified Deduction". Please see below.

a. Reported Changes in Income:

A report of an increase in income cannot be considered as verified upon receipt unless it includes exact new income amount, effective date of receipt, and any other information needed to recalculate the SNAP benefit amount. If a household is reporting a clear increase in earnings on the report, then workers must act on budgeting a reduction in benefits based the information reported by the household. No supporting documentation for reports of increased earnings is required because the household is the primary source and is considered as verified upon receipt.

If a household reports a decrease in earnings, then workers may <u>not act on a budget to increase benefits until the decrease is verified.</u> Verification may be from the employer or from pay stubs, but the district must not contact the employer directly without the household's permission. Otherwise, until the verification is received, benefits would remain unchanged until recertification.

b. Reported Changes in Simplified Deductions:

Districts will not reduce or discontinue the simplified deductions listed below between certification periods; all reported and verified increases in deductible expenses must continue to be processed:

(1) Dependent care deduction

(2) Medical deduction

(3) Excess shelter deduction, unless the shelter and/or SUA change because the household has moved, or the shelter-related changes are being budgeted for TA.

c. Closing SNAP Cases from Periodic Report Form Information

Districts must discontinue SNAP benefits of a Simplified Reporter (six-month reporting) household when the household:

(1) becomes ineligible based on a reported change in income that exceeds the 130 percent threshold.
(2) requests to have its case closed
(3) is certified for more than six months and fails to return a completed periodic reporting mailer (LDSS-4310) in their sixth month.
(4) no longer resides in New York State
(5) all household members have died; or
(6) is otherwise ineligible for reasons such as failure to meet ABAWD requirements, because all household members are sanctioned or disqualified, or for a reason that is voluntarily reported by the household such as ineligible student status.

9. NYSCAP 18 Month Interim Report (LDSS-4836)

Between certifications, the only reporting requirement for NYSCAP households is to respond to NYSCAP SNAP Benefit Interim Reports as set forth below NYSCAP households are required to complete Interim Reports.

a. Approximately 18 months prior to the end of the certification period, households are mailed the Interim Reports requesting that the households provide updated information regarding living arrangements, shelter costs, and utility expenses. Households are advised to return the completed form by the tenth day of the month following the month the Interim Report is received or SNAP benefits will be discontinued. Blank reports, reports submitted without required verification as set forth in section 387.8 of this Part, and unsigned reports will be treated as "No change" reports and processed for continuing NYSCAP eligibility at the current benefit amount.

b. Households that do not return the NYSCAP 18 Month Interim Report will have their case closed. The code EZ6 - Failure to Complete/Sign/Return NYSCAP 18 Month Interim Report is to be used to close the case.

c. A NYSCAP household is not required to report any changes except as provided in the above paragraph. When a household reports and verifies a change, in accordance with the above paragraph, and that change would affect the household's eligibility or change its benefit amount, the District must act upon that information.

d. SSA information is transmitted to or made available to the District by daily NYSCAP reports. Action by the District is required for certain case status changes. System-reported changes that require the District to make a determination of continuing eligibility for SNAP benefits include:

   (1) Loss of SSI income
   (2) Relocation from one District to another; or
   (3) Relocation to an ineligible living arrangement.

   System-reported changes that do not require the District to take action are changes in:

   (1) Income
   (2) Relocation within the same County
   (3) Relocation to an eligible living arrangement
   (4) Death

10. NYSCAP *Recertification*

a. All SNAP cases recertified into the NYSCAP are recertified for a 36-month period.

b. NYSCAP cases will need to follow the recertification process currently in place for all SNAP households to continue receiving ongoing benefits. The notice of expiration sent to the household will continue to be delivered with a SNAP application/recertification form. Districts will use the same verification requirements with NYSCAP cases that would be used with any standard SNAP recertification.

c. A NYSCAP household's failure to recertify for the SNAP results in case closing.

Reference:

09 ADM-22 Food Stamp Transitional Benefit Alternative (TBA) for Households with Children Leaving Safety Net Assistance

07 ADM-05 Food Stamp Change Reporting for Ten-Day Reporters

04 ADM-02 Changes in Food Stamp Program Change Reporting Rules

02 ADM-07 Food Stamp Program Reauthorization Changes

01 ADM-09 Six-Month Reporting Rules for Food Stamp Households With Earned Income

03 INF-10 Food Stamp Program Questions and Answers: Application Processing, Six-Month Reporting, Transitional Benefits and Standard Utility Allowances

GIS Message (12 TA/DC009) Release of Updated LDSS-3151

GIS Message (01 TA/DC010) Adoption of a New 6 Month Reporting Policy for Food Stamps with Earned Income

24-ADM-09 NYS Combined Application Project (NYSCAP)

GIS Message (21 TA/DC079) Preliminary Guidance Regarding the Elderly Simplified Application Project (ESAP)

C. District Action

1. Documenting Report

The District shall document the date the change is reported and take prompt action to determine if the reported change affects the household's eligibility or benefit level.

Household change reported by telephone or in person must be acted on in the same manner as those reported on the Change Reporting Form.

When the change does not alter the benefit level, the District must:

a. Document the information in the case file.

b. Send another change reporting form to the household, and

c. Notify the household of the change's effect on its eligibility or level of benefits.

2. Increasing Benefits

a. For changes which results in an increase in a household's benefit, other than changes described in item b. below, the District must make the change effective not later than the first allotment issued 10 days after the date the change was reported to the District.

EXAMPLE: A $30 decrease in income reported on the 15th of May would increase the household's June allotment. If the same decrease were reported on May 28th, and the household's normal issuance cycle was on June 1st, the household's allotment would have to be increased by July.

b. For changes which result in an increase in a household's benefits due to an addition of a new household member who is not a member of another certified household, or due to a decrease of $50 or more in the household's gross monthly income, the District shall make the change effective not later than the first allotment issued 10 days after the date the change was reported.

If a household reports to the District the birth of a child(ren) and an adult member of the SNAP household requests the newborn(s) be added to the SNAP case effective the month the child(ren) was/were born, the District shall add the newborn(s) to the SNAP case effective the date the newborn(s) enter the SNAP household and prorate SNAP benefits from the date the newborn(s) enter the SNAP household to the end of the month. If an adult member in the SNAP household reports the birth of a child(ren) but does not request SNAP benefits for the month the child(ren) was/were born, the District shall add the child(ren) to the SNAP case with an effective date of the first of the month following the month the change was reported.

However, in no event shall these changes take effect any later than the month following the month in which the change is reported. Therefore, if the change is reported after the 20th of a month and it is too late for the District to adjust the following month's allotment, the District must issue supplementary benefits or otherwise provide an opportunity for the household to obtain the increase in benefits by the 10th day of the following month, or the household's normal issuance cycle in that month, whichever is later.

EXAMPLE: A household reporting a $100 decrease in income at any time during May would have its June allotment increased. If the household reported the change after the 20th of May and it was too late for the District to adjust the benefits normally issued on June 1st, the District should issue supplementary benefits for the increase by June 10th.

3. Verifying Changes

The District shall verify changes, reported during the certification period in accordance with the same verification procedures as apply at initial certification. However, the District shall not verify changes in income, total medical expenses or actual utility expenses which are unchanged or have changed by $100 or less, unless the information is incomplete, inaccurate, inconsistent or outdated. Districts will not reduce the deductions for childcare, Medical or Excess shelter between recertification.

a. The District must allow the household 10 days from the date the change is reported to provide verification. The time frames shall run from the date the change was reported, not from the date of verification. If, however, the household fails to provide the required verification within 10 days after the change is reported but does provide the verification at a later date, then the time frames for taking action on changes shall run from the date verification is provided rather than from the date the change is reported.

b. In cases where the District has determined that a household has refused to cooperate, as defined in SNAPSB Section 4, the District shall terminate the household's eligibility following the notice of adverse action.

4. Restoring Lost Benefits

If the District fails to take action on a change which increases a household's benefit within the time limits specified above, all lost benefits shall be restored to the household as detailed in SNAPSB Section 11.

5. Decreasing Benefits

If during the certification period the household's benefit level decreases or the household becomes ineligible as a result of the change, the District shall issue an adverse action notice to the household. This may be accomplished by using the Client Notice System on WMS or by mailing a Notice of Intent to Change SNAP

Benefits (LDSS-3620) within 10 days of the date the change was reported. The notice must be timely (mailed at least 10 days before the date upon which the proposed action is to become effective). The notice of adverse action expires 10 days after it has been mailed.

The decrease or termination in the benefits must be made effective no later than the allotment for the month following the month in which the notice of adverse action period has expired, provided a fair hearing and continuation of benefits have not been requested.

Verification which is required must be obtained prior to recertification.

NOTE: Only an adequate (see SNAPSB Section 8 for a definition/details of an adequate notice) notice is required (it does not have to be timely, as indicated above) for a decrease or ineligibility as a result of a change in the first month of the household's certification period following recertification.

6. Failure To Report

The District must file a claim against the household when it discovers that a household failed to report a change as required and received benefits to which it was not entitled.

NOTE: Procedures for filing claims are detailed in SNAPSB Section 16.

If the discovery is made within the certification period, the household is entitled to a notice of adverse action if the household's benefits are to be reduced.

a. A household shall not be held liable for a claim because of a change in household circumstances which it is not required to report.

b. Individuals cannot be terminated for failure to report a change unless the individual is disqualified for intentional program violation.

References:

387.17 Certification/ Authorization

D. Public Assistance (Temporary Assistance) Households

TA households which report a change to a TA Eligibility Worker must be considered to have reported the change for SNAP purposes as well.

1. Change In TA Grant

a. Sufficient Information to Determine SNAP Eligibility - If a change reduces or terminates a household's TA grant during the SNAP certification period, and the District has sufficient information to determine the effect on the SNAP eligibility and benefits, the District must take the following action:

(1) If both the TA grant and SNAP benefits are reduced or terminated, the District should issue a single adverse action notice for both the TA and actions SNAP.

(2) If the household requests a fair hearing within the period listed on the adverse action notice, the household's SNAP benefits must be continued on the strength of its most recent certification. The household must reapply for SNAP benefits if its certification period expires before the fair hearing process is completed.

(3) If the household does not appeal the decision, the change must be made for the first regular issuance period after the expiration of the 10-day adverse action notice.

(4) If the TA grant reduction or termination increases the household's SNAP benefits, the District must issue the TA adverse notice. The household's SNAP benefits cannot be increased until it is known whether the household plans to appeal the adverse action.

If the household appeals and the TA grant is continued, the household's SNAP benefits must continue at the previous level.

(5) If the household does not appeal, the District must make the change effective for the first regular issuance period after the expiration of the TA adverse action notice.

(6) Any benefits lost due to the District's failure to act within the time limit must be restored to the household.

b. Insufficient Information to Determine SNAP Eligibility - Whenever a change terminates a household's TA grant during its SNAP certification period the household must be evaluated for Transitional Benefit Alternative (TBA) eligibility. If the household is TBA ineligible and sufficient information to determine the effect of the change on the household's SNAP eligibility and benefits is not available, the District must take the following action:

(1) When a TA adverse action notice has been sent, no action can be taken until the household's notice expires or the household requests a fair hearing, whichever occurs first. If the household requests a fair hearing

and its TA benefits continue pending the appeal, the household's SNAP benefits must continue without change.

(2) If a TA adverse action is not necessary, or the household did not request a fair hearing and continuation of the TA grant, the household must be sent a SNAP expiration notice stating that the certification period will expire at the end of the month after the month in which the expiration notice is sent. The notice will explain that the household can reapply if it wishes to continue SNAP participation. Also, the notice will advise that the certification period is expiring because of household changes which may affect its SNAP eligibility and benefits.

2. Temporary Assistance Closings and Transitional Benefit Alternative (TBA)

TBA is the Federal provision that permits NYS to provide transitional SNAP benefits to eligible households after leaving FA and/or Safety Net Assistance program to further support welfare reform goals and transitional supports for working families. The process and benefit calculation are described in **09 ADM-22**, **02 ADM-07**, **01 ADM-16**, and ABEL Transmittals 01-5 and 02-05. The Auto TBA SNAP benefit process is outlined in WMS/CNS letter dated 1/31/04.

District must determine TBA eligibility when a TA case closes and provide 5 months of SNAP benefits.

a. TBA is not available to households that at case closing:

(1) fail to comply with certain SNAP requirements, or

(2) to households leaving Safety Net Assistance (SNA) without children (Case Type 16 & 17) or

(3) converting from FA to SNA or

(4) do not have an active SNAP case

(5) closed for Failed to Appear for a TA and SNAP recertification interview

b. Eligibility for TBA

(1) SNAP households that will be entitled to TBA include all eligible SNAP households, with children leaving FA (Case Type 11), Safety Net Cash (Case Type 16), and Safety Net Federally Non-Participating (Case Type 17). Eligible households will include those consisting of FA recipients and non-FA recipients (Upstate SNAP Mixed case type) whose FA cases are closing, as long as the households no longer receive TA benefits, and the households meet all other TBA eligibility criteria. SNAP mixed cases are not included in the Auto TBA SNAP process; however, they must continue to be processed for the TBA as long as the SNAP household no longer receives TA.

(2) A "child" is defined here according to the SNAP definition contained in the Food and Nutrition Act of 2008. To be eligible for TBA, a household leaving SN-CSH or SN-FNP assistance must include a child who is under 22 years of age and living with a parent, or a child who is under 18 years of age and under the parental control of an adult member of the household or who is a minor head of household at the time of the Safety Net case closing. The child/children do not need to be participating in either the Safety Net case or the SNAP case at the time of the Safety Net case closing. Otherwise, qualified eligible households include households having:

(a) A child who is receiving SSI and SNAP, but not SNA benefits; or

(b) A child who is an ineligible immigrant for both the SNAP and SNA programs; or

(c) A child who is sanctioned for violations under the SNA program; or

(d) A minor head of household.

Children must be identified in either the Safety Net or SNAP case record on WMS as either active (WMS individual disposition status code 07), sanctioned (WMS individual disposition status code 10) or inactive household members at the time of the Safety Net case closing in order for the household to be eligible for TBA. Households that have not reported and verified the residence of a child, as defined above, in the household at the time of Safety Net case closing will not be eligible for TBA.

(3) FA time-limit cases that are closing for failure to respond to a FA reassessment or SNA application call-in or fail to sign a SNA repayment agreement or earnings assignment, will qualify for TBA unless they fall under the TBA exceptions listed below.

(4) Households that do not receive SNAP benefits at the time of FA case closing, but subsequently apply for SNAP benefits, are not eligible for TBA. Households leaving Safety Net cash (Case Type 16) or Safety Net Non-Cash (17) are not eligible for TBA.

(5) As with TBA for households leaving TANF-funded cash assistance, Safety Net households with children who have a member participating in an employment program that provides wages that are funded or reimbursed, at least in part, through the diversion of the household's **entire** Temporary Assistance grant ($0 cash grant case) are considered to have left cash assistance and are eligible for TBA. Please see either GIS 09TA/DC016 or 09 ADM-11 for further information regarding TBA and employment grant diversion programs.

(6) When a TA household reports a change and is requested to provide verification to determine ongoing TA eligibility, but the TA case closes for failure to provide the verification, SNAP eligibility must be separately determined. The separate determination is processed as a TBA case for TANF or federally funded SNA leavers. For Non-federally funded SNA leavers who are subject to six-month reporting rules, a separate determination to continue SNAP for the remainder of the certification period must be processed.

(7) TA households that recertify but fail to verify new information may qualify for the TBA because new information is not used in calculating the TBA benefit. If these households are otherwise TBA eligible, the Auto TBA Process will be supported. TA closings, including recert closings, using a case reason code = V20, V23, V24 and V25, that are otherwise eligible for the TBA, require an entry of SNAP case reason code J05 or J06 (Separate SNAP Notice will be provided).

(8) District must provide the TBA to all families who leave FA and SNA, except those noted below:

(a) District must not provide the TBA to a household leaving FA if it includes a member who, at the time of the closing, has:

i. Violated a TANF requirement and the District is imposing a comparable SNAP sanction or closing, e.g., failed to provide a social security number or to recertify

ii. Violated a SNAP work requirement

iii. Committed a FA/SNA or SNAP intentional program violation (IPV); or

iv. Failed to comply with SNAP reporting requirements, e.g., the District discovered unreported income or resources through computer matching, indicating noncompliance with SNAP reporting requirements.

(b) When evaluating TBA eligibility, Districts are reminded to consider whether a FA/SNA SNAP case, which is subject to simplified reporting requirements for SNAP, has complied with SNAP reporting requirements, even if it has not complied with a higher standard of reporting requirements for FA or SNA. If such a household has complied with SNAP reporting requirements, the household is eligible for TBA.

(9) Households that have a member who incurred **and completed** a sanction or IPV disqualification prior to the closing of the FA/SNA case, if otherwise qualified, are eligible for the TBA. Districts must ensure that TA staff carefully

evaluates the TA category of assistance and reason for the FA closings to determine TBA eligibility.

(10) Households sanctioned under TA but not under SNAP may still be eligible for the TBA under certain circumstances.

EXAMPLE: A FA household consists of a parent and a 3 year old child. The parent works part-time and is sanctioned for failure to comply with FA work requirements. The FA case subsequently closes due to client request. This household is eligible for the TBA because the parent is not under a SNAP sanction. As a parent with a dependent child under the age of six, the parent is exempt from SNAP work registration and requirements. However, a household is ineligible for the TBA if it contains a member disqualified from either TA or SNAP due to an Intentional Program Violation (IPV), or if the District is imposing a comparable SNAP sanction on a member that has violated a TANF requirement.

(11) Households that are not eligible for the TBA may still be eligible for SNAP benefits. Districts must determine their continued eligibility based on normal SNAP separate determination procedures. Districts are reminded that this must be accomplished without shortening the certification period or requiring households to report for an in-office interview. Instead, as instructed by 01 ADM-08, when information is needed during the certification period, Districts must send the LDSS-4753 "Request for Contact Notice" and allow households at least ten days to submit the required information.

EXAMPLE: A parent on FA is employed part-time. The client is disqualified from FA and SNAP for committing an IPV. The client's FA case closes 03/31/02 for failure to submit a TA periodic report. The IPV disqualification would prohibit the household from being eligible for the TBA; however, the household is entitled to a normal separate SNAP determination with the IPV continued**.**

(12) Households closed for failure to appear for the TA and SNAP recertification interview are ineligible for TBA.

(13) If a household leaves FA and reports a move The "from" district is responsible to process the TBA case for the full transition period. A separate determination would be done to create the TBA case and to generate the proper notice language. The TBA case can be closed with adequate notice at the end of the transition period by using the CNS code E61. This will notify the household that it must reapply in the new district.

EXAMPLE: An FA household requests to have its case closed because of a job offer in another district. The household provides verification of the new residence but is unable to provide verification of the job. The household is eligible for transitional SNAP benefits. The "from" district would open and maintain a separate SNAP case for the transition period and then close the

case with adequate notice using CNS reason code E61-"Not a Resident of District."

c. Determining the TBA Amount

All transitional SNAP benefits will be calculated by removing the TA income from the pre-TA closing SNAP budget. No other changes or budget comparisons will be made, and transitional benefits remain frozen at the set level until the household recertifies. Transitional households are not required to report changes during the transition period. Households experiencing changes that would result in benefit increases may request to be recertified before the expiration of the five-month transitional period, thereby ending their transitional period early. Households will be notified that they may voluntarily report changes that may result in an increase in SNAP benefits, but that they must recertify to receive the increase and end their transitional benefit period.

d. Determining the Transition Period

Districts must authorize five months of transitional benefits for Family Assistance and Safety Net Assistance leavers who are eligible for transitional benefits. The five months must be issued even if it results in extending a household's certification period beyond the 12-month limit imposed on most cases. WMS modifications will support the five-month transition period for households starting their transition period on October 1, 2002, or later.

EXAMPLE: A Family Assistance (FA) household is certified from 10/1/02 to 09/30/03. The household closes FA effective 8/31/03 due to excess earned income. The household would receive transitional SNAP benefits from 9/1/03 to 1/1/04. The original TA/SNAP certification period is extended four months beyond the 12-month limit to allow five months of transitional SNAP benefits.

e. Recertification

All transitional SNAP households must recertify in order to continue to receive SNAP benefits after the five-month transitional period. In some instances, this will require districts to shorten the original SNAP certification period. The authority to shorten the SNAP certification period for transitional households only is the result of the statutory change in P.L. 107-171.

EXAMPLE: An FA household is certified from 10/1/02 to 09/30/03. The household closes FA effective 11/30/02 due to excess earned income. The household qualifies for transitional SNAP benefits from 12/1/02 to 4/30/03 and the household must recertify to receive (non-transitional) SNAP benefits beyond 4/30/03.

(1) The following rules apply to client-requested recertifications for transitional SNAP households:

a. Households must be allowed to file a client-requested recertification at any time during the transition period.

b. Unless conducted on the same day as the recertification filing date, client-requested interviews must be scheduled as soon as possible, but no later than 10 days prior to the end of the month following the month in which the recertification is requested. A transitional SNAP household that fails to show for a scheduled interview must have their transitional SNAP benefits continued until the end of the transition period.

c. Only changes voluntarily reported and verified through a client-requested recertification that will result in an increase in SNAP benefits will "unfreeze" the SNAP benefit. These households will be recertified and the increased SNAP benefit will be issued for the new certification period that will begin with the month after the month in which the household completes all recertification requirements. A transitional SNAP household that requests an early recertification but fails to provide required verification or reports changes that result in a decrease in benefits, will continue to receive its transitional SNAP benefits unchanged until the end of the transition period.

EXAMPLE: A household calls and requests to have their TA case closed because they have new earnings. The household is unable or fails to provide sufficient information about their income. This household qualifies for the TBA, and the verification is postponed until the end of the 5-month transition period. The transitional SNAP benefit would be calculated by removing the TA income from the pre-TA/SNAP budget.

f. Notification of TBA Eligibility

Districts must notify a household when it is determined to be eligible for TBA and inform the household of its SNAP benefit amount, transition period, change reporting requirements through early recertification and that a return to TA would end the TBA. The WMS Auto TBA process in both Upstate and NYC, will system generate required notification (WMS CNS code = B17). This can also be manually accomplished by using CNS codes for separately determining SNAP eligibility. For TA/SNAP cases the CNS Code J05 used with SNAP opening codes B18 or B19 (for SNAP Mixed cases, B20 or B21) CNS will generate the appropriate TBA language when a "T" is entered in the "SD" input field of the ABEL budget to calculate TBA benefits.

g. Reporting and Processing Changes During the Transition Period

(1) Households are not required to report changes during the TBA period. TBA households that are subject to six-month reporting rules are **not** required to report changes during the TBA period even if their gross monthly income exceeds 130 percent of the poverty level.

(2) If the household requests to have its SNAP case closed during the TBA period, however, the District will close the case.

(3) TBA households are not subject to sanctions for instances of non-compliance with SNAP employment and training requirements that occur during the TBA period.

(4) When a TBA household moves to another District during the TBA period, the "from" District must continue the TBA case to the end of the TBA period. Changes reported and verified during the TBA period that will result in an increase in SNAP benefits must be processed by the "from" District. When an active TBA household applies for SNAP benefits in a new District, the WMS clearance report for Upstate Districts will reflect an active SNAP case. The presence of a "T" in the "SD" (Separate Determination) field of the ABEL SNAP budget will identify a case as TBA.

3. Temporary Assistance Closings – Not TBA Eligible

a. When closing a TA case for failure to return a mail-in recertification, the SNAP portion of the case should also be closed. The mail-in recertification for TA is also required for continued SNAP eligibility and it equates to the SNAP periodic report.

   Effective 2/15/2015, the SNAP 'M12' Reason Code can only be used in combination with the TA 'M12' Reason Code, and SNAP Reason Codes, 'E50-E54' and 'N53' will no longer be allowed in combination with TA Reason Code 'M12.'

b. When closing a TA case for any procedural or financial reason and the household is eligible for a non-TBA SNAP separate determination.

References:

09 ADM-22 Food Stamp Transitional Benefit Alternative (TBA) for Households with Children Leaving Safety Net Assistance

09 ADM-11Transitional Employment Advancement Program

02 ADM-07 Food Stamp Program Reauthorization Changes

01 ADM-16 Transitional Benefit Alternative: Transitional Food Stamp Benefits for Family Assistance Leavers

09 INF-24 Questions & Answers from September 2009 Conference Call on the Transitional Employment Advancement Program (TEAP)

03 INF-10 Food Stamp Program Questions and Answers: Application Processing, Six-Month Reporting, Transitional Benefits and Standard Utility Allowances

GIS 09TA/DC016 Transitional Food Stamp Benefits for Participants of TA Grant Diversion Programs (TEAP)

GIS 04 TA-DC013 Clarification of FS TBA policy

ABEL Transmittal 09-4 Information #3: Food Stamps Transitional Benefit Alternative (TBA) Expansion

ABEL Transmittals 01-5 Information #1: Food Stamp Transitional Benefit Alternative (TBA)

ABEL Transmittals 02-5 Information #2: 2002 Food Stamp Program Reauthorization Changes

WMS CNS Letter 10-2-09 Explanation of the WMS/CNS enhancements scheduled to become operational on the Production System October 19, 2009

WMS/CNS Letter 1/30/04 Announcement - AutoTBA Food Stamp process scheduled to be on the Production System

7 CFR 273.12(f)(4) Requirements for change reporting households

P.L. 110-246, Food Conservation and Energy Act of 2008, Section 4106

E. Mixed Households

When a District becomes aware that a TA household has become a mixed household due to the addition of a non-TA household member or the deletion of a member from the TA grant, the following procedures shall be followed:

a. If the District has enough information to redetermine SNAP eligibility and benefit level, it must do so according to normal procedures for changes in household circumstances in currently certified cases.

b. If the District does not have sufficient information to redetermine eligibility, it shall send the household a Request for Contact (RFC) without shortening the household's certification period. The household's SNAP case must continue unless any new income would exceed the 6-month reporting income threshold.

References:

01 ADM-09 Six-Month Reporting Rules for Food Stamp Households With Earned Income

F. Reconstituted Households

1. Issuing Benefits

In the month an original SNAP household separates, no additional benefits may be issued to any leaving members applying separately on their own behalf (except as residents of shelters for battered women and children), since during the month those individuals participated as members of the original household.

The separated household members applying on their own behalf, if satisfying the definition of a SNAP household and otherwise eligible, shall, however, be entitled to benefits for the month following the month they separate from the original household. This is the case even if the separating members leave the original household at a time in the month where the District issues a notice of adverse action to the original household. The notice, for example, would not expire until two months following the month the household members separated.

The separated household members in this instance are determined not to have participated as members of the original household in the month following the month they separated from the original household, even though benefits issued to the original household for this month are determined as if the separated members are still members of the original household.

This circumstance presents no basis for filing a claim of overissuance against the original household unless resulting from an untimely reporting of a change in household circumstance by the original household.

EXAMPLE: Alice Jones and Alice's two children reside with Alice's sibling Mary Smith and Mary's two children. Together they comprise one food unit with Alice designated as head of household for receipt of SNAP benefits. On July 1st, the Jones household receives its normal issuance of SNAP benefits. On July 22nd, Mary and Mary's children move out of the Jones household and apply as their own separate SNAP household. If otherwise eligible, benefits are issued to the new Smith SNAP household effective August 1st, with the Smiths having already participated as members of the Jones household for the month of July.

The District subsequently issues a notice of adverse action to the Jones household on July 22nd, reducing their benefits effective September 1st. Since this reduction notice cannot expire prior to the August issuance date, the August allotment for the Jones household must be the same amount as in July even though this amount includes the Smith members. If otherwise eligible, the Smith household is then issued benefits separately for August and no overissuance has occurred.

G. Mass Changes

1. Definition

A mass change is a change initiated by the State or Federal Government which affects the entire caseload or significant portions of the caseload. These changes include but are not limited to:

a. Adjustments to the gross or net income eligibility standards, the shelter and dependent care deductions, the Thrifty Food Plan and the standard deduction

b. Adjustments to the Standard Utility allowances for heat, other utilities and telephone

c. Periodic cost-of-living adjustments to Retirement, Survivors and Disability Insurance (RSDI), Supplemental Security Income (SSI) or other Federal benefits.

d. Adjustments to TA benefits

e. Changes in eligibility and benefit criteria based on legislative or regulatory changes.

2. Mass Changes in Public Assistance

a. When there is at least 30 days advance knowledge of the TA adjustment amount, the District must change all TA/SNAP household SNAP benefits in the same month they make the general TA change.

b. When the Districts do not have 30 days notice of the TA adjustment amount, the SNAP benefit change must be effective no later than the month after the month in which the TA change was made.

3. Mass Changes in Federal Benefits (RSDI And/or SSI)

a. Households which receive RSDI, SSI and/or veteran's assistance and are not responsible for reporting a cost-of-living increase to the District. The SNAP benefit levels of such households are to be automatically adjusted effective the date of the increase. The exact amount of the new RSDI, SSI, and/or veteran's assistance benefits must be verified at the next client contact or the next regularly scheduled recertification interview. Readily available sources of documentation such as federal or state reports are to be used to verify the actual amount of the increase. Any difference between the flat computation and the actual increase will not be considered a Quality Control error until after first client contact.

b. The benefits of households which are affected by a cost-of-living increase in RSDI, SSI and/or VA must also be automatically adjusted effective in the

appropriate month. However, households subject to simplified reporting requirements are also required to report the change on the periodic report.

4. Notice Requirements

SNAP households must be notified of any increase, decrease or termination of benefits, which results from a mass change. For specific requirements see SNAPSB Section 8.

5. Fair Hearings and Continuation Of Benefits

A household is entitled to a fair hearing as a result of a mass change to contest issues of improper computation of eligibility or benefits or misinterpretations of Federal law or regulation. The household is entitled to continued benefits at its previous level while awaiting the result of the fair hearing, if the appropriate time frame for requesting the hearing is observed and the household does not specifically waive its right to a continuation of benefits. Also see SNAPSB Section 9.

References:

358.2.12 Fair Hearings

358-3.6 Right to Aid Continuing

03-INF-10 Food Stamp Program Questions and Answers: Application Processing, Six-Month

SECTION 7: Discontinuing Eligibility

A. Reduction/Termination of Benefits of Households Containing Ineligible/Disqualified Individuals

1. Reduction Or Termination of Benefits Within the Certification Period

   When an individual becomes ineligible or disqualified during the certification period, the eligibility of the remaining household members should be based to the extent possible on case file information. The law specifies that when a recipient is found to have committed an IPV by a State or Federal court or State administrative disqualification hearing (ADH), his or her needs must be removed from consideration in determining the grant for a period of time determined by the number of IPVs committed.

   If a household's benefits are reduced or terminated within the certification period, the district shall issue a notice of adverse action. The notice of adverse action shall:

   a. Inform the household of the ineligibility/disqualification.

   b. The reason for ineligibility/disqualification.

   c. The eligibility and benefit level of the remaining members.

   d. The actions the household must take to end the ineligibility/disqualification; and,

   e. The household’s right to a fair hearing.

2. Intentional Program Violation

   When a household's benefits are reduced or terminated within the certification period because a member has been disqualified due to and intentional program violation, the district must notify the remaining members of their eligibility and benefit level at the same time the disqualified individual(s) is notified of his/her disqualification, using "IPV Disqualification Notice for TA and SNAP Programs" (LDSS forms 4799 and 4827). See SNAP SB Section 16.

   The household is not entitled to a notice of adverse action, but it can request a fair hearing to contest the reduction or termination of benefits, unless the household has already had a fair hearing on the amount of the claim as a result of consolidation of the administrative disqualification hearing with the fair hearing.

It is important to note that a household disqualified for a public assistance IPV shall not be disqualified for SNAP solely by reason of a public assistance IPV. Districts must establish whether a public assistance IPV also results in a SNAP IPV. Therefore, for TA/SNAP cases where a public assistance IPV disqualification is imposed, districts must make a separate determination for the SNAP portion of the case.

References:

387.16 Special provisions for household circumstances

93 ADM-8 Disqualifications for Intentional Program Violations

7 CFR 273.11 (c) (ii)

B. Disqualification for Intentional Program Violation

This section describes the processes and procedures that must be followed when a SNAP recipient is accused of intentionally violating the requirements of the SNAP in a fraudulent manner. If such a recipient is found to have committed an intentional program violation (IPV), the recipient may be disqualified from participation in such program for the periods of time set forth in this section.

NOTE: Except for matters involving fraud (acts committed prior to August 1, 1983) as defined in Department Regulation 399.1(a), the provisions of Department Regulation 399 are superseded by the provisions of Department Regulation 359. Any matters or procedures commenced pursuant to Department Regulation 399 prior to June 30, 1992, will be continued in accordance with the provisions of Department Regulation 359 as if the matter had been commenced in accordance with such provisions. Department Regulation 359 will apply to all further proceedings in pending matters initiated pursuant to Department Regulation 399, except to the extent that a hearing officer determines that application of Department Regulation 359 in a particular pending matter would not be feasible or create an injustice, in which event the procedures under Department Regulation 399 may be used. Proceedings held pursuant to the laws and regulations in existence prior to June 30, 1992 will not be impaired by Department Regulation 359.

Reference:

359.0 Disqualification for Intentional Program Violation, Scope

399.11 Food Stamp Fraud and Food Stamp Intentional Program Violations-Disqualifications

C. Definitions

1. **SNAP IPV -** The commission of one or more acts in violation of standards of SNAP. A SNAP IPV occurs when an individual has intentionally:

    a. Made a false or misleading statement, or misrepresented, concealed or withheld facts concerning the individual's eligibility for SNAP; or

    b. Committed any act constituting a violation of the requirements of SNAP, including, but not limited to, acts constituting a fraudulent use, presentation, transfer, acquisition, receipt, possession or alteration of SNAP Benefits, CBICs, BINs or any other evidence of the individual's eligibility for SNAP.

2. **Administrative Disqualification Hearing -** Administrative disqualification hearing means a hearing scheduled by the OTDA, at the request of a district, upon the submission by the district of sufficient documentary evidence to establish that an individual has committed one or more acts in violation of program standards described in number 1 above.

3. **Waiver Of Administrative Disqualification Hearing -** Waiver of administrative disqualification hearing means an election of an individual, in compliance with the provisions of this section, to accept the imposition of an appropriate penalty contained in this section without a hearing.

4. **Disqualification Consent Agreement -** Disqualification consent agreement (DCA) means a document signed by an accused individual in which an individual or any caretaker relative or head of household admits to committing an IPV and consents, as described in this section, to the imposition of an appropriate disqualification penalty, as set forth in this section without a trial.

5. **Head Of Household -** The head of household is the member of the applicant household designated by the household to represent the household in all matters pertaining to its eligibility for and receipt of benefits. The head of household classification must not be used to impose special requirements on the household, such as requiring that the head of household, rather than another responsible member of the household, appear at the certification office to apply for benefits.

    NOTE: Except for matters involving fraud (acts committed prior to August 1, 1983) as defined in Department Regulation 399.1(a), the provisions of Department Regulation 399 are superseded by the provisions of Department Regulation 359. Any matters or procedures commenced pursuant to Department Regulation 399 prior to June 30, 1992, will be continued in accordance with the provisions of Department Regulation 359 as if the matter had been commenced in accordance with such provisions. Department Regulation 359 will apply to all further proceedings in pending matters initiated pursuant to Department Regulation 399, except to the extent that a hearing officer determines that application of

Department Regulation 359 in a particular pending matter would not be feasible or create an injustice, in which event the procedures under Department Regulation 399 may be used. Proceedings held pursuant to the laws and regulations in existence prior to June 30, 1992 will not be impaired by Department Regulation 359.

References:

359.1 Definitions
399.1 Definitions
359.3 Standards

D. Responsibilities

1. Dual Responsibility

The OTDA and Districts have the responsibility for investigating the alleged commission of IPVs and ensuring that the procedures set forth in this Section are followed.

2. Change In Regulation

Except for matters involving fraud (acts committed prior to August 1, 1983) as defined in Department Regulation 399.1(a), the provisions of Department Regulation 399 are superseded by the provisions of Department Regulation 359. Any matters or procedures commenced pursuant to Department Regulation 399 prior to June 30, 1992, will be continued in accordance with the provisions of Department Regulation 359 as if the matter had been commenced in accordance with such provisions. Department Regulation 359 will apply to all further proceedings in pending matters initiated pursuant to Department Regulation 399, except to the extent that a hearing officer determines that application of Department Regulation 359 in a particular pending matter would not be feasible or create an injustice, in which event the procedures under Department Regulation 399 may be used. Proceedings held pursuant to the laws and regulations in existence prior to June 30, 1992, will not be impaired by Department Regulation 359.

3. Administrative Hearings

Administrative hearings for a SNAP IPV may be scheduled by the OTDA, provided that not more than six years have elapsed between the month an individual committed an IPV and the date on which the District discovered the IPV, and the OTDA determines that there is evidence to substantiate that an IPV has occurred.

4. Inadvertent Household Error

Unless specifically granted written authorization to proceed directly on an SNAP IPV by either a district official or his or her authorized representative or the appropriate district attorney, or by any other prosecutor authorized to act on the matter, on the grounds that to do otherwise would prejudice the prosecution of an SNAP IPV allegation, a district must initially treat the allegation as an inadvertent household error prior to either referring the case to the district attorney or processing the allegation for an administrative disqualification hearing. A district's failure to comply with the provisions of this Section will not affect the OTDA's determination at a hearing or a court's determination when an allegation is referred by a district to the appropriate district attorney or any other prosecutor for prosecution. Non-compliance with the provisions of this section will not affect

the amount of any SNAP allotment reduction authorized in this section after a hearing decision is issued that a SNAP IPV has occurred.

5. Social Services District Investigation Unit Operations Plan

districts must file their Investigation Unit Plan with the OTDA when a change is made to a previously submitted plan. This plan must include:

- A description of the organizational unit(s) responsible for the investigation of allegations of client fraud.
- A description of any claims establishment (recoupment) and collection activities for which the fraud referral unit may also be responsible.
- Procedures for the referral of fraud cases for administrative hearings.
- A description of the organizational unit(s) responsible for the prosecution of allegations of client fraud.
- Detailed procedures for the referral of fraud cases to the prosecuting authority.
- A detailed, step by step description of the DCA process following the guidelines set forth in 91-ADM-51 and 18 NYCRR 359.4.
- An explanation of how it is proven that the individual was advised on the record of the court of the disqualification provision prior to entering any plea; and
- A copy of or a statement of the agreement with the prosecuting authority's office in accordance with 18 NYCRR 348.2(c) and 359.4, and the federal regulation 7 CFR 273.16(g)(1). This agreement must include information on how, and under what circumstances, cases will be accepted for possible prosecution and the criteria set by the prosecutor for accepting cases for prosecution. The criteria should include, but not be limited to, the dollar threshold and the type of violation.

All Plans must be submitted to:

NYS Office of Temporary and Disability Assistance
Office of Audit and Quality Improvement
Program Integrity
40 N Pearl Street
Albany, NY 12243

Social services districts must report information on individuals who have been found to have committed SNAP IPVs to the OTDA's Program Integrity Unit.

6. Referral to the Investigation Unit

When an inconsistency in the facts of a SNAP case is discovered, the SNAP worker must document the inconsistency, including the amount of any over issuance and determine whether it was the result of a potential IPV.

- If the worker has reason to suspect an individual has committed an act which may be an IPV, the worker starts the recoupment.
- For TA, a timely and adequate notice must be sent and if there is a SNAP impact, a repayment agreement must also be sent. This may be done concurrently with referring the case to the district's Investigation Unit.
- The procedures for making the referral must be established by the district.
- The Investigation Unit then investigates the alleged/potential IPV. There does not have to be an actual overpayment and/or over issuance to be an IPV.
- If the Investigation Unit determines that the allegation is unfounded or that all the elements necessary to process the case further as an IPV are not present (e.g., unavailability of pieces of documentary evidence required to prove the intent of the client), no further action is taken, and the eligibility worker is notified to begin the recovery of over issuances if this has not already begun.

  NOTE: Except for matters involving fraud (acts committed prior to August 1, 1983) as defined in Department Regulation 399.1(a), the provisions of Department Regulation 399 are superseded by the provisions of Department Regulation 359. Any matters or procedures commenced pursuant to Department Regulation 399 prior to June 30, 1992, will be continued in accordance with the provisions of Department Regulation 359 as if the matter had been commenced in accordance with such provisions. Department Regulation 359 will apply to all further proceedings in pending matters initiated pursuant to Department Regulation 399, except to the extent that a hearing officer determines that application of Department Regulation 359 in a particular pending matter would not be feasible or create an injustice, in which event the procedures under Department Regulation 399 may be used. Proceedings held pursuant to the laws and regulations in existence prior to June 30, 1992 will not be impaired by Department Regulation 359.

Reference:

359.2 Applicability

399.11 Effectiveness of this Part

93 ADM-8 Disqualifications for Intentional Program Violations

15 INF-07 Investigative Unit Operations Plan (Revised)

E. Referral To Prosecuting Authorities

The district must refer a case involving a SNAP IPV in which it believes the facts warrant civil or criminal prosecution to the appropriate District Attorney (DA) or to any other prosecutor authorized to action the matter, and not to the OTDA for an administrative disqualification hearing. This will not apply in instances in which the district has received prior notification from the DA, or other equivalent prosecutor that the amount of the overpayment or over issuance determined by the district to exist is less than the amount which the appropriate official has deemed sufficient for prosecution, provided that the district has not been notified by any other prosecutor authorized to act on the matter that such prosecutor intends or desires to prosecute such matter. The OTDA may not reverse a determination following an administrative SNAP disqualification hearing for lack of compliance with this provision.

NOTE: Conviction of or a plea of guilty to violation of SSL 145.1 does NOT establish guilt of a Supplemental Nutrition Assistance Program (IPV) since SSL 145.1 addresses public assistance or care and omits SNAP benefits. NTA cases and the SNAP portion of TA cases, therefore, should NOT be prosecuted under SSL 145 and should not be treated as IPVs. A conviction for the misuse of SNAP benefits under SSL 147 or any section of the Penal Law should be categorized as an IPV.

1. Deferred Adjudication

When a case is accepted for prosecution, the appropriate prosecutor may choose to settle the case or a court of appropriate jurisdiction hearing the case may issue an order, such as an order, adjourning the case in contemplation of dismissal provided restitution is made. In such cases, the district may use a DCA as described below.

2. Disqualification Consent Agreement (DCA)

A disqualification consent agreement LDSS-4903 is a document in which any individual, caretaker relative, or head of the household consent to the imposition of the appropriate disqualification penalty contained in this section without a trial. In cases of deferred adjudication, the district may utilize a disqualification consent agreement under the following conditions:

a. districts which choose to use disqualification consent agreements must enter into a written agreement with the appropriate prosecutors which specifies that all households will be provided with advance written notification of the consequences of signing a disqualification consent to all households when deferred adjudication is offered.

   Since each prosecutor's office may have its own requirements for an agreement, each district should design its own format for the written agreement between the district and the appropriate prosecutors. Once the written agreement is signed, a copy must be forwarded to the New York State Office of Temporary and Disability Assistance, Office of Audit and Quality Improvement, Program Integrity Unit as must all future agreements and modifications.

b. Because no further administrative appeal is available to a client who has entered a DCA, it is important that the district do a complete and thorough investigation of the allegation.

   (1) Additionally, an adequate screening and review process must be established to ensure that only appropriate cases are referred to the appropriate prosecutor. Evidence packages referred to the DA must sustain the district's contention that an Intentional Program Violation has occurred.

   (2) A DCA is to be used only when the appropriate prosecutor has determined that the elements necessary to pursue a prosecution are present and has accepted the case for prosecution.

c. Unless a DCA is completed by the appropriate prosecutor's office directly, the DA must provide written delegation for each case in which the district is being authorized to act on the appropriate prosecutor's behalf in obtaining a DCA. This delegation must state that the case has been accepted for prosecution by the appropriate prosecutor, but such prosecution will be deferred if the client enters the DCA.

d. In all DCA cases, the advance written notification of the consequences of entering a DCA must be sent by the district at least ten calendar days before the date of the scheduled interview to discuss signing the DCA. This advance notification appears on the front page of the DCA currently used by the districts.

   (1) All districts must review their procedures to ensure that a copy of the DCA with the advance notice language is provided at least ten days before the client is required to meet with the county representative to discuss signing the DCA.

   (2) The accused client's understanding of the consequences of entering a DCA is evidenced by signing the consequences statement.

   (3) If the accused client who signs the consequences statement is not the head of household, the consequences statement must also be signed by the head of household.

e. The form to be used in completing the DCA, which combines the advance notice, is LDSS-4903. This form must be produced locally with no variations.

f. A DCA must be in a format prescribed by the OTDA and must include:

   (1) Notification to the accused individual of the consequences of signing the agreement and consenting to a disqualification penalty.

   (2) A statement for the accused individual to sign indicating that he or she understands the consequences of signing the agreement, along with a statement that any caretaker relative or head of household must also sign the agreement if the accused individual is not the caretaker relative or head of household.

(3) A statement that signing the agreement will result in disqualification of the accused individual and reduction or discontinuance of assistance or SNAP benefits for the disqualification period, even if the accused individual was not found guilty of civil or criminal misrepresentation or fraud.

(4) A statement describing the disqualification period which will be imposed because of the accused individual's signing the agreement; and

(5) A statement that the remaining members of the household or assistance unit, if any, will be held responsible for repayment of the overpayment or over issuance, unless the accused individual has already repaid the overpayment or over issuance as a result of meeting the terms of any agreement with the prosecutor or any court order.

g. The advance notice appointment letter must contain the information that the client is entitled to have a representative present when executing the DCA.

References:

359.4 Referral to Prosecuting Authorities

399.11 Effectiveness of this Part

91 ADM-51 Use of the Disqualification Consent Agreement (DCA) in the Food Stamp Program

F. Commencement Of the Administrative Disqualification Hearing Process

Upon discovering and determining that an IPV may have occurred, the district must document the determination and reach a conclusion as to whether the documented acts constitute an IPV in accordance with the definitions described in this section.

a. If the district concludes that the documented acts resulted in an IPV and that referral, in accordance with this section, to the appropriate prosecutor authorized to act on the matter, is not warranted or not possible due to the amount in issue, the district may process the case for an administrative disqualification hearing.

b. If the district refers an overpayment or over issuance to the appropriate prosecutor authorized to act on the matter, and that prosecutor declines to prosecute or fails to act on the referral within a reasonable period of time, and the district elects to initiate the process for an administrative disqualification hearing, the district must formally withdraw in writing the referral to the prosecutor before referring the case to the Department.

   Failure to present evidence of such a formal written withdrawal either in its evidentiary transmittal to the OTDA or at the hearing may result in an administrative disqualification hearing decision adverse to the district.

c. If the district elects to process a case for an administrative disqualification hearing, it must assemble documentary evidence which the district believes is sufficient on its face to support its determination of IPV and forward the evidence in the form of an evidentiary packet to the New York State Office of Temporary and Disability Assistance, Office of Administrative Hearings, with a request that the OTDA schedule an administrative disqualification hearing.

d. If the district processes a case for an administrative disqualification hearing for a SNAP IPV and the factual issues arise from the same or related circumstances as a case for an SN IPV or TANF IPV, the cases must be consolidated and the district must submit with the required evidentiary packet a statement of the particular IPV being alleged and the sanction sought to be imposed for each such IPV being alleged.

e. The evidentiary packet forwarded by the district to the OTDA accompanying the district's request for an administrative disqualification hearing must have consecutively numbered pages, must be submitted in three copies for each accused individual and must include, but not be limited to, the following:

   (1) The full name (including middle name), the complete address (including county of residence), the social security number, the case number, and the date of birth of the person(s) charged and against whom a disqualification penalty is sought.

   (2) A list of the charge(s) and the individual or individuals against whom a disqualification is sought, together with any statement required by section d above if cases are consolidated.

(3) A summary of the evidence to be introduced.

(4) A listing of the names, titles and phone numbers of all district personnel and witnesses who will appear in support of the determination.

(5) An itemized list of all the exhibits included in the packet with the page number(s) on which each exhibit is found.

(6) Copies of all documents to be used in support of the district's determination.

(7) Information as to when and where the original evidence exhibits submitted in the case may be reviewed.

(8) Information as to the availability of free legal services; and

(9) A statement indicating whether the individual previously has been determined to have committed an IPV by either a court of competent jurisdiction or an administrative disqualification hearing decision or whether the individual previously has waived attendance at an administrative disqualification hearing or previously has signed a DCA. If the person previously has been determined to have committed an IPV or previously has waived attendance at an administrative disqualification hearing or previously has signed a DCA, supporting documentation of such facts must be included in the evidentiary packet.

NOTE: Verification of actual benefits received is required when submitting the evidentiary packet.

f. Upon receipt of a district's request for a hearing and accompanying evidentiary packet, the OTDA will review the packet to determine if it contains sufficient documentary evidence to substantiate that an individual has committed one or more IPV's in accordance with the definition described in this section. The OTDA will also determine whether the evidentiary packet satisfies the provisions of paragraph e above.

g. If the OTDA's review of the evidentiary packet indicates that there is either insufficient documentary evidence to establish that an IPV was committed or that the packet does not comply with the provisions of paragraph e above, the OTDA will return the packet to the district and not schedule a hearing.

Reference:

359.5 Commencement of the administrative disqualification hearings process

399.11 Effectiveness of this Part
93 ADM-8 Disqualifications for Intentional Program Violations

G. Notification Of Administrative Disqualification Hearing

1. Policy

a. Following a determination that the evidentiary packet is sufficient; the OTDA must schedule an administrative disqualification hearing. The notice of administrative disqualification hearing which notifies the accused individual of the scheduled hearing must be mailed certified mail, return receipt requested, to the accused individual.

b. The hearing will be held at a time and place convenient to the accused as far as practicable, considering circumstances such as physical inability to travel to a regular hearing location.

c. When it mails the notice of administrative disqualification hearing to the accused individual, the OTDA must mail to the district which requested the hearing a notification of the time, date, and place of the hearing by regular mail.

d. A written notice of administrative disqualification hearing must be provided by the OTDA to an individual alleged to have committed an IPV in accordance with the definitions described in this section. This notice must be provided to the individual at least 30 days prior to the date of the administrative disqualification hearing. The notice must include:

(1) The date, time, and place of the hearing.

(2) The charge(s) against the individual.

(3) A summary of the evidence and how and where the evidence may be examined.

(4) A statement warning that the decision will be based solely on information provided by the district if the individual fails to appear at the hearing.

(5) A notification that the individual or the individual's representative may have an opportunity to examine all documents and records to be used at the hearing by calling an identified telephone number and making arrangements to examine the documents and records at a specified place, provided that confidential information, such as names of individuals who have disclosed information about the SNAP unit or the nature or status of pending criminal prosecutions, cannot be released.

(6) Notification of the individual's right to:

(a) An adjournment, provided that such a request is made at least 10 days in advance of the scheduled hearing date. In addition, such notification must advise the individual that if an

adjournment is requested less than 10 days prior to the scheduled hearing date, the individual must demonstrate good cause for requesting the adjournment.

(b) Present the case or be represented by legal counsel or other person;

(c) Bring witnesses.

(d) Advance arguments without undue interference.

(e) Question or refute any testimony or evidence.

(f) Confront and cross-examine adverse witnesses; and

(g) Submit evidence to establish all pertinent facts in the case.

(7) Notification that the accused individual has the right to remain silent during the hearing process, but that inference can be drawn from the silence of the individual.

(8) A statement that upon request, a copy of Department Regulation 359 will be made available to the individual or his or her representative at the district during normal business hours.

(9) Copies of the sections of Department Regulation 359 relevant to the hearing process.

(10) A citation of the Federal or State regulations governing the hearing and/or offense where appropriate.

(11) A listing of legal aid and/or legal services organizations which are available to assist in the defense of the case.

(12) A statement that the hearing does not preclude the State or Federal government from prosecuting the individual for fraud in a civil or criminal court action, or from collecting an overpayment or recovering over issuances of benefits.

(13) A statement that in order to receive a new hearing the individual or the individual's representative will have 10 days from the date of the scheduled hearing to present to the Department good cause reasons for failing to appear at the hearing.

(14) A description of the penalties that can result from a determination that the individual has committed an IPV and a statement of the penalty which is applicable to the individual; and

(15) An explanation that the individual may, in writing, waive his or her right to appear at an administrative disqualification hearing as provided in this section. This explanation must include:

(a) The date that the signed waiver must be received by the OTDA and a place in which the accused individual can sign his or her name. This explanation must also include:

1) A statement that any caretaker relative or head of household must also sign the waiver if the accused individual is not the caretaker relative or head of household and a place in which such person can sign his or her name; and,

2) The waiver statement must include an appropriately designated signature block in which such other individual can sign his or her name.

(b) A statement of the accused individual's right to remain silent concerning the charge(s), but those inferences can be drawn from the silence of the individual, and that anything said or signed by the individual concerning the charge(s) can be used against him or her in a court of law or at an administrative hearing;

(c) The fact that a waiver of an individual's right to appear at an administrative disqualification hearing may result in a disqualification penalty and a reduction or discontinuance of SNAP benefits for the appropriate period even if the accused individual does not admit to the facts as presented by the district.

(d) An opportunity for the accused individual to specify whether or not he or she admits to the facts as presented by the district.

(e) The telephone number and, if possible, the name of the OTDA employee to contact for additional information; and

(f) The fact that the remaining members, if any, of the household or assistance unit will be held responsible for the repayment of any overpayment or over issuance.

Reference:

359.6 Notification of administrative disqualification hearing

399.11 Effectiveness of this Part

93 ADM-8 Disqualifications for Intentional Program Violations

H. Administrative Disqualification Hearings

Following a determination that the evidentiary packet is sufficient, the scheduling of an administrative disqualification hearing and the receipt of the notice required by this section, an administrative disqualification hearing will be conducted in accordance with the following requirements:

1. Consolidated Hearing

Where factual issues arise from the same or related circumstances, a consolidated administrative disqualification hearing will be held for a SNAP IPV and a TA IPV. All evidence, testimony and proof relating to the consolidated cases will be presented together, but separate findings will be made with respect to each separately alleged IPV.

2. Adjournment

An administrative disqualification hearing will be adjourned when:

a. The request for such adjournment is made at least 10 days in advance of the scheduled hearing date; or

b. The request for such adjournment is made less than 10 days prior to the scheduled hearing date and the individual demonstrates good cause for requesting the adjournment.

The hearing cannot be adjourned for more than a total of 30 days.

3. Rights In the Administrative Disqualification Hearing Process

The accused individual, or such individual's representative, must have adequate opportunity to:

a. Examine the contents of the individual's case file, and all documents and records to be used by the district at the hearing, at a reasonable time before the date of the hearing and during the hearing.

b. Present the case himself or herself, or with the aid of an authorized representative.

c. Bring witnesses.

d. Establish all pertinent facts and circumstances.

e. Advance any arguments without undue influence; and

f. Question or refute any testimony or evidence including the opportunity to cross-examine adverse witnesses.

4. Conduct of An Administrative Disqualification Hearing

a. The hearing officer must advise the accused individual that he or she may refuse to answer questions during the hearing.

b. The burden of proving that an accused individual has committed an IPV is on the district.

c. When an individual has been convicted in a State or Federal court of a public assistance-IPV, and such conviction was based on a plea of guilty, and such conviction was based on the same set of facts which will be the subject of the administrative disqualification hearing, and such individual was not advised on the record in the court proceeding of the disqualification provisions of Department Regulations 358:

   i. neither the conviction itself nor the records of the court proceeding may be used in any manner in the administrative disqualification hearing; and
   ii. the existence of the court proceeding may not be disclosed in any manner to the hearing officer by the office or district nor by any person acting on behalf of the office or district nor by any witness presented by any social services official.

d. All provisions in Department Regulation 358 and FSSB Section 8 concerning the conduct of fair hearings which are not inconsistent with any of the specific provisions of this section are applicable to administrative disqualification hearings.

5. Decision After an Administrative Disqualification Hearing

a. The decision after an administrative disqualification hearing must be based exclusively on clear and convincing evidence and other material introduced at the hearing which demonstrates that an individual committed and intended to commit one or more IPV.

b. The decision after an administrative disqualification hearing must specify the reasons for the decision, identify the supporting evidence, identify the pertinent statutes or regulations, and respond to reasoned arguments made by the individual or his or her representative.

c. The OTDA must conduct the hearing, arrive at a decision and forward the decision to the district for implementing action within 90 days of the date of the notice of administrative disqualification hearing.

In the event of a client-requested adjournment, this time limit will be extended by the number of days the hearing was postponed.

6. Default of An Administrative Disqualification Hearing

a. If an accused individual cannot be located or fails to appear at a hearing scheduled pursuant to this section, the opportunity to appear at the hearing

may be considered defaulted by such individual unless the individual contacts the Department within 10 days after the date of the scheduled hearing and presents good cause reasons for the failure to appear. If such reasons exist, the hearing will be rescheduled. A determination that good cause exists must be entered into the record.

b. If the opportunity to appear at a hearing has been defaulted by the accused individual in accordance with paragraph 6a above the hearing must be conducted without the accused individual being present. Even though the accused individual is not present, the hearing officer is required to consider the evidence carefully and determine if an IPV was committed based on clear and convincing evidence.

c. If an accused individual fails to appear at a scheduled administrative disqualification hearing and is found to have committed an IPV, but a hearing official later determines that the individual had good cause for not appearing, the previous decision will not remain valid and a new hearing will be scheduled and conducted. The hearing officer who presided originally at the hearing may conduct the new hearing.

7. Access To Record of Proceedings

The transcript or recording of testimony, exhibits, or other official reports introduced at the hearing, together with all papers and requests filed in the proceeding, and the original or a true copy of the decision after an administrative disqualification hearing must be made available to the individual or to the individual's representative at a reasonable time and place.

8. Review Of Disqualification Hearing Decisions

A decision that an IPV has been committed cannot be reversed by a subsequent fair hearing. However, the disqualified individual is entitled to seek relief in a court having appropriate jurisdiction pursuant to article 78 of the Civil Practice Law and Rules. The period of disqualification may be subject to stay or other injunctive remedy ordered by such a court, but any period for which sanctions are imposed shall remain in effect, without possibility of administrative stay, unless and until the finding upon which the sanctions were imposed is subsequently reversed by a court of appropriate jurisdiction.

Reference:

359.7 Administrative disqualification hearing
399.11 Effectiveness of this Part
93 ADM-8 Disqualifications for Intentional Program Violations

I. Waiver Of an Administrative Disqualification Hearing

1. An administrative disqualification hearing is waived when a waiver of administrative hearing document which is sent by the OTDA to an individual for whom the OTDA has scheduled an administrative disqualification hearing is properly executed by the individual or any caretaker relative or head of household if the accused individual is not the caretaker relative or head of household and received by the Department.

2. The OTDA will send written notification to the district which had requested the hearing that it may impose the appropriate penalty contained in TASB Section 6 upon sending a notice of disqualification to the individual, as described in TASB Section 6. A waiver of an administrative disqualification hearing must comply with the provisions of TASB Section 6.

3. A disqualification penalty which has been imposed following a waiver of an administrative disqualification hearing cannot be changed in a subsequent fair hearing. There is no right to appeal the penalty by a fair hearing.

4. Upon timely receipt of a properly executed waiver, the OTDA will notify the district in writing of the cancellation of the scheduled administrative disqualification hearing and of the district's responsibility to proceed with the recovery of any overpayment or over issuance.

5. When an individual waives his or her right to appear at an administrative disqualification hearing, the disqualification and appropriate reduction or discontinuance of assistance must result regardless of whether the individual admits or denies the charges made by the district.

Reference:

359.8 Waiver of an administrative disqualification hearing

399.11 Effectiveness of this Part

93 ADM-8 Disqualifications for Intentional Program Violations

J. Penalties

1. SNAP IPV

Individuals found to have committed a SNAP IPV, either through an administrative disqualification hearing or by a court of appropriate jurisdiction, or who have signed either a waiver of right to an administrative disqualification hearing or a DCA will be ineligible to participate in SNAP:

a. For a first non-drug or non-firearms or non-explosives related IPV, the disqualification periods are:

(1) First Offense	1 year
(2) Second Offense	2 years
(3) Third Offense	permanent

b. For a drug, firearms, or explosives related IPV, the disqualification periods are:

(1) First finding by Court of controlled substance trafficking for coupons	2 years
(2) Second finding by Court of controlled substance trafficking for coupons	permanent
(3) First finding by Court of trading of firearms, ammunition or explosives for coupons.	permanent

2. Court Determined IPV

If a court of appropriate jurisdiction determines that an individual has engaged in conduct that would constitute an IPV in accordance with the definition described in this section, the district must impose the penalties except as otherwise set forth below:

a. Notwithstanding the provisions of this section, an individual found guilty of an IPV must be disqualified from SNAP for the length of time specified by the court, if the court has imposed a disqualification period for such a violation.

b. With respect to a SNAP IPV, if a court fails to impose a disqualification period, the district must impose the disqualification penalties specified in section #1 above, unless such imposition is contrary to the court order.

c. If disqualification is ordered by a court, but a date for initiating the disqualification period is not specified, the district must initiate the disqualification period for currently eligible individuals within 45 days of the date the disqualification was ordered.

d. If disqualification is not ordered by a court, but disqualification must be imposed as the result of a criminal or civil court determination finding that an individual has engaged in conduct that constitutes an IPV, the district must initiate the disqualification period for currently eligible individuals within 45 days of the date of the court determination.

3. Disqualification

The district must disqualify from the appropriate program(s) the individual(s) found to have committed an IPV, or who have signed a waiver of right to an administrative disqualification hearing or DCA in cases referred for prosecution, but not the entire assistance unit or household of such individual(s), except as provided in paragraph c below.

a. A disqualified individual is ineligible to participate in a program from which he or she is disqualified for the periods provided in section 1.

b. If an individual signs a DCA, the period of disqualification will begin within 45 days of the date the individual signed the DCA unless the DCA is incorporated into a court determination issued at a later date or a court determination has specified the date for initiating the disqualification period, in which event the district will disqualify the individual in accordance with the court order.

c. If an individual signs a waiver of right to an administrative disqualification hearing or has been found to have committed an IPV through an administrative disqualification hearing, the period of disqualification will begin with the first month which follows the date the individual receives written notification of disqualification after having been found to have committed an SNAP-IPV, and must begin no later than the first day of the second month which follows the date of the notice of disqualification after having been found to have committed any other IPV.

   The remaining members of the household which contained an individual who has been found to have committed an IPV must agree to make restitution within 10 days of the date that the district's demand letter is mailed, or the household's monthly allotment will be reduced. If the remaining members agree to make restitution but fail to do so, the district must reduce the household’s monthly allotment. Restitution must begin during the period of disqualification imposed by the district or a court of law.

d. If the individual continues to receive SNAP, because the disqualification is not imposed and the unserved disqualification is later discovered, only the remaining sanction time can be imposed. For example, if a 12-month

disqualification period is discovered 6 months after it was supposed to have started, only the remaining 6 months is imposed.

e. When a disqualification due to an IPV is determined after an individual is no longer receiving SNAP the imposition of the disqualification can no longer be postponed until the individual applies for and is determined eligible for benefits. Disqualification penalties are to be imposed as if all individuals are eligible to participate in the SNAP program at the time of the IPV determination.

f. IPV disqualifications which are imposed while an individual is not participating in the SNAP and which elapse before the individual reapplies, count toward the progressive disqualification count (i.e., 1st, 2nd, or 3rd occurrence). Once a disqualification period is imposed, it continues uninterrupted until completed.

g. Once a disqualification penalty has been imposed against a participating individual (including periods the district mistakenly left the case open) it continues uninterrupted until completed, even if the case is closed prior to the end of the disqualification period.

h. A disqualification counts towards the progressive disqualification penalties (1st, 2nd, or 3rd occurrence) even if the individual never actually stops receiving SNAP benefits because the disqualification is not imposed within the timeliness standards.

i. Assistance paid to an individual during a period the individual should have been disqualified, but was not, is an overpayment. An appropriate claim - agency error, inadvertent household or IPV - must be established.

   To establish the claim as an IPV, there must be signed waiver of ADH or a signed DCA, or it must be determined through a court or administrative disqualification hearing procedure that the individual deliberately withheld information about the pended disqualification.

   If the individual did receive SNAP benefits and therefore, the disqualification is considered imposed, it must be determined when the individual applies for assistance in New York, if there is any part of the disqualification period remaining to be served.

   If the disqualification is not discovered at the time of application, the individual must be disqualified for any remaining unserved time when it is discovered. Also, it must be determined if any overpayment occurred in this state due to failure to start the disqualification at the time of application.

4. Notice To Be Sent

If there is a determination that a member of the household or assistance unit has committed an IPV,

the district must take immediate action to send the individual a notice of disqualification as set forth in this section.

a. In the case of an individual who is not currently in receipt of SNAP benefits, the imposition of the disqualification can no longer be postponed until the individual applies for and is determined eligible for benefits. Disqualification penalties are to be imposed as if all individuals are eligible to participate in the SNAP at the time of the IPV determination.

b. Once a disqualification penalty has been imposed against a member of the household or assistance unit, the period of disqualification continues uninterrupted until completed regardless of the eligibility of the other members of the household or assistance unit. However, the disqualified member's household or assistance unit continues to be responsible for repayment of any overpayment or over issuance which resulted from the disqualified member's IPV regardless of the household's or unit's eligibility for SNAP benefits.

5. Reporting

Districts must report to the OTDA information on individuals who have been found to have committed an IPV by a hearing decision or a court or who have signed a waiver of hearing or a DCA. The following data must be submitted on each individual:

a. Full name.

b. Social security number.

c. Date of birth.

d. Number of disqualification(s) (1st, 2nd, 3rd, etc.).

e. Date disqualification took effect for a currently otherwise eligible individual; and length of disqualification imposed or to be imposed. This information is to be submitted no later than 20 days after the date the disqualification took effect, or would have taken effect for a currently ineligible individual, the imposition of whose disqualification penalty will not be imposed until the individual becomes eligible for assistance or benefits. This information is to be updated by districts where appropriate.

f. The data must be forwarded to:

NYS Office of Temporary and Disability Assistance
Office of Audit and Quality Improvement
Program Integrity
40 N Pearl Street
Albany, NY 12243

Reference:

359.9 Penalties

399.11 Effectiveness of this Part

93 ADM-8 Disqualifications for Intentional Program Violations

K. Notice of Disqualification

1. The district will provide a written notice of disqualification to an individual who:

a. Has been found, after an administrative disqualification hearing, to have committed an IPV.

b. Has waived his or her right to appear at an administrative disqualification hearing in accordance with this section.

c. Has been determined by a court to have engaged in conduct that would constitute an IPV in accordance with this section.

2. A notice of disqualification must:

a. Inform the individual as to when any disqualification period will take effect and the date upon which it will end and the length of the disqualification period.

b. Inform the individual and any members of the household or assistance unit of the amount of payment or allotment, if any, that the unit will receive during the period of disqualification.

c. In the case of an individual who is not currently in receipt of SNAP benefits, the imposition of the disqualification can no longer be postponed until the individual applies for and is determined eligible for benefits. Disqualification penalties are to be imposed as if all individuals are eligible to participate in the SNAP program at the time of the IPV determination.

d. In the case of an individual who has been found after an administrative disqualification hearing to have committed an IPV, inform such individual of the decision and the reason for the decision; and

e. Inform the individual to be disqualified and any members of the household or assistance unit of the right to request a fair hearing to contest:

(1) The amount of the overpayment or over issuance, if such amount has not been established by an administrative disqualification hearing or court determination or set forth in a DCA or waiver of an administrative disqualification hearing.

(2) The amount of the TA or SNAP allotment to be provided to the remaining members of the household or assistance unit during the disqualification period; and

(3) The district's failure to restore the disqualified individual to the household or assistance unit at the end of the disqualification period indicated in the written notice even though the individual has requested such restoration.

3. If the OTDA's decision confirms the district's determination of IPV, the district shall mail the household written notices in accordance with SNAP SB Section 16, prior to disqualification.

It is recommended that districts coincide the certification period of any remaining household members with the end of the disqualification period. This will help assure the issuance of correct benefits, particularly if the disqualified individual is a mandatory member of the SNAP household.

Reference:

359.10 Notice of Disqualification

399.11 Effectiveness of this Part

93 ADM-8 http://otda.ny.gov/policy/directives/1993/ADM/93_ADM-08.pdf

L. Disqualification For Failure to Provide Or Apply For a Social Security Number

If the district determines that a household member(s) has refused or failed without good cause to provide or apply for an SSN, then the individual without the SSN shall be ineligible to participate in the SNAP. The disqualification applies to the individual(s) for whom the SSN is not provided and not to the entire household.

The disqualified individual(s) may become eligible upon providing the district with an SSN or proof of application for an SSN. The income and resources of an individual disqualified from the household for failure to comply with this requirement shall be handled as set forth in SNAPSB Sections 13 and 17.

Reference:

387.9 Investigation and Eligibility

7CFR 273.6 (c) Failure to Comply

M. Other Disqualifications

1. Disqualification for Trafficking in Supplemental Nutrition Assistance Program Benefits

This provision permanently disqualifies persons convicted by a Federal, State, or local court of trafficking in SNAP benefits worth $500 or more. Trafficking includes the illegal use, transfer, acquisition, alteration, or possession of SNAP benefits, authorization cards, or access devices.

2. Disqualification for Multiple Benefits

As of September 21, 1996, any applicants, recipients or former recipients found by a Department Administrative Disqualification Hearing (ADH) or convicted by a court, of having made a fraudulent statement or misrepresentation of identity or residence in order to receive multiple SNAP benefits simultaneously, is ineligible to participate in the SNAP for ten years. A finding by the Department includes a disqualification consent agreement (DCA) or waiver of an ADH, in addition to the above ADH decision.

3. Disqualification for Fleeing Felons and Parole Probation Violators

Clients who are found to be fleeing to avoid prosecution, or custody for a crime, or an attempt to commit a crime, or confinement for a felony, that would be classified as a felony, or who are violating a condition of probation or parole under a Federal or State law are ineligible for SNAP benefits.

The court decision in Fowlkes v. Adamec issued by the Second Circuit of the United States Court of Appeals acknowledged a fleeing felon to exist only when a court or tribunal had determined a person to have escaped, or to be fleeing to avoid prosecution, or custody or confinement for a felony or an attempted felony. In addition, the court also held the term ‘‘fleeing’’ to mean ‘‘the conscious evasion of arrest or prosecution.” Thus, for the Agency to take adverse action against an individual described in the Social Security Act as ‘‘fleeing to avoid prosecution, custody, or confinement,’’ the Agency must have some evidence that the individual knew his or her apprehension was sought.

Section 4112 of the Food, Conservation and Energy Act of 2008 (also known as the Food and Nutrition Act of 2008) amends federal law with respect to fleeing felons. Specifically, the law requires the Secretary to define the terms “fleeing” and “actively seeking” and “ensure that State agencies use consistent procedures established by the Secretary that disqualify individuals whom law enforcement authorities are actively seeking for the purpose of holding criminal proceedings against the individual”. Therefore, in anticipation of such regulations, the Agency also should ask the issuing jurisdiction if it is seeking the individual with the intent to prosecute such individual.

In summary, to establish that a felon is actually fleeing, the district must:

- Obtain a copy of the flight warrant from the issuing agency or a written statement from such agency on their letterhead with the specific flight/escape warrant information. If flight warrant cannot be obtained, do not pursue further.
- Ask the issuing jurisdiction if it is actively seeking the individual with the intent to prosecute such individual.
- Attain evidence that the individual knew his or her apprehension was sought.

On March 19, 2010, the United States Court of Appeals for the Second Circuit decided Clark, et.al.v. Astrue. The essence of the decision, as it pertains to applicants for and recipients of SNAP and TA, is that there be more than a warrant issued based on probable cause or reasonable suspicion to believe that someone is violating a condition of probation or parole: The court held that such warrants are not equivalent to a determination that one is in fact violating a condition of probation or parole. Such warrants merely constitute evidence that one is violating one's probation or parole, but do not establish that such warrants meet the necessary evidentiary standard of establishing that the alleged violation exists. Therefore, **districts must not deny or discontinue TA or SNAP benefits on the basis of a warrant issued on the basis of an alleged probation or parole violation because practically all such warrants do not constitute a determination of violation but, instead, are mere allegations of violation.**

Reference:

09 INF 12 Program Integrity Questions and Answers

GIS 10 TA/DC026 Clark v. Astrue: Temporary Assistance (TA) and Food Stamps (FS) Policy for Probation and Parole Violators

07-INF-03 Recovery/Recoupment Due to Fleeing Felon and Probation/Parole Violator Status

GIS 08 TA/WMS008 New Policy and Closing Codes for Fleeing Felons and Probation and Parole Violators

97 ADM-4 Clarifications of Various Food Stamp Welfare Reform Provisions

96 LCM-83 Food Stamp Impact of New Federal Welfare Law

SECTION 8: Notice of Agency Decision

A. Notice Requirements

This Section contains the regulatory requirements for all SNAP client notices. The requirements are the same for all SNAP notices, whether generated by CNS or manual notice. Please note, much of this chapter relates to the Temporary Assistance Source Book (TASB), Section 8: Notice of Agency Decision.

A. Client Notices System (CNS)

All NTA/SNAP and multi-program (TA/SNAP/MA) openings, closings, denials, undercare and recertification call-in notices are generated by the Client Notices System (CNS). Automated CNS notices are designed to satisfy all State and federal regulatory notice requirements. Generally, as manual notices are more error prone, it is always preferable that the CNS be used to generate client notices. Manual notices should be used only when the CNS does not support the action or when CNS may be unavailable. The CNS Manual is available at http://otda.state.nyenet/dta/manuals/cnsmanual.pdf. The CNS Code and Text Catalog is an excellent resource to aid in the determination of proper usage of all individual and case level codes.

B. Manual Notices

Manual notices continue to be maintained. Included in this section are some manual notices that support common actions taken on SNAP cases. Note, this is not an exhaustive list of manual notices available.

C. Definitions

a. **Action Taken Notice -** a notice from a local district advising:

   1) An applicant for SNAP benefits or a recipient of SNAP benefits at recertification of the local district's determination to accept or deny SNAP benefits; or

   2) A recipient of SNAP benefits of an increase or decrease in benefits

b. **Adequate Notice -** any notice of action, adverse action notice or action taken notice that satisfies all the legal requirements as specified in regulation. These legal requirements are given throughout the remainder of SNAPSB Section 8, as each of these three types of notice is specifically addressed.

c. **Adverse Action Notice -** a notice from a local district advising a recipient of SNAP benefits of its determination to discontinue, or reduce such recipient's

SNAP benefits, within the SNAP certification period. These are often informally referred to as "Timely and Adequate" because they must be both, as defined in 2 above and 5 below.

d. **Expiration Notice -** otherwise referred to as Notice of Expiration (NOE) - a notice sent by a local district which advises a household in receipt of SNAP benefits that its certification period is due to expire. The required elements of an expiration notice are detailed later in this section.

e. **Timely Notice -** a notice which is mailed at least 10 days before the date upon which the proposed action is to become effective.

f. **Dates -**

1) **Notice Date -** This is the date the worker completes the notice and the notice is mailed. (For purpose of this review, see Pg. 14, G.1.c.) On a timely and adequate notice, the date must be at least ten days before the effective date of the action. On adequate-only notices and notices given at application, the date may be less than ten days from the effective date of the action.

2) **Effective Date -** This is the date the action or change will happen. Fair hearing regulations require that notice be given regarding when an action will take effect.

I. Also, in situations which require timely and adequate notice of adverse action (i.e., discontinuance, reduction), this date is used to determine if aid continuing can be given, since for an appellant to have the right to aid-continuing, the fair hearing must be requested by the effective date. The effective date of a SNAP timely adverse action notice is the 10th day after the date the notice is mailed.

II. In situations which require an adequate-only notice, the postmark date of the notice is used to determine whether the appellant is entitled to aid continuing (reinstatement) when a hearing is requested.

D. Adequate Notice

1. **Basic Requirements** - The adequate notice must include:

a. The action the local district proposes to take or is taking, and

b. If a single notice is used for all affected assistance, benefits or services, the effect of such action, if any, on a recipient's other assistance, benefits or services.

c. Otherwise, the notice shall state that there will be a separate notice for other affected assistance, benefits or services.

2. **Additional Requirements** - In addition, the adequate notice must set forth the following:

a. A reduction of SNAP benefits - Both the dollar amount of benefits prior to the reduction and the reduced amount must be specified;

b. A recoupment - The total amount to be recouped and the rate of recoupment must be specified.

c. An acceptance of a SNAP application - The benefit level, including variations based on changes anticipated at the time of certification, the date of initial issuance of benefits and the dates covering the certification/eligibility period must be specified.

(1). In addition, if the initial allotment contains benefits for both the month of application and the current month, the notice must explain that the initial allotment includes more than one month's benefits, and,

(2). Must indicate the monthly allotment amount for the remainder of the certification period;

(3). Must specify the date benefits may be accessed;

(4). When an application is approved on an expedited basis without verification, the notice must explain that the household must provide the verification which was postponed and any special conditions applicable to the household if a normal certification period was assigned to such household; and

(5). When one application results in approval of benefits following initial denial (ineligibility) of benefits for the month of application, the notice must include the reason for the initial denial along with the subsequent approval information.

d. A denial of a SNAP application - When a household is potentially categorically eligible for SNAP benefits but is denied SNAP benefits, the notice must ask the applicant to inform the local district if the applicant is approved to receive FA, federally funded SNA or Supplemental Security Income benefits;

e. An increase in SNAP benefits - Both the new amount of the grant or benefits and the former benefit amount must be specified;

f. In all actions, except in the case of a denial, the effective date of the action;

g. In all actions, except in the case of an acceptance of an application for SNAP, the specific reasons for the action;

h. The specific laws and/or regulations upon which the action is based;

i. The applicant's or recipient's right to request an agency conference and fair hearing;

j. The procedure for requesting an agency conference or fair hearing, including an address and telephone number where a request for a fair hearing may be made and the time limits within which the request for a fair hearing must be made; and

k. An explanation that a request for a conference is not a request for a fair hearing and that a separate request for a fair hearing must be made. Furthermore, that a request for a conference does not entitle one to aid continuing, and that a right to aid continuing only arises pursuant to a request for a fair hearing.

l. When the local district action or proposed action is a reduction, or discontinuance, of SNAP benefits, the circumstances under which:

(1). SNAP benefits will be continued or reinstated until the fair hearing decision is issued; that a fair hearing must be requested separately from a conference, and

(2). A statement that when only an agency conference is requested and there is no specific request for a fair hearing, there is no right to continued SNAP benefits; and

(3). That participation in an agency conference does not affect the right to request a fair hearing.

m. The right of the applicant or recipient to review the applicant's or recipient's case record and to obtain copies of documents which the local district will present into evidence at the hearing and other documents necessary for the applicant or recipient to prepare for the fair hearing at no cost. The notice must contain an address and telephone number where the applicant or recipient can obtain additional information about:

(1). The applicant's or recipient's case;

(2). How to request a fair hearing;

(3). Access to the case file, and/or; and

(4). Obtaining copies of documents.

n. The right to representation by legal counsel, a relative, friend or other person or to represent oneself, and the right to bring witnesses to the fair hearing and to question witnesses at the hearing.

o. The right to present written and oral evidence at the hearing.

p. The liability, if any, to repay continued or reinstated benefits, if the recipient loses the fair hearing.

q. Information concerning the availability of community legal services to assist an applicant or recipient at the conference and fair hearing; and

r. A copy of the budget or the basis for the computation, in instances where the local district's determination is based upon a budget computation. Where appropriate, the ABEL Budget Narrative should also be included. This does not apply to actions taken involving HEAP.

s. If a combined notice is used, the TA, SNAP and MA portions must always be completed.

E. Action Taken Notice

Action To Accept, Deny, Increase, Change In Calculation - When a local district accepts or denies an application for SNAP benefits or increases SNAP benefits, or changes the amount of one of the items used in the calculation of SNAP benefits although there is no change in the amount of the SNAP benefits, the applicant/recipient has the right to adequate notice.

F. Adverse Action Notice

Action To Discontinue, Reduce Or Recoup - Except as stated in section F (Exemptions from Adverse Action Notice), when a local district proposes to take any action to discontinue, or reduce SNAP benefits the applicant/recipient has the right to a timely and adequate notice.

G. Expiration Notice

1. Uses

a. The local district must provide each household with a Notice of Expiration (NOE), as defined in this section, prior to the start of the last month of the household's certification period, but not before the first day of the second to last month of the certification period. However, if the household was recertified for both TA and SNAP prior to the last month of the SNAP certification period, an expiration notice is not required.

b. For households with certification periods longer than one or two months the notice of expiration must be sent by the local district so that the household receives it no earlier than the first day of the second to the last month of the certification period and no later than one day before the last month of the certification period.

c. Households certified for one month or two months **must receive** the expiration notice at the **time of certification**.

2. Content - The expiration notice must contain:

a. The consequences of failure to comply with the expiration notice;

b. The date the current certification period ends;

c. The date by which the recipient's household must reapply to receive uninterrupted benefits;

d. The date and time of the scheduled interview, and a statement that the recipient is responsible for rescheduling a missed interview;

e. The number of days the recipient has for submitting missing verification after the interview or after the recertification form is received by the local district;

f. The specific regulation upon which the action is based;

g. The household's right to request an application for SNAP benefits and the obligation of the local district to accept the application, provided it contains at minimum, a legible name and address (if the household has one) and signature;

h. The address where the application must be filed;

i. The household's right to apply for SNAP benefits in person, fax, by mail, on-line or through an authorized representative;

j. Information that any household consisting only of Supplemental Security Income (SSI) applicants or recipients is entitled to apply for SNAP recertification at any office of the Social Security Administration (SSA);

k. The household's right to a fair hearing; and

l. The procedure for requesting an agency conference or fair hearing, including an address and telephone number where a request for a fair hearing may be made and the time limits within which the request for a fair hearing must be made;

m. The right of the recipient to review the recipient's case record. The notice must contain:

(1). An address and telephone number where the recipient can obtain additional information about the recipient's case;

(2). How to request a fair hearing;

(3). Access to the case file; and/or

(4). Obtaining copies of documents;

n. The right to representation by legal counsel, a relative, friend or other person or to represent oneself, and the right to bring witnesses to the fair hearing and to question witnesses at the hearing; and

o. The right to present written and oral evidence at the hearing.

References:

CFR 273.13 Notice of Adverse Action

CFR 273.14(b) Notice of Expiration

273.10 Determining Household eligibility and Benefit Levels

358-2.1 Action Taken Notice

358-2.2 Adequate Notice

358-2.3 Adverse Action Notice

358-2.11 Expiration Notice

358-2.23 Timely Notice

273.13 Notice of Adverse Action

358-3.3 Notice Requirements

94-INF-16 Food Stamps Clarification of Effective Date of a Timely Adverse Action Notice

B. Exemptions from Adverse Action Notice

1. Recipients are not entitled to an individual adverse action notice when:
   a. Based on reliable information, the local district determines that all members of the household have died or that the household has moved from the local district or will not be residing in the local district and will be unable therefore to obtain its next SNAP allotment from such district; or

   b. The certification period has expired, the recipient was previously informed of the expiration, and they have not reapplied for benefits; or

   c. The household has been receiving an increased SNAP allotment to restore lost benefits, the restoration is complete, and the household was previously notified in writing of the date when the increased SNAP allotment would terminate; or

   d. The household's allotment of SNAP benefits varies from month to month within the certification period to take into account changes which were anticipated at the time of certification, and the household was notified that the SNAP allotment would vary at the time of certification; or

   e. The household applied jointly for TA and SNAP benefits and has been receiving SNAP benefits pending the approval of the TA grant and was notified at the time of SNAP certification that SNAP benefits would be reduced upon approval of the TA grant; or

   f. A household member is disqualified from the SNAP Program for an Intentional Program Violation in accordance with SNAPSB Section 16 and the SNAP benefits of the remaining household members are reduced or terminated to reflect the disqualification of that household member; or

   g. The local district has elected to assign a longer certification period to the household which was certified on an expedited basis and for which verification was postponed. The household must have received written notice that to receive benefits past the month of application the household must provide the verification which was initially postponed and the local district may act on the verified information without further notice; or

   h. A local district has converted the household from cash repayment of an IPV claim to benefit reduction, because of the household's failure to make an agreed upon cash repayment; or

   i. The recipient is a resident of a treatment center or group living arrangement which is determined to be ineligible for SNAP benefits because the facility has either lost its certification from the appropriate State agency/agencies or lost its status as an authorized representative due to its disqualification by the federal Food and Nutrition Service as a retailer. However, residents of group living arrangements applying on their own behalf may remain eligible to

participate in the Supplemental Nutrition Assistance Program; or

j. The household voluntarily requests, in writing or in the presence of a local district employee, that its SNAP benefits be terminated. If the household does not provide a written request, the local district must send the household a letter confirming the voluntary withdrawal.

2. A recipient of SNAP benefits has the right to an adequate notice sent no later than the date of the proposed action when the local district actions result from information furnished on a quarterly report.

NOTE: If a recipient fails, without good cause to return a completed Periodic Report by the tenth day of the process month (the month following the month the Periodic Report was mailed to the household), the local district must send a timely and adequate notice of discontinuance.

References:

358-3.3(e) Notice Requirements

387.20 Notification of Local Department Decisions

273.13 Notice of Adverse Action

C. Mass Changes

SNAP households must be notified of any increase, decrease or termination of benefits, which results from a mass change.

A. Individual Notices - The responsibility for providing notice is with the local district unless the Department has assumed responsibility for providing notice. Further, unless otherwise notified, the local district must issue an individual notice in accordance with procedures outlined in SNAPSB Section 8, this includes sending accompanying budget information.

B. General Notices - Federal and State notice regulations specify that an individual notice is not required for an action that is the result of a mass change. This Department may for any mass SNAP change, develop a general notice to be issued in place of individualized notices. These notices may be:

a. Provided to local districts to be both reproduced and sent to affected households; or

b. Printed by this Department and provided to local districts to be sent to affected households; or

c. Printed and sent to affected households by this Department.

Note: If the Department opts to develop a general notice, specific instructions will be issued to local districts. In lieu of such instructions, local districts continue to be responsible for issuance of individual notice to affected cases at mass change.

C. Publicizing Changes - Local districts may, but are not required to, publicize mass changes through the news media or through posters displayed in certification sites, issuance locations or other sites frequented by certified households.

Reference:

CFR 273.13 Notice of Adverse Action
358-3.3(e) Notice Requirements

D. Factors Common to All Notices

1. Heading

a. Completion of all sections of the heading is required except for Office No., Unit No., Worker No. and the telephone number for the unit or worker. The unit or worker responsible for issuing the notice must be identified.

b. Notice Number – The notice has a system designated unique identifier.

c. Notice Date - This is the date the worker completes the notice and the notice is mailed.

d. Case Number – The notice displays the District assigned unique number.

e. Telephone Numbers -

(1). Legal Assistance Information - In local districts where there is only one advocacy agency, the telephone number for that agency should be given. Local districts that have more than one advocacy agency should list a social services number where the client can receive information about advocacy agencies that represent clients residing in the local district.

Use of numbers which are not Social Services District numbers should be cleared first with the outside agency to assure they are correct and that the agency is able to handle the telephone inquiries that might result.

(2). Agency Conference, Fair Hearing Information and Assistance, Record Access - The notice is designed to give one general number or specific numbers for each type of information needed. If local districts opt to use a general telephone number, procedures must be in place to ensure that clients who call to request information in one or more of the above areas are directed to a person who has the knowledge and authority to respond to the specific need.

f. Case Name and Address – The notice lists the name of the head of household and the household's address.

2. **Client Rights Language** - The text on each notice is based on one prototype and the only substantive difference between the forms is in the aid continuing sections.

3. **Distribution** - The State mandated manual notices available for order, are comprised of three-ply chemically carbonless paper. Two copies of the notice are to be sent to the client and the remaining copy is for the case record. Printed copies of notices may be used, and a completed copy must be included in the case record. For residents of group living arrangements as defined in SNAPSB Section 5, an additional exact copy of the notice must be sent to the resource agent (authorized representative). The CNS automated notice consists of a single copy that is mailed to the client. There is the capability of sending an additional copy to an authorized representative.

E. Combined Manual Notices

As discussed in the introduction of this section, manual notices are used only in situations when the Client Notices System (CNS) is not available, or they may be used on a case-by-case basis when CNS does not support the action being taken. The manual notices listed below describe the action being taken to the applicant/recipient households on their combined TA/SNAP/MA case.

Note, in instances when a TA applicant /recipient household declines SNAP, receives SNAP under a different TA case or is in a separate mixed household SNAP case, those households must be advised of the action taken on their SNAP application/case by completing the SNAP portion of the combined TA,SNAP, MA notice.

1. LDSS- 4013A (LDSS-4013A-NYC) & LDSS-4013B (LDSS-4013B-NYC) Action Taken on your Application: PA, MA, SNAP App Public Assistance, Supplemental Nutrition Assistance Program (SNAP) and Medical Assistance Coverage Adequate Only PART A AND B

   a. LDSS-4013A (LDSS-4013A NYC) – PART A of this notice is used to inform applicants of the decision made on their application for TA/MA.

      (1). The recoupment statement is a requirement under Department Regulation 358. If a TA application is accepted and a recoupment for past overpayments is taken, the box before the recoupment statement must be checked and a clear explanation of the reason for the recoupment provided.

   b. It is not a requirement under Department Regulation 358 that local districts provide notice when an application is withdrawn. It is, however, strongly recommended that local district send a notification to the client that the application (indicate the application date), is being withdrawn at the client's request and state the reason cited by the client. That notification can be a letter to the applicant or an OTDA approved form that the local district has developed for that purpose. copy of the notification should be kept in the case record, and/or the details of the withdrawal must be recorded in the case record. LDSS-4013B (LDSS 4013B NYC) – PART B of this notice is used to inform SNAP applicants of the disposition of the SNAP application, whether it is approved, denied or pended. SNAP policy requires that clients be advised when benefits will be available on an automated system. The APPROVED box allows for this entry.

      If an established claim is being recovered by allotment reduction, the OVERPAYMENT box must be checked or the overpayment information entered in CNS. However, a recoupment cannot be taken nor this box checked unless all appropriate procedures and notices have been used regarding claims establishment. (See SNAPSB Section 16)

      NOTE: If the TA applicant is not applying for SNAP as part of the TA application, the worker should make that notation in the SNAP section (Part B) of the notice.

2. LDSS- 4014A (4014A NYC) & LDSS-4014B (4014B NYC): Action Taken On Your Recertification: Public Assistance Supplemental Nutrition Assistance Program, Medical Assistance Coverage And Services

   a. LDSS 4014A (LDSS 4014A NYC) – PART A of this notice is used to inform recipients of the determination at recertification on their TA/MA/Services case. When the recertification results in a negative action for any of the programs, this notice must be postmarked at least 10 days prior to the effective date of the action (timely notice).

      In addition to the actions that result in change, the action to continue the regular monthly TA grant unchanged, is included. Clients must be notified of the result of their recertification, even if there is no change in the grant amount.

      If the client reports a change which results in a different budget calculation, even if the benefit amount does not change, , a copy of the budget and the ABEL budget narrative must be sent with this manual notice.

      The recoupment section, if applicable, must be completed.

   b. LDSS 4014B (LDSS 4014B NYC) PART B of this notice is used to inform applicants as to the disposition of the SNAP recertification application - approved, denied or pended. In addition, benefits may continue unchanged due to eligibility for Transitional Benefit Alternative (TBA) .

      If the benefits will continue unchanged, and recertification requirements for TA have not been met, the worker must complete the section regarding the TBA.

      If an OVERPAYMENT is currently in place or is being established, the overpayment information must be entered on the notice.

      When a household is not participating in SNAP, a notation must be made in the denied section indicating why the household is not participating.

3 . LDSS- 4015A (4015 A NYC) & LDSS-4015B (4015B NYC): Notice Of Intent To Change Benefits: Public Assistance, Supplemental Nutrition Assistance Program, Medical Assistance Coverage And Services (Timely And Adequate) (Part A & B)

Part A of this form is used to advise a TA/MA recipient of changes to eligibility or benefit amount during the certification period - reductions, discontinuances, suspensions, increases, or continuation of assistance unchanged (when an action has been taken which did not affect the amount of the benefit). Part B is used to advise a SNAP recipient of changes to eligibility or benefits amount during the certification period-reductions, discontinuances, suspensions, increases, or continuation of SNAP benefits unchanged (when an action has been taken which did not affect the amount of the benefit).

a. LDSS 4015A (LDSS 4015A NYC), LDSS 4015B (LDSS 4015B NYC) These notices are used to provide timely notice to a recipient (notice at least ten days before the action will take effect) and must be used if the change requires timely notice for any program area covered by the notice. PARTs A & B should be completed as appropriate.

EXAMPLE: An increase in the TA grant which does not require timely notice results in a decrease to SNAP.

This notice must be used because the adverse SNAP action requires timely notice. In this situation, the effective date of the TA change may be different (earlier) than the effective date of the SNAP change.

The recoupment/overpayment information must be entered if applicable.

When a household is not participating in SNAP, a notation must be made on Part B of the notice indicating why the household is not participating.

4. LDSS- 4016A (4016A NYC) & LDSS-4016B (4016 B NYC): Notice Of Intent To Change Benefits: Public Assistance, Supplemental Nutrition Assistance Program (SNAP), Medical Assistance Coverage And Services (Adequate Only) (PART A & B)

   a. These notices are used to tell a recipient of changes to eligibility or benefit amounts during the certification period, when timely notice is not required.

      TASB Chapter 8 specifies when an adequate only notice may be sent for TA.

   b. SNAP requirements permit adequate notice to be used when the SNAP change is the result of information reported on the periodic report. However, federal SNAP requirements do permit situations in which no notice at all is required. These SNAP situations are specified within this section.

   c. Based on the different program requirements, this adequate - only notice can be used for TA households under the following circumstances:

      (1). The conditions for adequate - only notice for TA and MA apply and no notice is required for SNAP. Even though notice is not required, the appropriate SNAP boxes on the combined notice must be completed to keep households informed of the status of their SNAP eligibility and benefits;

      (2). The condition for adequate - only notice for TA and MA apply and the household does not receive TA/SNAP

      (3). The action being taken is based on information reported on a periodic report;

      (4). The action being taken is an increase for both TA and SNAP or an increase in either program that does not adversely affect the other program.

d. TA Section (Part A) - This recoupment section, if applicable, must be completed.

e. SNAP Section (Part B) - If an overpayment is currently in place or is being established, the information must be entered on this portion of the notice. See SNAPSB Section 16.

5. LDSS- 3152: Action Taken On Your SNAP Case (LDSS- 3152 NYC) - Under certain circumstances this notice must be used by the TA worker for a TA/SNAP household. See TASB Section 8 for information regarding when and how this notice is used for a TA case. For SNAP Only, see I. within this Section.

6. LDSS-2114: Continuing Your Public Assistance and/or PA/SNAP Benefits

a. This notice is used to inform a household in receipt of SNAP benefits on their Temporary Assistance case that the certification period is due to expire and that the household must take actions as indicated in order to continue to receive SNAP and avoid interruption of benefits.

b. If a household receives this notice and fails to fulfill the SNAP recertification requirements, no further notice is sent (i.e. no additional notification that benefits have been discontinued is required). However, if the TA case is being discontinued, the SNAP portion (Part B) of the combined notice (LDSS-4014A and LDSS-4014B) must be completed to inform the household of the status of their SNAP eligibility and benefits.

Reference:

01-INF-17;

CFR 273.2 Office Operations and Application Processing

06-INF-29 Revisions to 12 Mandatory Client Notices

F. SNAP Only Notices

The LDSS-3152 (LDSS-3152NYC): "Action Taken on Your SNAP Benefits Case" and the LDSS-4753: "Supplemental Nutrition Assistance Program (SNAP) - Request for Contact/Missed Interview" notices are generally sent to non-temporary assistance (NTA) SNAP households. In some circumstances, they may be used for TA/SNAP applicants/recipients, such as when an action is being taken on SNAP benefits issued in a TA case.

1. LDSS-3152 (LDSS- 3152 NYC): Action Taken On Your SNAP Case

a. This notice is used to inform NTA/SNAP households of the decision made regarding an application or recertification for SNAP. It is also used when a household which is applying for TA and SNAP is determined eligible for SNAP before eligibility for TA is determined. This situation is most likely to occur when the household is entitled to expedited processing for SNAP.

b. When the application is approved, the notice must indicate whether accepted under normal processing or expedited processing. It must also include:
   (1). The authorization period;
   (2). The amount of initial issuance and the ongoing benefit;
   (3). Any pended verification if applicable; and
   (4). When benefits may be accessed.

c. When the application is denied, the reason must be given.

d. This notice informs the household that if the SNAP application is accepted before the amount of a TA grant is determined; the SNAP benefit may be changed without further notice. This is included because federal regulations state that no additional notice is required in this situation.

e. However, this State's practice is to give as much information as possible to applicant/recipient households. Therefore, the SNAP section of the LDSS-4013B (B notice of the combined TA/SNAP/MA notice) must be completed even if this notice (LDSS-3152) has previously been sent to a TA household.

f. The Recoupment box is checked if a recoupment is going to be taken against SNAP when the case is opened. However, a recoupment cannot be taken nor this box checked unless all appropriate procedures and notices have been used regarding claims establishment.

2. LDSS-3620 (LDSS- 3620 NYC) : Notice of Intent To Change SNAP Benefits (Timely And Adequate)

a. This notice is an adverse action notice used to inform a recipient of SNAP benefits of the determination to reduce, discontinue or suspend such recipient's SNAP benefits within the certification period.

b. If a recoupment is currently in place for SNAP, the worker should check the box indicating that a recoupment is being taken against SNAP benefits.

3. LDSS-3621 (LDSS- 3621 NYC): Notice Of Intent To Change SNAP Benefits (Adequate Only)

a. This notice is used to inform a SNAP recipient of a change in his/her benefits, during the certification period, when timely notice is not required.

b. This notice includes the actions of both "INCREASE" and "CONTINUE". SNAP recipients must be provided adequate notice of any increases in benefits, or of any changes in the amount of one of the items used in the calculation of his/her SNAP benefits although there is no change in the amount of SNAP benefits.

c. Situations in which an adequate only notice would be used include when a reduction, suspension, or termination occurs as a result of information reported on a periodic report. A household that fails to recertify and is to be disqualified due to a voluntary quit shall also be notified by an adequate-only notice.

Example: The District can use adequate-only notices for situations that involve noticing the SNAP household for denials, benefit increases or when SNAP benefits remain unchanged due to changes submitted for review.

d. The DISCONTINUE box may be used at local district option in situations where no notice is required under federal requirements. These situations are specified in this section of the SNAPSB.

4. LDSS-4753: SNAP - Request for Contact/Missed Interview

a. This notice is used to notify the household of information/verification needed to determine eligibility. Typically, it is used by a district to verify a change in household circumstance.

Example: The LDSS-4753 can be used in situations where the District receives an RFI notification related to new employment for a household member. The RFC gives the district a way to contact the household to request the wage information.

b. It is also used to notify the household of a missed interview appointment for application or recertification.

Reference:

01-ADM-08 Changes in Food Stamp Application and Recertification Procedures

03-INF-10 Application Processing, Six-Month Reporting, Transitional Benefits and Standard Utility Allowances

GIS 08 TA/DC018 Food Stamp Notice of Missed Interview (NOMI) Issuance

10-INF-16 Revised LDSS-3152: "Action Taken on Your FS Benefit Case"

A. ABEL Budget Narratives

Department regulations 358-2.2(n) and 358-3.3(b) states that, a timely and adequate notice as well as a SNAP budget, or the basis for the computation, must be sent when a district proposes to discontinue or reduce a recipient household's SNAP benefits based on a budget calculation. An adequate notice and a SNAP budget must be sent when a district accepts or denies a SNAP application or increases a recipient household's SNAP benefits based on a budget calculation. An adequate notice and a SNAP budget is also required when a change occurs in any factor in the calculation of a household's benefit even though there is no resulting change in the amount of the household's SNAP benefit.

NOTE: When CNS is used, the budget information/explanation is automatically included as part of the notice.

When a manual notice is sent, the SNAP budget to be sent in a majority of the cases will be the Automated Budgeting and Eligibility Logic (ABEL) budget. To promote applicant/recipient understanding of these budgets, the local district must also send an appropriate SNAP Budget Narrative.

The following narratives will be used as explanations with a manual notice:

1. LDSS-3959 SNAP Excess Net Income Narrative - To be used when there is a denial, suspension or discontinuance of SNAP benefits due to excess **net** income.

2. LDSS-3960 SNAP Excess Gross Income Narrative - To be used when there is a denial, suspension or discontinuance of SNAP benefits due to excess **gross** income.

3. LDSS-3961 SNAP Budget Narrative - To be used when there is a reduction or increase in SNAP benefits, as well as when there is a change in the amount of a factor used in the calculation of a household's benefit even though there is no resulting change in the amount of the household's SNAP benefit.

References:

387.20 Notification of Local Department Decisions

http://otda.ny.gov/policy/directives/2005/INF/05-INF-13.pdf

SECTION 9: Recipient/Applicant Rights

A. Right to Privacy

1. Use and Safeguarding of Protected Information

Federal and state program-specific confidentiality and information security rules prohibit unauthorized access and inappropriate dissemination of Protected Information. They also limit the access to and/or dissemination of such information for authorized, legitimate business purposes.

Protected Information is data or information created, maintained in and/or obtained from OTDA and/or district applications, systems, networks and/or databases, which is, pursuant to federal and/or state laws, rules, regulations, policies or agreements, deemed confidential, personal, private and/or sensitive. Such data or information may be present or stored in any form or medium and includes, but is not limited to:

- Data or information obtained from sources outside of OTDA, such as Federal Tax Information (FTI); Federal Parent Locator Services (FPLS) information; Unemployment Insurance Benefit (UIB) information; Social Security Administration (SSA) information; and, Medicaid (MA) information.
- Data or information maintained in and/or obtained from OTDA and/or district applications, systems, networks and/or databases.
- Data or information identifying an individual, particularly where such disclosure could result in an unwarranted invasion of personal privacy. Such data or information may include, but is not limited to: home addresses; telephone numbers; Social Security numbers; client identification numbers; payroll information; financial information; health information; and/or, eligibility and benefit information.
- Computer codes or other electronic or non-electronic data or information, the disclosure of which could jeopardize the compliance stature, security or confidentiality of OTDA's or the district's information technology solutions, applications, systems, networks or data.
- Non-final OTDA and/or district policy or deliberative data or information related to the official business of OTDA and/or the district.
- Data or information which is not otherwise required to be disclosed under the NYS Freedom of Information Law.
- Any other material designated by OTDA and/or the district as being "Confidential," "Personal," "Private" or otherwise "Sensitive."

Access to and use of Protected Information is strictly limited to duly authorized employees for authorized purposes only. Authorized entities, including district employees, must maintain the confidentiality and security of Protected Information in accordance with federal and state laws, rules, regulations, policies and agreements. Use and disclosure of such information is strictly limited for authorized purposes, such as uses directly related to the administration and delivery of program services. district employees must be aware at all times of their ongoing duty to comply with this limitation.

2. Interview

The applicant's right to privacy must be protected during the interview. The size and layout of facilities must be adequate to preserve the privacy and confidentiality of the interview. At a minimum, the interview must be conducted as a private conversation between the applicant or their authorized representative and the eligibility worker.

Reference:

18-LCM-10-T Use and Safeguarding of Protected Information

7 CFR 272.1(c), 18 NYCRR 387.2(j), 18 NYCRR 387.7(h), 18 NYCRR 357

B. Right to Access Case Record

1. Portion of Case Record Available for Review

Applicants, recipients, and their authorized representatives have the right to access their “case file” or “case record” upon reasonable notice to the district. For access purposes, with limited exceptions, this includes all paper records and machine-readable data that can readily be converted to a comprehensible paper record relating to an individual’s receipt of SNAP.

In the case of records that relate generally to a household, eligibility and payment records must be made available to any member authorized to act on behalf of that household. Any records maintained by the district with respect to an individual are subject to access by that individual whether or not the records are required to be maintained. Medical records contained in the individual’s case record, even if marked "confidential,” must be made available for review.

The only exceptions to access to an individual’s case record are:

- Those materials to which access is governed by separate statute, such as child welfare, foster care, adoption, child abuse or neglect, or any records maintained for the purpose of the Child Care Review Service.
- Those materials maintained separately from public assistance files for the purposes of a criminal prosecution and referral to the District Attorney's office.
- The County Attorney or Welfare Attorney's files

2. Procedures for Access to Case Records in Connection with Household, Eligibility and Payment Information

If the district receives a request for review of a particular file, only that file should be produced. If, however, a general request for review is made with no specificity, every file pertaining to the requesting individual should be identified and gathered for that individual's review.

An appointment schedule may be set up for the purpose of case file review. If there are difficulties in locating the file, the applicant/recipient or their representative must be called.

> NOTE: No more than five working days should elapse between the date of receipt of request for review and notification that either the file is not yet located, or the file is available at a specific date, time and place for review.

At the time of review, proper identification from a person requesting the file must be obtained. If an applicant or recipient requests access to his or her case record, he or she

must present some form of identification. If an attorney, paralegal or authorized representative requests access to their client's case record, he or she must present sufficient documentation to establish his or her authority to act on behalf of the applicant or recipient.

The option of allowing the applicant/recipient to make copies of documents from the file rests with the district. It is suggested that copying be allowed if the request is reasonable and copying facilities are available. The district may charge a fee up to $.25 per page for copying, unless the documents are requested in association with preparation for a fair hearing (see Subsection K of this Section)

Reference:

15-LCM-01 Records Access

18 NYCRR § 357.3

7 CFR § 272.1(c)(3)

C. Application Rights

SNAP Application Rights are described in detail in Section 4 of the SNAP Sourcebook.

D. Right to Equal Access

All persons inquiring about, applying for, or receiving SNAP benefits must be provided with meaningful access to benefits and program services while being treated with understanding, dignity, and respect.

Any provision of program information or determination about an applicant or recipient's participation in SNAP, whether concerning their eligibility or the extent of their participation, shall be made without discrimination on the basis of race, color, national origin, sex, religious creed, disability, age, political beliefs, gender identity, transgender status, gender dysphoria, sexual orientation, marital status, familial status, and military status, or reprisal or retaliation for prior civil rights activity in any program or activity conducted or funded by USDA.

1. Language Access

a. Definitions

Limited English Proficiency (LEP): LEP individuals are individuals who do not speak English as their primary language and who have a limited ability to read, write, speak, or understand English.

b. Policy

1. Interpretive Services

   LEP applicants must be able to apply without undue hardship. LEP applicants and recipients are entitled to qualified interpretive services, provided at no cost to them. At no time should any person be denied access to an application for benefits, programs or services based on a district's inability to provide adequate interpretive services.

   While a district must provide access to qualified interpretive services, an LEP applicant/recipient may waive their right to this service if they so choose. In such cases, a waiver should be obtained from the LEP individual or their authorized representative and maintained in the case record. An example of such a waiver form can be found on the OTDA intranet:

   A Waiver of Right to Free Oral Interpretation Services

2. Program Information and Vital Documents

   LEP individuals have the right to access vital SNAP documents in a way that they can understand. On an ongoing basis, OTDA translates forms and publications into a number of languages. These materials are available on the OTDA internet site here: Applications and Publications. district staff may also access translated forms on the OTDA intranet site here: http://otda.state.nyenet/ldss_eforms/

Note: As described in 19-ADM-12, district websites are a commonly used, public source of information, and must also comply with LEP meaningful access requirements by providing LEP individuals access to all SNAP information posted.

2. Disability Access

a. Policy

An individual with a disability must have the same access to SNAP, as someone who does not have a disability. Individuals who are otherwise eligible for SNAP must not be denied access to benefits and services because of a demonstrable physical and/or mental limitation that would prevent them from meeting a non-essential procedure or rule.

b. Reasonable Accommodation

Persons with a disability have the right to reasonable accommodation. district staff must make reasonable accommodation to the known physical or mental limitations of otherwise qualified applicants/recipients with disabilities unless the district can show that the accommodation would impose an undue financial and administrative burden on the operation of its program. Districts may request that an applicant/recipient provide appropriate documentation where the disability is not readily apparent. Districts may deny reasonable accommodation, when the applicant/recipient, after being given reasonable opportunity, fails or refuses to comply with the request to provide appropriate documentation where the disability is not readily apparent. Programs and services should be provided to all applicants/recipients in the same manner or location, unless separate or different measures are necessary to ensure equal opportunities for individuals with disabilities.

c. Reasonable Modification

If a person with a disability would otherwise be denied for failing to meet the requirement of a district policy, practice or procedure due to the limitations of their disability, they have the right to a modification.

Note: A district need only make reasonable modifications in its policies, practices, or procedures, to assure that otherwise eligible persons are not denied needed benefits, programs, and services. If the district can demonstrate that a modification would fundamentally alter the nature of its benefits, programs, and services, it is not required to make the modification. For example, a district issues SNAP stamp benefits using the Electronic Benefit Transfer system and has no authority to issue the benefits as cash, the district is not required to alter its SNAP program to provide SNAP benefits in cash to accommodate a request made by a recipient with a mental impairment who is afraid to access benefits electronically. A reasonable modification to

accommodate the recipient's disability may be made by using an alternative payee arrangement.

d. Physical Access

Persons with disabilities must have access to district offices. If there are barriers in the district's buildings that would hinder access, alternative means of access must be available, whether these are alternate entrances and offices or alternate places for conducting interviews. An district may, however, pursue alternatives to structural changes in order to achieve program accessibility. For example, where the second-floor office of a district is entered only by climbing a flight of stairs, a person with a mobility impairment or phobia who is seeking information about, or seeking to apply for benefits, programs and services can be served in an accessible ground floor location or in another accessible building.

e. Accessible Communication and Program Materials

Persons with disabilities have the right to effective communications with district staff, and the right to access SNAP vital documents and program materials in a format that is accessible to them or otherwise be provided with the necessary assistance to access these materials. The district must honor requests for alternative formats without requiring medical documentation to support the request, and staff must not deny a request for alternative formats based on judgment that the individual does not require an alternative format.

For more information about Accessible Communications and Alternative Format Program Materials please review 06-ADM-05 and 16-ADM-08.

References:

Policy Directives:

06-ADM-05: https://otda.ny.gov/policy/directives/2006/ADM/06-ADM-05.pdf

16-ADM-08: https://otda.ny.gov/policy/directives/2016/ADM/16-ADM-08.pdf

17-INF-14 Language Access for Individuals with Limited English Proficiency (LEP)

19-ADM-12 United States Department of Agriculture (USDA) SNAP Civil Rights Requirements

Regulation: 18 NYCRR 387.2, 18 NYCRR 355.1(a)(6), 7 CFR 272.4(b)

E. Civil Rights

New York State Human Rights law guarantees for the protection of the public welfare, health and peace of the people of this State, and in fulfillment of the provisions of the constitution of this State, concerning civil rights and non-discrimination. For SNAP, the federally-protected classes are: race, color, religious creed, national origin, age, sex, disability, political belief or reprisal or retaliation for prior civil rights activity in any program or activity conducted or funded by USDA. In addition to the federally protected categories described above, with respect to public accommodations, NYS law affords class protection based on gender identity, transgender status, gender dysphoria, sexual orientation, marital status, and military status.

Non-Discrimination Statement

In accordance with Federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, the USDA, its Agencies, offices, and employees, and institutions participating in or administering USDA programs are prohibited from discriminating based on race, color, national origin, sex, religious creed, disability, age, political beliefs, or reprisal or retaliation for prior civil rights activity in any program or activity conducted or funded by USDA.

Persons with disabilities who require alternative means of communication for program information (e.g. Braille, large print, audiotape, American Sign Language, etc.), should contact the Agency (State or local) where they applied for benefits. Individuals who are deaf, hard of hearing or have speech disabilities may contact USDA through the Federal Relay Service at (800) 877-8339. Additionally, program information may be made available in languages other than English.

To file a program complaint of discrimination, complete the USDA Program Discrimination Complaint Form, (AD-3027) found online at: https://www.usda.gov/oascr/how-to-file-a-program-discrimination-complaint, and at any USDA office, or write a letter addressed to USDA and provide in the letter all of the information requested in the form. To request a copy of the complaint form, call (866) 632-9992. Submit your completed form or letter to USDA by:

1. mail: U.S. Department of Agriculture
   Office of the Assistant Secretary for Civil Rights
   1400 Independence Avenue, SW
   Washington, D.C. 20250-9410;
2. fax: (202) 690-7442; or
3. email: program.intake@usda.gov.

With respect to public accommodations, New York State additionally prohibits discrimination based on gender identity, transgender status, gender dysphoria, sexual orientation, marital status, and military status.

Note: The above copied Non-Discrimination Statement is provided by USDA with the inclusion of additional New York State protected classes by OTDA. The statement is required to be included in vital SNAP documents and program information. OTDA's public-facing website contains the required NDS at: http://otda.ny.gov/programs/snap/. This statement must not be altered. As a commonly used public source of information, district websites also must comply with civil rights non-discrimination requirements also must have the current NDS on their website where SNAP information is hosted.

19-ADM-12 United States Department of Agriculture (USDA) SNAP Civil Rights Requirements

20-ADM-01 Gender Designation "X"

20-LCM-14 Revisions to the district-2921, district-3174, PUB-1301, and PUB-1313

7 CFR 272.6, 18 NYCRR 387.2

F. Complaint Procedures

1. Civil Rights Complaints

Districts shall not discriminate against any applicant or recipient in any aspect of program administration including, but not limited to, program access and delivery of services based on race, color, national origin, age, disability, sex, religious belief, political belief, reprisal/retaliation, and where applicable, sexual orientation, gender identity, marital status and military status.

a. Complainant Responsibilities - Persons who believe they have been subject to discrimination as specified above may file their complaint within 180 days of the alleged discrimination by completing the USDA Program Discrimination Complaint Form, AD-3027, found online at http://www.ascr.usda.gov/complaint_filing_cust.html or at any USDA office or write a letter addressed to USDA and provide in the letter all of the information requested in the form. A copy of the complaint form may be obtained by calling (866) 632-9992. The completed complain form or letter to USDA may be sent to:

U.S. Department of Agriculture
Office of the Assistant Secretary for Civil Rights
1400 Independence Avenue, SW
Washington, D. C. 20250-9410;

Fax: (202) 690-7442; or
Email: program.intake@usda.gov

And/or the:

State of New York Office of
Temporary and Disability Assistance (OTDA)
SNAP Civil Rights Team (SCRT)
Division of Legal Affairs
40 North Pearl Street – 16C
Albany, New York 12243

Email: otda.sm.scrt@otda.ny.gov

b. District Responsibility

(1) Accepting Verbal Complaints - If an individual alleges discrimination but declines to write a complaint, the employee receiving the complaint must record it. If possible, the following information should be obtained:

(a) The complainant's name, address and phone number (or other means of contacting);

(b) The name and location of the organization or office accused of discriminatory practices;

(c) The circumstances which prompted the allegation;

(d) The nature of the alleged discrimination, i.e. race, sex, age, color, religious creed, national origin, political belie, or handicap;

(e) Names, titles (if appropriate), and address of individuals (witnesses) who may know of the discriminatory act;

(f) The date(s) on which the alleged discrimination occurred;

(g) In addition to logging in the actual complaint, districts are required to maintain copies of all pertinent records of the incident and the resolution of the complaint. These records are subject to both State and Federal audit and, therefore, must be readily retrievable for a period of seven [7] years or until the audit is concluded.

NOTE: FNS will accept all written complaints even if the above information is not complete. However, investigations will be conducted only if the written complaint contains the data listed in items (b), (c) and (d) above.

(2) Review of Complaint - In order to meet the documentation requirements, a district will now maintain a copy of the complaint form that has been referred to the department along with any other materials related to the resolution of the complaint. Pursuant to Federal and State requirements, all complaints alleging civil/human rights discrimination on the basis of membership in a protected class must be processed within 90 days of receipt. All complaints alleging discrimination based on age must be referred for mediation within 5 days of receipt. A complaint is fully processed when an investigation has been initiated and completed, the report has been approved by the United States Department of Agriculture's Food and Nutrition Service (FNS), and a final determination has been sent to the complainant.

(a) Each district should designate a local contact responsible for the investigation of civil/human rights complaints regarding applicants and recipients of SNAP. The Civil/Human Rights Compliance Designee is responsible for conducting the investigation into each complaint allegation and submitting a report of the local finding to OTDA's SNAP Civil Rights Team (SCRT). To avoid creating a conflict of interest, the Designee should be someone who does not work in the program area. OTDA recommends as an ideal Designee a district affirmative action, equal employment officer, or a member of the district counsel's office or the Commissioner's office staff. Please contact OTDA SCRT if you have questions about who to designate. We also request that district's list an

alternate Designee who can assume the duties when/if the regular Designee is unavailable or when complaint volume is high.

(b) The OTDA SNAP Civil/Human Rights Violation Complain Form (district-5065) requires a preliminary review or investigation to determine merit and should be forwarded to the department when this preliminary review or investigation is completed by the designee. After conducting a preliminary analysis, OTDA SCRT will indicate whether the complaint is accepted for investigation. If accepted, the complaint allegation will be forwarded to the Designee for local investigation. The district must complete the investigation within 30 working days of receiving the complaint or referral.

(c) Those cases deemed to indicate a need for full investigation must be reported to the OTDA SCRT when the investigation is complete. SCRT will send a formal notice to the contact person, receive all reports of local determinations and full investigations and close the inquiry when the issue is resolved. In addition to conducting an investigation, the district is required to maintain copies of all pertinent records of the alleged incident and the resolution of the complaint. These records are subject to both State and Federal audit and, therefore, must be readily retrievable for a period of seven years.

(3) Publicity – district must publicize the complaint procedures described in this section. The following non-discrimination posters must be displayed in all local SNAP offices:

(a) AND JUSTICE FOR ALL (USDA) Form AD- 475B, September 2019

(b) SNAP COMPLAINT PROCEDURES, district- 8036, January 2020 English/Spanish.

(4) Information about non-discrimination laws, complaints, and participant rights must be provided to households within ten days of request. Client informational books district-4148A and district-4148B fulfill these requirements.

(5) Obtain Racial/Ethnic Data on Complainants - district must obtain data on households by racial/ethnic category, and report it to the department annually on Form FNS- 101. Applicants should be requested to voluntarily identify their race or ethnicity on the application form. The department must report this racial/ethnic data on participating households to FNS.

The ethnic categories are (choose one):

(a) Hispanic or Latino
(b) Not Hispanic or Latino

The race categories are (one or more of the following):

(a) Native American or Alaskan Native
(b) Black or African American
(c) Asian
(d) Native Hawaiian or Pacific Islander
(e) White

2. Non-Civil Complaints

a. Criteria - A non-civil complaint is any written or oral communication made to an district or to the department by or on behalf of an applicant for or recipient of SNAP benefits (other than a complaint for which there is a right to a fair hearing) alleging dissatisfaction with:

(1) The action or failure to act in a particular case;
(2) The manner in which the district generally handles its cases;
(3) The district's facilities and/or services, or the manner in which it generally conducts business;
(4) Other facilities or services used by the district for providing care and services for its clients; or
(5) Any other aspect of district administration not mentioned above.

b. Complainant Responsibilities - Persons who believe any of the above, including processing standards and/or delivery of services, were provided unsatisfactorily and have not obtained a satisfactory resolution from the local SNAP Office may also file a complaint with the department SNAP Bureau.

Complaints received by a district or the department should include:

(1) Complainant's name;
(2) Complainant's address;
(3) Phone number (or other means of contacting complainant);
(4) The county involved;
(5) Complainants case number if applicable;
(6) All pertinent information concerning the allegation.

c. district Responsibilities

(1) Every complaint received must be promptly acknowledged.

(2) The basis of the complaint must be reviewed and investigated to determine the validity of the complaint.

(3) The district is responsible for reviewing its own activity in order to determine what appropriate action is required.

(4) When a complaint has been referred to the district by the Department, a response must be submitted to the Department within 20 days covering all matters pertaining to the complaint, including:

- Facts gathered by the district concerning the complaint; and
- Any action taken by the district to resolve the issue and whether the complainant is satisfied with the explanation/action provided.

3. **General Information**

The Department will follow up on all SNAP complaints it receives. Corrective action will be taken where warranted in addition to responding to the complainant on the State agency's disposition of the complaint.

To help accommodate civil complaint reporting requirements, districts are encouraged to develop and maintain a "complaint tracking system" that would identify:

- Complainant's case number, name, address, and phone number;
- Date received;
- Type of complaint (i.e. civil, non-civil);
- Reason for complaint;
- Who/where the complaint was referred for action (office/unit/worker);
- Resolution due date;
- Date resolved.

Policy **Reference:**

20-LCM-03 Supplemental Nutrition Assistance Program (SNAP) Revised Civil/Human Rights Complaint Procedures

15-LCM-09 Supplemental Nutrition Assistance Program (SNAP) Revised Civil/Human Rights Complaint Procedures

13-LCM-06 Supplemental Nutrition Assistance Program (SNAP) Civil/Human Rights Complaint Procedures

03 LCM-03, Food Stamp Program Civil Rights Complaint Procedures

90 INF-53 Food Stamps: Complaint Procedures/Requirements

90 ADM-41 New Client Informational Books: DSS-4148A - "What You Should Know About Your Rights and Responsibilities (When Applying for or Receiving

Social Services)" and DSS-4148B - "What You Should Know About Social Services Programs"

09 INF-06 Revisions to the district-4148B - What You Should Know About Social Services Programs – Book 2

07 INF-06 Revisions to the district-4148A - What You Should Know About Your Rights and Responsibilities (When Applying For or Receiving Social Services)

TA Source Book: Chapter 4

G. Right to Fair Hearing

1. DEFINITIONS

a. Aid Continuing - The right to have SNAP benefits continue unchanged until the fair hearing decision is issued.

b. Appellant - The party for whom the fair hearing is requested.

c. Applicant - A person who has applied for SNAP benefits.

d. Commissioner - The New York State Commissioner of the Office of Temporary & Disability Assistance or the Commissioner's designee.

e. Department –The New York State Office of Temporary & Disability Assistance.

f. Fair Hearing - A formal procedure provided by the Department upon a request made for an applicant or recipient to determine whether an action taken or failure to act by a local district was correct.

g. Hearing Officer - An attorney who is employed by the Department and designated and authorized by the Commissioner to preside at hearings. The Hearing Officer is also referred to as the Administrative Law Judge, or ALJ.

h. Local District - Local district means the county Department of Social Services (district) or the New York City Human Resources Administration (HRA).

i. Mass Change In the SNAP Program - Changes initiated by the Federal government or the Department which affect all SNAP households or a significant portion of all SNAP households. Mass changes may include, but are not limited to, adjustments to income eligibility standards, shelter and dependent care deductions; the thrifty food plan and the standard deduction; annual and seasonal adjustments to social security, Supplemental Security Income and other Federal benefits.

j. Parties to A Fair Hearing - The person for whom a fair hearing is requested and the district or agencies whose decision, action or failure to act is subject to review at the fair hearing.

k. Recipient - A person who is, or has been, receiving SNAP benefits. Recipient includes a former recipient seeking to review a determination of an district and who would have a right to a hearing under SNAPSB Section 8 if such person were a current recipient.

l. Social Services District - The local/county Department of Social Services (district) or the New York City Human Resources Administration (HRA)

m. Witness - A person, other than the applicant, recipient, or the representative thereof, who presents testimony and/or documentary evidence at a fair hearing.

References:

18 NYCRR 358-2 Definitions

2. General Policy

a. Reasonable Promptness

An applicant or recipient has the right to challenge certain determinations or actions of a local district or a local district's failure to act with reasonable promptness or within the time periods required by 18 NYCRR 387, by requesting that the Department provide a fair hearing. The right to request a fair hearing cannot be limited or interfered with in any way.

b. Fair Hearing Issues

An applicant or a recipient of SNAP benefits has a right to a fair hearing if:

1. An application has been denied by the local district or the applicant has agreed in writing that the application should be withdrawn but the applicant feels that they were given incorrect or incomplete information about their eligibility, or

2. A local district has failed to:

   a. Determine eligibility for SNAP with reasonable promptness or within the time periods required by 18 NYCRR 387; or

   b. Issue or adjust SNAP benefits; or

3. SNAP benefits have been discontinued, reduced, or increased; or

4. Although there has been no change in the amount of SNAP benefits, the applicant/recipient wishes to challenge the local district's determination that the amount of one of the items used in the calculation of SNAP benefits has changed; or

5. A request for restoration of any SNAP benefits lost less than one year prior to the request for restoration has been denied; or the applicant/recipient does not agree with the amount of SNAP benefits restored or any other action taken by the local district to restore such benefits; or

6. SNAP benefits have been reduced, suspended or cancelled as a result of an order issued by the United States Food and Nutrition Service (FNS) to reduce allotments because the requirements of states participating in SNAP will exceed appropriations. However, in such cases the applicant/recipient has a right to a fair hearing only if he/she believes that the benefit level was computed incorrectly under federal rules, or that federal rules were misapplied or misinterpreted; or

7. The recipient is aggrieved by a mass change in the SNAP Program; or

8. Within a certification period, the amount of the SNAP benefits is inadequate and the recipient has made the request for a fair hearing within such certification period; or

9. An application for SNAP benefits has been denied or SNAP benefits have been reduced or discontinued due to a determination that the applicant/recipient is not exempt from SNAP work requirements or that the applicant/recipient has failed to comply with work registration or employment and training requirements. An Applicant/recipient may request a fair hearing to review such determination including the determination of exemption status, the type of requirement imposed, or a district's refusal to make a finding of good cause for failure to comply with such requirements if the applicant/recipient believes that the finding of failure to comply was improper; or

10. The applicant/recipient disagrees with the amount of a claim for the over-issuance of SNAP benefits, except if the amount of such claim has already been decided by a hearing in accordance with SNAPSB Section 6.

c. Sponsor of Alien

The sponsor of a noncitizen receiving SNAP benefits and for whom there has been an overissuance of benefits for which the sponsor is liable, has a right to a hearing to contest the following:

1. The determination that the sponsor was responsible for the incorrect information which was provided, and which resulted in the over-issuance; and
2. The amount of the over-issuance for which the sponsor is liable.

d. Issues Without Fair Hearing Rights

With respect to SNAP benefits, an Applicant/Recipient does not have the right to a fair hearing to challenge the following:

1. An adverse decision in an administrative disqualification hearing; or

2. A disqualification penalty imposed after the applicant/recipient waived their rights to an administrative disqualification hearing.

Further, an applicant/recipient has no right to a hearing in the following situations:

1. If a request for contact notice has been sent in order to verify or clarify information during the SNAP certification period; or
2. If a notice of missed interview informing has been sent to advise that a scheduled eligibility or recertification interview has been missed and that it is the applicant/recipient's responsibility to reschedule the interview.

References:

358-3.1 Right to a Fair Hearing

H. Request for a Fair Hearing

1. Requests for A Fair Hearing

A fair hearing may be requested in writing, (via post mail, e-mail or fax), or by telephone, or in person.

a. 90 Day Limit - A request for a fair hearing on any action by the district affecting SNAP benefits, including a loss of SNAP benefits, must be made within 90 days after the determination, action or failure to act about which the applicant/recipient is complaining. Action includes a denial of a request for restoration of any benefits lost more than 90 days but less than one year prior to the request for restoration. Where the local district's action is the result of a mass change, a request for a fair hearing must be made within 90 days after the changed level of benefits become available to the recipients.

b. A request for a fair hearing to dispute the current level of SNAP benefits granted to a recipient household must be made during the SNAP certification period.

c. Holiday or Weekend Extension - If the last day for requesting a fair hearing falls on a weekend or holiday, a hearing request postmarked or received by the Department on the day after the weekend or holiday will be considered a timely request.

2. Scheduling and Prioritizing Hearings

Convenient Time and Location - The fair hearing will be held at a time and place convenient to the appellant as far as practicable. In scheduling the hearing, the Department will consider such things as the physical inability of the appellant to travel to the regular hearing location.

Priority in the scheduling of a hearing and determination will be provided when:

a. A fair hearing which is subject to priority processing pursuant to this section of the SNAPSB must be scheduled as soon practicable after the request is made. In determining the date for which the hearing will be scheduled, consideration must be given to the nature and urgency of the appellant's situation, including any date before which the decision must be issued to allow for meaningful resolution of the issue under review; or

b. An applicant has a problem which is determined, at the Department's discretion, to be an appropriate subject for priority processing and which presents a crisis situation or a threat to the health and safety of the family, or

c. An applicant/recipient requests a fair hearing concerning their SNAP benefits and the household intends to move from the district before the hearing decision would normally be issued. Priority will be given to the scheduling of the hearing, taking into account any date before which the hearing must be

scheduled to allow for the appellant to receive the decision while still in the district.

Example: Hearing requests from households such as migrant farmworkers that plan to move from the jurisdiction, should be expedited in order for the hearing decision to be issued and a restoration of benefits if the decision so indicates, before they leave the area.

3. Priority Determination

   After a hearing which was scheduled on a priority basis, the decision must be issued as soon as practicable. In determining the date by which the decision will be issued, consideration must be given to the nature and urgency of the appellant's situation, including any date before which the decision must be issued to allow for meaningful resolution of the issue under review.

4. Ending Priority Processing

   If, at the conclusion of a hearing which was scheduled on a priority basis, the Hearing Officer determines that the issues do not warrant continued priority processing, the Hearing Officer will inform the parties that the issuance of the decision will not receive priority processing.

References:

7 CFR 273.15; Fair Hearings

358-3.2 Right to Priority in Hearing and Determination

358-3.5 Requests for a Fair Hearing

I. Appellant Rights

Appellants have the right to:

a. The continuation or reinstatement of SNAP benefits until the issuance of a decision in their fair hearing, as described by subsection J – 'Aid Continuing' of this section. Recipients have the right to request that their benefits not be continued or reinstated until the fair hearing decision is issued.

b. Examine the case record and to receive copies of documents in the case record which are needed to prepare for the fair hearing.

c. Examine and receive copies of all documents and records which will be submitted into evidence at the fair hearing by the district.

d. Request a rescheduling of the hearing.

e. Be represented by an attorney or other representative at any conference and hearing, or to represent themselves.

f. Have an interpreter at any fair hearing, at no charge, if the appellant does not speak English or if they are hearing impaired. Appellants should advise the Office of Administrative Hearings (OAH) prior to the date of the fair hearing if they will need an interpreter.

g. Appear and participate at the conference and fair hearing, to explain their situation, to offer documents, to ask questions of witnesses, to offer evidence in opposition to the evidence presented by the local district and to examine any documents offered by the local district;

h. Bring witnesses to present written and oral evidence at any conference or fair hearing;

i. Make a request to the local district to receive necessary transportation or transportation expenses to and from the fair hearing for the appellant and their representatives and witnesses and to receive payment for the appellant's necessary child care costs and for any other necessary costs and expenditures related to their fair hearing;

j. Have the fair hearing held at a time and place convenient to the appellant as far as practicable, taking into account circumstances such as their physical inability to travel to the regular hearing location; and

k. Seek review by a court if the decision is not in the appellant's favor.

l. Request the removal of the hearing officer.

References:

358-3.4 Rights in the Fair Hearing Process,

7 CFR 273.15; Fair Hearings

16-ADM-08 Alternative Formats and Disability Accommodation Indicator Use

15-LCM-01Records Access

J. Aid Continuing

1. Right to Aid Continuing

For SNAP households, including households in receipt of both SNAP and TA, the right to aid continuing exists as follows:

a. Recipients have the right to have their SNAP benefits continue at the same level as they have been receiving until the fair hearing decision is issued only where the proposed adverse action is to take place during the certification period of their SNAP authorization and their request for a hearing is made prior to the effective date contained in a timely notice for their case closing or authorization reduction. The effective date of a SNAP timely notice of adverse action must be at least 10 days after the date the notice is mailed.

b. If a recipient's SNAP benefits have been reduced or discontinued by the district and they have made a timely hearing request by the effective date contained in the notice, their SNAP benefits must be restored by the district as soon as possible but no later than five business days after notification from the Department that they are entitled to have their benefits continue unchanged.

c. When the action being taken is the result of a mass change, the effective date of the action is deemed to be 10 days after the date the changed level of benefits become available to the recipient.

d. If the effective date of the proposed action falls on a weekend or holiday, a hearing request postmarked or received by the Department on the day after the weekend or holiday will be considered timely.

2. No Right to Aid Continuing

There is no right to aid continuing where:

a. The Department has determined that the sole issue is one of federal law or regulation and the recipient claims that their benefits were improperly computed or the law or regulation was misapplied or misinterpreted as invalid; or

b. The recipient's SNAP benefits have been reduced, suspended or cancelled as a result of an order to reduce allotments issued by the Food and Nutrition Service (FNS) because the requirements of states participating in the Supplemental Nutritional Assistance Program (SNAP) will exceed appropriations; or

c. The local district determines to discontinue benefits because of receipt of concurrent benefits in the same district or another district in the State.

3. Recertification affecting Aid Continuing

If the action proposed in the notice results from a regularly scheduled recertification of the recipient's SNAP authorization, their level of participation in SNAP will be

continued at the level determined at their recertification. Recipients do not have the right to have their level of benefits continued at the prior benefits level unless and until the fair hearing decision is issued requiring such benefit level.

4. Good Cause for Late Request

When SNAP benefits are reduced or terminated because the recipient fails to make the request for a hearing within the required period stated in the notice, upon their request for a fair hearing their SNAP benefits will be reinstated if they establish that their failure to request a hearing in a timely manner was for a good cause. If the Department determines that they have the right to have their Supplemental Nutritional Assistance Program benefits reinstated, the local district must reinstate their SNAP benefits as soon as possible but no later than five business days after being advised by the Department of such determination.

5. Mass Changes

When benefits are reduced or terminated due to a mass change, the recipient's benefits will be reinstated only if the issue being contested is that:

a. SNAP eligibility or benefits were improperly computed; or

b. Federal law or regulation is being misapplied or misinterpreted by the Department or by the district.

If the Department determines that the recipient has the right to have SNAP benefits reinstated, the local district must reinstate their SNAP benefits as soon as possible but no later than five business days after being advised by the Department of such determination.

6. No Change of Benefits Prior To Fair Hearing Decision

Once benefits are continued or reinstated, the benefits should continue without change until the hearing decision unless:

a. The certification period expires, in which case the recipient may reapply and may be determined eligible for a new certification period; or

b. A change affecting the household's eligibility for SNAP or the basis of issuance of SNAP benefits occurs before the hearing decision is issued and the recipient fails to make a request for a fair hearing regarding a subsequent notice of adverse action; or

c. Before the hearing decision is issued, a mass change has occurred which affects the household's eligibility for SNAP or basis of issuance.

7. Recovery of Aid Continuing

If the recipient's SNAP benefits are continued until a fair hearing decision is issued and they lose the fair hearing, the district may recover the benefits which were authorized as a result of aid to continue while the fair hearing and the decision were pending. This does not apply to fair hearings to review the imposition of an employment sanction because the employment sanction is imposed in its entirety after the district is upheld in the fair hearing.

References:

358-3.6 Right to Aid Continuing

CFR 273.13 Notice of Adverse Action

94 INF-16 Food Stamps Clarification of Effective Date of a Timely Adverse Action Notice;

K. Examination of Case Record

1. Right to Examine Case Record

At any reasonable time before the date of the fair hearing and also at the fair hearing, the appellant or their authorized representative has the right to examine the contents of their case record and all documents and records to be used by the local district at the fair hearing.

2. Except as provided in paragraph 3 below the only exceptions to access to the case record are:

a. Those materials to which access is governed by separate statutes, such as records regarding child welfare, foster care, adoption or child abuse or neglect, or in cases of domestic violence which might cause a threat to the victim, or any records maintained for the purposes of the Child Care Review Service; and

b. Those materials being maintained separately from TA files for the purposes of criminal prosecution and referral to the district attorney's office. This exception applies only to records which are part of an active and ongoing investigatory action; and

c. The county attorney or county welfare attorney's files.

3. Commission for The Visually Handicapped Records

Case records secured by the Commission for the Visually Handicapped or by a local rehabilitation agency acting on behalf of such Commission will not ordinarily be made available for examination since they contain information secured from outside sources. However, particular extracts will be furnished to the applicant/recipient or his/her authorized representative when provision of such information will be beneficial. The case record or any part thereof, admitted as evidence in a fair hearing shall be available for review by the applicant/recipient or his/her authorized representative.

4. Copies of Documents

a. Upon oral or written request, including request by telephone, the district must provide to the appellant and/or the appellant's authorized representative copies of all documents to be presented by the district at the fair hearing. Such copies must be provided at a reasonable time before the date of the hearing. If the request for copies of documents is made less than five business days before the hearing, the district must provide the appellant and/or the appellant’s authorized representative such copies no later than at the time of the hearing. Such documents must be provided without charge and must be provided to the appellant and/or the appellant's authorized representative by mail, if so requested. If there is insufficient time for the documents to be mailed and

received before the scheduled hearing date, the documents may be presented at the hearing instead of being mailed.

b Fraud files maintained separately from the public assistance/SNAP files for possible referral to the DA's office shall not ordinarily be available for inspection. However, if the district intends to use information from the fraud file in the fair hearing context, the entire file shall be available for review.

5. Copies of Additional Documents

a. Any additional documents from the appellant's case file which the appellant and/or the appellant's authorized representative identifies and requests for purposes of hearing preparation, must be provided at a reasonable time before the date of the hearing, the same as specified in 4.a. of this subsection.

6. Document Accessibility

a. If the district fails to comply with these requirements, the hearing officer may adjourn the matter, recess the matter to allow review of the documents, preclude the introduction of the documents, or take other action to ensure that the Appellant is not harmed.

b. Confidential information that is protected from release and other documents which the household will not have an opportunity to contest or challenge may not be introduced at the hearing or affect the hearing decision.

References:

358-3.7 Examination of Case Record before the Fair Hearing;

CFR 273.15 Fair Hearings

16-ADM-08 Alternative Formats and Disability Accommodation Indicator Use

15-LCM-01 Records Access

L. Authorization of Representative

1. Written Authorization

Except where impracticable to execute a written authorization, an individual or organization seeking to represent the appellant, other than an attorney or an employee of an attorney, must have a written authorization to represent the appellant at any conference or fair hearing and to review the appellant's case record. An employee of an attorney will be considered authorized to be a representative if such employee presents written authorization from the appellant's attorney or if such attorney advises the district by telephone of such employee's authorization.

2. Copies of All Correspondence

Once an district and the Department have been notified that a person or organization has been authorized to represent the appellant at the fair hearing, such representative will receive copies of all correspondence to the applicant/recipient from the district and the Department relating to the conference and fair hearing.

References:

358-3.9 Authorization of Representative

15-LCM-01 Records Access

M. Local District Responsibilities

1. Proposed Actions

a. A local district proposing to approve, deny, discontinue, or reduce SNAP benefits, or to increase SNAP benefits, or to change the amount of one of the items used in the calculation of SNAP benefits, must review or cause to be reviewed the intended action to determine whether the intended action is correct on the basis of the available evidence included in the appellant's case record.

b. Notice - Where it is determined that the intended action is correct after review, the district must send to the applicant/recipient a notice which meets the requirements of SNAPSB Section 7.

2. Pre-Hearing Responsibilities

a. Provide Assistance - When requested, the district must provide assistance to applicants and recipients in making a request for a fair hearing.

b. Aid Continuing -

(1) Upon notification by the department that a fair hearing has been requested and that the appellant's SNAP benefits must be continued or reinstated in accordance with Subsection J of this Section until the fair hearing decision is issued, the district, except as provided in this section, must take immediate action to assure that the appellant's SNAP benefits continue unchanged until the fair hearing decision is issued.

(2) Upon receipt of such notification, if SNAP benefits already have been discontinued, or reduced, the district must take whatever action is necessary to restore the appellant's SNAP benefits to their previous level. Such action must be taken as soon as possible but no later than five business days from notification that the appellant's SNAP benefits must continue or be reinstated.

c. Copies of Documents To Be Presented - Upon oral or written request, including request by telephone, the district must provide to the appellant or appellant's representative copies of the documents to be presented at the fair hearing. Such copies must be provided within the time-frames set forth in this section. Such documents must be provided without charge, and must be provided to the appellant or the appellant's representative by mail, if so requested.

d. Copies from Case Record - Upon oral or written request, including request by telephone, the district must provide to the appellant or appellant's authorized representative copies of any documents from appellant's case file which the appellant requests for purposes of hearing preparation. Such copies must be provided within the time-frames set forth in this section. Such documents must be provided without charge, and must be provided to the appellant or the appellant's representative by mail, if so requested.

e. Encourage Agency Conferences – The district should encourage the use of agency conferences to households which wish to contest a denial of expedited service, scheduled within 2 days, and make records available. The district may also offer agency conferences to households adversely affected by an agency action, make records available and advise households that use of an agency conference is optional and that it shall in no way delay or replace the fair hearing process. The agency conferences may be attended by the eligibility worker responsible for the agency action, and shall be attended by an eligibility supervisor and/or the agency director, and by the household and/or its representative. An agency conference may lead to an informal resolution of the dispute. However, a fair hearing must still be held unless the household makes a written withdrawal of its request for a hearing.

f. Telephone Conferences – The district may provide telephone conferences upon prior approval of the Department's Office of Administrative Hearings. The Office of Administrative Hearings may approve such requests in its discretion, where holding an in-person conference is not feasible.

g. Copies of All Correspondence To Authorized Representative - The district must send copies of all correspondence relating to the conference and fair hearing to the authorized representative of the appellant.

3. Responsibilities and Rights in The Fair Hearing Process

a. Provide Documentary Evidence - The district must provide complete copies of its documentary evidence to the hearing officer at the fair hearing and also to the appellant or appellant's authorized representative, where such documents were not provided previously to the appellant or appellant's authorized representative in accordance with this section. Such documents must be provided without charge.

b. Attendance and Documentation at the Hearing - Except as provided in this section, a representative of the district must appear at the hearing along with the case record and a written summary of the case. Such representative must:

(1) Have reviewed the case; and

(2) Be prepared to present evidence in support of the action, including:

(a) The case number;

(b) The applicable SNAP benefits involved;

(c) The names, addresses, relationships and ages of persons affected;

(d) The determination regarding which the hearing request was made;

(e) A brief description of the facts, evidence and reasons supporting such determination, including identification of the specific

provisions of law, the department regulations and approved local policies which support the action;

(f) The relevant budget or budgets prepared by the district for the appellant or the household of such appellant including printouts of relevant budgets produced on the Welfare Management System (WMS); and

(g) A copy of the applicable action taken notice, adverse action notice, expiration notice or notice of action, including any notices produced on the Client Notices System.

(3) Have the authority to make binding decisions at the hearing on behalf of the district, including the authority to withdraw the action or otherwise settle the case.

c. Appear on Paper Only - No later than five calendar days before the hearing date, the district may make application to the OTDA's Office of Administrative Hearings (OAH), to appear at a hearing on paper only.

(1) The OAH may approve such application in its discretion where the rights of the appellant can be protected and the personal appearance of the district is neither feasible nor necessary.

(2) A Hearing Officer may require the appearance of a representative of the district where such appearance is necessary to protect the due process rights of the appellant.

d. Transportation Request - Upon request of the appellant, the district must provide necessary transportation and transportation expenses to and from the fair hearing for the appellant and appellant's representatives and witnesses and payment for appellant's necessary child care costs and for any other necessary costs and expenditures related to the fair hearing.

e. Local Department of Social Services Rights – The district has the following hearing rights which appellants have as found in this section:

(1) The right to adjournment (rescheduling);
(2) The right to be represented by an attorney or other representative;
(3) The right to present evidence, question witnesses and examine documents presented by the appellant;
(4) The right to bring witnesses to present written and oral evidence;
(5) The right to request the removal of a hearing officer.

f. Comply with Fair Hearing Decisions.

(1) For decisions involving TASNAP cases, definitive and final administrative action must be taken promptly, but in no event more than 90 days from the date of the request for a fair hearing.

(2) For all cases involving SNAP issues only the decision must be issued, and the parties notified of the decision within 60 days of receipt of the request for the fair hearing by OAH.

If the decision will result in an increase in household food stamp benefits, the district must reflect such increase in the benefit allotment within 10 days of the receipt of the hearing decision; however, the increase may occur later than 10 days after the decision if the district decides to make the decision effective in the household's normal issuance cycle and the issuance will occur within 60 days from the household's request for a hearing. Decisions which result in a decrease in household benefits must be reflected on the next scheduled issuance following receipt of the fair hearing decision.

(3) Upon receipt of a complaint that an district has not complied with the fair hearing decision, The Commissioner, through action coordinated by OAH, will secure compliance by whatever means is deemed necessary and appropriate under the circumstances of the case.

References:

358-4.1 Proposed Actions

358-4.2 Pre-Hearing Responsibilities

358-4.3 Responsibilities and Rights in the Fair Hearing Process

358-6.4 Compliance

273.15 Fair Hearings

15-LCM-01 Records Access

N. Department Responsibilities

1. Notice of Fair Hearing

a. Notice - Except for hearings which are given priority in scheduling as described in this section, at least 10 calendar days prior to the date of the fair hearing, a written notice of the fair hearing will be sent by the department to the appellant, appellant's authorized representative and to the district.

b. Included in The Notice - The fair hearing notice will state the following:

(1) The date, time, and place of the fair hearing and an explanation of how and when a change in the date and place of the fair hearing may be requested, and under what circumstances a hearing will be rescheduled if neither the appellant nor the appellant's representative appears at the hearing; and

(2) Whether SNAP benefits must be continued unchanged; and

(3) The appellant’s right upon request to necessary transportation or to transportation expenses to and from the fair hearing for the appellant and the appellant's authorized representatives and witnesses and for payment of the appellant's necessary child care costs and for any other necessary costs and expenditures related to the fair hearing; and

(4) The appellant's right to be represented at the fair hearing by legal counsel, a relative, friend or other person or to represent oneself, and the right to bring witnesses to the fair hearing and to question witnesses at the hearing; and

(5) The right to present written and oral evidence at the hearing; and

(6) That the appellant should bring the notice of fair hearing to the hearing as well as all evidence that has a bearing on the case such as books, records and other forms of written evidence, and witnesses, if any; and

(7) The appellant's right to review appellant's case record prior to and at the fair hearing; and

(8) The appellant's right upon request to obtain copies of documents which the local district will present at the fair hearing and copies of other additional documents for the purpose of preparing for the fair hearing; and

(9) The right of a hearing impaired or Limited English Proficiency (LEP) appellant to interpreter services at the fair hearing at no charge; and

(10) The issues which are the subject of the hearing.

2. Adjourning the Fair Hearing

a. Request to Delay - Upon request of either the appellant or a district, the fair hearing may be rescheduled, upon a showing of good cause for requesting the delay. Provided however, that the appellant may request, and is entitled to receive, an adjournment not exceeding 30 days from the date of the scheduled hearing without showing of good cause.

b. Adjourning or Rescheduling the Fair Hearing - When in the judgment of the Department or the Hearing Officer the parties' due process rights would best be served by adjourning the fair hearing, or if there are special circumstances which make proceeding with the case fundamentally unfair, OTDA or the Hearing Officer may reschedule the fair hearing.

c. Request to Adjourn - Requests to adjourn a fair hearing must be made in accordance with the instructions in the notice of fair hearing.

d. Adjourned Per Appellant's Request - If a fair hearing is adjourned based upon a request by the appellant, the time limit set forth in this section will be extended by the number of days the fair hearing has been postponed.

e. Benefits Continued for Rescheduled Hearing - If SNAP benefits are continued in accordance with this section and the fair hearing is rescheduled for the reasons set forth above, an appellant has the right to have SNAP benefits continued until the fair hearing decision is issued.

3. Withdrawal of A Request for A Fair Hearing

a. Withdrawal Requirement - the Department will consider a hearing request to be withdrawn under the following circumstances:

(1) The Department has received a written statement from the appellant or appellant's authorized representative stating that the request for a fair hearing is withdrawn; or

(2) The appellant or appellant's authorized representative has made a statement withdrawing the request to the hearing officer on the record at the hearing.

b. Insufficient Request - An oral statement by telephone or in person to an district employee that an appellant is withdrawing a request for a fair hearing is insufficient to withdraw a fair hearing request.

4. Abandonment of A Request for a Fair Hearing

a. Request Abandoned - The Department will consider a fair hearing request abandoned if neither the appellant nor appellant's authorized representative appears at the fair hearing unless either the appellant or appellant's authorized representative has:

(1) Contacted the Department within 15 days of the scheduled date of the fair hearing to request that the fair hearing be rescheduled; and

(2) Provided the Department with a good cause reason for failing to appear at the fair hearing on the scheduled date.

b. Case Restored to Calendar - The Department will restore a case to the calendar if the appellant or appellant's authorized representative has met the requirements above.

c. If the Appellant abandons a hearing that is subject to aid continuing, the right aid continuing ends upon abandonment.

(1) If the fair hearing is restored to the calendar based upon a request to do so made within 60 days from the date of abandonment, aid continuing will be restored retroactively to the date of abandonment.

(2) If the fair hearing is restored to the calendar based upon a request to do so made 60 days or more from the date of abandonment, aid continuing will be restored prospectively only from the date of the request to restore the fair hearing to the calendar.

c. In no event will an abandoned fair hearing be restored to the calendar if the request to do so is made one year or more from the date of the abandoned hearing.

5. Hearing Officer

a. Impartial Hearing Officer - The hearing shall be conducted by an impartial hearing officer employed by the Department, who has not been involved in any way with the action in question.

b. Responsibilities of The Hearing Officer - To ensure a complete record at the hearing, the hearing officer must:

(1) Preside over the fair hearing and regulate the conduct and course of the fair hearing, including at the hearing officer's discretion, requiring sworn testimony, and administering the necessary oaths; and

(2) Make an opening statement explaining the nature of the proceeding, the issues to be heard and the manner in which the fair hearing will be conducted; and

(3) Elicit documents and testimony, including questioning the parties and witnesses, if necessary, particularly where the appellant demonstrates difficulty or inability to question a witness; however, the hearing officer will not act as a party's representative; and

(4) Where the hearing officer considers independent medical assessment necessary, require that an independent medical assessment be made part of the record when the fair hearing involves medical issues such as a diagnosis, an examining physician's report, or a medical review team's decision; and

(5) Adjourn the fair hearing to another time on the hearing officer's own motion or on the request of either party, to the extent allowable in this section; and

(6) Adjourn the fair hearing when in the judgment of the hearing officer it would be prejudicial to the due process rights of the parties to go forward with the hearing on the scheduled hearing date; and

(7) Review and evaluate the evidence, rule on the admissibility of evidence, determine the credibility of witnesses, make findings of fact relevant to the issues of the hearing which will be binding upon the Commissioner unless such person has read a complete transcript of the hearing or has listened to the electronic recording of the fair hearing; and

(8) At the hearing officer's discretion, where necessary to develop a complete evidentiary record, issue subpoenas, and/or require the attendance of witnesses and the production of books and records; and

(9) Prepare an official report containing the substance of what transpired at the fair hearing and including a recommended decision to the Commissioner.

c. Removal of A Hearing Officer - A party to a hearing may make a request to a hearing officer that the hearing officer remove himself or herself from presiding at the hearing.

(1) The grounds for removing a hearing officer are that such hearing officer has:

(a) Previously dealt in any way with the substance of the matter which is the subject of the hearing except in the capacity of hearing officer; or

(b) Any interest in the matter, financial or otherwise, direct or indirect, which will impair the independent judgment of the hearing officer; or

(c) Displayed bias or partiality to any party to the hearing.

(2) The hearing officer may independently determine to remove themself from presiding at a hearing on the grounds set forth in paragraph (1) above.

(3) The request for removal made by a party must:

(a) Be made in good faith; and

(b) Be made at the hearing in writing or orally on the record; and

(c) Describe in detail the grounds for requesting that the hearing officer be removed.

(4) Upon receipt of a request for removal, the hearing officer must determine on the record whether to remove him/herself from the hearing.

(5) If the hearing officer determines not to remove him/herself from presiding at the hearing, the hearing officer must advise the party requesting removal that the hearing will continue but the request for removal will automatically be reviewed by the general counsel or the general counsel's designee.

(6) The determination of the hearing officer not to remove him/herself will be reviewed by the general counsel or the general counsel's designee. Such review will include review of written documents submitted by the parties and the transcript of the hearing.

(7) The general counsel or the general counsel's designee must issue a written determination of whether the hearing officer should be removed from presiding at the hearing within 15 business days of the close of the hearing.

(8) The written determination of the general counsel or the general counsel's designee will be made part of the record.

6. Who May Be Present at The Fair Hearing

The following persons may be present at a fair hearing:

a. The appellant who has requested the fair hearing; and

b. The appellant's representative; and

c. Counsel or other representatives of the district; and

d. Witnesses of either party and any who may be called by the hearing officer; and

e. An interpreter; and

f. Any other person admitted at the hearing officer's discretion, with the consent of the appellant.

7. Media Admission to Fair Hearing

a. Waiver of Appellant's Right to Confidentiality - The media may be admitted to a fair hearing where the appellant has made a specific waiver of appellant's right to confidentiality both in writing and on the record and has clearly and unequivocally confirmed on the record that the appellant desires and consents to the presence of the media. The waiver must be unqualified, complete, and made with full knowledge of the ramifications of the waiver, including that the waiver is irrevocable.

b. Extent of Access - Where a waiver has been secured, the extent of any access to be granted to the media is to be determined at the discretion of the hearing officer. In determining the extent of such access, the hearing officer will consider the following:

(1) Maintenance of proper hearing decorum; and

(2) Potential disruption to the proceedings; and

(3) Adverse effect on witnesses; and

(4) Impediments to the making of a proper and accurate record; and

(5) The physical space and conditions of the hearing room; and

(6) Potential disruption to the hearing officer, including impediments to the hearing officer's ability to discharge responsibilities; and

(7) Any other factor which, in the discretion of the hearing officer, is necessary to ensure the orderly and proper conduct of the hearing and the creation of a complete and accurate hearing record or which is necessary in order to protect confidential information where confidentiality cannot be waived by the appellant.

8. Fair Hearing Procedures

a. Procedures

(1) At a fair hearing concerning the denial of an application for or the adequacy of SNAP benefits, the appellant must establish that the district denial of assistance or benefits was not correct or that the appellant is eligible for a greater amount of benefits.

(2) Except where otherwise established by law or regulation, in fair hearings concerning the discontinuance, reduction or suspension of SNAP benefits, the district must establish that its actions were correct.

b. Decision - The fair hearing decision must be supported by and in accordance with substantial evidence.

c. Rules of Evidence - Technical rules of evidence followed by a court of law need not be applied. Irrelevant or unduly repetitious evidence and/or cross-examination may be excluded at the discretion of the hearing officer. Privileges recognized by law will be given effect.

d. Reproduction or Copy of Original Material - Any written record or document or part thereof to be offered as evidence may be offered in the form of a reproduction or copy where such reproduction or copy is identified satisfactorily as a complete and accurate reproduction or copy of the original material.

e. Attorneys for parties in fair hearings have the same authority to issue subpoenas as is possessed by attorneys under section 2302 of the Civil Practice Law and Rules.

9. Consolidated Fair Hearings

a. Basis - The Department may consolidate fair hearings where two or more persons request fair hearings in which the individual issues of fact are not disputed and the sole issue in each request is an objection to:

(1) Federal or State law or regulation, or local policy; or

(2) A change in federal or State law.

b. Presenting he Case - Each person whose case has been consolidated with another person's case has the right to:

(1) Present one's own case or have one's case presented by a representative; and

(2) Withdraw from the consolidated fair hearing and have an individual fair hearing.

10. The Hearing Record

a. Contents of The Record – Only the Department may record a fair hearing. A written transcript or recording of the fair hearing testimony, the fair hearing exhibits, the hearing officer's official report including the recommended decision of the hearing officer, all papers and requests filed in the proceeding prior to the close of the fair hearing, and the fair hearing decision constitute the complete and exclusive record of the fair hearing. Where a decision without hearing is issued in accordance with this section, the documents submitted by the appellant and the district constitutes the complete and exclusive record of the fair hearing.

b. Review of Record - The exclusive record of the fair hearing is confidential; however, the exclusive record may be examined by either party or their authorized representative at the Office of Administrative Hearings, or upon request at some other location subject to the approval of the Office of Administrative Hearings.

References:

358.5 The Fair Hearing Process

CFR 273.15 Fair Hearings

O. Decision and Compliance

1. All Decisions

a. Decision Content - The fair hearing decision issued by the Commissioner:

(1) Must be based exclusively on the fair hearing record, or in the case of a decision without hearing, on the documents submitted by the appellant and the district.

(2) Must be in writing and must set forth the fair hearing issues, the relevant facts, and the applicable law, regulations, and approved policy, if any, upon which the decision is based.

(3) Must make findings of fact, determine the issues and state reasons for the determinations and when appropriate, direct specific action to be taken by the district.

(4) May address the violation of any provision of this section by the district, including but not limited to, violations of regulations concerning notice, aid continuing and provision of documents and records and set forth appropriate relief for such violations.

b. Final and Binding - Upon issuance, the decision is final and binding upon the district and must be complied with in accordance with this Section.

c. Notification - A copy of the decision, accompanied by written notice to the appellant of the right to judicial review, will be sent to each of the parties and to their representatives, if any. In addition, such notice will advise the appellant that the appellant or the appellant's authorized representative may request the Department's assistance in obtaining compliance with the decision.

2. Decision Without Hearing

a. Basis - Upon the Commissioner's own motion or upon request of an appellant in cases in which there is no material issue of fact to be resolved, a decision may be issued without a hearing. The determination to issue a decision without a hearing rests solely within the discretion of the Commissioner.

b. Request for Decision Without A Hearing - A request for a decision without a hearing must be accompanied by sufficient information to enable the Commissioner to ascertain whether any unresolved material issue of fact exists, and should contain a full and clear statement of the issues and of the appellant's position on these issues.

c. district Responsibilities - When the Commissioner determines that a decision without hearing is appropriate, the Office of Administrative Hearings will send the request for a decision without hearing, or the request for a hearing, along with any supporting documents to the district involved. Within 10 business days of receipt of these documents, the district must forward to OAH, the appellant, and the

appellant's representative, a response containing sufficient information to ensure resolution of the dispute.

d. Comments or Rebuttal by Appellant - Within 10 business days of the receipt of the documents submitted by the district, the appellant or authorized representative may submit comments or rebuttal to OAH with copies to the other parties.

e. Reschedule Fair Hearing - At any point after a request for a decision without a hearing has been made, if it appears that there is a material and unresolved issue of fact relating to the issue or issues upon which the hearing was requested, the appellant and the district will be informed that a fair hearing will be scheduled upon notice to all parties.

f. Decision - A decision without a hearing will be issued by the Commissioner based upon the papers submitted in accordance with this Section.

3. Direction Relative to Similar Cases

When a fair hearing decision indicates that an district has misapplied provisions of law, Department regulations, or such agency's own State-approved policy, the Office of Administrative Hearings letter transmitting such decision to such agency may contain a direction to the district to review other cases with similar facts for conformity with the principles and findings in the decision.

4. Compliance

See district Responsibilities, Subsection M of this Section.

5. Compliance with Direction Relative to Similar Cases

When a direction has been given to a district to correct a misapplication of law, Department regulations or such district's own State-approved policy in all cases similar to the one in which a decision has been issued, such district must report the actions it has taken to comply with such direction to the Department within 30 days after receipt of the direction. The district must make such additional reports as the Department may require.

6. Corrected Decisions and Reopened Hearings

a. Corrected Decisions - The Commissioner may review an issued fair hearing decision for purposes of correcting any error found in such decision.

(1) After review, the Commissioner may correct any error occurring in the production of an issued fair hearing decision including, but not limited to, typographical and spelling errors.

(2) After review, on notice to the parties, the Commissioner may correct any error of law or fact which is substantiated by the fair hearing record.

(3) During the pendency of any review of an issued fair hearing decision, the original decision is binding and must be complied with by the district in accordance with the provisions of this Section.

b. Reopened Hearings - On notice to all parties, the Commissioner may reopen a previously closed fair hearing record for purposes of completing such record. If such reopening occurs subsequent to the issuance of a fair hearing decision, the provisions of paragraph 3 above apply.

References:

358.6 Decision and Compliance;

387.21 Implementation of a Fair Hearing Decision

P. Agency Conferences

1. Definition

Agency conference means an informal meeting at which an applicant/recipient may have any decision of a district concerning the applicant's or recipient's SNAP benefits, reviewed or may have any other aspect of the applicant's or recipient's case reviewed by an employee of the district who has the authority to change the decision with which the applicant or recipient disagrees.

2. Conference Before the Fair Hearing

At any reasonable time before the date of the fair hearing, the applicant/recipient may request that the district schedule an agency conference before the appellant's fair hearing to review the district decision for which the appellant has requested the fair hearing.

3. Conference Without a Fair Hearing Request

Even though the applicant/recipient has not requested a fair hearing, the applicant/recipient may request an agency conference to review any action on their case.

4. Encourage Agency Conferences

The district must encourage the use of agency conferences to settle disputes and complaints concerning actions regarding an applicant/recipient's SNAP benefits, so as to eliminate the need to hold fair hearings wherever the dispute can be resolved by scrutiny of documents and/or thorough investigation.

5. Holding Agency Conference

The district must hold agency conferences when such conference is requested as provided for in this Section. The conference may not be used to inhibit the appellant's right to a fair hearing. Agency conferences must be scheduled before the date of the fair hearing.

If the appellant is contesting a denial of expedited participation, the conference must be scheduled within two business days of the conference request, unless the appellant requests a later date.

6. Necessary Information and Documentation

The district must bring the necessary information and documentation to any agency conference, including a telephone conference, to explain the reason for the agency determination and to provide a meaningful opportunity to resolve the problem.

7. Representative Must Attend

Except for telephone agency conferences approved according to paragraph (8) below, a representative of the district must appear with the case record at the agency conference. Such representative must have reviewed the case and must have the authority to make binding decisions on behalf of the district, including the authority to withdraw the intended action.

8. Telephone Conferences

The district may provide telephone conferences upon prior approval of the Office of Administrative Hearings of the Department. The Office of Administrative Hearings may approve such requests in its discretion, where holding an in-person conference is not feasible.

NOTE: This approval is not intended to require a district to request Department permission in order to have day to day discussions of a case with a client by telephone. Nor was it intended to cover the situation where a client formally requests an agency conference and for reasons such as disability, the client requests that the conference be conducted by telephone.

The telephone conference is meant to apply to situations where a district has found that it would not be feasible to offer in-person conferences to a particular group of clients or for a particular class of actions it intends to take. In such situations application for approval of telephone conferences should be sent to the Office of Administrative Hearings pursuant to Dept. Reg. 358-4.2(i).

9. Copies of Correspondence

The district must send copies of all correspondence relating to the conference and fair hearing to the authorized representative of the appellant.

References:

358-2.4 Agency Conference

TA Source Book: Chapter 7

Q. Right to Use SNAP to Purchase Delivered Meals

1. Persons Eligible

Eligible household members and their spouses who are 60 years of age or older, or members who are homebound, feeble, physically handicapped or otherwise disabled to the extent that they are unable to adequately prepare all their meals, may use all or any part of their monthly allotment to purchase meals from a non-profit meal delivery service (Meals-on-Wheels). The delivery service must be authorized by FNS to accept SNAP benefits.

2. Types of Services

Meal delivery services include:

a. A local agency which delivers meals to those specified in paragraph 1, above.

b. A private non-profit organization which delivers meals to those specified in paragraph 1, above.

R. Right to Use SNAP at Communal Dining

1. Persons Eligible

Eligible household members and their spouses who are 60 years of age or older, or who are recipients of SSI, may use all or any part of their monthly allotment to purchase meals at a communal dining facility. The facility must be authorized by FNS to accept SNAP.

2. Types of Facilities

Communal dining facilities include:

a. Senior citizens' center,

b. Apartment buildings occupied primarily by elderly persons or SSI households,

c. Public or private non-profit establishments (eating or otherwise) that feed elderly persons or SSI recipients,

d. Federally-subsidized housing for the elderly at which meals are prepared and serviced to residents.

S. Homeless Meal Provider Program

Non-profit or publicly operated facilities such as shelters for the homeless and soup kitchens which provide prepared meals to homeless persons may be authorized to receive SNAP in payment for the meals provided. In order to receive SNAP, the facility must first obtain certification from the Department that it provides meals to the homeless (homeless meal provider). It then must be authorized by the United States Department of Agriculture (USDA) as a retailer eligible to accept SNAP.

1. Provider Responsibilities

The following applies to SNAP use to pay for meals from a homeless meal provider:

a. The provider may only include cost of food purchased when determining the cost of the meal. Such things as a value of donated foods, the cost of food preparation and serving, storage or administrative costs may not be factored in when determining the cost of the meal.

b. The provider may not require payment from persons who are eligible to pay with SNAP while providing free meals to other people. If there is a meal charge, it must apply equally to all people served. However, SNAP recipients may voluntarily contribute SNAP if the meal provided is free.

c. The provider may receive SNAP in payment for meals only from homeless persons. Persons who are not homeless may not use their SNAP to buy meals from a homeless meal provider.

d. The provider may redeem SNAP through authorized food wholesalers and retailers but not through financial institutions (banks).

e. Neither the homeless meal provider nor any employee designated by the provider can be an authorized representative for a homeless SNAP applicant/recipient.

f. The provider must comply with all USDA rules and procedures regarding handling of food coupons such as change making security, reporting and redemptions.

2. Local District Responsibilities

The district has no direct responsibility for certifying homeless meal providers or monitoring the use of SNAP in these facilities. This is done by the Department and USDA. However, districts may not allow a homeless meal provider to act as the authorized representative for a homeless person in the provider's facility.

References:

CFR 273.11 Action on Households with Special Circumstances

387.1 Definitions

387.16 Special Provisions for Household Circumstances

SECTION 10: Employment/Work Requirements

For employment/work requirements, please refer to the Employment Policy Manual. The Manual can be found at https://otda.ny.gov/resources/employment-manual/

SECTION 11: Budgetary Method

A. Determining Income Eligibility and Benefit Levels

This section sets forth the SNAP budgeting methodology that determines eligibility and benefit levels. This methodology is the basis for the Welfare Management System (WMS) SNAP budgeting Logic. A good understanding of SNAP budgeting logic is critical to produce correct worker entered budgets and, ensure correct independent worker decisions in those instances where they are required.

1. Determining Appropriate Income Eligibility and Resource Limits

As per INF 12-INF-12 social services districts are no longer required to provide the *"Helping Hands for People in Need*" (Pub-4916) in all applications for SNAP, formerly known as Food Stamps, benefits, including applications for Temporary Assistance (TA) and/or Medical Assistance (MA). The client approval notices provided at application and recertification, have the *Helping Hands* brochure information incorporated as an addition to the notice text. The receipt of this information ensures households that have gross income at or below 130% of the federal poverty level has received a Temporary Assistance for Needy Families (TANF)TA/Maintenance of Effort (MOE)-funded service that confers categorical eligibility for SNAP, if the household meets the appropriate Gross Income Test (GIT) or Net Income Test (NIT) dependent on household circumstances.

Income Tests are calculated based on monthly income limits that are established and updated annually by USDA. These tests are required as part of the SNAP budget process as a means of determining financial eligibility for SNAP benefits. Specific household criteria determine which, if any, of the income tests are appropriate.

There are five separate income tests in the SNAP program, each one is based on a percentage of the federal poverty level:

- 100% Net Income Test (NIT)
- 130% Gross Income Test (GIT)
- 150% Gross Income Test (GIT)
- 165% Gross Income Test (GIT)
- 200% Gross Income Test (GIT)

There are two separate resource tests in the SNAP Program, these tests only apply to households that are not categorically eligible.

- Resource Test (Household without members aged (60 or older) and/or disabled (as defined in SNAPSB Section 5)) - $3,000

- Resource Test (Household with members aged (60 or older) and/or disabled (as defined in SNAPSB Section 5)) - $4,500

Each of the tests are describe in detail as follows:

a. Households that include members who all receive Temporary Assistance and/or Supplemental Security Income (SSI) are categorically eligible. These households are not subject to the 130% GIT, 100% NIT or the SNAP Resource Test to be SNAP eligible.

b. Households that don't include members who are aged (60 or older) and/or disabled (as defined in SNAPSB Section 5) or do not pay dependent care expenses and whose gross income (earned and unearned) does not exceed 150% GIT are categorically eligible. These households are not subject to the 100% NIT or the SNAP Resource Test to be SNAP eligible.

c. Households that include members who are aged (60 or older) or disabled (as defined in SNAPSB Section 5) and the household's countable income is below the 200% GIT, are categorically eligible. These households will not have to pass the 100% NIT or the SNAP resource test.

d. Households that include members who are aged (60 or older) or disabled (as defined in SNAPSB Section 5) and the household's countable income exceeds the 200% GIT, are not categorically eligible. These households will need to pass the 100% NIT and the SNAP Resource test to be SNAP eligible.

e. Households that include members who are aged (60 or older) or disabled (as defined in SNAPSB Section 5) and includes a member who is sanctioned from SNAP are not categorically eligible. These households will need to pass the 100% NIT and the SNAP Resource test to be SNAP eligible.

f. Households that pay an out-of-pocket dependent care expense must pass the 200% GIT (unless the household has members who are sanctioned or disqualified from participation in the SNAP). These households are categorically eligible and will not have to pass the 100% NIT.

g. Households that pay an out-of-pocket dependent care expense and also contains a SNAP sanctioned individual are not categorically eligible. These households will still be subject to the 150% GIT, the 100% NIT and the SNAP Resource Test to be SNAP eligible, unless they contain any members who is aged (60 or older) or disabled (as defined in SNAPSB Section 5), in which case they will be subject to pass the 100% NIT and the SNAP Resource test to be SNAP eligible.

h. Households that include members that are aged (60 or older) or household members (and their spouses) who are incapable of buying food or preparing meals due to a disability may apply as a separate food unit if the income of the others with whom the individual resides (excluding the income of the

elderly and disabled individual and his/her spouse) does not exceed the 165% GIT amount. These households are categorically eligible and do not need to pass the 100% NIT and the SNAP Resource test to be SNAP eligible.

i. Households that include a SNAP sanctioned member are not categorically eligible. These households will need to pass the 130% GIT, 100% NIT and the SNAP Resource Test to be SNAP eligible, unless they contain an Aged or Disabled individual, in which case the household will only need to pass the 100% NIT and the SNAP Resource test to be SNAP eligible.

Note: A Categorical Eligibility breakdown is available in the LDSS-4943 Supplemental Nutrition Assistance Program (SNAP) Benefits Categorical Eligibility Desk-Aid.

2. Calculating Gross Income

To calculate gross income the district must add both the gross monthly earned and gross monthly unearned income of all household members, minus all income exclusions. Compare this total to the appropriate current gross income limits for the correct family size. If the household is at or under the appropriate limit, calculate net income to determine benefit level.

3. Net Monthly Income

a. To determine a net monthly income for a household which does not contain an elderly or disabled member the district must:

(1) Calculate the household's total gross earned income. Weekly income should be multiplied by 4.333333; bi-weekly income should be multiplied by 2.166666. This is the total gross monthly income earned by all household members minus any earned income exclusions as specified in SNAPSB Section 13.

(2) Multiply this figure by 20%. Subtract that amount from the total gross monthly earned income to determine the net monthly earned income.

(3) Add to the net monthly earned income the total monthly unearned income of all household members minus any income exclusions.

(4) Subtract the standard deduction.

(5) Subtract monthly dependent care expenses, if any, (uncapped as specified in SNAPSB section 12).

(6) Deduct Child Support payments, if any, made to non-household members.

(7) Total the allowable shelter expenses (as specified in SNAPSB Section 12).

(a) Subtract from the total shelter costs, 50% of the household's monthly income after all the above deductions have been subtracted. The remaining amount, if any, is the excess shelter cost.

(b) If there is no excess shelter cost, the net monthly income has been determined.

(c) If there is excess shelter cost, compute the shelter deduction by subtracting the excess shelter cost up to the maximum amount allowed as specified in SNAPSB Section 12. The household's net monthly income has been determined.

b. To determine net monthly income for a household which contains at least one member who is aged or disabled as defined in SNAPSB Section 5, the local district must:

(1) Follow the normal budget calculation procedures described above through the step at which the standard deduction is allowed.

(2) Subtract from the resultant figure that portion of the household's total monthly unreimbursed out of pocket medical expenses (i.e., the total of all allowable medical expenses for all household members who are eligible for the medical expense deduction) which exceeds $35.

(3) Subtract from this figure any allowable out of pocket dependent care costs which do not qualify as a medical deduction.

(4) Subtract the monthly legally obligated child support paid. The remaining figure is the household's adjusted income.

(5) Total all allowable shelter costs; subtract from the total shelter costs 50% of the household's adjusted income to determine the household's excess shelter costs.

(6) Subtract from the adjusted income the household's excess shelter costs (if any) to determine the household's net monthly income.

NOTE: When households receiving SNAP while pending Supplemental Security Income (SSI) are determined eligible for SSI, the household is entitled to a SNAP uncapped shelter deduction and/or medical deduction, retroactive to the SNAP application date or SSI eligibility date, whichever is later.

c. Disqualified/Ineligible Individual

(1) An ineligible individual shall not be included when determining household size for the purpose of comparing the household's monthly income with the income eligibility standards.

(2) The income and resources of the disqualified individual, but not his or her needs, must be considered in determining the remaining case members' eligibility and SNAP benefit level.

(3) If a household contains an individual disqualified for Intentional Program Violation, or failure to comply with work requirements, all of the household's allowable deductions shall continue to apply to the remaining household members.

(4) If a household contains an individual who is ineligible for SNAP benefits due to being an ineligible non-citizen or disqualified for refusal to apply for or provide a SSN, allowable shelter and dependent care expenses paid by or billed to the ineligible/disqualified individual shall be divided evenly among the household members including the ineligible/disqualified individual(s). All but the ineligible/disqualified individual's share is counted as a deductible shelter expense for the remaining household members.

d. Rounding - The cents amount associated with each income and allowable expenses shall be utilized throughout the computation of the net monthly income.

e. Net and Gross Income Test - All households which are not categorically eligible household must have their net incomes compared to the monthly net income eligibility standards for the appropriate household size to determine eligibility for the month. In addition to meeting the net income eligibility standards, households which are not categorically eligible household and do not contain an elderly or disabled member also must have their gross incomes compared to the gross monthly income standards for the appropriate household size to determine eligibility for the month.

4. Monthly Benefit

To determine a household's SNAP entitlement, once eligibility has been established, multiply the SNAP net income by 30%. Any result ending in cents shall be rounded up to the nearest higher dollar. Subtract this figure from the appropriate benefit allotment for the household size. The final figure is the household's SNAP entitlement. Basis of Benefit Issuance Tables provided by the Department may be used in lieu of the calculation. Benefit Issuance Tables are available upon request from the Department.

5. Minimum Benefit Levels

a. If calculation of benefits for the initial month would yield an allotment of less than $10 for the household, no benefit shall be issued to the household in that initial month.

b. Except during an initial month, all eligible one-person and two-person households shall receive minimum monthly allotments equal to the minimum benefit. The minimum benefit is 8 percent of the maximum allotment for a household of one,

rounded to the nearest whole dollar. The minimum monthly allotments are subject to change every October with the federal Thrifty Food Plan Guidelines.

6. Anticipated Changes

Due to anticipated changes a household may be:

a. Eligible for SNAP benefits for the month of application even if those benefits are not issued until the subsequent month.

b. Ineligible for the month of application but eligible in the subsequent month. The same application shall be used for the denial for the month of application and the determination of eligibility for subsequent months.

c. Entitled to an allotment in the month of application which differs from the allotment in subsequent months.

NOTE: Excluded members of a household shall not be included when determining the household's size for the purposes of assigning a benefit level to the household.

References:

387.15 Determining Food Stamp Benefit Levels

273.10 Determining Household Eligibility and Benefit Levels

98 LCM-21 – Food Stamp Earned Income Deduction

07 ADM-09 – Categorical Eligibility for Food Stamps

08 ADM-9 – Farm Bill Reauthorization Provisions of Food Stamps Program for 2008

09 ADM-06 – Expansion of Categorical Eligibility for Food Stamp households with out of pocket Dependent Care Costs

08 INF-03 Categorical Eligibility for Food Stamps Q & As

GIS 08TA/WMS003 – Food Stamps Categorical Eligibility clarification

GIS 21 TA/DC064 – Updated Supplemental Nutrition Assistance Program Standards Beginning October 2021

Pub-4916 – “Helping Hands for People in Need” Brochure

B. Budgeting Residents of Facilities

Group Home and Congregate Care facilities should be budgeted as outlined below:

- The group home budgeting process establishes methods for calculating the SNAP countable income and the shelter costs for group home residents who receive TA payments and those who receive SSI benefits.

- As described in ABEL Transmittal 08-2, in almost all situations, as long as the correct Shelter Type Code and gross income amounts are entered into the ABEL budget, the system will automatically calculate the shelter cost amount and the SNAP countable income for the budget calculations described below. For instructions on how to budget exceptional situations, see ABEL Transmittal 08-2 for details.

- If the individual leaves the facility before the 15th of the month the benefit must be prorated, if after the 15th of the month the facility is entitled to the full benefit amount.

- The budgeting routines apply to Upstate SNAP cases with Shelter Type Codes:

  10 - Congregate Care Level II-Drug/Alcohol Treatment Facility (Residential Treatment Center)

  12 - Non-Level II Alcohol Treatment Facility (u)

  13 - State Operated Community Residence (SNAP Only)

  15 - Congregate Care Level I - Family Care

  16 - Congregate Care Level II-Not Drug/Alcohol Treatment or Apartment-like

  17 - Congregate Care Level II-Apartment-like (OMH/OPWDD Supportive/Supervised Apartments)

  42 - Congregate Care Level III - Adult Home and Enriched Housing

1. Congregate Care Level II – Drug/Alcohol Treatment Facility (Residential Treatment Center)

Calculating SNAP Benefits for Residents of Congregate Care Level II Facilities Who Are “Receiving Residential Care” in Congregate Care Level II Drug Abuse and Alcoholic Treatment and Rehabilitation Facility – (Upstate WMS Shelter Type Code 10).

a. SNAP Countable Income - The SNAP countable income of residents “receiving residential care”, as defined in Section 209(3)(d) of the Social Services Law will be equal to the sum of the following:

   (1) The SSI Living with Others rate, or the actual amount of unearned income received by the resident, whichever is less.

(2) Plus, the amount by which any additional unearned income exceeds the SSI Congregate Care Level II rate.

(3) Plus, the amount of any earned income received by the resident.

b. Shelter Costs - Shelter costs will be equal to the SSI Living with Others rate or the actual amount of unearned income received by the resident, whichever is less:

(1) Minus, for each person in the SNAP household, the amount of a Congregate Care Level II Personal Needs Allowance (PNA) [as set forth in section 131-o(1)(b) of the Social Services Law], and

(2) Minus the Thrifty Food Plan amount for a one-person household (as defined in 18 NYCRR 387.1).

2. Congregate Care Level II – Drug/Alcohol Treatment Facility, Residential Treatment Center, Individuals Not Receiving Care or Treatment

Calculating SNAP Benefits for Residents of Congregate Care Level II Facilities Who Are Not "Receiving Residential Care" – (Upstate Shelter Type Codes 10).

In certain Congregate Care Level II programs, members of the household of the person "receiving residential care" are permitted to reside in the certified site along with the person who is "receiving residential care".

a. SNAP Countable Income - Countable income will be equal to the sum of each individual's earned and unearned income.

b. Shelter Cost for a TA Recipient Receiving a Room & Board Allowance - The room and board allowance referred to in this section is set forth in state regulation at 18 NYCRR 352.8(b)(1). The shelter cost will be equal to the countable income referenced in 2.a immediately above

(1) Minus, for each person in the SNAP household, a PNA [as set forth in 18 NYCRR 352.8(c)(1)(i)], *if applicable*, and

(2) Minus the Thrifty Food Plan amount for a one-person household.

c. Shelter Cost for a TA Recipient Receiving a Shelter Allowance - Shelter cost for a TA recipient receiving a shelter allowance will be equal to the actual amount of the shelter allowance paid.

d. Shelter Cost for a Non-TA Recipient - Shelter costs will be equal to the countable income, as determined in B.1 above

(1) Minus, for each person in the SNAP household, a PNA [as set forth in 18 NYCRR 352.8(c)(1)(i)], *if applicable*, and

(2) Minus the Thrifty Food Plan amount for a one-person household.

3. Non-Congregate Care Level II - Drug/Alcohol Treatment Facility

Calculating SNAP Benefits for Residents Receiving Care in Non-Congregate Care Level II Drug Abuse and Alcoholic Treatment and Rehabilitation Facilities (Upstate Shelter Type Code 12).

Residents of Non-Congregate Care Level II Drug and Alcohol Treatment and Rehabilitation centers who are receiving care must have their SNAP benefits calculated as set forth below:

a. SNAP Countable Income of TA Recipients Receiving Care in Non-Congregate Care Level II Residential Treatment Centers (RTC's) - The SNAP countable income of TA recipients receiving care and residing in Non-Congregate Care Level II RTC's will be equal to either:

   (1) The district's maximum monthly TA grant [for basic needs, the Home Energy Allowance (HEA), the Supplemental Home Energy Allowance (SHEA), and the appropriate shelter allowance] for a household of equivalent size having no other income; or

   (2) If applicable, and of a lower amount than defined in 'a' immediately above, countable income shelter allowance for a household of equivalent size having no other income; or will be equal to the sum of the room and board allowance [set forth in 18 NYCRR 352.8(b) (1)].

   (3) Plus the personal needs allowance (PNA) [as set forth in 18 NYCRR 352.8(c)(1)(i)].

b. Shelter Costs of TA Recipients Receiving Care in Non-Congregate Care Level II RTC's Shelter costs will be equal to the countable income, as determined in 3.a above:

   (1) Minus and for each person in the SNAP household, the amount of a PNA.

   (2) Minus the Thrifty Food Plan amount for a one-person household.

c. SNAP Countable Income of Non-TA Recipients Receiving Care in Non-Congregate Care Level II RTC's Countable income of residents not receiving TA income will be equal to the sum of each SNAP household members earned and unearned income.

d. Shelter Costs of Non-TA Recipients Receiving Care in Non-Congregate Care Level II RTC's Shelter costs will be equal to the countable income, as determined in 3.c above:

   (1) Minus and for each person in the SNAP household, the amount of a PNA

   (2) Minus the Thrifty Food Plan amount for a one-person household

4. Residents of State-Operated Community Residences

Calculating SNAP Benefits for Residents of State-Operated Community Residences (Upstate WMS Shelter Type 13)

a. SNAP Countable Income - Countable income will be equal to the sum of each individual's earned and unearned income.

b. Shelter Costs - Shelter costs will be equal to the countable income as defined in 4.a immediately above,

   (1) Minus, for each person in the SNAP household, the amount of a Congregate Care Level II PNA [as set forth in section 131-o (1)(b) of the Social Services Law], and

   (2) Minus the Thrifty Food Plan amount for a one-person household.

5. Residents Receiving Residential Care

Calculating SNAP Benefits for Disabled or Blind Persons Residing in and **Receiving Care** in all Other Group Living Arrangements, Enriched Housing, or Congregate Care Level II Supportive or Supervised Living Arrangements (Upstate WMS Shelter Type Codes 15, 16, 17, and 42).

a. SNAP Countable Income - The SNAP countable income of residents "receiving residential care", as defined in Section 209(3)(d) of the Social Services Law will be equal to the sum of the following:

   (1) The SSI Living with Others rate, or the actual amount of unearned income received by the resident, whichever is less; plus

   (2) The amount by which any additional unearned income exceeds the applicable SSI Congregate Care Level rate (i.e., Congregate Care Level 1, 2 or 3); plus

   (3) The amount of any earned income received by the resident.

   Note: The above definition of countable income applies whether the resident receives SSI benefits, TA benefits or another source of income.

b. Shelter Costs - Shelter costs will be equal to the SSI Living with Others rate or the actual amount of unearned income received by the resident, whichever is less:

   (1) Minus, for each person in the SNAP household, the amount of a Congregate Care Level II PNA [as set forth in section 131-o(1)(b) of the Social Services Law], if applicable, and
   (2) Minus the Thrifty Food Plan amount for a one-person household.

6. Residents in Non-Care Group Living

Calculating SNAP Benefits for Persons Residing in All Other Group Living Arrangements, Enriched Housing, or Congregate Care Level II Supportive or Supervised Living Arrangements **But Not Receiving Care** (Upstate WMS Shelter Type Codes 15, 16, 17, and 42).

a. SNAP Countable Income - The SNAP countable income will be equal to the sum of each individual's earned and unearned income.

b. Shelter Cost for a TA Recipient Receiving a Room & Board Allowance - The room and board allowance referred to in this section is set forth in state regulation at 18 NYCRR 352.8(b) (1). The shelter cost will be equal to the countable income in 6.a immediately above.

   (1) Minus, for each person in the SNAP household, a PNA [as set forth in 18 NYCRR 352.8(c)(1)(i)], if applicable, and

   (2) Minus the Thrifty Food Plan amount for a one-person household.

c. Shelter Cost for a TA Recipient Receiving a Shelter Allowance - Shelter cost for a TA recipient receiving a shelter allowance will be equal to the actual amount of the shelter allowance paid.

d. Shelter Cost for a Non-TA Recipient - Shelter costs will be equal to the countable income, as determined in 6.a above:

   (1) Minus, for each person in the SNAP household, a PNA [as set forth in 18 NYCRR 352.8(c)(1) (i)], if applicable, and

   (2) Minus the Thrifty Food Plan amount for a one-person household

References:

387.16 (e), (f) Special Provisions for Household Circumstances

273.11 Action on Households with Special Circumstances

GIS 08TA/DC022 - Group Home and Congregate Care Facility Budgeting

ABEL Transmittal 08-2 – Information 5 "Group Home Budgeting'

C. Transitional Housing Benefits for Homeless and Domestic Violence Shelter Residents

The term transitional housing means a living accommodation which is intended to provide shelter to homeless households for a short period of time until permanent regular housing, such as an apartment or house, can be obtained by the household. Such living accommodations may contain cooking and/or refrigeration facilities.

For SNAP purposes, transitional housing is hotel/motels, Tier II Shelters, Non-tier II Shelters and Shelters for Victims of Domestic Violence. The income and shelter costs for recipients residing in transitional housing shall be determined according to the procedures described below:

1. TA Recipient with Only TA as Income

a. Determining Countable SNAP Income - TA payments below or equal to the maximum TA shelter allowance paid directly to a housing provider for transitional housing for a homeless household must be counted as income for SNAP purposes. Amounts of the payment that exceed the applicable TA shelter maximum with heat for the family size are excluded as SNAP income. However, the entire amount of the vendor payments made to a domestic violence shelter (shelter types 22 and 37) is considered to be non-recurring emergency payments and is therefore exempt for SNAP income purposes.

b. Determining Shelter Costs - The TA payment below or equal to the TA shelter allowance is a SNAP shelter expense deduction. No SNAP shelter expense deduction is permitted for any shelter expense that is paid by monies that are excluded as SNAP income. TA/SNAP households which have the total cost of shelter paid by vendor payments, have no shelter cost expense included in the excess shelter cost deduction determination.

Example 1: TA /SNAP case with only TA income - A homeless individual residing in a hotel/motel has a TA monthly shelter vendor payment (paid directly to the motel operator) of $700. The household's countable TA income is as follows:

- Countable as SNAP income
    - $ Basic allowance (effective 10/1/12)
    - $ Restaurant allowance
    - $ HEA (Home Energy Allowance)
    - $ SHEA (Supplemental Home Energy Allowance)
    - $ Albany County Shelter Maximum with heat for household of 1. (Allowable shelter cost)

- Not counted as income
  - $700 minus $ Albany County Shelter Maximum with heat for household of 1. (Allowable shelter cost)

Example 2: TA/SNAP case with TA and Other Income - A homeless individual residing in a hotel/motel has $800 in unearned income. The individual is eligible for a $ Albany County Shelter Maximum with heat for household of 1. (Allowable shelter cost) TA grant that is a vendor payment to the landlord. The monthly motel rent is $700.00. The household's income is treated as follows:

Albany County Shelter Maximum with heat for household of 1. (Allowable shelter cost) TA vendor shelter payment is counted as income equal to Albany County shelter maximum with heat for household of 1

$ Monthly motel rent subtract $ Amount by TA as vendor payment (allowed as shelter expense) =

$_____ Out of pocket payment from recipient's unearned income to landlord also allowed as a shelter expense.

2. Recipient with Income In Addition To TA

a. Determining Countable SNAP Income - Homeless households may pay some part of a transitional housing cost out of income other than TA income. There is no exclusion for income other than TA income.

b. Determining Shelter Costs - Any part of a transitional housing cost paid by income other than TA is allowed as shelter cost when calculating the household's SNAP excess shelter deduction (see example 2 above).

3. Non-Temporary Assistance (NTA) Recipient

NTA cases must be budgeted with the procedures used for persons living in the community.

a. Determining Countable SNAP Income - All normal procedures for determining SNAP income must be applied toward the residents of these shelters.

b. Determining Shelter Costs - The amount that the resident pays to the operator of the shelter must be entered in the Shelter amount field on the SNAP Input screen. (If the resident pays nothing to the shelter operator, enter $0.00 in the Shelter amount field.)

Systems Impact

Upstate ABEL will include the applicable shelter maximum when calculating the TA grant amount and display it as the SNAP shelter amount. When ABEL cannot determine the appropriate amounts, "999999" will be displayed in both the grant amount and shelter amount fields. The worker must enter in the SNAP Actual Shelter Amount any vendor payment amounts up to the appropriate shelter allowance plus any amount paid by the client. When entering the TA Grant Amount, the worker must exclude any vendor payment in excess of the TA shelter allowance.

References:

387.11 Income Exclusions

273.9 Income and Deductions

97 ADM-4 – Clarification of Various Food Stamp Welfare Reform Provisions

95 ADM-15 – Food Stamp Program Implications of the Mickey Leland Childhood Hunger Relief
Act

92 ADM-9 – Food Stamps: Income Exclusion for Homeless Households in transitional housing

96 LCM-83 – Food Stamp Impact of New Federal Welfare Law

D. Budgeting Essential Persons (EPS)

Essential persons are individuals:

- Who reside in the home of a Family Assistance household;
- Who are eligible for Temporary Assistance; and
- Whose presence in the household is essential to the well-being of the Family Assistance recipient

Essential persons are designated household members who meet the following conditions:

- The household member must be eligible for and in compliance with all Safety Net Assistance (SNA) eligibility requirements.
- The household member must be living with a Family Assistance (FA) or Safety Net Assistance- Federally Participating (SNA-FP) dependent child who is an applicant or recipient; and
- The household member's designation as an EP does not negatively impact the FA or SNA-FP household's benefits or cause ineligibility.

Note* The presence of an essential person does not alter the method for determining the SNAP household composition. The SNAP household composition is based on which household members reside together, purchase and prepare their meals together.

1. EP Included In The SNAP Household

a. Income - If the EP is included in the SNAP household, then his/her portion of the TA grant (excluding the Home Energy Assistance (HEA) and Supplemental Home Energy Allowance (SHEA)) must be budgeted as income received by the SNAP household.

b. Shelter Deduction - The household's SNAP shelter deduction shall be determined based on the total shelter expense incurred by the entire TA household including the EP.

2. EP Not Included In SNAP Household

a. Income - If the EP is not a member of the TA/SNAP household and is not a member of another SNAP household, then his/her portion of the TA allowances must be excluded as income to the SNAP household of which he/she is not a member. The TA shelter and fuel allowance are counted in their entirety as income to the SNAP household and the HEA & SHEA. These exclusions apply whether his/her grant is issued separately or in the TA grant.

The following portions of the TA grant are excluded as SNAP income when the TA EP is not a member of the SNAP household:

(1) The EP's portion of the basic allowance.

(2) The EP's portion of any other TA allowances issued for the entire TA case. However, the TA shelter and fuel allowances are counted in their entirety as income to the SNAP household.
(3) The total amount of any TA allowance which is given for the EP only.

(4) The HEA and the SHEA are excluded in their entirety.

In addition, any NTA income received by the EP who is not a member of the SNAP household must be excluded as SNAP income for that TA/SNAP household.

An exception to these budgeting procedures would occur if the EP is making voluntary contributions from the above excluded income sources to the TA/SNAP household of which he/she is not a member. These contributions would be budgeted as SNAP income for the remaining TA/SNAP household. Also see SNAPSB Section 13.

b. Shelter Deduction - The SNAP household without the EP shall have their SNAP shelter deduction determined based on the total shelter expenses incurred by the TA household which shall include the EP's portion of the TA shelter and fuel allowances.

3. EP Is Member of Separate SNAP Household

a. Income - If the TA-EP is not a member of the TA/SNAP household, but is a member of a separate SNAP household, then the following budgeting procedures must be used:

(1) The EP's portion of TA allowances issued for the entire TA case, including the basic, HEA and SHEA, shelter, and fuel allowance, is excluded as SNAP income for the TA household's SNAP case. The EP’s portion of these TA allowances is, however, budgeted as income received by the EP’s SNAP household.

b. Shelter Deduction - The SNAP household without the EP shall have their SNAP shelter deduction determined based on the total shelter expenses incurred by the TA members except for the EP's incurred shelter expenses. The EP's portion of the TA shelter and fuel allowances are therefore not counted toward the household's total SNAP shelter costs.

The SNAP shelter deduction of the EP's SNAP household shall be determined based on the total shelter expenses incurred by the EP's SNAP household. The EP's portion of the TA shelter and fuel allowances shall therefore be counted toward the EP's SNAP household's total SNAP shelter costs.

NOTE: If the TA/SNAP household and the EP's SNAP household are sharing shelter expenses for heating/air conditioning/utilities, or phone, they may only be entitled to a prorated share of the appropriate SNAP standard allowances for these expenses.

4. Budget Calculations

Essential Person – Individual Special Needs Type Code 21

SNTA and SNNTA members who have been designated as an essential person on a FA or SNA-FP case can't receive less than the total of the Basic, HEA and SHEA Allowance amounts than they were receiving as a SNTA or SNNTA case. The amount of the supplemental Essential Person allowance is calculated as follows:

(1) Calculate the Basic, HEA and SHEA allowances for the FA or SNA-FP household and add them to the Basic, HEA and SHEA allowances for the SNTA of SNNTA recipient.

(2) Calculate the Basic, HEA and SHEA allowances for the FA or SNA-FP household including the essential person

(3) Subtract the amount in (2) above from the amount in (1) above. Enter the difference in the ADDL:AMT field and enter CODE 21 in the ADDL:TY field. This will provide the full Basic, HEA and SHEA allowances to the FA or SN-FP Essential Person rather than the prorated share of the allowances.

References:

87 ADM-46(Historical Reference) – Essential Persons

09 ADM 09 – Essential Persons

E. Determining Deductions

1. Allowed Deductions

Only specific deductions as given in SNAPSB Section 12 shall be used in the SNAP Program.

a. Expenses shall only be deducted if the service is provided by someone outside of the household and the household makes a money payment for the service.

NOTE: Deductions may not be taken for services, such as Dependent Care, provided by another household member, regardless of any cash payment made by the household for the service.

b. A deduction shall be allowed only in the month the expense is billed or otherwise becomes due, regardless of when the household intends to pay the expense. However, for households entitled to the medical deduction, the non-reimbursable portion shall be considered at the time the amount of reimbursement is received or can otherwise be verified.

NOTE: Amounts carried forward from past billing periods are not deductible even if included in the most recent billing period and actually paid.

A particular expense may be deducted only once.

c. Fluctuating expenses may be averaged forward when used as a deduction.

NOTE: Households may choose to have expenses which are billed less than monthly average forward over the time between scheduled billings. If the next bill is not scheduled, the expense may be averaged over the period it is intended to cover.

NOTE: Households may choose to have one- time only expenses averaged over the certification period in which they are billed.

d. A household's expenses shall be calculated based on the expenses the household expects to be billed for during the certification period. Anticipation of the expense shall be based on the most recent month's bills unless the household is reasonably certain a change will occur.

2. Disallowed Deductions

Deductions cannot be allowed for expenses covered by excluded income such as excluded reimbursements or vendor payments.

a. If a portion of rent is covered by an excluded vendor payment, that portion cannot be calculated as a part of the household's shelter cost.

b. Dependent care costs which are met by a direct payment or reimbursement cannot be also allowed as a SNAP dependent care deduction. The actual dependent care cost including fees which exceed the amount the household receives as a Child Care payment, can be applied as a dependent care deduction. For example, if a household receives a Child Care payment or reimbursement, the amount of the payment or reimbursement is excluded as income. Actual costs which exceed the payment or reimbursement amount can be allowed as a deduction.

3. Deductions for Households with Ineligible Individuals

1. Individuals Ineligible Due To Intentional Program Violation Or Failure To Comply With Work Registration Or Work Requirements - Households containing such ineligible individuals shall have the entire household's deductions (medical, dependent care, shelter) prorated to the eligible household members, and the ineligible household members who contribute to the expense.

2. Individuals Ineligible Due To Being An Ineligible Non-citizen Or For Refusal To Apply For Or Provide An SSN - Households containing such an ineligible individual shall have deductions budgeted as follows:

   (1) The 20% earned income deduction shall apply to the prorated income earned by the ineligible individual which is attributed to their household. That portion of the households' allowable shelter and dependent care expenses which are either <u>paid by or billed to</u> the ineligible individual shall be divided evenly among the households' members including the ineligible individual. All but the ineligible individuals share is counted as a shelter or dependent care expense for the remaining household members.

   EXAMPLE: There is a four-person household (man, wife, and two minor children) and one person is ineligible (e.g. father) due to being an ineligible non-citizen or for refusal to provide or apply for a social security number. If the ineligible member paid rent of $400 a month and had income of $450 per month and an eligible member (wife) paid a dependent care expense of $100 per month, their SNAP budget would reflect the following entries:

   $337.50 earned income ($450/4 = $112.50 X 3= 337.50)

   $300 shelter expense ($400/4 = $100 X 3 = $300)

   $100 dependent care expense – no proration, due to expense being paid by eligible member

   (2) The participating household members are entitled to the full un-prorated appropriate standard utility allowance.

EXAMPLE: There is a four-person household and one person is ineligible, leaving a participating household of three persons. Although the shelter (rent, mortgage, etc.) expenses are prorated, the three- person participating household is entitled to the full, un-prorated appropriate standard allowance.

3. Ineligible Students - Households containing such an ineligible individual shall have deductions budgeted as follows:

   (1) The income and resources of ineligible students shall not be considered available to the household. Cash payments from the ineligible student to the household will be considered income under normal processing standards. Vendor payments shall be excluded as income. If the household shares deductible expenses with the ineligible student, only the amount actually paid or contributed by the household shall be deducted as a household expense. If the payments or contributions cannot be identified, the expenses shall be prorated evenly among persons actually paying or contributing to the expense and only the household's prorated share deducted.

NOTE: For information on allowable shelter expenses, see SNAPSB Section 12. For information on standard allowances, see SNAPSB Section 12.

References:

387.14 Determination of Food Stamp Eligibility

CFR 273.11(c), (d) Action on Households with Special Circumstances

97 ADM-17 Elimination of the Child Care Earned Income Disregard and the Implementation of Child Care Payments for Public Assistance Cases with Earned Income

90 ADM 31 Employment and JOBS Related Child Care, Transitional Child Care and Local Child Care Market Rates For All Forms of Child Care

91 INF-3 1990 Income Maintenance Regional Meetings Questions and Answers

F. Proration Methodology

1. Prorating

A household's benefit level for the initial month of certification is based on the day of the month it applies for benefits. A household must receive benefits prorated from the day of application to the end of the initial month. A household's eligibility is determined for the month of application by considering the household's circumstances for the entire calendar month in which the household filed its application.

NOTE: To determine the day and month of application for Jointly Processed households see SNAPSB Section 4.

2. Initial Month

Initial month means:

a. The first month for which the household is certified for participation in the SNAP following any period during which the household was not certified for participation, and

b. In the case of a migrant or seasonal farmworker household, the first month for which a household is certified for participation in the SNAP provided such household applies following a period of more than 30 days in which the household was not certified for participation.

3. Migrant or Seasonal Farm Workers

An applicant migrant or seasonal farm worker household must be issued the full (not prorated) SNAP allotment for the month of application if the household participated in the SNAP within 30 days prior to their application date.

4. Determining Prorated Benefits

Proration of a household's benefits for the initial month of certification shall be accomplished in the following manner:

a. The household's full month's benefits shall be determined using the method set forth in this section.

b. The household's full month's benefits shall then be prorated by either:

(1) Using the SNAP Allotment Table; or

(2) Using the following formula: full month's benefits x (31-date of application) = prorated amount 30

c. Prorated benefits are rounded to the next lower dollar value, thus $25.99 would be rounded to $25.

NOTE: When using the formula, a household applying on the 31st shall be treated as though it applied on the 30th.

d. The household shall then be issued the prorated allotment for the initial month of eligibility within 30 days of filing the application. For subsequent months of eligibility, the household shall be issued the regular full monthly allotment.

e. If the proration computation results in an allotment of less than $10, then no issuance shall be made for the initial month. This includes one and two person households that are eligible for the minimum benefit in subsequent months.

f. In instances when a household will be eligible for ongoing benefits but due to proration will not be entitled to benefits for the initial month, the district shall:

(1) Establish a normal certification period beginning with the month of application based on the household's circumstances;

(2) Issue no benefits for the initial month of eligibility; and

(3) Issue the regular full monthly allotment for the months of the certification period. The district shall not deny an application solely because the household is not entitled to benefits in the initial month due to prorationing.

g. In cases where verification is provided after the 30 day processing time, benefits shall be prorated from the date the district receives the verification. For these cases, the initial month is the month verification is received by the district and benefits shall be prorated from the date verification is received.

References:

387.14 Determination of Food Stamp Eligibility

97 ADM-4 Clarifications of Various Food Stamp Welfare Reform Provisions

95 ADM-15 Food Stamp Program Implications of the Mickey Leland Childhood Hunger Relief Act (P.L. 103-66)

G. Reduction/Suspension/Cancellation

In the event that the Secretary of Agriculture mandates that the SNAP be reduced, suspended, or cancelled, the following procedure must be followed:

1. Reduction/Required Action

a. Description - Reduction will be accomplished by reducing the Thrifty Food Plan amount for each household size by the same percentage and same dollar amount.

(1) All one and two person households affected by the reduction shall be guaranteed the minimum benefit allotment unless the action is a cancellation of benefits, a suspension of benefits or a reduction of benefits of 90% or more of the total amount of benefits projected to be issued in the affected month.

(2) The exact percentage of the reduction will be specified by the Food and Nutrition Service (FNS). For example, if a 25% reduction in the Thrifty Food Plan is to be made for all four person households, the reduction would be calculated as follows:

(a) The Thrifty Food Plan allotment for a four-person household is $___ . A reduction of 25% would bring that allotment down to $___.

(b) Then, 30% of a net SNAP income of $200 (30% of $___ equals $___) would be deducted from the reduced Thrifty Food Plan amount of $___, reducing the allotment to $___ ($___ minus $__ equals $___).

b. State Responsibilities

(1) Notification - The districts will be notified by the Department of:

(a) The date the reduction is to take effect,

(b) The percentage the Thrifty Food Plan amounts for each household size are to be reduced, and

(c) The dollar amount by which the Thrifty Food Plan will be reduced.

(2) Automated Budget Eligibility Logic (ABEL) - The WMS SNAP Budget Logic shall be programmed to:

(a) Calculate the benefit reduction, and

(b) Allow for the Thrifty Food Plan current minimum benefit for one and two person households,

(d) Compute a household's normal benefit. (This must be retained as a record in the event that FNS orders any restoration of benefits.)

(3) Issuance Tables - The Department will have available revised issuance tables reflecting the percentage of reductions to be made in the Thrifty Food Plan amounts and reduced Thrifty Food Plan levels.

NOTE: More specific instructions will be issued to the districts in the event that a reduction in allotment is deemed necessary.

c. District Responsibilities

(1) The reduced allotment amount must also be entered on the authorization/change document.

(2) If a benefit reduction is ordered, districts shall reduce the Thrifty Food Plan amounts for each household size by the percentage ordered in the Department's notice on benefit reductions,

(a) Multiply the amounts by the percentage specified,

(b) Round any result ending in cents up to the nearest higher dollar, and

(c) Subtract the result from the normal Thrifty Food Plan amount.

NOTE: In calculating benefits, the reduced Thrifty Food Plan amount will be substituted for the normal Thrifty Food Plan amount.

2. Suspension and Cancellation/Required Action

If a decision is made to suspend or cancel the distribution of SNAP benefits in a given month:

a. The Department will notify districts of the date the cancellation or suspension is to take effect.

b. The provision of the Thrifty Food Plan current minimum benefit for households with one or two members only shall be disregarded and all households shall have their benefits suspended or cancelled.

c. Upon receiving notice of a suspension or cancellation in benefits, districts shall notify issuance agents and personnel.

d. Allotments or portions of allotments representing restored or retroactive benefits for a prior unaffected month would not be reduced, suspended, or cancelled even though they are issued during an affected month.

e. Districts shall notify households of reductions, suspensions and cancellations of allotments in accordance with the notice provisions of SNAP SB Section 8. Notices of Adverse Action shall not be provided to affected households.

f. Households whose allotments are reduced or cancelled as a result of these procedures are not entitled to a restoration of lost benefits at a future date. However, if there is a surplus of funds as a result of reduction or cancellation of benefits and the Secretary of Agriculture determines that such a restoration is practicable, the Department will direct districts to provide affected households with restored benefits.

g. Upon being notified by the Department that a suspension of benefits is over, districts shall act immediately to resume issuing benefits to certified households and shall resume benefit issuance as soon as practicable.

3. Maintenance of Records

Districts must be able to submit to the Department, upon request, a listing of the amount of benefits each household receives during a month in which the reduction is in effect along with a listing of the amount of benefits each household would have received had full monthly allotments been given.

a. If allotments are cancelled, districts must be able to submit to the Department, upon request, a listing of the amount of benefits each household would have received had the monthly allotments been distributed.

b. These listings will be used in the event that restored benefits are directed.

4. Effects on Certification of Eligible Households

a. Determination of the eligibility of applicant households shall not be affected by a reduction, cancellation or suspension of benefits.

b. Districts shall accept and process applications during a month(s) in which a reduction, suspension or cancellation is in effect.

c. If a reduction is in effect, applicants eligible for benefits shall have the amount of their benefits calculated by reducing the Thrifty Food Plan amount by the appropriate percentage for the household size and then deducting 30% of the household's net SNAP income from the reduced Thrifty Food Plan.

d. If a suspension or cancellation is in effect, no benefits shall be issued to the applicant.

e. Reduction, suspension or cancellation of benefits shall have no effect on the certification periods assigned to households.

f. Those households, whose certification periods expire during a month in which allotments have been reduced, suspended, or cancelled, shall be recertified according to existing procedures.

g. Households found eligible to participate during such a period shall have certification periods assigned in accordance with existing procedures.

5. Expedited Service

Households eligible to receive expedited processing, who apply for Reduction/Suspension/Cancellation program benefits during months in which reductions or suspensions are in effect, shall have their cases processed in accordance with the normal expedited processing provisions and timeliness standards set forth in SNAPSB Section 5.

a. Reductions In Effect - Those households that receive expedited service in months in which reductions are in effect and that are determined to be eligible shall be issued allotments that are reduced in accordance with the reduction in effect. These reduced allotments shall be made available to the households within the benefit delivery timeframe specified in SNAPSB Section 15.

b. Suspensions In Effect - Those households that receive expedited service in months in which suspensions are in effect and that are determined to be eligible shall have benefits issued to them within the timeframe specified in SNAPSB Section 15. However, if the suspension is still in effect at the time issuance is to be made, the issuance shall be suspended until the suspension is ended.

c. Cancellations In Effect - Households eligible to receive expedited processing who apply for program benefits during months in which cancellations are in effect shall receive expedited service. However, the deadline for completing the processing of such cases shall be five calendar days or the end of the month of application, whichever date is later. All other rules pertaining to expedited service shall be applicable to these cases.

6. Fair Hearings

Any household that has its allotment reduced, suspended, or cancelled, as a result of an order issued by FNS, may request a fair hearing if it believes that its benefit level was computed incorrectly under the rules set forth in this Section or that these rules were misapplied or misinterpreted. Fair hearings shall be denied to those households who are merely disputing the fact that a reduction, suspension or cancellation was ordered.

Households do not have a right to a continuation of benefits pending the fair hearing. A household may receive retroactive benefits in an appropriate amount if it is determined that its benefits were reduced by more than the amount by which the district was directed to reduce benefits.

7. Issuance Services

Districts must assure that issuance services are available to serve households receiving restored or retroactive benefits for a prior, unaffected month.

8. Failure to Comply

Failure of a district to comply may result in the cancellation of 100% of the district's share of administrative costs for the affected month(s) and the Department may bill the district for all over-issuances which result from the non-compliance.

H. Replacements of Food

1. Replacement of Food

An issuance to replace food which was purchased but subsequently destroyed in a household misfortune must be made provided that:

a. The household reports the loss within 10 days of the date of the misfortune; and

b. The household returns, within 10 days of the report of the household misfortune, a signed LDSS-2291: Request For Replacement of Food Purchased with Supplemental Nutrition Assistance Program (SNAP) Benefits.

Examples of household misfortunes resulting in food loss include a fire, a flood, an extended power outage, shut-offs or an equipment (refrigerator or freezer) failure. No limit is placed on the frequency of replacement issuances for food destroyed in a household misfortune.

Note: Theft of food from your house is not a household misfortune. A benefit cannot be replaced due to food being stolen. It is a case of theft that should be reported to the local authorities and is not within FNS purview.

2. Procedures for Issuing Replacements

a. Timely Reports - Prior to issuing a replacement, the district must determine that the household has reported the loss in a household misfortune or non-receipt of a SNAP benefit orally or in writing within time limits. The report is "timely" if it is received by the district:

(1) Within 10 days of the date food purchased is destroyed in a household misfortune, or;

(2) Within the period of intended use for a claim of non-receipt of a SNAP benefit. The period of intended use is the issuance month, except that for issuances on or after the 20th of the month the period of intended use expires at the end of the following month.

b. Statements

(1) The district must obtain from a member of the household or its authorized representative, a signed LDSS-2291: Request For Replacement of Food Purchased with Supplemental Nutrition Assistance Program (SNAP) Benefits when:

(a) Food purchased, was destroyed in a household misfortune;

(b) A claim has been made by a household of non-receipt of SNAP benefits when the computer issuance record indicates that benefits have been issued to the household for the time period in question.

(2) The household must return the signed statement, LDSS-2291 Request For Replacement of Food Purchased with Supplemental Nutrition Assistance Program (SNAP) Benefits, within 10 days of the date of report in order to receive a replacement issuance. If the 10th day falls on a weekend or holiday, a statement received the day after the weekend or holiday is timely received.

(3) The district may choose to retain the signed LDSS-2291 Request For Replacement of Food Purchased with Supplemental Nutrition Assistance Program (SNAP) Benefits or state-approved local equivalent in a secure file other than the case folder, such as in an accounting office or other central storage point, so long as it is completely and accurately documented in the record that a replacement was provided and the statement remains readily retrievable for the purposes of case review.

c. Investigation Of Replacement Requests - The fact that food purchased was destroyed in a household misfortune must be verified through an assessment of information provided by the client, by obtaining clarification from a collateral contact, through documentation from a community agency including, but not limited to:

(1) The fire department or,

(2) The Red Cross.

d. Time Limit For Issuing Replacements

(1) The district must provide replacement issuances within 10 days after receiving the household's LDSS-2291 Request For Replacement of Food Purchased with Supplemental Nutrition Assistance Program (SNAP) Benefits report of the household misfortune or within two working days of receiving the signed statement, whichever is later.

(2) The district must deny replacement issuances in cases in which available evidence indicates that the household's replacement request is fraudulent. Issuance may be delayed if further investigation is needed to assure that the request is not fraudulent.

(3) Households whose replacement requests are denied or delayed must be informed of their right to a fair hearing. Households who request a fair hearing must not have replacements issued pending the outcome of the hearing decision.

e. Amount Of Replacement Issuances - Replacements must be provided in the amount of the household's loss, but not more than the amount of the month's allotment most recently issued to the household. However, in situations involving restored benefits, the amount of a household's loss, but not be more than the amount of the original restored issuance must be replaced.

f. Further Actions On Replacement Issuances - For each household request for a replacement issuance, districts must document in the household's case record

the date and reason for the request, whether or not the replacement was issued, and whether or not the replacement was countable.

References:

387.16 Special Provisions for Household Circumstances

91 ADM-4 Food Stamps: Replacement of Coupons and Food

93 INF-10 Electronic Benefit Issuance and Control System (EBICS) Questions and Answers

92 INF-22 Food Stamp Program: Processing of and Revisions to Form DSS-2291 (Rev. 10/91) Statement of Non-Receipt of Food Stamp Benefits

GIS 11 TA/DC017 Issuing Replacement Food Stamp Benefits

GIS 08 TA/DC031 Issuing Replacement Food Stamp Benefits and Emergency Food Replacement

I. Restoration Of Lost Benefits

1. Entitlement

Households shall have their benefits restored whenever:

a. The loss was caused by an administrative error.

b. The loss was caused by an administrative disqualification for intentional program violation which was subsequently reversed.

c. The loss was due to an error caused by the district or SSA through Joint Processing.

d. The SNAP SB specifically states that the household is entitled to a restoration of lost benefits.

2. Twelve Month Limitation

a. General - Benefits shall be restored, even if the household is currently ineligible, for not more than twelve months prior to whichever of the following occurred first:

(1) The date the district receives a request for restoration from a household.

(2) The date the district is notified or otherwise discovers that a loss to the household has occurred.

b. Judicial Action - The district shall restore to households benefits which were found by any judicial action to have been wrongfully withheld.

(1) If the judicial action is the first action the recipient has taken to obtain restoration of lost benefits, then benefits shall be restored for a period of not more than twelve months from the date the court action was initiated.

(2) When the judicial action is a review of a district action, the benefits shall be restored for a period of not more than twelve months from the first of the following dates:

(a) The date the district receives a request for restoration;

(b) If no request for restoration is received, the date the fair hearing action was initiated; but

(c) Never more than one year from when the district is notified of or discovers the loss.

c. Errors discovered by the district - If the district determines that a benefit loss not caused by the household has occurred, the district shall automatically act to

restore any lost benefits. Action by the household is not necessary. Lost benefits must be restored for a period up to but not to exceed 12 months prior to either:

(1) The month the district discovers the loss; or

(2) The month the district receives written or oral notice of a possible loss to a specific household.

3. Notification

The district must notify the household of the following:

a. The household's entitlement,

b. The amount of restored benefits,

c. Any offsetting that was calculated,

d. The method of restoration, and

e. The right to request a fair hearing if the household disagrees with any aspect of the benefit restoration.

4. Disputed Benefits

a. The district may determine that a household should receive restored lost benefits. However, the household may not agree with either the restored amount calculated by the district or any other action the district takes to restore lost benefits.

   If so, the household can request a fair hearing within 90 days of the date the household is notified of its entitlement to restored lost benefits. If a fair hearing is requested before or during the time the lost benefits are restored, the household must receive the lost benefits calculated by the district pending the result of the fair hearing. If the fair hearing decision favors the household, the district must restore the lost benefits according to that decision.

b. If a household believes it should receive restored lost benefits but the district reviews the case file and disagrees, the household has 90 days from the date of the district determination to request a fair hearing. The district must restore lost benefits to the household only if the fair hearing decision favors the household. Benefits lost more than 12 months before the date the district was first informed of the household's possible entitlement must not be restored.

5. Computing The Amount To Be Restored

When a household is entitled to lost benefits, the district must:

a. First, correct the loss for future months.

b. Then, after excluding from calculation those months prior to the 12-month time limit described in paragraphs 2 and 4 of this Section, the district must calculate the amount of restored lost benefits as follows:

(1) Incorrect Allotment - If an incorrect allotment causes the loss for the eligible household, the benefit loss shall be calculated only for those months the household participated.

(2) Incorrect Delay, Denial or Benefit Termination - If an incorrect delay, denial or benefit termination causes the loss, the affected months must be calculated as follows:

(a) Denial - If an eligible household's application was erroneously denied, the month the loss initially occurred shall begin with the month of application. For an eligible household filing a timely application, the month the loss initially occurred shall begin with the month following the expiration of its certification period.

(b) Delay - If an eligible household's application was delayed, the months for which benefits may be lost shall be calculated in accordance with procedures in SNAPSB Section 15.

(c) Termination - If a household's benefits were erroneously terminated, the month the loss initially occurred shall begin with the first month benefits were not received as a result of the erroneous action.

(d) Procedure - After determining the month the loss initially occurred the loss shall be calculated for each month subsequent to that date until either:

1. The first month the error is corrected, or

2. The first month the household is found ineligible.

(3) Eligibility - For each month benefits were lost, the district shall determine if the household was eligible. In cases where there is no information in the household's case file to document that the household was actually eligible, the district must advise the household of the necessary information that must be provided to determine eligibility for these months.

(4) Allotment - The district must calculate the allotment that the household should have received during the months it was eligible. If the household received an allotment smaller than it was eligible to receive, the difference between the allotment issued and the correct allotment is the amount to be restored.

NOTE: For purposes of calculating restored benefits over a period of time, the ABEL Manual Appendix, page ii-2.2 contains a listing of significant ABEL budget "from" dates.

(5) Claiming - Before the payment of lost benefits, the district must determine if there is a claim against the household which is either unpaid, held in suspense, or terminated. If there is a claim, the restored amount must be offset against the claim amount before the household can receive the balance, if any.

In cases where a household is certified and receives its initial allotment after the normal processing period, this is not considered as lost benefits even if the initial allotment is paid retroactively. In such situations, the initial allotment shall not be reduced to offset the amount due on the claim.

6. SSI Households

a. A SNAP household pending SSI that purchases and prepares food separately from non-minor children or siblings is denied separate household status because the household is not elderly or disabled must be permitted retroactive separate status if determined eligible for SSI. The household must be re-budgeted as a separate SNAP household with an uncapped excess shelter deduction and/or an excess medical deduction back to the household's SSI eligibility date, SNAP application date or date separate household status was requested, whichever is later.

NOTE: It is recommended that districts inform all pending SSI applicant households either denied SNAP, denied separate household status, or determined initially eligible for SNAP as a non-elderly disabled SNAP household, that they maintain verifiable records of all factors which may qualify them for restored SNAP benefits as a retroactively determined categorically eligible SNAP household.

b. The amount of restored SNAP benefits is calculated by subtracting the benefits received by the single SNAP household from the total amount of benefits that would have been issued for two separate SNAP households. The total restored SNAP benefit amount is issued to the SSI SNAP household.

NOTE: In re-budgeting the SNAP case for the months covered by the retro SSI payment the monthly SSI amount cannot be budgeted as income because when the benefits were issued, the SSI had not yet been received.

7. Lost Benefits to Individuals Disqualified For Intentional Program Violation

a. Definition - Individuals disqualified for Intentional Program Violation are entitled to restoration of any benefits lost during the months that they were disqualified, only if the decision which resulted in disqualification is subsequently reversed. Benefits shall be restored for a period not to exceed twelve months prior to the date of district notification. An individual cannot receive restored benefits for the

period he/she was disqualified based solely on the fact that a criminal conviction could not be obtained. The individual must successfully challenge the disqualification in a separate court action to be eligible for the restoration of lost benefits.

b. Calculation - For each month the individual was disqualified, not to exceed twelve months prior to district notification, the amount to be restored shall be determined by comparing the allotment the household received with the allotment the household would have received had the disqualified member been allowed to participate. If the household received a smaller amount than it should have received, the difference equals the amount to be restored. Participation in an administrative disqualification hearing in which the household contests the district assertion of fraud shall be considered notification that the household is requesting restored benefits.

8. Method of Restoration

a. Standard Method - The district must restore lost benefits due a household regardless of whether the household is currently eligible or ineligible. Lost benefits shall be restored by issuing an allotment in a lump sum equal to the amount of benefits that were lost. The amount restored shall be issued in addition to the allotment a currently eligible household is receiving.

   Example: A household receiving $170 in SNAP benefits each month is entitled to restoration of lost benefits. Assuming the household is entitled to $200 in lost benefits, it would receive $370 in SNAP benefits during the month restoration is made.

b. Exception - The district must honor reasonable requests by households to restore lost benefits in monthly installments if, for example, the household fears that the:

   (1) Excess SNAP benefits may be stolen; or

   (2) Amount to be restored is more than it can use in a reasonable period of time.

   NOTE: A WMS Edit prevents the authorization of receiving restored benefits in order to spread out the large payment. Portions of the restored benefits may be authorized as monthly single issuances until the entire amount is paid.

   A large restored benefit may be spread out into a number of smaller payments only if the recipient agrees to such a payment method.

c. Recipients Who Have Moved To Another County - A district may not issue SNAP benefits to households which are not residents of that district. Therefore, when a household moves to another district, restored benefits, to which the household is or becomes eligible for from the former county of residence, must be issued by

the current county of residence. Upon inquiry by recipients the county of former residence:

(1) Must advise the client that the restored benefits will be issued by the current county of residence;

(2) Immediately provide the current county of residence with documentation verifying the household's entitlement to restored benefits.

Documentation must be provided to out-of-state agencies at the request of the agency or the household.

NOTE: Under no circumstances is documentation to be given to the recipient. Documentation must be sent directly from the county of former residence to the new county or state.

9. Changes in Household Composition

Whenever lost benefits are due a household where the membership has changed, the district must restore the lost benefits to the household containing a majority of the individuals who were household members at the time the loss occurred. If the district cannot locate or determine the household which contains a majority of household members, the district must restore lost benefits to the household containing the head of the household at the time the loss occurred.

10. Accounting Procedures

Each district must maintain an accounting system to document a household's entitlement to the restoration of lost benefits and to record the balance of lost benefits owed to the household. Each district must develop a procedure that, at a minimum, documents how the restored amount was calculated and the reason lost benefits must be restored.

Also, the accounting system must be designed to identify situations where an existing claim against a household can offset the amount to be restored.

References:

387.18 Restoration of Lost Benefits

TA Source Book: Chapter 19

Section 12: Standard and Deductions

A. Income Eligibility Standards

1. The monthly gross income eligibility standard is 130% of the annual federal income poverty level divided by 12.
2. The monthly net income eligibility standard is 100% of the annual federal income poverty level divided by 12.
3. The monthly gross income eligibility standard for expanded categorically eligible households that include an elderly/disabled member or have dependent care expenses is 200% of the annual federal income poverty level divided by 12.

   NOTE: Households that include an aged and/or disabled household member may be eligible for SNAP with income above 200% of the federal poverty level but, must pass the 100% Net Income Test and the Resource Test set forth in current SNAP Standards and Deductions.

   Periodically, as mandated by USDA, the monthly income eligibility standards will be adjusted to reflect the federal income poverty levels as provided in the Community Services Block Grant Act. The applicable income eligibility standards (or limits) are automatically used by the Welfare Management System Automated Budgeting and Eligibility Logic (WMS ABEL), to correspond with the effective FROM date of the budgeting period.

   The adjustments to these standards are normally announced to Districts through a General Information System (GIS) message in August of each year, with the effective date of the adjustment being October 1st to coincide with the start of the Federal fiscal year.

   NOTE: The SNAP STANDARDS are also available by accessing the desk guide section of either Centraport or the Employment and Income Support Programs (EISP) intranet page. Prior years' standards may be viewed by accessing one of the previous years' GIS messages available through Centraport or the EISP intranet page.

   Reference:

   387.10 Income Standards

   ABEL Transmittal 08-3 Information #4: "FS Categorical Eligibility Expansion for Dependent Care Expense Households"

   ABEL Transmittal 07-3 Information #5 "Food Stamps Categorical Eligibility Expansion"

B. Thrifty Food Plan

The Thrifty Food Plan is the diet required to feed a family of four persons consisting of a man and a woman 20 through 50, a child 6 through 8, and a child 9 through 11 years of age, determined in accordance with the Secretary's calculations. The cost of such diet shall be the basis for uniform allotments for all households regardless of their actual composition. In order to develop maximum SNAP allotments, the Secretary shall make household size and other adjustments in the Thrifty Food Plan taking into account economies of scale and other adjustments as required by law.

NOTE: The SNAP STANDARDS are also available by accessing the desk guide section of either Centraport or the Employment and Income Support Programs (EISP) intranet page. Prior years' standards may be viewed by accessing one of the previous years' GIS messages available through Centraport or the EISP intranet page.

Reference:

387.1 Definitions

C. Income Deductions

A. Standard Deduction

USDA will specify a permissible, standard, monthly household deduction. In order to keep allowable deductions realistic and up-to-date, cost of living adjustments must be made to certain mandated deductions. The adjustments will be made as mandated by USDA.

NOTE: The SNAP STANDARDS are also available by accessing the desk guide section of either Centraport or the Employment and Income Support Programs (EISP) intranet page. Prior years' standards may be viewed by accessing one of the previous years' GIS messages available through Centraport or the EISP intranet page.

B. Earned Income Deduction

The Earned Income Deduction is twenty percent of gross earnings as defined in SNAP SB Section 13. If a household fails to report earned income in a timely manner, the earned income deduction would not be applied when determining an overpayment.

NOTE: Districts should keep in mind that the majority of SNAP households are subject to Simplified Reporting rules, and do not have to report changes in income or deductions during the certification period if total monthly gross income remains less than 130% of poverty (see SNAP SB section 14).

Reference:
97 ADM-4 Clarifications of Various Food Stamp Welfare Reform Provisions

96 LCM-83 Food Stamp Impact of New Federal Welfare Law

08 ADM-9 Farm Bill Reauthorization Provisions of Food Stamp Program for 2008

D. Medical Deductions

1. Eligibility Criteria

   Any household that has at least one member who is elderly or disabled, as defined in SNAP SB Section 5, is eligible for a deduction of medical expenses in excess of $35 per month (per household) which are not reimbursed by third party insurers or under Title XVIII (Medicare) or XIX (Medicaid). Other household members, spouses or other persons receiving benefits as a dependent of the SSI or disability recipient cannot claim their medical costs. Persons receiving emergency SSI benefits based on presumptive eligibility shall be allowed this deduction.

   NOTE: Households receiving SNAP while pending SSI, if determined eligible for SSI, are entitled to a SNAP uncapped shelter deduction and/or excess medical deduction, retroactive to the SNAP application date or SSI eligibility date, whichever is later. Benefits will be restored according to SNAP SB Section 11.

   NOTE: Per the Food Stamp Reauthorization Act of 2002, districts will not reduce medical deductions between recertification. Increases that are reported and verified must continue to be processed between certifications.

2. Allowable Medical Costs

   The following are allowable medical costs:

   a. Health and hospitalization insurance policy premiums. Not deductible are the costs of health and accident policies, such as those payable in lump sum settlements for death or dismemberment, or income maintenance policies, such as those that continue mortgage or loan payments while the beneficiary is disabled.

   NOTE: Health insurance premiums for family coverage that includes a disabled or aged household member paid for by someone other than the disabled or aged household member may be included as a medical deduction. The medical expense would be the single rate for the plan, if it can be identified, or prorated among the household members.

   b. Medicare premiums paid by the SNAP recipient and related to coverage under Title XVIII of the Social Security Act. This includes any cost sharing or spend-down expenses incurred by Medicaid recipients. For information on Medicare premiums paid by Medicaid see #2 under Determining Deductions.

   c. Prescription drugs when prescribed by a licensed practitioner authorized under State Law and other over-the-counter medication (including insulin) when approved by a licensed practitioner or other qualified health professional. In addition, costs of medical supplies, sickroom equipment (including rental), or other prescribed equipment are deductible; including

the cost of delivery charges by mail order pharmacies to deliver such medications and equipment.

d. Hospitalization or outpatient treatment, nursing care (including nursing care in the community), and nursing home care, including payments by the household for an individual who was a household member immediately prior to entering a hospital or nursing home facility recognized by the State;

e. Medical and dental care, including psychotherapy and rehabilitation services, provided by a licensed practitioner authorized by State Law or other qualified health professional;

f. Dentures, hearing aids, and prosthetics;

g. Securing and maintaining a seeing eye, hearing, or service animal, including the cost of food and veterinarian bills. In 1990, FNS issued an indexed policy memo to broaden the definition to include all service animals, not just seeing eye or hearing dogs. Therefore, costs associated with any animal specially trained to serve the needs of elderly or disabled program participants are allowable for purposes of the excess medical deduction. An animal must be specially trained to assist the SNAP recipient in order for its associated maintenance costs (from veterinary bills to food and other expenses) to be allowable deductions. If the animal has not been specially trained, it is not a service animal, and its expenses are not deductible.

NOTE: Grants of Assistance for Guide Dogs are a reimbursement and are excluded as income. When they are excluded as income, they cannot be allowed as a deduction. However, if the SNAP client can verify that the cost of maintaining the guide dog exceeds the grant, the amount over and above the grant can be added to the client's medical deductions.

h. Eyeglasses prescribed by a physician skilled in eye disease or by an optometrist;

i. Reasonable cost of transportation and lodging to obtain medical treatment or services. Districts are encouraged to use the mileage rate at which county employees are reimbursed for their employment-related travel, which some counties set at the federal rate for employee reimbursement. Districts must use at least the mileage rate allowed toward a medical deduction for federal income tax purposes. This amount can be found at: https://www.irs.gov/tax-professionals/standard-mileage-rates

j. Maintaining an attendant, homemaker, home health aide, or dependent care services for housekeeping necessary due to age, infirmity or illness. In addition, an amount equal to the one-person benefit allotment shall be considered a medical expense if the household furnishes the majority of the attendant's meals. The allotment for this meal-related deduction shall be in effect at the time of initial certification. It is only required to update the allotment amount at the next scheduled recertification; however, at its

option, the agency may do so earlier. When attendant care costs qualify under both the medical deduction and the dependent care deduction, the cost shall be treated as a medical expense.

NOTE: The cost of special diets is not allowed as a medical deduction.

NOTE: Dependent care costs which qualify as a medical expense must be claimed as such and cannot be claimed as a Dependent Care Deduction. Only the portion of the medical/Dependent Care expense above $35 will be allowed as a deduction. The $35 cannot then be allowed as a Dependent Care Deduction.

a. Payments made on a loan when the loan is used to pay a one-time-only medical expense. Loan expenses, such as interest, are not allowable as part of the medical expense. Medical expenses are an exception to the policy that allowable expenses can only be deducted when they are due.

b. Past-due medical bills that have not previously been allowed as medical deductions can be allowed at next certification or recertification.

   1. At certification, unpaid medical bills can be considered when determining a household's monthly medical deduction for the certification period.

   2. The household can voluntarily report medical expenses that come due during the certification period and have them considered in determining the monthly medical deduction for the remainder of the certification period, but it cannot be required to do so.

   3. The household may also report at recertification the medical expenses that occurred during its certification and have them considered in determining the monthly medical deduction for the new certification period.

E. Determining Deductions

1. Medical Expenses

   Only that portion of an allowable medical expense which is not reimbursed by third party insurers or under Titles XVIII or XIX of the Social Security Act shall be counted as part of the household's medical expenses. Entitled households shall have the non-reimbursable portion deducted in the month that the reimbursement is received or can otherwise be verified.

2. Medicaid/Medicare Expenses

   A SNAP recipient who is elderly or disabled and who has MA pay his or her own Medicare premiums, deductibles and co-insurance cannot claim these costs toward a SNAP excess medical expense deduction.

   i. Districts must establish internal procedures to ensure that TA and/or SNAP staff are notified when a SNAP recipient's Medicare costs begin to be paid by MA. Upon receipt of this report, TA or SNAP staff should make a notation to remove these expenses from the recipient's SNAP medical deduction computation at the next recertification.

   ii. Any on-going MA payments (deductibles and co-insurance) for a SNAP recipient's Medicare expenses are excluded, as reimbursements, when determining SNAP eligibility and benefit amounts. Retroactive MA reimbursements are excluded, for SNAP, as lump sums.

3. Averaging Expenses

   Households who report one-time-only expenses during their certification period may elect to have a one-time deduction or to have the expense averaged over the remaining months of their certification period. Averaging would begin the month the change would become effective. For households certified for 24 months that have one-time medical expenses, the State agency must use the following procedure. In averaging any one-time medical expense incurred by a household during the first 12 months, the State agency must give the household the option of deducting the expense for one month, averaging the expense over the remainder of the first 12 months of the certification period, or averaging the expense over the remaining months in the certification period. One-time expenses reported after the 12th month of the certification period will be deducted in one month or averaged over the remaining months in the certification period, at the household's option. The eligibility worker should help the client in choosing the option which is most beneficial. For example, if the one-time medical expense is the only expense and averaging would bring it to less than$35 per month, it would be more advantageous to the client if they took a one-time deduction.

   i. The method of budgeting a medical expense may be changed in the middle of a certification period if the action does not cause a medical expense to be allowed as a deduction more than once and does not reduce the medical expense deduction already budgeted.

Example: A household incurs an expense of $1800 and chooses to have it averaged over the 6-month certification period of January through June. Four months later, the household asks that the remaining balance of $600 be allowed in May. The worker may make the budgeting change.

ii. In Medicaid spend down cases, the spend-down amount may be averaged over the months it is intended to cover or, if the household has a history of meeting the spend-down in the first month, it may all be allowed in one month. A MA case has a six-month spend-down period. The case is re-approved for MA in January with a spend-down of $300. The household has a history of meeting that amount.

Example: The $300 spend-down may be averaged over the six-month SNAP certification period beginning in January or, if the household has a history of meeting the spend-down in the first month, it may all be allowed in January.

4. Conversion of Deductions

The income conversion procedure, stated in SNAP SB Section 13, shall also apply to expenses billed on a weekly or bi-weekly basis.

5. Change Reporting Requirements

Households are not required to report changes in their medical expenses during their certification period. Additionally, if a household does report and verify a decrease in medical expenses, the excess medical deduction should not be reduced between recertifications. All reported and verified increases in deductible expenses must continue to be processed between recertifications and all changes in deductions must be processed at recertification.

6. Renegotiated Agreement

Medical expenses may be allowed as a deduction in accordance with a renegotiated repayment agreement.

Example: A household made an agreement in January to pay $100 a month for 10 months. The household made timely payments for January and February. Due to a change in circumstances, the household was unable to make payments in March and April. In May, the household renegotiated the payments with the same provider to pay the balance of $800 in equal amounts of $80 over the next 10 months. The renegotiated amount may be allowed as a deduction, as long as no amount of the expense is allowed twice. Assume the worker continued to allow the $100 deduction during March and April. In May the worker would consider a remaining balance of $600 rather than $800 and allow an $80 a month deduction until the $600 is paid.

i. A medical expense would continue to be allowed as a deduction if the balance is paid earlier than specified in the initial agreement.

Example: A household made an agreement in January to pay $100 a month for 10 months. The household makes regular payments. In June, the household receives extra money and decides to pay the remaining balance of $500. The worker must cease the deduction at the next recertification.

7. Reasonable Estimates

Households eligible for the excess medical deduction must be allowed at certification to give a reasonable estimate of the medical expenses they expect to incur during the certification period.

To receive the medical expense deduction, households are required to report and verify all medical expenses at the time of certification and recertification. The household's monthly medical deduction for its certification period is based on the information reported by the household.

a. This includes any anticipated changes that can be reasonably anticipated based on available information about the member's medical condition, public or private medical insurance coverage and reimbursements, and the current verified medical expenses incurred by the member.

b. If the household reports a medical expense at certification or recertification but cannot verify the expense at that time, and if the amount of the expense cannot be reasonably anticipated based on the available information, the expense is considered at the time the amount of the expense is verified. The following should be considered when dealing with medical deductions for the purpose of SNAP eligibility:

Households are not required to report any changes in medical expenses during the certification period.

(1) Households may choose to report any changes in medical expenses during the certification period. If the household voluntarily reports a change in medical expenses, the local district must take appropriate action to increase benefits, if verification is obtained. If the change decreases benefits, the reduction must not be made during the certification period. A change reported medical expense resulting in a decrease must be made at recertification even if it is not verified (see SNAP Section 6).

(2) When a change in medical expenses is reported from a source other than the SNAP household, the local district must take the action to increase benefits, only if the action can be taken without contacting the household for further information or verification. The household must be informed about the changes in the SNAP benefit in accordance with the notice requirements in SNAP Section 7.

(3) Those changes learned from a source other than the household which are not verified upon receipt and therefore necessitate contact with the household for verification purposes, are not acted upon until the household voluntarily reports or is recertified by the local district.

(4) When a change in medical expenses that would increase benefits is voluntarily reported on the Periodic Report and the household provides no proof of the change, then the household must meet the verification requirements outlined in SNAP Section 6. The household is advised of the additional verification requirement and that failure to provide the verification will result in medical deductions remaining at the current allotment.

(5) Medical expense changes reported on the Periodic Report that would decrease benefits are not acted on until the next recertification. The household must meet the normal verification requirements at recertification as outlined in SNAP Section 6. Any medical expense changes that go unreported on the Periodic Report do not result in over/under payments to SNAP cases.

References:

05 ADM-14 Food Stamp Budgeting: VISTA Payments and Medical Mileage Expenses

387.12 Income Deductions

387.14 Determination of Food Stamp Eligibility

02 ADM-7 Food Stamp Program Reauthorization Changes

06 INF-19 Medicare Part D Prescription Drug Plan and End of the Medicare-Approved Prescription Drug Discount Card Program Deduction

03 INF-43 Food Stamp Deductions for Medical Expenses

94 INF-58 FS: Medical Deductions Clarification

94 INF-23 Food Stamps: Deduction for Recurring Medical Expenses

GIS 11 TA/DC001 Reminder on the Budgeting of Restored FS benefits for Households with Individuals who Have Received a Retroactive Determination of SSI Eligibility

11/23/15 USDA Policy Memo- Deductible Excess Medical Expenses

F. Dependent Care Deductions

Dependent Care deductions are payments for the actual costs for the care of a child or other dependents (including an incapacitated adult) when necessary for a household member to accept or continue employment, seek employment in compliance with the job search criteria (or an equivalent effort by those not subject to job search), or attend training or pursue education which is preparatory to employment.

Examples of Dependent Care are (but not limited to) day care center, pre-school, babysitter, adult day care facility, before and after school programs and camps.

The Dependent Care deduction is uncapped. The full out-of-pocket amount paid for Dependent Care is the actual amount to be included as a deduction in the SNAP budget.

NOTE: Only actual unreimbursed costs for dependent care itself can be allowed~~.~~ Dependent care costs may include activity fees and the cost of transportation to and from dependent care facilities.

NOTE: Sometimes, dependent care deductions may need to be prorated. If a SNAP household includes an individual who would be disqualified for failure to obtain or provide a Social Security Number (SSN) or who is an ineligible non-citizen, and who is also an ineligible student (as described in SNAP SB Section 5), the SSN-disqualified/illegal non-citizen budgeting rules take precedence.

NOTE: According to these rules, the ineligible individual's income is pro-rated as described in SNAP SB Section 13; deductions for shelter costs and dependent care expenses are pro-rated (SNAP SB section 11); and the individual's resources are counted in their entirety (SNAP SB Section 17).

NOTE: Per the Food Stamp Reauthorization Act of 2002, districts will not reduce dependent care deductions between recertifications. Increases that are reported and verified must continue to be processed between certifications.

References:

387.12(d) Income Deductions

02 ADM-7 Food Stamp Program Reauthorization Changes

08 ADM-09 Farm Bill Reauthorization Provisions of Food Stamp Program for 2008

09 ADM-06 Expansion of Categorical Eligibility for Food Stamps for Households with Out-of pocket Dependent Care Expenses

G. Shelter Deductions

1. Definition

The Excess Shelter Deduction is the monthly shelter expenses in excess of 50 percent of the household's income after all other deductions have been allowed. The excess shelter deduction shall not exceed the maximum limit specified by USDA, unless the household contains a member who is elderly or disabled as defined in SNAP SB Section 5. Households with an elderly or disabled member shall receive the uncapped excess shelter allowance.

Households receiving SNAP while pending SSI, if determined eligible for SSI, are entitled to receive a SNAP uncapped excess shelter deduction and/or excess medical deduction, retroactive to the SNAP application date or SSI eligibility date, whichever is later. Benefits will be restored according to SNAP SB Section 11.

The maximum excess shelter deduction will be adjusted periodically by USDA to reflect changes in the shelter (exclusive of home ownership costs), fuel and utility components of the urban Consumer Price Index. Visit the OTDA GIS webpage to find the current SNAP Standards.

NOTE: The SNAP Standards are also available by accessing the desk guide section of either Centraport or the Employment and Income Support Programs (EISP) intranet page. Prior years' standards may be viewed by accessing one of the previous years' GIS messages available through Centraport or the EISP intranet page.

NOTE: If a SNAP household includes an individual who would be disqualified for failure to obtain or provide a Social Security Number (SSN), an ineligible ABAWD or who is an ineligible non-citizen, and who is also an ineligible student (as described in SNAP Section 5), the SSN-disqualified/ineligible ABAWD/illegal non-citizen budgeting rules take precedence.

The ineligible individual's income is prorated as described in SNAP SB Section 13; deductions for shelter costs and dependent care expenses are prorated (SNAP SB section 12); and the individual's resources are counted in their entirety (SNAP SB Section 17).

2. Shelter Costs

Shelter expenses shall include only the following:

A. Recurring charges. These include:

(1) Rent

NOTE: HUD rent payments made directly to a landlord by HUD are excluded as SNAP income. When such payments are made directly to a landlord, they are also not allowed as a SNAP shelter cost. The household's out-of-pocket rent expense is allowable as a SNAP shelter

cost. This includes Welfare-to-Work vouchers.

(2) Mortgage, including the mortgage cost of a home in Foreclosure, see GIS 14 TA/DC018, SNAP Budgeting Shelter Expense of Mortgage Costs when in Foreclosure or

(3) Other recurring charges leading to the ownership of the shelter, e.g., loan repayments for the purchase of a mobile home, including interest on such payments,

(4) Loan repayments where the home is the security or collateral for the loan, e.g., second mortgages or home equity loans.

NOTE: Penalty fees for being late in making payments on utilities, mortgages and/or property taxes are not to be included as a shelter cost and are not allowable as deductions for SNAP purposes.

(5) Property taxes, assessments, and insurance on the structure itself,

NOTE: Insurance costs for insuring furniture or personal belongings are not included.

To estimate what portion of a homeowner's policy premium is attributable to insurance on the structure, a standard figure of 55% of the total premium may be used when the actual cost cannot be determined.

i. The District will use the standard utility allowances (SUA) established by the State to cover the cost of heating and cooking fuel, cooling and electricity, water, sewage, garbage and trash collection, basic fee for telephone and fees charged by utility provider for initial installation.

NOTE: One-time deposits shall not be included as shelter costs.

ii. Costs of a home temporarily NOT occupied. The shelter costs of a home which the household does not occupy because of distant employment, illness, or abandonment caused by a natural disaster or casualty. To include the costs of a vacated home in the household's shelter costs, the household must:

(1) Intend to reoccupy the home;

(2) The current occupant of the home, if any, is not permitted to claim the shelter costs for SNAP purposes; and

(3) The home must not be leased or rented during the household's absence.

iii. Charges for repair of the home which was substantially damaged or destroyed due to a natural disaster such as fire or flood, excluding those repair costs that are subject to reimbursement by private or public relief

agencies, insurance, or any other source.

iv. Car payments and car insurance can be budgeted as a shelter cost for a homeless household who is living in their car.

3. TA Shelter Allowance Being Withheld

The following are SNAP budgeting procedures for a household whose TA shelter allowance is withheld pending a landlord's correction of building code deficiencies.

i. For a TA household whose TA shelter allowance is restricted (whether voluntarily or due to past money mismanagement), but the District withholds the restricted shelter payments from the landlord until the landlord makes required repairs:

(1) The TA shelter allowance is excluded as inaccessible income; and

(2) The SNAP shelter expense is the amount, if any, by which the actual rent exceeds the (withheld) TA shelter maximum. In other words, the household is still allowed as a SNAP shelter cost their portion of the rental expense which exceeds the maximum TA shelter allowance and which the household owes the landlord, from non-excluded income.

Example: The Miller household's rent is $400 per month. Their maximum TA shelter allowance, $384, is restricted and is currently withheld by the District pending the landlord's completion of required repairs. Consequently, the $384 TA shelter allowance is subtracted from the countable TA income in the SNAP budget. Only the $16 monthly excess shelter (which the Millers normally pay out of their TA pre-add allowance) is allowed as a SNAP shelter expense. This expense is allowed because it is incurred regardless of whether the household withholds it from the landlord or not. When the building repairs are completed and the District pays the previously withheld shelter allowances to the landlord, this payment is excluded income for SNAP purposes as a lump sum payment.

ii. For a TA household whose TA shelter allowance is not restricted (i.e., the household continues to receive the shelter allowance directly), the household may choose to withhold rent payment from their landlord.

However, because they continue to receive the TA shelter allowance, this continues to be counted as SNAP income. This household is also entitled to a SNAP shelter expense equal to the total shelter cost which they continue to incur, regardless of whether they withhold rent payments from their landlord.

Example: The Greens' rent is $400 per month. Their TA grant includes a $384 shelter allowance (unrestricted). Their SNAP budget includes the $384 TA shelter allowance as countable income and includes the $400 shelter expense. If the Greens subsequently withhold rent payments from their landlord, their SNAP budget will not be affected.

4. Homeless Shelter Deduction

   A standard estimate of shelter expenses must be used when determining the amount of SNAP benefits for homeless households which do not reside in a homeless shelter or receive free shelter for the entire month.

   a. The homeless shelter deduction is set forth in the annual SNAP Standards and Deductions.

   b. A homeless household must incur or anticipate incurring an expense, no matter how small, to be entitled to this deduction. Almost every such homeless household incurs some shelter or shelter related expenses. Therefore, the worker may assume costs are being incurred and is not required to document in the case record why a standard homeless shelter deduction is being allowed.

      However, if based on statements from the household or information from other sources, the worker determines the household is not incurring any expenses, it must be documented in the case record why the deduction is not being allowed.

   c. Actual expenses must be used as the shelter deduction for homeless households which verify incurred expenses which exceed the standard deduction.

5. Shelter Deduction When Rental Costs Are Paid In Advance

   The SNAP shelter deduction is given when an allowable shelter expense becomes due. When a household occupies a residence that has a monthly rent structure, the monthly amount of rent should be taken into consideration each month when the shelter deduction is determined without regard to when the rent is actually paid. Therefore, households electing to pay their rental costs in advance would still be eligible to receive the SNAP shelter deduction for the months that are covered by the advance payment.

   References:
   7 CFR 273.9

   387.12 Income Deductions

   14 INF-06 Temporary Assistance Questions and Answers

   91 ADM-25 Section 8: Amendment to Department Regulation 352.3(d) and the Effect on Public Assistance Households in Section 8 Rent Subsidy Programs

   99 INF-16 HUD Welfare-to-Work Housing Vouchers – Potential Rent Subsidy Assistance For Some Temporary Assistance Families

   91 INF-49 Food Stamps Quality Control Alert: Failure to Budget Correct Shelter Costs for Households Reporting Changes in HUD Rent Subsidies

02 INF-31 Temporary Assistance Questions and Answers

GIS 14 TA/DC018 SNAP Budgeting Shelter Expense of Mortgage Costs when in Foreclosure

GIS 11 TA/DC001 Reminder on the Budgeting of Restored FS benefits for Households with Individuals who Have Received a Retroactive Determination of SSI Eligibility

H. Standard Allowances for Heating/Cooling, Utilities and Telephone

The Department has established Standard Utility Allowances (SUA) for heating/cooling and utilities for each District's use in budgeting household shelter expenses. In addition, there is a statewide telephone standard allowance.

The Department shall review and adjust the SUA annually to determine changes in costs.

NOTE: The SNAP Standards are also available by accessing the desk guide section of either Centraport or the Employment and Income Supports Program (EISP) intranet page. Prior years' standards may be viewed by accessing one of the previous years' GIS messages available through Centraport or the EISP intranet page.

1. Standard Utilities Allowances (SUA)

   a. Utilities - Includes all utility costs other than heating/air conditioning. It includes telephone, electricity, cooking fuel, sewage, trash collection, water fees, fuel for heating hot water, and rental fee for a propane tank. It is available to households:

      (1) Billed separately from rent or mortgage for one or more of these utilities and

      (2) Which do not incur a cost for heating and/or air conditioning separate and apart from rent, or mortgage, and

      (3) Which have not received a HEAP payment of greater than $20 in the current month or within the previous 12 months. No separate inquiry regarding whether the household incurs a cost for telephone is required.

   b. Heating/Air Conditioning - Covers heating/air conditioning, utilities and telephone costs. It is available to households who have received a HEAP payment of greater than $20 in the current month or within the previous 12 months, or households billed separately from rent or mortgage on a regular basis for heating, and/or air conditioning their residence.

      (1) Supplemental Heating Costs - Utility costs for the operation of a space heater, electric blanket, heat lamp, a cooking stove, and the like when used as a supplemental heating source do not qualify a household for the HT/AC SUA. The cost of an electric blower for an oil or gas furnace also does not qualify a household for the HT/AC SUA.

      (2) Wood For Heating - Households which incur a cost for wood as their primary heat source are entitled to the HT/AC SUA. However, such a cost must be incurred for the wood itself, not for the costs of processing the wood. Therefore, a household which heats primarily by wood which it receives free is not entitled to the HT/AC SUA, even if it incurs costs for such expenses as a power saw, transporting the wood or for a cutting

permit. Such charges are also not allowable as SNAP shelter costs separately. (Aug./Sept./Oct. 1985 Consolidated Letter)

(3) Cooling Costs - The operation of devices used to air condition (i.e., to filter air and regulate its humidity and temperature) are considered cooling expenses for purposes of the HT/ACSUA. Costs for the operation of a fan are not considered cooling expenses for purposes of the HT/AC SUA.

c. Standard Telephone Allowance - This covers the cost of basic service plus tax for one telephone. Households which do not pay for heating and/or air conditioning or utilities separate and apart from rent, and are not eligible for HEAP, may use the SUA for telephone if a cost for a telephone, separate and apart from rent, is incurred.

2. Including A Heating/Air Conditioning SUA In the SNAP Budget

a. A heating/air conditioning SUA is automatically generated on ABEL budgets for NYC households residing in their own homes, paying private rent, living permanently in a hotel/motel, living in a commercial rooming house or receiving a rent supplement.

b. Workers in districts outside New York City must collect and code into WMS, information regarding shelter type and fuel type.

3. HUD And FMHA Utility Payments

HUD and FMHA utility payments are excluded as SNAP income.

a. Households that pay their own heat/air conditioning or utilities are entitled to claim such costs as SNAP shelter expenses.

b. Households billed separately and regularly by their landlord for actual usage of heat/air conditioning or utilities are entitled to the appropriate standard heating/cooling and/or utility allowance(s).

c. Households billed only for excess costs are entitled to claim only the excess costs as a shelter expense.

4. Households Eligible for $21.00 in HEAP

A HEAP regular benefit of $21.00 is available for income eligible households that make undesignated payments for heat in the form of rent in certain living arrangement categories. These living arrangements are:

a. Government subsidized housing with heat included in rent

b. Publicly operated or State-certified private nonprofit residential drug or alcoholic treatment facilities

c. Private nonprofit residential drug or alcoholic treatment facilities that are authorized as a SNAP retailer by USDA or are in receipt of a letter from the certifying State agency stating that the facility operates to further the goals of title XIX

d. Publicly operated or State-certified private nonprofit enriched housing

e. Publicly operated or State-certified private nonprofit residential group living facilities serving no more than 16 residents

f. Publicly operated State-certified private nonprofit supervised or supportive living arrangements; and

g. State-operated community residences

The above living arrangements are now eligible for the full SUA if they have received the $21 HEAP benefit during the current month or previous 12 months.

References:

387.12 Income and Deductions

02 ADM-7 Food Stamp Program Reauthorization Changes

92 ADM-47 HEAP and Eligibility for the Food Stamp Standard Utility Allowances (SUA's)

00 INF-18 Clarification of the Relationship between the Standard Utility Allowance (SUA) and Receipt of HEAP

GIS 14 TA/DC023 Farm Bill Changes to SNAP Standard Utility Allowance (SUA) Policy – Initial Draft Guidance

91 ADM-25 Section 8: Amendment to Department Regulation 352.3(d) and the Effect on Public Assistance Households in Section 8 Rent Subsidy Programs

ABEL Transmittal 08-2

SECTION 13: Determining Income

A. Definition

For the purpose of determining SNAP benefit eligibility the following definition applies:

1. Income

Household income includes all income earned and unearned from any source, excluding only those items specified in this Section.

B. Earned Income

Earned Income shall include:

1. Earnings as an Employee

a. All wages and salaries for services performed as an employee.

b. Additional funds provided for work-related expenses, if not excluded as reimbursement, as described in this section. For household members who are employed in the armed forces, the countable military earnings include but are not limited to the Basic Allowance for Housing (BAH), if received.

2. Self-Employment Income

a. The total gross income from a self-employment enterprise, including the total gain from the sale of any capital goods or equipment related to the business, [but] excluding the costs of doing business as described in this section.

b. Income derived from ownership of rental property is considered earned income from a self- employment enterprise if a member of the household is actively engaged in the management of the property for an average of 20 hours a week or more. If management of the property entails less than 20 hours a week, the rental income is considered unearned income.

c. Payments from a roomer or boarder.

3. Training Allowances

Training allowances from vocational and rehabilitation programs recognized by federal, State or local governments to the extent that they are not a reimbursement. Training allowances under Job Training Partnership Act are excluded from consideration as income.

4. Workforce Investment Act (WIA)

Earnings for individuals who are participating in on-the-job training programs under the Workforce Investment Act (WIA), which includes money paid under the WIA and money paid by the employer. However, WIA on-the-job training earnings received by household members under 19 years of age who are under the parental control of another adult household member, regardless of school attendance or enrollment, is excluded.

5. Youth Opportunity Program

Payments under the Youth Opportunity Program administered by the New York State Office for People With Developmental Disabilities, unless the payment is a reimbursement. However, the earned income of certain children is excluded.

6. Safety Net Assistance (SNA) Plan of Self-Support

Earned income disregarded for TA purposes under a SNA Plan of Self–Support is counted as earned income for SNAP purposes.

7. Subsidized Employment Income

All subsidized employment income, including Transitional Employment Advancement Program (TEAP), Transitional Jobs Program, Health Care Jobs Program and Green Jobs Corp Program shall be treated as earned income for SNAP purposes.

8. Payments Under Title I of the Domestic Volunteer Service Act of 1973

Payments under Title I (VISTA, University Year for Action, etc.) of the Domestic Volunteer Service Act of 1973 shall be considered earned income and subject to the earned income deduction. Food stamp recipients who have VISTA earnings excluded because they were receiving temporary assistance or food stamps when they joined VISTA will continue to have their VISTA income excluded. This exclusion of a food stamp recipient's VISTA income continues even if there are temporary (less than six month) interruptions in their SNAP participation.

References:

7 CFR 273.9(b) – Income and Deductions

387.10 - Income Standards

92 ADM-37 Home Relief (HR) Plan of Self-Support

05 ADM-14 Food Stamp Budgeting: VISTA Payments and Medical Mileage Expenses

94 INF-7 Treatment of Payments from Youth Education, Employment and Training Programs

12 INF-08 The Treatment of Subsidized Employment as Earned Income for the Food Stamp Program

C. Unearned Income

Unearned income includes, but is not limited to:

1. Assistance Payments

a. From federal or federally aided programs, such as Supplemental Security Income (SSI) or Family Assistance (FA) payments, or other assistance programs based on need, such as Safety Net Assistance (SNA) or Family Subsistence Supplemental Allowance Payments (SNAPSA) paid by the Armed Forces.

NOTE: The "visitor's allowance" (See TASB Chapter 13) paid to a parent whose SNAP household does not include the child is not counted as TA income to that parent's SNAP case.

Exception - A one-time and special assistance payment is excluded for SNAP budgeting purposes if the payment meets one of the following criteria:

(1) The payment is a TANF diversion payment, which are nonrecurrent, short-term benefits that are designed to deal with a specific crisis situation or episode of need, are not intended to meet ongoing needs, will not extend beyond four months, and the family did not receive a regular TANF payment in the current or prior month; or

(2) The payment is a reimbursement for past or future expenses, to the extent that it does not exceed actual expenses, is provided for a specific purpose other than normal living expenses and is used for the purpose intended; or

(3) The payment is a non-recurrent lump sum, such as a retroactive TA payment. For SNAP benefit eligibility and budgeting purposes, a lump sum is excluded as income, but counted as a resource in the month received.

b. Derived from programs which require, as a condition of eligibility, the actual performance of work without compensation other than the assistance payments.

c. An out-of-state TA payment that was intended to meet basic needs must be counted as unearned income when determining a household's SNAP benefit amount for the month in which the TA payment was received.

2. Annuities, pensions, retirement, veterans' or disability benefits, workers' or unemployment compensation, old-age, survivors, or Social Security benefits and strike benefits.

Note: Retirement accounts that were previously not accessible to the household that become accessible to the household, and in which the individual begins to receive payments or in which the individual chooses early withdrawal would qualify as unearned income. Retirement accounts such as IRAs, that become

accessible to the household, shall be treated as unearned income in the month received or dispersed over 12 months at district discretion.

3. **Gross income (minus the cost of doing business) derived from rental property in which a household member is not actively engaged in the management of the property at least 20 hours a week.**

4. **Support or Alimony Payments**
   a. Payments made directly to the household from non-household members: Child support is considered the income of the person to whom it is legally obligated, usually the custodial parent. The total amount of the child support shall be counted as income to the person to whom it is legally obligated regardless of whether the child is a household member or non-household member.

   b. Only the IV-D child support pass-through which was received by the household within normal processing time frames is countable as income. The pass-through payment is counted as SNAP income in the month following the month in which the household receives the pass-through. Additional payments of arrears received in a non-recurring lump sum are not considered income. However, if the arrears payments are recurring and will be received in multiple months, the payments must be added to the normal child support amount and counted as unearned income. However, these support payments for previous months are counted as resources for non-categorially eligible SNAP households.

5. **Adoption Subsidy Payments**

   Adopted children are required members of a SNAP household. The amount of adoption subsidy payments in excess of allowable, verified, reimbursable, expenses shall be considered unearned income.

   a. Reimbursements for normal household living expenses such as rent or mortgage, utilities, personal clothing, or food eaten at home are a gain or benefit to the household and, therefore, may <u>not</u> be excluded as income. Reimbursement for any other expense may be excluded as income as set forth below:
      (1) Reimbursements for past or future expenses, to the extent that they do not exceed actual expenses incurred, may be excluded as income.

      (2) To be excluded as a reimbursement, a payment must be provided for a specific identified expense, other than normal living expenses, and used for the purpose intended. When a reimbursement, including a flat allowance (such as an adoption subsidy), covers multiple expenses, each expense does not have to be separately identified as long as none of the reimbursement covers normal living expenses. The amount by which a reimbursement exceeds the actual incurred expense shall be counted as income.

   Example: A SNAP household that is receiving an adoption subsidy payment of $500 per month. If the household has verified reimbursable expenses –

e.g., school activities and music lessons - that average $75 per month, then $425 of that adoption subsidy payment would be considered to be income when assessing eligibility and when calculating a SNAP benefit.

6. Foster care/KinGap Payments

Foster children are NOT required members of a SNAP household. The household has the option of including foster child/children in their SNAP case. When foster child/children are included in the SNAP case any foster care/KinGap payments that are in excess of allowable, verifiable, reimbursable expenses shall be considered unearned income. When foster child/children are not included in the SNAP case the associated foster care/KinGap payments shall be excluded as income.

a. Reimbursements for normal household living expenses such as rent or mortgage, utilities, personal clothing, or food eaten at home are a gain or benefit to the household and, therefore, may not be excluded as income. Reimbursement for *any other expense* may be excluded as income as set forth below:
   (1) Where the child is included in the SNAP household, only that portion of the foster care payments that exceeds the sum of all the excluded reimbursements is counted as income.

   (2) To be excluded as a reimbursement, a payment must be provided for a specific identified expense, other than normal living expenses, and used for the purpose intended. When a reimbursement, including a flat allowance, covers multiple expenses, each expense does not have to be separately identified as long as none of the reimbursement covers normal living expenses. The amount by which a reimbursement exceeds the actual incurred expense shall be counted as income.

7. Military pay, excluding additional pay based on deployment to a combat zone, that is made available to a household by a service person who is not a member of the SNAP household.

8. Veterans' educational benefits for general living expenses

a. Dividends, except dividends from insurance policies

b. Interest, except interest from funeral agreements or accounts. This includes interest earned from an excluded retirement account

c. Royalties

9. Monies which are withdrawn or dividends which are or could be received by a household from trust funds are considered excludable resources. Such trust withdrawals shall be considered income unless otherwise exempt under Section 12.

Dividends which the household has the option of either receiving as income or reinvesting in the trust are considered as income in the month they become available to the household, unless otherwise exempt.

11. **FEMA payments to homeless people to pay for rent, mortgage, food, and utility assistance when there is no major disaster or emergency.**

12. **All other direct money payments from any source which can be considered a gain or benefit.**

    This includes income that is legally obligated to the household but diverted by the household. For example, Social Security benefits that are diverted by the recipient into a Supplemental Needs Trust account remain countable as income to the household.

References:

387.10 - Income Standards

7 CFR 273.9(b)(2) – Unearned Income

11 ADM-05 Temporary Assistance Budgeting: Treatment of Kinship Guardianship Assistance Program (KinGAP) Payments

08 ADM-04 Treatment of Income From Adoption Subsidy Payments and Foster Care Payments in Determining Food Stamp Program Eligibility and Benefit Amount

09 ADM-19 Changes to Assignment of Support Rights and Child Support Distribution for Recipients of Temporary Assistance

02 ADM-07 Food Stamp Program Reauthorization Changes

01 ADM-07 Food Stamp and Temporary Assistance Treatment of Family Subsistence Supplemental Allowance Payments

00 INF-16 Temporary Assistance (TA), Food Stamps (SNAP), and Medicaid (MA) Budgeting: Out-of-State Temporary Assistance Payment PA Budgeting and Case Category for Joint Custody Cases

D. Income Of Ineligible Individuals

1. Intentional Program Violations, Individuals Sanctioned For Failure To Comply With Work Requirements Or Fleeing Felons

The earned or unearned income of an individuals determined ineligible because of disqualification for Intentional Program Violation, for failing to comply with a SNAP work requirement or because of fleeing felon status must be counted in its entirety to the remaining household members.

2. Ineligible Aliens, Ineligible ABAWDs, or An Individual Who Refuses To Apply For Or Provide A Social Security Number

A pro rata share of the earned or unearned income of an individual determined ineligible for being an ineligible ABAWD or ineligible alien or for refusal to apply for or provide an SSN shall be counted as income to the remaining household members. This pro rata share is calculated as follows:

a. Subtract allowable income exclusions from the ineligible individual's income;

b. Divide the remaining countable income evenly among the household members including the ineligible individuals;

c. Subtract the ineligible individual's share; and

d. Count all but the ineligible individual's share as income to the remaining household members.

e. Resources. The resources of such ineligible members shall continue to count in their entirety to the remaining household members for households not considered categorically eligible for SNAP,

f. Deductible expenses. The 20 percent earned income deduction shall apply to the prorated income earned by an Ineligible Alien, Ineligible ABAWD or an individual who refuses to apply for or provide an SSN which is attributed to their household. That portion of the household's allowable child support payment, shelter and dependent care expenses which are either paid by or billed to the ineligible members shall be divided evenly among the households' members including the ineligible members. All but the ineligible members' share is counted as a deductible child support payment, shelter or dependent care expense for the remaining household members.

   The ineligible alien, ineligible ABAWD, or an individual who refuses to apply for or provide an SSN shall not be included when determining the household's size for the purposes of:

   1. Assigning a benefit level to the household;

   2. Assigning a standard deduction to the household;

3. Comparing the household's monthly income with the income eligibility standards; or

4. Comparing the household's resources with the resource eligibility limits.

3. Ineligible Student

The earned or unearned income of an individual determined to be an ineligible student cannot be considered available in determining household eligibility or benefit levels.

NOTE: Cash payments to a participating household by an ineligible student or work registration sanctioned individual are considered income.

NOTE: If a SNAP household includes an individual who is disqualified as an ineligible ABAWD, an ineligible alien or for failure to provide a SSN according to paragraph 2, above and who is also an ineligible student (as described in Section 5), the budgeting rules described in paragraph 2, above take precedence.

References:

387.10 - Income Standards
387.16 – Special Provisions for Household Circumstances

E. Sponsored non-Citizens And Income Deeming

Most non-citizens that immigrate to the United States because of family relationships or certain employer relationships must have a sponsor. Sponsors must prove that they can provide enough financial support to their sponsored non-citizens, so that they do not have to rely on public benefits. In determining a sponsored non-citizen's eligibility for SNAP benefits, a portion of the sponsor's income and resources are deemed as available to the sponsored non-citizen.

1. Which non-citizens are subject to sponsor deeming requirements?

The deeming requirements apply only to a SNAP eligible Lawful Permanent Resident (LPR) whose sponsor has signed a legally binding affidavit of support (known as 213A affidavit-Form I-864 or I-864A) on or after December 19, 1997. The only LPRs with legally enforceable affidavits are family-sponsored LPRs, including immediate relatives, and a few employment-based LPRs who came to the United States to work for relatives or in companies partially owned (more than five percent) by relatives AND who were beneficiaries of an I-130 Petition (Alien Relative Petition) or I-140 Petition (Immigrant Petition for Alien Worker) and applied for an adjustment to LPR status on or after December 19, 1997.

NOTE: Some family-based non-citizens who became LPRs after December 19, 1997, will have an I-134 Affidavit of Support that is not legally binding and therefore are not subject to sponsor deeming, because their application for LPR status was filed before that date.

2. Which non-citizens are exempt from sponsor deeming requirements?

The following groups are not subject to deeming rules:

a. Children - Sponsor deeming does not apply to children who are under age 18 regardless of when they entered the United States

b. Battered Spouse or Child Exception - Deeming also does not apply during any 12-month period if the non-citizen is a battered spouse, battered child or parent, or child of a battered person provided the battered non-citizen lives in a separate household from the person responsible for the battery. The exemption can be extended for additional 12-month periods if the non-citizen demonstrates that the battery is recognized by a court, administrative order, or by the USCIS and if the district determines that the battery has a substantial connection to the need for benefits.

c. Non-citizens without sponsors - In general, qualified non-citizens who enter the country under provisions of immigration law other than the family-sponsored categories do not have sponsors that have a legal obligation to support them. Included in this group are refugees, asylees, persons granted withholding of deportation, Amerasians, and Cuban or Haitian entrants

d. Non-citizens whose sponsor has not signed a legally binding affidavit of support - Non-citizens, such as refugees, who are sponsored by an organization or group also fall into this category.

e. Indigent Exception. - If the sum of the non-citizen's household's own income and any cash or in-kind assistance provided by the sponsor or others is less than 130% of the poverty level for the non-citizen's household, the non-citizen is considered indigent. The amount of the income and resources deemed to an indigent non-citizen cannot exceed the amount actually provided for up to a 12-month period. Each indigence determination is effective for 12 months and may be renewed for additional 12-month periods.

f. Sponsor in same SNAP household. If the sponsor lives in the same household as the non-citizen, deeming does not apply because the sponsor's income and resources are already counted. However, there is no deeming exemption if the sponsor receives SNAP benefits in another household.

g. Ineligible Member. If the sponsored non-citizen is ineligible for SNAP benefits because of immigration status (e.g., is not a qualified non-citizen or is an LPR without five years of residency), the sponsor's income is not deemed to other eligible members of the non-citizen's household.

3. How long sponsor deeming lasts?

Deeming of the sponsor's income and resources to the sponsored non-citizen lasts until the sponsored non-citizen:

a. Becomes a naturalized citizen;

b. Can be credited with 40 qualifying quarters of work;

c. Abandons LPR and leaves the US;

d. Dies or the sponsor dies.

4. How much of the sponsor's resources are deemed to the non-citizen?

If deeming applies, all but $1,500 of resources (as defined according to regular SNAP rules) of the sponsor and the sponsor's spouse are deemed to the sponsored non-citizen.

Note: If the household is categorically eligible then the resources of the sponsoring household are not counted for SNAP.

5. How much of the sponsor's income is deemed to the sponsored non-citizen?

The amount of the sponsor's income attributed to the sponsored non-citizen is the total monthly earned and unearned income of the sponsor and sponsor's spouse, minus 20% of their earned income and minus 130% of the poverty level for a household equal in size to the sponsor's household: sponsor, sponsor's spouse if living with the sponsor, and any other person who is a dependent or receives support from the sponsor or sponsor's spouse. If the sponsor signs an

affidavit of support for more than one non-citizen, the sponsor's income is prorated among the sponsored non-citizens. Income is defined according to regular SNAP rules.

6. When the non-citizen's sponsor refuses to provide information?

Non-citizens who are exempt from deeming do not need to provide information about the sponsor's income and resources. However, an eligible non-citizen who is subject to deeming and is receiving support from a sponsor is responsible for obtaining the cooperation of the sponsor and for providing the district with the information and documentation necessary to calculate deemed income and resources at the time of application and recertification. The district must assist the household in obtaining the necessary verification. If necessary, district staff can obtain the sponsor’s name, address and Social Security Number through SAVE. Districts are reminded that indigent non-citizens need to verify only the amount of the income and resources actually provided by their sponsors. They must not deny an non-citizen's application for SNAP benefits on the basis of the sponsor's non-cooperation, if it can be determined that the sponsor is providing zero support to the non-citizen.

7. What is the sponsor’s liability?

A sponsor who has signed a legally binding affidavit of support on or after December 19, 1997 for a non-citizen they sponsor may be liable for the value of SNAP benefits received by that sponsored non-citizen during the period of time the affidavit of support is in effect. The sponsor or the sponsor's estate is liable to repay the cost of these benefits for ten years after benefits were last received but is not liable for benefits received by the sponsored non-citizen during any period of time that the sponsor receives SNAP benefits.

8. What is the district's responsibility to enforce sponsor liability?

Districts must request reimbursement from sponsors who have signed legally binding affidavits of support on or after December 19, 1997, for any SNAP benefits received by the non-citizen during the period of time the affidavit is in effect (until the non-citizen becomes a citizen, permanently leaves the country, or can be credited with 40 qualifying quarters of work or until the sponsor dies).

Prior to pursuing a request for reimbursement, the district must first verify that the non-citizen's sponsor is subject to a liability by determining if the sponsor signed a legally binding Form I-864 affidavit of support, if the sponsor received SNAP benefits while the sponsorship agreement was in effect, or if the affidavit-of-support period has ended. If the liability is not paid, districts need not pursue legal action against the sponsor in federal or State courts. In addition, benefits issued correctly to sponsored non-citizens cannot be considered as SNAP benefit overpayments under the Food Stamp Act. Districts may not keep any portion of liabilities recouped from sponsors.

Pending verification, the district cannot delay, deny, reduce or terminate the individual's eligibility for benefits on the basis of the individual's immigration status.

9. District's responsibility for reporting when it determines a non-citizen "indigent"

Households that the district has determined indigent should be informed that the names and addresses of the indigent sponsored non-citizen and the sponsor will be provided to the NYS OTDA, for reporting to USCIS. Districts should send the written notice, which should include the reference, "Determinations under 421(e) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996", to:

New York State Office of Temporary and Disability Assistance
Division of Temporary Assistance
40 North Pearl Street, 11th floor
Albany, NY 12243

References:

387.10 - Income Standards

7 CFR 273.4 - Citizenship and Alien Status

99 ADM-2 Alien Sponsorship - Deeming of Sponsor's Income and Resources

02 ADM-07 Food Stamp Program Reauthorization Changes

03 INF-14 Food Stamp Program Eligibility for Aliens

F. Non-Household Individuals

1. Income Earned by Non-Household Members

The income of non-household individual(s) as described in SNAPSB Section 5 must not be considered available to the household to determine household eligibility and benefit levels.

Cash payments to a participating household by non-household individuals, however, are considered income.

For example, when an individual is away from the household for military assignment all or part of the absent person's pay will be sent directly to the family (or deposited directly into their bank account) by the military. Any income paid directly to the household by the absent person or sent to the household by the military is considered unearned income. Such income cannot be counted in determining eligibility or benefit levels until it is determined when and what amount will be received.

However, effective October 1, 2004, federal law excludes from consideration as income any additional pay received by military service persons as a result of deployment to a combat zone.

If the amount of military pay that the combat-duty service person is making available is equal to or less than the amount the household was receiving from the service person prior to deployment to a combat zone, all of the available military pay would be counted as income to the SNAP household. Any portion of the amount that exceeds the amount the household was receiving prior to deployment of the military person to a combat zone must be excluded when determining the household's income for SNAP purposes.

2. Income Earned by Household and Non-Household Members

When the earned income of one or more household members and the earned income of a non-household individual(s) are combined into one wage, the income of the household members shall be determined as follows:

a. If the household's share can be identified, the district shall count that portion due to the household as earned income.
b. If the household's share cannot be identified, the district must prorate the earned income among all those jointly receiving the wage and count that prorated portion to the household.

NOTE: For determining deductions see SNAP SB Section 12.

References:

387.16 - Special provisions for household circumstances

7 CFR 273.4(c)(3)(iv) - Citizenship and Alien Status

GIS 05TA/DC002 Exclusion of Military Combat Pay

08 ADM-09 Farm Bill Reauthorization Provisions of Food Stamp Program for 2008

G. Income Exclusions

Only the following items shall be excluded from household income:

1. Monies Withheld or Returned to Repay Prior Overpayments From The Same Income Source

Monies withheld from an assistance payment, earned income, or other income source, or monies received from any income source, which are voluntarily or involuntarily returned, to repay a prior overpayment received from that income source shall not be counted as income to the household, provided that the overpayment was not otherwise excluded.

Reduction of public assistance benefits: if the benefits of a household that is receiving public assistance are reduced under a Federal, State, or local means-tested public assistance program because of the failure of a SNAP household member to perform an action required under the assistance program or for fraud, the State agency shall not increase the household's SNAP allotment as a result of the decrease in income.

NOTE: However, TA or UIB recoupments of overpayments resulting from an intentional program violation (IPV) are NOT excluded. A TA IPV is defined for this purpose as conviction by a court, or recipient admission of fraudulent receipt of TA benefits.

NOTE: Money recouped from a TA or UIB grant to recover advances (e.g., to prevent utility shut- offs) shall not be excluded since the advance was excluded at time of occurrence.

NOTE: Recoupments of SSI and SSD amounts would be counted if the recoupment is a result of an IPV imposed by SSA.

2. Child Support Payments

a. Child support payments received by TA recipients which must be transferred to the Title IV-D agency to maintain TA eligibility.

NOTE: The first $100 of child support payments or $200 for a household with more than one child made to IV-D and then returned to the recipient is countable as income for SNAP purposes. Only the IV-D child support pass-through which was received by the household within normal processing time frames is countable as income.

b. Both legally obligated and informal child support payments (current and arrears) made by a SNAP household member to non-household members shall be treated as income exclusions. Local districts should enter total gross income received and amounts of child support paid by SNAP households into the ABEL input screens. ABEL will subtract the child support payments from total household gross monthly income before

comparing income to the applicable gross and net income limits. Child support payments are excluded when screening for Expedited Processing. .

c. In cases where legally obligated or informal child support is paid to a non-household member, the child support is excluded from the payer's SNAP income. However, the income exclusion is **not** allowed when the recipient of the child support payment is included in the same SNAP household with the payer of the child support.

Districts also are reminded that, in joint custody situations, only one of the parents or guardians can have the children included in their SNAP household for a given month. GIS 05 TA/DC006 (Rev. 7/01).

3. In-Kind Benefits

Any non-monetary gain or benefit received by the household, regardless of source. Some examples of in-kind benefits are meals, clothing, housing, and produce from a garden.

4. Vendor Payments

Money payments that are not paid (or payable) directly to the household but which are paid to a third party by someone outside the household for an expense incurred by the household. This vendor payment can be made by an individual or an organization outside of the household to the SNAP household's creditors or those providing a service. To be excluded, the vendor payment must not be money that is legally obligated to the household but diverted by the payer to a third party for a household expense. Some examples of excluded vendor payments are:

a. Rent or mortgage payments made to a landlord or mortgagee by the Department of Housing and Urban Development (HUD), or by other housing authorities. When such payments are made directly to a landlord, they are also not allowed as a SNAP shelter cost. The household's out of pocket rent expense is allowable as a SNAP shelter cost.

b. Payments made directly to the landlord by a relative or friend outside the household for the household's rent.

c. Housing provided to an employee by an employer.

d. TA payments, over and above the normal grant, made to a third party (even if the household is given the option to receive cash), such as emergency payments or "special grants" for moving.

NOTE: TA payments for excess shelter costs which a local district adds on a recurring, non-expiring basis to the state-approved standard of need are not excludable, even if the payments are made to a third party. However, emergency shelter allowances for persons with AIDS, or HIV-related illnesses, are exempt as income.

e. Payments specified by court order, or other legally binding agreement, to be made directly to a third party rather than to the household are excluded as income to the household which would otherwise have received payments.

f. Payments made by an insurance company to a hospital for care of a household member.

g. TA restaurant allowances which are paid by voucher or directly to the vendor by any other means

NOTE: Restaurant allowances paid directly to recipients in a separate check are not excluded as SNAP income.

h. The amount of a TA payment which is over and above the maximum TA shelter allowance for the family size paid directly to a third party for the cost of providing homeless transitional housing.

i. The entire amount of the TA shelter payment paid to a domestic violence shelter for victims of domestic violence. The SNAP shelter expense of a TA household residing in a domestic violence shelter is only their out-of-pocket cost, if any, that they are required to pay from other income.

j. Any Emergency TA vendor payment to a third party made on behalf of a migrant or seasonal farmworker household while the household is in the job stream. Examples are emergency vendor payments for housing or transportation.

NOTE: Payments that are legally obligated and otherwise payable to the household but are diverted by the provider of the payment to a third party for a household expense. Some examples of payments which are counted as income, even though money is not received directly by the household, are: (1) Wages garnished by an employer and (2) Money deducted from a court-ordered support or alimony payment to a third party for a household expense.

5. Income From Private Non-Profit Charitable Organizations

Need-based cash donations received from one or more private non-profit charitable organizations to the extent that such payments do not exceed a total of $300 in a federal fiscal year quarter.

NOTE: For this purpose, the quarter year period is defined as a quarter of a federal fiscal year, which starts in October.

6. Irregular Income

Any income in the certification period that is received too infrequently to be reasonably anticipated, but not in excess of $30 per quarter.

7. Educational Income

Educational assistance includes but is not limited to grants, including work study grants; fellowships; loans and scholarships. All federal educational loans are excluded as income. Non-federal educational loans are excluded as income except educational loans on which repayment is deferred greater than 60 days after receipt of the loan. Only the amount that is designated for living expenses counts in calculating SNAP benefits (e.g, the amount that the loan exceeds the client's tuition, fees, books, supplies, childcare and other earmarked educational expenses). Reimbursements for normal household living expenses such as rent or mortgage, personal clothing, or food eaten at home are a gain or benefit and therefore are not excluded. In order to be excluded, income assistance must be:

a) Awarded to a household member enrolled at a :
    1. Recognized institution of post-secondary education
    2. School for the handicapped
    3. Vocational education program
    4. Program that provides for obtaining a secondary school diploma or equivalent
b) Used for the following allowable expenses:
    1. Tuition
    2. Mandatory school fees
    3. Books
    4. Supplies
    5. Transportation
    6. Miscellaneous personal expenses, other than normal living expenses, of the student incidental to attending a school, institution or program,
    7. Dependent care. Amounts excluded for dependent care shall not also be excluded as a dependent care reimbursement. Dependent care costs which exceed the amount excluded from income shall be deducted as a dependent care expense.
    8. Origination fees and insurance premiums on educational loans

NOTE: Educational income exclusions must be incurred or anticipated for the period the educational income is intended to cover regardless of when the educational income is actually received. If the student uses other income sources to pay for allowable educational expenses before the educational income is received, the exclusions to cover the expenses shall be allowed when the educational income is received.

8. Loans

All loans, including loans from private individuals as well as commercial institutions, other than non-federal educational loans on which repayment is

deferred. Only the amount that is designated for living expenses counts in calculating SNAP benefits (e.g, the amount that the loan exceeds the client's tuition, fees, books, supplies, childcare, and other earmarked educational expenses). A loan on which repayment must begin within 60 days after receipt of the loan shall not be considered a deferred repayment loan.

9. Reimbursements

Reimbursements for past or future expenses that do not exceed actual expenses and are not a gain or benefit to the household.

a. To be excluded, the payments must be provided specifically for an identified expense, other than normal living expenses, and used for the purpose intended.

NOTE: Reimbursements for normal household living expenses such as rent or mortgage, personal clothing, or food eaten at home are a gain or benefit and, therefore, are not excluded.

b. Multiple Expenses - When a reimbursement, including a flat allowance, covers multiple expenses, it is not necessary to identify each expense separately, provided none of the reimbursement covers normal living expenses. The amount by which a reimbursement exceeds the actual expenses is counted as income. However, reimbursement must not be considered to exceed actual expenses unless the provider or the household states the amount is excessive.

c. Examples - Reimbursements for the following type of expenses are excluded:

(1) Job or training related expenses such as travel, per diems, uniforms, and transportation to and from the job or training site.

(2) Travel expenses incurred by migrant workers.

(3) Expenses of TA participants of work experience programs or community service programs if they are not included in the TA budget as an item of need.

(4) Out-of-pocket expenses of volunteers incurred in the course of their work. This includes HIV Peer Education Stipends.

(5) Medical or dependent care reimbursements. Child Care reimbursements are excluded as income whether paid as direct payment or vendor payment by the local district. For information on Child Day Care payments and the dependent care deduction see Section 11.

NOTE: In mixed SNAP households where the TA members are issued a special TA allowance for day care and the day care is provided by a non-TA member of the SNAP household, the allowance is counted as earned income to the day care provider. The allowance is considered

excludable income to the TA members by being a reimbursement. Any dependent care costs the TA members pay to the day care provider above the special allowance are not allowable as a dependent care deduction because the provider is a SNAP household member.

(6) Title XX Services (387.11)

(7) TA refrigerator rental allowance for homeless TA families in hotels/motels.

(8) Payments made to operators of family type homes for adults to enable payment for certain special needs of residents of such facilities.

(9) Payments under P.L. 93-288, Section 312(d), the Disaster Relief Act of 1974, as amended by P.L. 100-707, Section 105(i), the Disaster Relief and Emergency Assistance Amendments of 1988, 11/23/88. This exclusion applies to Federal Assistance provided to persons directly affected, such as Disaster Unemployment Assistance, and to comparable disaster assistance provided by States, local governments, and disaster assistance organizations.

Also excluded are Federal Emergency Management Assistance (FEMA) subsidies to households to pay for temporary housing after a disaster.

NOTE: Monies that exceed the cost of the housing that are not returned to FEMA would be income. However, payments made to homeless people to pay for rent, mortgage, food, and utility assistance when there is no major disaster or emergency is not excluded under this provision.

(10) Grants of Assistance for Guide Dogs. However, if a SNAP client can verify that the cost of maintaining the guide dog exceeds the grant, the amount over and above the grant can be added to the client's medical deductions as explained in SNAPSB Section 12.

10. Third-Party Beneficiary

Monies received and used for the care and maintenance of a third-party beneficiary who is not a household member. If the intended beneficiaries of a single payment are both household and non-household members, any identifiable portion of the payment intended and used for the care and maintenance of the non-household member shall be excluded.

If the non-household member's portion cannot be easily identified, the payment shall be evenly prorated among intended beneficiaries; the non-household member's prorated share or the amount actually used for the non-household member's care and maintenance, whichever is less, shall be excluded.

NOTE: The "visitor's allowance" paid to the parent whose SNAP household does not include the child is not counted as TA income to that parent's SNAP case.

NOTE: When a TA essential person is not a member of an TA-SNAP household and is not a member of another SNAP household then his/her portion of the TA allowances other than TA shelter and fuel allowances must be excluded as income to the SNAP household of which he is not a member. These exclusions apply whether his portion of the grant is issued separately or in the TA grant.

11. Earned Income Of Students

The earned income of students who are members of the household and are enrolled as elementary or high school students, including persons pursuing a high school equivalency diploma (GED) at least half-time that are less than 18 years old. This exclusion extends through the end of the month in which the student turns 18. The exclusion will continue during semester or vacation breaks provided the child's enrollment resumes following the break. If the child's earnings or amount of work performed cannot be separated from that of other household members, the total earnings shall be prorated equally among the working members and the student's pro rata share excluded. This exclusion also applies to migrant workers.

12. Non-Recurring Lump Sum Payments

This includes but is not limited to the following:

a. Income tax refunds, rebates or credits,

b. Retroactive lump sum Social Security, SSI, TA, Railroad Retirement benefits, retroactive lump-sum insurance settlements or other payments, or

c. Any additional child support pass-through payments which represent support collections for previous months are excluded as lump sum payments unless the arrears are being paid over multiple months. If the arrears are received on a recurring basis they are counted as unearned income and combined with the normal monthly child support amount.

d. Refunds of security deposits on rental property or utilities.

NOTE: These payments count as resources in the month received unless specifically excluded from consideration as a resource.

13. Federal And State Earned Income Tax Credits (EITC)

Advance payments of Federal EITC are excluded in the month received. Federal and State EITC paid in the form of a lump sum at the end of the year also are excluded.

14. Individual Development Accounts (IDAs)

Contributions made by a local district or a nonprofit organization to an individual development account to enable a SNAP household member to save for postsecondary education, first home purchase or business capitalization are excluded. Withdrawals from an IDA for purposes other than postsecondary education, home purchase or business capitalization are counted, less any penalties assessed, as unearned income in the month withdrawn. Any remaining balance in the account would be considered an available resource.

15. Housing And Urban Development (HUD) Community Development Block Grants are excluded.

16. German Reparation Payments (From The Federal Republic Of Germany) And Austrian General Social Insurance Payments are excluded.

17. Disaster Relief Employment

Income received under the National Emergency Grant program is excluded.

18. Domestic Volunteer Services Act Of 1973 (P.L. 93-113), Title I

Payments to volunteers (including payments from such Title I programs as VISTA, University Year for Action, and Urban Crime Prevention Program) are excluded for households that already were receiving SNAP benefits or temporary assistance before they joined the Title I program. Temporary interruptions in the SNAP participation will not alter the exclusion, but new applicants who are Title I volunteers before they apply for SNAP benefits and/or temporary assistance will have the Title I payments counted as earned income.

19. Domestic Volunteer Services Act Of 1973, Title II and Title III

a. Payments to volunteers (RSVP, Foster Grandparents, Senior Companion and senior health aide programs) of the Domestic Volunteer Services Act of 1973 (P.L. 93-113), as amended, are excluded.

b. Payments under the Service Corps of Retired Executives (SCORE) and the Active Corps of Executives (ACE) programs are excluded.

20. National Community Service Act Funds

All allowances, earnings and payments to individuals participating under Title I of the National Community Service Act of 1990 (P.L. 101-610) are excluded as income for SNAP purposes. Title I of this Act pertains to the National and Community Service State Grant Program, which includes AmeriCorps USA and AmeriCorps NCCC. Projects under this program are subject to the same treatment as most benefits under the Job Training Partnership Act. The types of activities are broadly defined. Participants may perform any educational, human, environmental, or public safety service that will benefit the community.

21. Senior Community Service Employment Program (SCSEP)

Any funds received by individuals 55 and older under the SCSEP, (Title V of P.L. 100-175, the Older Americans Act of 1987) are excluded. SCEPs in NYS include but are not limited to “Experience Works” funded by the U.S. Department of Labor, “Associates for Training and Development” as well as other programs administered by the following entities: NY State Office for Aging, the National Council on Aging, American Association of Retired Persons, the National Urban League, Green Thumb, the National Council of Senior Citizens, Senior Aids Program, U.S. Forest Service, National Association for Spanish Speaking Elderly and National Council on Black Aging. However, this list of agencies may not be all inclusive: if there is a question as to whether an income is Title V SCSEP income, the local district should contact its local area office on aging.

22. Energy Assistance

Payments or allowances made under any Federal, State or local laws for the purpose of energy assistance. These payments must be clearly identified as energy assistance by the legislative body authorizing the program or providing the funds. Among the Federal payments that would be excluded are:

a. Energy assistance payments provided through the Department of Health and Human Services' Low Income Energy Assistance Program and the Crisis Intervention Program,

b. Vendor payments or Emergency Aid to Families (EAF) or Emergency Home Relief (EHR) made by local districts to assist TA households that exceed the normal TA fuel allowance (SA-6a and SA-6b), and

c. EAF for fuel paid to Non-TA and SSI households.

23. Child Nutrition Benefits

Payments received under P.L. 89- 642, Section 11(b) of the Child Nutrition Act of 1966, this includes the Women, Infants and Children (WIC) program and school meals. Also excluded are coupons issued under WIC Demonstration projects (P.L. 100-435, section 401), which may be exchanged for food at farmers' markets.

24. Fee For Representative Payee

A qualified organization may collect a fee for acting as the representative payee for an individual receiving benefits in the SSI and/or Social Security Disability programs. The organization may take its fee out of funds it handles as representative payee.

The monthly fee collected by the organization’s representative payee is legally obligated to the payee rather than to the household by virtue of the statute, and therefore is not countable

25. Plan to Achieve Self-Support (PASS)

Income of SSI recipients necessary for the fulfillment of a PASS under Title XVI of the Social Security Act. The income exclusion for PASS accounts is effective December 13, 1991, unless the local district had information that a household member had a PASS account (in such cases the effective date is October 1, 1990) , or there was a fair hearing on the subject of denied PASS income exclusion (in such cases the effective date would be the date of the fair hearing).

26. Supplemental Needs Trusts (SNTs)

Interest accruing to the trust would be excluded as income for the SNAP. Any cash disbursements, however, must be evaluated under normal SNAP budgeting rules. Disbursements from a SNT may be excludable from household income if they are reimbursements for past or future expenses that do not exceed actual expenses and are not a gain or benefit to the household. To be excluded, reimbursements must be for an identified expense other than normal living expenses. Disbursements made directly to a SNAP household for normal household living expenses, such as rent or mortgage, personal clothing, or food eaten at home are a gain or benefit and therefore are counted as income. A SNT disbursement that is not payable to the household but is instead directed to a third party would be excluded from countable income as a vendor payment. To the extent that the vendor payment meets expenses that would otherwise be allowed as deductions such as shelter, medical costs or childcare, however, the expense would not be allowed as a deduction. Income that is legally obligated to a household and countable as SNAP income but is diverted by the household into a SNT account is not excluded from SNAP income.

Income from a pension or other investment that is being diverted into the SNT should be an income exclusion until it is disbursed from the SNT. As long as the income is not going to the client and is going directly to the trust, it should not count as income until it is taken out from the SNT.

27. Reverse Annuity Mortgage (RAM)

Recurring or lump sum payments received on a reverse annuity mortgage which can be determined to be a loan are excluded as income. If repayment on the reverse annuity mortgage is made, either by the client repaying the loan directly or by the property reverting to the bank, it meets the acceptable definition of a loan. Documentation that the income from the reverse mortgage is a loan, such as a copy of the loan document signed by both parties, should be retained in the case record. Accumulated proceeds from a RAM loan, however, must be counted as a resource for the SNAP.

28. Income Of Non-Household Members

The income of non-household members, other than disqualified individuals.

29. Costs Of Producing Self-Employment Income

Detailed in Section 13

30. Workforce Investment Opportunity Act (WIOA) formerly known as WIA

a. Earnings for work experience, compensation in lieu of wages, payments for supportive services, allowances for training-related expenses and other payments other than TA grants received by participants in WIOA programs as a result of such participation.

NOTE: Earnings from OJT programs received by individuals participating in programs under Section 204(5), Title II of WIA are budgeted for determination of SNAP eligibility and benefit amounts as earned income, with the exception in paragraph (b) below.

b. The earnings of household members under 19 years of age participating in an on-the-job training program under WIA, including OJT programs under Section 204(5), Title II of WIA, providing the member is under the parental control of another adult household member.

NOTE: Perkins Loans are a source of Title IV educational income and are not considered WIA earnings.

31. Housing Restoration Payments

Any governmental payments which are designated for the restoration of a home damaged in a disaster if the household is subject to a legal sanction if the funds are not used as intended. For example, payments made by the Department of Housing and Urban Development through the individual and family grant program or disaster loans or grants made by the Small Business Administration are excluded.

Federal Emergency Management Assistance (FEMA) subsidies to households to pay for temporary housing after a disaster. However, monies that exceed the cost of housing that are not returned to FEMA would be considered income.

Payments made to homeless people to pay for rent, mortgage, food, and utility assistance when there is no major disaster or emergency are not excluded under this provision.

32. Escrow Accounts

Set up under the Family Self-sufficiency Program which is administered by HUD for residents of Section 8 or public housing.

33. Affordable Housing Act

Service provided to a public housing resident under P.L. 101-625 section 22(i) of the Cranston-Gonzales National Affordable Housing Act. This exclusion applies to services such as childcare, employment training and counseling, literacy training, computer skills training, assistance in the attainment of certificates of high school equivalency and other services. It does not apply to wages or stipends.

34. Dividends from insurance policies

35. Interest from bona fide funeral agreements or funds

36. GI Bill Withholding

The mandatory deduction from the paycheck of all military service personnel used to fund the GI Bill.

37. Excluded Specifically By Law

Any income specifically excluded from determining SNAP eligibility by the following laws:

a. Individuals Of Japanese Ancestry - Payments to individuals of Japanese ancestry and permanent resident Japanese aliens or their survivors in restitution for wartime relocation and internment (P.L. 100- 383, Section 105).
b. Aleuts - Payments to natives of the Aleutian or Pribilof Islands in restitution for wartime relocation and internment (P.L. 100-383, Section 206).

c. Compensation Paid By an Eligible Crime Victim Compensation Program (P.L. 103-322).

d. Agent Orange Payments:
   (1) The Agent Orange Settlement Fund; and
   (2) Any other fund established pursuant to the settlement In Agent Orange Product Liability litigation.

NOTE: Benefits must be restored to any household which reports and documents that it was denied or under issued SNAP benefits due to the receipt of Agent Orange payments back to January 1, 1989.

NOTE: P.L. 102-4, Agent Orange Act of 1991, 2/6/91, authorized veterans' benefits to some veterans with service-connected disabilities resulting from exposure to agent orange. These VA payments are not excluded by law.

e. Spina Bifida Payments paid to children of Vietnam veterans under P.L. 104-204 are excluded.

f. Payments To Indians - Certain payments to Indians are excluded under federal law. Usually a law will specify payments to members of a tribe or band, and the law will apply to the Indians enrolled in the tribe or band wherever they live. The Indians should have documentation showing where the payments originate.)
   (1) Alaska Native Claim Settlement payments received under P.L. 92-203, Section 21(a). This includes all compensation such as cash, stock, partnership interest, land, interest in land, and other benefits received under this Act.

   (2) Sub marginal U.S. Land - Income derived from certain sub marginal US land held in trust for certain Indian tribes (P.L. 94-114, Section 6).

(3) Payments by The Indian Claims Commission to the Confederated Tribes and Bands of the Yakima Indian Nation or the Apache Tribe of the Mescalero Reservation (P.L. 95-443).

(4) The First $2,000 Of Funds Distributed by the Indian Claims Commissioner pursuant to P.L. 93-134 as amended by PL.L. 97-458. P.L. 98-64 extended the exclusion to cover per capita payments from funds which are held in trust by the Secretary of Interior (trust fund distributions).

(5) Maine Indians - Payments to the Passamaquoddy Tribe, the Penobscot Nation and the Harlton Band of Maliseet or any of their members received pursuant to the Maine Indian Claims Settlement Act of 1980 (P.L. 96-420, Section 5).

(6) Navajo And Hopi Tribes - Payments of relocation assistance to members of the Navajo and Hopi tribes under P.L. 93-531, section 22.

(7) P.L. 94-540 - Payments from the disposition to funds to the Grand River Band of Ottawa Indians.

(8) P.L. 97-403 - Payments to the Turtle Mountain Band of Chippewas, Arizona.

(9) P.L. 97- 408 - Payments to the Blackfeet Gros Ventre, and Assiniboine tribes (Montana) and the Papago (Arizona).

(10) P.L. 98-124, Section 5 - Per capita and interest payments made to the Assiniboine Tribe of the Fort Belknap Indian Community, Montana and the Assiniboine Tribe of the Fort Peck Indian Reservation (Montana).

(11) P.L. 98-123, Section 3, 10/13/83 - Per capita and interest payments made to the Red Lake Band of Chippewas.

(12) P.L. 99-346, Section 6(b)(2) - Payments to the Saginaw Chippewa Indian Tribe of Michigan.

(13) P.L. 99-377, Section 4(b), 8/8/86 - Per capita payments to the Chippewas of Mississippi.

(14) P.L. 101-426, Section 6(h)(2), the Radiation Exposure Compensation Act, dated October 15, 1990.

(15) The first $2000 of payments made under P.L. 98-500, Section 8, 10/17/84, Old Age Assistance Claims Settlement Act, to heirs of deceased Indians.

(16) P.L. 99-146, Section 6(b), 11/11/85 - Funds distributed per capita or held in trust for members of the Chippewas of Lake Superior.

(17) P.L. 99-264, White Earth Reservation Land Settlement Act of 1985, 3/24/86, Section 16. This Act involves members of the White Earth Band of Chippewa Indians in Minnesota.

(18) Seneca Nation Settlement Act - Under Public Law 101-503 and the memorandum of understanding between the Seneca Nation and the State, Settlement Act monies are exempt from consideration in determining eligibility or benefits for any State or federally funded social services program. These monies must not be counted as income or resources now or at any later point in time.

g. **Online Crowdfunding Accounts**

Crowdfunding accounts are not considered income. Reference GIS 16 TA/DC011 to determine how crowdfunding accounts should be factored into SNAP eligibility decisions as a resource.

References:

387.11 – Income Exclusions

7 CFR 273.9 – Income and Deductions

94 ADM-11 Domestic Violence: Eligibility and Payment for Residential Services for Victims

94 ADM-20 Preventing Homelessness and Providing Assistance to Homeless Persons

02 ADM-7 Food Stamp Program Reauthorization Changes

02 ADM-1 Food Stamp Treatment of Individual Development Accounts

97 ADM-4 Clarifications of Various Food Stamp Welfare Reform Provisions

95 ADM-15 Food Stamp Program Implications of the Mickey Leland Childhood Hunger Relief Act (P.L. 103-66)

92 ADM-9 Food Stamps: Income Exclusion for Homeless Households in Transitional Housing

92 ADM-6 Treatment of Earned Income Tax Credit (EITC)

91 ADM-25 Section 8: Amendment to Department Regulation 352.3(d) and the Effect on Public Assistance Households in Section 8 Rent Subsidy Programs

91 ADM-6 PA and SNAP Disregards: Treatment of Agent Orange Payments

90 ADM-31 Employment- and JOBS- Related Child Care, Transitional Child Care and Local Child Care Market Rates For All Forms of Child Care

90 ADM-12 Food Stamps: Treatment of Income from On the Job Training Under the Job Training Partnership Act (JTPA)

90 ADM-8 Emergency Shelter Allowances for Persons with AIDS or HIV related Illness Faced with Homelessness

91 ADM-8 Federal and State Changes Concerning Medical Assistance Eligibility Policy

05 ADM-14 Food Stamp Budgeting: VISTA Payments and Medical Mileage Expenses

08 ADM-09 Farm Bill Reauthorization Provisions of Food Stamp Program for 2008

01 INF-8 Temporary Assistance (TA) and Food Stamps (SNAP) Policy: The Treatment of Supplemental Needs Trusts (SNTs) and Reverse Annuity Mortgage (RAM) Loans

95 INF-35 Food Stamps: SSI or SSDI When Disability is Based on Drug Addiction or Alcoholism

95 INF-30 Clarification of the Treatment of AmeriCorps Awards

94 INF-45 PA Budgeting and Case Category for Joint Custody Cases93 INF-8 Food Stamp Income Exclusions: National Community Service Act Funds

92 INF-45 PA, MA and SNAP Treatment of Escrow Accounts Under the Family Self-Sufficiency (SNAPS) Program Administered by the Department of Housing and Urban Development (HUD)

92 INF-16 Food Stamp Treatment of Payments to Qualified Organizations Serving as Representative Payees in the SSI Program

90 INF-33 Treatment of Income from Certain Senior Citizen Programs for Public Assistance, Medical Assistance and Food Stamps

94 INF-41 HIV Peer Educator Stipends

04 INF-05 Disregard Certain Veterans Administration (VA) Payments Made to Biological Children of Women Vietnam Veterans and Extend to Safety Net Assistance Families the Disregard of VA Payments Made to Vietnam Veterans' Children with Spina Bifida

12 INF-14 Supplemental Nutrition Assistance Program Policy – Student Eligibility (Replaces 11-INF-06)

96 LCM-83 Food Stamp Impact of New Federal Welfare Law

92 LCM-120 Seneca Nation Resettlement Act

GIS 01 TA/DC040 Exemption of Disaster Relief Payments

GIS Message (05 TA/DC006) Food Stamp Exclusion of Child Support Payments From Income

GIS Message (05 TA/DC004) Exclusion of Disaster Relief Earnings

GIS 16 TA/DC011 – SNAP Treatment of Funds in On-Line "Crowdfunding" Accounts

H. Self-Employment Other Than Farming

Self-employment income provisions are for all households receiving self-employment income, including those households that own and operate a commercial boarding house. For households that receive income from boarders but do not own and operate a commercial boarding house, see J. Boarders, in this section.

1. Definition

Self-employment income is the total gross income from a self-employment enterprise, including the total gain from the sale of any capital goods or equipment related to the business. Payments from a roomer or boarder are self-employment income and are counted as earned income.

Payments from rental income are self-employment income and are counted as earned income if the property is managed by a household member at least 20 hours per week. If the rental property is managed less than 20 hours per week, the rental income minus the cost of doing business derived from the rental property is counted as unearned income

Determining Monthly Self-Employment Income

a. Calculating Income By Averaging - Add all gross self-employment income (including capital gains), exclude the cost of producing the self-employment income, and divide the self- employment income by the number of months over which the income will be averaged.

b. Calculating Anticipated Income - When self-employment household income is anticipated, rather than averaged, the local district must:
   (1) Add any anticipated capital gains for the next 12 months, starting from the application date.

   (2) Divide the resultant amount by 12. This amount shall be used in successive certification periods during the next 12 months unless the anticipated amount of capital gains changes.

   (3) Add the anticipated monthly amount of capital gains to the anticipated monthly self- employment income.

   (4) Subtract the cost of producing the self-employment income. The cost of producing the self-employment income shall be calculated by anticipating the monthly allowable costs of producing the self-employment income.

NOTE: A household may have zero net self-employment income indefinitely, if gross proceeds are sufficient to sustain the household, even if the business (on paper) shows a loss. However, if visible gross income is insufficient to cover household expenses but the household expenses are paid, then the household must be requested to explain these questionable circumstances.

2. Determining Monthly Net Income

To determine the monthly net income of the household:

a. Add the monthly net self-employment income to any other earned income received by the household.

b. Subtract the 20% earned income deduction.

c. Then add to this figure all the monthly unearned income.

d. The standard deduction, dependent care, and shelter costs will be computed as for any other household and subtracted to determine the monthly net income of the household.

3. Child and Adult Care Food Program

The Child Care Food Program (CACFP) payments to meal providers is designed to provide nutritious meals for children up to age 12 and handicapped children up to age 15 who participate in a non-profit, licensed or approved day care program.

Self-employed households in receipt of CACFP income may apply for SNAP. These households would most likely be operating family day care or after school programs in their own homes/apartments. In determining the amount of CACFP income used to calculate SNAP benefits the following steps are taken:

a. Establish the gross CACFP payment(s) to the provider.

b. Subtract from the established CACFP gross payment the total allowable self-employment costs to establish the net self-employment income. The cost of producing self-employment income from childcare is the actual costs, the amount of the CACFP payments, or $5.00 per day per child in care (not including the provider's own children), whichever is greater.

c. Apply 20% earned income deduction to the net self-employment income.

CACFP payments given to the provider for meals served to the provider's own children are treated the same as CACFP payments given to the provider for meals served to other children.

4. Determining Benefit Level

To determine the benefit level, the local district may elect to offer the household the option of:

a. Using the same net income that was used to determine eligibility, or

b. Prorating the household's total net income in a manner that more closely approximates the time in which it was received. If income is prorated, the net income assigned in any month cannot exceed the maximum monthly income eligibility standards for the household size.

5. Annualized Self-Employment Income

Self-employment income which represents a household's annual support shall be spread over a 12-month period, even if the income is received in only a short period of time.

Self-employment income received by a household shall be averaged over a 12-month period if the income is intended to support the household on an annual basis. This self-employment income shall be annualized even if the household received income from other sources in addition to self-employment.

a. Annual Income Paid On A Monthly Basis - Self-employment income, which is received on a monthly basis, but which represents a household's annual support will normally be averaged over a 12-month period. If, however, the averaged amount does not accurately reflect the household's actual monthly circumstances because the household has experienced a substantial business increase or decrease in business, self-employment income will be calculated based on anticipated earnings. Self-employment income must not be calculated on the basis of prior income (e.g., income tax returns) when the household has experienced an increase or decrease in business as determined by the local district.

NOTE: If a self-employed household's income tax returns for last year reveal a substantial, unreported increase in average monthly income and the increase is not expected to continue, it cannot be used in budgeting for the following year.

b. Self-Employment Income As Part Of Annual Support - When the self-employment income is only part of a household's annual income, it must be averaged over the time period the income is intended to cover.

EXAMPLE: Self-employed vendors may work only in the summer and may supplement their income from other sources during the balance of the year. They must have their self-employment income averaged over the summer months rather than the 12-month period. It is then added to any other income during that period.

c. Self-Employment Income From Enterprises Existing For Less Than One Year - For business enterprises in operation less than a year, the self-employment income is averaged over the time period the business has been in operation. The monthly amount is projected for the coming year.

If the business has been in operation for such a short time that there is no data to make a reasonable projection, the household must be certified for less than a year until the business has been operating long enough to make the longer projection.

6. Re-Annualizing Self-Employment Income

A SNAP household with self-employment income which has been annualized over a 12-month period may unexpectedly experience a considerable change in the amount of self-employed income they were anticipated to receive for the coming year. Such households would be entitled to have their self-employment income re-annualized with taking into account this unexpected change for the remainder of the year.

NOTE: Before making the budget change, the local district should determine that the annual income has actually changed and that it is not just a monthly fluctuation in self-employment income.

7. Capital Gains Are Self-Employment Income

The proceeds from the sale of capital goods or equipment must be calculated in the same manner as a capital gain for Federal Income Tax purposes. For Federal income tax purposes, capital gains are generally computed by comparing the sales price to the "cost or other basis." If the sales price is greater, there is a gain. If the costs are greater, there is a loss. The "cost or other basis" in general is the cost of the property, purchase commissions, improvements and sales expenses such as broker's fees and commissions minus depreciation, amortization and depletion. The full amount of the capital gain, if any, is counted as income for SNAP purposes.

8. The Cost Of Producing Self-Employment Income Is An Income Adjustment

a. Allowable Costs - The allowable costs of producing self-employment income include, but are not limited to, the identifiable costs of labor, stock, raw materials, seed and fertilizer, payments on the principal of the purchase price of income-producing real estate and capital assets, equipment, machinery, and other durable goods, interest paid to purchase income- producing property, insurance premiums, and taxes paid on income-producing property.

b. For SNAP households with self-employment income derived from providing in-home childcare, a standard deduction of $5 per day per child in care (not including the provider's own children), or the amount of the CACFP can be deducted from the childcare earnings without documentation of specific cost of doing business expenses. The following conditions apply:
   (1) Eligible households must be provided the standard, or actual costs if higher.

   (2) Eligibility staff must inform households of the option to verify actual costs if they exceed the $5 standard expense.

c. SNAP households who residence in an income producing multi-unit property - (such income producing property includes owner occupied rental property, income from roomers and other self-employment enterprises located in the SNAP household’s residence.) A portion of this income can be excluded if it is related to the cost of producing the income. Examples include mortgage interest, property taxes, heating, utilities and insurance.

The portion of the building costs which are for the SNAP household's own living unit may not be disregarded from the gross business income but are allowed as shelter costs.

Determination of how to treat business expenses is as follows:

(1) In most cases, past income tax records will be sufficient to indicate what portion of the expenses are considered business income and therefore disregarded from the gross income for SNAP purposes.

(2) In the absence of past income tax records, the portion of the income to be excluded will have to be determined. Any expense which is exclusively for the income producing component of the property would be fully excluded.

EXAMPLE: Heat or utility expenses which are metered separately.

(3) If the household can document through the use of existing business records the break-out of any shared expense this documented amount is used. In the absence of such records, the worker must determine an amount by prorating the expense among the units.

EXAMPLE: If a building contained three units, two rented and one occupied by the SNAP household, two-thirds of the shared expense would be excluded. The one-third remaining expense is a shelter cost to the SNAP household.

d. SNAP household rents room(s) in a single-unit dwelling - When a SNAP household rents one or more rooms in his house any reasonable approach to determine what portion of the expenses incurred by the SNAP household can be attributed to producing the self-employment income may be utilized.

One approach would be to determine a pro rata share of expenses such as mortgage interest, property taxes, heating, utility and insurance based on the total number of rooms in the home (excluding bathrooms) divided by the number of rooms occupied by the roomer. For example, if a house had 3 bedrooms, a living room, dining room, kitchen and two baths, the owner rented out one bedroom, the pro rata share of the expenses related to the cost of producing the income would be 1/6.

9. Determining Non-Allowable Self-Employment Income Adjustments

Local districts shall not allow the following items as the cost of business when determining a self-employed household's net income:

a. Net losses from previous periods

b. Federal, State and local income taxes, money set aside for retirement purposes, and other work-related personal expenses (such as transportation to and from work), as these expenses are accounted for by the 20% earned income deduction specified in this section

c. Depreciation

d. Garnishments have no effect on the treatment of self-employment income, i.e., the total gross amount is counted as the income computation. The amount garnished is not an income exclusion.

References:

387.16 – Special Provisions for Household Circumstances
7 CFR 273.11 – Actions on Households with Special Circumstances
94 INF-29
01 INF-21 Food Stamp Questions and Answers
90 INF-4 Food Stamp Program Treatment of Child Care Food Program (CACFP) Payments
91 INF-29 Family Day Care: Incentives for Public Assistance Recipients to Become Providers
94 GIS ES/DC018

I. Self-Employment Farming

Self-employed farmers are subject to the same eligibility and processing requirements as all other households unless otherwise specified in this section.

1. Definitions

a. Self-Employed Farmer - An individual who receives or anticipates receiving annual gross proceeds of $1,000 or more from the farming enterprise.

b. Sole Proprietorship - An unincorporated business that has no existence apart from the owner. The business liabilities are personal liabilities of the single owner.

c. Partnership - Two or more individuals jointly owning a business.

d. Independent Contractor - An individual who pays the costs of doing business and receives a portion of the net income in exchange for labor.

2. Determining Self-Employment

To be a self-employed farmer the person must have direct involvement in farming operations. Farming operations may involve livestock, dairy, fruits, vegetables, ranches, nurseries, the production and sale of maple products, Christmas trees and beeswax. A person who rents his land to another individual to raise a crop is not a self-employed farmer if he/she is not directly involved in the growing/harvesting of the crop. Each situation must be reviewed on a case-by-case basis to determine if a person is a self-employed farmer or a farm employee.

a. Farm self-employment income generally consists of earnings derived by an individual as the sole proprietor of his farm.

b. There may also be some self-employment income situations which involve a partnership. In such cases there should be an oral or written agreement. Generally, a partner's share of income, gain, loss, deductions or credits is determined by the partnership agreement. In any matter not addressed by a written agreement the provision of local law are considered to be part of the agreement.

c. Other self-employment situations for SNAP purposes include independent contractors who pay the farm expenses and persons who do not have a direct employer/employee relationship. In determining if the person is an independent contractor, determine if a household operates a separate (perhaps more specialized) business than the owner of the land or proprietor of the main business. In determining if there is an employer and employee relationship, consider such things as whether the person has an established work schedule and specified wages, whether the employer withholds social security and income taxes from earnings, etc. A sharecropper who pays the

costs of doing business and receives a portion of the net income in exchange for his labor is a self-employed farmer. A sharecropper who does not pay the costs of doing business is not a self-employed farmer.

d. An owner or employee of a closely held (just a few shareholders) or other corporation is not a self-employed person. If the person receives a salary from the corporation, he is considered an employee of the corporation. Shareholders who only receive dividends are entitled to neither the costs of producing self-employment income nor the earned income deduction. The dividends are counted as income. Corporations are separate legal entities, and the corporation is responsible for its debts and obligations.

3. Determining Income

In addition to the income provisions outlined in this section the following also apply to self- employed farmers:

a. Countable Income

(1) Federal drought assistance payments are counted as earned self-employment income regardless of whether they are made in one payment or several. Drought payments must be prorated over the same period as other self-employment income. In essence, the payments are substitutes for monies that were lost as a result of the drought and that had already been calculated in the determination of SNAP benefits.

(2) Commodity Credit Corporation (CCC) Payments: Under the Payment-In-Kind (PIK) program, farmers receive commodities from the U.S. Department of Agriculture, Commodity Credit Corporation. No income is received by the household until the gain is realized from a sale. If the commodities are expected to be sold during the year, the anticipated income must be included for SNAP purposes. The CCC may also pay farmers in the form of commodity certificates for land diversion or acreage reduction. The certificates may later be surrendered to the CCC for cash or for commodities, or the farmer may sell the certificate to someone else, usually for a profit. The certificates are valued based on the price of the commodity at the time of the agreement with the CCC and the number of bushels of the commodity the farmer will lose through land diversion or acreage reduction. When the certificates are exercised, the farmer receives cash or commodities based on the price of the commodity at the time. The cash received under this program is counted as income in the year it is expected to be received. It is annualized like other self-employment farm income. The value of any commodity which the household intends to use for feed or seed is excluded from income. If the farmer intends to retain the certificate or the commodity longer than 12 months, the value thereof is counted as a resource.

In some cases farmers will sell commodities they own to the CCC and receive them back from CCC as PIK commodities. Farmers are paid by CCC for the commodities with the payment being used to repay price support loans previously extended to the farmer by CCC. These sales and loan payments should be treated as completely separate transactions

from the receipt of CCC certificates or PIK commodities and should be handled in the same manner as any other sale of commodities and repayment of a price support loan.

(3) Payments received in cash from agricultural stabilization and conservation programs are counted as income.

(4) Patronage dividends are reported on tax forms. They are paid by cooperatives in cash or shares of stock. These dividends are similar to rebates paid based on the amount of goods brought or services used for the self-employment enterprise. Cash dividends are counted as income.

NOTE: Dividends in the form of stock are counted as a resource.

(5) Dairy Termination Program

b. Annualizing Self-Employment Farming Income

c. Costs Of Doing Business - Self-employed farmers are given special income treatment because they incur costs in producing their income which must be deducted in order to equate their income with income from sources in which there are no production costs.

(1) Allowable Costs - In addition to the allowable costs of producing self-employment income found in this section, the following costs are excluded when determining a self-employed household's net income:

(a) Privilege taxes such as licensing fees and gross receipts and general excise taxes that must be paid in order to earn self-employment income;

(b) Business transportation costs such as costs of carrying grain to an elevator, trips to obtain supplies, etc.

(c) Rental payments on income-producing equipment. If a farmer is renting equipment with an option to buy, the rent payments are considered allowable costs of producing self-employment income until the purchase is made;

(d) Costs of repairs and maintenance of equipment; and

(e) Storage and warehousing charges.

(f) Shelter Portion of Farm - Where a farm mortgage does not separately identify the business and home portions of the property, the local district may use reasonable means of identifying the separate costs through proration. Proration may be based on information from sources such as the mortgage lender, real estate tax records, Farmer's Home Administration documents, insurance premium notices, or other available information. The prorated portion of the mortgage principal, taxes and interest which are attributed to the home are allowed as shelter costs. The portion of the interest and taxes (but not mortgage principal payments) attributed to the business portion of the property are allowed as costs of producing income.

(g) Utility expenses - utility expenses which are not separately metered for the home and business portions of the farm may be prorated, based on income tax records or other available information. The prorated actual cost which is attributed to the business is allowed as an allowable cost of producing self-employment income. The remaining actual cost or the utility standard, whichever is greater, is allowed as a shelter expense.

NOTE: Costs are allowed at the time of billing. When the income is annualized, only expenses billed or otherwise due in the current 12-month period are allowed. Costs that were billed or otherwise became due in a prior year which are not expected to recur in the current year may not be brought forward to the current year regardless of when they are paid.

(2) Non-Allowable Costs - See this section

d. Other Income Exclusions

(1) A Federal gasoline tax credit is excluded from income. (It is a credit against tax liability.)

(2) A State gasoline tax refund is excluded from income on the basis that it is a nonrecurring lump-sum payment.

(3) Recaptured Depreciation and Recaptured Investment Credit: the IRS allows self-employed persons to deduct depreciation on property, such as a tractor, as a cost of doing business. When the property is sold before the end of its useful life, the seller must declare a portion of the depreciation as income for IRS purposes. This is commonly referred to as recaptured depreciation.

The IRS allows a percentage of certain investments to be deducted as an expense. If the asset is disposed of or ceases to be eligible before the end of the recapture period for recovery property or before the end of the estimated life used to figure the credit, a percentage of the credit may have to be recaptured for IRS purposes. This is commonly referred to as recaptured investment credit.

Recaptured depreciation and recaptured investment credit are considered in the capital gains computations in the same manner as they are for Federal Income Tax purposes.

(4) A crop insurance payment is excluded from income if it is a nonrecurring lump-sum payment.

NOTE: If the insurance company pays the household in installments, the money is counted as income.

e. Operating At A Loss - See this section

f. Operating At A Profit - See this section

4. **Sudden Changes In Income** - See this section

5. **Resources**

In addition to the regular resource provisions outlined in SNAPSB Section 17, the following provisions also apply to self-employed farmers:

a. Livestock is excluded as a resource if it is used in the farm operation, kept as a household pet, or used for food.

b. If a farmer has incorporated his farm and they are the sole worker and all of the corporation's assets are related to the farming operation, the farmer's stock in the corporation is essential to their employment and excluded from consideration as a resource.

c. Sometimes a farmer may obtain a loan, but funds can only be released by signature of both the lender and the farmer. In such cases where the farmer has a "line-of-credit," only the portion that is actually borrowed and held in an account is counted as a resource.

d. Some farm households receive PIK payments. Normally these are annualized as income. However, if the farmer indicates that he intends to retain PIK payments for longer than a year, the payments should not be annualized as income but counted as a resource to the extent that they will be kept longer than a year.

e. Sealed grain is counted as a resource only if it has been in storage for more than 12 months.

f. Non-contiguous property which was essential to farming and licensed vehicles which were used primarily for farming shall continue to be excluded as resources for one year following the termination of farm self-employment. After one year, the farmer's non-contiguous property and licensed vehicles shall remain excluded if a good effort is being made to sell such property or equipment at a reasonable price. The local district must determine when a farmer ceases to be self-employed on a case-by-case basis.

NOTE: Farmland which is contiguous with the property on which a household's home is located is excluded as a resource indefinitely.

NOTE: If a farmer declares bankruptcy, it must be determined whether the resources can be excluded under another provision such as being essential to self-employment, if the person is still self-employed. (See paragraph 6 below.)

g. As stated in Section 17, resources that have been counted and prorated as income are excluded. Therefore, gross self-employment income that has been used in the income determination is excluded in the resource determination during the period of time that the net income is counted as

income. A farmer may include the farm income in a bank account with other money and still retain the exclusion.

EXAMPLE: A household earned $10,000 gross self-employment income last year and expects to earn the same amount this year. Six thousand dollars were excluded from income to cover the costs of doing business. Four thousand dollars were annualized and prorated as income for calendar year 1989. The household has $11,000 in a bank account. Only $1,000 is counted as a resource during 1989 unless there are other changes.

$10,000 gross farm income 1988
$6,000 allowable costs
$4,000 prorated for 1989
No changes were anticipated.

$11,000 in bank account
-$10,000 gross farm income
$1,000 counts as a resource

6. Bankruptcy

There are different types of bankruptcies. Some allow people to continue to do the same kind of business and others do not.

a. If the person continues to earn self-employment income, the gross amount minus allowable expenses is counted.

b. Sometimes the total amount of income goes to a trustee, and from this amount he pays the bills and gives the farmer a living allowance. This living allowance is not counted as income because it would result in the income being counted twice.

c. In other situations, all of the money goes to the farmer, but they must pay a set amount to a court-appointed person for back debts. This amount is not allowed as an exclusion. An exclusion is only allowed for certain costs in the year in which they are billed or otherwise become due. The household is not entitled to a double exclusion.

d. If a farmer sells equipment and uses the proceeds to pay off a loan, the money is income to the farmer. If a farmer sells equipment and the proceeds are diverted to a bank to repay a loan, the money is counted as income to the farmer. If a farmer voluntarily turns over collateral to a bank, and the bank sells the collateral to pay off a loan, the proceeds of the sale are not counted as income to the farmer. Once the collateral is turned over to the bank, it becomes the legal property of the bank.

e. If a farmer holds the title to property and sells the property, any proceeds from the sale are counted as income to them. If the farmer gives the title to the bank or if the property is repossessed prior to sale and the bank sells the property, the proceeds are not counted as income to the household.

f. If a lender is unable to collect on a farm loan, the lender may choose to forgive all or part of the outstanding balance. The forgiven portion is not counted as income to the household.

7. Verification (Also see Section 5)

a. Tax Forms - The farmer's most recent income tax forms are typically sufficient sources of verification for self-employment income and expenses. Several IRS forms which the local district should become familiar with are:

(1) Form 1040, U.S. Individual Income Tax Return (Sole Proprietorship); Schedule D, Capital Gains and Losses and Reconciliation of Forms 1099-B Schedule E, Supplemental Income Schedule F, Farm Income and Expenses (Schedule C is for nonfarm sole proprietorship)

(2) Form 1065, U.S. Partnership Return of Income; Schedule K-1, Partners' Shares of Income, Credits, Deductions, etc.

(3) Form 1120, U.S. Corporation Income Tax Return; Form 1120A, U.S. Corporation Short Form Income Tax Return; Form 1120S, U.S. Income Tax Return for an S Corporation (Small Business); Schedule K, Shareholders' Share of Income, Credits, Deductions, etc. (Summarizes the corporation's income deductions, credits, etc., reportable by the shareholders); Schedule K-1, Shareholder's Share of Income, Credits, Deductions, etc. (Shows each shareholder's separate share).

(4) Form 4506, Request for Copy of Tax Form - A person may obtain a copy of his return from IRS by submitting IRS Form 4506, Request for Copy of Tax Form, but there is a charge for this. Persons are not required to file a federal tax form if they have income under certain amounts depending on their marital status. If the tax form is questionable or not available, the local district must ask to see other documents that support the income and expenses which the household has reported.

(5) Form 4797, Gains and Losses from Sales or Exchanges of Assets Used in a Trade or Business and Involuntary Conversions

(6) Form 4835, Farm Rental Income and Expenses

NOTE: The IRS net income from farm self-employment cannot be used, because IRS computes income differently and allows different expenses such as depreciation on a yearly basis. Only certain information from the tax forms and schedules may be used for verification purposes.

b. Other sources of verification may include, but are not limited to, ledgers, charge account statements, sales slips, cancelled checks, invoices, purchase orders and cash receipts. In documenting this verification, the local district should record the date, identify the other party or company, describe the expense or income, and record the amount, taxes and discounts, if applicable.

In some instances, such as anticipated changes or a new business, it may be necessary to obtain information from collateral contacts.

If a bankruptcy action has been initiated, the local district may get a statement from the bankruptcy trustee regarding the debt reorganization plan concerning the accessibility of assets and the anticipated gross income and expenses.

The local district must be sure to document the verification used.

8. Offsetting Losses Of Self-Employed Farmers

When the cost of producing self-employment income exceeds the income derived from self-employment as a farmer, such losses shall be offset against any other countable income in the household. The same principle shall be used in determining any net loss as is used to determine the income from the self-employed farm operations (previous year's tax return or current income). Losses shall be prorated over the year in a manner comparable to that used to prorate farm self- employment income. To be considered a self-employed farmer, the farmer must receive or anticipate receiving annual gross proceeds of $1,000 or more from the farming enterprise.

NOTE: A household continues to qualify for the farm loss deduction for the remainder of the period that the self-employment income is annualized even when it is no longer engaged in a farming enterprise as long as the household meets the above definition of a self-employed farmer. The household's eligibility and benefits were calculated by prorating income and expenses annually. Therefore, the household would continue under the definition of a farmer for the remainder of the annual period, even if the household is no longer engaged in the enterprise.

NOTE: A fisherman is equivalent to a self-employed farmer for purposes of the farm loss offset provision if the fisherman is self-employed, rather than an employee, and the fisherman receives or anticipates receiving annual gross proceeds of $1,000 or more from fishing. This applies even if the fisherman is only involved in catching or harvesting the fish. This applies to watermen and cray fishermen, as well as other fishermen. Fishermen produce food, and they are subject to the same uncertainties as farmers, such as market demands, weather conditions, and the environment, which could result in losses.

9. Determining Gross Income

In determining the household's gross monthly income:

a. All earned and unearned income is first totaled (minus appropriate exclusions),
b. From this total the monthly farm loss income is then subtracted. The remainder is the household's gross monthly SNAP income subject to the appropriate gross monthly income eligibility test.

NOTE: If there is an elderly or disabled member in the household, the household is exempt from the gross income eligibility test.

10. Determining Net Income

In determining the household's monthly SNAP net income, the household's monthly self-employment farm loss income is first subtracted from the household's "other self-employment income," if applicable. Then:

a. If a positive balance remains, this self-employment income amount is added to any other source(s) of earned income. The household's earned income deduction (as described in SNAPSB Section 12) would be determined based on this total. Normal SNAP budgeting methodology would then be applied from this point to determine the household's monthly SNAP net income. No additional farm loss offsetting would be necessary.

b. If a negative balance remains, this is the household's remaining farm loss income. This remaining farm loss income (or a household's entire farm loss income when there is no other self-employment income to be offset) would be applied as follows in determining the household's SNAP net income:
   (1) Determine the household's total gross income excluding self-employment earnings.

   (2) From this total calculate and subtract the SNAP earned income deduction.

   (3) Add any countable unearned income to the balance.

   (4) From this balance subtract the monthly farm loss income (or remaining farm loss income when applicable as determined above).

   (5) Current SNAP budgeting methodology would then be applied from this point to determine the household's monthly SNAP net income.

In summary, in determining the household's monthly SNAP net income the household's self-employment farm loss income is first offset against any additional household self-employment income. The remaining balance farm loss income is then offset against any non-self-employment earned income or unearned income to determine the household's SNAP net income.

EXAMPLE: A household's monthly self-employment farm loss income is determined to be $100. The household's monthly countable income from additional self-employment equals $50. The household has a gross monthly earned income from non-self-employment of $500 and gross monthly unearned income is $300. Shelter expenses for the household would entitle the household to the maximum SNAP excess shelter deduction.

The household’s SNAP gross income eligibility is determined as follows:

$ 50 Net "other self-employment income"
+ $500 Gross non-self-employment earned income
+ $300 Unearned Income
= $850 Total Income
- $100 Farm Loss Income
= $750 Total SNAP gross income subject to appropriate SNAP GIT.

The household monthly SNAP net income is determined as follows:
(First apply farm loss income against "other self-employment income")

$ 50 Net "other self-employment income"
- $100 Farm Loss Income
- $ 50 Farm loss income remaining to be offset as determined above (see calculation below)

If no farm loss income remains to be offset, add the balance of the positive self-employment income amount to the household's non-self-employment earned income and continue normal SNAP budgeting with no further farm loss income needing to be offset.

$500 Gross non-self-employment earned income
- $100 20% earned income deduction
= $400
+ $300 Unearned Income
= $700
- $ 50 Farm loss income remaining to be offset as determined above
= $650
- $204 *Standard deduction
= $446
- $712 * Excess shelter deduction
= $ 0 SNAP Net Income

*Please note the standard deduction and excess shelter deduction cited are relative to the 2024-25 Standards.

11. Upstate WMS Instructions

Budgeting Procedure For SNAP Cases With A Farm Loss Offset And Other Self-Employment Income - For cases which have both a farm loss (NEG-FARM) amount and other self-employment earned income (Family Day Care Income - 09, Net Business Income - 20, Income from Boarder/Lodger - 45, Net Income from Rental of House, Store, or Other Property, Worked more than 20 hours per week - 46, or Income from a Roomer - 48). Before the 20% Earned Income Deduction is calculated, ABEL:

a. Subtracts the NEG-FARM amount from the total of all other self-employment earned income amounts.
b. The remaining self-employment earned income amount, if there is one, and the full other earned income amount are added.

c. This sum is multiplied by 20% to obtain the 20% Earned (Income) Deduction amount. See Examples 1 and 2.

NOTE: One case circumstance still requires special attention. If the farmer has distributed from gross receipts, income to himself or any other of his SNAP household members, that income is not included in the calculation of the NEG-FARM amount. See Example 3.

EXAMPLE 1: A farmer, his wife and three children are receiving SNAP. His monthly Negative Farm Exclusion Amount of $200 is entered as an additional exclusion in the "NEG-FARM" field. His wife is also self-employed with a net income of $385 per month. The 20% EARNED (Deduction Amount) is 20% of $185 ($385 other self-employment income minus $200 NEG-FARM amount). The remaining budget procedures remain unchanged.

```
WBGTFS      ** FS BUDGET **        VERSION                    DIST ALBA  03/30/2016
 CASE NAME                  CASE NO.   OFC UNIT  WRKR  TT SD CT CE  # SH AD IT P
 EXAMPLE ONE                SCRATCHPAD            X     05    31  N 05
 I/TY        ACTUAL ALLOW   UNEARNED INCOME    EARNED INCOME      ***** ADDL *****
   03 SHELT  10000  10000 LN SRC FRQ  AMOUNT LN SRC FRQ  AMOUNT ** EXCLUSIONS **
      WATER      0      0                  0 01  20  M    38500 BRD/LDG       0
 X  0 HT/AC      0  63600                  0                  0 NEG-FRM   20000
      DISP       0      0                  0                  0 PSNL CR       0
      UTIL       0      0                  0     TOTAL    38500 SPONSOR       0
      PHONE      0      0     PA           0 HRS #  1   2   3   TOTAL     20000
      OTHER      0      0     PA           0       040
      TOTAL SHELT   73600     TOTAL        0          ****** DEDUCTIONS ********
                                                                ACTUAL   ALLOW
 $$ FS ALLOTMENT  $$ ********* CLAIMS **************   DEP CARE       0       0
 TOTAL INC     38500 T DISQ BALANCE AMOUNT  MO  REM     DEP CARE       0       0
 ADDL EXCL     20000     0        0      0         0   DEP CARE       0       0
 TOTAL DED     73800     0        0      0             MEDICAL 0      0       0
 FS NET INC        0  RECALC             0             SUPPORT        0       0
 CLAIM AMT         0                                   20% EARNED          3700
 $$$$ BENEFIT $$$$$                                    STANDARD           19700
 MONTHLY       77100      ** EFFECTIVE DATE **         EXC SHELT  73600   50400
                             060116 TO 123116         TOTAL DEDUCTIONS   73800
                          DATE STORED   /  /           TA VERSION NO.
```

```
WBFSWB      ** FS INPUT **         VERSION
 CASE NAME                  CASE NO.   OFC UNIT  WRKR  TT SD  EFFECTIVE DATE  CT
 EXAMPLE_ONE_______________ SCRATCHPAD ___ _____ X____ 05  _ 060116 TO 123116 31
-------------------------SHELTER-------------------------------------------------
 NO.CASE  SPONSOR  FUEL     SUA   MMYY  EXPENSE  HT/AC  UTIL  PHONE  A/D  IT CE
   05        __    TYPE: 0  DATE: ____      IND:   X     _     _     _    _  N
 SHELT: TY AMOUNT   WATER   HT/AC   DISPOSAL  UTILITY  PHONE   OTHER: TY AMOUNT
        03 10000_   ______  ______  ______    ______  ______         __ ______
----------------------EARNED INCOME----------------------------------------------
 LN SRC FRQ HRS  AMOUNT       LN SRC FRQ HRS  AMOUNT     LN SRC FRQ HRS  AMOUNT
 01  20  M  160 0038500       __  __  _  ___ _______     __  __  _  ___ _______
---------------------UNEARNED INCOME---------------------------------------------
 LN SRC FRQ  AMOUNT LN SRC FRQ  AMOUNT LN SRC FRQ  AMOUNT LN SRC FRQ  AMOUNT
 __ __  _  _______ __ __  _  _______ __  __  _  _______ __  __  _  _______
---PA INCOME----------DEPENDENT CARE-----------------------------------------------
    AMOUNT  AMOUNT    MMYY FRQ AMOUNT  MMYY FRQ AMOUNT  MMYY FRQ AMOUNT
    ______ ______     ____ _ ______  ____ _ ______  ____ _ ______
-----ADDITIONAL DEDUCTIONS/EXCLUSIONS----------------------------------------------
  MEDICAL B  P   SUPPORT       BRD/LDG      NEG-FRM     PSNL CR
  ______ 0  _    ______        ______       020000      ______
-------------------------CLAIMS------------------------------------------------
  RECALC  TY NO. DISQ. BALANCE AMOUNT  TY  NO. DISQ. BALANCE  AMOUNT
    _      _    _     ______  ______  _    _     ______   ______     XMT
```

EXAMPLE 2: A farmer, his wife, and three children are receiving SNAP. His oldest child receives wages of $300 per week from a job and $124.50 is received

semi-monthly from a Boarder/Lodger. The Boarder/Lodger exclusion - $194 and the farmer's loss of $200 are entered under Additional Exclusions.

```
WBGTFS      ** FS BUDGET **        VERSION                    DIST ALBA  04/29/2016
 CASE NAME                  CASE NO.   OFC UNIT  WRKR  TT SD CT CE  # SH AD IT P
 EXAMPLE TWO                SCRATCHPAD           X     05    31  N 05
 I/TY        ACTUAL ALLOW   UNEARNED INCOME    EARNED INCOME      ***** ADDL *****
   03 SHELT  10000  10000 LN SRC FRQ  AMOUNT LN SRC FRQ  AMOUNT ** EXCLUSIONS **
      WATER      0      0                  0 01  45  S    24900 BRD/LDG   19400
 X  0 HT/AC      0  63600                  0 03  01  W   130000 NEG-FRM   20000
      DISP       0      0                  0                 0 PSNL CR       0
      UTIL       0      0                  0     TOTAL   154900 SPONSOR       0
      PHONE      0      0     PA           0 HRS #  1   2   3   TOTAL     39400
      OTHER      0      0     PA           0           173
      TOTAL SHELT   73600     TOTAL        0          ****** DEDUCTIONS ********
                                                                ACTUAL   ALLOW
 $$ FS ALLOTMENT  $$ ******** CLAIMS **************   DEP CARE       0       0
 TOTAL INC    154900 T DISQ BALANCE AMOUNT  MO  REM    DEP CARE       0       0
 ADDL EXCL     39400     0        0      0         0   DEP CARE       0       0
 TOTAL DED     84400     0        0      0             MEDICAL 0      0       0
 FS NET INC    31100  RECALC            0             SUPPORT        0       0
 CLAIM AMT         0                                   20% EARNED         26000
 $$$$ BENEFIT $$$$$                                    STANDARD           19700
 MONTHLY       67700      ** EFFECTIVE DATE **         EXC SHELT  38700   38700
                             060116 TO 123116         TOTAL DEDUCTIONS   84400
                          DATE STORED   /  /          TA VERSION NO.
```

```
WBFSWB      ** FS INPUT **         VERSION
 CASE NAME                  CASE NO.   OFC UNIT  WRKR  TT SD  EFFECTIVE DATE  CT
 EXAMPLE_TWO_______________ SCRATCHPAD ___ _____ X____ 05  _ 060116 TO 123116 31
-------------------------SHELTER-----------------------------------------------
 NO.CASE  SPONSOR  FUEL     SUA   MMYY  EXPENSE  HT/AC  UTIL  PHONE  A/D  IT CE
   05       __     TYPE: 0  DATE: ____      IND:   X      _     _     _    _  N
 SHELT: TY AMOUNT   WATER   HT/AC   DISPOSAL  UTILITY  PHONE   OTHER: TY AMOUNT
        03 10000_   _____  _____   _____    _____  _____          __ ______
-----------------------EARNED INCOME-------------------------------------------
 LN SRC FRQ HRS  AMOUNT       LN SRC FRQ HRS  AMOUNT     LN SRC FRQ HRS  AMOUNT
 01  45  S  ___ 0012450       03  01  W  040 0030000     __  __  _  ___ _______
----------------------UNEARNED INCOME------------------------------------------
 LN SRC FRQ  AMOUNT LN SRC FRQ  AMOUNT LN SRC FRQ  AMOUNT LN SRC FRQ  AMOUNT
 __  __  _  _______ __  __  _  _______ __  __  _  _______ __  __  _  _______
---PA INCOME----------DEPENDENT CARE---------------------------------------------
    AMOUNT  AMOUNT    MMYY FRQ AMOUNT  MMYY FRQ AMOUNT  MMYY FRQ AMOUNT
   _______ _______    ____  _  ______  ____  _  ______  ____  _  ______
-----ADDITIONAL DEDUCTIONS/EXCLUSIONS-------------------------------------------
  MEDICAL B  P   SUPPORT       BRD/LDG      NEG-FRM     PSNL CR
  ______  0  _    ______       019400       020000      ______
-------------------------CLAIMS--------------------------------------------------
  RECALC  TY NO. DISQ. BALANCE AMOUNT  TY  NO. DISQ. BALANCE  AMOUNT
    _      _    _      ______ ______   _     _     ______   ______     XMT
```

EXAMPLE 3: A farmer, his wife and three children are receiving SNAP benefits (as one household). One child is employed on the farm and receives wages of

$500 per month from his father. The gross receipts for the farm are $2,500 per month, allowable operating expenses are $2,200 plus the $500 salary paid to the son. However, the salary paid to the HH member is not included in the Farm income calculation. $300 income is available to the SNAP HH. No NEG-FARM amount is entered.

```
WBGTFS      ** FS BUDGET **        VERSION                    DIST ALBA  03/15/2016
 CASE NAME                  CASE NO.   OFC UNIT  WRKR  TT SD CT CE  # SH AD IT P
 EXAMPLE 3                  SCRATCHPAD           X     05    31  N 05
 I/TY        ACTUAL ALLOW   UNEARNED INCOME    EARNED INCOME      ***** ADDL *****
   03 SHELT  10000  10000 LN SRC FRQ  AMOUNT LN SRC FRQ  AMOUNT ** EXCLUSIONS **
      WATER      0      0                  0 01  20  M    30000 BRD/LDG       0
 X  0 HT/AC      0  63600                  0                  0 NEG-FRM       0
      DISP       0      0                  0                  0 PSNL CR       0
      UTIL       0      0                  0     TOTAL    30000 SPONSOR       0
      PHONE      0      0     PA           0 HRS #  1   2   3   TOTAL         0
      OTHER      0      0     PA           0       120
      TOTAL SHELT   73600     TOTAL        0          ****** DEDUCTIONS ********
                                                                ACTUAL   ALLOW
 $$ FS ALLOTMENT  $$ ********* CLAIMS **************   DEP CARE       0       0
 TOTAL INC     30000 T DISQ BALANCE AMOUNT  MO  REM    DEP CARE       0       0
 ADDL EXCL         0     0        0      0        0   DEP CARE       0       0
 TOTAL DED     76100     0        0      0            MEDICAL 0      0       0
 FS NET INC        0  RECALC             0            SUPPORT        0       0
 CLAIM AMT         0                                  20% EARNED          6000
 $$$$ BENEFIT $$$$$                                   STANDARD           19700
 MONTHLY       77100      ** EFFECTIVE DATE **        EXC SHELT  71450   50400
                             060116 TO 123116        TOTAL DEDUCTIONS   76100
                          DATE STORED   /  /         TA VERSION NO.
                                                                          □
                                                Row=24 Col= 80            POLLe
```

```
WBFSWB      ** FS INPUT **          VERSION
 CASE NAME                  CASE NO.   OFC UNIT  WRKR  TT SD  EFFECTIVE DATE  CT
 EXAMPLE_THREE_____________ SCRATCHPAD ___ _____ X____ 05  _ 060116 TO 123116 31
-------------------------SHELTER-----------------------------------------------
 NO.CASE  SPONSOR  FUEL     SUA   MMYY  EXPENSE  HT/AC  UTIL  PHONE  A/D  IT CE
   05       __     TYPE: 0  DATE: _____      IND:   X     _     _     _    _  N
 SHELT: TY AMOUNT   WATER   HT/AC   DISPOSAL  UTILITY  PHONE   OTHER: TY AMOUNT
        03 10000_   ______ ______   ______   ______  ______          __ ______
-----------------------EARNED INCOME-------------------------------------------
 LN SRC FRQ HRS  AMOUNT       LN SRC FRQ HRS  AMOUNT      LN SRC FRQ HRS  AMOUNT
 01  20  M  160 0030000       __  __  _  ___ _______     __  __  _  ___ _______
---------------------UNEARNED INCOME-------------------------------------------
 LN SRC FRQ  AMOUNT LN SRC FRQ  AMOUNT LN SRC FRQ  AMOUNT LN SRC FRQ  AMOUNT
 __ __  _ _______ __ __  _ _______ __  __  _ _______ __  __  _ _______
---PA INCOME----------DEPENDENT CARE-----------------------------------------
    AMOUNT  AMOUNT    MMYY FRQ AMOUNT  MMYY FRQ AMOUNT  MMYY FRQ AMOUNT
   _______ _______    ____ _ ______   ____ _ ______   ____ _ ______
-----ADDITIONAL DEDUCTIONS/EXCLUSIONS-----------------------------------------
  MEDICAL B  P   SUPPORT       BRD/LDG      NEG-FRM      PSNL CR
  ______  0  _   ______       ______       ______       ______
-------------------------CLAIMS------------------------------------------------
  RECALC  TY NO. DISQ. BALANCE AMOUNT  TY  NO. DISQ. BALANCE  AMOUNT
    _      _   _    ______ ______   _   _    ______  ______      XMT
```

12. Certification Periods (See also Section 15)

Households whose primary source of income is from self-employment (including self-employed farmers) or from regular farm employment with the same employer must be certified for up to 12 months if the income can be reasonably predicted and household circumstances are not likely to change. Annual certification periods may also be assigned to farmworkers who are provided their annual salaries on a scheduled monthly basis which does not change as the amount of work changes.

It is customary to certify self-employed households in accordance with the submission of yearly tax forms. However, certification periods may also be certified to coincide with the sale of crops.

For example, a household's case is certified to coincide with the timing of its income tax return. A household files its income tax form in April each year and applies for SNAP in October each year. The household indicates that it does not anticipate any changes and that the self-employment income is intended to be its annual support. Based on the prior year tax form, the gross self-employment income was $22,000 and allowable SNAP expenses were $10,000, for an annual net self-employment income of $12,000. This amount must be divided by 12 and the resulting $1,000 amount must be used each month the household is certified until a new tax form is submitted or a change occurs. In this case, the local district should assign a six-month certification period because the household applied in October and count $1,000 net self-employment income each month from October through April.

Households that receive other sources of income or whose self-employment income is intended to cover a period of time that is less than a year shall be assigned a certification period appropriate for the household's circumstances following the regular certification period standards.

13. **Six Month Reporting Requirements** - See Section 14.

14. **Reporting Changes** - See Section 14.

References:

387.16 – Special Provisions for Household Circumstances

7 CFR 273.11 – Actions on Households with Special Circumstances

90 INF-6 Food Stamp Certification of Self-Employed Farmers

J. Boarders

1. Households With Boarders

A household with income from a boarder can participate in the program separate and apart from the boarding house residents if that household meets all of the program eligibility requirements.

2. Determining Income to Households Operating A Boarding House

Boarders who pay a reasonable amount for room and board must be excluded from the owner's household to determine the household's eligibility and benefits.

The income of a household owning and operating a commercial boarding house is treated as self- employment income and is calculated according to procedures in this section.

For all other households, payment from the boarder shall be treated as self-employment income and the household's eligibility determined as follows:

a. Income From the Boarder - The income from boarders shall include all direct payments to the household for room and meals, including contributions to the household's shelter expenses. Shelter expenses paid directly by boarders to someone outside of the household, such as to the landlord or utility company, shall not be counted as income to the household.

b. Income From Foster Care Payments - Foster care payments in excess of allowable, verifiable, reimbursable expenses may not be excluded as income if the foster child for whom the payments are being received is a member of the SNAP household. Such payments must be treated as unearned income to the SNAP household. If the child is not included in the SNAP household, then the total amount of the foster care payments must be excluded as income to the SNAP household.

c. Income From the Roomer - Money that a roomer pays to a household is self-employment income and is to be treated as specified in this section. However, before an individual is budgeted as a roomer, consideration should first be given to treating the individual as a non-household member, who shares in incurring household expenses.

d. Cost of Doing Business - After calculating the income received from boarders, the local district must exclude that portion of the boarder payment which is a business cost. The cost of doing business must equal one of the following:
   (1) The cost according to Thrifty Food Plan for a household size that is equal to the number of boarders.

   (2) The actual documented cost of providing room and meals if the actual cost exceeds the appropriate Thrifty Food Plan. If actual costs are used, only separate and identifiable costs of providing room and meals to

boarders shall be excluded. Furthermore, such costs cannot exceed the payments received from the boarder.

e. Deductible Expenses - The self-employment net income will be added to other earned income, and the 20% earned income deduction applied. Shelter costs actually incurred by the household, even if the boarder contributes to the household for part of the household's shelter expenses, will be computed to determine if the household will receive a shelter deduction. However, the shelter costs cannot include any shelter expenses paid directly by the boarder to a third party, such as the landlord or utility company.

f. Cost Of Meals - A reasonable monthly amount for meals shall be either of the following:
   (1) Boarders whose board arrangement is for three meals or more per day shall pay an amount which equals or exceeds the Thrifty Food Plan for the appropriate size of the boarder household; or

   (2) Boarders whose board arrangement is for two meals or less per day shall pay an amount which equals or exceeds two-thirds of the Thrifty Food Plan for the appropriate size of the boarder household.

g. Payment For Meals - When the boarder's payments for room are distinguishable from the payments for meals, only the amount paid for meals will be evaluated to determine if reasonable compensation is being paid for meals. The reasonable monthly amount for meals shall be paid in cash and cannot be credited toward the overall monthly payment.

Reference:

387.16 - Special Provisions for Household Circumstances

7 CFR 273.11 – Actions on Households with Special Circumstances

08 ADM 04 - Treatment of Income From Adoption Subsidy Payments and Foster Care Payments in Determining Food Stamp Program Eligibility and Benefit Amount

K. Educational Income

Educational grants, loans and scholarships that are intended for educational purposes other than general living expenses are excluded as income for SNAP. In addition, all educational income under Title IV of the Higher Education Act or under the Bureau of Indian Affairs student assistance program is excluded.

1. Definitions

a. Educational Income - Educational Income includes scholarships, work study grants, educational grants, fellowships, deferred payment loans for education, and any other monies provided or issued to enable a person to obtain education at:

b. A secondary school (high school) or a post-secondary school (college); a business, technical, trade, or vocational school, which normally requires a high school diploma or equivalency certificate for enrollment in the curriculum; college or university that offers degree programs regardless of whether a high school diploma is required; correspondence or on-line courses at least half time requiring a high school diploma or equivalent.

c. School for the mentally or physically handicapped, vocational education program or program that provides a high school diploma or the equivalent of a high school diploma.

d. Educational Expenses - Educational expenses are tuition, mandatory fees, dependent care expenses, cost of books and supplies, transportation costs, loan origination and insurance fees, and miscellaneous personal expenses, other than ordinary living expenses, incidental to a student attending a school, institution or educational program.

e. Educational Personal Expenses - Expenses for personal needs that are incidental to a student attending a school, institution or educational program. These expenses do not include the everyday living expenses such as rent, clothing or cost of food which a student would incur even if he or she were not attending school. Judgment must be used to determine if a personal expense can be excluded as an educational cost. For example, although the cost of food is a personal expense a student would incur even if not attending school, the costs of meals that must be purchased at school because of the dictates of the student's class schedule are excludable.

References:

387.11(f) – Income Exclusions
387.10 – Income Standards
7 CFR 273.9 – Income and Deductions
02 ADM-7 Food Stamp Program Reauthorization Changes
12 INF-14 Supplemental Nutrition Assistance Program Policy – Student Eligibility (Replaces 11-INF-06)

L. Anticipated Income

1. Anticipated Income

If household income in the next certification period will differ from income in the previous 30 days, the anticipated income will be used to determine eligibility.

Income cannot be budgeted if the amount or date of receipt is uncertain. If the exact amount of the income is not known, the portion which can be anticipated with reasonable certainty must be considered as income. In cases where the receipt of income is reasonably certain, but the monthly amount may fluctuate, the household may elect to have their income averaged.

2. Past Income as Indicator

Income received during the past 30 days shall be used as an indicator of the income that is and will be available to the household during the certification period. However, the local district shall not use past income as an indicator of income anticipated for the certification period if changes in income have occurred or can be anticipated.

a. If income fluctuates to the extent that a 30-day period alone cannot provide an accurate indication of anticipated income, the local district and the household may use a longer period of past time if it will provide a more accurate indication of anticipated fluctuations in future income.

b. If the household's income fluctuates seasonally, it may be appropriate to use the most recent season comparable to the certification period, rather than the last 30 days, as one indicator of anticipated income. The local district shall exercise particular caution in using income from a past season as an indicator of income for the certification period. In many cases of seasonally fluctuating income, the income also fluctuates from one season in one year to the same season in the next year.

c. The local district cannot automatically use past income as an indicator of anticipated income when changes in income have occurred or can be anticipated during the certification period.

3. Destitute Migrant or Seasonal Farmworker Households

Any income from a new source that is anticipated after the date of application shall be disregarded for destitute migrants and seasonal farmworker households. See SNAPSB Section 5. All other households anticipating receipt of income in the month of application shall have their income budgeted for the month of application providing there is reasonable certainty as to the amount and receipt of the income in the month of application.

References:

387.15 – Determining Food Stamp Benefit Levels
7 CFR 273.10 – Determining Household Eligibility and Benefit Levels

M. Income Only In Month Received

Income anticipated during the certification period can be counted only in the month received. Whenever a full month's income is anticipated but is received on a weekly or bi-weekly basis, the local district must determine the monthly income by one of the following methods:

- Use the local district TA conversion standard.
- Use the exact monthly figure if it can be anticipated for each month of the certification period.

1. Wages Withheld

Wages withheld at the request of the wage earner count as income available to the household for the month the wages normally would have been received. However, wages withheld by the employer (even in violation of law) cannot be counted as household income unless wages have been withheld previously and the wage earner reasonably anticipated that they will request and receive an advance from those previously held wages. The amount of the advance will then be counted as income in the month it is received.

2. Federal or State Benefit Income

Households receiving TA, Military pay, SSI or Social Security payments or similar Federal and State benefits on a recurring basis shall not have their monthly income from these sources varied merely because mailing cycles may cause two payments to be received in one month and none in the next month.

3. Destitute Migrant or Seasonal Farmworker Households

Destitute migrant or seasonal farmworker households must have their eligibility and level of benefits calculated for the month of application considering only income which is received between the first of the month and the date of application.

4. Travel Advances

If a travel advance is, by written contract, an advance on wages that will be subtracted from the wages later earned by the employee, rather than a reimbursement, the wage advance shall count as income when received.

Reference:

387.14 - Determination of food stamp eligibility

N. Income Averaging

1. Households Electing To Have Income Averaged

Any household, except destitute migrant or seasonal farmworker households, may elect to have their income averaged. The local district must use the household's anticipation of income fluctuations over the certification period. The number of months used to calculate the average income need not be the same as the number of months in the certification period.

EXAMPLE: If fluctuating income for the past 30 days and the month of application are known and, with reasonable certainty, are representative of the income fluctuations anticipated for the coming months, the income from the two known months may be averaged and projected over a certification period of longer than two months.

NOTE: Income shall not be averaged for a destitute migrant or seasonal farm worker household, since averaging would result in assigning to the month of application income from future periods which is not available to the destitute household for its current food needs.

2. When A Household's Income Must Be Averaged

a. Self-Employment Or Contract Income - Households which receive their annual income by contract or self-employment in a period of time shorter than a year shall have their income averaged over a 12-month period, provided the income from the contract is not received on an hourly (as defined in paragraph (2) below) or piecework basis. These households include school employees, sharecroppers, farmers and other self-employed individuals.

(1) A contract employee is one that has an agreement with an employer to work a certain length of time or perform a specific job. This may be either a written contract or an implied contract, e.g., tenured teachers.

(2) An employee who is paid hourly is one that is paid based on the number of hours they work when there is no established work schedule, e.g., a handyman who performs odd jobs on a non-recurrent basis.

(3) Acceptable verification can be a statement from the employer or a written document, such as a copy of the contract or agreement that shows the terms of employment. A teacher's aide who works 10 months of the year for $15.00/hr and 5 hrs/day, who has a statement from the Department of Education that it intends to rehire them for the following school year, would be a contract employee whose income would be annualized. The average amount of monthly income from the school job, plus any other income the household may have, would be counted in determining if the household is entitled to SNAP benefits including expedited service.

NOTE: Migrant and seasonal farm workers must not have their income averaged over a 12-month period.

Reference: 387.14 - Determination of food stamp eligibility

SECTION 14: Rules for Reporting Changes

A. Types of Change Reporting

There are five major types of reporting rules for SNAP:

1. Simplified Reporting Rules

Simplified Reporting rules affect the majority of SNAP cases. All SNAP households are Simplified Reporters except:

- "Change" 10-Day Reporting households,
- Transitional Benefit Alternative (TBA) Reporting households,
- New York State Combined Application Project (NYSCAP) Reporting households, and
- Elderly Simplified Application Project (ESAP) households.

a. Changes to Be Reported

Households must report the information or changes below at initial application, when completing the Periodic Report, and at Recertification:

(1) Changes in the household's total earned income when it increases or decreases by more than $125 since the last time the household's SNAP budget was calculated

(2) Household composition, e.g., the addition or loss of a household member

(3) New address

(4) New rent or mortgage costs, if household moves

(5) Changes in any source of income

(6) Changes in the amount of child support a client is court-ordered to pay outside their home

(7) Changes in the household's total unearned income when it increases or decreases by more than $125 since the last time the SNAP budget was calculated, if received from a public source (SS benefits, UIB, etc.)

(8) Changes in the household's total unearned income when it increases or decreases by more than $125 since the last time the SNAP budget was calculated, if received from a private source (child support, private disability, etc.)

(9) Increase in resources above the resource limit for those households not categorically eligible.

(10) If the household has an additional or change in licensed vehicle for those households not categorically eligible.

(11) ABAWDs must report to the local district when their work hours fall below 80 per month. This must be reported within 10 days after the end of the month when work hours fall below 80 hours per month. ABAWDs must also document hours of participation in unpaid work activities during the month within 10 days after the end of the calendar month.

(12) If any household member receives substantial lottery/gambling winnings of $4,500 or more won as a cash prize in a single game before taxes or withholding.

Change reporting is always included in the CNS notice at opening, change, recertification, and reopening transactions. Districts are required to determine what reporting system applies to the household, explain the reporting requirements to the recipient household and additionally, if a household falls within the simplified reporting category, the recipient household should be informed of the appropriate gross monthly income threshold at which they become required to report. The requirements of the Simplified Reporting System can be explained and monitored by using the decision matrix on the "Change Report Form" (LDSS-3151) at certification and recertification interviews.

Note: The LDSS-4908 Upstate Supplemental Nutrition Assistance Program (SNAP) Change Reporting Desk-Aid is also an available resource for LDSS staff.

b. When to Report Changes

Simplified Reporters must report changes:

(1) At recertification and upon receipt of the Periodic Report (LDSS-4310) form. NTA/SNAP households with certification periods of seven full months or longer are required to complete and return a WMS-generated periodic report by the tenth day of the sixth month of their certification period, in addition to reporting whenever their total gross income exceeds 130 percent of poverty.

(2) TA/SNAP households that are certified for less than seven full months are not required to complete periodic reports. In districts that have authorized TA certification periods for longer than six months, the TA mail-in recertification form is substituted for one of the mandatory TA semi-annual face-to-face recertifications. TA/FS households that are certified for seven full months or longer, subject to SNAP six-month reporting rules must return the TA mail-in recertification form as their SNAP six-month contact. The Periodic Report will no longer be sent to TA/FS households in the fifth month of their certification periods.

(3) During the certification period when:

(a) A household's gross monthly income goes above USDA's 130% of the poverty guidelines for their household size, or

(b) Hours of paid work fall below 80 hours per month for an ABAWD household

(4) A household's applicable poverty level is based on its household size at last required contact: initial application, periodic report, recertification, unless the local district has already processed a change in household size on the ABEL budget, as described in Section 5.

(5) If the household's gross monthly income exceeds the 130% of the poverty level, it must be reported to the social services district by phone, in writing, or in person within 10 days following the month of change.

(6) Please note that a household subject to simplified reporting must report when its gross monthly income exceeds 130% of poverty *even* if it is subject to a higher SNAP gross income limit due to broad-based categorical eligibility or the presence of an aged or disabled household member.

(7) Any other changes to the household including household composition, rent costs, and gross monthly income changes under 130% of the poverty level do not need to be reported until the next point of contact, either at recertification or on the periodic report received halfway into the certification period. However, a household may voluntarily report changes regardless of their requirement to report.

(8) SNAP households that are subject to Able-Bodied Adults Without Dependents (ABAWD) requirements, have earnings, and are certified for at least six months need to report when their work hours fall below 80 hours per month. The ABAWD household must report the reduction in work hours within 10 days after the end of the month in which they fell below 80 hours.

(a) If the ABAWD receives SNAP benefits for more than 3 months in a 36-month period without participating in ABAWD work requirements, the local districts must issue a timely notice of adverse action to delete the ineligible individual or, for a one-person household, to close the case.

(9) SNAP households that are subject to ABAWD requirements that do not have earnings need to document hours of participation in unpaid work activities within 10 days after the end of the calendar month.

c. For simplified reporters, only the following changes can be reflected in the SNAP benefit calculations during the certification period:

(1) Total household monthly gross monthly income exceeds 130% of the poverty level. (This report must be documented in writing. If reported by phone, worker must send a written request to client to confirm information).

(2) Information is considered verified upon receipt.

(3) Information is reported on the Periodic Report form (except “Simplified Deductions” i.e., non-move shelter, medical, or childcare expenses).

(4) Household requests to have case closed.

(5) Changes resulting from a TA budget change

(6) Household voluntarily reports and verifies information

(7) Household receives SNAP benefits for 3 months in the 36-month period and is not meeting ABAWD requirements.

d. Acting on Reported Changes

(1) TA/SNAP households will report changes pursuant to the TA ten-day reporting requirement

(2) For a TA/SNAP case and a NTA/SNAP case subject to the SNAP simplified reporting rule, the worker must act on information that affects SNAP eligibility and benefit amounts only in the following circumstances:

(a) The information resulted in a change in the TA grant amount, including when total household gross monthly income exceeds 130 percent of poverty. When a SNAP household reports in person or in writing that their income exceeds 130 percent of poverty, the local district must act on the reported change. When a SNAP household informs the local district by telephone of income over 130 percent of poverty, the local district must immediately send the household a written request to confirm the reported information, either with documentary evidence or by a written and signed statement. The district must allow ten days for the household to provide verification, and act on the additional information when received.

(b) If a household fails to comply with the request for verification, the local district must provide timely and adequate notice to discontinue SNAP benefits;

(c) The information is considered verified upon receipt (Please see section “Changes Considered Verified Upon Receipt” below for a definition of "verified upon receipt");

(d) The information is reported at recertification;

(e) The information is reported on the SNAP simplified periodic report (LDSS-4310) by a household with a certification period longer than six months; or

(f) The household voluntarily reports and verifies information that will increase the SNAP benefit;

(g) The household voluntarily requests to have its SNAP case closed. Local districts are reminded that, when a household requests in writing to have its SNAP benefits terminated, they may close the case without further notice. Local districts must send an adequate notice confirming a household's oral request to close its SNAP case.

(h) The household includes an ABAWD who has received SNAP benefits for 3 months in the 36-month period and is not meeting ABAWD requirements.

(3) Local districts must provide a “timely and adequate” notice prior to closing a case for failure to return a periodic report. Local districts may provide “adequate only” notice sent no later than the date of the proposed action for changes resulting from information furnished in a periodic report.

(4) In addition, local districts must continue to process non-financial changes that households may voluntarily report during their certification periods, such as address changes and corrections of demographic information.

(5) For TA/SNAP and NTA/SNAP simplified reporting households, workers must not act on, or compute SNAP overpayment amounts for, change reports other than those listed above. When a simplified reporting household notifies the local district of, but does not verify, a change that decreases the SNAP benefit, the local district cannot require the household to verify the change for SNAP purposes but must act on the change. If the change would increase benefits, however, the local district must inform the household that SNAP benefits cannot be increased until the household verifies the change and encourage the household to provide verification.

(6) During its certification period, a TA/SNAP household's failure to report a change does not result in a SNAP overpayment or loss of SNAP eligibility unless the household:

(a) Has total gross monthly income over the 130 percent of poverty threshold;

(b) Has a certification period of more than six months, and fails to report changes on the periodic reporting form (LDSS-4310), or fails to return a completed periodic reporting form in the sixth month; or

(c) Is subject to, and fails to meet, Able-Bodied Adults Without Dependents (ABAWD) eligibility requirements for more than 3months in the fixed 36-month period.

NOTE: At application or recertification, when changes occur between the Date of Interview and the date the Notice of Eligibility is issued, the

household will have until 10 days following the end of the calendar month the Notice of Eligibility was issued to report any changes. Failure to report changes during this period can result in a SNAP overpayment (see 04-ADM-01).

(7) Simplified Reporters and Multiple Changes Voluntarily Reported

If during a certification period, a simplified reporting household voluntarily reports two or more changes at the same time, and one of the reported changes would result in a benefit increase and the other would result in a benefit reduction, decreases in benefits may be processed, based on the household's information, with verification pended until the next recertification. No increases in benefits are processed unless the changes are verified. Also, multiple changes that are interrelated would not be made independently without verification. For example, a new household member would not be added to the budget without verifying and including his/her income and no action would be taken until the totality of changes were verified.

e. Additional Information About Simplified Reporting

(1) Closing simplified reporting household's cases - Local districts must discontinue SNAP benefits of a simplified reporting household when the household:

(a) Becomes ineligible based on a reported change in gross monthly income that exceeds the 130 percent threshold;

(b) Requests to have its case closed;

(c) Is certified for more than six months, and fails to return a completed periodic reporting form (LDSS-4310) in their sixth month;

(d) No longer resides in New York State;

(e) All household members have died; or

(f) Is otherwise ineligible for reasons such as failure to meet ABAWD requirements, or because all household members are sanctioned or disqualified, or for a reason that is voluntarily reported by the household such as ineligible student status.

(2) Leaving simplified reporting

(a) A household that loses all of its income or otherwise becomes no longer eligible for simplified reporting will remain on simplified reporting until its next recertification. At that time the district is required to explain the reporting rules under which the household is required to report.

(b) When an eligible member of a simplified reporting household leaves during the certification period, the individual is not removed from the case count unless:

i. The certification period is longer than six months and the change was reported on a simplified periodic reporting form (LDSS-4310);

ii. Removing the individual (and their income) will result in increased benefits and all of the information regarding the change is verified; or

iii. The person leaving has joined another SNAP household, which requests that the individual be added to their case.

2. "Change" 10-Day Reporting Rules

a. "Change" 10-Day Reporting rules apply to the following:

(3) Households with no income

(4) Households that are certified for less than 4 months

(5) Migrant or seasonal farmers

(6) Undomiciled/homeless households

(7) Households in which all adult members are aged/disabled with no earned income (except NYSCAP and ESAP cases)

(8) Group home residents in receipt of SSI or SSD

b. Changes to Be Reported - Households must report the following changes within ten days following the month of change:

(1) Changes in the household's total earned income when it increases or decreases by more than $125 since the last time the household SNAP budget was calculated

(2) Household composition, e.g., the addition or loss of a household member

(3) New address

(4) New rent or mortgage costs, if the household moves

(5) Changes in any source of income

(6) Changes in the amount of child support a client is legally obligated to pay outside their home,

(7) Changes in the household's total unearned income when it increases or decreases by more than $125 since the last time the SNAP budget was calculated, if received from a public source (SS benefits, UIB, etc.)

(8) Changes in the household's total unearned income when it increases or decreases by more than $125 since the last time the household's SNAP budget was calculated if received from a private source (child support, private disability, etc.)

(9) Increase in resources above the resource limit for those households not categorically eligible.

(10) If the household has an additional or change in licensed vehicle for those households not categorically eligible.

(11) ABAWDs must report to the local district when their work hours fall below 80 per month. This must be reported within 10 days after the end of the month when work hours fall below 80 hours per month. ABAWDS must also document hours of participation in un-paid work activities during the month within 10 days after the end of the calendar month.

(12) If any household member receives substantial lottery/gambling winnings of $4,500 or more won as a cash prize in a single game before taxes or withholding.

NOTE: At application or recertification, when changes occur between the Date of Interview and the date the Notice of Eligibility is issued, the household will have until 10 days following the end of the calendar month the Notice of Eligibility was issued to report any changes.

c. "Change" 10-day Reporters must report during the certification period:

(1) Changes by the 10th day of the month following the month of change

(2) Notify the district either by phone, in writing or using the SNAP Change Report Form of the reportable change and provide verification

NOTE: Changes that result in reduction in benefits/case closing will affect the budget for the month following the end of the ten-day notice period.

3. TBA Reporting

a. Changes to Be Reported:

(1) There is no requirement to report changes during the 5-month TBA period.

(2) If the household wants to report a change that would increase SNAP, they must recertify and TBA ends early. If the household fails to come in for this early recert appointment, continue SNAP benefits unchanged at the TBA amount until the end of the 5-month TBA period. Do not close the case during the TBA period for this reason.

4. NYSCAP

a. Changes to Be Reported:

(1) NYSCAP SNAP clients do not have any reporting requirements outside of the required interim contact (except at the interim contact). They could report any change that might cause an increase in their SNAP. If reported and verified, the worker needs to determine the effect on the NYSCAP benefit and adjust it accordingly.

(2) A client may report and verify increases in medical expenses, rent or utility costs, or a move to a new address at anytime.

(3) NYSCAP households receive an interim contact form (LDSS-4836) 18 months prior to the end of their certification period. The purpose of the form is to verify current shelter and/or utility expenses in order to determine if households are eligible for more SNAP benefits than are currently being received.

(4) Each household:

(a) Must sign, date, and return the form

(b) Must document any changes prior to having their SNAP benefits increased

(5) The district must process changes from unsolicited reports that meet the definition of “verified upon receipt", reports from primary sources that may affect either eligibility or benefit amount. These reports may also include automated reports of SDX information requiring the state or the local district to remove the participant from NYSCAP when the SDX indicates the participant is no longer in receipt of SSI income. Districts must also process information received as verified upon receipt from the household itself as a primary source which indicates the household would receive a different benefit amount.

5. ESAP

a. Changes to be Reported:

(1) ESAP households are considered Simplified Reports but MUST also report the following changes within 10 days after the end of the month in which the change happened:

(a) Changes in who lives with them;

(b) If anyone in the household begins receiving earned income;

(c) If any household member receives substantial lottery/gambling winnings of $4,500 or more won as a cash prize in a single game before taxes or withholding.

(2) At the midpoint in the certification period the household will receive an Interim Report, the LDSS-3151 – "Supplemental Nutrition Assistance Program (SNAP) Change Report Form", which the household may voluntarily return if they have changes to report at that time. Negative action cannot be taken against an ESAP household that does not return this non-mandatory Interim Report. Changes that are reported by the household that would increase its SNAP benefit should be acted upon, but must be verified, either using system resources and data matches or, if necessary, by documents which the household would provide. Negative action cannot be taken against a household for failure to verify such changes, but they should be further explored at the next recertification.

Reference:

387.17 Certification/Authorization

273.12 Requirements for Change reporting Households

273.24 Time Limit for Able-Bodied Adults

273.30 Transitional benefit alternative change reporting requirements

13 ADM 04 SNAP Reactivation Waiver

01 ADM 09 Six Month Reporting Rules Food Stamp Households with Earned Income

02 ADM 07 Food Stamp Program Reauthorization Changes

02 INF 26 Revision to the Periodic Report

03 INF 10 Food Stamp Program Questions and Answers

04 ADM 02 Change in Food Stamp Change Reporting Rules

04 INF 13 Revisions to the system generated Periodic Report

07 ADM 05 Food Stamp Reporting for Ten Day Reporters

13 INF 02 Revision to the LDSS 4310 Periodic Report

93 AMD 09 Quarterly Reporting System (QRS)

95 INF 19 Quarterly Reporting System Question and Answers

01 ADM 14 Temporary Assistance Procedures: District Waiver Option of Quarterly Reporting Requirements (QRS)

07 ADM 01 Temporary Assistance Procedures: Elimination of Quarterly Reporting System (QRS) Requirements and Welfare-To-Work Procedures: Documenting Hours of Paid Employment

21 TA/DC080 Preliminary Guidance Regarding the New York State Combined Application Project (NYSCAP)

21 TA/DC079 Preliminary Guidance Regarding the Elderly Simplified Application

LDSS 4310 Periodic Report

LDSS 4310A Follow Up to the Periodic Report

LDSS 4908 Change Reporting Desk Aid

LDSS 4836 NYSCAP Supplemental Nutrition Assistance Program (SNAP) Benefits Interim Report

LDSS-4836(NYC), NYSCAP SNAP Case Interim Report

B. Interim Reporting

1. Periodic Reports

NTA/SNAP households with certification periods of seven full months or longer are required to complete and return a WMS-generated periodic report LDSS-4310 Periodic Report by the tenth day of the sixth month of their certification period, in addition to reporting whenever their total gross income exceeds 130 percent of poverty. For households that fail to submit the LDSS-4310 Periodic Report by the tenth day of the process month, the SSD shall send the household a timely and adequate notice of discontinuance using case level reason code E50 Failure to Return Periodic Report. This transaction will automatically generate an LDSS-4310A Follow-up to the Periodic Report which provides the SNAP household the required 10-days to submit form LDSS-4310A to the SSD.

2. TA/SNAP households

Certified for less than seven full months are not required to complete periodic reports. In districts that allow authorized TA certification periods for longer than six months, the TA mail-in recertification form is substituted for one of the mandatory TA semi-annual face-to-face recertifications. TA/FS households that are certified for seven full months or longer, subject to FS six-month reporting rules must return the TA mail-in recertification form as their FS six-month contact. The Periodic Report will no longer be sent to TA/FS households in the fifth month of their certification periods.

3. Notices/Forms

At application and each recertification, districts must explain reporting rules to SNAP households, and ensure households are aware of changes they are required to report.

a. Federal regulations at 7 CFR 272.5(b)(1) requires State agencies to inform SNAP participant and applicant households of their program rights and responsibilities. Federal regulation 7 CFR 273.2(e)(1) requires, as part of the eligibility interview, that the interviewer must advise households of their rights and responsibilities, including the appropriate application processing standard and the household's responsibility to report changes, at the following times:

   (1) When they are opened for SNAP. This also applies to NTA/SNAP cases opened as result of separate SNAP determination after TA case closings;

   (2) In the first month of NTA/SNAP after TBA;

   (3) When they report new income, employment, and no income was previously budgeted; and

   (4) At each recertification

b. The Request for Contact (RFC) is used very sparingly for simplified reporting households. It should be used in the following situations:
   (1) A household has verbally reported a move within the district, and the move is left unverified. In a TA/SNAP case, the TA case would close (if the family fails to respond), but the SNAP portion must remain open. Additionally, the TA income would be removed, and the household would receive the Transitional Benefits Alternative (TBA). However, under such a situation if the TA/SNAP case were to be moving out of district, the RFC would be sent for SNAP and, if the household failed to respond, SNAP benefits would be discontinued with a timely and adequate notice.
   (2) To confirm/verify a phone report from a client who has called to indicate that the household income has exceeded the 130% poverty level.
   (3) To investigate or clarify some information from the last certification interview if information received from another source has called into question the accuracy/completeness of the household's reporting at the last certification.
   (4) When the post office returns mail **and** lists a new address that is still within the local district for an NTA/SNAP case, the benefits would continue until the end of the certification period.

C. Changes Considered Verified Upon Receipt

1. Computer Matches

In order for a local district to be able to take SNAP action on a computer match without any further verification, the information must be "verified upon receipt". Verified upon receipt means that the information:

a. Is not questionable
b. Is timely
c. Is coming from a primary source

The following computer matches are determined by OTDA to be verified upon receipt for SNAP purposes and require no further verification at the local district level before they take SNAP action:

Match	Data Provided From	Information Provided To Local District
SDX	State Data Exchange	Applicants/Recipients in receipt of SSI
BENDEX	Social Security Beneficiary Data Exchange	Applicants/Recipients in receipt of RSDI
PARIS	Public Assistance Reporting Information System	Recipients in receipt of benefits in another state/duplicate assistance
Prison	NYS Department of Correctional Services and Division of Criminal Justice Services	Recipients who are incarcerated in state, county or city jails
UIB	NYS Department of Labor	*Recipients who are receiving Unemployment Insurance Benefits
VED	The Verified Employment Data is verified through either TALX/The Work Number or NDNH Manual Employment Verifications prior to posting; the information being verified originates from a match run against the National Directory of New Hires	TANF Adult Recipients who have been identified as completing a W-4 "Employee's Withholding Allowance Certificate" and verified as receiving wages

* UIB matches for Applicants are not considered verified upon receipt. Due to processing constraints, only Master Benefit Record information is received. This includes the Weekly Benefit Amount, Expiration week and year but does not include the actual weekly payments made to the client. Therefore, the UIB matches for Applicants do not meet the verified upon receipt criteria.

Note: The NCIC and Fleeing Felon matches were discontinued in 2010 due to the Fowlkes and Clark litigations.

For purposes of processing changes for SNAP households subject to simplified reporting, information is considered to be verified upon receipt if it is not questionable and the provider is the primary source for the information. A report of a change in income cannot be considered as verified upon receipt unless it includes the exact new income amount, the effective date of receipt of the income and any other information needed to recalculate the SNAP benefit amount. Examples of information that is verified upon receipt include the following:

a. Computer match information about federal benefits received from the Social Security Administration, such as SDX and BENDEX, please see table above. SSDs are reminded that computer matches from secondary sources, such as quarterly wage matches or earned income information on the SDX, are not considered verified on receipt, and would be resolved at the households' next six-month contact;

b. Information from the Department of Labor or local district employment contractor that a recipient failed to comply with a SNAP work requirement;

c. A determination by a court, administrative hearing or disqualification consent agreement of an Intentional Program Violation (IPV);

d. Actions taken by other programs under the authority of the local district that affect budgeted SNAP expenses;

The district must process changes from unsolicited reports that meet the definition of “verified upon receipt" - reports from primary sources that may affect either eligibility or benefit amount. These reports may also include automated reports of SDX information requiring the state or the local district to remove the participant from NYSCAP when the SDX indicates the participant is no longer in receipt of SSI income. Districts must also process information received as verified upon receipt from the household itself as a primary source which indicates the household would receive a different benefit amount.

The matches listed below DO require further verification by the local districts before any SNAP action may be taken. These matches are not verified upon receipt. They are:

Match	Unverified Data Provided From	Information Provided To Local District
WRS	Wage Reporting System from NYS Tax and Finance	Applicants/Recipients in receipt of past wages; local districts must still verify employment
SDNH	State Directory of New Hires from NYS Tax and Finance	Applicants/Recipients who have completed a W-4 "Employee's Withholding Allowance Certificate"; local districts must still verify employment

Reference:

387.1(w) Definitions

387.14(a) Determination of Food Stamp Eligibility

387.17 Certification/Authorization

P.L.105-33 Section 1003 DENIAL OF FOOD STAMPS FOR PRISONERS

273.1(b) Definitions

273.2(k) Office operations and application processing

273.11(n) Action on households with special circumstances

01 ADM 08 - Changes in Food Stamp Application and Recertification Procedures

01 ADM-09 – Six Month Reporting Rules Food Stamp Households with Earned Income

02 ADM-07 – Food Stamp Program Reauthorization Changes

04 ADM 02 - Changes in Food Stamp Program Change Reporting Rules

07 ADM-05 – Food Stamp Reporting for Ten Day Reporters

03 INF-10 – Food Stamp Program Questions and Answers: Application processing, Six Month Reporting, Transitional Benefits and Standard Utility Allowance

06 INF-10 – Computer Matching Clarification for Food Stamps

14 INF 05 Resource File Integration (RFI) Policy and Procedures

LDSS 4753 SNAP Request For Contact/missed interview

LDSS 3151 Food Stamp Change Reporting Form

SECTION 15: Certification Periods/Issuing Benefits

1. Certification Periods

1. Definite Certification Period

Households eligible for receipt of SNAP benefits receive those benefits for a specific period of time coinciding with the periods of eligibility determinations and redeterminations.

NOTE: When the certification period ends, SNAP entitlement expires and benefits cannot continue without the submission of a recertification application and a redetermination of eligibility. Certification periods will conform to calendar months and begin with the month of application. Certification periods are not to exceed twenty-four months, except for households that participate in the NYS Combined Application Project (NYSCAP) or Elderly Simplificed Application Project (ESAP).

EXAMPLE: Mrs. Greene submits an application on January 20th. She is screened for expedited benefits and found ineligible for expedited processing. An eligibility determination for on-going benefits is made on February 10th. Her household's six month certification period would be January 20th through June 30th and the household would be issued retroactive benefits from January 20th.

2. Temporary Assistance Households

Certification periods for SNAP cases in receipt of TA, shall not be made less frequently than those required in Department Regulation 18NYCRR 350.2 for TA cases. TA/SNAP cases may be certified to expire the month following the household's TA redetermination date, providing the SNAP certification period does not exceed one year.

a. TA/SNAP Certification Periods **LESS THAN** 12 Months - If all household members receive TA, the SNAP certification period may be the TA certification period, plus one month beyond.

b. TA/SNAP Certification Periods **OF** 12 Months - If the TA certification period is for twelve months, the SNAP certification period is also for twelve months.

c. TA/SNAP Simplified Reporting Cases - TA/SNAP cases subject to simplified reporting should have concurrent certification periods.

d. TA/SNAP Recertification - SNAP recertification will take place at the same time TA eligibility is reviewed. The beginning of the subsequent certification period for TA and SNAP shall coincide.

3. Non-Temporary Assistance (NTA) Households

a. Normal Certification Periods - NTA households will receive the longest certification period possible based on the stability of the household circumstances.

b. Other Certification Periods - Other households will be certified for at least four months except:

(1) Households which at time of initial certification had their certification process completed after the 15th day of the month of application and also had circumstances which warranted it shall have their eligibility/certification period increased by one month;

(2) When the household cannot reasonably predict what its circumstances will be in the near future, or when there is a substantial likelihood of frequent and significant changes in income or household status the eligibility/certification period shall not be more than two months;

NOTE: This is most likely to occur for day laborers and migrant workers during the season when income fluctuates because of weather.

(3) Households which have little likelihood of changes in income and household status, the eligibility certification period shall be up to 12 months;

(4) Up to 24 months for households where all adults are elderly/disabled persons and have no earned income. Districts must have contact with these households at the twelve-month point.

(5) Districts may lengthen a household's current certification period once it is established, as long as the total months of the certification period do not exceed 24 months for households in which all adult members are elderly or disabled, or 12 months for other households (with the exception of NYSCAP and ESAP). If the agency extends a household's certification period, it must advise the household of the new certification ending date with a notice containing the same information as the notice of eligibility.

(6) Up to 12 months for households whose primary source of income is from self- employment (including self-employed farmers) or from regular farm employment, including farm workers whose annual salaries are paid on a scheduled and unchanging monthly basis, provided income can be readily predicted and household circumstances are not likely to change.

(7) Households subject to Simplified Reporting shall be certified every 6 months unless the SSD has requested and received a waiver from OTDA for a longer certification period.

(8) Households which are granted separate household status because the household consists of an individual and that individual's minor child(ren) living with the individual's parent or sibling and purchasing and preparing

meals separate from the parent/sibling, the eligibility/certification period will not exceed six months.

4. Certification Periods for Expedited Services Cases

Households which qualify for expedited service, and are determined eligible for SNAP benefits, shall be assigned certification periods in accordance with this Section. Whenever practical, even when verification is postponed, districts should assign normal certification periods of at least four months as there are significant advantages gained in subsequent notice requirements. No adverse notice, and no recertification call-in, are required if such a household is certified for at least four months and subsequently fails to submit the pended verification. Regardless of the length of the certification period assigned, issuance of SNAP benefits is limited to the initial expedited payment period of the month of application, or the month of application and the subsequent month if the household applies after the 15th of the month.

If verification is postponed, the district may:

- Assign a normal certification period of four months or longer to those households whose circumstances (as specified in this Section of the SNAP Sourcebook) would otherwise warrant a longer certification period, or
- Assign a three month certification period, or
- Certify these households for one or two months - the month of application (the month of application and the subsequent month for those households applying after the 15th of the month).

a. Four Months Or Longer - The district shall notify the household in writing as defined in SNAP SB Section 8, that no further benefits will be issued until the postponed verification is completed. No Adverse Action Notice is required if the household does not complete the verification, or completes it and it results in a lower benefit. The household must have received written notice that the receipt of benefits beyond the month of application (or the month of application and the subsequent month if applying after the 15th of the month) is contingent on its providing the verification which was initially postponed and that the verified information will be acted on without further notice.

b. Three Months - The SSD shall notify the household in writing as defined in SNAP SB Section 8, that no further benefits will be issued until the postponed verification is completed. When certified for three months, the household must be sent a recertification notice in the second month of the certification period. The household must recertify and complete the verification requirements which were postponed. The household must have received written notice that the receipt of benefits beyond the month of application (or the month of application and the subsequent month if applying after the 15th of the month) is contingent on its providing the verification which was initially

postponed and that the verified information will be acted on without further notice.

c. One Or Two Months - The District shall notify the household in writing as defined in SNAP SB Section 8, that no further benefits will be issued until the postponed verification is completed. When certified for one or two months, the household must be issued a recertification notice at certification with the Action Taken Notice. The household must recertify and complete the verification requirements which were postponed. The household must have received written notice that the receipt of benefits beyond the month of application (or the month of application and the subsequent month if applying after the 15th of the month) is contingent on its providing the verification which was initially postponed and that the verified information will be acted on without further notice.

   For households that are certified for one month or longer and verification is postponed as described in a., b., and c. above, State prescribed language in Client Notice System (CNS) and on the LDSS-3152 & LDSS-4013B meets this requirement.

d. Timeframe For Submission Of Postponed Verification - In order to receive continued ongoing benefits without interruption, the household must submit the postponed verification by the end of the month following the last month of the expedited period.

   Example: Household applies on May 16th, eligible for expedited processing, and found eligible for ongoing SNAP benefits. Initial expedited payment would be authorized for the period May 16th through June 30th. If the postponed verification is submitted by July 31st, and the household is still eligible, the July benefit would be issued retroactively to July 1st and the ongoing issued as determined by BICS.

e. There is no limit to the number of times a household can receive expedited processing of their SNAP applications, as long as prior to each expedited certification the household either

   - completes verification that was postponed at the previous expedited certification, or
   - was certified under normal processing (no pended verification) since the last expedited certification, or
   - submits all verification relevant to the current application so that no verification needs to be pended.

References:

387.14 Determination of Food Stamp Eligibility

387.17 Recertification/Authorization

01 ADM-8 Changes in Food Stamp Application and Recertification Procedures

03 INF-10 Food Stamp Program Questions and Answers: Application Processing, Six-Month Reporting, Transitional Benefits and Standard Utility Allowances

11 INF-07 District Policy Options

15 INF-05 Revised LDSS-3938 and LDSS-3938 NYC: "Supplemental Nutrition Assistance Program (SNAP) Application Expedited Processing Summary Sheet"

2. Issuing Benefits

1. Normal Time Standard

Opportunity To Participate - "Opportunity to participate" means that the household has a CBIC and a PIN, and SNAP benefits have been entered on the system which enables the household to redeem the benefits at USDA authorized SNAP retailers.

All eligible TA/SNAP and NTA/SNAP households which complete the initial application process as described in SNAP SB Section 4 must have an opportunity to participate in the SNAP Program. The SSD must provide the opportunity to participate as soon as possible after the application is filed, but not later than 30 calendar days after the application was filed.

NOTE: If the 30th day falls on a non-work day, the SSD must provide the household with the "opportunity to participate" no later than the first work day prior to the 30th day. (§ 273.2 Office operations and application processing: (g) Normal processing standard —(1) Thirty-day processing. The State agency shall provide eligible households that complete the initial application process an opportunity to participate (as defined in §274.2(b)) as soon as possible, but no later than 30 calendar days following the date the application was filed. An application is filed the day the appropriate SNAP office receives an application containing the applicant's name, address (if they have one), and signed by either a responsible adult member of the household or the household's authorized representative.)

2. Expedited Time Standard

For households qualified for expedited service, as defined in SNAP SB Section 5, an eligibility interview must be conducted. If found eligible for benefits, benefits must be issued according to the following time standards:

a. SNAP benefits must be made available to eligible households no later than seven calendar days following the day the application was filed.

b. Households qualified for expedited service may include, but are not limited to, residents of shelters for victims of domestic violence, households entitled to a waiver of the office interview, residents of drug addiction or alcoholic treatment and rehabilitation centers, residents of group living facilities, homeless individuals and residents of facilities for the homeless.

c. Whenever the application would result in the passage of more than seven calendar days before SNAP benefits could be made available to eligible households, the SNAP benefits must be made available no later than the seventh calendar day following the day the application was filed.

d. For households who receive a waiver to the office interview but are interviewed at home as specified in SNAPSB Section 4, the SSD shall conduct the interview and process the application within the expedited service standards detailed in this section.

e. For joint processing cases, all SSI households shall be certified in accordance with the expedited processing standards specified in this section. The SSA will inform households which appear eligible for expedited services that benefits may be received a few days sooner if they choose to apply directly at the district SNAP office.

   For "pure" SSI households who choose to file an application at their Social Security Administration office, the expedited processing time standards shall begin the date the correct SNAP district office receives the SNAP application. SNAP applications sent to an incorrect district shall be forwarded to the correct office on the same day they are received.

f. When prescreening fails to identify a household as being entitled to expedited service and the district subsequently discovers that the household is entitled to expedited service, the district shall provide expedited service to the household within the processing standards set forth in this Section, except that the processing standard must be calculated from the date the district discovers the household is entitled to expedited service.

g. Households applying and have been determined eligible for expedited benefits but have not provided verification, the district must have the prorated benefits for the month of application issued to the household within the expedited service standards detailed within this section. Upon receipt and acceptance of all necessary verification and the is household is determined to be eligible for ongoing benefits, the district shall issue the first full month's benefits no later than the fifth working day from the date the verification was provided or the first day working day of the following month, whichever is later.

h. Migrant households applying after the 15th of a month and assigned certification periods of longer than one month shall provide postponed verification from sources within the state before a second month's benefits are issued. They shall provide all verification from out-of-state sources before being issued benefits for the third month.

i. Issuance of Benefits

   (1) Regular recurring benefits will be issued on a staggered basis depending on the terminal digit of the client's case number.

   (2) Upon receipt and acceptance of all necessary verification, the district shall issue the first full month's benefits no later than the fifth working day from the date the verification was provided or the first working day of the following month, whichever is later.

(3) Migrant households applying after the 15th of a month and assigned certification periods of longer than one month, shall provide postponed verification from sources within the state before a second month's benefits are issued. They shall provide all verification from out-of-state sources before being issued benefits for the third month. The actual first working day of the calendar month issuance provision in paragraph (2) above also shall apply to issuance in the second and third months for those migrant households providing postponed verification.

(4) Households which applied for benefits after the 15th of the month who have not postponed verification shall be assured of receiving at least one full month's benefits before being placed in a staggered issuance cycle. All households eligible for expedited service, who apply after the 15th of the month, shall be issued their first month's prorated benefits and the next full month SNAP benefit within the expedited service time frames.

3. Households That Apply After The 15th Of The Month

For eligible TA/SNAP and NTA/SNAP households which apply after the 15th of the month and have completed all application and verification requirements, Districts must issue to the household its prorated initial month's allotment and its next (full) month's allotment at the same time. This requirement also applies to households certified under expedited procedures even if verification requirements have not been completed.

4. Delays in Issuance

a. Caused By Household

(1) If, by the 30th day, the district cannot take any further action on the application due to the fault of the household, the household shall lose its entitlement to benefits for the month of application.

b. Verification and Issuing Benefits

(1) Benefits shall NOT be delayed beyond the expedited time standard solely because the household has failed to verify eligibility factors which are not mandated in the expedited verification process as specified in SNAP SB Section 5.

(2) Benefits for the month following the month of application shall not be issued until all necessary verification not already provided has been provided to the district unless the household applied after the 15th of the month as explained above.

(3) If the initial delay was the household's fault, and the case is subsequently determined eligible, the household shall receive benefits from the first (1st) day of the month in which verification is provided.

EXAMPLE: If the household was interviewed and then was at fault for the delay in the first 30-day period, but is found to be eligible during the

second 30-day period, the district must provide prorated benefits from the first (1st) day of the month in which the district received necessary verification.

c. Caused By District

(1) Whenever a delay in the initial 30-day period is the fault of the district, as specified in SNAP SB Section 4, immediate corrective action must be taken. The local district shall not deny the application if the district caused the delay in processing but shall instead notify the household by the 30th day after the application filing date, that the household's application is still pending. (CNS Z94). If the household is found to be eligible during the second 30-day period, the household is entitled to benefits retroactive to the date of application.

(2) When the district is at fault for not completing the application process by the end of the second 30-day period, and the case file is otherwise complete, the district must continue to process the original application until an eligibility determination is reached. If the household is determined eligible and the district was at fault for the delay in the initial 30 days, the household must receive benefits retroactive to the day of application (387.14). 7 CFR 273.2(h)(3)

5. No Benefit Increase When Non-compliant with Other Means-tested TA Programs

a. This provision prohibits an increase in SNAP benefits when a household's income has been reduced because of a penalty imposed by another Federal, State or local means-tested TA program. This means that when a household's income is reduced due to non-compliance with a program such as FA or SNA (or other means-tested programs), that household's SNAP benefits will not increase solely because of the reductions in income due to the penalty in the other program. SSI is not considered a means-tested TA program.

b. This provision only applies when the reason for the adverse action taken in the other means-tested program does not also result in an adverse action in the SNAP. If a SNAP adverse action is taken at the same time as the adverse action in the other means-tested program, no additional action is needed.

c. This policy applies in situations in which a household's income is reduced due to an adverse action in a TA program but no adverse action is taken in the SNAP. This includes situations in which the recipient fails to: sign a lien, pursue an SSN, meet certain employment requirements, participate in rehabilitation to restore employability, meet IV-D, FEDS or EVR requirements, or pursue other benefits such as UIB or SSI.

d. In these situations, the district must budget the calculation of SNAP benefits in a manner that continues to count as SNAP income, the portion of the TA grant lost due to the sanction. This is done with the aid of the Upstate and NYC Automated Budgeting and Eligibility Logic (ABEL). Depending on the type of TA sanction and the Upstate or NYC budgeting system, it is accomplished in different ways:

(1) Upstate ABEL for Incremental TA sanctions where the individual is actually removed from the budgeting, the worker has to determine the amount of the TA reduction in grant due to the sanction and add it back into the SNAP budget using an unearned income code. For IV-D and Prorata TA sanctions, the worker only has to enter a code indicating how many people are being sanctioned for the IV-D non-compliance, or whether or not the Prorata sanction also applies to the SNAP- ABEL then automatically adjusts the SNAP budgeting. (See 01 INF-12 and ABEL Manual Section C)

(2) NYC ABEL - The worker uses certain income source codes on the individual budget screen to indicate the type of TA sanction and the system automatically adjusts the SNAP budgeting. (See 01 INF-12 and ABEL Manual Section C)

e. It is important for SSDs to develop procedures to insure that, in situations in which the TA case is being closed (e.g., a one person SNA case), the SNAP case be assigned to the proper unit (usually the NTA SNAP unit) with sufficient information so that the SNAP case can be budgeted correctly.

6. WMS Instructions - SNAP Payment Line Processing

Any newly authorized payment for SNAP Payment Type "91-Expedited SNAP" that has a Payment Effective From Day equal to the 16th or greater must extend to the end of the following month. Edits are in place to ensure the inclusion of the next full month's benefit on this line, and applies to Payment Types "93-Single Issuance" and "94-SNAP Retroactive Benefit".

References:

387.1 Definitions

387.8 Application Process

387.14 Determination of Food Stamp Eligibility

97 ADM-4 Clarifications of Various Food Stamp Welfare Reform Provisions

01 INF-12 Temporary Assistance Sanctions: Budgeting for TA andFS, Treatment of Income for FS When the TA Case Closes, and Medicaid Implications

96 LCM-83 Food Stamp Impact of New Federal Welfare Law

Automated Budgeting and Eligibility Logic (ABEL) Manual

3. Electronic Benefit Transfer (EBT)

EBT is mandated by the United States Department of Agriculture (USDA) to deliver SNAP benefits electronically through the commercial financial infrastructure. In New York State, EBT also delivers cash benefits. EBT is interoperable with other states' EBT programs across the country, except SNAP benefits cannot be accessed in Puerto Rico.

Generally, there is little program impact as the result of EBT implementation.

1. SNAP Implications

a. A SNAP debit account is established that enables recipients to purchase eligible food items at USDA FNS authorized retailers that accept EBT and/or display the QUEST logo.

b. SNAP recipients have the option of debiting part of the SNAP benefit as needed, and leaving any unused portion of the benefit for additional purchases or to carry over from month to month.

c. Cash back cannot be issued from the SNAP account.

d. All SNAP transactions are free of any sales taxes, fees and/or surcharges.

e. SNAP transaction limits - no minimum dollar purchase amount per transaction or maximum limit on the number of transactions is permitted.

f. SNAP Manual Vouchers. Retailers may use SNAP manual vouchers in the event of an EBT system failure or disruption. SNAP merchants who choose to process manual vouchers are required to call the EBT Merchant Helpline for authorization prior to permitting EBT card holders to purchase SNAP goods.

   The recipient will sign the voucher, and a hold will be placed on the recipient's SNAP account for the amount of the purchase until the retailer clears the manual voucher through the EBT Contractor. Retailers have 30 days from the date the manual voucher was authorized to clear the voucher. When the retailer clears the manual voucher, the recipient's SNAP EBT account will be debited by the EBT Contractor. If the retailer fails to clear the voucher within 30 days, the SNAP funds on hold are released back to the recipient’s SNAP EBT account. The retailer is not allowed to represent an expired voucher.

   Manual vouchers processed by authorized FNS retailers are used solely for SNAP benefit purchases and SNAP returns/credits and cannot be used for cash transactions.

g. A SNAP electronic Point of Sale (POS) or manual voucher credit/return transaction is limited to a maximum amount of $75.00. If the credit or return is greater than $75.00 it must be completed in separate

credit/return transactions. For example, if processing a return of $100.00 it must be completed in 2 transactions, such as one at $75.00 and one at $25.00.

h. The 2014 Farm Bill requires the EBT contractor to deploy EBT-Only equipment to all certified exempt SNAP retailers. The equipment is provided to these retailers at no cost. This includes such authorized retailers as eligible farmer's market's, food banks, Enriched Housing Programs, congregate meals for the elderly sites, Residential Treatment Centers (RTCs) and group homes, with more than three, but fewer than sixteen, residents.

i. A Point of Sale (POS) device enables the retailer to process SNAP benefit debit transactions electronically with the swipe of a Common Benefit Identification Card (CBIC). In situations where the POS equipment is unable to read the card number (magnetic stripe on card back), the number may be "keyed in" (manually entered) by the retailer, however, the cardholder, and card, must be present and the cardholder must enter the PIN themselves. It is always recommended, that for security purposes, for clients with unreadable card numbers (magnetic stripe), to request a replacement CBIC.

j. If a SNAP EBT account is not accessed (no financial transaction debit occurring) for a period of 274 consecutive days, any unused SNAP benefit or remaining balance of a SNAP benefit that is 274 days old or older, will be expunged (removed) from the EBT account without further notice to the recipient. Recipients are informed of benefit expungement timeframes in the EBT training materials (for example form LDSS-5004) they receive at application.

k. Expunged SNAP benefits that are more than 274 days old or older, cannot be replaced.

l. Expunged SNAP benefits will be applied automatically to any outstanding SNAP overpayment, thus reducing the overpayment balance.

2. **Common Benefit Identification Card (CBIC) Implications**

(1) EBT uses the CBIC and PIN to initiate all SNAP POS transactions, all cash POS or ATM withdrawals, all cash purchase transactions, and SNAP manual vouchers (PIN not required). Medicaid (MA) benefits are accessed using the same permanent recipient card, but a PIN is not necessary to access MA benefits.

(2) Permanent plastic CBICs with and without photos, Authorized Representative cards, Temporary Vault CBICs, and cardboard MA cards which only are used for MA when a temporary vault card is issued, are presently used for the three programs utilizing the CBIC (SNAP, Cash, Medicaid).

(3) A Vault Card is a temporary card that is issued when an applicant or recipient who is waiting for the mailing of a permanent CBIC, needs to access their

SNAP and/or Cash expedited or existing benefits immediately. A vault card will also be used to access disaster SNAP benefits issued under federally declared disaster (See NYS Disaster Assistance Plan). Each local district is required to issue Vault Cards to their applicants or recipients as needed. Some of the elements necessary to support Vault Cards include:

(a) Special plastic card stock inventory – cards.

(b) Secured storage for plastic card stock inventory in the district

(c) Assignment of staff to Vault Card issuance and assistance with PINing

(d) Terminal security arrangements for issuance and activation of cards

(e) Cardholder access to PIN selection device(s) located in the district office(s)

(4) Once a vault card or new replacement permanent card is issued to the recipient, the cardholder may continue to use the existing PIN of the previous card to access benefits with this new card unless they choose to change the PIN.

(5) Any change to the recipient's name, sex or date of birth will system-generate a new permanent card. As a result of this new system generated card issuance, the existing permanent card currently being used by the cardholder is assigned a 90-day void date and can be continued to be used until it’s void date or until the new permanent card sent is used for any transaction (for example - PIN selection, balance inquiry, ATM/POS transactions both approved and denied, etc.). Any new permanent card request/issuance that is worker generated utilizing CBIC screen 27, or a card issued at a NYC Over the Counter Card Site, however will immediately status (void) the previous/existing permanent card.

(6) All CBICs contain the QUEST Mark. The Quest Mark is an identifier that assists cardholders in determining where their card can be used. he mark will appear on the back of all cards issued in programs following the QUEST Rules, as well as at ATM and POS terminals that are operated in compliance with the Rules.

(a) Because it is a national identifier, cardholders can compare the mark on their card to the mark on terminals and determine whether their card can be used at any terminal across the country, keeping in mind that SNAP benefits cannot be accessed in Puerto Rico.

(b) Because issuers must agree to comply with the QUEST Operating Rules before they can affix the mark to a card, a merchant accepts the card knowing that once the transaction is authorized, payment is guaranteed under the Rules. All merchant and financial participants know the responsibilities, liabilities and guarantees that apply to them under the Rules.

(c) Not all retailers who accept EBT display the QUEST mark. Recipients should be instructed that if they do not see the QUEST mark displayed by the retailer, their card still may be accepted by this retailer. The recipient should check with the retailer before shopping at or attempting to use their CBIC at that retailer.

(7) If during a transaction a PIN number is incorrectly entered four consecutive times, the EBT account will be automatically locked and SNAP and Cash benefits will not be able to be accessed with the card until the next day. Selection of a new PIN by the recipient will not unlock the account. The account will be automatically unlocked shortly after midnight.

3. Authorized Representatives and EBT

a. Recipients who are homebound, incapacitated or those with limited access to their benefits, may designate an Authorized Representative to access their SNAP or Cash benefits on their behalf.

For more information on Authorized Representatives, see SNAP SB Section 4.

1) An Authorized Representative must be designated for residents of a Residential Treatment Center (RTC) and are often designated for residents of an approved group home, in order to facilitate the process of accessing SNAP benefits for resident recipients.

2) Participants who choose to have Authorized Representatives will receive two CBICs – a regular Recipient CBIC and an Authorized Representative card. The recipient card can be used to access their Cash, SNAP and MA benefits.

3) The Authorized Representative card is used to access Cash and SNAP benefits only. MA benefits cannot be accessed with the Authorized Representative card.

4) The Authorized Representative card contains both the participant’s name and their Authorized Representative's name.

5) The recipient and the Authorized Representative each choose a different PIN for their respective cards in order to access the recipient's benefits.

b. Certain SNAP Households are permitted to have two EBT cards with access to their SNAP benefits. For a SNAP household to be eligible for a second EBT card, the SNAP household must include two parent(s)/guardian(s) who:

- Are both on the SNAP case,
- Live in the household full-time, and
- are over the age of 18 or, regardless of age, are a parent/guardian of a minor child.

Households that meet the above criteria may request an additional EBT card by completing and submitting the LDSS-4217. The second card does not entitle a SNAP household to any additional SNAP benefits. Both EBT cards are associated with the household's SNAP case and transactions made using either card will draw down from the same SNAP account.

SNAP households are only permitted a maximum of two active EBT cards. If a two parent(s)/guardian(s) household already has an authorized representative card issued, they cannot request an additional card for the second parent/guardian. Similarly, if the two parent(s)/guardian(s) household receives a second EBT card for the parent/guardian, they will be unable to request an additional card for an authorized representative.

4. Customer Service

a. Customer Service Support - To assist districts in maintaining their primary responsibility in meeting recipient's needs, the EBT Contractor supports a Customer Service Helpline 24/7 through an Automated Response Unit (ARU). The ARU is an automated system that provides a service to callers regarding account transactions, account balances and to assist callers with PIN selection. Assistance with WMS case updates or changes and benefit issuance information are directed to the districts for follow up by Customer Service Representatives. Changes to name and/or address information are also directed to the districts.

   EBT Contractor Customer Service is responsible for the following:

   1) Providing recipients with the available balance information associated to their SNAP benefit and/or Cash benefit account(s).

   2) Accepting and processing an adjustment claim submission from recipients for reported transaction discrepancies or errors in their Cash and/or SNAP benefit account(s).

   3) Authorizing PIN changes and providing further instructions.

   4) Deactivating lost, stolen or damaged CBICs and requesting a replacement permanent card.

   5) Providing a written statement of at least the past two month's debit transactions.

   6) Providing a listing of at least the last 10 SNAP and/or Cash account transactions.

   7) Providing dates of the next issued benefit availability date if posted.

b. PIN Selection – In order to access SNAP or Cash Benefits using a CBIC, a PIN must be linked/associated to the CBIC.

1. Replacement Cards – as a rule PINs are transferred from the previous card to any new card issued, including to temporary vault cards. The new replacement or vault card is active when issued, is ready to be used and does not need a new PIN selected, unless the client prefers to change the PIN or cannot remember the PIN of the previous card.

2. New applicants and recipients not known to WMS, or who have never had a CBIC, and have a SSN on record in WMS, must select a PIN for their newly issued permanent CBIC, as PIN mailers are not automatically sent to these new cardholders. If the new applicant or recipient does not have a SSN on record in WMS, they will be sent a system generated PIN via a PIN mailer. If the applicant or recipient is issued a vault card, the PIN selected for that vault card is automatically transferred to the new permanent card and a new PIN does not need to be selected for the new permanent card unless the cardholder prefers to assign a new PIN to their card. A card may be pinned by using the PIN selection device located at the SSD office or by calling the EBT helpline at 1-888-328-6399.

3. Card issued for Medicaid/Health Exchange reasons only with no SNAP and/or Cash case/benefits. A CBIC issued/used for Medicaid or Health Exchange reasons only does not require a PIN. If at a later date the recipient (with same CIN) becomes eligible to receive SNAP and/or Cash Benefits that card will be the card used to access the SNAP and Cash benefits, however, a PIN must be selected in order to access the benefits.

4. Changing/selecting a PIN - PINs can be changed/obtained in one of the following ways:

i. PIN Mailer - New recipients without a Social Security Number(SSN) in WMS will automatically be mailed a PIN after case opening and once a mailed CBIC is requested. The CBIC system will only request a PIN mailer when it recognizes the SSN is NOT present for the recipient. Applicants with SSN's should be directed to call the EBT Help Line for PIN selection. The last four digits of the SSN and mailing address Zip Code will be required for these calls in order to establish a PIN. A PIN mailer will contain a new system generated PIN. An established PIN will be carried forward to any subsequently issued card to the client.

ii. PIN Selection Device - PIN selection devices are installed at each district office. With the assistance from a district worker, a PIN is selected by the recipient using the PIN selection device. The recipient swipes the CBIC and enters a new PIN on the PIN selection device keypad twice to confirm the PIN selection. A phone line connects the PIN device to transmit the PIN to the contractor's EBT system. The PIN is encrypted and linked to the CBIC immediately.

iii. Customer Service EBT Helpline – 1 (888) 328-6399. The recipient can call this number to establish or select a new PIN. The process is designed in an automated fashion and requires the caller to enter their card number, enter/verify the last four digits of their SSN and enter/verify their mailing address Zip Code. Failure to enter this information correctly will deny access to establish or change a PIN. If the caller fails to enter this information correctly, they will be not be transferred to a Customer Service representative and the call will end. EBT customer service representatives are not permitted to enter and/or select PINs for card holders.

iv. Client On-line Account Website – www.ebtedge.com. Clients with an existing PIN and who have set up an on-line EBT account and do not have a PIN restriction in place, can change the PIN for their card online or via the app, available in the Google or Apple App store. New clients that have never established a PIN cannot set their initial PIN via the website, it must be established either by using the PIN selection device in the district or by calling the EBT Helpline.

c. Lost, stolen or damaged CBICs - Recipients must report any lost, stolen or damaged CBICs to EBT Customer Service Helpline immediately. The EBT system will disable the card and permit the caller to request a new mailed replacement permanent or authorized representative card if that is the card that was being reported as lost, stolen or damaged. The new permanent or authorized representative replacement card request will produce a message to the CBIC system and a replacement permanent or authorized representative card will be mailed to the recipient to the address on record. Once a card is disabled on EBT it will prevent the use of the card across all programs, (SNAP, Cash and Medicaid) and prevent the loss of benefits using that card going forward. A card can be reported lost, stolen or damaged 24 hours a day/7 days a week. Any SNAP or Cash benefits redeemed prior to the card being reported as lost, stolen or damaged are not replaceable under USDA FNS and OTDA Regulations, Rules and Policies. It is the responsibility of the cardholder to keep their card/card number safe and their PIN secret.

d. If the card reported lost, stolen or damaged to the EBT Customer Service Helpline is a temporary vault card, a replacement request cannot be generated by the EBT Vendor. The recipient must contact/go to the district to get a replacement temporary vault card.

e. Unauthorized use of CBICs – Recipients must contact EBT Customer Service Helpline immediately to report their card as lost or stolen when they discover the unauthorized use/compromise of their card/card number and PIN and/or when they discover SNAP or cash benefits have been stolen from their EBT account. Only by first contacting the EBT Customer Service Helpline to deactivate their card can the cardholder be protected from further potential benefit theft/loss. State/Federal Regulations, Procedures and Policy do not provide any authorization to replace SNAP or cash benefits that were stolen after receipt and before the card is reported lost or stolen by the cardholder. According to Federal Regulations, “the State agency shall assume liability for

benefits *subsequently drawn* (emphasis added) from the account and replace any lost or stolen benefits to the household only once the household reports that their EBT card has been lost or stolen". It is the local districts responsibility to investigate claims of benefit theft and/or unauthorized use of CBICs. Recipients should be advised to file police reports concerning the stolen benefits and be referred to the local district's fraud staff to have their claim benefits were stolen to be investigated.

f. Replacement of Electronically Stolen Benefits

Federal law does not allow the replacement of electronically stolen SNAP benefits, through such means as skimming, cloning or phising, as of December 21, 2024.

g. Troubleshooting - Districts continue to be responsible for assisting recipients in identifying solutions to problems that can result in recipients being unable to access their SNAP benefits.

1) In order for recipients to successfully access their SNAP accounts utilizing the EBT benefit delivery method, all of the following must be present:

i. A CBIC that is active in the EBT Contractor's System,
ii. A valid PIN is associated with the card and used correctly,
iii. A SNAP account that is active on the EBT Contractor's system,
iv. A correctly authorized benefit in WMS system or BICS via the BICS pre-reg process,
v. Recipient listed in WMS as the current active payee for the case (screen 5 – "X" entered in EBCD column),
vi. A benefit that has reached its availability date in the SNAP account.

If any of the above elements are missing, the recipient will be unable to access his/her benefits from their SNAP account.

5. Erroneous Posting of SNAP Benefits

1. When a system error results in the posting of an incorrect benefit amount in an EBT SNAP account, the benefit may be recovered without notice to the recipient. When the incorrect benefit is authorized and posted to the recipient's SNAP account, but has not yet reached its availability date, it may be voided from the EBT system. This is known as a "pending void".

2. No client notice of the recovery is required because the recipient was already notified of the correct benefit amount. District staff must answer recipient questions regarding recovery of erroneous postings, to the extent possible, using information obtained through WMS/BICS and the EBT administrative terminal.

3. If an attempt is made to void and recover the erroneous posting after the benefit availability date has been reached, the void attempt will fail. Once a benefit reaches it'sits availability date, the erroneous/incorrect benefit should be recoverd through recoupment or repayment process.

6. Retailer Initiated Adjustments

a. If a system error occurs that results in a retailer not receiving the correct payment amount, the retailer has ten business days (15 calendar days) from the date the error occurred, to register a claim with the EBT contractor to have the amount of the shortage debited from the SNAP recipient's account.

b. When a retailer's claim results in a debit adjustment against a cardholder, a retailer initiated notice is sent by the EBT Contractor to the cardholder notifying them that the amount being claimed will be debited from their SNAP account.

c. If current SNAP funds are insufficient the adjustment will be recovered from the next month's benefits when the availability date for that benefit has been reached.

d. Households may appeal retailer initiated actions by requesting a Fair Hearing within 90 days of the adjustment notice date.

   1. A household that requests a Fair Hearing within ten days from the date of the retailer initiated adjustment notice, will not have their SNAP account debited until a decision is issued from a Fair Hearing.
   2. If the household does not request a fair hearing within ten days of the date of the notice, the recipient's account is debited and the adjustment is made into the retailer's account.
   3. A household that loses their Fair Hearing will have the amount debited from their current or next month's benefits, with no additional notice.

For Fair Hearing Information, see Section 9 of this Source Book

7. Client Initiated Adjustments

1. A recipient who reports that an EBT system error resulted in an incorrect amount being debited from a SNAP account must be advised to register a claim by calling the EBT Customer Service Helpline at 1-(888) 328-6399. A system error is an auditable processing failure at any point in the redemption process that results in the improper crediting or debiting of an account or in the failure to credit or debit of account. An example of a system error includes if when making a single SNAP purchase the SNAP account is incorrectly charged twice for the same purchase. Human error in transaction data entry at the POS does not constitute a system error. If recipient was “overcharged” due to human error, for example charged $60.00 instead of $6.00, the recipient should be advised to return to the retailer and request a credit/SNAP return to be processed by the retailer (credit back to the SNAP account). In order to process a SNAP return at a POS terminal the card must be present and PIN entered by the cardholder.

2. Recipients may register SNAP claims up to 90 days after the disputed transaction. SNAP adjustment claims are usually resolved within 15 calendar days of the opening of the adjustment claim.

3. If the EBT contractor has not completed a claim adjustment investigation within ten business days (15 calendar days) of its receipt of the claim from the recipient because the retailer has failed to respond to the EBT contractor, and the EBT contractor has determined that the suspected error was system generated and not the result of a human error, the household's account will be credited by the EBT system in the amount of the alleged error.

4. If the contractor's investigation results in a denial of the recipient's SNAP claim, a notice of adverse action will be mailed to the household. The recipient may appeal the denial of the claim by requesting a Fair Hearing within 90 days of the date of the notice.

8. Non-Systems Errors

Examples of non-system errors include a cashier who keys in an incorrect transaction amount, or a recipient's claim that a merchant overcharged for a purchase (for example $60.00 instead of $6.00).

The recipient should be advised to return to the retailer and request a credit/SNAP return to be processed by the retailer (credit back to the SNAP account). In order to process a SNAP return at a POS terminal the card must be present and PIN entered by the cardholder.

9. Group Homes

1. Districts must continue to issue Authorized Representative CBIC cards for SNAP eligible residents of Residential Treatment Centers (RTCs) and, if requested by the facility operator, for residents of other eligible institutions.

2. Any RTC and any group home is eligible for a point-of-sale (POS) device from the EBT contractor under the 2014 Farm Bill.

3. Under the 2014 Farm Bill facilities and providers that choose not to obtain POS devices may still use manual vouchers to purchase food using the residents' SNAP benefits.

References:

7 CFR 274 - Issuance and Use of Program Benefits

18 NYCRR Part 387 - Supplemental Nutrition Assistance Program

00 ADM-8 – Electronic Benefit Transfer (EBT)

06-ADM-14, Electronic Benefit Transfer (EBT) Customer Service Automated Response Unit (ARU) Personal Identification Number (PIN) Selection Restriction

Electronic Benefit Transfer (EBT) Manual - OBF & DM

LDSS-5004 - How to Use Your Benefit Card to Get Supplemental Nutrition Assistance (SNAP)and/or Cash Benefits

13-INF-03 – CBIC Photos for NTA-SNAP Cardholders

16-INF-17 – Revised LDSS-4942: Supplemental Nutrition Assistance Program (SNAP) Authorized Representative Request Form

23-ADM-02 - Availability of Two Electronic Benefit Cards to Certain SNAP Households

ebtEdge Cardholder Portal and Mobile Application

SECTION 16: Claims Against Households

This Section contains program and policy information that workers and supervisors need in order to accurately establish SNAP client overpayment claims. It also identifies the processes and standards that local district management staff must implement and maintain to insure adequate support for efficient and effective SNAP claim management and establishment. This Management information is in bold throughout the Section for easy identification.

Increased SNAP integrity will result from these comprehensive instructions regarding claims establishment and tracking. Clear guidelines and definitions will foster greater accuracy in claims development.

The Local District Must:

- Identify and correct deficiencies in claim establishment, collection and documentation based on information in this release.
- Establish local standards for date of discovery that are in compliance with State guidelines.
- Establish standards to track and control the length of time it takes to establish a claim in order to comply with federal establishment timeframes.
- Implement use of actual income to calculate overpayment amounts.
- Implement use of appropriate overpayment claim notices and forms.

A. Responsibility for Recovering Overpayments

1. Local District Responsibility

a. Establish, based on standards defined in this Directive, an overpayment claim against any participating (active/open) household or non-participating (inactive/closed) household that has received more SNAP benefits than it was entitled to receive or has trafficked benefits.

b. Make all reasonable efforts to identify and collect established claims including but not limited to:

(1) Checking at application to determine if anyone in the applicant household has an outstanding claim in the local district where the application is filed or in any other local district.

(2) Maintaining accurate and complete claim records.

(3) Cooperating with other local districts regarding cross-local district claim collection.

2. Household and Individual Liability

All adult household members are individually and collectively responsible for the value of any overpayment of benefits to the SNAP household. Adults are responsible for repayment while members of the household that received the overpayment and remain responsible even after they leave the household or the case is closed. For purposes of claims establishment and collection, an adult is defined as:

a. A household member who is 18 years of age or older when the overpayment occurs, or
b. Is less than 18 years of age but is the head of the household when the overpayment occurs.

Overpayments may be recovered from more than one source at a time. For example, the original household may continue to pay the overpayment through SNAP benefits reduction, while an adult who left the household makes cash payments to the agency. However, total collections must not exceed the total amount of the established claim. If excess funds are collected they must be returned.

Any sponsor of a non-citizen and the non-citizen's household is individually and collectively responsible for the value of any SNAP benefits overpaid as a result of incorrect information being provided by the sponsor. However, if the non-citizen's sponsor had good cause or was without fault, the non-citizen's household is solely liable for repayment of the overpayment.

The local district must:

a. Establish procedures to identify and collect repayments from multiple sources.
b. Establish procedures to insure that total collections do not exceed the total claim amount.
c. Establish procedures to fairly return any excess amount collected to multiple sources.

3. No Overpayment

The following situations do not constitute an overpayment and, therefore, no claim is established:

a. There is no overpayment due to lack of signature when the client receives SNAP benefits without signing the application, if the client is otherwise eligible for the SNAP benefits. However, if the client receives SNAP benefits to which he or she is not otherwise entitled, there is an overpayment.

b. There is no overpayment when the client receives SNAP benefits in the wrong local district, if the client is otherwise eligible for the SNAP benefits. However, if the client receives SNAP benefits to which he or she is not otherwise entitled, there is an overpayment.

c. There is no overpayment if a change was not a reportable change under the change reporting requirements applicable to the household.

d. There is no overpayment if SNAP benefits are authorized in accordance with expedited processing requirements, including the postponement of mandatory verification at expedited SNAP benefit issuance. The prohibition on the collection of expedited SNAP issuance only covers properly issued expedited payments. The prohibition is intended to prevent attempts to establish overpayment claims when

- information that was permissibly pended is provided, subsequent to the expedited issuance, and the pended information reveals that the properly issued expedited payment was, in fact, an overpayment, or
- when the household fails to provide the verification necessary to establish ongoing eligibility.

In these instances, neither the SNAP household nor the local agency has done anything improper in obtaining or issuing the expedited benefit.

However, if the agency obtains evidence that the applicant intentionally misrepresented household circumstances in order to qualify for an expedited SNAP benefit issuance, then an overpayment could be pursued. **Fraudulently obtained expedited issuances, or expedited issuances that are a duplicate payment**, **will always be a collectible overpayment.**

B. Definitions

1. Types of Claims

There are three types of claims: Agency Error (AE), Inadvertent Household Error (IHE) and Intentional Program Violation (IPV).

a. Agency Error (AE) Claims (formerly called Administrative Error Claims)

An AE occurs when a local district action, or failure to take action, causes an overpayment. This includes, but is not limited to, cases in which the local district worker:

(1) Fails in accordance with the change reporting requirements that apply to the household to take prompt action on a reported change.

(2) Incorrectly computes a household's income or deductions, or otherwise assigns incorrect SNAP benefits.

(3) Fails to reduce SNAP benefits because of a Family Assistance grant change.

(4) Issues SNAP benefits for any month in which a disqualification period for an Intentional Program Violation should have been imposed.

b. Inadvertent Household Error (IHE) Claims

An IHE occurs when there is a misunderstanding or unintended error on the part of an applicant or recipient. This includes, but is not limited to, cases in which a SNAP applicant or recipient household:

(1) Unintentionally fails to provide the local district with correct or complete information.

(2) Unintentionally fails to report changes in household circumstances.

(3) Receives aid continuing benefits pending a fair hearing decision and the hearing decision later determines the household was not entitled to the benefits.

(4) Is determined to have received an overpayment or participated in trafficking and the local district is pursuing but has not yet completed establishment of an Intentional Program Violation.

A claim originally established as an IHE claim may be changed to an Intentional Program Violation (IPV) claim if further investigation proves that the overpayment was caused by willful misrepresentation to deliberately mislead the agency and the claim is classified as an IPV through appropriate administrative or court action.

c. Intentional Program Violation (IPV) claim.

An IPV occurs when an individual intentionally:

(1) Makes a false or misleading statement, or misrepresents, conceals or withholds facts.

(2) Commits any act that constitutes a violation of the federal Food Stamp Act, the federal SNAP Regulations, or any State regulation relating to the use, presentation, transfer, acquisition, receipt, possession, or trafficking of coupons, authorization cards or reusable documents used as part of an automated benefit delivery system (access device).

(3) Traffics in Electronic Benefit Transaction (EBT) benefits.

One of the following must occur for a claim to be classified as an IPV:

(1) Determination by a court of appropriate jurisdiction that a household member committed an IPV.

(2) Determination at an Administrative Disqualification Hearing (ADH) held by the New York State Office of Temporary and Disability Assistance that a household member committed an IPV.

(3) A household member signs a Disqualification Consent Agreement (DCA) to avoid prosecution for a suspected IPV recognized by a court of appropriate jurisdiction.

(4) A household member signs a waiver of his or her right to an ADH.

In addition to having the obligation to repay the monetary amount of an IPV claim, a household member determined to have committed an IPV is disqualified from program participation for a specified period of time. While most IPVs result in a monetary loss to the program, in some circumstances the household's willful misrepresentation may be sufficient grounds for a disqualification penalty even if no benefits were paid.

The local district must:

- Establish and collect potential IPV claims as IHE claims prior to the determination of IPV, unless directed by the local district attorney not to establish an IHE pending the IPV court action. Local districts are encouraged to work with the local district attorney's office to limit the circumstances for delaying collection by not initially establishing the claim as an IHE and to pursue IHE overpayment collection on as many potential IPVs as possible.

- Establish and implement a local district claim management process to deal with suspected IPV claims. Overpayments found not to be IPVs must be established and collected as IHEs after completion of the IPV process, if not previously established.

d. Court Ordered Restitution

When Court orders a defendant to pay restitution in a criminal proceeding for SNAP benefits they received, but were not entitled to receive, it is important to look at the decision and findings of the Court. If the person was found guilty of a crime, act or conduct or admitted to such crime, act or conduct that constitutes an Intentional Program Violation (IPV) (even if the Court does not refer to it as an IPV) as defined in 7 CFR 173.16, an IPV penalty shall be imposed (with notice) unless it is contrary to the Court order [7 CFR 273.16 (b)(7)]. In such cases, the Court ordered restitution should be processed as an IPV recovery. However, if there is no finding of guilt by the Court or no admission of guilt of an act or conduct that constitutes an IPV, as defined in 7 CFR 273.16, or if the imposition of an IPV would be contrary to the Court order, the restitution should be processed as an IHE recovery. The decision of the Court is binding even if the Court ordered restitution exceeds 12 months.

2. Discrepant Information

Discrepant information is any previously unknown event or circumstance that may affect or, in the past, may have affected SNAP eligibility or benefit amount. It may be reported by the client, reported by someone other than the client or discovered through a quality control review or other management review. Evaluate all discrepant information to determine if a case change is required and if any overpayments have occurred.

The local districts must:

a. Establish and implement a local district procedure for promptly evaluating all discrepant information and keeping track of all instances where the information results in a claim against the household.

3. Date of Discovery

The Date of Discovery for purposes of computing overpayments is the date the local district becomes aware that there is discrepant information that may affect the benefit amount of the case.

The Date of Discovery is used with other information to determine the start date ("From Date") and length of the claim period.

The Date of Discovery must be as soon as possible after the information arrives at the agency but may take into consideration reasonable periods for clerical processing and information prescreening. These include, but are not limited to, mail sorting and routing

and reasonable periods of time to determine that the information is legitimately related to the household. Do not wait for verification of the information.

EXAMPLE: A piece of information is date stamped as received in the mailroom on the 15th. It is given to the supervisor of the Eligibility Unit on the 17th. It would be appropriate for the agency to define the date of discovery as the 17th.

EXAMPLE: The supervisor receives information on the 17th but does not assign it to a worker for action until the 24th. Defining the date of discovery as the 24th would not be acceptable.

The following are examples of some date of discovery standards:

a. The date the worker has direct contact with a recipient, such as a recertification interview or telephone call
b. The date a supervisor receives a change report or periodic reporting form for distribution to a worker
c. The date a worker receives a change report or periodic reporting form from the client or the mailroom
d. The date a worker or supervisor directly receives information from someone other than the recipient
e. The date a supervisor directly receives information gained through a Quality Control review, Management Evaluation review, case record or other management review that must be distributed to a worker for action
f. The date the worker discovers a discrepancy when reviewing a case record

The Date of Discovery for an Agency Error (AE) overpayment is the date that the agency discovers the error that led to the overpayment, not the date the information was reported but not processed by the agency.

The local districts must:

a. Establish and implement local district policies and procedures for assigning the Date of Discovery based on local organizational structure and local district procedures for handling change information.

b. Establish and implement local district procedures regarding identifying the Date of Discovery for computer match information.

4. Date of Claim Establishment

The date of establishment is the date the initial claim notification is sent to the household.

C. Discrepant Information Assessment

Assess all discrepant information to determine its effect on the current case situation and to determine if there was an overpayment in the past.

1. Changes to Active Cases

If the discrepant information requires a change to the current active case, make the change within the appropriate change action time frame.

2. Potential Overpayment

Assess discrepant information to determine if an overpayment occurred, even if the case is closed or is about to be closed. Enter the reason for the decision to pursue an overpayment claim in the case record, if it appears that the discrepant information caused any overpayment in the past.

EXAMPLE: The worker determines during a recertification interview on 1/15/25 that a member of the household had an increase in earned income. The client's statements and some of the information on the pay stubs seem to indicate that the client has been receiving this amount of income for quite a while, maybe even before the last recertification interview in July 2024. The worker includes the increased income in the budget for the new certification period. The worker also makes the following notation in the record; "Information reported at the recertification on 1/15/25 (date of discovery) indicates household may have received an increase in earned income in April 2024. Investigation to determine if a SNAP overpayment occurred is required."

Depending upon local district procedures, the worker will then either develop the claim or refer the case to the unit that is responsible for claim development.

The local district also has the option, but is not required, to develop procedures requiring workers to record why a claim is not being pursued. Such notations document that workers are actively seeking to identify all potential overpayment claims and strengthen the effectiveness of the local district's claims management procedures.

D. Tracking Claim Establishment

Establish all claims as soon as possible after the date of discovery of the discrepant information, but no later than the last day of the fifth month after the month of discovery. This time frame complies with USDA requirements to implement adequate management procedures to ensure all overpayment claims are established in a timely manner. It applies to closed cases as well as to active cases.

The USDA standard requires establishment of at least 90% of all claims within this time frame. Failure to meet the minimum compliance standard may result in federal penalties.

Continue work on the claim until it is finished, even if claim establishment is not completed within the time frame. Claims not established within the time frame are part of the overdue claim establishment backlog while the work is being completed. Once established, such claims count toward the claims overdue percentage. A local district's claims overdue percentage should not exceed 10%.

EXAMPLE: Discrepant information that caused an overpayment is reported to the worker on January 15. This is the date of discovery. The worker must assess the information and complete all the actions needed to calculate and establish the overpayment claim by June 30 or the action is overdue.

The Cash Management Subsystem (CAMS) automatically tracks the length of time it took to establish a claim by calculating the amount of time between the date in the date of discovery field and the date in the claims establishment field. Data derived from this CAMS information provides support for local district tracking procedures and process improvement. This data is also used in State and Federal management reports and reviews. Establish and implement local district procedures to:

a. Track the steps of the claims determination process to ensure that all actions are completed within the allowed time.

b. Provide early identification of potential claims establishment backlogs.

c. Track resolution of backlogs, if they develop.

d. Report to the Office of Temporary and Disability Assistance, as required.

E. Claim Calculation

There are three steps to calculating an overpayment claim:

a. Assessing if a household failure to report a change, report of incorrect information or omission of information actually resulted in an overpayment

b. Determining the claim period, and

c. Determining the amount of the overpayment.

1. Determining If an Overpayment Occurred/Review of Change Reporting

The first step in the claims establishment process is to determine if an overpayment occurred. Use the reporting rules that would have applied to the case situation if all facts and figures had been reported to the agency at the proper time to determine if an overpayment actually occurred. What follows is a brief review of the change reporting rules.

There are three types of Change Reporting:

- Simplified Reporting (Six-Month)
- 10-Day (10-10-10) Reporting
- Quarterly Reporting

In addition, there are special reporting rules for households that receive Transitional Benefit Alternative (TBA) benefits and households that participate in NYSCAP and ESAP.

Each type of reporting specifies when information must be reported. For purposes of claims establishment, the date of a change is the date the change to household circumstances happened or the date income or resources were received, not the date the household may have known that a change in household circumstances, income or resources was going to occur in the future.

a. Simplified Reporting (Six-Month)

For SNAP purposes all TA/SNAP, NTA/SNAP and Mixed SNAP recipients must report household information and changes using Simplified Reporting (Six-Month) standards except the following:

(1) Households certified for less than six months (a partial initial month benefit plus five full months counts as six months for purposes of the Simplified Reporting (Six-Month) system)

(2) Households with zero income. Households receiving TA benefits are considered to be receiving income. They are not zero income cases.

(3) Participants who live in group homes and have SSI or SSA income

(4) Migrant or seasonal farm-worker households

(5) Homeless households

(6) Households in which all adult members are aged and/or disabled and all income is unearned

Simplified Reporting (Six-Month) households must report current household circumstances and income:

(1) At recertification interviews

(2) When an increase in income causes the household's income to exceed 130% of the poverty level for the household size for any calendar month. This report must be made within ten days after the end of the calendar month in which the income increase is received. This requirement technically applies to households that may have been certified at a higher Gross Income Threshold (GIT) depending on household circumstances, such as the 150% GIT for households with earned income, or the 200% GIT for households with aged and/or disabled individuals. Districts should evaluate information reported by such households to determine if the household has exceeded the applicable GIT for their household's circumstances. However, for households that were certified at a GIT that already exceeded the 130% GIT, negative action should not be taken against the household simply because it did not report that its income exceeded the 130% GIT, as it would actually be subject to a higher GIT (150%, or 200%.) For such households, their case would only be closed and an overpayment calculated if it were determined that household income exceeded the applicable GIT for its circumstances (150%, or 200%) and it was not reported in a timely manner.

(3) During the 6th month of the household's certification period (Six-Month Contact) using the LDSS-4310 Periodic Report, even if there are no changes, if the:

(a) Case is a NTA/SNAP or a SNAP Mixed case and

(b) Case's certification period is seven full months or more

(4) During the 6th month of the household's certification period (Six Month Contact) using the local district TA Eligibility Questionnaire if the:

(a) Case is a TA/SNAP case and

(b) Case's certification period is seven full months or more

In addition to the above reporting points, a household with a member subject to the Able Bodied Adult without Dependents (ABAWD) rules must report when work hours fall below 80 hours a month.

Simplified Reporting (Six-Month) households are not required to report changes at any other time, such as during a six-month certification period. Further, Simplified Reporting (Six-Month) households are not required to cooperate in verifying information from an outside source during a six-month certification period.

The change reporting rules for Simplified Reporting (Six-Month) households apply to all changes, not just to changes in income less than 130% of the poverty level. They apply even if the change will make the household ineligible once it is reported.

EXAMPLE: A Simplified Reporting (Six-Month) household's certification period is 6/1/24 to 11/30/24. In July, the household receives an inheritance that puts the household over the SNAP resource level. The household is not required to report this information. If the household still has the resource at the time of the next recertification interview, it must be reported. If it is not reported, there is an overpayment from the start of the next recertification period.

While a Simplified Reporting (Six-Month) household is not required to report a change except as specified above, a worker must take action on changes during the certification period of a Simplified Reporting (Six-Month) household if:

(1) The household voluntarily reports and verifies changed information

(2) The household reports and verifies change information to comply with TA or other program requirements; or

(3) The agency receives verified change information from a source outside the household. Failure to take such action is an Agency Error overpayment.

Temporary Assistance does not use Simplified Reporting (Six-Month). Use the change reporting standard for SNAP benefits, not the TA reporting standard, when assessing a TA/SNAP or SNAP Mixed household for a potential SNAP overpayment. This will result in situations where there is a TA overpayment but no SNAP overpayment.

EXAMPLE: A TA/SNAP household fails to report a change within 10-days after the change occurred as required by the TA change reporting rules. However, Simplified Reporting (Six-Month) rules apply to the SNAP portion of the case. If the change did not raise the household's income to more than 130% of the poverty level for the household size, there is an overpayment for TA but there is no overpayment for SNAP.

b. 10-Day (10-10-10) Reporting

The following households must report household information and changes using 10-day reporting standards:

(1) Households certified for less than four months (a partial initial month benefit plus three full months counts as four months for purposes of the Simplified Reporting (Six-Month) system)

(2) Households with zero income. Households receiving TA benefits are receiving income and are not zero income cases

(3) Participants who live in group homes and have SSI or SSA income

(4) Migrant or seasonal farm-worker households

(5) Homeless households

(6) A household in which all adult members are aged and/or disabled and all income is unearned and is not a NYSCAP or ESAP participant (see below).

10-Day reporting households must report all changes within 10 days of the date the change occurs except for the changes listed on the LDSS-3151 Supplemental Nutrition Assistance Program (SNAP) Change Report form. Changes listed on the LDSS-3151 must be reported at the household's next recertification. The agency has 10 days to make the changes after a household's report. The household must receive a 10-day timely and adequate notice of change.

To simplify and standardize program procedures for claims establishment, the second month after the month the change occurred is designated as the initial overpayment month in 10-Day Reporting situations. This is true even if the actual calendar dates indicate that the change to the case could have been made as early as the month after the change occurred.

Use Quarterly Reporting rules only if the household actually received Quarterly Reports. If the household never reported receiving income and, therefore, never received a Quarterly Report, the household is processed as a 10-Day Reporting household for purposes of claim calculation.

c. Transitional Benefit Alternative (TBA)

Households receiving Transitional Benefit Alternative (TBA) benefits after a TA case is closed do not have to report any changes during the TBA period.

d. New York State Combined Application Project (NYSCAP)

SSI households participating in the New York State Combined Application Project (NYSCAP) are required to report changes to the local district:

(1) At recertification, and

(2) At the 18-month contact point of a 36-month certification period.

NOTE: The NYSCAP undercare system will report changes that impact eligibility for the program. Some of these will require the district to enter changes from an exception report. Failure to do so could cause overpayments.

e. Elderly Simplified Application Project (ESAP)

Households in which all adults are either aged or disabled and without earned income may participate in the Elderly Simplified Application Project (ESAP) and are considered Simplified Reporters for most household changes, but must report the following during their 36 month certification period within 10 days of the month following the month in which the change occurred:

(1) Changes in Household Composition, as this may affect ESAP eligibility

(2) Receipt of Earned Income, as households with earned income are not eligible for ESAP. Such households would be classified as “ESAP Leavers” and transitioned to regular SNAP if otherwise eligible, and subject to the reporting requirements that would apply to the household based on their circumstances at that time.

(3) Receipt of Substantial Lottery or Gambling Winnings

Note: Federal regulations require that all SNAP households must report the receipt of substantial lottery or gambling winnings. Substantial lottery or gambling winnings are defined as a cash prize equal to or greater than the maximum allowable financial resource limit for elderly or disabled households as defined in 7 CFR273.8(b) won in a single game before taxes or other withholdings. For the purposes of this provision, the resource limit defined in 7 CFR 273.8(b) applies to all households, including non-elderly/disabled households, with substantial lottery and gambling winnings.When a household reports substantial lottery or gambling winnings as defined above, the following should be verified before acting on a case:

• the household received lottery or gambling winnings, before taxes or other amounts are withheld, equal to or greater than the SNAP resource limit for elderly or disabled households.

• the amount received was a cash prize won in a single game. If multiple individuals shared in the purchase of a ticket, hand, or similar bet, only the portion of the winnings allocated to the member(s) of the SNAP household are considered.

• the substantial lottery or gambling winnings were won by an active member of the SNAP household.

No negative action may be taken against a household that reports the receipt of substantial lottery or gambling winnings until such information has been verified by the district as described above. If the district verifies that the household has received substantial lottery or gambling winnings, the entire SNAP case is closed using Client Notices System (CNS) code U45 (Excess Resources- Increased Resources.) Households disqualified for substantial winnings remain ineligible until they meet SNAP income and resource eligibility requirements. This provision applies to all households, including categorically eligible Safety Net (SN), Social Security Income (SSI), and Temporary Assistance for Needy Families (TANF) households, and those certified under Broad Based Categorical Eligibility (BBCE). The next time such a household reapplies after losing eligibility under this rule it would not be considered to be categorically eligible and would remain ineligible until they meet the applicable SNAP income and resource limits.

2. Determining the Period of the Claim

a. Initial Month of Overpayment

The initial month of overpayment is determined by when the household was required to report the information and how the information would have been processed if reported timely.

Use the SNAP reporting standards, not the TA standards, when determining an overpayment for the SNAP part of a TA case. The start date for the SNAP overpayment may be different from the start date of the TA overpayment or there may be an overpayment for TA but not for SNAP.

b. Overpayment at Application

For all three change-reporting types, the initial month of the overpayment is the first month the household was certified to receive SNAP benefits if the household fails to:

(1) Report correct information on the application or during the application interview or

(2) Report changes that occur after the application interview but during the application processing period.

c. Overpayment at Recertification

For all three change-reporting types, changes that a household was not required to report during the certification period (or for a QR household during the quarter) must be reported at recertification. The initial month of overpayment is the first month of

the new certification period when inaccurate or incomplete information is reported at recertification.

EXAMPLE: A Simplified Reporting (Six-Month) household had a certification period January 1, 2024 to June 30, 2024. The household received an increase in income on February 15, 2024. The household was not required to report the increase when it occurred because the income did not put the household over the 130% level.

The household did not report the income during the recertification interview in June. The case was reauthorized for the period July 1, 2024 to December 31, 2024. In August, the agency discovered the increase. July 2010 is the initial month of overpayment.

EXAMPLE: A Simplified Reporting (Six-Month) household had a certification period January 1, 2024 to June 30, 2024. The household received an increase in income on February 15, 2024. The increase did not put the household over the 130% level. The income was reduced back to the original level in May. During the recertification interview in June, the household did not report that the income increased for a short period during the certification period.

In August, the agency discovers the household had increased income in February, March and April. There is no overpayment. The household was not obligated to report the increased income because it was no longer being received when the household recertified in June.

d. Overpayment at Six-Month Contact Point or Quarterly Reporting Point

Overpayments for changes that are not reported at a required six-month contact by a Simplified Reporting (Six-Month) household with a certification period longer than six months are processed the same as changes not reported at recertification. The first month of overpayment is the seventh month of the certification period.

Overpayments for changes not reported on a quarterly report are processed the same as changes not reported at recertification. The first month of overpayment is the first month of the quarter following the quarter in which the change occurred.

e. Changes During the Certification Period

(1) Simplified Reporting (Six-Month): Exceeding 130% of Poverty Level/ABAWD rule

Simplified Reporting (Six-Month) households are required to report during a certification period when income exceeds 130% of the poverty level or when the work hours of a household member subject to the ABAWD rules drop

below 80 hours per month. The report must be made by the 10th of the month following the month in which the change occurred.

An increase in income reported by a Simplified Reporting (Six-Month) household during the certification period must be evaluated prospectively. There is no overpayment if the increase in income did not continue during the second month after the change and the household was no longer over the 130% standard. Note: if a household was last certified at a standard that was higher than the 130% standard (150% GIT, or 200% GIT), the household's income must be evaluated relative to the GIT that actually applies to it based on household circumstances.

If a Simplified Reporting (Six-Month) household fails to report an increase in income that results in the household's income exceeding 130% of the poverty level and the income continued past the second month following the change, the initial month of overpayment is the second month following the month that the income exceeded 130% of the poverty level, or higher applicable standard, based on household circumstances.

Once it is determined that the household is ineligible due to the 130% or higher applicable standard, the ineligibility continues for claims establishment purposes until the next reporting point (e.g. recertification, six month contact), even if the household's income falls below the 130% or higher applicable standard.

EXAMPLE: A household had a certification period of February to July. The household's income exceeded 130% in March. The household was required to report this by April 10, but did not. The worker discovered this in July during the recertification interview.

When developing the claim the worker looked at income received in March and April and determined that the household continued to receive the increased amount in April and May. In June, the household's income decreased to below the 130% level. There is an overpayment for May, June and July. The household is reauthorized benefits from August to January because income is now below 130%.

SNAP overpayments for TA/SNAP households must be determined using SNAP reporting rules. This may result in a TA overpayment but no SNAP overpayment when there is a change during a household's certification period.

EXAMPLE: A TA/SNAP household must report changes within 10 days to comply with Temporary Assistance (TA) requirements. The household is a Six- Month Reporting household for SNAP. The

certification period is March to August. The household fails to report that a household member started a part-time job on April 23. The household's gross income increase does not go above 130% of the poverty level. There is a TA overpayment. There is no SNAP overpayment. There will be a SNAP overpayment starting in September, if the household fails to report the increase in income at recertification.

There is also an overpayment if a household, with a member subject to the ABAWD rules, fails to report that work hours fell below 80 hours in a month, it is the third month of ABAWD eligibility, and the reduction of work hours is expected to continue in the next month. The overpayment starts the month after the month that the person's hours fall below 80. An AE overpayment is established for the month following the month the hours fell below 80 for the third time, if the household reports the change on time. An IHE or IPV overpayment is established if the household does not report this type of change or reports it late.

There is no overpayment if the household fails to report work hours below 80 per month during the first or second month of ABAWD eligibility. However, workers should stress to persons subject to ABAWD rules the importance of timely and accurate reporting regarding hours worked to help them avoid overpayments and, in some cases, an IPV disqualification.

(2) Simplified Reporting (Six-Month): Voluntary Report or Report from Outside the Household

Failure to act on changes voluntarily reported and verified by the household, or reported and verified by a source outside the household, including other program areas of the local social services agency can cause an agency error overpayment. The overpayment starts in the second month following the month in which the change information was reported to the agency (not the month in which the change occurred).

(3) 10-Day Reporting (10-10-10)

For 10-Day Reporting households, all changes during a certification period must be reported within 10 days after they occur, the worker has 10 days to make the change and a timely 10-day notice is sent to the client. For purposes of administrative ease, the start date of an overpayment caused by failure of a 10-10-10 reporting household to timely report a change is the second month following the month in which the change occurred. This policy is used even if the actual calendar dates of the change would have made it possible to change the budget for the month after the change if the household had reported on time.

EXAMPLE: A 10-day reporting homeless household started receiving income on March 1. The household should have reported the change by March 10th, but did not. The worker would have been required to send a notice by March 20th. The 10-day notice time frame would have ended March 30th. The first month of overpayment is May.

(4) SNAP Quarterly Reporting - only for those claims being developed for dates prior to April 2001.

SNAP Quarterly Reporting households were only required to report changes on the quarterly report and at recertification.

f. Initial Month of Overpayment vs. Start Date of the Claim Period

The initial month of overpayment is not always the start of the claim period. The initial month of overpayment is determined by application of change reporting rules as discussed above.

The type of claim and the Date of Discovery of the discrepant information determine the start date of the claim period. A household is required to repay the overpayment that occurred during the months covered by the claim period. A household is not required to repay overpayment amounts that occurred outside the claim period.

For claims classified as AEs or IHEs, the claim period may go back one full year (12 months) from the Date of Discovery. In some instances, the actual AE and IHE overpayment may extend back further than the beginning date of the overpayment claim period.

EXAMPLE: On June 25, 2024, the worker determines that the agency failed to budget new unearned income that a Simplified Reporting (Six-Month) household reported during a recertification interview held in January 2023. The household's new certification period started February 1, 2023. The household was overpaid starting in February 2023. The worker classifies the overpayment as an AE.

The time period between the Date of Discovery, June 25, 2024 and the date the overpayment started is longer than 12 months. A household cannot be held liable for AE or IHE overpayment amounts for a past period longer than one year from the Date of Discovery. The start date of the overpayment claim period is July 1, 2023, one year from the Date of Discovery.

For claims classified as IPV s, the claim period may go back up to six years (72 months) from the date of discovery.

EXAMPLE: If, in the above example, the household had not reported the information and an IPV determination is obtained, the start date of the claim period is February, 2023 because the period of an IPV claim can go back up to 72 months.

Count the month of discovery as Month One when counting back to determine the start date of the claim period.

g. End Date of the Claim Period

The end date of the claim period is the date the change is made to the case or the date the information no longer applies to the case. The claim period includes overpayments made during the time between the date of discovery and when the change is made, including the notice time period. The total claim period can exceed 12-months for AEs and IHEs or 6 years for IPVs when these "forward" months are included.

EXAMPLE: A Simplified Reporting (Six-Month) household reported an increase in income at recertification. The new certification period started on February 1, 2023. On June 25, 2024 the worker discovers the agency failed to make the change. This is an AE overpayment.

3. Determining the Amount of the Claim

The worker sends timely notice to change the current case as of July 31, 2024. The claim period is July 2023 (one year back from the date of discovery) to 7/31/2024 (the date the change is made to the case). The claim period is 13 months.

The SNAP overpayment is the difference between the SNAP benefits the household received and the benefits the household should have received.

Determine a corrected benefit amount for each month of overpayment. Subtract the corrected amount from the amount that was received to determine the overpayment amount for each month. Record the overpayment calculation on the paper LDSS-4778 Calculation of Total Overpayment Amount worksheet. This information will be needed to complete the CNS or manual notice that is sent to the household.

a. Determining the Amount Issued/Amount of Benefit Received

Use the Benefit Issuance Control System (BICS) "Case Record of Assistance" inquiry screens to determine the amount of EBT benefits issued to the household each month or if any benefits were returned or expunged. Under New York State's Electronic Benefit Transfer (EBT) system, a benefit is considered received as soon as it is posted and available in the household's account. The benefit does not have to be accessed (used) to be considered received. Benefits returned by the household or expunged are not considered received by the household.

Amounts of benefits authorized to the household but withheld as a recoupment to repay a prior overpayment are sometimes counted as benefits issued. If there is a recoupment for a prior overpayment in a month for which a new overpayment is being calculated, determine if the new overpayment occurred in the same period as the previous overpayment.

(1) If the new overpayment occurred in the same period as the prior overpayment, the amount of the recoupment being taken to repay the prior overpayment is not counted as benefits received. Do not add the recoupment amount to the EBT-issued benefit to determine the actual amount of benefits received for the month.

(2) If the new overpayment did not occur in the same period as the prior overpayment, the amount of the recoupment being taken to repay the prior overpayment is counted as benefits received. Add the recoupment amount to the EBT-issued benefit to determine the actual amount of benefits received for the month.

Use copies of past budgets to identify if a recoupment for a previously established claim was taken during a month in which a new overpayment is being calculated.

EXAMPLE: In January 2024, a worker is calculating an overpayment for two cases, both for the period January 2023 to December 2023. Both households have a recoupment for a prior overpayment that was being collected during the period the new overpayment occurred.

Case #1: Household #1 had a previous overpayment for February and March 2023. It was recouped from benefits paid in April 2023 through November 2023. During that period the household was entitled to $100 per month but $10 was withheld to repay (recoup) the overissuance. The household received $90 in benefits each month in their EBT account. Do not include the amount of the recoupment as part of the amount of benefits issued from April 2023 to November 2023. Use $90 as the amount of benefit issued. This is because the overpayment months of the prior claim (February 2023 and March 2023) occurred within the overpayment period of the new claim (January 2023--December 2023).

Case #2: Household #2 had a previous overpayment from June 2022 through December 2022. The recoupment started in January 2023 and will continue until June 2024. From January 2023 to December 2023 the household was entitled to $100 per month but $10 was withheld from the benefit to repay (recoup) the overpayment. The household received $90 in benefits each month in their EBT account. Add the recoupment amount to the amount of EBT benefits issued to determine the total amount of benefits issued. Use $100 as the benefit issued. This is because the overpayment months of the prior claim (June 2022 - December 2022) does not occur within the overpayment period of the new claim.

b. Determining Corrected Benefit Amount

(1) Earned Income Deduction

For all three types of change reporting, do not apply the earned income deduction to any part of the earned income that the household failed to report timely when determining the actual entitlement amount for IHE or IPV overpayment calculation. The earned income deduction is used when calculating an AE overpayment.

EXAMPLE: At recertification, a Simplified Reporting (Six-Month) household reports earned income of $100 a week but fails to report income of $25 per week from a second part- time job. When calculating the corrected benefit amount in order to calculate the overpayment amount, the earned income deduction is applied to the $100 a week income but not to the $25 a week from the part-time job.

(2) Use Actual Income Received

Workers use prospective averaged income when initially calculating SNAP eligibility and benefit amount. This requires using information at hand to make the best estimate of what the household expects to receive in income in the coming months. If the income varies from week to week an average pay amount must be calculated. That average pay must then be "converted" to reflect that there are 4.3 weeks in an average month.

When calculating an overpayment claim amount, the worker has access to a household's actual income records for the period in the past when the overpayment occurred. There is no need for a projected best estimate of income since the actual amount received is known.

For all three types of change reporting, use actual income received in a month rather than projected monthly income, to determine the corrected benefit amount when calculating a SNAP overpayment claim. Do not average and convert.

c. Corrected Benefit: Simplified Reporting (Six-Month) Household

(1) Freezing Income and Circumstances

To determine the corrected benefit amount for a Simplified Reporting (Six-Month) household for all overpayments except those due to the household's income exceeding 130% of poverty:

(a) Determine the first month of the claim (not overpayment) period;

(b) Calculate the amount of benefits the household should have received using the household circumstances and income that occurred during the first month of the claim (not overpayment) period;

(c) Freeze the income and other case circumstances. Do not change the corrected benefit amount to reflect variations in income and other household circumstances between reporting points, unless the household's income starts to exceed 130% of poverty in any of the months. This is the corrected benefit for each month until the next reporting point.

EXAMPLE: Based on circumstances reported at a December 2023 recertification, the worker authorized a benefit for the period January 2024 to June 2024 using earned income of $100 a week. During the next recertification interview in June, the worker finds out that another household member had unreported unearned income of $75 a week when the case was recertified in December 2023. The worker also finds out that the earned income was raised to $125 in February. After the increases, the household's income remained under 130% of the poverty level.

The household was overpaid for the months of January through June because of the unreported unearned income of $75 per week. The worker figures the corrected entitlement for these months using the actual income received in January, $175 a week. The increase in the earned income that occurred in February is not counted because the household was not required to report this change until the next recertification.

(2) Failure to Report Income Exceeding 130% of the Poverty Level

To determine the corrected benefit amount for a Simplified Reporting (Six-Month) household for overpayments due to failure to report household income has exceeded 130% of the poverty level or an applicable higher standard that might apply to the household based on its last certification (150%, or 200%):

(a) Determine the first month of the claim (not overpayment) period;

(b) The household was ineligible for all months in which benefits were received beginning the first month of the claim period. The corrected benefit amount is $0 (zero). It does not need to be calculated. The total amount of the benefit issued each month is the overpayment;

(c) The household remains ineligible until reapplying or recertifying, even if the income goes below 130% of the poverty level.

EXAMPLE: A Simplified Reporting (Six-Month) household had a certification period of January through June. During the recertification interview in June, the household reports receiving a

new source of income in February which caused the household's income to exceed 130% of the poverty level. The new income amount continued in March. The household also reports the income stopped as of May. The household income was below 130% of the poverty level in May and June.

The household should have reported the income change by March 10. The case would have been closed before April. The household was overpaid during April, May and June. The amount of the overpayment is the total of all the benefits received in those months.

Based on the household's circumstances during the June recertification interview, the household is eligible for SNAP benefits. The worker reauthorizes the household with a certification period of July to December. A claim is established against the household for April through June.

(3) Extra Paycheck in Calculation Month

In some instances, a Six-Month Reporting household may receive more than the usual number of paychecks in a month because of the payday schedule ("5-paycheck month"). If there was an extra payday in the month identified as the first month of the claim period, eliminate the extra amount from the overpayment calculation. Use the amounts of the four most recent weeks of earned income to determine the income to use when determining the corrected benefit amount.

d. Corrected Benefit Amount: 10-Day (10-10-10) Change Reporting

To determine the corrected benefit amount for a 10-Day Reporting household:

- Determine the first month of the claim (not overpayment) period
- Calculate a corrected benefit amount for each month of the claim period using each month's actual household circumstances and income
- Allow for the change reporting time period and income limit reporting rules for any changes that occur during the months of the claim period.

EXAMPLE: A 10-day change reporting SNAP recipient residing in a group home had a certification period of January to December. The individual had no income. The SNAP recipient started receiving $150 monthly from a pension on February 15 but did not report it. In June the pension was raised to $300. In September, the recipient started receiving an annuity payment of $200 per month. The worker discovers the unreported incomes during a recertification interview in

December. The claim period is April to December 31. The income amounts to use to determine the corrected benefit areas follow:

January	$0	
February	$0 (Change in circumstance-pension income. 10-10-10 rule)	
March	$0	
April	$150	(2nd month following the month pension income started)
May	$150	
June	$150	(Increase pension 10-10-10 rule)
July	$150	
August	$300	(2nd month following pension increase)
September	$300	(Change in circumstance- annuity income 10- 10-10 rule)
October	$300	
November	$500	(2nd month following month annuity income started)
December	$500	

(1) Extra Paycheck in Calculation Month (10-Day Reporting)

In some instances, a 10-Day Reporting household may receive more than the usual number of paychecks in a month because of the payday schedule ("5-paycheck month"). If there was an extra payday in any month of the claim period, eliminate the extra amount from the overpayment calculation. Use the amounts of the four most recent weeks of earned income to determine the income to use when determining the corrected benefit amount.

(2) Underpayments During Claim Period (10-Day Reporting)

If the calculation of corrected benefit amount shows there was an underpayment in a month included in the claim period, consider that month as having no overpayment ($0). Do not subtract the underpayment amount from the total claim amount to reduce the amount of the claim.

EXAMPLE:

MONTH	ISSUED	CORRECT	OP
June	$ 150	$ 125	$ 25

July	$ 150	$ 125	$ 25
August	$ 150	$ 200	$ 0
September	$ 150	$ 125	$ 25
Total Overpayment			$75

Issue restored benefits to the household for underpayments caused by the agency. Do not issue restored benefits for overpayments caused by the household's failure to timely report. Offset restored benefits against established overpayment claims.

e. Switching From One Type Reporting to the Other: Six-month and 10-Day Reporting

(1) 10-Day Reporting to Simplified Reporting (Six-Month)

Use the 10-10-10 Change Reporting time rules to determine the first month of overpayment when a 10-Day reporting household has a change that makes it a Simplified Reporting (Six-Month) household. Use Simplified Reporting (Six-Month) rules to determine the amount of the overpayment. Simplified Reporting (Six-Month) rules apply to determining the corrected benefit amount even though the household did not report the change.

EXAMPLE: A household with no income was opened with a certification period of June to November. The household was required to report changes according to the 10-Day Reporting requirements. In July, a household member started a part-time job for $100 a week but did not report it. In September the pay for the part-time job was raised to $125.

During a recertification interview in November, the worker discovers that the income was not reported and calculates an overpayment. The household's income did not go above 130% of poverty during any of these months. The amount of earned income used to calculate the overpayment is as follows:

Month	Earned Income Received	Corrected Income	
July	$ 300 (worked three weeks)	$0	(10-10-10 period)
Aug	$ 350	$0	(10-10-10 period)
Sept	$ 400 (4 paychecks @ $100)	$400	(Start of OP)
Oct	$ 500 (4 paychecks @ $125)	$400	(Inc frozen Sept amt)
Nov	$ 625 (5 paychecks @ $125)	$400	(Inc frozen Sept amt)

The claim period is September through November.

(2) Simplified Reporting (Six-Month) to 10-Day Reporting

If a household no longer meets the requirements to be a Simplified Reporting (Six-Month) household, the Simplified Reporting (Six-Month) rules continue to apply until the end of the household's certification period.

4. Claims During TBA Period

If an overpayment results because the worker does not use the correct budgeting method to determine the TBA benefit when the TA case closes, a claim for the overpayment amount is established against the household. The claim starts with the month in which the first TBA benefit is paid to the household and ends with the last month the TBA benefit is paid.

If the SNAP benefit is in error at the time that the TA case closes and the worker uses this information as the basis for determining the TBA benefit, there is no overpayment if the worker uses the correct budgeting method to determine the TBA benefit amount.

The local district must not decrease benefits during the TBA period. There is no overpayment if a change occurs during the TBA period that would decrease the benefits even if the change is reported and verified by a household member or a source outside the household.

Do not reduce TBA benefits by starting an overpayment recoupment for a new claim during the TBA period. Negotiate a repayment agreement for case repayment, if the case closes after the TBA period, or start a recoupment, if the case stays open after the TBA period.

5. Claims and New York State Combined Application Project (NYSCAP) Households

Establish a claim:

a. Starting in the second month following the month the interim contact form was mailed to the household, for any benefits received after failing to respond to the interim contact request. Continue the claim period until the month in which the household had appropriate contact with the local district.

b. If a household fails to report required changes in information or reports misinformation at the interim contact or at recertification.

c. If the agency fails to act on information on the SDX that causes an overpayment.

F. Collecting the Claim - Repayment Methods

Make all reasonable efforts to collect the overpayment amount for both open and closed cases, once a claim is established.

1. Recoupment: Active Cases

Collect overpayment claims through SNAP benefits reduction (recoupment) during any period when there is an open case.

The recoupment amount for IHE and AE claims is 10% of the household benefit amount, or $10, whichever is greater. The recoupment amount for IPVs is 20% of the household benefit before it is reduced due to the IPV disqualification, or $20, whichever is greater. One- and two-person households receiving the minimum benefit may have their SNAP benefits reduced to zero due to SNAP recoupment.

Claims against active cases must be collected through recoupment unless:

- The household voluntarily requests to make monthly repayment through another method (e.g., cash, return of an EBT SNAP benefit), and
- The amount to be collected each month will exceed the amount of the recoupment. This applies to all types of claims: AE, IHE and IPV.

A household may voluntarily elect to make payment <u>in addition to</u> the recoupment amount at any time.

Before September 1996, AEs could not be collected through any means unless the household agreed to repayment and completed a repayment agreement. This was changed with the implementation of PRWORA.

All AE overpayments, including those established before September 1996, are now collected through recoupment when there is an active case.

When starting a recoupment for the first time to collect an AE established before September 1996, review the past record to determine if the household received proper notice at the time the AE claim was initially established. If there is any doubt as to whether proper notice was sent, send appropriate notice to establish the claim.

2. Direct Collection: Inactive/Closed Cases

Persons who incur SNAP overpayments are obligated to repay the overpayment even if no longer in receipt of assistance. This includes overpayment claims established while receiving benefits and overpayment claims established at or after case closing.

Negotiate a Repayment Agreement with the household when a case with an outstanding claim balance closes, a claim is established at case closing or a claim is established after the case is closed.

Establish and implement local district procedures for establishing a Repayment Agreement and for continuing collection efforts if a person:

a. Fails to enter into a repayment agreement

b. Does not make a payment in accordance with an established repayment schedule

c. Pays less than the agreed upon amount

The Cash Management Subsystem (CAMS) can be used to send regular billing statements, or a local district can initiate other collection activities. CAMS also provides an Aging Report that tracks the length of time the claim has been delinquent. After the claim has been delinquent for more than six months, it can be referred to the Treasury Offset Program (TOP) for collection from federal benefits.

3. Treasury Offset Program (TOP): Inactive/Closed Cases

The Treasury Offset Program (TOP) is a collection method for delinquent SNAP overpayment claims. All local districts are required to participate in TOP.

Delinquent SNAP overpayment claims are referred to the U.S. Treasury for collection from any federal payments potentially due the individual who is responsible for the overpayment. Federal payments eligible for offset include tax refunds, federal salaries, federal pension benefits or Veteran's Benefits. NY State, in accordance with federal regulation 7 CFRR 273.18, only removes cases from TOP where the State has arranged with the debtor to resume payments on the overpayment claim. Additionally, if a case has been inactivated from TOP and fails to make a payment for a period of 60 days the case is reactivated automatically in TOP.

Cases are identified for a TOP collection after an automated review of CAMS shows the:

a. Client responsible for the overpayment is not a current recipient of SNAP benefits and

b. Debt is less than 10 years old and

c. Claim is delinquent

The retention of documentation is critical for the proper certification of SNAP overpayments to the TOP program. Claim documentation must be retained as proof of the overpayment claim. This information must also be made available to the client. The client is entitled to the supporting information upon request at any time, up to and including the appeal process.

4. Offsetting Restored Benefits: Active and Inactive/Closed Cases

Offset restored benefit amounts against overpayment amounts. Use this repayment method for both active and closed cases that receive restored benefits. Check to see if there is an outstanding overpayment amount before issuing a restored benefit. If there is an outstanding claim balance, do not issue the benefit to the client.

In upstate local districts, deduct the restored amount from the WMS claim balance and change the claim balance in WMS and CAMS. In New York City follow the local procedures in the Family Independence Administration (FIA) SNAP Recoupment Subsystem. See Section J of this Directive for more information about WMS and the FIA SNAP Recoupment Subsystem.

5. Benefit Expungement: Active and Inactive/Closed Cases

All unredeemed SNAP benefits in an account are expunged (erased) from the EBT System if there are no benefits redeemed for 274 days. Unredeemed benefits are offset against any outstanding claim balance before they are expunged. This process applies to both active and closed cases. The offset is done automatically for claims listed on CAMS.

Benefits which are unredeemed for 274 days or more when expunged may not be restored. Benefits expunged when unredeemed for less than 274 days may be restored at client request. Adjust the claim balance in CAMS and WMS if benefits previously offset against a claim are later restored to the client.

6. Voluntary Repayment: Active and Inactive/Closed Cases

Clients may make extra voluntary payments to reduce overpayment claim amounts at any time. These may be cash repayment, repayment using EBT SNAP benefits, increasing the SNAP benefits reduction (recoupment) to a higher amount than required or making payments in addition to the amount required by a repayment agreement or recoupment percentage.

A household with an active case may make voluntary payments <u>in addition to</u> repayment through recoupment. However, a household may not substitute a voluntary repayment for a recoupment <u>unless</u> the voluntary payment is more than the recoupment amount.

Establish and implement local district worker and supervisory procedures regarding accepting extra voluntary repayments. Ensure that the worker knows the appropriate action to take or referral to make if a client wants to make a voluntary repayment.

7. Switching Collection Method

Change the collection method when a case status changes from active/open to inactive/closed or vice versa. Send the household a notice explaining the change in collection method and the outstanding amount of the claim balance.

In this situation the household has a right to a fair hearing to challenge the amount of the claim balance or the appropriateness of the collection method. The household does not have fair hearing rights regarding the fact that there is an overpayment. The household had the opportunity to challenge the overpayment when it was established.

G. Establishing The Claim

1. Establishing a New Claim

a. Notice

Establish the claim by sending all appropriate notices once the type, period, amount and repayment method of the claim is determined. The date on the Demand Notice is the date the claim is established, provided the notice is not returned as undeliverable. If returned as undeliverable, a claim is not established.

b. System

Enter information about the claim into WMS upstate and into the Family Independence Administration (FIA) Recoupment Subsystem in New York City.

Enter Upstate claim information into the Cash Management Subsystem (CAMS) for all closed cases. Use of CAMS for active cases is optional. Enter claim information for active cases into CAMS, if the district uses CAMS for active cases. Establish a claim control process for active cases that meet the requirements established by the OTDA Office of Finance if the local district does not use CAMS for active cases.

In New York City there is an interface between the FIA Recoupment Subsystem and CAMS. Information entered into the Recoupment Subsystem is automatically transmitted to CAMS. No separate action is required to ensure that the data goes to CAMS.

2. Waiving Claim Establishment

a. Pre- Establishment Cost Effectiveness Determination

In the following instances, claim establishment may be waived because it may not be cost effective to establish and subsequently collect an overpayment:

(1) Closed Case with Claim Less Than $500

(a) It is a local district option to waive establishment of a claim if the case is closed and the amount of the claim is $500 or less. The local district can establish an establishment threshold of any amount between $1 and $499. This includes IPV claims, unless the court decision establishing the IPV prohibits waiving the establishment of the claim. The IPV disqualification penalty is imposed even if the establishment of the overpayment claim is waived.

If a local district chooses to use an establishment threshold for closed cases, the policy must be applied to all cases fitting this situation. It cannot be used on a case-by-case basis.

Document in the case record that no claim was established because the case is closed and the amount is less than the local threshold when processing a closed case for which the establishment of the claim is waived. This resolves the discrepant information. The information does not have to be reviewed again if the case reopens.

A local establishment threshold pertains only to establishing the claim. If a claim was established and the balance is below the threshold when the case is closed or falls below the threshold after the case is closed, collection efforts must be continued. In such situations, consider writing off the claim.

(2) All Members Deceased

(a) Claims establishment may be waived if all persons who would be responsible for repaying the claim are deceased. Claims may be established against the estate of deceased household members. It is a local district option to waive establishment of a claim against the estate of deceased household members. This option may be used on a case-by-case basis. It does not need to be applied to all cases fitting the situation. Document in the case record that no claim was established because all members of the case are deceased, if this option is used.

(3) No Adult Household Members

(a) Do not establish a claim if all members of the household were under the age of eighteen and none of them were head of the household when the overpayment occurred.

3. Responsibility for Claims Established In Another Jurisdiction

a. Household Continuing to Receive SNAP Benefits

If a household with a claim established in another New York local district or another state moves to a new district and continues to receive SNAP benefits in the new district, responsibility for collecting the claim is transferred to the new district.

Notify the old local district or state to terminate the claim. Change CAMS to reflect that the new local district will collect the recoupment.

Make sure that the uncollected balance of the claim is accurate when reestablishing the claim. Information in CAMS is considered accurate. It does not have to be verified by additional contact with the previous county. If there is no CAMS information because the previous district does not use CAMS or the claim was established in another state, contact the old district or state to find out the current uncollected claim balance.

The household must be informed of the amount still owed when the claim is reestablished in the new district.

Do not obtain copies of the documentation used to initially establish the claim when re- establishing it. This documentation remains with the county that originally established the claim.

The new local district is responsible for issues dealing with the accuracy of the balance and collection for the period of time after the claim is established in the new district if a client requests a Fair Hearing. The old local district or State remains responsible for issues dealing with the original establishment of the claim and the accuracy of the balance and collections during the period before the claim was transferred to the new local district. At times, there may be Fair Hearing requests regarding issues for the period of time before the claim was transferred. The new local district may have to appear at the Fair Hearing on behalf of the old local district or State due to location and travel considerations. If this happens, obtain the information and documentation needed for the hearing from the old local district or state at that time.

b. Households Not Continuing to Receive SNAP Benefits

If a household moves and does not continue to receive SNAP benefits, the old local district remains responsible for collection. Obtain a repayment agreement from the household and continue to collect the overpayment. If the household does not cooperate use other collection methods such as TOP.

H. Compromising Claim Amounts

1. Claims Compromise on Inactive/Closed Cases

This provides discretionary standards for local districts to compromise (reduce) claim amounts including AE's, IHE's and IPV's in order to maximize and expedite client payments. Compromise is the term used to describe the administrative reduction of part of a SNAP claim amount. Claims compromise is offered as a collection tool to offer an accommodation to clients with outstanding debts, thereby encouraging payment directly to the district, and speeding receipt of payments at that level.

Active cases with over issuances will continue to repay the full amount of the claim via allotment reduction. Balances for each of several claims against the same household may be compromised at the same time, though each claim will need to be adjusted separately. The local district may compromise a claim or any portion of a claim if it can be reasonably determined that due to a household's economic circumstances, the claim will not be paid in three years. Once compromised, the claim cannot be compromised again and the agreed upon amount remains the balance to be collected. Claims compromise is not appropriate for all cases, especially if collection can be achieved effectively by other means.

The manual version of the LDSS-3156 "Notice of Supplemental Nutrition Assistance Program (SNAP) Overpayment" as well as the related CNS notices have been revised to include the statement, "If you have a SNAP Benefit Agency overpayment that has not been paid back, and your case is now closed or being closed, you may be able to get a reduction (compromise) of what you owe. If you cannot repay the full balance of what you owe, talk to your local department of social services.

Upon client request, the local district will consider compromising a claim. As a rule, only claims that the district deems not to be fully collectible via a standard repayment agreement or by other means (including a potential future TOP recovery), are eligible for compromise. Decisions regarding compromise must be documented and maintained in the case record.

2. Compromise/Collection Methods

The district shall compute the amount of potential payment available by determining the Thrifty Food Plan for the current household size for a three-year period. Ten (10) percent of that amount will be considered the figure that can be reasonably anticipated to be collected and the amount of debt exceeding that is to be vacated. Since claims compromise is offered as a collection tool thereby encouraging payment directly to the district, the district must secure another repayment agreement as a condition of the compromise. If the household becomes delinquent in its payment of the compromised amount, the debt shall continue to be the compromised amount, less any payments made.

Another allowable method is compromising the portion of the overpayment incurred during the federal public health emergency from March 13, 2020 to September 30, 2023 under the assumption that the overpayment was incurred due to a pandemic caused over issuances.

Districts may also offer to settle for amounts larger or smaller than the total from the above method if they believe it creates a greater likelihood that the household will be able to pay the debt.

3. Other Compromise Issues

No further compromise may be afforded on the same claim if the client has defaulted on paying the compromised amount. However, at the discretion of the local district, the timely and installment amounts of the prior repayment agreement may be renegotiated without impacting the compromise.

Delinquent accounts will be subject to collection through the Treasury Offset Program (TOP) as well as other collection methods.

Fair Hearing Implications: Claims Compromise is a collection method provided by USDA to increase and expedite collection of federal debt. While it is intended to be an administrative tool and it is not to be confused with a client right, Fair Hearing rights are afforded when a request for compromise is denied. For this purpose, additional compromise notification language has been added to the LDSS-3156 or LDSS-3156 NYC Notice of Supplemental Nutrition Assistance Program (SNAP) Benefits Overpayment timely and adequate demand letter..

I. Terminating Claims

1. Termination of Claims

The termination of a closed case claim is the administrative process for removing a claim from the inventory of collectable debts. Claim termination is used to eliminate closed case claims that have little or no likelihood of collection. Social services districts may terminate a SNAP claim for a closed case (non-participating household) if the claim meets any of the following criteria.

a. Any claim which is found to be invalid in a fair hearing, administrative disqualification hearing or court hearing; unless it is appropriate to pursue the overpayment as a different type of claim (e.g., an IHE rather than as IPV claim)

b. Any claim in which all adult household members are deceased, and the local district is not planning to pursue collection from the estate

c. Any claim of up to $500 for non-participating households

d. Any claim which the local district has determined is not cost-effective to collect

e. Any claim which has been delinquent for three years, unless the claim is pursued through the TOP. Claims no longer must be suspended for 3 years before termination; or

f. Any claim where the household cannot be located.

g. Any Inadvertent Household Error or Agency Error claim for pandemic caused over issuances during the federal public health emergency from March 13, 2020 to September 30, 2023

Note: Suspension, a period of inactivity prior to referral for collection, is no longer required. Clients are entitled to all appropriate notice and hearing periods but may then be referred without further delay.

Local districts should continue to use the termination provision to target uncollectible claims and avoid inflating SNAP Claims inventories with bad debts.

Documentation of the reason for termination should be included in the case record.

J. Notices

Providing proper notice of an overpayment is a critical step in the claims process. The date of the notice is the date the claim is considered established. Failure to provide proper notice can result in the claim being overturned in a Fair Hearing or being rejected from automated collection processes such as the Treasury Offset Program (TOP).

The following are the approved notices for claims establishment. No other notice, such as a local Confession of Judgment, may be substituted for the State approved CNS or manual notices when establishing a SNAP overpayment claim.

1. Claims Establishment Notices: Demand Notice, Calculation of Total Overpayment Amount Worksheet, Repayment Agreement

The following must be sent to the household to establish the claim:

- Demand Notice (LDSS-3156)
- Overpayment Calculation Explanation
- Repayment Agreement, if claim cannot be collected through recoupment

a. Demand Notice

The Demand Notice tells the household about the:

(1) Amount of the overpayment
(2) Period of the overpayment
(3) Reason for the overpayment
(4) Date of discovery
(5) Type of claim
(6) Method of repayment

The household has fair hearing rights on all aspects of the claim listed above when a claim is being established.

The Demand Notice also provides:

(1) Information that the local district may continue to pursue an IPV even though an IHE has already been established; and

(2) Information that an unpaid claim will be referred for collection including automated collection by the federal government even after the case is closed.

The Demand Notice is also used to notify the household about the current balance of a claim.

b. Calculation of Total Overpayment Amount Worksheet (LDSS-4778)

Send the Calculation of Total Overpayment Amount worksheet whenever a claim is being established to:

(1) Support the amount of overpayment stated on the Demand Notice

(2) Show amounts of overpayment month-by-month.

(3) Support the agency's position during agency conferences, Fair Hearings and TOP challenges.

The manual version of this notice can be used by the worker as a calculation aid when the amount of the overpayment is being calculated.

c. Repayment Agreement (LDSS-4053)

Send the Repayment Agreement when:

(1) Establishing a claim at case closing

(2) Establishing a claim after the case is closed.

(3) Closing a case with a previously established claim

It is also used when a household with an active case requests to make a voluntary repayment that is in excess of what is being recouped.

Establish and implement local district procedures to monitor the sending and return of the Repayment Agreement. The procedures must include at a minimum:

(1) Identification of who sends the agreement, who monitors the return of the agreement and where the agreement is sent when it is returned.

(2) Provisions for discussing with the recipient the specifics of the repayment so that any necessary billing can be set up.

(3) The process to use when the Repayment Agreement is returned.

(4) The process to use if the Repayment Agreement is not returned, including efforts to continue to try to obtain a repayment agreement.

Do not send the Repayment Agreement to an active case unless the recipient wants to make a voluntary repayment.

2. Producing the Establishment Notice

a. Active Cases CNS

Use the following CNS codes to generate Establishment Notices for active cases:

Type of Overpayment	CNS Code if recoup will start in WMS	CNS Code if recoup will be pended in WMS
Agency Error (AE)	R 21	R 24
Inadvertent Household Error (IHE)	R 22	R 25
Intentional Program Violation (IPV)	R 23	R 26

When any of the above codes are used and the appropriate worker entry fields are completed, they generate the CNS Demand Notice, which includes the Calculation of Total Overpayment information. Codes R23 and R26 also generate the information about the SNAP disqualification penalties.

b. Closed/Closing Cases CNS

Use the following CNS codes to generate Establishment Notices for closed cases or when establishing a claim at case closing:

Type of Overpayment	Code
Agency Error (AE)	R 27
Inadvertent Household Error (IHE)	R 28
Intentional Program Violation (IPV)	R 29

When any of the above codes are used and the appropriate worker entry fields are completed, they generate the CNS Demand Notice, the Calculation of Total Overpayment information and the Repayment Agreement. Code R29 also generates the information about the SNAP disqualification penalties.

c. Manual Notices

The following are the manual claims establishment notices for active, closed and closing cases:

(1) LDSS-3156 and LDSS-3156 NYC Notice of Supplemental Nutrition Assistance Program (SNAP) Benefits Overpayment (DEMAND LETTER) Timely and Adequate, - for AE, IHE and IPV overpayments.

(2) LDSS 4799 and LDSS 4799-NYC – Intentional Program Violation (IPV) Disqualification Notice for the Supplemental Nutrition Assistance Program (SNAP) informs clients of their disqualification from SNAP due to an Intentional Program Violation. The LDSS-4799 and LDSS-4799NYC informs the household of the SNAP disqualification penalties and the effect the IPV claim will have on the household's current benefit.

(3) LDSS 4778 - Calculation of Total Overpayment Amount is used with both the LDSS 3156 and LDSS 4799 to explain how the overpayment was calculated.

The manual Repayment Agreement for closed and closing cases is:

(1) LDSS 4053 – Supplemental Nutrition Assistance Program (SNAP) Benefits Compromise/Repayment Agreement Request.

3. Notifying Household of the Effect Claim Will Have on Current Benefits

a. CNS Notices

In addition to the information about the amount of the claim and how it was calculated on the Demand Notice and the Calculation of total Overpayment Amount worksheet, inform a household with an active case of the effect the recoupment of the overpayment will have on current benefits. Use the notices or the comparable CNS language that inform the household about eligibility and benefit amount. The notice codes vary depending upon the type of action being completed.

b. Manual Notices

The manual notices used for this purpose are:

(1) LDSS-3152 Action Taken on Your SNAP Case

(2) LDSS-3152 (NYC) Action Taken on Your SNAP Case (NYC)

(3) LDSS-3620 Notice of Intent to Change SNAP Benefits (Timely and Adequate)

(4) LDSS-3620 (NYC) Notice of Intent to Change SNAP Benefits (Timely and Adequate) (NYC)

(5) LDSS-3621 Notice of Intent to Change SNAP Benefits (Adequate Only)

(6) LDSS-3621 (NYC) Notice of Intent to Change SNAP Benefits (Adequate Only) (NYC)

(7) LDSS-3969A & LDSS-3969B Notice of Action on Your Application/Benefit for the Child Assistance Program, Status of Medical Assistance, SNAP and Services

(8) LDSS-4013A & LDSS-4013B Action Taken on Your Application: Public Assistance, SNAP and Medical Assistance Coverage

(9) LDSS-4013A (NYC) & LDSS-4013B (NYC) Action Taken on Your Application: Public Assistance, SNAP and Medical Assistance Coverage (NYC)

(10) LDSS-4014A & LDSS-4014B Action Taken on Your Recertification: Public Assistance, SNAP and Medical Assistance Coverage and Services

(11) LDSS-4014A (NYC) & LDSS-4014B (NYC) Action Taken on Your Recertification: Public Assistance, SNAP and Medical Assistance Coverage and Services (NYC)

(12) LDSS-4015A & LDSS-4015B Notice of Intent to Change Benefits: Public Assistance, SNAP and Medical Assistance Coverage and Services (Timely & Adequate)

(13) LDSS-4015A (NYC) & LDSS-4015B (NYC) Notice of Intent to Change Benefits: Public Assistance, SNAP and Medical Assistance Coverage and Services (Timely & Adequate) (NYC)

(14) LDSS-4016A & LDSS-4016B Notice of Intent to Change Benefits: Public Assistance, SNAP and Medical Assistance Coverage and Services (Adequate Only)

(15) LDSS-4016A(NYC) & LDSS-4016B(NYC) Notice of Intent to Change Benefits: Public Assistance, SNAP and Medical Assistance Coverage and Services (Adequate Only) (NYC)

For IPV Claims, use the LDSS 4799 - IPV Disqualification Notice (LDSS 4799(NYC)) to inform the household about the effect the IPV claim will have on current benefits.

4. Updating the Household About the Claim Balance

When a household switches from one-repayment method to another (i.e. recoupment to cash, cash to recoupment) send notice of the total balance of all overpayments owed. In this situation, there are Fair Hearing rights on the accuracy of the claim balance and repayment method. There are no Fair Hearing rights on the criteria used to originally establish the claim (i.e. original amount, period, reason, date of discovery and type).

a. CNS Notices

Use the following CNS codes to generate a Claim Balance notice:

Action	CNS Code
Active Case is Closing (Recoupment to cash repayment)	L 99
A closed case with an outstanding AE or IHE is reopening (Cash repayment to recoupment)	L 92
A closed case with an outstanding IPV is reopening (Cash repayment to recoupment)	L 94

The worker must complete the BALANCED OWED field for the CNS notice. In addition to generating the Balance Owed Notice, code L99 also generates the Repayment Agreement.

b. Manual Notices

If using manual notices, use the LDSS 3156 - Notice of Food Stamp Overpayment to update the household about the balance owed when the repayment method for the household changes. Also send the LDSS 4053 - Repayment Agreement when the case is going from active/opened to closed.

5. Households That Cannot Be Located For Claims Establishment

A claim is not established if the SNAP Demand Letter Notice (manual or CNS) is returned to the agency as undeliverable. However, there may be a good chance to collect the overpayment if the household members come back on SNAP or can otherwise be located at a later date.

Make reasonable efforts to get undelivered notices to household members liable for repayment. If such attempts fail, terminate the claim in CAMS.

When a claim is terminated ("written-off"), it is no longer subject to continued collection and reporting requirements. However, the information about it stays in CAMS. If a new collection method or a specific event subsequently increases the likelihood of further collection, the claim may be reinstated.

If contact is made with the household at a later date, send the appropriate notices to establish the claim and change the claim status in CAMS. In districts that do not use CAMS for open cases, reinstate the claim in the local accounting system.

Do not attempt any collection of the overpayment until the household receives appropriate notice of the claim by receiving the manual or CNS Demand Notice.

Establish and implement local district procedures to:

a. Control claim notices returned as undeliverable so that these claims are terminated in CAMS

b. Ensure that workers identify terminated claims when contact is renewed with a household member

c. Ensure that proper notice to establish the claim is sent to the household when contact is re-established and that the claim is removed from terminated status in CAMS

d. Insure proper manual controls if the district does not use CAMS for active cases.

Failure of the household to return a Repayment Agreement does not mean the mail was undeliverable. Even if the Repayment Agreement is not returned, the claim is considered established unless the Demand Notice is returned marked "undeliverable."

K. Documentation

1. Types of Documentation

Maintain all documentation that supports the decisions about the claim amount, type, period and repayment method. At a minimum, this includes but is not limited to:

a. The source of the discrepant information, such as a verbal report from the client, a change report form, information received from an outside source, or computer print-out

b. Application or recertification forms that apply to the time period of the overpayment

c. Verification of the discrepant information, such as pay stubs or employer letters

d. Copies of manual notices

e. Records relating to the amount of benefits that were received

f. Budget calculations used to determine the benefit amount that the client should have received. This can be represented as copies of scratchpad budgets representing the entire period of overpayment

g. The Calculation of Total Overpayment Amount worksheet with the month-by-month overpayment summary showing the Date of Discovery, Date of Establishment, amount issued to the household, the amount to which the household was actually entitled, the overpayment amount for each month and the total amount of the overpayment.

Documentation may be paper originals, copies of originals, electronically imaged documents or an electronic record such as information retained in WMS and CAMS. It may be kept in a separate claims file or in the general case record. If kept in the general case record, the information must be clearly identified that it supports a claim and what claim it supports. Information must be readily retrievable for local district, federal, State, client, or fair hearing review. Failure to adequately document claims establishment information can result in the claim being overturned in a Fair Hearing, TOP review or other challenge.

2. Record Retention Requirements

Keep closed case documentation according to the USDA time limits outlined below:

a. IPV Disqualification Records: Indefinite. These records must be retained for the life of the individual or until USDA notifies the State that the record is no longer needed.

b. Work Requirement Violation Records: Indefinite. Permanent work rule disqualifications must be retained for the life of the individual or until s/he reaches age 60, whichever occurs first.

c. Claims Records: 3 years after the claim is either satisfied or closed administratively.

d. Issuance Records: 3 years from the date the federal debt is paid for cases with claims.

In addition, follow these State requirements:

a. General Program Records: 6 years from the date of origin.

b. Certification Records: 6 years from the end of the date of certification or, if under investigation, until the investigation is resolved or the penalty imposed.

c. LDSS-3214 Supplemental Nutrition Assistance Program (SNAP) Status of Claims Against Households: 6 years.

d. CAMS Reports: 6 years.

L. Systems Implications

1. WMS Claims Procedures

This section outlines the WMS activities used to process claims in new, active and closed cases.

a. Upstate

(1) Establishing a new claim
To enter a new claim in WMS for an active case on the ABEL SNAP Input screen enter:

(a) Claim Type using one of the following codes:

1 Agency Error

2 Client Error

4 TA Fraud/SNAP IPV

(b) Enter the Claim Balance

(c) If the Claim Type is '4' (SNAP IPV), enter the number of people disqualified

ABEL calculates the amount of the ongoing monthly SNAP Benefit reduction, the number of months it will take to collect the overpayment and the final month's remaining recoupment amount.

The household may enter into a voluntary repayment agreement to make a monthly repayment that is greater than the required 10% or 20% recoupment amount. If this occurs, the household must complete a "SNAP Repayment Agreement." Enter the amount of the voluntary repayment in the "Amount" field. ABEL will not calculate a recoupment amount. The voluntary repayment amount will be used as the recoupment amount.

Write a recurring SNAP Payment Line using Payment Type "96" or "X6". WMS brings the monthly Claim amount being recouped from the stored ABEL Budget to the bottom of data-entry Screen 6. The monthly recoupment amount is transmitted to BICS and that amount is subtracted from the total claim balance in WMS. For districts using CAMS for active cases, the amount of the recoupment is also automatically posted to the CAMS claim.

When doing subsequent months' budgets for the case, enter 'Y' in the RECALC field on the SNAP Input Screen. The overpayment balance, the number of months to recover the overpayment and any remaining final month overpayment amount are updated each time a subsequent budget is stored with a 'Y' entered in the RECALC field on the SNAP Input Screen.

When writing single issue SNAP payment lines using either Pay Type X1, X3, 91, 93, 94, 95 or 97, if there is no ABEL budget to access, enter the claim amount at the bottom of data-entry Screen 6. This ensures accurate crediting of the recoupment amount in CAMS in districts using CAMS for active cases. Under certain circumstances, WMS will automatically bring a Claim Amount to Screen 6, if there is a stored budget that matches the amounts and dates of the single-issue payment. Complete details for updating CAMS using single-issue pay lines are contained in the following two "Dear WMS Coordinator" Letters: November 14, 2003, Attachment I, #3, and July 10, 2003, Attachment I , #3.

Prepare appropriate manual or automated notices with reason(s) and corresponding budgetary information for the action taken on the case and amount to be recovered.

(2) Previous Claims/Order of Collection

ABEL has room to show two outstanding claims. The first claim occurrence field is the claim currently being collected. If it is filled, enter the new information in the second occurrence field. Collection will start on the new claim after the collection on the previous claim is complete.

If there already are two outstanding claims, entry of the information into ABEL is pended. Follow local procedures for pending the claim entry into WMS. Enter information about the claim into CAMS even though the entry into WMS has been pended. Send appropriate notice to the household, even if the entry into WMS is pended.

Collection of IPV takes precedence over collection of AE and IHE claims. If the new claim is an IPV, and the first prior claim occurrence is not an IPV claim, suspend the claim that is in the first field. Do this by removing the non-IPV from the first claim occurrence field and putting it in the second occurrence field. If there already is a claim in the second occurrence field, move that claim to pending.

If the first occurrence is an IPV, do not suspend it. Put the new IPV claim in the second field. If the rare third claim is an IPV, pend WMS entry for the new IPV. For AE and IHE claims, collect the oldest claim first.

(3) Previous Claims at Case Opening

When opening a new case, determine if anyone in the new case has an outstanding claim. There is a Recoupment Indicator on the WMS Clearance

Report if the individual being matched is or was a member of a case that currently has, or had when closed, an outstanding TA recoupment balance, an outstanding SNAP claim balance or both. The indicator is labeled R/C on the clearance report, with values of “P” for TA recoupment, “F” for SNAP claim or “B” for both. Also, information may be obtained about previously established overpayment through other sources such as direct contact with other districts or states and the state Disqualified Recipient Subsystem (DRS) or CAMS.

Enter these claims into WMS for collection. If there is more than one claim, enter IPVs first and all other claims next with the oldest claim listed first.

(4) Establishing a Claim at Case Closing or on a Closed Case

Claims established at case closing or after a case closes are not entered into WMS when established.

(5) Fair Hearings

If a client requests a Fair Hearing and is entitled to aid-to-continue take the following actions:

(a) Cancel the payment line reducing the SNAP benefits

(b) Recalculate and store a new ABEL Budget without including the overpayment claim that is in dispute

(c) Re-write the payment line in an amount not reflecting the claim recovery

If the district is upheld in the hearing, re-establish the claim. This includes recalculating the claim to include the amount of the overpayment accrued during the aid-to-continue period. Reenter the claim in WMS. Make sure CAMS information is updated.

Remove claim from CAMS, if the district decision is overturned.

b. New York City

(1) New Claims

In NYC, claim data for both opened and closed cases is processed and maintained in the SNAP Recoupment Subsystem. This subsystem is designed and maintained by the New York City Family Independence Administration (FIA) in accordance with standards defined by OTDA.

Amounts entered into the subsystem are recouped automatically when the regularly recurring SNAP benefit is issued. Setting the claim collection priority is

done by the system. It does not require any worker action. Claim information from the recoupment subsystem is sent to the State CAMS system.

Follow the Recoupment Subsystem procedures issued by the FIA to establish or change a claim for a NYC case.

(2) Claims at Case Opening

When opening a new case, determine if anyone in the new case has an outstanding claim. There is a Recoupment Indicator on the WMS Clearance Report if the individual being matched is or was a member of a case that currently has, or had when closed, an outstanding TA recoupment balance, an outstanding SNAP claim balance or both. The indicator is labeled 'Recoup' on the clearance report, with values of 'Y' or 'N'. Also, information may be obtained about previously established overpayment through direct contact with other counties or states and from the state DRS system.

Follow the Recoupment Subsystem procedures to ensure that outstanding claims are recorded in the subsystem.

(3) Fair Hearings

For a case entitled to Fair Hearing aid-to-continue, take the following actions:

If the recoupment transaction is in 04 clockdown status (also known as 10-day timely notice), enter an FH status of "2" (aid continue) through the Fair Hearing Update subsystem.

If the recoupment is not clocking down, give aid-to-continue through the SNAP recoupment subsystem (action code 5).

2. Cash Management Subsystem (CAMS)

CAMS, the Cash Management Subsystem is the portion of Benefit Issuance Control System (BICS) that allows for the cash collection and accounting of claims established due to the client being overpaid. The Accounting or Resource Unit staff is normally the unit responsible for the actual entry of data into CAMS. For information on the actual entry of data into CAMS refer to the Cash Management Procedural Manual that is published by the Bureau of Financial Services.

For open cases, CAMS receives the recoupment information that appears on WMS screen 6 for "recurring" or is entered for "single issues." On the fourth weekend of the month a batch job is run in CAMS to update claims with recoupment data. The amount of the recoupment is updated to the outstanding claim resulting in reduction of the

outstanding balance of the claim. It is critical to enter "single issues" on screen 6 to allow the recoupment process to update the claim.

Two types of reports identify situations where the CAMS claim information is inconsistent with the information received from WMS. If a claim exists for the case but no recoupment was received, a report can be requested to identify the situation. The Accounting or Resource Unit must then notify the worker that ABEL should be changed to include a recoupment in the budget calculation. An automated, monthly report will be generated, if a recoupment is received but no claim has been established. This would indicate to Accounting or the Resource Unit that they must contact the worker to obtain the overpayment information.

CAMS is used to post voluntary repayments that the client makes to the local district for closed cases. These repayments are posted to the claim and reduce the outstanding balance by the amount of the repayment. In addition, CAMS can generate a billing statement for these cases. These statements identify the amount of all outstanding claims and request that payment be made. The Billing Statements are produced on a schedule determined by the local districts. When claims for closed cases are established, Accounting or the Resource Unit indicates whether a bill should be generated for that particular claim.

Send CAMS billing statements periodically to remind of outstanding claims if a former recipient refuses to enter into a repayment agreement with the agency or does not make the payments required by a repayment agreement. Do not use CAMS billing statements in place of the initial Demand Letter. Local districts must establish procedures regarding how often billing statements will be sent. There is no State requirement regarding frequency of demand letters. However, local districts with poor collection records may be required to develop a Corrective Action Plan to improve collection activity.

The most important financial report that is generated for SNAP overissuances is the LDSS-3214 (SNAP Benefits Program - Status of Claims against Households). CAMS generate this report monthly for submission to the State. The accumulation of the LDSS-3214s becomes the basis of the State's reported overclaim information to the federal Government. The report includes all the recoupment and repayment data as well as identifying all new or terminated claims. The ending balance for the report indicates the total amount of outstanding SNAP benefits claims and becomes the beginning balance for the next month's report.

Closed/Inactive case claims for which payments are delinquent are referred to the Tax Offset Program (TOP) for collection from federal tax refunds. A case is considered delinquent when no payments have been collected for at least six months.

References:

04 ADM-01-Establishing and Collecting Food Stamp Overissuance Claims

24DC057 - Termination or Compromise of Established Pandemic Related Supplemental Nutrition Assistance Program (SNAP) Overpayment Claims

SECTION 17: Resources

A. Description

1. Definitions

a. Equity Value - The fair market value of the resource less encumbrances.

b. Resources - Liquid and non-liquid resources of all members of the household cannot exceed $3,000 for the household, except that, for households including a member or members age 60 or over or a disabled member(s), such resources cannot exceed $4,500. These amounts are subject to adjustment annually and will be reflected in the "Updated Supplemental Nutrition Assistance Program (SNAP) Standards" published each October.

NOTE: Categorically eligible households are not subject to a resource test. Under Broad-Based Categorical Eligibility (BBCE), most SNAP households, having passed the relevant Gross Income Threshold (GIT) for their household circumstances, are no longer subject to either a resource limit or a net income test for eligibility. However, SNAP households with any members who have been temporarily or permanently disqualified from participation in SNAP due to an Intentional Program Violation (IPV) or work rules violation or voluntary quit cannot be considered categorically eligible. Similarly, SNAP households with any aged/disabled and income over 200% of FPL cannot be categorically eligible.

2. Types Of Resources

a. Liquid Resources - Liquid resources are those resources which are readily available to the applicant or recipient including, but not limited to the following:

(1). Cash on hand

(2). Money in checking and savings accounts

(3). Stock or bonds

(4). Lump sum payments

(5). Funds held, less the amount of penalty if any for early withdrawal, in individual retirement accounts (IRA's)

(6). Keogh plans which do not involve the household member in a contractual relationship with individuals who are not household members

(7). Funds set aside under a HR Plan of Self-Support

b. Liquid Resources and Expedited Processing Determination – Only the following liquid resources are to be used when calculating the total liquid resources which are readily available to the household when determining expedited processing eligibility.

(1). Cash on hand,
(2). Money in checking and savings accounts,
(3). Lump sum payments

c. Non-Liquid Resources - Non-liquid resources such as personal property, licensed and unlicensed vehicles, buildings, land, recreational properties, and any other property not specifically excluded under the Excluded Resources in this section of the SNAPSB. The value of nonexempt resources, except for licensed vehicles as specified in Licensed Vehicles in this section of the SNAPSB, shall be its equity value.

3. Jointly Owned Resources

a. Resources owned jointly by separate households shall be considered available in their entirety to each household, unless it can be demonstrated by the applicant household that such resources are inaccessible to that household.

If the household can demonstrate that it has access to only a portion of the resource, the value of that portion of the resource shall be counted toward the household's resource level.

b. The resource shall be considered totally inaccessible to the household if the resource cannot practically be subdivided and the household's access to the value of the resource is dependent on the agreement of a joint owner who refuses to comply.

NOTE: For the purpose of this provision, ineligible aliens or disqualified individuals residing with the household shall be considered household members.

c. Resources shall be considered inaccessible to persons residing in shelters for battered women and children if the:

(1). Resources are jointly owned by such persons and by members of their former household; and

(2). Shelter resident's access to the value of the resources is dependent on the agreement of a joint owner who still resides in the former household.

4. Resources Of A Sponsored Non-Citizen

Households containing sponsored non-citizens shall also include that portion of the alien's sponsor and sponsor's spouse resources that have been deemed to be those of the alien in accordance with procedures contained in Deeming of a Sponsor’s Resources in this section of the SNAPSB.

References:

387.1 Definitions
387.9(b) Investigation and Eligibility

B. Resource Limits

All applicants and recipients of SNAP must not exceed the resource limits set forth in this section, however households which are categorically eligible for SNAP, as provided in SNAPSB Section 5- Non-Financial Eligibility Standards, 07-ADM-09, 09-ADM-06 and 16-ADM-06 are not subject to the resource limitations or any other requirements of this Section.

NOTE: Per 07-ADM-09, effective 1/1/08 most SNAP households are now categorically eligible and exempt from the resource test. However, information on resources should still be collected in order to determine if the resource produces income that must be included in the budget when determining eligibility. Example: a savings account may produce interest income that is considered a source of unearned income that must be used in determining SNAP eligibility.

1. Determining Resources

a. At the time the household is interviewed, the value of a household's resources shall be determined.

b. Resources of ineligible aliens, individuals disqualified for intentional program violation, individuals who fail to comply with a SNAP work registration requirement or a SNAP work requirement, or individuals disqualified for refusal to apply for or provide an SSN as described in SNAP SB Section 5 Social Security Numbers are to be considered available in their entirety to the remaining household members.

c. The resources of households with striking members shall be based on pre-strike circumstances. The household's resources on the day prior to the strike must be used when determining the household's available resources.

NOTE: If a SNAP household includes an individual who would be disqualified for failure to obtain or provide an SSN or who is an ineligible non-citizen, and who is also an ineligible student (as described in SNAP SB Section 5), the resource rules described in paragraph1(b) above take precedence.

The ineligible individual's income is pro-rated as described in SNAP SB Section 13; deductions for earned income, shelter costs and dependent care expenses are pro-rated (SNAPSB section 11); and the individual's resources are counted in their entirety.

References:

387.9 Investigation and Eligibility

387.16 Special Provisions for Household Circumstances

GIS 14 TA/DC038 Changes to SNAP Resource Limit92 ADM-03 SNAPs: Failure to Comply with Employment and Training Requirements (Non-Head of Household)

07 ADM-09 Categorical Eligibility for SNAPs

09 ADM-06 Expansion of Categorical Eligibility for SNAPs for Households with Out-of pocket Dependent Care Expenses

16 ADM-06 Expansion of Categorical Eligibility for Supplemental Nutrition Assistance Program (SNAP) Households with Earned Income

C. Excluded Resources

In determining the resources of a household, only the following shall be excluded:

1. The home and surrounding property which is not separated from the home by intervening property owned by others.

   a. Only one home is excluded. To be considered a home for purposes of this provision the dwelling should have been intended for human habitation and could appropriately be rented as a home for one or more people. If there is a free-standing building close to the home such as a garage and some of the household members live in it due to limited space in the home, it would appear appropriate to exclude such a building as part of the one home exclusion. Other homes on the property must be counted as a resource unless they can be excluded under another provision. Buildings, other than homes, on the contiguous property are excluded even if they could be rented.

   b. Public rights of way, such as roads which run through the surrounding property and separate it from the home, will not affect the exemption of the property.

   c. The home and surrounding property shall remain exempt when temporarily unoccupied for reasons of employment, training for future employment, illness, or uninhabitability caused by casualty or natural disaster, if the household intends to return.

2. Households that currently do not own a home, but own or are purchasing a lot on which they intend to build or are building a permanent home, shall receive an exclusion for the value of the lot and, if it is partially completed, for the home.

3. One burial plot per household member.

4. The value of one bona fide funeral agreement per household member, provided that the agreement does not exceed $1,500 in equity value, in which event the value above $1,500 is counted.

5. Household goods and personal effects.

   NOTE: A household good or personal effect that is determined to be an item purchased for investment (with the expectation that its value would appreciate) is not an excluded resource. However, it will be difficult to determine in most cases whether an item considered a household good or personal effect was purchased as an investment. Therefore, except in certain limited cases, most household goods or personal effects will be excludable as a resource.

6. The cash value of life insurance policies.

7. The cash value of pension plans or funds:

   - 457 plans (plans for State and local governments and other tax- exempt organizations)

- 401(k) plans (generally a cash or deferred arrangement and generally limited to for-profit organizations)
- Federal Employee Thrift Savings plan
- Section 403(b) plans (tax- sheltered annuities provided for employees of tax- exempt organizations and state and local educational organizations)
- Section 01(c) (18) plans (retirement plans for union members consisting of employee contributions to certain trusts that must have been established before June 1959) and
- Keogh plans that involve a contractual obligation with someone who is not a household member
- Individual Retirement Account (IRA), Roth IRA, and myRA plans

8. Any vehicle on Indian Reservations that do not require vehicles driven by tribal members to be licensed.

9. Property which annually produces income consistent with its fair market value, even if only used on a seasonal basis, e.g. a summer camp in a resort area or a house with one or more rental apartments.

10. Property, such as farm land and rental homes, or work related equipment, such as the tools of a tradesman or the machinery of a farmer, which is essential to the employment or self -employment of a household member.

    Rental homes which are used by households for vacation purposes at some time during the year must be counted as resources unless excluded under item 9 above.

    a. Non-Contiguous property which was essential to farming and licensed vehicles which were used primarily for farming shall continue to be excluded as resources for one year following the termination of farm self-employment. After one year, the farmer's non-contiguous property and licensed vehicles shall remain excluded if a good faith effort is being made to sell such property or equipment at a reasonable price. The local district must determine when a farmer ceases to be self-employed on a case-by-case basis.

    NOTE: Farm land which is contiguous with the property on which a household's home is located is excluded as a resource indefinitely.

    b. The property and work related equipment of a self-employed individual (other than farmers) who has recently terminated his or her self-employment business and where a good faith effort is being made to sell such property or equipment at a reasonable price shall also be excluded.

11. Real or personal property that is directly related to the maintenance or use of an income producing vehicle or a vehicle necessary to transport a physically disabled household member. However, only the portion of real property related to the maintenance or use of such vehicles shall be excludable. **For example, a household owns a 100-acre field which is separated from the home by intervening property owned by others. A**

quarter acre of the field is used to park the household's income-producing truck. Only the quarter acre would be allowed as resource exclusion.

12. Installment contracts for the sale of land or buildings if the contract or agreement is producing income consistent with its fair market value. The exclusion shall also apply to the value of the property sold under the installment contract, or held as security in exchange for a purchase price consistent with the fair market value of that property.

13. Any governmental payments which are designated for the restoration of a home damaged in a disaster, if the household is subject to a legal sanction if the funds are not used as intended. **For example, payments made by the Department of Housing and Urban Development through the individual and family grant program or disaster loans or grants made by the Small Business Administration.**

Also excluded are Federal Emergency Management Assistance (FEMA) subsidies to households to pay for temporary housing after a disaster. However, monies that exceed the cost of housing that are not returned to FEMA would be income.

NOTE: Payments made to homeless people to pay for rent, mortgage, food, and utility assistance when there is no major disaster or emergency are not excluded under this provision.

14. Inaccessible Resources - A resource shall be excluded from the appropriate $3,000/$4,500 limit if a household is unlikely to be able to sell that resource for any significant return because the household's interest is relatively slight or because the cost of selling the household's interest would be relatively great. Resources so identified would be termed "inaccessible". This inaccessibility provision does not apply to motor vehicles. Local districts shall not mandate verification that a resource is inaccessible, unless the information provided by the household is questionable. A complete description of why a resource is considered inaccessible should be in the case record.

    a. Resources having a cash value which is not accessible to the household, such as but not limited to, irrevocable trust funds, security deposits on rental property or utilities, property in probate, and real property which the household is making a good faith effort to sell at a reasonable price and which has not been sold.

NOTE: The local district may verify that the property is for sale and that the household has not declined a reasonable offer. Verification may be obtained through a collateral contact or documentation, such as an advertisement for public sale in a newspaper of general circulation or a listing with a real estate broker.

    b. A non-liquid asset(s) (e.g. land, buildings, timber, farm equipment) against which a lien has been placed as a result of a household member taking out a business loan, providing the household member is prohibited by the security or lien agreement with the lien holder (creditor) from selling the asset(s).

    c. Any funds in a trust or transferred to a trust, and the income produced by that trust to the extent it is not available to the household, shall be considered inaccessible to the household if:

(1) The trust arrangement is not likely to cease during the certification period, and no household member has the power to revoke the trust arrangement or change the name of the beneficiary during the certification period.

(2) The trustee administering the funds is either:

(a) A court, or an institution, corporation, or organization which is not under the direction or ownership of any household member, or

(b) An individual appointed by the court who has court imposed limitations placed on his/her use of the funds which meet the requirements of this paragraph

(3) Trust investments made on behalf of the trust do not directly involve or assist any business or corporation under the control, direction or influence of a household member; and

(4) The funds held in irrevocable trust are either:

(a) Established from the household's own funds, if the trustee uses the funds solely to make investments on behalf of the trust or to pay the educational or medical expenses of a person named by the household creating the trust; or

(b) Established from non-household funds by a non-household member.

NOTE: This includes Supplemental Needs and Pooled Trusts (SNT & PTs).

d. If a person owns stock in a corporation, the stock is counted as a resource unless it is essential to his/her employment. If a person is employed by and owns stock in a corporation, the eligibility worker must determine if the stock is essential to the person's employment. To the extent that an employee of a corporation must hold stock in the corporation as a condition of employment, the stock is essential to the employment of that person and not counted as a resource. However, if ownership of the stock is not essential, the stock is counted as a resource. **For example, if a farmer has incorporated his farm, he is the sole worker and all of the corporation's assets are related to the farming operation, the farmer's stock in the corporation is essential to his employment and excluded from being counted as a resource.**

Sometimes the value of shares in a corporation with only one shareholder or just a few shareholders is not readily available. In such instances, the eligibility worker may subtract corporate liabilities from assets and prorate the difference among the various shareholders based on the percentage of shares hold.

EXAMPLE: **Value of Stock**

$22,000 Corporate assets

- $10.000 Corporate liabilities

= $12,000 Value of corporation

x .40 Household has 40% of the stock

= $4,800 Household's resources

e. Resources that are discovered by the local district which the household was unaware of shall be considered inaccessible to the household as long as they were truly unknown to the household. Once the household discovers resources that are legally available to them, the resources must be counted in determining the household's eligibility for SNAP. In other words, at the point the household is made aware of the resources, the resources shall be considered available to them from that time forward. The resources would then be counted in determining the household's eligibility for SNAP. This is the case regardless of the manner in which the household is made aware of the existence of the resource.

15. Resources which have been counted as income such as those of students or self-employed persons, which have been prorated as income.

16. Indian lands held jointly with the Tribe, or land that can be sold only with the approval of the Department of the Interior's Bureau of Indian Affairs.

17. Resources which are excluded for SNAP purposes by express provision of Federal statute:

    a. Payments received under the Alaska Native Claims Settlement Act (P.L. 92-203, Section 21(a)) or the Sac and Fox Indian Claims Agreement (P.L. 94-189). This includes all compensation such as cash, stock, partnership interest, land, interest in land, and other benefits received under this Act.

    b. Payments received by certain Indian tribal members under P.L. 94-114, section 6, regarding the sub marginal land held in trust by the United States.

    c. Benefits received under P.L. 89-642, Section 11(b) of the Child Nutrition Act of 1966. This includes the Women, Infants and Children (WIC) program and school meals. Also excluded are coupons, issued under WIC Demonstration projects (P.L. 100-435, Section 401), which may be exchanged for food at farmers' markets.

    d. Reimbursements from the Uniform Relocation Assistance and Real Property Acquisition Policy Act of 1970 (P.L. 91-646, section 216).

    e. Payments received from the disposition of funds to the Grand River Band of Ottawa Indians (P.L. 94-540).

    f. Payments received by the Confederated Tribes and Bands of the Yakima Indian Nation and the Apache Tribe of the Mescalero Reservation from the Indian Claims Commission as designed under P.L. 95-433, section 2.

    g. Payments to the Passamaquoddy Tribe, the Penobscot Nation and the Houlton Band of Maliseet or any of their members received pursuant to the Maine Indian Claims Settlement Act of 1980 (P.L . 96- 420, section 5).

    h. The first $2,000 of funds distributed by the Indian Claims Commission pursuant to P.L. 93-134 as amended by P.L. 97- 458. P.L. 98- 64 extended the exclusion to cover per capita payments from funds which are held in trust by the Secretary of Interior (trust fund distributions).

i. Individuals of Japanese Ancestry - Payments to individuals of Japanese ancestry and permanent resident Japanese aliens in restitution for war time relocation and internment (P.L. 100-383, Section 105).

j. Aleuts - Payments to natives of the Aleutian or Pribil Islands in restitution for war time relocation and internment (P.L. 100- 383, Section 206).

k. Navajo and Hopi tribes - Payments of relocation assistance to members of the Navajo and Hopi tribes under P.L. 93- 531, section 22.

l. Payments to the Turtle Mountain Band of Chippewa, Arizona under P.L. 97-403.

m. Payments to the Blackfeet Grosventre, and Assiniboine tribes (Montana) and the Papago (Arizona) under P.L. 97-408.

n. Per capita and interest payments made to the Assiniboine Tribe of the Fort Belknap Indian Community, Montana and the Assiniboine Tribe of the Fort Peck Indian Reservation (Montana) under P.L. 98-124, Section 5.

o. Per capita and interest payments made to the Red Lake Band of Chippewa under P.L. 98-123, Section 3, 10/13/83.

p. Payments to the Saginaw Chippewa Indian Tribe of Michigan under P.L. 99-346, Section 6(b)(2).

q. Per capita payments to the Chippewa of Mississippi under P.L. 99-377, Section 4(b), 8/8/86.

r. The Radiation Exposure Compensation Act, dated October 15, 1990 under P.L. 101-426, Section 6(h) (2).

s. The first $2,000 of payments made under P.L. 98-500, Section 8, 10/17/84, for the Old Age Assistance Claims Settlement Act, to heirs of deceased Indians.

t. German reparation payments: All reparation payments received from the Federal Republic of Germany are excluded as long as they remain identifiable as such. SNAP program rules only exclude reparation payments received by individuals who were victims of Nazi persecution.

u. Funds distributed per capita or held in trust for members of the Chippewa of Lake Superior under P.L. 99-146, Section 6(b), 11/11/85.

v. P.L. 99-264, White Earth Reservation Land Settlement Act of 1985, 3/24/86, Section 16. This Act involves members of the White Earth Band of Chippewa Indians in Minnesota.

w. Compensation paid by an eligible crime victim compensation program.

x. Individual Development Accounts (IDAs) - An individual development account to enable a SNAP household member to save for post-secondary education, first home purchase or business capitalization is excluded as a SNAP resource. If a withdrawal is made from an IDA for purposes other than post-secondary education, home purchase or business capitalization, however, any remaining balance would be considered an available resource.

18. HUD retroactive tax and utility cost subsidy payments issued pursuant to settlement of Underwood v. Harris (Civil No. 76-0469., D.D.C.) against HUD, for the month in which payment was received and for the following month. Plus HUD community development block grants are excluded as SNAP resources.

19. Energy assistance payments or allowances excluded as income as specified in SNAP SB Section 12.

20. Resources of non-household individuals as described in SNAP SB Section 5.

21. Resources of ineligible students.

22. Social Security (RSDI) or SSI benefits which are directly deposited in recipients' bank accounts must be counted as income and not resources for the month of deposit. Only any amount remaining in deposit beyond the month of deposit may be counted as a resource.

23. Agent Orange payments:

    a. The Agent Orange Settlement Fund; and

    b. Any other fund established pursuant to the settlement In regards to Agent Orange Product Liability litigation.

    NOTE: Benefits must be restored to any household which reports and documents that it was denied or under issued SNAP benefits due to the receipt of Agent Orange payments back to January 1, 1989.

    NOTE: P.L. 102-4, Agent Orange Act of 1991, 2/6/91, authorized veterans' benefits to some veterans with service connected disabilities resulting from exposure to Agent Orange. These VA payments are not excluded by law.

24. Earned Income Tax Credit (EITC) refunds, as long as they remain identifiable. Formerly, these payments were excluded as resources for either two or twelve months, depending on whether the individual was an applicant or recipient and whether the EITC was federal or State.

25. The resources of a household member who receives FA, SNA, or SSI. This is true even if not everyone in the household is receiving FA, federally funded SNA, or SSI. This includes PASS accounts of SSI recipients.

26. Seneca Nation Settlement Act - Under Public Law 101-503 and the memorandum of understanding between the Seneca Nation and the State, Settlement Act monies are exempt from consideration in determining eligibility or benefits for any State or federally funded social services program. These monies must not be counted as income or resources now or at any later point in time.

27. Service provided to a public housing resident under P.L. 101-625, section 22(i) of the Cranston – Gonzales National Affordable Housing Act. This exclusion applies to services such as child care, employment training and counseling, literacy training, computer skills training, assistance in the attainment of certificates of high school equivalency and other services. It does not apply to wages or stipends.

28. Payments made by the VA to Vietnam Veteran's children with Spina Bifida (PL104-204).

29. Educational Grants, loans or scholarships, as long as they remain identifiable as such (not commingled with other savings).

30. Children's savings accounts of under $500, if accumulated from gifts from non-legally responsible relatives or from the child's own wages. For purposes of this exclusion, a child is a household member under the age of 21.

31. Austrian General Social Insurance payments made under paragraph 500 to 506 of the Austrian General Social Insurance Act are excluded as long as they remain identifiable as such.

32. Funds and agreements for burial services and headstones, not to exceed $1,500 per SNAP household member must be excluded.

33. Nutritional Assistance Program (NAP) Benefits- As of October 17, 2003 USDA Nutritional Assistance Program (NAP) Benefits from Puerto Rico should not be counted as income for SNAP, even when issued in the same month a household submits a SNAP application in New York State. In the interest of treating all Territories in an equitable manner, effective December 31, 2003 this policy was extended to also include NAP benefits issued in American Samoa or the Commonwealth of the Northern Marinas. When determining eligibility and benefits, local districts must not count NAP benefits from these territories, even when issued in the same month a household submits a new application.

NOTE: Policy on licensed vehicles is described in the next area of this Section.

NOTE: Excluded funds kept in a separate account and not mixed in an account with non-excluded funds will retain the resource exclusion for an unlimited period of time. Excluded monies mixed in an account with non-excluded funds will retain their exemption for six months from the date they are mixed. After six months from the date of mixing, all funds in the mixed account shall be counted as a resource.

Resources of students and self-employed households which have been excluded and are commingled in an account with non-excluded funds will retain their excluded status only for the period of time over which they have been prorated as income.

References: b

387.9(b) Investigation and Eligibility02 ADM-01 Food Stamp Treatment of Individual Development Accounts

95 ADM-15 Food Stamp Program Implications of the Mickey Leland Childhood Hunger Relief Act (P.L. 103-66)

92 ADM-06 Treatment of Earned Income Tax Credit (EITC)

91 ADM-06 PA and FS Disregards: Treatment of Agent Orange Payments;

01 INF-08 Temporary Assistance (TA) and Food Stamps (FS) Policy: The Treatment of Supplemental Needs Trusts (SNTs) and Reverse Annuity Mortgage (RAM) Loans

95 INF-41 Food Stamps: Clarification of Treatment of Earned Income Tax Credit (EITC) as a Resource and Introduction of EITC Desk Chart

90 INF-06 Food Stamp Certification of Self-Employed Farmers

D. Licensed Vehicles

1. Excluded Vehicle(s) Under SNAP Employment/Training Provision

   New York State's SNAP vehicle allowance rules completely exclude from the SNAP resource test one licensed vehicle per adult household member and one licensed vehicle for each child under 18 who drives to school, work, training or to look for work. The concept of one single general-purpose vehicle as well as the employment related restriction for additional vehicles has been discontinued.

   a. Equity Value

      Additional licensed vehicles not subject to complete exclusion are to be evaluated based on their full equity value.

      Equity value is defined as a vehicle's fair market value less any encumbrances. In determining a vehicle's fair market value local districts are to use the lowest reasonable price possible and are not to increase the basic value of a vehicle due to low mileage, optional equipment or special apparatus for handicapped.

      A number of sources may be used including Internet web sites dealing with vehicle appraisals, up-to-date printed "blue books," or dealer appraisals. Local districts are not required to do an exhaustive search in order to determine fair market value but should use the <u>lowest</u> value in the source that it chooses to consult.

   b. Recreational Vehicles

      In order to qualify for one of the above exclusions, licensed vehicles must be used primarily for household transportation. This does not include recreational vehicles such as boats, snow mobiles or campers whose main purpose is leisure. Recreational vehicles are subject to having their full equity value applied to the household's applicable liquid resource limit.

   c. Local District Action

      Local districts must now completely exclude from the SNAP resources test one licensed vehicle per adult household member and also exclude one licensed vehicle for each child under 18 who drives to school, work, and training or to look for work. Additional licensed vehicles must be evaluated under the existing federal SNAP vehicle exclusion criteria.

      Additional licensed vehicles that are not excluded under the employment/training provision must be evaluated for exclusion under the existing SNAP vehicle rules such as being used to produce earned income, to transport a physically disabled household member, etc. This includes evaluating licensed vehicles under the inaccessible resource provision and excluding them if the return on the vehicle when sold is likely to be $1,500 or less.

   d. Vehicles Not Excluded

      Additional licensed vehicles that do not meet the criteria for exclusion under the employment/training provision or under the existing SNAP vehicle rules must have their full equity value applied to the household's applicable liquid resource limit.

Unlicensed vehicles are also to be evaluated for their full equity value

2. Excluded Vehicles Under Existing SNAP Rules

The entire value of any licensed vehicle must be excluded if the vehicle is:

a. Used primarily (over 50 per cent of the time) for income producing purposes.

NOTE: Licensed vehicles which were used primarily for farming shall continue to be excluded as resources for one year following the termination of farm self-employment. After one year the farmer's licensed vehicles shall remain excluded if a good faith effort is being made to sell such equipment at a reasonable price.

b. Annually producing income consistent with its fair market value, even if used only on a seasonal basis.

c. Necessary for long distance travel, other than daily commuting if it is essential to the employment of a household member or excluded member whose resources are being considered available to the household.

d. Used as the household's home and, therefore excluded as such.

e. Necessary to transport a physically disabled household member or excluded individuals whose resources are being considered available to the household regardless of the purpose of such transportation: (387.9(b))

(1) One vehicle per physically disabled household member shall be considered necessary for transportation of a disabled person if the vehicle is:

(a) Specially equipped for the purpose, or

(b) Is a special type of vehicle, whether or not specially equipped for the purpose. **For example, a van which by its capacity alone enables transportation of a person requiring a wheelchair meets this provision.**

The vehicle need not be used primarily by or for the disabled person.

(2) A household containing a disabled member who can be transported in a normal vehicle is eligible for a vehicle exclusion under this provision. The determining factor for vehicle exclusion under this provision is the fact that a physically disabled household member requires a vehicle for transportation.

f. Leased by a household member.

g. Registered in the name of a household member but the title to the vehicle is held by a person who is not a member of the household. If the person in whose name the vehicle is registered does not have control over disposing of or keeping the resource, then the person cannot be considered the owner and the vehicle cannot be counted as a resource.

NOTE: If the household member in whose name the vehicle is registered is the actual owner of the vehicle, even though the title is held by someone else, the value of the vehicle must be counted as a resource in accordance with SNAP regulations. Thus, if the title to a vehicle is held by a bank because there is an outstanding balance on the loan used to purchase the vehicle, then the household member has the control to dispose of or keep the vehicle, and the vehicle is counted as a resource.

NOTE: For real or personal property that is directly related to the maintenance or use of an income producing vehicle or a vehicle necessary to transport a physically disabled household member, see Licensed Vehicles earlier in this section.

h. A vehicle whose title is held by a non-household member so long as no member of the household is permitted to access the cash value of the vehicle.

i. Any vehicle upon which a household depends to carry fuel for heating or water for home use when such transported fuel or water is the primary source of fuel or water for the household.

j. If the equity value is less than half of the household's resource limit.

k. Individuals receiving FA, SNA-FP or SSI are categorically eligible for SNAP. The resources of a categorically eligible individual are exempt when determining SNAP eligibility. Thus, a household containing a FA or SNA-FP individual with a TA approved vehicle with a fair market value up to $9,300, or a higher amount set by the district, is not denied SNAP due to excess resources, if the vehicle belongs to a categorically eligible person. The resources of FA, SNA- FP or SSI categorically eligible individuals in the household are exempt even if the entire SNAP household is not categorically eligible.

l. Any vehicle whose sale is likely to produce a return of $1500 or less because of household's interest in the vehicle is relatively slight or the cost of selling it is relatively great (inaccessible resource provision).

NOTE: The value of an unlicensed vehicle is its equity value. More information on unlicensed vehicles on Indian reservations is available earlier in this section

References:

387.9 Investigation and Eligibility

02-ADM-06 Change in the Food Stamp Vehicle Resource Policy

E. Transfer Of Resources

Households which have transferred resources knowingly for the purpose of qualifying or attempting to qualify for SNAP benefits shall be disqualified from participation in the program for up to 1 year from the date of the discovery of the transfer. This disqualification period shall be applied if the resources are transferred knowingly in the 3-month period prior to application or if they are transferred knowingly after the household is determined eligible for benefits.

1. Transfers Not Affecting Eligibility

   The following transfers will not affect program eligibility:

   a. Resources which would not otherwise affect eligibility.

   b. Resources sold or traded at, or near, fair market value.

   c. Resources which are transferred between members of the same household (including excluded individuals whose resources are considered available to the household); and

   d. Resources which are transferred for reasons other than to qualify or attempt to qualify for SNAP benefits. **Example: a parent placing funds into an educational trust fund described in this section.**

2. Determining Length of Disqualification

   The length of the disqualification period must be based on the amount by which non-exempt transferred resources, when added to other countable resources, exceed the allowable resource limits. The following chart shall be used for the determination.

Amount in Excess of the Resource Limit	Period of Disqualification
$249	1 month
$250 - $999	3 months
$1,000 - $2,999	6 months
$3,000 - $4,999	9 months
$5,000+	12 months

NOTE: Proving "intent" in this case is very difficult. If a case is denied on this basis, the local district needs significant documentation in order to have the district's decision upheld at a Fair Hearing should one ensue.

3. Interpretation

   Households which have transferred resources shall b disqualified from participation in SNAP if:

   a. The transfer occurred in the three-month period prior to application and was knowingly for the purpose of qualifying or attempting to qualify for SNAP benefits, or

   b. The transfer occurred after certification and was knowingly for the purpose of continuing to qualify for SNAP benefits. The disqualification period must be applied if the resources are transferred knowingly to prevent the household from exceeding the maximum resource limit.

References:

387.9 Investigation and Eligibility

F. Deeming Of A Sponsor's Resources

Households containing sponsored non-citizens as defined in SNA PSB Section 13 shall also include that portion of the non-citizen's sponsor and sponsor's spouse's resources that have been deemed to be those of the alien. The amount of resources to be deemed will be the total countable resources of the sponsor and the sponsor's spouse minus $3,000.

The deeming requirements apply only to an eligible Lawful Permanent Resident (LPR) whose sponsor has signed a legally binding affidavit of support on or after December 19, 1997. The only qualified non-citizens with legally enforceable affidavits are family-sponsored LPRs, including immediate relatives, and a few employment-based LPRs who came to the United States to work for relatives or in companies partially owned (more than five percent) by relatives AND who have filed for a visa application or applied for an adjustment to LPR status on or after December 19, 1997.

NOTE: If a sponsored non-citizen can demonstrate to the local district's satisfaction that his/her sponsor sponsors other non-citizens, the resources determined deem able shall be divided by the number of such non-citizens that apply for or are participating in the program.

References:

387.9(b) Investigation and Eligibility

SECTION 18: SNAP Record Retention/Documentation

This Record Retention and Disposition Schedule was developed to meet both State and Federal retention requirements for SNAP documentation.

A. Purpose

The purpose of this Retention Schedule is to:

1. Ensure that County government records are retained as long as needed for the County's administrative, legal, fiscal, and other use.
2. Ensure that records are retained as long as required by County, State, and Federal
3. agencies for fiscal, oversight, and other purposes;
4. Provide that archival records, those with enduring value for historical and other research purposes, are retained permanently; and
5. Encourage and facilitate the systematic disposal of records no longer needed for any use.

B. Documentation of Records

1. Types of Documentation

Districts must retain in an orderly fashion for audit and review purposes all general program records for 6 years from creation and certification records for no less than 6 years from the end of certification, or if under investigation, until the end of the investigation, whichever is longer. The records retained must be able to justify all actions taken on a case or application. This information must include but is not limited to:

a. Applications for certification or recertification;
b. Worksheets used in the computation of income for eligibility;
c. Documentation of eligibility. Such documentation shall include the method of verification used in determining eligibility;
d. Copies of forms sent to the issuance unit to authorize or change participation and/or which serve as
e. the basis of issuance;
f. Copies of notices sent to the household and any responses to those notices; and
g. Copies of documents reflecting actions related to the fair hearing process;

In addition, for SNAP overpayment claims, maintain all documentation that supports decisions about the claim amount, type, period and repayment method. At a minimum, this includes but is not limited to:

a. Application or recertification forms that apply to the time period of the overpayment.

b. Verification of the discrepant information, such as pay stubs or employer letters.
c. Copies of manual notices.
d. Records relating to the amount of benefits that were received.
e. The Calculation of Total Overpayment Amount worksheet (LDSS-4778) with the month by month overpayment summary showing the Date of Discovery, Date of Establishment, amount issued to the household, the amount to which the household was actually entitled, the overpayment amount for each month and the total amount of the overpayment.
f. Budget calculations used to determine the benefit amount that the client should have received - this can be represented as copies of scratchpad budgets representing the entire period of overpayment.

Documentation may be paper originals, copies of originals, electronically imaged documents or an electronic record such as information retained in WMS and CAMS. It may be kept in a separate claims file or in the general case record. If kept in the general case record, the information must be clearly identified that it supports a claim and what claim it supports.

Information must be readily retrievable for local district, Federal, State, client, or Fair Hearing Review.

Failure to adequately document claims establishment information can result in the claim being overturned in a Fair Hearing, TOP review or other challenge.

2. Record Retention Requirements

Program records shall be retained in an orderly fashion for audit and review purposes for no less than 6 years from the month of origin of each record. In addition:

a. Fiscal records and accountable documents shall be retained for 6 years from the date of fiscal or administrative closure. Fiscal closure means that obligations for or against the Federal Government have been liquidated. Administrative closure means that the agency has determined and documented that no further action to liquidate the obligation is appropriate. Fiscal records and accountable documents include, but are not limited to, claims and documentation of lost benefits.

b. Case records relating to Intentional Program Violation (IPV) disqualifications and related notices to the household shall be retained indefinitely until the agency obtains reliable information that the record subject has died or until FNS advises via the disqualified recipient database system edit report that all records associated with a particular individual, including the disqualified recipient database record, may be permanently removed from the database because of the individual's 80th birthday.

c. Disqualification records submitted to the disqualified recipient database must be purged by the agency that submitted them when the supporting documents are no longer accurate, relevant, or complete. The agency

shall follow a prescribed records management program to meet this requirement. Information about this program shall be available for FNS review.

d. Keep closed-case documentation according to the USDA time limits outlined below:

1. IPV Disqualification Records: Indefinite. These records must be retained for the life of the individual or until USDA notifies the State that the record is no longer needed.

2. Work Requirement Violation Records: Indefinite. Permanent work rule disqualifications
3. must be retained for the life of the individual or until he/she reaches age 60, whichever occurs first.

4. Claims Records: 3 years after the claim is either satisfied or closed administratively.

5. Issuance Records: 6 years from the date the federal debt is paid for cases with claims.

6. DSS-3214 “Status of Claims Against Households”: 6 years.

7. CAMS Reports: 6 years.

e. In addition, follow these State requirements:

1. General Program Records: 6 years from the date of closing

2. Certification Records: 6 years from the end of the date of certification or, if under investigation, until the investigation is resolved or the penalty imposed.

3. DSS-3214 “Status of Claims Against Households”: 6 years

4. CAMS Reports: 6 years

References:

387.2(k)

387.2(l)

272.1(f)

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SECTION 19: NYSCAP

A. Introduction

The New York State Combined Application Project (NYSCAP) is a federally approved demonstration project administered by the New York State Office of Temporary and Disability Assistance (OTDA) in partnership with the Social Security Administration (SSA). The project is an initiative to implement an automatic case creation process, and to improve participation among certain single Supplemental Security Income (SSI) recipients classified as living alone in the community.

B. Background

New York State was granted a waiver from the United States Department of Agriculture (USDA) Food and Nutrition Services (FNS) to establish a "Combined Application Process" (CAP) demonstration project with the SSA using SSI case data provided to OTDA via the State Data Exchange (SDX) to automatically enroll certain SSI households in the Supplemental Nutrition Assistance Program (SNAP). NYSCAP automatically enrolls individuals determined by SSA to be separate independent households designated by a Federal Living Arrangement Code of 'A' on the SDX and determined by OTDA as having an SSI State Supplemental Code of 'A'.

NYSCAP will automatically open cases at an amount no less than the minimum monthly SNAP benefit amount for a household of one, and upon opening, provide the household with the opportunity to provide information (e.g., shelter costs, utility costs, medical expenses, etc.) to qualify for higher benefits. NYSCAP uses standard SNAP budgeting methodology to determine participating households' benefit amounts instead of using standardized benefit amounts. This is further explained in the **"**NYSCAP Budgeting**"** section to follow.

C. Eligibility

Individuals must meet the following criteria to be eligible for NYSCAP:

(1) Be a single individual in active receipt of SSI; **and**

(2) Have a SSA designated Federal Living Arrangement status of 'A'; **and**

(3) Have a State Supplemental code of 'A'.

SSI Code A/A Individuals:

Only single SSI recipients whom SSA has determined to be a separate independent household, even if physically living with others, and designated as having a Federal Living Arrangement Code of 'A' and a State Supplemental Code of 'A' may participate in the project. Together, the definitions for these codes closely accord with the SNAP definition of a separate household. Based on this 'A/A' living arrangement designation and the receipt of SSI income, we can conclude that these households are categorically eligible to receive SNAP as a separate household.

NOTE: NYSCAP households **may** have earned and/or unearned income in addition to SSI. However, the unearned income may not be from Temporary or Cash Assistance as the demonstration project is for non-Temporary Assistance SNAP cases only.

The following households are ineligible to participate in NYSCAP:

(1) Individuals in receipt of SSI who are not designated with a Federal Living Arrangement status of 'A' **and** a State Supplemental Code of 'B' (e.g., SSI Code A/B Individuals).

(2) SSI Individuals residing in Group Living Arrangements.

(3) Individuals who are currently or permanently disqualified from participation in SNAP.

Participation of Individuals Age 18-21 in NYSCAP:

(1) Single SSI recipients between the ages of 18-21 having a Federal Living Arrangement code of 'A' and a State Supplemental code of 'A' may participate in NYSCAP as a separate SNAP household, even if they reside with their parent(s), as long as the parent(s) are not also applying for or participating in SNAP.

(2) If the parent(s) and the 18–21-year-old SSI recipient are both applying for or participating in SNAP, then the parent(s) and the 18–21-year-old SSI recipient must have their eligibility considered and participate as a single, non-NYSCAP household.

(3) Likewise, a parent in receipt of SSI who lives with their child(ren) between the ages of 18-21 may participate in NYSCAP as a separate SNAP household as long as the child(ren) are not also applying for or participating in SNAP. If the SSI recipient **and** their child(ren) are applying for or participating in SNAP, then they must have their eligibility considered and participate as a single, non-NYSCAP household.

D. Enrollment Process

(1) Single individuals in active receipt (SSI Status Code = C01) of SSI and coded on the SDX with a Federal Living Arrangement code of 'A' and having a State Supplemental Code of 'A', who do not already have a SNAP case, will have a NYSCAP case automatically created in WMS. Individuals that already have an active SNAP case will be converted and enrolled in NYSCAP.

(2) Cases enrolled in NYSCAP through the auto-enrollment process will receive a 36-month certification period, will be opened using Shelter Type '98', and determined eligible for no less than the minimum SNAP benefit for households of one or two persons.

(3) An initial certification interview is not required for individuals automatically enrolled in NYSCAP.

(4) Households automatically enrolled in NYSCAP will receive an Information Collection Sheet giving them the opportunity to provide and, if necessary, verify information that may qualify them for a higher benefit. When such information is provided, NYSCAP cases must be re-budgeted by the district using standard SNAP budgeting methodology.

(5) A NYSCAP case is not considered open, and the household is not considered a recipient, until the household has accessed a portion of the SNAP benefit within 90 days following automatic NYSCAP enrollment.

(6) The NYSCAP case will automatically close if the household has not accessed any SNAP benefit within 90 days following automatic NYSCAP enrollment. Once the NYSCAP case has been closed due to failure to redeem the benefits, the individual would need to submit a SNAP application in order to participate in SNAP in the future.

E. NYSCAP Case Details

NYSCAP cases:

a. Do not have to submit an application to be enrolled in SNAP.

b. Will be opened using Shelter Type Code '98' and will receive a nominal SNAP benefit amount.

c. Will receive a NYSCAP Statewide SNAP Case Information Collection Sheet (LDSS-4841) with their opening letter. There is no requirement to return the LDSS-4841, and failure to return it to the district will not result in negative action. It is provided to make it easier for newly enrolled households to qualify for higher benefits.

d. Must redeem SNAP benefits within 90 days of the auto-opening. Redemption of the benefits is considered an electronic application signature and assent by the household to participate in SNAP. NYSCAP cases in which benefits are not accessed within 90 days will be automatically closed in WMS and the benefits expunged. There is no entitlement to expunged benefits and, generally, expunged benefits may not be restored.

e. Do not have any reporting requirements outside of the required interim contact. The interim contact for NYSCAP is at 18 months into the certification period. Households must return the NYSCAP SNAP Case Interim Report (LDSS-4836, LDSS-4836-NYC) to continue receiving NYSCAP benefits. Households that fail to return the Interim Report but subsequently return it within 30 days of case closure are eligible for the normal case reactivation process.

f. Must participate in NYSCAP in order to receive SNAP. There is no option to opt out.

g. Will receive a 36-month certification period.

h. Will be opened with the household's actual SSI and other income budgeted, but with no shelter, medical, or other deductions other than the standard deduction. Upon case opening, the household will receive the NYSCAP Statewide SNAP Case Information Collection Sheet (LDSS-4841) with their opening letter, providing an opportunity to notify the district of their household circumstances. Once the district receives the information and any required verification, the budget must be updated using standard SNAP budgeting.

i. Will automatically receive a reminder notice six months after opening if the SNAP budget has not been updated and the Shelter Type '98' is still present. The NYSCAP 6 Month Reminder Letter (ROS) and NYSCAP 6 Month Reminder Letter (NYC) laser letters will be produced automatically. This will provide the household with another opportunity to provide the district with the complete household circumstances to maximize the household's SNAP benefit. Households that do not respond to this notice will not be subject to negative action, however the household will remain in receipt of a nominal benefit.

F. NYSCAP Budgeting

(1) NYSCAP utilizes standard SNAP budgeting methodology to calculate benefit amounts.

(2) NYSCAP Budgeting:

a. The Aged/Disabled Indicator for NYSCAP will require a value of 'N' for NYSCAP Calculated Benefit.

b. New NYSCAP cases opened through the automatic enrollment process are opened with Shelter Type '98' as the household's actual shelter type, shelter costs, and utility expenses are all unknown.

c. When NYSCAP household circumstances are reported to the district, including in response to the NYSCAP SNAP Case Interim Report (LDSS-4836, LDSS-4836-NYC), NYSCAP Statewide SNAP Case Information Collection Sheet (LDSS-4841), or through the NYSCAP 6 Month Reminder Letter (ROS)/NYSCAP 6 Month Reminder Letter (NYC), the district must update the SNAP budget using standard SNAP budgeting rules, including adding actual shelter type, shelter costs, HC/SUA eligibility and out-of-pocket medical expenses, as applicable.

d. NYSCAP cases are subject to the same SNAP verification requirements as for all SNAP cases, except State policy requiring verification of shelter costs. Districts must accept attestation of shelter expenses for NYSCAP cases unless the information reported is questionable.

> **NOTE:** To be considered questionable, the information on the application must be inconsistent with statements made by the applicant, inconsistent with other information on the application or previous applications, or inconsistent with other information received by the social services district. The social services district shall determine if information is questionable based on the household's individual circumstances.

G. Reporting Requirements

(1) The only reporting requirement for NYSCAP households between certification points is to respond to the Interim Report.

(2) At approximately 18 months into the certification period, NYSCAP households will receive the updated NYSCAP SNAP Case Interim Report (LDSS-4836, LDSS-4836-NYC) which collects all the information about the household circumstances that is required to complete a budget using standard SNAP budgeting procedures.

(3) Households are required to respond to the Interim Report by the 10th day of the month following the month the Interim Report is received. Failure to do so will result in case closure.

(4) As with periodic reporting households under regular SNAP, if the NYSCAP household returns a completed Interim Report but does not provide enough information to complete a regular SNAP budget, the district must attempt to contact the household to clarify or obtain verification of the information. Blank reports, reports submitted without required verification, and unsigned reports will be treated as “No change” reports and processed for continued NYSCAP eligibility at the current benefit amount.

H. Recertification

(1) At the end of the certification period, NYSCAP cases will need to follow the regular recertification process currently in place for all SNAP households to continue receiving ongoing benefits, including conducting an eligibility interview.

(2) The notice of expiration sent to the household will continue to be delivered with a SNAP application/recertification form.

(3) Districts will use the same verification requirements with NYSCAP cases that would be used with any standard SNAP recertification. However, the exception to State policy allowing the attestation of shelter expenses is still applicable.

(4) Recertifying NYSCAP cases should be assigned the maximum 36-month certification period permitted.

I. NYSCAP Under Care Maintenance

Data is transmitted to OTDA daily from SSA via the SDX, and local districts receive the ASWISDX5 BICS report detailing changes reported through the SDX. Some of these changes will automatically update the NYSCAP case and some changes will require worker action to determine how the information affects the case.

The following changes will be automatically updated by the system:

- Changes in SSI income amount
- Report of client's death
- Moves out of state
- Moves from New York City to another county
- Moves from another county to New York City
- Moves within a district

The following changes will require worker review to determine the correct action:

- If the household is no longer coded A/A
- If the household is no longer receiving SSI
- If the household moves between non-New York City districts
- Any information reported through the standard RFI process
- Any other information reported to the district by a primary source

Other Reported Changes from a Primary Source and Information Verified Upon Receipt

(1) The local districts must also address information provided to them by a primary source (i.e., information considered verified upon receipt as defined in 12-INF-06).

(2) Under no circumstances can a local district initiate a change based upon a non-primary source regardless of the reliability of that source.

(3) NYSCAP participants are not required to report changes other than at their interim contact and/or recertification points. NYSCAP households are informed and encouraged at all scheduled contacts to report changes in shelter and/or utility expenses when those changes will make the client eligible for an increase in benefits.

(4) Districts are reminded that Exceptions and Request for Contact (RFC) changes, as reflected on the daily ASWISDX5 BICS report, must be reviewed daily and changes processed within normal processing time standards.

References

387.24 - New York State Combined Application Project (NYSCAP)

24-ADM-09 - The New York State Combined Application Project (NYSCAP)

21 TA/DC080 - Preliminary Guidance Regarding the New York State Combined Application Project (NYSCAP)

ABEL Transmittal - 21-6 - Attachment - NYSCAP ABEL Budgeting

ABEL Transmittal - 21-7 - Nightly MRB/A for NYSCAP Implementation

SECTION 20: Elderly Simplified Application Project

A. Introduction

Federal demonstration projects for SNAP are permitted to test program changes intended to increase the efficiency of the administration of the program and to improve access to and delivery of SNAP benefits to eligible households. Although New York State has the highest participation rate among adults who are age 60 or older or disabled in SNAP of any state, historically, the participation rate among this population has been lower than among the general population. To ease access to and improve the participation of older and disabled adults in SNAP, New York State applied to the United States Department of Agriculture and was approved to implement and operate an Elderly Simplified Application Project (ESAP) beginning in December 2021.

The ESAP is intended to simplify the SNAP application, recertification and verification processes for eligible households, where all adult members are aged and/or disabled, thereby facilitating access to and preventing interruptions in receipt of benefits for these households.

B. Eligibility, Certification Periods andReporting Requirements

Participation in ESAP is limited to households where:

- **all adult** members are seniors (age 60 or older) and/or disabled and are not otherwise eligible to participate in the New York State Combined Application Project or NYSCAP (formerly known as the New York State Nutrition Improvement Project or NYSNIP); and,

- no household members have any earned income.

For the purposes of ESAP, the following definitions apply:

- “Adult” is an individual age 18 or older.

- “Senior/aged/elderly” is an individual age 60 or older.

- “Disabled” is defined using the same criteria used to assign the aged/disabled (A/D) indicator of “X” for the household. To be considered disabled, an individual must be in receipt of Supplemental Security Income (SSI) or Social Security Disability (SSD) benefits or receiving other federal or state-administered disability or blindness benefits considered permanent under the Social Security Act or other standard, provided that the eligibility to receive these benefits is based upon disability criteria which are at least as stringent as those used under Title XVI of the Social Security Act.

Additionally, single individuals in receipt of SSI who are eligible for both ESAP and NYSCAP (formerly NYSNIP) are required to be enrolled in NYSCAP.

ESAP-eligible households may have certification periods of up to 36 months. Current systems edits limiting certification periods for the ESAP target population to a maximum of 24 months

have been modified to permit maximum certification periods of 36 months. ESAP households that are determined to no longer meet the criteria for the program (for example, an adult in the household begins receiving earned income) will be transitioned to regular SNAP, if eligible, but would retain the balance of their original ESAP certification period. In other words, certification periods for households leaving ESAP during the certification period may not be shortened. At the household's next recertification, it would receive a new certification period appropriate to its circumstances at that time.

Note: The one exception is if an ESAP household begins receiving TA income – if this occurs, the case must be closed and a new case opened for the household that will include the TA income, with a certification period as appropriate to the case circumstances at that time. The demonstration project is only open to Case Type 31 cases without TA income.

ESAP-eligible households have no mandatory change reporting requirements during the certification period other than those specifically defined in the "Other Reporting Requirements" section below. At the mid-point of the certification period, SNAP households participating in ESAP will be sent the LDSS-3151, SNAP Change Report Form, to facilitate and encourage the reporting of changes beneficial to the household.

C. Application and Recertification for ESAP

The LDSS – 5166 "Application/Recertification for Supplemental Nutrition Assistance (SNAP) Benefits" form was developed specifically for the ESAP but, as noted in 20-ADM-14, its use cannot be restricted only to applicants and recipients who appear to be eligible for or who are participating in ESAP.

Households potentially eligible to participate in ESAP, like any SNAP applicant household, may use **any** approved online or paper application form to apply or recertify for SNAP benefits, however, it is highly recommended that households that appear to meet the criteria for ESAP and who request a paper application be offered the use of the simplified application, LDSS – 5166 "Application/Recertification for Supplemental Nutrition Assistance (SNAP) Benefits."

Use of the LDSS - 5166 by a household does not necessarily indicate or confer eligibility for ESAP. If a household using the LDSS-5166 form does not qualify to be included in ESAP, it may be eligible for regular SNAP benefits and should be evaluated and processed accordingly. Regardless of which online or paper application or recertification form a household uses to apply or recertify for SNAP, all applications and recertifications must be evaluated to determine whether a household should be included in or remain in ESAP.

Households that meet the criteria to participate in ESAP must be coded so that their case can have a certification period of up to 36 months. In the New York City Welfare Management System (WMS), this process will be largely automated when a case action is taken on a household that meets the ESAP criteria. If an external budget is entered for the household, it will be evaluated for ESAP and the appropriate coding will be applied. In Upstate WMS, the process will require workers to manually enter the applicable coding to ensure that the household is properly identified as an ESAP case. (For further guidance on how to properly code ESAP cases in Upstate WMS, see Attachment 1 to ABEL 21-5 Transmittal.)

Households that no longer meet the criteria to be included in ESAP and leave the project

("Leavers"), but remain a Case Type 31 and eligible for SNAP, will also be identified with special coding that will allow them to retain the balance of the ESAP certification period until the next recertification, although no other flexibilities of the ESAP waiver would apply to them.

ESAP households that begin receiving TA income would have their case closed and a new case would need to be opened for them, as households that receive TA income cannot be included in the demonstration project.

ESAP households that are no longer eligible for SNAP **at all** would have their case closed and are not considered 'Leavers'. If such households subsequently reapply, eligibility for SNAP, and ESAP, would need to be evaluated at that time based on current household circumstances.

Specifics regarding the codes to be used for ESAP and ESAP Leaver cases can be found in the Systems Implications section.

D. Expedited Processing

Expedited processing requirements are unchanged and clients who appear eligible for expedited benefits based on the information on the ESAP application must be processed under regular expedited timeframes. Any initial application submitted by ESAP eligible households must be screened for expedited processing on the day that it is filed with the agency and reviewed for eligibility for expedited processing consistent with the requirements in 18 NYCRR 387.8 and 7 CFR 273.2.

As the LDSS-5166 does not contain a section for resources, it might be unclear if a household is eligible for expedited processing without initially including resource information. Therefore, the district should attempt to interview the household as quickly as possible so that, if warranted, expedited benefits could be issued within the 7-day expedited processing time frame. Resource information should be explored with the household during the eligibility interview and attestation of household resources should be accepted.

Note: The target demographic for the LDSS-5166 – households in which all adults are aged or disabled – is subject to the 200% GIT and considered categorically eligible and would not normally have resources taken into consideration unless household income **exceeded** the 200% GIT. Therefore, in the interest of simplifying the application process for the target demographic even further, there is not a section for resources on the LDSS-5166.

When initially completing the LDSS-3938 "Supplemental Nutrition Assistance Program (SNAP) Application Expedited Processing Summary Sheet", the resources field in Part Two, Section B can be left blank or have a line drawn through it, which for purposes of completing the calculation with Section B, would effectively be the same as entering zero in that field. Upon completion of the interview, if resource information is then disclosed by the household, it can be entered in the 'Notes' section of Part Four and the overall eligibility calculation revised as needed at that time.

If a household does not make themselves available to the district for an interview within the 7-day time frame (assuming that the district has made reasonable efforts to contact the household), the household is considered to forfeit eligibility for expedited processing, though it would still be able to continue with the process for qualifying for on-going benefits.

Additionally, the district is not required to, but may issue, expedited benefits using pay type 91 once the household completes the interview and is determined eligible. If this is the case, a notation can be made in Part Four of the LDSS-3938 and in the case comments to clarify why an expedited benefit was issued beyond the expedited time frame.

E. Application and Recertification Interviews

Applications: Initial application interview requirements for households that appear to be ESAP-eligible are the same as for any SNAP applicant household. Districts must conduct an application interview for **all** SNAP applicant households at initial application.

Recertifications: ESAP households will get an ESAP-specific Notice of Expiration (NOE) informing them that a recertification interview is not required but may be requested, with instructions on how to request an interview. ESAP households are not required to complete a recertification interview and districts must determine eligibility for ongoing SNAP eligibility if the household submits a completed recertification application and any required verification. However, **districts are required to offer ESAP households a recertification interview in the following situations:**

1) Before an ESAP recertification application may be denied for any reason - other than failure to submit a recertification application - districts must offer the household an interview before denying the application for recertification and closing the case. If no application has been submitted for recertification, an ESAP case may be closed for failure to recertify, like any other SNAP case.

2) If information on the ESAP recertification application is questionable and further clarification is needed, the household must receive notification of a scheduled appointment for, or instructions on how to complete, a telephone interview. (Information is questionable if the information on the application is inconsistent with statements made by the applicant, inconsistent with other information on the application or previous applications, or inconsistent with information received by the district through matches or other programs.)

3) Upon request by the ESAP household.

Districts may not deny an ESAP recertification application without first offering a recertification interview. Households that do not submit a recertification application at all may be closed for failure to recertify.

In Upstate districts, the **LDSS-5181** **"ESAP Interview Notice Letter"** has been developed as an Intelligent Auto-fill Form (IAF) that will be available in myWorkspace in English and Spanish, and on the LDSS E-Forms page in additional languages. The LDSS-5181 informs the ESAP household of their scheduled interview date and time and that they are being given an opportunity to be interviewed before their case closes. The notice further explains that, while an interview is not usually required for ESAP households at recertification, the information provided on their recertification application indicates that they are no longer eligible for SNAP and they are being offered an opportunity to be interviewed and correct any incorrect information before their case is closed. The myWorkspace versions of the form will automatically be saved in the

Imaging and Enterprise Document Repository (I/EDR) in Category 09, Correspondence/Manual Notices, which will document that the district attempted to interview the household.

In NYC, CNS language has been developed to notify ESAP households that their SNAP case will close at recertification and that they must complete an interview to determine if they are still eligible. This information is similar to the existing Z79 notice but contains ESAP-specific language that explains the necessity of an interview at this time, with instructions on where to call to complete an interview over the phone. This language will be inserted into recertification closing notices sent to any ESAP household with the exception of cases being closed for failure to recertify. The closing transaction would be placed in clock-down status for 10 days to allow the household sufficient time to respond. If the household submits their recertification within the last 10 days of the current authorization period the clock-down period of 10 days may extend beyond the end of the current authorization. However, no new benefits would be issued to the household unless the household is found eligible and recertified for a new authorization period.

F. Verification

As part of reducing barriers to participation in SNAP for ESAP eligible households, to the extent possible, districts must use available electronic verification sources described below to obtain required verification for ESAP households.

Additionally, unless questionable, participating ESAP households may self-declare expenses for the Standard Utility Allowance (SUA) and other shelter-related expenses (e.g., rent, or mortgage, taxes, and insurance on the dwelling).

Participating ESAP households are required to provide proof of residency, out-of-pocket medical expenses, non-federal/state sources of unearned income and any questionable information.

To the extent possible and consistent with the verification requirements and needs of the particular application or recertification, districts must use the following computer matches and systems to verify the circumstances of ESAP-eligible households, including unearned income, date of birth, and Social Security number and, if appropriate, to ensure that the household has no earned income:

- The State Data Exchange (SDX) and Beneficiary Earning and Data Exchange (BENDEX) matches, and the State On-Line Query (SOLQ) system with the Social Security Administration to verify unearned income, Social Security Number and date of birth.

- Direct access to Unemployment Insurance Benefit (UIB) information to identify and verify UIB income and amount.

- TALX to prevent the participation of households with earned income.

- The Systematic Alien Verification for Entitlements (SAVE) program to verify the immigration status of non-citizens.

- The "ASSETS" system to identify and verify Child Support payment income and amounts.

- In New York City, the Human Resources Administration will use its Information Verification System (IVS) to conduct the following additional matches for participating ESAP households:

- FISA, a database of City employees and their income, will be used to prevent the participation of households with earned income.

- Automated Child Care Information System (ACCIS), a database of child-care providers who receive child-care income from the City, will be used to prevent the participation of households with earned income.

- Department of Health and Mental Hygiene Vital Statistics Match will be used to track and verify the death of ESAP participants.

- New York City Housing Authority (NYCHA) match will be used to verify residency and shelter expenses of people living in NYCHA housing.

- Department of Housing Preservation and Development (HPD) match will be used to verify the residency and shelter expenses of people living in temporary housing and shelters in New York City.

G. Non-Mandatory Interim Report vs. Periodic Report

Accurate coding will also ensure that at the midpoint in the certification period the household will receive an Interim Report, the LDSS-3151 – "Supplemental Nutrition Assistance Program (SNAP) Change Report Form", which the household may voluntarily return if they have changes to report at that time. **Negative action cannot be taken against an ESAP household that does not return this non-mandatory Interim Report.** Changes that are reported by the household that would increase its SNAP benefit should be acted upon, but must be verified, either using system resources and data matches or, if necessary, by documents which the household would provide. Negative action cannot be taken against a household for failure to verify such changes, but they should be further explored at the next recertification.

Households that no longer meet the criteria to be included in ESAP and leave the project ("Leavers") but remain Case Type 31 and eligible for SNAP must also be identified with appropriate coding that will allow them to retain the balance of the original 36-month certification period until the next recertification. However, no other flexibilities of the demonstration project would be extended for households that leave ESAP, meaning that they would then be subject to the regular reporting requirements that would apply to the household based on its circumstances when it leaves ESAP. For example, leaver households subject to the simplified ("six-month") reporting requirements would then receive Periodic Reports at the scheduled intervals for the remainder of their certification period and would be obligated to return them and have them processed according to established procedures.

H. Other Reporting Requirements

ESAP households have specific reporting requirements defined by the federal waiver. With the following exceptions, households participating in ESAP would only have to report most changes at the next recertification. The following changes, however, **must** be reported within ten days of the beginning of the month following the month in which such a change occurs:

Changes in Household Composition. Whenever someone leaves, or is added to, an ESAP household, this should be reported, as it may affect the household's eligibility for ESAP. All adults in an ESAP household **must** be elderly (age 60 or over) and/or disabled. If all adults in the household are not either age 60 or over and/or disabled, the household is no longer eligible for ESAP and should be transitioned to regular SNAP if eligible using the appropriate CNS code.

Receipt of Earned Income. If any member of an ESAP household begins receiving earned income this should be reported, as households with earned income are not eligible for ESAP. An ESAP household that begins receiving earned income would retain the balance of the existing 36-month certification period but would be transitioned to regular SNAP if they remain eligible.

Substantial Lottery or Gambling Winnings. Federal regulations require that all SNAP households must report the receipt of substantial lottery or gambling winnings. Substantial lottery or gambling winnings are defined as a cash prize equal to or greater than the maximum allowable financial resource limit for elderly or disabled households as defined in 7 CFR273.8(b) **won in a single game** before taxes or other withholdings. For the purposes of this provision, the resource limit defined in 7 CFR 273.8(b) applies to **all** households, including non-elderly/disabled households, with substantial lottery and gambling winnings.

When a household reports substantial lottery or gambling winnings as defined above, the following should be verified before acting on a case:

• the household received lottery or gambling winnings, before taxes or other amounts are withheld, equal to or greater than the SNAP resource limit for elderly or disabled households.

• the amount received was a cash prize won **in a single game**. If multiple individuals shared in the purchase of a ticket, hand, or similar bet, only the portion of the winnings allocated to the member(s) of the SNAP household are considered.

• the substantial lottery or gambling winnings were won by an active member of the SNAP household.

No negative action may be taken against a household that reports the receipt of substantial lottery or gambling winnings until such information has been verified by the district as described above. If the district verifies that the household has received substantial lottery or gambling winnings, the entire SNAP case is closed using Client Notices System (CNS) code U45 (Excess Resources- Increased Resources.)

Households disqualified for substantial winnings remain ineligible until they meet SNAP income and resource eligibility requirements. This provision applies to **all** households, including categorically eligible Safety Net (SN), Social Security Income (SSI), and Temporary Assistance

for Needy Families (TANF) households, and those certified under Broad Based Categorical Eligibility (BBCE). The next time such a household reapplies after losing eligibility under this rule it would not be considered categorically eligible and would remain ineligible until they meet the applicable SNAP income and resource limits.

I. Overpayments and Claims for ESAP Households

The calculation of any potential overpayment for an ESAP household and any corresponding claim should be processed according to standard claims procedures as defined in 04-ADM-01, keeping in mind the special reporting requirements that apply to ESAP households as defined above. For households that leave the program, the applicable reporting requirements would be based on household circumstances at that time.

J. Transitional Benefits Alternative (TBA)

Households leaving Temporary Assistance programs that are eligible to receive TBA must be allowed to do so and should not be converted to ESAP until they have completed the balance of their TBA period. This is because it is to the household's advantage to receive TBA, as the SNAP benefit amount would generally increase, and there are no reporting requirements for the household during the TBA period.

For upstate WMS, when a TA case is being closed using an appropriate PA Case Reason Code, SNAP Case Reason Code 'J05 – Separate SNAP Notice Will Be Sent (TA Case Types Only) (Auto TBA, if Eligible)' should be used in order to create a separate determination for SNAP benefits.

To set the TBA benefit amount, the comparison of the pre-FA closing and the new SNAP calculation is accomplished by entering a "T" in the "SD" (Separate Determination) input field of the new ABEL SNAP budget. The presence of the "T" code will also not allow a case to be converted to ESAP.

NYC WMS has been programmed to automatically generate TBA when a case type 11 (FA), 12 (SNFP), 16 (SNCA), or case type 17 (SNNC) case is closed using an appropriate case closing code, if it meets program requirements.

An automated SNAP recertification notice letter will be sent 45 days before the end of the TBA period. At the end of the five-month TBA period, households receiving TBA must recertify and be found eligible in order to continue receiving SNAP benefits. (A household receiving TBA may also request early recertification, prior to the end of the TBA period, if circumstances have further changed to an extent that would result in a SNAP benefit amount higher than the TBA amount, and any changes are verified.) At that time, the household must be evaluated to determine if it meets the criteria for ESAP.

For upstate WMS, the appropriate ESAP coding would be entered for the household, while the "T" code in the "SD" (Separate Determination) input field of the new ABEL SNAP budget must be removed. This will allow the household to be authorized for a 36-month certification period when the appropriate ESAP coding is used.

In NYC WMS, households will automatically be evaluated ESAP the next time an external

budget is entered and appropriate ESAP coding applied. The household would then receive the 36-month certification period.

K. Other Separate Determinations

Households leaving TA programs that are not eligible to receive TBA may still be eligible to receive SNAP benefits. Local districts must determine their continued eligibility based on normal SNAP separate determination procedures. Districts are reminded that this must be accomplished without shortening the certification period or requiring households to report for an in-office interview.

For upstate WMS, the separate determination must be done manually. At the time that the separate determination is processed, the original authorization period would be maintained. At the next recertification, opening, or reopening the worker must also determine if the household meets the ESAP criteria. If so, the appropriate coding must be entered when the budget is processed, which will allow the household to receive a 36-month certification period.

In NYC WMS, the separate determination process is largely automated. All SNAP Only cases (Separate Determination cases at center F-15 from closed PA/SNAP) generated by Harris processes will be evaluated for ESAP criteria. Households will be evaluated for ESAP the next time an external budget is entered and appropriate ESAP coding will then be applied. The household would then receive the 36-month certification period. Workers will issue notices using CNS codes developed for ESAP.

L. Systems Implications

New codes have been made available to identify ESAP households, as well as those households that are no longer ESAP-eligible but remain a Case Type 31 and eligible for SNAP, and to process ESAP cases and provide appropriate notices to these households.

New York City

In New York City (NYC), ESAP cases will be identified using A/D (aged/disabled) indicator codes, and new FR (food stamp reporting) indicator codes.

A new FR value of “X”, labeled “ESAP” has been created to identify ESAP cases. It will be generated on an NPA/FS case (Case type – 31) when all adult household members aged 18 or older have an A/D indicator of ‘X’ and are not eligible for NYSNIP or NYSCAP, have an active status, and no household member receives earned income.

Children under the age of 18 may be present in the household.

Eligible shelter types are: 01, 02, 03, 06, 11, 13, 14, 23, 24, 25, 26, 30, 33, 34, 35, 38, 39, 40.

A new A/D indicator code value of “L”, labeled “ESAP INELIGIBLE” will be available on the individual screen if the case no longer meets the criteria for ESAP, but remains Case Type 31 and eligible for SNAP. This value will need to be Worker-entered. An entry of “L” in the A/D field should only be allowed if the case no longer meets the criteria for ESAP.

ESAP ineligible scenarios include when all adult members of the household aged 60 or older and/or disabled move out of the household or die, when earned income is added to the budget, when a child in the household turns 18 and is considered an able-bodied adult, or an able-bodied adult is added to the household.

A new FR value of "L", labeled "ESAP INELIGIBLE" has been created to identify cases that will leave ESAP, but remain eligible for SNAP. It will be generated on an NPA/FS case when an A/D indicator of "L" is present on any line of the budget when transmitted to the NSBL80 screen.

Note: ESAP or ESAP Leaver cases that begin to receive TA income must be **closed**, as TA income is not allowed as part of the demonstration project. Only Case Type 31 cases without TA income can be included in the demonstration project.
Only Case Type 31 cases can be ESAP or ESAP Leaver cases, and TA income is not allowed in either. If an ESAP case needs to be transitioned to Case Type 32 - or other case type - the case must be closed and a new case opened for the household with an authorization period appropriate to its circumstances at that time.

Rest of State

In districts outside of New York City, ESAP cases will be identified using new A/D indicator codes, as well as new Special Program Codes.

A new A/D indicator value of "E – ESAP" has been created to identify ESAP cases. It should be applied to an NPA/FS case (Case type – 31) when all adult household members are aged 60 or over or disabled, are not eligible for NYSNIP or NYSCAP, have an active status, and no household member receives earned income.

Children under the age of 18 may be present in the household.

Eligible shelter types are: 01, 02, 03, 05, 06, 07, 11, 19, 20, 21, 22, 23, 33, 36, 37, 37, 38, 39, 40

A new A/D indicator value of "L – ESAPLVR" has been created to identify cases that no longer meet the criteria for inclusion in ESAP but remain Case Type 31 and eligible for SNAP. Per the approved demonstration project waiver, these households would retain the balance of the 36-month authorization period until the next recertification, at which time it would be assigned a certification period appropriate to its circumstances at that time.

Corresponding Special Program Codes of "E – ESAP" and "L – ESAPLVR" have also been created to identify these households for required FNS reporting on this demonstration project. Households that are included in ESAP will receive the "E – ESAP" Special Program Code. Households that no longer meet the criteria for ESAP, but remain Case Type 31 and eligible for SNAP, will receive the "L – ESAPLVR" Special Program Code when they leave ESAP, but should be removed at the next recertification.

Workers will need to enter the appropriate "L – ESAPLVR" coding. This will ensure that households that are no longer eligible to be included in the ESAP demonstration project will retain the balance of their current certification period but will be subject to appropriate periodic

reporting going forward.

Note: ESAP or ESAP Leaver cases that begin to receive TA income must be **closed**, as TA income is not allowed as part of the demonstration project. Only Case Type 31 cases without TA income can be included in the demonstration project.

Only Case Type 31 cases can be ESAP or ESAP Leaver cases, and TA income is not allowed in either. If an ESAP case needs to be transitioned to Case Type 32 - or other case type - the case must be closed and a new case opened for the household with an authorization period appropriate to its circumstances at that time.

For districts outside of New York City, the Upstate Systems Bureau (USB) has also issued a separate WMS Coordinator Letter and an ABEL Transmittal that discuss the specific Systems implications for ESAP in further detail.

Client Notification System (CNS) Codes for ESAP

The following CNS codes have been developed for use with ESAP households, and for ESAP households that leave the program:

A75 Approval ESAP

A76 1st Month Prorate – Applied BEFORE the 16th - ESAP

A77 1st Month Prorate – Applied AFTER the 15th - ESAP

A78 Eligible in Succeeding Months - ESAP

BH3 New Budget Authorized – Return to Reg SNAP from ESAP

BH4 New Budget Authorized: SNAP to ESAP

BH5 New Budget Authorized: SNAP to ESAP (Reduction)

BH6 New Budget Authorized ESAP Re-budgeted

BH7 Recert Approval: Return to Regular SNAP from ESAP

BH8 Recertification Approval: SNAP to ESAP

BH9 Recertification Approval: ESAP

ZA4 Notice of Expiration/Recertification Packet - ESAP

ZA5 ESAP SNAP On Demand Phone Recert Interview Reminder (NYC only)

ZA6 ESAP SNAP Recertification (NYC only)

ZA7 ESAP SNAP Recert Reminder (NYC only)

M. ESAP Training

An ESAP self-paced module which includes information about ESAP policy and procedures, effective worker communication with elderly and/or disabled individuals and understanding the barriers to participation encountered by the target population is available on TrainingSpace. Additionally, the training will instruct workers on methods for identifying out-of-pocket medical expenses and working with the ESAP households to encourage them to report and verify such expenses.

N. Outreach

As part of this project, OTDA will collaborate with community partners and the New York State Office of the Aging (SOFA) to inform and engage the ESAP-eligible population. The purpose of this outreach is to inform the target population about the project, provide ESAP applications, assist with the navigation of the initial certification and recertification processes, and help clients identify and verify allowable medical costs.

To support this outreach, a new brochure has been developed to assist ESAP households with understanding the role certain allowable medical expenses may have on their SNAP benefit amount. **PUB-5176, "It's Easy for Older and Disabled Adults to Get SNAP – Deducting Medical Expenses for SNAP"** explains that certain verified out-of-pocket medical costs that total more than $35 per month can be deducted from countable income which could result in some recipients receiving additional SNAP benefits each month. The brochure contains examples of medical costs that can be deducted and information about the simplified application process for ESAP and what information may be needed to complete the application.

References:

21TA/DC079 - Preliminary Guidance Regarding the Elderly Simplified Application Project (ESAP)
20-ADM-14 - New SNAP-Only Application Form
04 ADM-01-Establishing and Collecting Food Stamp Overissuance Claims

Section 21: Glossary

- A –

ABEL BUDGET - Temporary assistance or food stamp budget which has been calculated by the Automated Budgeting and Eligibility Logic subsystem of WMS after input of basic data regarding case category, household composition, needs, and income.

ABLE BODIED ADULTS WITHOUT DEPENDENTS (ABAWD) - Certain SNAP recipients who are work registrants without children, subject to additional work requirements, in order to maintain eligibility for continued receipt of benefits.

ACTION TAKEN NOTICE - a notice from a local district advising an applicant for SNAP benefits or a recipient of SNAP benefits at recertification, of the local district's determination to accept or deny SNAP benefits, or a recipient of SNAP benefits, of an increase in benefits.

ADEQUATE NOTICE -
A written notice sent to the client at the time a case action is taken which specifies all of the following:

1. The action being taken by the agency.
2. The reason(s) for the action.
3. An explanation of the client's right to request a conference and/or a fair hearing if he/she thinks the action should not be taken.

Adequate notice must be sent to the client no later than the date of the action to be taken.

ADMINISTRATIVE DISQUALIFICATION HEARING (ADH) - Administrative disqualification hearing means a hearing scheduled by the Department, at the request of a local district, upon the submission by the local district of sufficient documentary evidence to establish that an individual has committed one or more acts in violation of program standards described as a Food Stamp intentional program violation.

ADMINISTRATIVE ERROR - an over issuance caused by a local district action or local district failure to take action. Administrative errors are now referred to as "Agency Errors".

An incorrect action including a delayed action or no action taken on a case resulting in an overpayment or an underpayment. Administrative errors may be due to the Inaccurate use of information, misapplication of policy, an underpayment, oversight or negligence on the part of staff, or computer or other machine errors. The failure of a provider for a client to follow proper procedures is not an administrative error.

ADMINISTRATIVE LAW JUDGE – see Hearing Officer

ADVANCE NOTICE - A notice which allows at least 10 days before the action to reduce or discontinue the grant of assistance is effective. The action is pending to provide the client time to react to the proposed case action.

ADVERSE ACTION NOTICE - a notice from a local district advising a recipient of SNAP benefits of its determination to discontinue, reduce, or suspend such recipient's SNAP benefits, within the SNAP certification period.

AFFIDAVIT - a written statement by an individual made under oath before a notary public or other person authorized to administer oaths.

AGENCY CONFERENCE - an informal meeting at which an applicant or recipient may have any decision of a local district concerning the applicant's or recipient's, SNAP benefits, reviewed or may have any other aspect of the applicant's or recipient's case reviewed by an employee of that local district who has the authority to change the decision with which the applicant or recipient disagrees.

AGENCY ERROR - An Agency Error (AE) occurs when a local district action or failure to take action causes an overpayment. Formerly referred to as an “Administrative Error”.

AID CONTINUING - the right to have SNAP benefit continued unchanged until the fair hearing decision is issued. Sometimes also referred to as “aid to continue”

ALIENS - those persons that are eligible to participate in the Food Stamp Program are those individuals who are residents of the United States and who meet the applicable requirements of the Immigration and Nationality Act. See “NON-CITIZEN”, which should be used in place of “Alien”.

ALCOHOLIC TREATMENT AND REHABILITATION FACILITY - See Drug Addiction Facility

ALLOTMENT - the total value of SNAP benefits a household is authorized to receive during each month or other time period.

APPEAL – Request for a hearing on an action proposed or taken by the Department or on the Department’s failure to act. This can include Fair Hearings, Administrative Hearings or Supervisory Conferences.

APPELLANT - the party for or whom the fair hearing is requested.

APPLICANT - a person who has applied for SNAP benefits. Person who has expressed on a state-prescribed form (paper or electronic) directly, or by a representative to a social services official, a desire to receive SNAP benefits and to have his eligibility considered.

APPLICATION - Action by which a person indicates on a state-prescribed form (paper or electronic) his desire to receive SNAP benefits and to have his eligibility considered by a social services official.

APPLICATION FOR RECERTIFICATION - upon expiration of the certification period, household entitlement to SNAP benefits ends. Further entitlement to SNAP benefits cannot be established without another application, which should be made prior to the end of the current certification period to avoid a lapse in benefits.

APPLICATION REGISTRY- The process by which essential case data (i.e., name, date of birth, social security number) is entered into the WMS Data Base by a data entry operator at the time of initial application. A Registry number is automatically assigned to that application by the computer after it has been successfully entered. This number can be found on the Application Register/Clearance Report.

ASSESSMENT - adjunct to the SNAP Employment program components in which the employment worker gathers information on each recipient's needs, interests, skills, work experiences, and abilities.

ASSETS (RESOURCES) – Assets are objects of value, not defined as income, such as personal property, real state, automobiles, life insurance, cash and bank deposits, securities, and certain other items.

ASSISTANCE- for federal purposes consists of any payment or benefit designed to meet ongoing basic needs - food, clothing, shelter, utilities, household goods, personal care items, general incidental expenses. Assistance also includes supportive services such as transportation or child care provided to unemployed recipients. Assistance paid to a TA or Non- Cash SNA/FP recipient is counted towards the 60- month TANF time limit. Assistance counts towards the support offset. Payment types defined as assistance, when paid to a tractable person in a tractable case type (TA, Cash SNA, Non-Cash SNA /FP) will trigger time limit counts, be reported to DHHS as assistance, and be counted towards the support offset.

AUTHORIZATION PERIOD - the period for which SNAP benefits are authorized following a certification.

AUTHORIZED REPRESENTATIVE - an individual who is:

- Chosen by the head of household, spouse or other responsible household member to represent the household in applying for, obtaining and/or using SNAP;

- An employee designated by a publicly operated community mental health center or a private, non-profit drug addiction or alcoholic treatment and rehabilitation facility, group living arrangement and/or shelter for battered women and children who will represent residents at such centers in applying for and obtaining SNAP; or

- The only household adult available to be the authorized representative for the household children, even though classified as a non-household member.

- B -

BASIC CERTIFICATION SERVICES - distributing and accepting applications, interviewing applicants, and accepting notices of changes in household circumstances.

BEGINNING MONTH PERIOD - normally the first two months within a household's initial certification period. Households jointly applying for TA and SNAP which are certified for SNAP in the month preceding the month in which they are certified for TA shall be assigned a SNAP beginning month period of three months. An ongoing certified

household whose case is closed shall not be assigned a beginning month period upon reapplication unless the case remained closed for at least one full month.

All SNAP cases are budgeted prospectively during the beginning month period.

BENEFICIARY DATA EXCHANGE (BENDEX) - A system through which the Social Security Administration provides the Department with information on client receipt of Social Security benefits and Medicare coverage.

BENEFIT QUARTER - the three-month period after the process month.

BEST ESTIMATE - process that is used to determine one of two methods to project average monthly earnings. Districts do not have a choice as to which of the two methods must be used. The circumstances of each case determine which method must be used. (See 93 ADM- 9 and 95 INF-19).

BOARDERS - individuals who reside with others and pay reasonable compensation for lodging and meals. Boarder status shall not be extended to:

- Those individuals or groups of individuals described in SNAPSB Section 5, including children or siblings residing with elderly or disabled parents or siblings.
- Individuals paying less than a reasonable monthly payment for meals. These persons will be counted as members of the household which provides the lodging and meals.

BOARDING HOUSE - an establishment which is licensed or viewed by the community as a commercial enterprise, offering meals and lodging for one or more persons for compensation, with the intention of making a profit.

BUDGET DEFICIT –occurs when income is insufficient to meet the budgeted needs of a categorically eligible household.

BUDGET SURPLUS –occurs when available income meets or exceeds the budgeted needs of a categorically eligible household.

- C -

CAPITAL GAINS - the proceeds from the sale of capital goods or equipment shall be calculated in the same manner as a capital gain for Federal income tax purposes. Even if only 50 percent of the proceeds from the sale of capital goods or equipment is taxed for Federal income tax purposes, the State agency shall count the full amount of the capital gain as income for SNAP purposes.

CASH MANAGEMENT SYSTEM (CAMS) – Subset of WMS. Allows LDSS to record and track debts/claims owed and/or paid by those recipients and former recipients that owe money back to the agency.

CASH SURRENDER VALUE - In life insurance, this is the amount which the insurer will pay upon cancellation of the policy before death or maturity. The value usually increases with the age of the policy.

CATEGORICAL ELIGIBILITY – Households that have a gross income at or below 130% of the federal poverty limit, or households that incur Dependent Care Costs at or below 200% federal poverty limit, or households with an elderly or disabled member at or below 200% of the federal poverty limit, that receive a TANF/MOE-funded service, except for those households having a member who is either disqualified from the Food Stamp Program due to an IPV or a sanction, are considered "Categorically Eligible". Note: Income eligible households, with no disqualified member, resources are not considered for determining eligibility.

CERTIFICATION - the decision by the local district that a household is eligible to participate in the program. A specific period of time that a household may participate is assigned, based on stability of income, expenses and household composition.

CERTIFIED CLAIM - Claims defined as meeting collection standards and subject to intercept under the Treasury Offset Program.

CLAIM DETERMINATION - a decision regarding the basis, amount and liability for the over issuance of SNAP benefits.

CLAIMS AGAINST HOUSEHOLDS (DSS-3214) -
This report summarizes the type of food stamp claims according to the following breakdown: collected, the amounts collected during the month, and the form in which the collection was made.

CLEAN COPY AUTHORIZATION
A clean copy authorization is a resource document used to determine which applicants, if any, have a current or prior record of applying for or receiving assistance or care. (See also "Dirty Copy Authorization.")

CLEARANCE REPORT – matches information about each individual applying for assistance with all case and application data currently in the system. The resulting printout is a report listing the names and identifying data of any individual who appears to be the same or very similar to the applicant according to such characteristics as social security number, name, sex, date of birth and client identification number (CIN) . The clearance report is obtained through the process of Application Registry.

CLIENT IDENTIFICATION NUMBER (CIN) – a unique alpha-numeric number assigned to a SNAP client.

COLLATERAL INFORMATION - the collection of additional information through contacts with secondary sources such a relatives, employers, banks, insurance companies, school personnel, social agencies, and other appropriate individuals and organizations.

COMMON BENEFIT IDENTIFICATION CARD (CBIC) - a standard plastic debit/credit card used by recipients to obtain SNAP, TA , MA, and in some cases, HEAP benefits.

COMMERCIAL BOARDING HOUSE - See Boarding House.

COMPLAINT -
Any written or oral communication made to a local district or the Department by or on behalf of an applicant, other than a complaint for which there is a right to a fair hearing, or a communication from any other source directed or referred to the local district or OTDA, directly or indirectly alleging dissatisfaction with a local district action.

COMPROMISED CLAIM - Discretionary collection tool for local districts to compromise (reduce) claim amounts on closed/inactive cases including AE's IHE's and IPV's in order to maximize and expedite client payments. Provides accommodation to clients with outstanding debts, thereby encouraging payment directly to the district, and speeding receipt of payments at that level.

CONCILIATION PROCESS - A procedure for resolving participant grievances and issues related to participant's failure to comply with employment requirements. The process may establish whether or not a participant's failure to comply with employment requirements was willful and without good cause.

CONGREGATE CARE FACILITIES - Congregate Care Facilities are non-medical residential facilities that provide care to individuals who are unable to live independently but do not need the type and degree of care provided in nursing homes or other comparable residential medical facilities.

CONSOLIDATED HEARING - a single group hearing conducted by the local district in response to a series of individual requests for hearings where related issues of State and/or Federal law, regulation or policy are the sole issues being raised.

Where factual issues arise from the same or related circumstances, a consolidated administrative disqualification hearing will be held for an SNAP- IPV and an TANF- IPV or SN-IPV. All evidence, testimony and proof relating to the consolidated cases will be presented together, but separate findings will be made with respect to each separately alleged IPV.

CONVERSION - The exchange of one property for another property item. For example, an item of property is sold and cash received from the sale is deposited into a savings account.

COUNTABLE INCOME - Countable income is net income which can be used in determining eligibility or degree of need for temporary assistance.

CURRENT MARKET VALUE - The price that the owner can reasonably expect to receive for property (or an interest in property) in the particular geographic area involved if the property (or interest in it) is sold on short notice.

- D -

DATE OF APPLICATION –the date a signed application for assistance is received by the district. This is especially important for SNAP in order to ensure accrual of benefits.

DEFERRED ADJUDICATION - When a case is accepted for prosecution, the appropriate prosecutor may choose to settle the case or a court of appropriate jurisdiction hearing the case may issue an order, such as an order adjourning the case in contemplation of dismissal provided that restitution is made. In such cases, the local district may use a Disqualification Consent Agreement (DCA) as described below.

DELETED CLAIM- Removed from collectible status and the debt is written off as in claims established in error or subject to court action.

DENIAL –disapproval of the client's application based on a determination that one or more of the eligibility requirements is not met.

DEPARTMENT - The New York State Office of Temporary & Disability Assistance.

DEPENDENT CARE DEDUCTION - payments for the actual costs for the care of a child or other dependents (including an incapacitated adult) when necessary for a household member to accept or continue employment, seek employment in compliance with the job search criteria (or an equivalent effort by those not subject to job search), or attend training or pursue education which is preparatory to employment.

DESTITUTE HOUSEHOLDS - those households whose only income for the month of application:

- Was received prior to application and was from a source which has been terminated, or

- Is from a new source and no more than $25 gross income from the new source will be received within ten calendar days of the application date.

DIRTY COPY AUTHORIZATION -

The Authorization Change Form with the handwritten changes is considered "dirty". (See also "Clean Copy Authorization.")

DISABILITY- physical or mental illness or injury which limits a person's ability to work. See SNAPSB Section 5

DISQUALIFICATION CONSENT AGREEMENT (DCA) - a document signed by an accused individual in which an individual or any caretaker relative or head of household admits to committing an IPV and consents to the imposition of an appropriate disqualification penalty, without a trial.

DOCUMENTARY EVIDENCE - written confirmation of a household's circumstances, e.g., wage stubs, rent receipts, utility bills. It is used as the primary source of verification.

DRUG ADDICTION OR ALCOHOLIC TREATMENT AND REHABILITATION FACILITY - a facility operated by a private, non-profit organization or is a publicly operated community mental health center. Any drug addiction or alcoholic treatment facility must either be authorized as a retailer by the United States Department of Agriculture (USDA) or be eligible to receive funds under Part B of Title XIX of the Public Health Service Act (42 U.S.C. 300x et seq.) even if it does not actually receive such funding. Private, non- profit facilities must also be certified by the New York State Division of

Alcoholism and Alcohol Abuse or the New York State Division of Substance Abuse Services.

- E –

EARNED INCOME- all monies received from wages, salaries, tips, payment for services, Room and Board, net proceeds from self-employment, sick leave pay (when source of income is employer), income earned by maintaining rental property at least 20 hrs. weekly or more.

EARNED INCOME OF CHILDREN - earned income for children who are members of the household, are students at least half- time, and are less than 18 years old.

EARNED INCOME TAX CREDIT (EITC) - refundable credit to which families with dependent children and limited incomes may be entitled. The credit is based on the family's earned income and is to be applied first against their tax liability. If the amount of credit is greater than the family's tax liability, the excess is treated as an over payment of taxes and refunded to the family. The EITC may be included in regular pay checks based on estimated credits or as a lump sum payment at the end of the tax year.

EDUCATIONAL ACTIVITIES -
Include but are not limited to secondary and post-secondary level activities, defined as follows:

1. Secondary Level -
   - High school - A public or private educational facility providing a standard high school curriculum offered by or approved by the local school district.
   - General education development (GED) - An education program that prepares an individual to obtain a New York State high school equivalency diploma.
   - Basic/remedial education - Education in the areas of reading, writing, mathematics and oral communications for individuals functioning below the eighth grade level in those areas.
   - Literacy training - Education designed to help individuals improve their ability to read and write.
   - English as a second language (ESL) - An instructional program designed to develop skills in listening, speaking, reading and writing the English language for individuals whose native or primary language is other than English.
2. Post-secondary education - A two year full-time degree granting program at a community college, at a two year college or at a four year college which offers two year degree programs.

EDUCATIONAL INCOME - income or loans on which payment is deferred, grants, scholarships, fellowships, veteran's educational benefits, and the like to the extent that they are used for tuition and mandatory school fees at an institution of higher education, including correspondence schools at that level, or a school at any level for the physically or mentally handicapped. Mandatory fees are those charged to all students or those charged to all students within a certain curriculum.

ELECTRONIC BENEFITS TRANSFER (EBT) - the debit card method whereby a recipient can access SNAP benefits, Family Assistance, Safety Net Assistance cash benefits and other benefits.

ELDERLY MEMBER - a member of the household who is 60 years of age or older.

ELDERLY SIMPLIFIED APPLICATION PROJECT (ESAP) – a program for households in which:

- all adult members are seniors (age 60 or older) and/or disabled and are not otherwise eligible to participate in the New York State Combined Application Project or NYSCAP (formerly known as the New York State Nutrition Improvement Project or NYSNIP); and,

- no household members have any earned income.

For the purposes of ESAP, the following definitions apply:

- "Adult" is an individual age 18 or older.
- "Senior/aged/elderly" is an individual age 60 or older.
- "Disabled" is defined using the same criteria used to assign the aged/disabled (A/D) indicator of "X" for the household. To be considered disabled, an individual must be in receipt of Supplemental Security Income (SSI) or Social Security Disability (SSD) benefits or receiving other federal or state administered disability or blindness benefits considered permanent under the Social Security Act or other standard, provided that the eligibility to receive these benefits is based upon disability criteria which are at least as stringent as those used under Title XVI of the Social Security Act.

Additionally, single individuals in receipt of SSI who are eligible for both ESAP and NYSCAP (formerly NYSNIP) are required to be enrolled in NYSCAP.

ESAP-eligible households may have certification periods of up to 36 months. Current systems edits limiting certification periods for the ESAP target population to a maximum of 24 months have been modified to permit maximum certification periods of 36 months.

ELIGIBILITY - Determination as to whether an individual meets defined criteria which entitles them to assistance under a specific program. In most assistance programs, there are two types of eligibility standards - financial eligibility and non-financial eligibility standards. An applicant must meet both sets of eligibility criteria before being granted assistance.

ELIGIBILITY PROCESS – those activities which are required in all cases as part of the basic eligibility provision of benefits. These activities begin with the application for assistance, include redeterminations of eligibility and case maintenance activities, and end with notification and appeal provisions.

EMERGENCY ASSISTANCE FOR ADULTS (EAA) – a temporary assistance program that provides financial assistance to meet emergency needs of adults who are eligible for SSI.

EMERGENCY ASSISTANCE TO FAMILIES (EAF) - (Case Type 19). Assistance for families with children to deal with crisis situations threatening a family, and meet emergent needs resulting from a sudden occurrence or set of circumstances demanding immediate attention.

EMPLOYABLE PERSONS - all SNAP applicants/recipients between the ages of 16 and 60, including persons unemployed because of a strike or lockout at their usual place of employment.

EQUITY VALUE - the fair market value of the resource less encumbrances.

ESAP – the Elderly Simplified Application Project (see above)

ESAP 'Leaver' – ESAP 'Leavers' are households that are determined to no longer meet the criteria for the program (for example, an adult in the household begins receiving earned income) and should be transitioned to regular SNAP, if eligible, but would retain the balance of their original ESAP certification period. In other words, certification periods for households leaving ESAP during the certification period may not be shortened. At the household's next recertification, it would receive a new certification period appropriate to its circumstances at that time.

ESSENTIAL PERSON - an individual who qualifies for FA because they are essential for the well-being of case members. It is also a term used to indicate an SSI essential person.

ESTIMATED DATE OF CONFINEMENT (EDC) - date on which pregnant woman is expected to give birth as verified by her doctor.

EXEMPTION – The amount of income or resources that is disregarded when computing income and/or resource eligibility.

EXPEDITED APPLICATION PROCESSING SERVICE - the following households are qualified for Expedited Service:

- Households with less than $150 in monthly gross income provided their liquid resources (i.e., checking or savings accounts, savings certificates, and lump sum payments) do not exceed $100 in the month of application.
- Migrant and/ or seasonal farm worker households who are destitute, provided their liquid resources do not exceed $100.
- Eligible households in which all members are homeless.
- Eligible households whose combined monthly gross income and liquid resources are less than the household's rent/mortgage plus heating/utilities.
    - The Standard Utility Allowances (SUAs) may be used to determine this amount.
    - If the applicant is able to document heating/utilities amounts in excess of the SUAs, the documented amount is used in the determination.
- All households qualified for expedited service must receive benefits within the designated timeframes.

EXPIRATION NOTICE - a notice sent by a local district which advises a household in receipt of SNAP benefits that its certification period is due to expire.

EXTENDED FILING PERIOD - the additional period of time of at least ten days from the date the Department (or local district) mails a second Monthly Report form during which the local district must allow a household to submit a completed Monthly Report form following the expiration of the household's initial filing period.

- F -

FAIR HEARING - The right of an applicant/recipient for a review by the State Department of Social Services of a decision made by a local social services district. The fair hearing reviews the basis of the request for the fair hearing, and the decision of the local district in light of the Social Services Law and Department Regulations. A decision rendered as a result of the hearing is binding on the local social services district and on the applicant/recipient. If an applicant/recipient or a local social services district does not agree with the fair hearing decision, relief may be sought through the judicial process.

FAMILY ASSISTANCE - cash assistance to eligible needy families that include a minor child living with a parent(s) or caretaker relative. It is operated under the federal TANF rules and is funded with federal/State/local money. Under FA, eligible adults are limited to receiving benefits for a total of 60 months in a lifetime, including months of TANF-funded assistance granted in other states. Once this limit is reached the adult and all members of his or her household are ineligible to receive any more FA benefits.

FEDERAL FISCAL YEAR (FFY) - a period of 12 calendar months beginning with each October 1 and ending with September 30 of the following calendar year.

FLEEING FELON - Recipients who are felons fleeing from prosecution; also includes violators of probation and parole.

FOOD AND NUTRITION SERVICE (FNS) - The branch of the U.S. Department of Agriculture (USDA) responsible under federal law for administration of the Food Stamp (SNAP) Program. The mission of FNS is to provide children and needy families better access to food and a more healthful diet through its food assistance programs and comprehensive nutrition education efforts. See also, USDA.

FOOD STAMP (FS) PROGRAM - Administered by the U.S. Department of Agriculture (USDA), the New York State Food Stamp (FS) Program, now known as the Supplemental Nutrition Assistance Program (SNAP), reduces hunger and malnutrition by supplementing the food purchasing power of eligible low income individuals. Eligibility and benefit levels are based on household size, income, assets and other factors.

FOOD STAMP EMPLOYMENT RELATED TRAINING - See Job Readiness Training

FOOD STAMP INDEPENDENT JOB SEARCH - See Job Search

FOOD STAMP JOB CLUB - a directed, full-time workshop that teaches recipients the techniques of how to seek employment by themselves.

FOOD STAMP VOCATIONAL TRAINING - See Job Skills Training

FOOD UNIT - when determining household composition, a food unit is the number of individuals customarily purchasing food and preparing meals together for home consumption.

FOSTER CARE FOR ADULTS – a living arrangement for persons who do not need institutional or nursing care, but may need some type of help in daily living.

FOSTER CARE FOR CHILDREN –a provision for care which is not otherwise given by the parents and provided either on a temporary or permanent basis.

FRAUD CLAIM - See Intentional Program Violation Claim

FUEL ALLOWANCE - standard of assistance, established from each county, to cover the cost of fuel for heat, if such cost is not included in the household's rent.

- G -

GARNISHED WAGES - Income from work activity that has been attached through legal action to guarantee payment of a debt. The amount withheld usually represents a percentage of salary or wages.

GENERAL INFORMATION SYSTEM (GIS) MESSAGES - These messages, in memo form, are issued by OTDA, OCFS and DOH to the local districts and provide guidance or information on state and local district issues.

GOOD CAUSE - is defined, for food stamp purposes, as those circumstances beyond the household member 's control, such as but not limited to: illness, illness of another household member requiring the person's presence, a household emergency, unavailability of transportation, or lack of adequate child care for children who have reached age six but are under age 12.

GRANT –the total amount of financial assistance the client is eligible to receive. In SNAP cases, benefits are accessed by CBIC cards (or temporary vault cards in some situations), and used via the Electronic Benefit Transfer (EBT) process to purchase approved food items.

Grants of Assistance to Guide Dogs (GAGD) - A program for blind, unemployed SSI recipients who maintain guide dogs. The program provides a monthly cash grant for the maintenance of these guide dogs.

GROUP LIVING ARRANGEMENT - means a public or private nonprofit residential setting that serves no more than sixteen residents and that is certified by the appropriate agency or agencies of the State under regulations issued under section 1616(e) of the Social Security Act or under standards determined by the Secretary to be comparable to standards implemented by appropriate state agencies under section 1616(e) of the

Social Security Act. To be eligible for SNAP benefits, a resident of such a group living arrangement must receive SSI (i.e. meet the definition of "…disabled household member").

- H -

HEAD OF HOUSEHOLD - is the member of the applicant household designated by the household to represent the household in all matter s pertaining to its eligibility for and receipt of SNAP. The head of household classification must not be used to impose special requirements on the household, such as requiring that the head of household, rather than another responsible member of the household, appear at the certification office to apply for benefits.

HEALTH INSURANCE - An insurance policy that pays money because the insured person has a medical expense. It does not matter if the money will be paid to the insured person or the provider of the medical services. An insurance policy which pays because of injury (i.e., loss of an eye, a limb, etc.) is not health insurance.

HEARING OFFICER - is an attorney who is employed by the Department and designated and authorized by the Commissioner to preside at hearings, also referred to as an Administrative Law Judge.

HOME ENERGY ALLOWANCE (HEA) - An additional allowance added to the statewide Standard of Need intended to meet the energy needs of recipients of temporary assistance living in their own homes.

HOME ENERGY ASSISTANCE PAYMENTS (HEAP) –payments or allowances made under any Federal, State or local laws for the purpose of energy assistance. These payments must be clearly identified as energy assistance by the legislative body authorizing the program or providing the funds.

HOMELESS INDIVIDUAL - is

1. An individual who lacks a fixed and regular nighttime residence, including, but not limited to, an individual who will imminently lose their nighttime residence; or
2. An individual whose primary nighttime residence is:
   - A supervised shelter designed to provide temporary accommodations (such as a welfare hotel or congregate shelter);
   - A halfway house or similar institution that provides temporary residence for individuals intended to be institutionalized;
   - A temporary accommodation for not more than 90 days in the residence of another individual; or
   - A public or private place not designed for, or ordinarily used as, a regular sleeping accommodation for human beings (a hallway, a bus station, a lobby or similar places).

HOMELESS MEAL PROVIDER - is a public or private nonprofit establishment (e.g. soup kitchen, temporary shelter), approved by an appropriate State or local agency, that feeds homeless persons. Homeless Meal Providers that accept SNAP benefits must be authorized by FNS.

HOMELESS SHELTERS - public or private facilities which provide temporary living accommodations for undomiciled persons.

HOUSEHOLD - a term relating to any of the following:

- An individual living alone;
- An individual living with others, but customarily purchasing food and preparing meals for home consumption separate and apart from others;
- A group of individuals, a food unit, who live together and customarily purchase food and prepare meals together for home consumption;
- An individual who is 60 years of age or older living with others (and the spouse of such individual) who is unable to purchase and prepare meals because he/she suffers from a disability considered permanent under the Social Security Act or suffers from a non disease- related, severe, permanent disability. However, the income of the others with whom the individual resides (excluding the income of the individual and spouse) cannot exceed 165% of the poverty level.

HOMESTEAD - Any shelter owned by the client which has an address and is occupied by the client as a permanent, primary residence. Any adjoining vacant land is included as part of the homestead.

- I -

IDENTIFIABLE APPLICATION - an application which contains the applicant's name and address (if they have one) and is signed by a responsible member of the household or the household's authorized representative.

IN-KIND INCOME - Income received in goods or services rather than in money. This can either be earned or unearned.

INADVERTENT HOUSEHOLD ERROR (IHE) - an over issuance caused by misunderstanding or unintended error on the part of the applicant or recipient.

INCOME - all monies received or expected to be received each month by all household members from whatever source unless specifically excluded.

INELIGIBLE NON-CITIZENS - individuals who do not meet citizenship or prescribed non-citizen status requirements.

INFREQUENT OR IRREGULAR INCOME - any income in the certification period which is received too infrequently or irregularly to be reasonable anticipated, but not in excess of $30 in a quarter.

INITIAL APPLICATION –households must fill out an application and have an interview with an eligibility worker. If the household is not on SNAP at the time, this is an initial application.

INITIAL DETERMINATION: An action based upon the local district's review of the facts concerning an application for temporary assistance or care in which a determination of eligibility or no eligibility for temporary assistance or care is made. Regulations require that a determination to accept or deny the application be made as soon as the facts to support it have been established by investigation, but not later than 30 days from the date the application is filed, for FA, MA and SNAP, and no sooner than 45 days for SNA.

INITIAL MONTH - the first month for which the household is certified for participation in SNAP following any period during which the household was not certified for participation.

INSTITUTION OF HIGHER EDUCATION - any institution which normally requires a high school diploma or equivalency certificate for enrollment including, but not limited to, colleges, universities, and vocational or technical schools at the post high school level.

INTAKE: Unit in some agencies responsible for initial screening and/or determination of eligibility of applications for assistance.

INTENTIONAL PROGRAM VIOLATION (IPV) - in the SNAP program means the commission of one or more acts in violation of the standards for the SNAP program. A SNAP-IPV occurs when an individual has intentionally:

- Made a false or misleading statement, or misrepresented, concealed or withheld facts concerning the individual's eligibility for SNAP.

- Committed any act constituting a violation of the requirements of the SNAP program, including but not limited to acts constituting a fraudulent use, presentation, transfer, acquisition, receipt of SNAP benefits, CBICs, BINS or any other evidence of the individual's eligibility for SNAP.

INTENTIONAL PROGRAM VIOLATION CLAIM - a claim against a household only when an administrative disqualification hearing or a court has found that a household member committed an Intentional Program Violation.

INTERCEPTED CLAIM- Automated involuntary collection of a SNAP debt from federal sources.

IRREGULAR INCOME – see "Infrequent or Irregular Income".

ISSUANCE MONTH –the month for which the SNAP benefits are issued. The payment month and issuance months are identical.

- J -

JOB READINESS TRAINING - a program component of the SNAP Employment and Training Program (SNAP E&T) in which group classroom training teaches participants how to successfully approach an independent job search.

JOB SEARCH - a program component of the SNAP E&T Program which consists of a specially structured job search for TA and NPA SNAP recipients. Participants are required to contact 24 prospective employers during a maximum eight week job search period. In addition, participants must report twice to the local district employment unit or job search contractor during the job search period for a review of their progress.

JOB SKILLS TRAINING - instruction in either a specific skill or occupation or in a program with a specific vocational objective.

JOINTLY- OWNED RESOURCES - resources owned jointly by separate households. They shall be considered available in their entirety to each household, unless it can be demonstrated by the applicant household that such resources are inaccessible to the household.

- L –

LAWFUL PERMANENT RESIDENT (LPR) - A non-citizen who is lawfully admitted for permanent residence or otherwise permanently residing in the United States under color of law.

LEGALLY RESPONSIBLE RELATIVE - A relative who, by law is responsible for the support and care of another person such as a spouse, parent or step-parent. Parents (including adoptive parents) and step-parents are responsible for the support of their children and/or step-children only under the age of 22.

LIQUID ASSETS – property which is in cash or payable in cash on demand. Liquid assets also include financial instruments which can be converted into cash. The most common types of liquid assets are cash on hand, saving accounts, checking accounts, stocks, bonds, mutual funds, promissory notes, loans, mortgages, and land contracts.

LIVE-IN ATTENDANTS - individuals who reside with a household member to provide medical, housekeeping, child care or other similar personal services.

LOCAL DISTRICT - local department of social service which has the responsibility for the administration of Public Assistance and SNAP Programs within the State.

LOW-INCOME HOUSEHOLD - a household whose annual income does not exceed thresholds set for in the federal poverty guidelines.

LUMP SUM INCOME - Lump sum income is the receipt of any substantial, non-recurring amount of money, such as inheritance, gift, accident settlement, etc.

- M -

Maintenance Of Effort (MOE) - The federally mandated level of spending that states are required to continue to provide to qualify for the receipt of federal funds. In New York State, this spending mandate is met through a combination of state and locally funded expenditures.

MASS CHANGE - changes initiated by the Federal government or the Department which affect all SNAP households or a significant portion of all SNAP households. Mass changes may include, but are not limited to, adjustments to income eligibility standards, shelter and dependent care deductions; the thrifty food plan and the standard deduction; annual and seasonal adjustments to Social Security, Supplemental Security Income and other Federal benefits.

MASS REAUTHORIZATION - Mass reauthorization is an automated function of ABEL which is activated when a common factor of the eligibility process impacts the eligibility or benefit level of cases in several districts.

MEDICAL DEDUCTIONS - that portion of medical expenses, excluding special diets, which is in excess of $35 per month and incurred by a household member who meets the definition of elderly or disabled.

MERIT PERSONNEL - employees used in the certification process who are employed in accordance with current standards under the New York State Merit System.

MIGRANT WORKER - a seasonal farm worker (individual) who has left home temporarily for the purpose of performing agricultural field or processing work with the expectation of eventually returning home.

MIXED HOUSEHOLD - a household in which some people receive public assistance (SNA , FA , etc.) and others do not.

MyBenefits - Provides a single Internet portal (www.myBenefits.ny.gov) for NYS families to apply for or recertify for benefits, services and work support. It allows individuals and families to learn about, prescreen for, and apply for an array of benefit programs, customized to fit their circumstances, by answering a set of online questions.

MyWorkspace - an electronic tool designed to help workers determine eligibility, authorize case actions in WMS, and manage worker caseloads. ***myWorkspace*** is pre-filled with information submitted online for recording both household information, from the eligibility interview, and verification documents. ***myWorkspace*** links into WMS, serves as a data entry tool, and may also be used for paper applications. Workers may post and view case comments and allow images to be viewed from districts participating in the State-wide Imaging/Enterprise Document Repository (I/EDR) project.

- N -

NEGATIVE CASE ACTION - An action taken by the departments to deny an application, cancel assistance, or reduce assistance.

NET WAGES -Total earned income less allowable deductions, such as taxes and health insurance.

NEW YORK STATE COMBINED APPLICATION PROJECT (NYSCAP) – a program for individuals living alone and in receipt of SSI income only. NYSCAP enables automatic case opening, and households must access benefits within 4 months to remain active. NYSCAP replaces NYSNIP, and uses standard SNAP budgeting methodology. As such, unlike NYSNIP, individuals eligible for NYSCAP must participate in NYSCAP. In addition, individuals who would be eligible for either NYSCAP or the Elderly Simplified Application Project (ESAP) must participate in NYSCAP.

NON-CITIZEN - an individual who is not a citizen of the United States. This is the preferred terminology for such individuals and replaces the term “Alien”.

NON-COMPLIANCE - Failure of a recipient or applicant who is not exempt to comply with one or more of the requirements such as work requirements, IV-D cooperation or eligibility requirements.

NON-FRAUD - See Inadvertent Household Error and Agency (Administrative) Error.

NON-LEGAL UNION - Refers to an unmarried couple living together with or without children.

NON-PUBLIC ASSISTANCE (NPA) - a household in which no one receives Public Assistance.

NORMAL PROCESSING STANDARD - local districts shall provide eligible households that complete the initial application process an opportunity to participate as soon as possible, but not later than 30 calendar days after the application is filed.

NOTIFICATION – A required action by which the applicant/recipient is advised, in writing, of any changes made which affect the grant, continued eligibility, or a determination of the application.

- O -

Office for People with Developmental Disabilities (OPWDD) is responsible for coordinating services for New Yorkers with developmental and intellectual disabilities, through a network of local and state service providers.

Office of Temporary and Disability Assistance (OTDA) –the state agency which supervises the administration of the Supplemental Nutrition Assistance Program in NYS, along with administering other assistance programs such as Public (cash) Assistance, Family Assistance and SNA; HEAP; child support services; housing and support services; shelter oversight; Refugee Services, and SSI/SSD disability determinations.

ON-THE-JOB TRAINING (OJT) - An activity which participants are trained at worksites for particular jobs. The training is mostly active learning-by-doing and participants immediately apply the skills they learn. Participants are employed by private sector employers and, while engaged in productive work, receive training that provides the skills and knowledge essential to the full and adequate performance of the jobs.

OPPORTUNITY TO PARTICIPATE - consists of providing households with a CBIC, PIN, and SNAP benefits which have been entered on the system which enables the household to obtain its SNAP within the 30-day processing standard.

OTHER INCOME - Any sum of money which comes into a household by any means other than wages, salaries or commissions.

OVER ISSUANCE - the amount by which the SNAP benefits issued to a household exceeds the amount the household was eligible to receive.

- P -

PARENT - an individual who is a father or mother of a natural, adopted or step- child.

PARENT (MINOR) - Parent under age 18.

PARTICIPATING IN A STRIKE - concerted cooperation and support for a strike action which results in a reduction of income, but does not include in its meaning concurrent work stoppage due to illness, approved vacation, firing, lock-out, lay-off related to the strike, intimidation or threats by strikers, acceptance of other full time employment or any other reason consistent with OTDA Regulations.

PARTIES TO A FAIR HEARING - the persons for whom a fair hearing is requested and the local district or agencies whose decision, action or failure to act is subject to review at the fair hearing.

PASS TROUGH PAYMENT - the maximum amount of up to the first $100 or $200, depending on the temporary assistance household composition, of (court ordered or voluntary) child support collected each month which must be disbursed to FA clients and SNA recipients. (Formerly referred to as Disregard Payment.)

PAYMENT MONTH - The month for which the SNAP benefit is issued.

PERSONAL IDENTIFICATION NUMBER (PIN) - a personal access number, selected by the client or designated authorized representative to access benefits using the EBT card.

PERSONAL RESPONSIBILITY AND WORK OPPORTUNITY RECONCILIATION ACT (PRWORA) - the federal legislation established in 1996 that replaced the Aid to Families with Dependent Children (AFDC) program with the federal TANF program funded through the TANF Block Grant, and made other changes to federal assistance programs.

POVERTY LEVEL GUIDELINES - simplified version of the Federal Government's statistical poverty threshold used by the Bureau of the Census to prepare its statistical estimates of the number of persons and families in poverty. The poverty guidelines are used for administrative purposes such as in determining whether a person or family is

financially eligible for assistance under a particular Federal program. The poverty level guideline is calculated and released annually.

PRIMARY SOURCE - any form of original or copied/faxed documentation that the applicant/recipient or member of the household provides to the agency or worker to support proof of their circumstances. Examples: Birth Certificates, Social Security Card, last 4 pay stubs, bank statement with account number and name. This also includes previously verified sources that have not changed that are already at the agency's disposal, e.g., from another case file., as well as documents that the agency orders and pays for.

PROGRAM - the Food Stamp Program conducted under the Food Stamp Act and Regulations. Now known as the Supplemental Nutrition Assistance Program (SNAP).

PRORATION -

1. Process of calculating a food stamp amount for the specified number of days which are fewer or more than the regular period for which the need was established.
2. Arithmetic process whereby the needs and/or income of a household are divided by the number of people in the household to determine each individual member's share of those needs and/or income.

PROSPECTIVE BUDGETING - the amount of the allotment based on an estimate of actual monthly income and/or circumstances which will exist in the month for which the allotment is given.

PRUDENT PERSON CONCEPT - refers to the reasonableness of judgments made by an eligibility worker based on available facts pertinent to a given situation.

PUBLIC ASSISTANCE (PA) – also referred to as Temporary Assistance (TA) includes Family Assistance, Safety Net Assistance, Emergency Assistance to Aged, Blind or Disabled persons, and Emergency Assistance to needy Families including special grants and benefits available pursuant to state Department Regulation 352. Refer to Temporary Assistance, the revised public assistance program based upon the 1996 Personal Responsibility and Work Opportunity Reconciliation Act (PRWORA).

PUBLIC ASSISTANCE HOUSEHOLD (PA) - See Temporary Assistance

"PURE" SSI HOUSEHOLD - all household members are SSI applicants or recipients.

- Q –

QUALIFIED NON-CITIZEN - A qualified non-citizen is a person who:

- has been lawfully admitted for permanent residence under the Immigration and Nationality Act (INA);
- has been granted asylum under Section 208 of the INA;
- has been admitted to the United States as a refugee under Section 207 of the INA;

- has been admitted to the United States as an Amerasian immigrant as described in Section 402(a)(2)(A)(i)(V) of the Personal Responsibility and Work Opportunity Act of 1996;
- has been paroled into the United States under Section 212(d)(5) of the INA for a period of at least one year;
- has had deportation withheld under Section 243(h) or 241 (b)(3) of the INA;
- is a Cuban or Haitian entrant (as defined in Section 501(e) of the Refugee Education Assistance Act of 1980);
- has been granted conditional entry pursuant to Section 203(a)(7) of the INA; or
- Is a battered spouse (including dependent children) meeting the criteria of section 431(c) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996.

QUESTIONABLE INFORMATION - information on the application which is inconsistent with statements made by the applicant, with other information on the application or previous applications or inconsistent with information received by the local district.

- R –

RECERTIFICATION - the process by which continuing eligibility for SNAP benefits is established at specified intervals and which shall include reevaluation and reconsideration of all factors of eligibility and a decision made to continue, modify or discontinue the food stamp benefits.

RECIPIENT - Person who has submitted an application and who has been determined by the local district to be eligible for a specific program. Also includes those eligible individuals on whose behalf an application was submitted by another person.

RECOUPMENT - for active cases, the method of recovering overpayments made to SNAP households by reducing the amount of their ongoing monthly SNAP benefit amount by:

- 10% for Inadvertent Household Error (IHE) or Agency Error (AE) claims, or $10, whichever is greater, or
- 20 % for an Intentional Program Violation (IPV) claims, or $20, whichever is greater,

until the overpayment is paid back. One- and two-person households receiving the minimum benefit may have their SNAP benefits reduced to zero due to SNAP recoupment.

REFUGEES - non-citizen who is outside any country of their nationality and who is unable or unwilling to return, and is unable to avail themselves of the protection of that country because of persecution on account of race, religion, nationality, membership in a particular social group or political opinion, or is an individual designated a refugee by the President.

REFUNDED OR REBATED CLAIM - Amounts repaid by local district due to Treasury Offset Program intercept will be fully reimbursed as a bottom-line adjustment on the federal settlement notice. Further information can be found in the CAMS Manual (Chapter 7).

REPAYMENT - money repaid to the local social services district or collected by the district that is related to a specific client or case, usually to satisfy an overpayment claim.

REQUEST FOR CONTACT (RFC) - letter from worker or agency requesting applicant/recipient to physically appear, telephone, or to provide specific information/verification via hard copy or fax within a specified period of time, detailing specific local district possible actions if they do not do so. (LDSS- 4753)

RESERVED - provisions which will be set forth at a later date.

RESIDENCY - geographic local district in which the household lives and the SNAP application has been filed.

RESIDENTS OF INSTITUTIONS - those individuals who are provided the majority of their meals (over 50% of three meals daily) as part of the institution's normal service but the institution is NOT authorized to accept SNAP.

RESOURCES - both liquid and non- liquid assets which include cash, bank accounts, stocks/bonds, real estate, licensed and unlicensed vehicles. The limit on resources is subject to adjustment for inflation and released annually as part of the SNAP standards.

RESTORATION OF LOST BENEFITS - when the local district or a Fair Hearing decision rules, or a fraud disqualification is reversed so that a household's benefits were lost and the loss was not caused by the household, the local district shall restore such benefits to the household in an amount equal to the amount of benefits lost.

RSDI (Retirement, Survivors, and Disability Insurance) - The official name of benefits issued under Title II of the Social Security Act. These benefits are frequently referred to simply as "Social Security", and are also known as OASDI (Old-Age, Survivors, and Disability Insurance).

RETROACTIVE BENEFITS - if an application of an eligible household is delayed through fault of the local district, the household shall be entitled to benefits retroactive to the month of application.

RETROACTIVE LUMP SUM - Back payment in one check for the past period of time during which the person was eligible for, but did not receive, benefits or assistance.

ROOMER - a person who pays a household for lodging but NOT for food.

- S –

SAFETY NET CASH ASSISTANCE (SN-CSH) - a state and locally funded program that provides cash assistance to eligible individuals, couples and families that are not eligible for family assistance.

SAFETY NET NON-CASH ASSISTANCE (SN-FNP) - a single individual or former TANF family that had received the maximum 60 months of TANF, neither receiving any cash and being ineligible for any federal funding.

SANCTION - The action of disqualifying a person from a program because that person has refused to meet certain requirement(s). The sanction may be imposed for a specific period of time and/or until compliance depending on the program requirement.

SEASONAL FARMWORKER - a person who is employed in agriculture seasonally or of other temporary nature and is not required to be absent over night from his permanent place of residence when

- employed on a farm or ranch performing field work related to planting, cultivating, or harvesting operations or
- employed in canning, packing, ginning, seed conditioning or related research or processing operations, and transported or caused to be transported, to or from the place of employment by means of a day-haul operation.

SECONDARY EVIDENCE - secondary or collateral sources of information or relatives outside the immediate family group and other persons, agencies, or resources. (See Collateral Information)

SELF-EMPLOYMENT INCOME – Income that results from work activity on the part of the Applicant/Recipient which is self- directing and yields compensation directly from the customer. After business expenses have been deducted, the remainder is included in gross personal earned income.

SHELTER ALLOWANCE – Standard of assistance, established for each county, intended to cover the cost of sheltering the household, by providing the amount actually paid by the household, but not in excess of the standard.

SHELTER DEDUCTION - a deduction for shelter costs in excess of 50% of the household's income up to the established maximum after all other income exclusions and deductions are allowed. Households with an aged or disabled member are not subject to the maximum.

SHELTERS – see “Homeless Shelters”, and “Shelters for Victims of Domestic Violence”.

SHELTERS FOR VICTIMS OF DOMESTIC VIOLENCE - public or private nonprofit residential facilities that serve victims of domestic violence. If such facilities serve other individuals, a portion of the facility must be set aside on a long-term basis to serve only victims of domestic violence.

SIBLING - an individual who has a natural, adopted, half or step-brother or sister.

SINGLE LANGUAGE MINORITY - individuals who speak the same non-English language.

SPONSOR OF NON-CITIZEN - any person or public or private agency that executed an Affidavit(s) of Support (I-864) or similar legally binding agreement on behalf of a non-citizen who is not the child of the sponsor or the sponsor's spouse as a condition of the non-citizen's entry into the U.S.

SPOUSE - refers to either of two individuals who would be defined as married under applicable State law, as opposed to those who are living together and are holding themselves out to the community as husband and wife, something referred to as 'common law' marriage. New York State does not recognize common law marriage.

STAGGERED ISSUANCE - the process by which the clients regular recurring electronic benefits will be available. The benefit pick up day will depend on the last digit of the client's case number.

STANDARD DEDUCTION - a dollar amount, determined by USDA which is applied against the gross income of every household.

STANDARD TILITY ALLOWANCES (SUA) allowances that encompass costs for heating/cooling, electricity, cooking fuel, trash collection, sewage, water fees and heating hot water.

STATE-PRESCRIBED FORM - A form which must be used for a specified purpose and without alteration by local districts and/or applicants/ recipients. For example, the application form is a State-prescribed form and must be used by anyone seeking SNAP.

STUDENT - as defined for SNAP purposes, is any person 18 thorough 49 years of age; physically and mentally fit; enrolled at least half time in an institution of higher education excluding high school and on the job training programs, and complies with the eligibility criteria stated in SNAPSB Section 5.

SUPPLEMENTAL HOME ENERGY ALLOWANCE (SPMNT or SHEA): Supplemental allowance established to assist clients to meet energy needs (see Home Energy Allowance).

SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM (SNAP) - As of October 1, 2008, SNAP is the name for the federal Food Stamp Program.

SUPPLEMENTAL SECURITY INCOME (SSI) - monthly cash payments under the authority of Title XVI of the Social Security Act, as amended, to the aged, blind and disabled, or Federally administered mandatory supplemental payments. Provided through a program administered by the Social Security Administration for individuals who are 65 or over, blind or disabled, and are in need as determined by the regulations of the Social Security Administration. SSI is designed to bring all eligible individuals up to specified minimum income levels which vary according to the recipient's living situation. (New York State adds to the amount of the federal SSI benefit to increase the income levels for recipients in this state) Because SSI is a "flat grant" in that it does not vary according to need or specific circumstances affecting the recipient(s), New York State established the Emergency Assistance to Adults program to meet specified emergency needs of SSI recipients. (see EAA)

SUPPLEMENTATION - the process by which an additional or supplemental grant is issued to a recipient in situations when the recipient's actual income received plus the TA grant for any payment month are less than the appropriate standard of need for that month.

- T -

TEMPORARY ASSISTANCE (TA) – See Public Assistance".

TEMPORARY ASSISTANCE HOUSEHOLD (TA) - household in which all members are applying for or receiving some form of Public Assistance.

TEMPORARY ASSISTANCE FOR NEEDY FAMILIES (TANF) - commonly used in reference to the federal assistance program of which a state operates. It is the Block Grant which was established under the 1996 Personal Responsibility and Work Opportunity Reconciliation Act (PRWORA) which states receive in order to operate a federally funded program to assist families with children. TANF funds are used for supportive services and federal benefits.

TENANT OF RECORD - The person who has or persons who have primary responsibility for payment of the monthly rent or mortgage for their dwelling unit. Individuals who contribute a portion of the monthly rent/mortgage to a person responsible for payment of the monthly rent/mortgage for their dwelling unit are not considered a tenant of record. To have primary responsibility for the payment of residential heating costs, the applicant recipient must be the customer of record with a home energy vendor.

TERMINATED CLAIM- An action that removes the claim from collectible debt status at the state or local level and leaves the claim information on CAMS. Terminated claims are not reported as district debt to USDA.

THIRD -PARTY BENEFICIARY - monies received and used for the care and maintenance of a third-party beneficiary not a household member.

THRIFTY FOOD PLAN - the diet required to feed a family of four persons consisting of a man and a woman 20-54, a child 6- 8, and a child 9- 11 years of age, determined in accordance with the Secretary of Agriculture's calculations. The cost of this diet is the basis for uniform allotments for all households regardless of their actual composition, except that the Secretary of Agriculture shall make household size adjustments in the Thrifty Food Plan taking into account economics of scale.

TIMELY NOTICE - a notice which is mailed at least 10 days before the date upon which the proposed action is to become effective.

TRANSITIONAL BENEFIT ALTERNATIVE (TBA)- is a five-month transitional period for all qualifying households leaving TANF funded programs including Family Assistance (FA), (Case Type 11), including CAP recipients, Safety Net Assistance Federally Participating (SNA-FP), (Case Type 12), Safety Net Cash and Safety Net Federally Non-Participating Assistance (Case Type 16 and 17) that include a child under 18 years of age or a child under 22 years age living with a parent(s). The TBA benefit amount is

calculated using the household income level prior to the TA case closing budget and does not include any TA income amounts.

TRANSITIONAL EMPLOYMENT ADVANCEMENT PROGRAM (TEAP)
TEAP refers to an activity in which employment skills training is provided in an actual work setting wherein work performance in a given occupation is done under the guidance and supervision of a trained worker or instructor, and employer expenses for training are reimbursed through grant diversion. (Formerly Training And Employment Assistance Program.)

TRANSITIONAL HOUSING - a living accommodation which is intended to provide shelter to homeless households for a short period of time until permanent regular housing, such as an apartment or house, can be obtained by the household. Such living accommodations may contain cooking and/or refrigeration facilities.

TREASURY OFFSET PROGRAM (TOP) - used to collect delinquent SNAP overpayment claims. Under TOP, there are more than seventy federal payment sources under which an ex-client's debt can be collected. Sources include IRS Tax Refunds, Railroad Retirement Payments, and Federal Salary.

TRUST FUNDS - Trust funds are accumulations of money for the benefit of a person or group of persons. These funds are not owned by the beneficiary, but are usually under the control of a trustee who must carry out the stipulated conditions for payments specified in the trust.

- U –

UNCAPPED - To remove the ceiling, without limit.

UNEARNED INCOME - Income from government or private sources which is paid because of a legal or moral obligation rather than for work activity performed. This includes pensions, unemployment benefits, dividends, interest, insurance compensation and other types of payments.

UNDOCUMENTED NON-CITIZEN
Undocumented non-citizens are non-citizens who entered the U.S. by avoiding inspection at the border, without being admitted or paroled by a USCIS officer, or temporary visitors who overstay their nonimmigrant visa.

UNEMPLOYABLE - Unable to participate in any type of employment or work-related activities either full or part-time, for reasons such as physical or mental illness, which must be medically documented.

UNITED STATES CITIZENSHIP AND IMMIGRATION SERVICE (USCIS) - under the US Department of Justice, is a bureau of the United States Department of Homeland Security . It performs many administrative functions formerly carried out by the United States Immigration and Naturalization Service (INS), which was part of the Department of Justice. The stated priorities of the USCIS are to promote national security, to

eliminate immigration case backlogs, and to improve customer services. USCIS was formerly and briefly named the U.S. Bureau of Customs and Immigration Services, before becoming USCIS.

UNITED STATES DEPARTMENT OF AGRICULTURE (USDA) – Federal department which administers the SNAP Program. See Also, "FNS".

- V -

VERIFICATION - providing/securing of information which establishes the accuracy of information provided by the applicant/recipient on the form prescribed by the Department.

VERIFIED EMPLOYMENT DATA (VED)- Computer matches of TANF adult recipients against a national file of W-4 New Hires information found in upstate Welfare Management System (WMS) Resource File Integration (RFI) subsystem which are considered verified upon receipt.

VOCATIONAL REHABILITATION - The process of restoring to an impaired person the ability to be employable or be more likely to be employable. This process may include such things as education, vocational training, treatment, etc.

VOLUNTARY PARTICIPANTS –SNAP recipients who are exempt from SNAP work registration but volunteer for SNAP employment and training activities. All of the definitions and reporting instructions that pertain to mandatory work registrants also apply to volunteers. However, volunteers may not be sanctioned for failure to comply with SNAP E&T requirements.

VOUCHER - A voucher is an agency form authorizing a vendor payment.

- W –

WAIVER OF ADMINISTRATIVE DISQUALIFICATION HEARING - an election of an individual to accept the imposition of an appropriate penalty without a hearing.

WELFARE MANAGEMENT SYSTEM (WMS) – a statewide computerized data system that receives, maintains, and processes information for the management and control of social service programs. It is an eligibility file of all persons who have applied for, or are receiving services. The WMS Unit coordinates local support to DSS program staff for all of the components of the WMS system. WMS also oversees data entry operations.

WORKING FAMILIES FOOD STAMP INITIATIVE (WFFSI) – pertains to any Non-Temporary Assistance Food Stamp (NTA-SNAP) Program applicant or recipient household that:

Has at least one adult member who is either:

- Working 30 hrs. per week or more; or

- Earns an average weekly income equal to or greater than the Federal Minimum Wage (FMW) times 30 hrs. per week

OR

Has at least two adult members each who is:

- Either working 20 hrs. per week or more; or
- Earning an average weekly income equal to or greater than the Federal Minimum Wage (FMW) times 20 hrs. per week.

WFFSI was subsequently re-named WFSNAPI, but is no longer a consideration, as all households are now eligible to complete necessary interviews by telephone.

Note: The only provision of WFFSI/WFSNAPI that would now potentially be taken into consideration for an eligible household would be the potential elimination of any outstanding overpayment claim previously established against the household if it were determined that the claim would not be repaid within three years based on the standard recoupment amount applicable to the household at that time. However, this information can be determined retroactively for a household, if need be, as there will no longer be any screening for WFFSI/WFSNAPI at application or recertification.

WORK REGISTRATION - all able-bodied household members, unless specifically exempted, must register for and accept suitable employment.